The Georgetown Journal of Law & Public Policy

ARTICLES

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ESSAY

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Phoebe Leach

Hybrid Rights and Taxation
Alexander M. Johnson

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THE GEORGETOWN JOURNAL OF LAW & PUBLIC POLICY

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Letter from the Editor

Dear Reader,

The Georgetown Journal of Law & Public Policy proudly presents the first issue of Volume 23. This issue contains a selection of articles and notes covering a range of important topics.

The issue features articles contributed by both scholars and practitioners. Matthew Cavedon compellingly advocates for strong action to combat child pornography through a shift in focus: from stale public policy to recognition of children's negative right to intimate privacy. Eugene Volokh thoughtfully addresses the implications of plaintiff-side pseudonymous litigation, weighing the equities of allowing accusers to proceed with names under seal while naming defendants. Joseph Greenlee applies the Court's 2022 *Bruen* decision to the broad spectrum of wearable armor, contending that armor is included in the "arms" protected by the Second Amendment, and surveying the American tradition of armor use and regulation since the founding. Finally, in a two-part piece Jack Fitzhenry and GianCarlo Canaparo thoughtfully contemplate the fate of *Chevron* deference before *Loper Bright* (the first part published in the *Georgetown Journal of Law & Public Policy Online*, June 2024), and reconvene to address the separation of powers and the role of the judiciary in a world after *Chevron*.

We next present an essay by Ilya Shapiro, discussing his run-in at Georgetown Law with the illiberal forces of the modern DEI bureaucracy, and seeking hope for the future of the legal academy.

Our first issue concludes with three exceptional student notes. Phoebe Leach, L' 25, makes a constitutional case against taxing telecommuters who reside out of state. In the wake of *Students for Fair Admissions v. Harvard*, Connor Fraley predicts a circuit split, and argues for abandoning the doctrine of *Village of Arlington Heights v. Metropolitan Housing Development Corporation* and its manipulable legislative motive standard. Borrowing from First Amendment hybrid rights doctrine, Alexander Johnson suggests a doctrinal path that could enable meaningful checks on the government's power to tax individuals, restoring some semblance of the Founders' intended protections from abusive taxation.

The Journal team is proud to present this assembly of carefully researched and skillfully composed pieces. Thank you for your interest in our Journal. We hope you find the scholarship contained herein a valuable and stimulating addition to your legal reading.

Josh Hyland
Editor-in-Chief, Volume 23
Georgetown Journal of Law & Public Policy

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ARTICLES

The Tradition of Armor Use and Regulation in America

JOSEPH G.S. GREENLEE*

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INTRODUCTION

This Article describes the historical use and regulation of armor in America. The Article also explains how that history fits within the Supreme Court's test for Second Amendment challenges.

The Article starts in Part I, like the Court's test, with an analysis of the Second Amendment's plain text to determine whether armor is among the "Arms" protected by the Amendment.

Keeping with the Court's test, the remainder of the Article focuses on tradition. Part II examines the tradition of keeping and bearing armor in America. Section B discusses the dependency on armor of the early European expeditioners who explored America from Christopher Columbus through the end of the sixteenth century. Section C surveys the use of armor in the American colonies throughout the seventeenth century. Section D explains the diminished but continued role of armor in America during the eighteenth century, including during the French and Indian War and Revolutionary War. Section E demonstrates that armor was sometimes used during the nineteenth century, including by both Union and Confederate soldiers in the Civil War.

Part III examines the tradition of armor regulation in America. It identifies the few historical regulations involving armor and considers whether other aspects of the Court's test can potentially justify modern regulations.

In conclusion, the Article notes the deeply rooted tradition of keeping and wearing armor in America and finds that throughout American history, whenever armor's usefulness outweighed the burden of wearing it, armor was used. That tradition, combined with the lack of historical restrictions, evinces a robust right to possess and wear body armor for self-defense.

I. THE SECOND AMENDMENT'S PLAIN TEXT

In *New York State Rifle & Pistol Ass'n v. Bruen*, the Supreme Court set forth the following test for all Second Amendment challenges:

> When the Second Amendment's plain text covers an individual's conduct, the Constitution presumptively protects that conduct. The government must then justify its regulation by demonstrating that it is consistent with the Nation's historical tradition of firearm regulation. Only then may a court conclude that the individual's conduct falls outside the Second Amendment's "unqualified command."[1]

A Second Amendment analysis begins, therefore, with an analysis of the Amendment's plain text. The Court conducted this plain text analysis in *District of Columbia v. Heller*.[2]

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1. N.Y. State Rifle & Pistol Ass'n v. Bruen, 597 U.S. 1, 24 (2022) (quoting Konigsberg v. State Bar of Cal., 366 U.S. 36, 50 n.10 (1961)).
2. District of Columbia v. Heller, 554 U.S. 570, 576–600 (2008).

The Second Amendment protects "the right of the people to keep and bear Arms."[3] The initial question that this Article must address, then, is whether armor falls within the word "Arms" as *Heller* defined it.

To define "Arms," the *Heller* Court consulted dictionaries from around America's founding era, noting that "[t]he 18th-century meaning is no different from the meaning today."[4] The first dictionary the Court consulted was the 1773 edition of Samuel Johnson's dictionary, which "defined 'arms' as 'weapons of offence, or *armour of defence*.'"[5] Next, "Timothy Cunningham's important 1771 legal dictionary defined 'arms' as '*any thing that a man wears for his defence*, or takes into his hands, or useth in wrath to cast at or strike another.'"[6] Third, the Court cited Noah Webster's dictionary, which defined arms as "[w]eapons of offense, or *armor for defense and protection of the body*," and stated that "[t]o take *arms* is to arm for attack or *defense*."[7] While the Court cited one founding-era thesaurus that "limited 'arms' . . . to 'instruments of offence generally made use of in war,'"[8] the Court made clear that this definition was not the one it adopted.[9] The Court concluded its analysis by declaring that "the Second Amendment extends, prima facie, to *all instruments that constitute bearable arms*[.]"[10] *Heller*'s plain text analysis strongly supports including armor among the "Arms" that the Second Amendment protects.

This conclusion is buttressed by a closer look at the dictionaries *Heller* relied on. Johnson and Webster both defined "Armor" as "Defensive arms."[11] Cunningham defined "Armour or Arms" together, demonstrating that the words were used interchangeably.[12] Elsewhere in *Heller*'s plain text analysis, to define "bear," the Court relied on Thomas Sheridan's 1796 dictionary.[13] Sheridan included among arms "weapons of offence" and "*armour of defence*."[14] Like Johnson and Webster, Sheridan defined "Armour" as "Defensive arms."[15] These definitions are consistent with the ordinary usage from the colonial and founding eras—early Americans, as demonstrated below, regularly referred to armor as "arms."

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3. U.S. CONST. amend. II.

4. *Heller*, 554 U.S. at 581.

5. *Id.* (quoting 1 SAMUEL JOHNSON, DICTIONARY OF THE ENGLISH LANGUAGE 106 (4th ed. 1773) (reprinted 1978)) (emphasis added) (brackets omitted).

6. *Id.* (quoting 1 TIMOTHY CUNNINGHAM, A NEW AND COMPLETE LAW DICTIONARY (1771) (unpaginated)) (emphasis added).

7. *Id.* (citing 1 NOAH WEBSTER, AMERICAN DICTIONARY OF THE ENGLISH LANGUAGE (1828) (unpaginated)) (emphasis added).

8. *Heller*, 554 U.S. at 581 (quoting 1 JOHN TRUSLER, THE DISTINCTION BETWEEN WORDS ESTEEMED SYNONYMOUS IN THE ENGLISH LANGUAGE 37 (3d ed. 1794)) (emphasis omitted).

9. "Although one founding-era thesaurus limited 'arms' (as opposed to 'weapons') to 'instruments of offence *generally* made use of in war,' even that source stated that all firearms constituted 'arms.'" *Id.*

10. *Id.* at 582 (emphasis added).

11. 1 JOHNSON, *supra* note 5, at 106 ("Armour"); 1 WEBSTER, *supra* note 7 ("Armor").

12. 1 CUNNINGHAM, *supra* note 6.

13. *Heller*, 554 U.S. at 584 (citing THOMAS SHERIDAN, A COMPLETE DICTIONARY OF THE ENGLISH LANGUAGE (6th ed. 1796)).

14. SHERIDAN, *supra* note 13.

15. *Id.*

Definitions of "Armor" were broad. As noted, Cunningham referred to armor when describing "*any thing* that a man wears for his defence" as "Arms."[16] Webster included "*any* habit worn to protect the body in battle," while adding that "A complete *armor* formerly consisted of a casque or helmet, a gorget, cuirass, gauntlets, tasses, brassets, cuishes, and covers for the legs to which the spurs were fastened."[17] As is the case with firearms, armor has improved significantly since the founding era. But this does not alter the Second Amendment's protections. The Court has repeatedly made clear that "even though the Second Amendment's definition of 'arms' is fixed according to its historical understanding, that general definition covers modern instruments that facilitate armed self-defense."[18]

In sum, every dictionary the Supreme Court used to define "Arms" included armor in the definition, and so did a dictionary it consulted to define another term in the plain text. Those same dictionaries defined "Armor" as arms. And they defined "Armor" broadly, as including all protective equipment. The Court's conclusion that "the Second Amendment extends, prima facie, to all instruments that constitute bearable arms" is most reasonably read as including armor. This reading is consistent with the Court's finding that "the inherent right of self-defense has been central to the Second Amendment right."[19] "Defensive arms" like armor serve that sole purpose.

II. THE TRADITION OF BEARING ARMOR IN AMERICA

The early European explorers and early English colonists invariably wore armor for protection against arrows during the frequent and often unexpected skirmishes against American Indians. The Charters for the Virginia and Massachusetts Bay colonies—the first written arms rights guarantees for any Englishmen—granted the colonists the right to bring, import, keep, make, and use armor in America. Armor use declined throughout the century, however, as it proved cumbersome against Indian tribes' guerilla warfare tactics, especially as the tribes increasingly fought the colonists with firearms rather than bows and arrows. But armor continued to be used to some extent throughout the eighteenth century, including during the Revolutionary War. After another period of decline in the nineteenth century, Union and Confederate soldiers privately acquired and used armor during the Civil War. Thus, there is a long tradition of keeping and bearing armor throughout America history.

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16. 1 CUNNINGHAM, *supra* note 6 (emphasis added).

17. 1 WEBSTER, *supra* note 7 (emphasis added).

18. *See Bruen*, 597 U.S. at 28 (citing Caetano v. Massachusetts, 577 U. S. 411, 411–12 (2016)); *see also Heller*, 554 U.S. at 582 ("Some have made the argument, bordering on the frivolous, that only those arms in existence in the 18th century are protected by the Second Amendment. We do not interpret constitutional rights that way. . . . the Second Amendment extends, prima facie, to all instruments that constitute bearable arms, even those that were not in existence at the time of the founding.").

19. *Heller*, 554 U.S. at 628.

A. Glossary of Terms

Before examining the historical uses of armor throughout American history, it will be helpful to define the terms used throughout this Part of the Article.[20]

- *Back and breast*. "The usual description of body armor worn in the 17th century. It consisted of a cuirass, back plate, and some sort of an open helmet."[21]
- *Beaver*. "The part of a helmet that covers the face."[22]
- *Brassard*. "Plate armor for the entire arm."[23] "They are divided into several parts of which the most important are—the *vambrace* or *avantbras* for the forearm, the *elbow cop* or *coudiere* for the elbow; and the *rerebrace* or *arriere-bras* for the upper arm. The *shoulder cop*, *pauldron* or *epauliere* which covered the shoulder, and often a large part of the breast and back, was usually considered a part of the arm guard."[24]
- *Breastplate*. "A plate, or set of plates, covering the front of the body from the neck to a little below the waist."[25]
- *Buckler*. "A shield, more especially the small, round shield held in the left hand when fencing."[26]
- *Buff coat*. "A heavy leather coat. . . . originally made of buffalo leather."[27] "It was a long skirted coat, frequently without a collar."[28]
- *Cabasset*. "An open helmet worn[.]"[29]
- *Chain mail*. "[A]rmor made of interlaced links."[30]
- *Corslet*. "Originally it meant leather armor. . . . Later its meaning was strictly plate armor for the body only."[31]
- *Cotton coat*. "A thick cotton coat which covered part of the arms and thighs, made in one piece," which protected against arrows.[32]
- *Crupper*. "The armor for the hind quarters of a horse."[33]

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20. Many of the definitions in the glossary are replicated from David B. Kopel & Joseph G.S. Greenlee, *The History of Bans on Types of Arms Before 1900*, 50 J. LEGIS. 223, 250–51 (2024).
21. GEORGE CAMERON STONE, A GLOSSARY OF THE CONSTRUCTION, DECORATION AND USE OF ARMS AND ARMOR IN ALL COUNTRIES AND IN ALL TIMES 84 (1999).
22. 1 SAMUEL JOHNSON, DICTIONARY OF THE ENGLISH LANGUAGE (4th ed. 1773).
23. STONE, *supra* note 21, at 142.
24. *Id.*
25. *Id.* at 143.
26. *Id.* at 150.
27. *Id.* at 152.
28. *Id.*
29. *Id.* at 158.
30. *Id.* at 424 ("Mail, Chain Mail").
31. *Id.* at 192 ("Corselet, Corslet").
32. Walter Hough, *Primitive American Armor*, *in* ANNUAL REPORT OF THE BOARD OF REGENTS THE SMITHSONIAN INSTITUTION 647 (Washington, Gov't Printing Off. 1895).
33. STONE, *supra* note 21, at 195 ("Crupper, Croupiere Bacul").

- *Cuishes*. "Defenses for the thighs. . . . [t]he later ones were entirely of small plates and mail, except for the knee cop which was a large elliptical plate."[34]
- *Culet*. "A skirt of articulated plates attached to the backplate to guard the loins."[35]
- *Curat*. Armor covering the "back and breast."[36]
- *Cuirass*. "The cuirass was originally a breastplate of leather as its name implies. Later it was made of bronze and finally of steel. Both back and breast are included in the term."[37]
- *Escaupilles*. "[A] garment of quilted cotton covering the body down to the lower part of the thighs. It was considered arrow proof."[38]
- *Gauntlet*. "Armor for the hands."[39]
- *Gorget*. "Armor for the neck."[40]
- *Helmet*. "Generically any headpiece, specifically the open headpiece of the time of the Norman conquest."[41]
- *Jack*. "Body armor" including "either a padded coat, or one interlined with mailplates or horn."[42]
- *Knee cops*. Armor for the knees. "The earliest were made of leather, the later of plate. At first these pieces only covered the knee and were fastened to mail, or leather, thigh pieces. . . . In the 15th century the knee cops were merged in the plate cuisses."[43]
- *Morion*. "A light, open headpiece with a high comb and a brim forming high peak front and back, and turned down at the sides."[44]
- *Pectoral*. "A covering for the breast, either defensive or ornamental."[45]
- *Quilted coat*. "Armor made of several thicknesses of linen, or other cloth, quilted or pour-pointed together."[46]
- *Taces*. "[L]aminated defenses for the thighs" that are "very similar" to tassets.[47]
- *Target*. "A round shield with loops on the back through one of which the arm was passed while the other was grasped by the hand."[48]

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34. *Id*. at 196–97 ("Cuisses, Cuissards, Cuissarts, Cuishes, Garde de Cuisses, Quishes, Quysshews").
35. *Id*. at 198 ("Culet, Culeset, Garde de Reins").
36. *Id*.
37. *Id*. at 196.
38. *Id*. at 222.
39. *Id*. at 245.
40. *Id*. at 250 ("Gorget, Colletin").
41. *Id*. at 289.
42. *Id*. at 310.
43. *Id*. at 364.
44. *Id*. at 457 ("Morian, Morion").
45. *Id*. at 492.
46. *Id*. at 520 ("Quilted Armor").
47. *Id*. at 598 ("Taces, Tuilles").
48. *Id*. at 605 ("Target, Targe").

- *Tassets*. "Protections of plate for the thighs made of a single plate, or of several narrow plates flexibly connected by straps and rivets."[49]

B. Discovery and Exploration of the New World

This Section underscores the dependency on armor of the early European explorers of America. Several were Spanish, and while Americans predominantly adopted English traditions, they embraced some Spanish traditions as well.[50] "[A]ssociating themselves with a colonial history that was not British"—specifically, traditions of "Spanish America"—"enabled U.S. patriots to bypass their British heritage and assert their cultural independence."[51] Thus, Thomas Jefferson wrote that "the ancient part of American history is written chiefly in Spanish."[52] The Spanish explorers' heavy reliance on armor, combined with the English and other European explorers' heavy reliance on armor, demonstrates how deeply rooted the use of armor is in American history.

When Christopher Columbus reached the Americas in 1492, the "strange beings clad in glittering steel . . . landing upon the beach" caused the natives to

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49. *Id.* at 606.

50. For example, Christopher Columbus, who led four Spanish expeditions to America, is deeply ingrained in the heritage of the United States. As early as 1697, Samuel Sewall, a justice of the Massachusetts Bay Colony's highest court, passionately argued that "*men should rather call* [*America*] Columbina, *from the magnanimous Heroe* Christopher Columbus *a* Genuse, *who was manifestly Appointed of GOD to be the Finder out of these Lands*." Samuel Sewall, PHÆNOMENA QUÆDAM APOCALYPTICA AD ASPECTUM NOVI ORBIS CONFIGURATA. OR, SOME FEW LINES TOWARDS A DESCRIPTION OF THE NEW HEAVEN AS IT MAKES TO THOSE WHO STAND UPON THE NEW EARTH 55 (Boston, Green & Allen 1697). Throughout the eighteenth and nineteenth centuries, the American colonies and later the United States were regularly referred to as "Columbia." *See, e.g.*, Phillis Wheatley, *His Excellency Gen. Washington*, *in* 1 CYCLOPEDIA OF AMERICAN LITERATURE 369 (Duyckinck & Duyckinck eds., New York, Charles Scribner 1856) (1775); JOEL BARLOW, THE VISION OF COLUMBUS: A POEM, IN NINE BOOKS 176 (Hartford, Hudson & Goodwin 1787); JOEL BARLOW, THE COLUMBIAD: A POEM (Philadelphia, Fry & Kammerer 1807); THE POEMS OF PHILIP FRENEAU: POET OF THE AMERICAN REVOLUTION (Fred Lewis Pattee ed., 1907) (three volumes). The nation's unofficial national anthem until 1931 was "Hail, Columbia," the country was long personified as "Lady Columbia," and the nation's capital was established in the territory of "Columbia." *See Hail Columbia*, LIBR. OF CONG., https://www.loc.gov/item/ihas.200000008 [https://perma.cc/7VLQ-7F96]; Cari Shane, *Before Lady Liberty, There Was Lady Columbia, America's First National Mascot*, SMITHSONIAN MAG., https://smithsonianmag.com/history/before-lady-liberty-lady-columbia-180982722 [https://perma.cc/PZP3-X9SV]; 3 JOHN PINKERTON, MODERN GEOGRAPHY: A DESCRIPTION OF THE EMPIRES, KINGDOMS, STATES, AND COLONIES; WITH THE OCEANS, SEAS, AND ISLES; IN ALL PARTS OF THE WORLD 93 (London, T. Cadell et al. 1807).

51. Caitlin A. Fitz, *The Hemispheric Dimensions of Early U.S. Nationalism: The War of 1812, Its Aftermath, and Spanish American Independence*, 102 J. AM. HIST. 356, 358 (2015).

52. Letter from Thomas Jefferson to Thomas Mann Randolph, July 6, 1787, *in* 2 THE WRITINGS OF THOMAS JEFFERSON 177 (H. A. Washington ed., 1871). Jefferson echoed this line the following month while recommending that his nephew learn Spanish: "Our future connections with Spain and Spanish America, will render that language a valuable acquisition. The ancient history of that part of America, too, is written in that language. I [will] send you a dictionary." Letter from Thomas Jefferson to Peter Carr, Aug. 10, 1787, *in* 2 THE WRITINGS OF THOMAS JEFFERSON, *supra*, at 238. Jefferson owned many books about Spanish and other European expeditions to America. *See* THOMAS JEFFERSON'S LIBRARY: A CATALOG WITH THE ENTRIES IN HIS OWN ORDER 140–47 (Wilson & Gilreath eds., 2010).

"fle[e] in affright to their woods."[53] "During the ceremonies" that took place soon after, the natives "remained gazing in timid admiration at the complexion, the beards, the shining armour, and splendid dress of the Spaniards."[54] On Columbus's second voyage to America from 1493 to 1496, when Columbus wanted to "impress" with "his present power and importance, he appeared with a numerous train of his principal officers, all richly dressed or in glittering armour."[55] It is known that "corselets" were among the armor brought on this second expedition.[56] In 1494, "Columbus set out at the head of about four hundred men well armed and equipped, with shining helmets and corslets" as they ventured into the interior of La Española.[57] The fact that "[o]ne Spaniard was killed by a poisoned arrow that pierced his buckler" demonstrates their use of shields.[58] On Columbus's third voyage to America from 1498–1500, Indians ambushed some of his men during a river crossing, and "notwithstanding the protection of their targets, many of the Spaniards were wounded."[59] The Spaniards pursued their ambushers, but "the Indians took to flight" and evaded the Spaniards "who were encumbered with armour, targets, cross-bows and lances."[60] On Columbus's final voyage to America from 1502 to 1504, the Spaniards were armed "with swords, bucklers, cuirasses, and cross-bows."[61]

The name "America" is derived from Amerigo Vespucci,[62] who made a disputed number of voyages to America for both Spain and Portugal between 1497 and 1504.[63] Vespucci marveled that "when [the natives] advance to war they cover no part of their bodies for the sake of protection, so like beasts are they in this matter."[64] The natives' lack of defensive coverings and especially their practice of cannibalism disturbed Vespucci and his men, who "endeavored to the extent of our power to dissuade them and persuade them to desist from these

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53. 1 WASHINGTON IRVING, A HISTORY OF THE LIFE AND VOYAGES OF CHRISTOPHER COLUMBUS 241 (London, John Murray 1828).

54. *Id.*

55. 2 *id.* at 54.

56. 1 *id.* at 446.

57. 2 *id.* at 94.

58. 1 THE CHRISTOPHER COLUMBUS ENCYCLOPEDIA 37 (Silvio A. Bedini ed., 1992).

59. 2 IRVING, *supra* note 53, at 480.

60. *Id.* at 480–81.

61. 3 *id.* at 227.

62. THE CHRISTOPHER COLUMBUS ENCYCLOPEDIA, *supra* note 58, at 18–19. Martin Waldseemüller first applied the name "America" to the new continent on a terrestrial globe he produced in 1506, and more influentially, in a map he published in 1507. *Id.* at 19. The widespread popularity of Vespucci's accounts of his voyages, compared with the relatively little publicity Columbus initially received, led to the continent being named "America." *Id.* at 18.

63. Some historians believe that Vespucci fabricated at least one, and possibly two, of his voyages. *See* FREDERICK ALBION OBER, AMERIGO VESPUCCI 101–25 (1907); *Amerigo Vespucci*, BRITANNICA, https://www.britannica.com/biography/Amerigo-Vespucci [https://perma.cc/RJZ9-54J9].

64. 5 VESPUCCI REPRINTS, TEXTS, AND STUDIES: THE MUNDUS NOVUS IN TRANSLATION 7 (George Tyler Northup trans., 1916). Vespucci's *Mundus Novus* "quickly spread to other countries and was published in at least fourteen editions between 1503 and 1505." THE CHRISTOPHER COLUMBUS ENCYCLOPEDIA, *supra* note 58, at 18.

depraved customs[.]"[65] A famous depiction of Vespucci in America is an allegorical drawing by Johannes Stradanus from the 1580s, which shows Vespucci in armor, holding a sword, astrolabe, and banner displaying the Southern Cross.[66]

Juan Ponce de León joined Columbus on his second voyage to America. He returned to America in 1513, landing in present-day Florida—which he named *La Florida*—and is widely credited for its discovery.[67] León and his men regularly went about fully clad in metal armor.[68] While highly effective, the armor was not impenetrable. Returning to Florida in 1521 to establish Spain's first colony in today's continental United States, "no sooner had [León] landed than the savages came down with overwhelming force" to repel the incursion.[69] "[T]hough sheathed in armor from throat to toe, he was struck in the thigh by an arrow."[70] His men rushed him to the ship to sail to Cuba for surgical aid. Hearing the taunts of the Indians as his men retreated, León "called for his armor" to sally forth again but collapsed on the deck and eventually succumbed to his injuries.[71]

Spain sent the Narváez expedition—consisting of three hundred men—to "conquer and govern" the Florida territory in 1527.[72] The second-in-command, Álvar Núñez Cabeza de Vaca, later published a narrative about the catastrophic expedition. The Spaniards' mistreatment of virtually every native they encountered led to relentless attacks from bow-wielding natives during their time in Florida. The Spaniards developed "galled shoulders from carrying armor,"[73] but many were still killed by the powerful arrows that "pierced through" red oak trees "from side to side."[74] In July 1528, several Spaniards were injured during an

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65. 5 VESPUCCI REPRINTS, TEXTS, AND STUDIES, *supra* note 64, at 7. "[W]e owe the term 'cannibal' to [Columbus's] conflation of the term 'Caniba'—an appellation for the fierce peoples of the eastern Caribbean—with their custom of eating human flesh. Eventually, the term was applied to all man-eating peoples." ANDRÉS RESÉNDEZ, THE OTHER SLAVERY 40–41 (2016).

66. *Allegory of America*, THE MET, https://www.metmuseum.org/art/collection/search/343845 [https://perma.cc/ZL2X-LVBV] (last visited Dec. 19, 2023). Stradanus's drawing was made into an engraving by Theodoor Galle around 1600. *Allegory of America, from New Inventions of Modern Times (Nova Reperta), plate 1 of 19*, THE MET, https://www.metmuseum.org/art/collection/search/659655 [perma.cc/5JRP-87Q3] (last visited Dec. 19, 2023).

67. There is reason to believe that Florida may have been "discovered" by earlier Europeans. For example, the Cantino Planisphere, a 1502 map created by a Portuguese explorer, arguably depicts Florida's shorelines. Douglas T. Peck, *The First European Charting of Florida and the Adjacent Shores*, 34 FLA. GEOGRAPHER 82, 86–94 (2003).

68. *See, e.g.*, FREDERICK A. OBER, JUAN PONCE DE LEÓN 103–04, 106, 130, 146, 153–54, 248, 250, 252–53, 257 (1908).

69. *Id.* at 278.

70. *Id.*

71. *Id.* at 279.

72. *The Narrative of Alvar Nuñez Cabeca de Vaca*, *in* SPANISH EXPLORERS IN THE SOUTHERN UNITED STATES 1528–1543, at 17 (Frederick W. Hodge ed., 1907).

73. *Id.* at 27.

74. *Id.* at 31. De Vaca wrote, "The Indians we had so far seen in Florida are all archers . . . The bows they use are as thick as the arm, of eleven or twelve palms at length, which they discharge at two hundred paces with so great precision that they miss nothing." *Id.* at 32.

attack while crossing a lake;[75] "the good armor they wore did not avail."[76] In September, "the Indians twice attacked and killed ten men" while they were "gathering shell-fish": "We found their corpses traversed from side to side with arrows," de Vaca wrote, "and for all some had on good armor, it did not give adequate protection or security against the nice and powerful archery[.]"[77] By the end of that month, forty additional men had died from disease and hunger while the survivors resorted to eating their horses.[78] The remaining men—now fewer than 200—built makeshift rafts to escape to the Spanish colonies in Mexico.[79] Narváez's raft was swept away at sea.[80] The two other rafts shipwrecked on a Texas island.[81] Three men drowned.[82] Of the eighty men who made it to the island, most died of disease or starvation.[83] Some resorted to cannibalism.[84] The survivors were enslaved by Indians and badly abused.[85] All but four were killed by their enslavers,[86] a fellow Spaniard,[87] exposure,[88] or starvation.[89] The four survivors, including Cabeza de Vaca, traveled across Texas and possibly into New Mexico and Arizona before encountering European slavers in 1536 and finally returning to Spain.[90]

The Spanish explorer Hernando de Soto set sail for North America in 1538 with roughly "600 men in armor."[91] According to the earliest published narrative of the expedition, "the Portuguese" on the expedition were "armed with very excellent armor," while "[m]ost of the Castilians wore poor and rusty coats of mail," and "all [the men wore] helmets."[92] In a particularly ruthless campaign,

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75. *Id.* at 31. "There were those this day who swore that they had seen two red oaks, each the thickness of the lower part of the leg, pierced through from side to side by arrows; and this is not so much to be wondered at, considering the power and skill with which Indians are able to project them. I myself saw an arrow that had entered the butt of an elm to the depth of a span." *Id.* at 31–32.

76. *Id.* at 31.

77. *Id.* at 36.

78. *Id.*

79. *Id.* at 35–36.

80. *Id.* at 62.

81. *Id.* at 46–48. There is a scholarly debate over whether the men shipwrecked on Galveston Island or Follet's Island. *See* ANDRÉS RESÉNDEZ, A LAND SO STRANGE: THE EPIC JOURNEY OF CABEZA DE VACA 243, 277 n.2 (2007).

82. *The Narrative of Alvar Nuñez Cabeca de Vaca*, *supra* note 72, at 46.

83. *Id.* at 49, 58, 63.

84. *Id.* at 49.

85. *Id.* at 50, 59, 64.

86. *Id.* at 58, 62, 68.

87. *Id.* at 63.

88. *Id.* at 58, 63.

89. *Id. See also* STEVEN RINELLA, AMERICAN BUFFALO: IN SEARCH OF A LOST ICON 17–19 (2008).

90. JOHN L. KESSELL, SPAIN IN THE SOUTHWEST: A NARRATIVE HISTORY OF COLONIAL NEW MEXICO, ARIZONA, TEXAS, AND CALIFORNIA 384 n.28 (2002).

91. 2 THE STANDARD REFERENCE WORK FOR THE HOME, SCHOOL, AND LIBRARY (1912) (unpaginated) (under heading, "De Soto").

92. A Gentleman from Elvas, *True Relation of the Hardships Suffered by Governor Don Hernando de Soto and Certain Portuguese Gentlemen in the Discovery of the Province of Florida*, *in* 1 THE DE SOTO CHRONICLES: THE EXPEDITION OF HERNANDO DE SOTO TO NORTH AMERICA IN 1539–1543, at 50 (1995) (originally published in 1557).

the expedition explored what is now the southeastern United States, becoming the first Europeans to cross the Mississippi River.[93] Although often outnumbered, the Spaniards' armor gave them a considerable advantage in battle.[94] De Soto demonstrated the advantage when he "drew out more than twenty arrows that [his private secretary] carried hanging from his armor, which was a quilted tunic of thick cotton."[95]

The Spaniards quickly learned that not all their armor was effective, however. "A sharpened cane passes through a shield," they realized,[96] which rendered arrows made of cane problematic: "Generally when arrows [of fish bone or stone] strike against armor, they break off at the place where they are fastened on. Those of cane split and enter through the links of mail and are more hurtful."[97] As it turned out, some coats of mail were more useful than others. An arrow wounded the maestre de campo, Luis de Moscoso Alvarado, during one of the first skirmishes with the natives: "Moscoso received an arrow wound in the right side" after the arrow "passed through a quilted doublet" he wore as well as "a buckskin jacket and a coat of mail that he wore beneath it."[98] This alarmed the Spaniards because Moscoso wore an expensive "highly burnished" coat of mail that "[t]he rich men had brought many of."[99] So the Spaniards had a native they captured shoot one from fifty paces away. The first shot "passed through the coat of mail."[100] The Spaniards then added a second coat of mail in front of the first. The next "arrow passed through four thicknesses of steel and lodged there, halfway through."[101] Consequently, some of the men discarded their previously coveted expensive coats of mail and replaced them with cheaper coats of mail that proved to be more effective—which they wore under "loose quilted jackets" for extra protection.[102]

When de Soto contracted a fever and died in 1542, his men had to conceal his death from the Indians because it would undermine the claim that de Soto was a god.[103] They made a coffin out of the trunk of an evergreen oak, "weighted the rude coffin with armor, and sank it in the bosom of the 'Father of Waters' [the

93. FINAL REPORT OF THE UNITED STATES DE SOTO EXPEDITION COMMISSION 228 (1939). De Soto's expedition traversed present-day Florida, Georgia, South Carolina, North Carlina, Tennessee, Alabama, Mississippi, Arkansas, Louisiana, and Texas. *Id.* at VII.

94. *See* JOHN S.C. ABBOTT, FERDINAND DE SOTO, THE DISCOVERER OF THE MISSISSIPPI 129 (New York, Dodd & Mead 1873).

95. Rodrigo Rangel, *Account of the Northern Conquest and Discovery of Hernando de Soto*, *in* 1 THE DE SOTO CHRONICLES, *supra* note 92, at 293.

96. A Gentleman from Elvas, *supra* note 92, at 59.

97. *Id.*

98. Garcilaso de la Vega, *La Florida del Ynca*, *in* 1 THE DE SOTO CHRONICLES, *supra* note 92, at 235 (originally published in 1605).

99. *Id.*

100. *Id.*

101. *Id.*

102. *Id.* at 236.

103. De Soto claimed to be the "son of the sun." A Gentleman from Elvas, *supra* note 92, at 77, 115, 134.

Mississippi River]."[104] De Soto was not the last man from his expedition to be draped in armor at the bottom of the Mississippi. When Indians upset the Spaniards' canoes during a skirmish in 1543, roughly a dozen of them drowned because their armor weighed them down.[105]

The Spanish explorer Francisco Vázquez de Coronado led an expedition from what is now Mexico to Kansas from 1540 to 1542. Records of the muster roll completed the day before Coronado set out on the expedition describe the armor his men brought on the expedition.[106] Nearly every one of the 289 men listed on the muster roll brought armor: 260 men brought "native" armor, such as round shields, quilted cotton tunics, and traditional feathered headgear;[107] 61 men brought European-style body armor, such as Castilian armor, chain mail vests, chain mail doublets, and chain mail breeches;[108] 45 brought European-style helmets, such as sallets;[109] many also brought elk hide jackets, chain mail sleeves, beavers (chin guards), breastplates, gauntlets, or gorgets.[110] Coronado brought armored horse trappings for his horses.

Arms historian Harold Peterson provides further insight into the armor worn on the Narváez, de Soto, and Coronado expeditions: "The infantry wore chain mail shirts probably with reinforcing pieces of plate in the form of cuishes to protect the thighs, knee-cops, and possibly brassards for the arms"; "[s]ome carried targets, and all wore helmets."[111] "The cavalry were more heavily armed, some very probably in full suits of plate armor. Even the horses were protected."[112]

Juan de Oñate and Pedro Ponce de León both sought to lead a Spanish expedition to New Mexico in 1598. Oñate offered to supply "Six coats of mail. Six cuishes, Six helmets with beavers, Six sets of horse armor. . . . Two complete coats of armor. . . . Six buckskin jackets."[113] Beyond what he promised to supply, de Oñate requested "one dozen coats of mail from the armory of his Majesty on condition that he pay for them."[114] León offered to supply twelve coats of mail, twelve cuishes, twelve helmets with beavers, twelve sets of horse armor, four complete coats of armor, thirty buckskin jackets, four steel shields, and four helmets.[115] Beyond what he promised to supply, León requested "the power to take

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104. 2 THE STANDARD REFERENCE WORK FOR THE HOME, SCHOOL, AND LIBRARY (1912) (unpaginated) (under heading, "De Soto"). Notably, there are other theories about his burial. For example, one claims that his coffin was "weighted with sand and allowed to sink into the depths of the Rio Grande." FINAL REPORT, *supra* note 93, at 260.

105. *Id.* at 265.

106. The muster was conducted on February 22, 1540. DOCUMENTS OF THE CORONADO EXPEDITION, 1539–1542, at 139 (Flint & Flint eds., 2005).

107. *Id.* at 138.

108. *Id.*

109. *Id.*

110. *Id.* at 139–50.

111. HAROLD PETERSON, ARMS AND ARMOR IN COLONIAL AMERICA 1526–1783, at 106 (1956).

112. *Id.*

113. 1 HISTORICAL DOCUMENTS RELATING TO NEW MEXICO, NUEVA VIZCAYA, AND APPROACHES THERETO, TO 1773, at 283 (Charles Wilson Hackett ed., 1923).

114. *Id.* at 285.

115. *Id.* at 283.

from these kingdoms all the arms, offensive and defensive . . . that he may wish, besides what is granted to him."[116] The Crown ultimately selected Oñate.[117] Some of Oñate's men brought their own armor in addition to what he provided. For example, a captain swore that he was taking "three complete suits of armor, to arm himself and two other soldiers in coats of mail, with thigh piece, beaver, and helmet, all complete, and with nothing lacking"; "Three sets of horse armor of buckskin, lined with undressed leather, for the flanks, foreheads, breasts, necks"; "two shields for defense against arrows"; and "complete equipment of armor" for each of his two servants."[118] Oñate proceeded to establish the first Spanish settlement in the territory that is now New Mexico and became its first governor.[119]

Spaniards continued to depend on defensive arms in America throughout the sixteenth century, especially the practical and inexpensive cotton armor.[120] A 1570 investigation of the Spanish fort at St. Augustine found that "the *escaupiles* that were taken there have been used by the soldiers as shirts" and that "they have much need of . . . other *escaupiles*."[121] A 1573 investigation found that "within two years" each soldier who arrived at the fort at St. Augustine was provided "girdles, . . . some hose, some arms which are called *escaupiles*."[122] In 1577, Spanish Florida's third governor requested "one hundred and fifty *escaupiles*" for the fort at Santa Elana—the capital of Spanish Florida at the time and present-day Parris Island, South Carolina.[123] "In later Spanish expeditions into the Southwest, the mail shirt was also apparently standard equipment." For example, Vicente de Zaldívar y Mendoza, the *maestre de campo* of an expedition to New Mexico in 1602, took "[o]ne hundred coats of mail. One hundred cuishes. Fifty steel helmets with beavers."[124]

Rene Goulaine de Laudonnière, a French explorer, led an expedition in 1564 that unsuccessfully attempted to colonize what is now Florida.[125] A painter on the expedition, Jacques Le Moyne de Morgues, created two illustrations revealing

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116. *Id*. at 293.

117. León was initially selected but failed to raise enough money for the expedition after falling ill. 1 CHARLES F. COAN, A HISTORY OF NEW MEXICO 174 (1925).

118. 1 HISTORICAL DOCUMENTS RELATING TO NEW MEXICO, *supra* note 113, at 429–33.

119. COAN, *supra* note 117, at 175–80; INVENTORY OF THE COUNTY ARCHIVES OF SANDOVAL COUNTY NEW MEXICO 7 (1939).

120. PETERSON, *supra* note 111, at 125.

121. *Investigation of the Return from Florida of Esteban de Las Alas*, Dec. 22, 1570, *in* 1 COLONIAL RECORDS OF SPANISH FLORIDA 1570–1577, at 307 (Jeannette Thurber Connor ed. & trans., 1925).

122. *Investigation Made in Madrid by Licentiate Gamboa on Matters Concerning Florida*, Feb. 4, 1573, *in* 1 COLONIAL RECORDS OF SPANISH FLORIDA, *supra* note 121, at 97.

123. Letter from Pedro Menéndez Márquez to the King, Oct. 21, 1577, *in* 1 COLONIAL RECORDS OF SPANISH FLORIDA, *supra* note 121, at 275.

124. *The Council of the Indies to the president of the Casa de Contratacion. Valladoid, June 12, 1602*, *in* HISTORICAL DOCUMENTS RELATING TO NEW MEXICO, *supra* note 113, at 403.

125. The French explorer Samuel de Champlain had better luck founding Quebec and New France in 1608. Champlain and his men were heavily armed with items such as corselets, burgonets, tassets, backplates, breastplates, and shields. 2 VOYAGES OF SAMUEL DE CHAMPLAIN, 1604–1610, at 240, 242 (Charles Pomeroy Otis trans., Boston, John Wilson & Son 1878); PETERSON, *supra* note 111, at 133.

the armor the Spaniards wore on the expedition. A painting of a battle in which the French supported Chief Outina of the Timucua against his rival Chief Pontanou shows the French officers wearing breastplates, cabassets, and padded clothing to protect against arrows and clubs, while de Laudonnière utilizes a circular steel target to shield himself from a blow with a club.[126] Le Moyne's other illustration portrays a ceremony in which de Laudonnière wears a breastplate and the men behind him wear morions.[127]

Sir Walter Raleigh led England's first attempt to establish an American colony in 1585 with his ill-fated settlement on Roanoke Island. Raleigh's military adviser recommended that he bring substantial amounts of armor on the expedition, including: "100[] swordes and lyght moddena [Modena] targetes"; "Then 100. Armed men with millan [Milan] corsseletes lyght"; "Then 50. Armed men with lyght Corsseletes."[128] It is unclear what Raleigh ended up taking on the expedition, but Raleigh had previously warned in *Maxims of State* about societies in which the people "grow . . . negligent of Armour" or "weakened of Armour."[129] In any event, Raleigh's adviser's directions "reflect the general attitude of contemporary military men towards the requisites for a colony."[130]

Like their Spanish, French, and English predecessors, the colonists who founded the American colonies in the seventeenth century depended on armor for survival, as explained in the next Section.

C. Seventeenth Century

This Section will discuss the use of armor in the first two permanent English settlements in Virginia and Massachusetts before discussing the militia mandates that required militiamen (generally, all able-bodied males) to keep and bear armor throughout the American colonies in the seventeenth century. But before focusing on two specific colonies, Peterson's general summary of armor use in America provides helpful insight:

> The armor that was used in America during the 1600's was much the same as that worn in the second half of the preceding century. The target was used everywhere, and the morion and cabasset continued to be very popular. Shirts of mail were still in use, and so were quilted and padded garments. In the English colonies, the latter were frequently called jacks or jack-coats.[131]

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126. *Outina defeats Pontanou with the aid of the French*, LIBR. OF CONG., https://www.loc.gov/resource/cph.3a04315/ [https://perma.cc/U9YL-JGXK] (last visited Dec. 15, 2023).

127. *Narrative of Le Moyne, an Artist who accompanied the French Expedition to Florida Under Laudonnière, 1564,* LIBR. OF CONG., https://www.loc.gov/resource/gdcwdl.wdl_15521/?sp=47&r=-0.355,0.18,1.678,0.707,0 [https://perma.cc/X33L-FSKM] (last visited Dec. 15, 2023).

128. 1 THE ROANOKE VOYAGES, 1584–1590, at 131 (David Beers Quinn ed., 2017). For an image of "the type of armor Raleigh's advisor referred to as 'millan corseletes—lyght,'" *see* PETERSON, *supra* note 111, at 131.

129. Sir Walter Raleigh, *Maxims of State*, *in* REMAINS OF SIR WALTER RALEIGH 34, 40 (1669).

130. PETERSON, *supra* note 111, at 128.

131. *Id.* at 132.

1. Virginia

The Virginia colonists who formed the first permanent English settlement in America had the express right to import and use armor. In the First Charter of Virginia in 1606, the King James I, binding his "Heirs, and Successors," granted Virginia colonists the right to travel to the colony "With sufficient Shipping, and Furniture of Armour, Weapons, Ordnance, Powder, Victual, and all other things, necessary for the said Plantations, and for their Use and Defence there."[132] Once the colonists arrived at the colony, they had the right to import from Great Britain "the Goods, Chattels, Armour, Munition, and Furniture, needful to be used by them, for their said Apparel, Food, Defence, or otherwise. . ."[133] The Second Charter of Virginia in 1609 guaranteed the right of colonists to "take" on the Voyage to Virginia and to "inhabit there in the said Colony" with "sufficient Shipping, Armour, Weapons, Ordinance, Munition, Powder, Shot, . . . and all other things necessary . . . for their Use, and Defence, and Trade with the People there."[134] The Third Charter of Virginia in 1611–12 guaranteed the right of colonists to take "Armour, Weapons, Ordnance, Munition, Powder, Shot . . . and all other Things necessary for their Use and Defence."[135]

"The settlers who arrived at Jamestown in 1607 were well equipped with armor."[136] On May 5, 1607, nine days before founding the Jamestown settlement, George Percy—who "was three times at the head of the affairs of the colony during the periods of the first and second charters"[137]—wrote that the "Rapahanna" Indians invited the colonists to meet with them.[138] Before heading to the meeting, Percey explained, "[w]ee manned our shallop with Muskets and Targetiers sufficiently."[139] On May 20, some colonists set up a leather shield for a Paspahegh Indian to shoot to see how effectively it would stop an arrow. When the leather shield underperformed, they set up a steel shield, which provided better a result:

> One of our Gentlemen having a Target which hee trusted in, thinking it would beare out a slight shot, hee set it up against a tree, willing one of the Savages to

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132. *The First Charter of Virginia (1606)*, *reprinted in* 7 THE FEDERAL AND STATE CONSTITUTIONS: COLONIAL CHARTERS, AND OTHER ORGANIC LAWS OF THE STATES, TERRITORIES, AND COLONIES NOW OR HERETOFORE FORMING THE UNITED STATES OF AMERICA 3786 (Francis Newton Thorpe ed., 1909).

133. *The First Charter of Virginia (1606)*, *reprinted in* 7 THE FEDERAL AND STATE CONSTITUTIONS, *supra* note 132, at 3787.

134. *The Second Charter of Virginia (1609)*, *reprinted in* 7 THE FEDERAL AND STATE CONSTITUTIONS, *supra* note 132, at 3799.

135. *The Third Charter of Virginia (1611–12)*, *reprinted in* 7 THE FEDERAL AND STATE CONSTITUTIONS, *supra* note 132, at 3807.

136. PETERSON, *supra* note 111, at 138.

137. George Percy, *A Trewe Relacyon*, *in* 3 TYLER'S Q. HIST. AND GENEALOGICAL MAG. 259, 259 (1921).

138. George Percy, *Observations of Master George Percy, 1607*, *in* NARRATIVES OF EARLY VIRGINIA 1606–1625, at 13 (Lyon Gardiner Tyler ed., 1907). It appears that Percy was mistaken, and that the colonists actually met with Quioughcohanock Indians. A. W. Bohannan, *Jamestown Island and 'The Surry Side,"* 55 VA. MAG. HIST. AND BIOGRAPHY 105, 126 (1947).

139. *Observations of Master George Percy*, *supra* note 138, at 13.

> shoot; who tooke from his backe an Arrow of an elle long, drew it strongly in his Bowe, shoots the Target a foote thorow, or better: which was strange, being that a pistoll could not pierce it. Wee seeing the force of his Bowe, afterwards set him up a steele Target; he shot again, and burst his arrow all to pieces. He presently pulled out another Arrow, and bit it in his teeth, and seemed to bee in a great rage; so hee went away in great anger.[140]

Percy makes clear throughout the rest of his narrative that the men regularly carried their "targets."[141]

John Smith wrote about arriving to meet Indians at Werowocomoco with 20 men "armed in Jacks."[142] When a chief asked why they "came armed in that fort," Smith explained that it was not for lack of trust, but because "it was the custome of our Country."[143] Smith left Jamestown in October 1609 after being injured in a gunpowder accident. That same month, the colonists reported having more "curats, pikes, swords, and moryons" than men.[144]

Earlier that year, the Virginia Company's nine-vessel "third supply" expedition had set sail for Jamestown.[145] The flagship *Sea Venture*, which carried most of the supplies, shipwrecked in the Bermudas.[146] The men aboard—including Thomas Gates and George Yeardley—all survived but did not arrive in Jamestown on the new boats they built in the Bermudas until May 1610. Meanwhile, in Jamestown, all but roughly 60 of the 500 colonists had perished from starvation or Indian attacks over the winter. Soon after arriving, Gates issued orders for the colonists to follow. Thomas Dale arrived the following year "and browghtt with him thre hundrethe men besydes greatt store of Armour."[147] Dale added more orders to Gates's, including a military code. These orders, which became known as "Dale's Code," required the men of Virginia to appear in copious armor.

> Hee [the Governor] shall not suffer in his Garrison any Souldier to enter into Guard, or to bee drawne out into the field without being armed according to the Marshals order, which is, that every shot [musketeer] shall either be furnished with a quilted coate of Canvas, a headpiece, and a sword, or else with a light Armor, and Bases quilted, with which hee shall be furnished: and every Targiteer with his Bases to the small of his legge, and his headpeece, sword and pistoll, or Scuppet provided for that end. And likewise every Officer armed as before, with a firelocke, or Snaphause, headpiece, and a arget, onely the

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140. *Id.* at 17. Percy explained the Indians' arrows as well: "Their Bowes are made of tough Hasell, headed with very sharp stones, and are made artificially like a broad Arrow: other some of their Arrowes are headed with the ends of Deere hornes, and are feathered very artificially." *Id.*

141. *See, e.g.*, *id.* at 58, 168, 173.

142. JOHN SMITH, A TRUE RELATION OF VIRGINIA 47 (Boston, Wiggan & Lunt 1866).

143. *Id.* at 53.

144. Richard Pott & William Phettiplace, *The Proceedings of the English Colony in Virginia*, *in* NARRATIVES OF EARLY VIRGINIA, *supra* note 138, at 197.

145. *Id.* at 191.

146. *Id.*

147. Percy, *A Trewe Relacyon*, *supra* note 137, at 276.

> Serieant in Garrison shall use his Halbert, and in field his Snaphaunse and Target.
>
> The Governour shall have a Principall care, that he use his Garrison to the dayly wearing of these Armors, least in the field, the souldier do find them the more uncouth strange and troublesome.[148]

"The word 'base' used in the quotation referred to a defense for the lower body and thighs. Traditionally it designated a padded skirt, but by 1611 it is possible that it was also used to describe padded or quilted breeches."[149]

According to Percy, Dale "wente ageinste the Nancemondies with a hundrethe men in Armour where he had dyvrs encownters and skirmishes with the Salvages bothe by Lande and waters dyvrs of his company beinge wownded."[150] "Dale himself narrowly eskape[d]" an arrow that hit "juste upon the edge or Brimme of his headepiece."[151] The natives, "nott beinge acquainted nor acustomed to encownter with men in Armour" were befuddled when "they did nott see any of our men fall" from their arrows.[152] They eventually resorted to a rain dance hoping "to cawse Raine to fall from the Clowdes to extinguishe and putt owtt our mens matches" on their matchlocks.[153] But it was to no avail, as the colonists proceeded to "Cutt downe their Corne Burned their howses and besydes those which they had slayne browghtt some of them prisoners to our foarte."[154]

Yeardley served as governor from 1616–1617 before returning to England. He was then appointed governor again, and set sail for Virginia again, this time as the ship's captain. On this second trip, the Virginia Company provided the 36 men onboard with "Twenty brest plates and 36 head peese"[155]

Company records from 1619 state that the company "plentifully furnished . . . the People that goe" to Virginia with "Armour, weapons, tooles, and sundry other necessaries" and that "a supply of Armour, Powder, and many necessary provisions" were being sent to those already in Virginia.[156] The Company provided a similar assurance the following year.[157] When the Company sent Captain John Woodliffe and 38 settlers to Virginia in 1619, the Company instructed the settlers to "immediately" erect a shelter "for the safe keeping of the tooles, implements of husbandry powder, shott, Armor, and victual" and appointed someone to "take

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148. FOR THE COLONY IN VIRGINEA BRITANNIA: LAWS, DIVINE, MORALL AND MARTIALL, &C. 32 (1612). For an image of Jamestown settlers equipped according to this code, *see* PETERSON, *supra* note 111, at 144.

149. PETERSON, *supra* note 111, at 140.

150. Percy, *A Trewe Relacyon*, *supra* note 137, at 277.

151. *Id.*

152. *Id.*

153. *Id.*

154. *Id.*

155. 3 THE RECORDS OF THE VIRGINIA COMPANY OF LONDON 96 (Susan Myra Kingsbury ed., 1933).

156. *A Note of the Shipping, Men, and Provisions, Sent to Virginia, by the Treasurer and Company in the yeere 1619*, *in* 3 THE RECORDS OF THE VIRGINIA COMPANY, *supra* note 155, at 117.

157. 3 THE RECORDS OF THE VIRGINIA COMPANY, *supra* note 155, at 353.

care of our Armor."[158] To supply the expedition, the Company purchased supplies from around town, including "4. Armors" from one "mr Huggins"[159] and "3. Corslets" from one "Mr Berkeley."[160] The following year, a ship called *The Supply* sailed for Virginia. To help supply that expedition, the Company acquired "9 corslets" and "4 coates of plate" from one "Mr. Tracy,"[161] and "2. Corslets" from "A.B."[162]

In 1620, "some 8 or tenn Engleshe with ther Armes" assisted an Indian seeking revenge against another tribe for murdering women in his. Apparently feeling indebted the Indian offered "to Carry thire Armor for them" on their way to future battles.[163] Relations were not so good with other Indians, however. On March 22, 1622, an Indian massacre nearly wiped out the Jamestown settlement:

> [O]n the 22d of March, 1622, a little before noon, at a Time when our men were all at Work abroad in their plantations, disperst and unarm'd. This Hellish Contrivance was to take Fffect upon all the several Settlements at one and the same instant. . . . The very Morning of the Massacre, they came freely and unarm'd among them, eating with them, and behaving themselves with the same Freedom and Friendship as formerly, till the very Minute they were to put their Plot into Execution. Then they fell to Work all at once everywhere, knocking the English unawares on the Head, some with their Hatchets, which they call Tommahawks, others with the Hows and Axes of the English themselves, shooting at those who escap'd the Reach of their Hands; sparing neither Age nor Sex, but destroying Man, Woman, and Child, according to their cruel Way of leaving none behind to bear Resentment.[164]

After the massacre, defense immediately became a top priority. New laws provided that "every dwelling house shall be pallizaded in for defence against the Indians" and required arms for traveling or working in the field.[165] Additionally, the Council of Virginia petitioned the king for "Armes and munitione."[166] They were sent out of the royal treasury "2000 skulls of iron, 100 brigandines, 40 plate

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158. Sir William Throckmorton et al., *ORDNANCES, DIRECCONS AND INSTRUCTIONS TO CAPTAINE JOHN WOODLEFE*, *in* 3 THE RECORDS OF THE VIRGINIA COMPANY, *supra* note 155, at 117, 210.

159. The Cost of Furnishing the *"Margaret*," *in* 3 THE RECORDS OF THE VIRGINIA COMPANY, *supra* note 155, at 188.

160. *Id*. at 185.

161. 3 THE RECORDS OF THE VIRGINIA COMPANY, *supra* note 155, at 390.

162. *Id*. at 386.

163. *Id*. at 228.

164. ROBERT BEVERLEY, THE HISTORY AND PRESENT STATE OF VIRGINIA 39–40 (Richmond, J.W. Randolph 1855).

165. 1 THE STATUTES AT LARGE: BEING A COLLECTION OF ALL THE LAWS OF VIRGINIA FROM THE FIRST SESSION OF THE LEGISLATURE, IN THE YEAR 1619, at 127 (William Waller Hening ed., New York, R. & W. & G. Bartow 1823).

166. *A Letter to the Virginia Company of London*, (after Apr. 20, 1622), *in* 3 THE RECORDS OF THE VIRGINIA COMPANY, *supra* note 155, at 614; *see also* 2 THE RECORDS OF THE VIRGINIA COMPANY, *supra* note 155, at 342.

Coats and 400 shirts[] and Coate of Maile."[167] Thereafter, it was recommended that every person or family emigrating to Virginia bring "One Armour compleat, light" in addition to offensive weapons and accoutrements.[168]

When the Virginia Company dissolved and Virginia became a royal colony in 1625, King James commissioned a census of the people and goods in the colony.[169] "It was incomplete because some areas failed to file reports, and because of peculiar overlapping and unspecific groupings it is not as helpful on the subject of armor as it might have been."[170] But it does show that the 1,232 inhabitants (including men, women, children, servants, and slaves) owned 342 "Armours, complete," 260 "Coats of Male & headpeeces," 20 "Quilted coats & Buffe Coat," 26 "Jackets, Jack Coats & Corselet."[171] Even still, the colonists felt that this was "not half enough" of the armor they needed.[172] Because of the muster roll's incompleteness, the individual reports are also insightful. For example, Sir Francis Wyatt reported possessing "4 Armours, 1 Jack Coat, 2 Coats of mail, 1 steel coat, 1 corslett, and 2 good head pieces" at his "plantation at Pasbehaighs" and "6 armors" at his "residence in Jamestown."[173] George Yeardley possessed "10 Armours."[174] George Sandys possessed "30 Armours, steel coats & coats of mail," while "Captain Samuel Matthews reported 24, Edward Blaney 17, William Epes 16."[175] John Smith, "an old planter," kept "1 armour, 1 coat of steel, 2 coats of mail."[176]

In 1648, Beauchamp Plantagenet published a pamphlet encouraging "adventurers" to settle in "New Albion," which was the name of a large amount of land granted to Sir Edmund Plowden in 1632.[177] "The vast plantation, described as 'in North Virginia,' lay really in Delaware, New Jersey and Long Island."[178] Plantagenet provided a list of items "each man" should bring with him, including "half an old slight armor, that is, two to one armor."[179] In 1650, Edward Williams published a pamphlet with advice for prospective planters considering settling in Virginia. Among "those Necessaries, that if wanted there, would greatly prove

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167. A Warrant to the Lord Treasurer, Sep. 22, 1622, *in* 3 THE RECORDS OF THE VIRGINIA COMPANY, *supra* note 155, at 676; *see also* Note of Arms in the Tower for which the Virginia Company are Suitors, *in* 3 THE RECORDS OF THE VIRGINIA COMPANY, *supra* note 155, at 665.

168. 3 THE RECORDS OF THE VIRGINIA COMPANY, *supra* note 155, at 578.

169. *See* ALEXANDER BROWN, THE FIRST REPUBLIC IN AMERICA 616 (Boston, Houghton, Mifflin & Co. 1898).

170. PETERSON, *supra* note 111, at 140.

171. *The Virginia Census, 1624–25*, 7 VA. MAG. HIST. AND BIOGRAPHY 337, 367 (1900).

172. BROWN, *supra* note 169, at 628.

173. *Id.* at 625.

174. *Id.* at 625–26.

175. *Id.* at 626.

176. *Id.*

177. BEAUCHAMP PLANTAGENET, A DESCRIPTION OF THE PROVINCE OF NEW ALBION 26 (1648).

178. WRIGHT HOWES, U.S.IANA: A SELECTIVE BIBLIOGRAPHY IN WHICH ARE DESCRIBED 11,620 UNCOMMON AND SIGNIFICANT BOOKS RELATING TO THE CONTINENTAL PORTION OF THE UNITED STATES 415 (2d ed. 1962).

179. PLANTAGENET, *supra* note 177, at 26.

your prejudice, and render you obnoxious to many evils," Williams included one "Suit of complete light Armour."[180]

2. Massachusetts

The 1620 Charter of New England granted colonists the right "to take, load, carry, and transport . . . Armour, Weapons, Ordinances, Munition, Powder, Shott, Victuals, and all Manner of Cloathing, Implements, Furniture, Beasts, Cattle, Horses, Mares, and all other Things necessary for the said Plantation, and for their Use and Defence, and for Trade with the People there."[181]

One month before the Pilgrims set sail for America, they stressed their need for more armor in a letter to the investors supporting their voyage: "We are in shuch a streate at presente . . . scarce haveing any butter, no oyle, not a sole to mend a shoe, nor every man a sword to his side, wanting many muskets, much armoure, &c."[182] It is unclear whether they acquired more, but the first Pilgrims who stepped foot in America were bearing armor. After arriving at Cape Cod in the Mayflower on November 11, 1620, the Pilgrims began preparing their shallop to survey the coast and find a suitable place to establish a settlement.[183] In the meantime, their leader William Bradford wrote, "16. of them well armed" explored the land to "discovere those nearest places," led by Captain Myles Standish.[184] "[W]hen they had marched aboute the space of a mile by the sea side, they espied 5. or 6. persons with a dogg coming towards them, who were salvages."[185] The natives "fled from them," but the "English followed them, partly to see if they could speake with them, and partly to discover if ther might not be more of them lying in ambush."[186] The Pilgrims' pursuit continued into the following day, but "they soone lost both them [the natives] & them selves, falling into shuch thickets as were ready to tear their cloaths & armore in peeces."[187] Indeed, "weighted down as they were with their armor, heavy boots and muskets, they were no match in speed for the scantily clothed [natives]."[188] Later that day, they came across baskets of corn buried in the ground. But they could not take as much as they needed, "for we were so laden with armour, that we could carry no more."[189]

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180. E.W. GENT, *To the Worthy Gentlemen, Adventurers and Planters in Virginia*, VIRGINIA: MORE ESPECIALLY THE SOUTH PART THEREOF, RICHLY AND TRULY VALUED: *VIZ.* 10, 10 (2d ed. 1650).

181. *The Charter of New England (1620)*, *reprinted in* 3 THE FEDERAL AND STATE CONSTITUTIONS, *supra* note 132, at 1834–35.

182. William Bradford, *Of Plimoth Plantation* (1651), *in* BRADFORD'S HISTORY OF PLIMOTH PLANTATION 77 (Boston, Wright & Potter Printing Co. 1898).

183. *Id.* at 97.

184. *Id.* at 97–98.

185. *Id.* at 98.

186. *Id.*

187. *Id.*

188. Raymond E. Hanson & Herbert B. Turner, *A Provincetown Pilgrimage*, 44 PHOTO-ERA: AM. J. PHOTOGRAPHY 236, 242 (1920).

189. *A Relation or Journal of a Plantation Settled at Plymouth in New England, and Proceedings Thereof* (1622), *in* 8 COLLECTIONS OF THE MASSACHUSETTS HISTORICAL SOCIETY 203, 210 (Boston, Munroe & Francis 1802).

It was not long before the Pilgrims had their "first encounter" with the natives. In mid-December 1620, ten Pilgrims who set out to explore the area were ambushed by a group of natives during breakfast at their camp.[190] As "arowes came flying amongst them," two Pilgrims with muskets kept the natives at bay while the others, "with coats of malle on, & cutlasses in their hands," ran to the shallop to retrieve their muskets, with "Indeans wheeling aboute upon them."[191] Once the men procured the muskets and began firing, the natives dispersed, without any party suffering a loss.[192]

The Pokonoket sachem, Massasoit, was so impressed with the Pilgrims' armor at their first meeting in March 1621 that he tried to purchase some: "After he had eaten and drunk himself, and given the rest to his company, he looked upon our messenger's sword and armour, which he had on, with intimation of his desire to buy it; but, on the other side, our messenger showed his unwillingness to part with it."[193]

Throughout the decade, settlers in Massachusetts Bay continued to bring and rely on armor. In 1629, for example, a ship from London carried a corslet for each of the 60 pikemen.[194] The purchase agreement with a London armorer for 20 of the corslets reveals other types of armor that the men carried: "20 armes, viz, coslett, brest, back, culet, gorgett, tases, & hed peece to ech, varnished all black, with lethers & bucklers, at 17s ech armour, excepting 4, which are to bee with closed head peeces, & theis 4 armours at 24, a peece."[195] It was presumed that "the 90 musketeers would wear buff or quilted coats although none were listed."[196] And "[p]rivavely owned armor undoubtedly augmented the number in public possession."[197]

Armor saved many lives during the Pequot War (1636–1638), New England's first Indian war.[198] For example, "Captain [Nathan] Turner . . . received a shot upon the breast of his corselet, as if it had been pushed with a pike, and if he had not had it on, he had lost his life."[199] Captain John Underhill wrote that, "Captain Mason and myself entering into the wigwams, he was shot, and received many arrows against his head-piece. God preserved him from many wounds. Myself received a shot in the left hip, through a sufficient buff coat, that if I had not been

190. Bradford, *supra* note 182, at 103.

191. *Id.*

192. *Id.* at 103–04.

193. *A Relation or Journal of a Plantation Settled at Plymouth*, *supra* note 189, at 229.

194. The Company's Records (Feb. 26, 1628), *in* 1 RECORDS OF THE GOVERNOR AND COMPANY OF THE MASSACHUSETTS BAY IN NEW ENGLAND 21, 26 (Nathaniel B. Shurtleff ed., Boston, William White 1853).

195. *Id.* at 31.

196. PETERSON, *supra* note 111, at 142.

197. *Id.*

198. *See* NICHOLAS JOHNSON ET AL., FIREARMS LAW AND THE SECOND AMENDMENT: REGULATION, RIGHTS AND POLICY 212 (3d ed. 2022).

199. CAPTAIN JOHN UNDERHILL, NEWS FROM AMERICA; OR, A NEW AND EXPERIMENTALL DISCOVERIE OF NEW ENGLAND (1638), *reprinted*, *in* 6 COLLECTIONS OF THE MASSACHUSETTS HISTORICAL SOCIETY 1, 6 (Boston, American Stationers' Co. 1837).

supplied with such a garment, the arrow would have pierced through me. Another I received between neck and shoulders, hanging in the linen of my head-piece."[200] Other times, Underhill noted, their armor deterred any attack at all: "They seeing us (lying in ambush) gave us leave to pass by them, considering we were too hot for them to meddle with us. Our men being completely armed, with corselets, muskets, bandoleers, rests, and swords . . . did much daunt them."[201] During this time, apparently, the weight of the armor seemed less burdensome. John Winthrop wrote to William Bradford describing a series of skirmishes and noting that "[o]ur People are all in health, (the Lord be praised,) and allthough they had marched in their arms all the day, and had been in fight all the night, yet they professed they found them selves so fresh as they could willingly have gone to such another business."[202]

When the towns of Plymouth, Duxborrow, and Marshfield established a military company in 1643, they required every man to appear with a vest and also provided for 16 pikemen.[203] The pikeman's suit was "[p]robably the most popular form of plate armor" at the time and "normally consisted of a backplate, a breastplate, wide tassets, sometimes a gorget, and an open helmet."[204]

As explained next, armor continued to be required for Massachusetts militiamen throughout the seventeenth century. Some notable pieces have been preserved, including a buff coat belonging to John Leverett and a suit of armor belonging to Fitz-John Winthrop.[205] Leverett served as major-general of the Massachusetts militia from 1663–1673, then as governor of the Massachusetts Bay Colony from 1673–1679. Winthrop served in King Philip's War and later served as Connecticut's governor from 1698 until his death in 1707.[206] In 1939, a tasset belonging to John Howland was discovered during the excavation of the hearth at his home in Kingston, Massachusetts. Howland came to America on the Mayflower, and at one point was thrown overboard during a storm but grabbed a halyard and climbed back aboard. Howland's tasset is one of only two known surviving pieces of armor from Plymouth Colony.[207]

Interestingly, while the use of armor declined throughout the century, a survey of probate inventories from Plymouth Colony revealed that inventories from the

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200. *Id.* at 24.

201. *Id.* at 12.

202. Letter from John Winthrop to William Bradford (July 28, 1637), *in* Bradford, *supra* note 182, at 430.

203. Establishment of a Military Company (Aug. 29, 1643), *in* THE COMPACT, CHARTER AND LAWS OF THE COLONY OF NEW PLYMOUTH 326 (William Brigham ed., Boston, Dutton & Wentworth 1836).

204. PETERSON, *supra* note 111, at 133; *see also id.* at 134 (image of pikeman's armor used by an early Massachusetts colonist).

205. Images of these pieces can be seen at *id.* at 141, 143.

206. Fitz-John Winthrop was the son of John Winthrop, Jr., who served as Connecticut's governor from 1659–1676, and the grandson of John Winthrop, who served as governor of the Massachusetts Bay Colony. *See* Adam Winthrop et al., The Winthrop Papers (Part IV), *in* 8 COLLECTIONS OF THE MASSACHUSETTS HISTORICAL SOCIETY 3 (1882); Adam Winthrop et al., The Winthrop Papers (Part V), *in* 3 COLLECTIONS OF THE MASSACHUSETTS HISTORICAL SOCIETY 3 (1889).

207. THE HOWLAND QUARTERLY 22 (1939).

1680s included more armor than in any previous decade.[208] Corslets were the most common armor mentioned in inventories, followed by helmets.[209] Other evidence that armor remained in use near the end of the century is an inventory of arms at a fort in New York in 1692. The fort kept cuirasses along with firearms, halberts, pikes, and swords.[210]

3. Militia Mandates

Militiamen were sometimes required to keep and bear armor. The following is a list of items that English colonies required in the seventeenth century.

- *"Armer."*
  - Middlesex County, Virginia (1687).[211]
- *Breastplate*.
  - Connecticut (1687);[212]
  - New Hampshire (1687);[213]
  - New York (1691), (1694).[214]
- *Buff coat*.
  - Massachusetts (1666), (1671), (1672).[215]
- *Corslet*.
  - Massachusetts (1646), (1660), (1671), (1672).[216]
- *Crupper*.
  - Connecticut (1687);[217]
  - New Hampshire (1687);[218]
  - New York (1694), (1691).[219]
- "*[D]efensive Coat or Armour*."
  - Virginia (1644).[220]

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208. PLYMOUTH ARCHAEOLOGICAL REDISCOVERY PROJECT, PRELIMINARY REPORT ON THE JOHN AND ELIZABETH HOWLAND HOUSE SITE ARCHAEOLOGICAL COLLECTIONS 59 (2015), https://www.plymoutharch.com/wp-content/uploads/2015/02/howland-final-report.pdf [https://perma.cc/93ZT-NN38].

209. *Id.*

210. *Memoir on Acadia, New England, New-York and Virginia 1692*, *in* 9 DOCUMENTS RELATIVE TO THE COLONIAL HISTORY OF NEW YORK 548 (E. B. O'Callaghan ed., Albany, Weed, Parsons & Co. 1855).

211. *Extracts from the County Record*, 8 VA. MAG. HIST. AND BIOGRAPHY 113, 189 (1900).

212. 2 BACKGROUNDS OF SELECTIVE SERVICE: MILITARY OBLIGATION: THE AMERICAN TRADITION, pt. 2, at 46 (Arthur Vollmer ed., 1947) (Connecticut) (1687).

213. *Id.*, pt. 7, at 13 (New Hampshire) (1687).

214. *Id.*, pt. 9, at 4, 16 (New York) (1694, 1691).

215. *Id.*, pt. 6, at 78, 95, 107 (Massachusetts) (1666, 1671, 1672).

216. *Id.* at 29, 56, 86, 100 (1646, 1660, 1671, 1672).

217. *Id.*, pt. 2, at 46 (Connecticut) (1687).

218. *Id.*, pt. 7, at 13 (New Hampshire) (1687).

219. *Id.*, pt. 9, at 4, 16 (New York) (1694, 1691).

220. *Acts, Orders and Resolutions of the General Assembly of Virginia*, 23 VA. MAG. HIST. AND BIOGRAPHY 225, 231 (1915).

- *Helmet*.
  - Massachusetts (1646), (1660), (1671), (1672);[221]
  - Virginia (1644).[222]
- *Quilted coat*.
  - Massachusetts (1666), (1671), (1672).[223]
- *Vest*.
  - Massachusetts (1643).[224]

Several Connecticut laws required towns to keep armor, so that it was available when needed. In 1637, the following towns had to keep the following number of "Coslets": Harteford (21), Windsor (12), Weathersfeild (10), Agawam (7).[225] Starting the following year, towns could choose between keeping "corseletts" or "cotton coates": Wyndsor (12), Hartford (20), Weathersfield (8), Seabrook (3), Farmington (3), Fairfield (6), Strattford (6), Southhampton (3), Pequett (3).[226] In 1642, the government ordered three towns to keep coats "basted with cotton wooll and made defensive against Indean arrowes; Hartford (40), Wyndsor (30), Wethersfield (20)."[227] In 1650, towns were again allowed to choose between corslets or cotton coats: Wyndsor (9), Hartford (12), Weathersfield (8), Seabrook (3), Farmington (3), Fairfield (6), Strattford (6), Southhampton (3), Pequett (3).[228]

The New Haven colony, founded in 1638 and absorbed by Connecticut in 1662, required "every famyly" to "have a coate of cotton woole, well and substantially made, so as itt may be fitt for service," in 1643.[229] Two years later, the New Haven colony ordered "every famyly within the plantation" to "provide, & after continew furnished with a coate well made & soe quilted with cotten woole as may be fit for service, & a comfortable defence against Indian arrowes."[230] The "taylors about the towne" were required to "take care that" the coats be constructed "wihout unnecessary delay."[231]

History reveals that armor was a necessity through the first half of the seventeenth century. It proved very effective against arrows and, although heavy, was considered

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221. 2 BACKGROUNDS OF SELECTIVE SERVICE, *supra* note 212, pt. 6, at 29, 56, 86, 100 (Massachusetts) (1646, 1660, 1671, 1672) ("head peeces," "head peece," "head piece," "head-piece").

222. *Acts, Orders and Resolutions of the General Assembly*, *supra* note 220, at 231.

223. 2 BACKGROUNDS OF SELECTIVE SERVICE, *supra* note 212, pt. 6, at 78, 95, 107 (Massachusetts) (1666, 1671, 1672).

224. *Establishment of a Military Company*, *supra* note 203, at 326.

225. THE PUBLIC RECORDS OF THE COLONY OF CONNECTICUT, PRIOR TO THE UNION WITH NEW HAVEN COLONY, MAY 1665, at 14 (J. Hammond Trumbull ed., Hartford, Brown & Parsons 1850).

226. 2 BACKGROUNDS OF SELECTIVE SERVICE, *supra* note 212, pt. 2, at 7–8 (Connecticut) (1638).

227. *Id.* at 10.

228. *Id.* at 13–14.

229. RECORDS OF THE COLONY AND PLANTATION OF NEW HAVEN, FROM 1638 TO 1649, at 121 (Charles J. Hoadly ed., Hartford, Case, Tiffany & Co. 1857).

230. *Id.* at 214.

231. *Id.*

worth the burden of carrying at nearly all times.[232] Plate armor was especially effective; "there is no definite instance in which an arrow pierced plate."[233] "Leather and cloth armor were tried everywhere, and they were universally efficient."[234] "The success of mail as a defense varied."[235] As the century progressed, a combination of two factors led to a significant decline in the use of armor. First, the colonists started adopting the Indians' method of warfare. This required more speed and agility, both of which armor impeded.[236] Even more importantly, while the armor of the time provided great protection against arrows, it proved less effective against firearms. Colonists were willing to endure the burden of bearing heavy armor when it provided reliable protection.[237] But as the Indians began using firearms and the English colonists began engaging more frequently with European adversaries, "it was no longer sufficiently effective to be worth the effort and expense of acquiring and wearing" armor.[238]

D. Eighteenth Century

The use of armor declined in the eighteenth century, but it never fell out of use entirely. Indeed, "[i]t would be impossible to select any period of 100 years in American history in which some form of armor was not used in warfare."[239] This Section begins with eighteenth-century militia mandates and then focuses on armor usage during the French and Indian War and Revolutionary War.

1. Militia Mandates

Armor continued to be required for cavalries in eighteenth-century militias:

- *Breastplate*.
  - New York (1702), (1702), (1721), (1724), (1739), (1743), (1744), (1746), (1755), (1764), (1772), (1775), (1778), (1782);[240]
  - North Carolina (1760), (1764), (1766), (1774);[241]
  - Rhode Island (1718), (1793), (1798);[242]
  - Virginia (1705), (1723), (1738), (1755).[243]

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232. *See* PETERSON, *supra* note 111, at 149 ("It was this simple factor of effectiveness that caused armor to remain in active use in America as long as or even longer than it was really used in most of western Europe.").

233. *Id.*

234. *Id.*

235. *Id.*

236. *See id.* at 5.

237. *See id.* at 149 ("As long as the colonist had a sure defense against the weapons of his adversaries, he was inclined to use it.").

238. *Id.*

239. *Id.* at 307.

240. 2 BACKGROUNDS OF SELECTIVE SERVICE, *supra* note 212, pt. 9, at 46, 53, 80, 89, 116, 134, 148, 165, 188, 227, 243, 252, 273, 311 (New York) (1702) (1702) (1721) (1724) (1739) (1743) (1744) (1746) (1755) (1764) (1772) (1775) (1778) (1782).

241. *Id.*, pt. 10, at 29, 35, 41–42, 52 (North Carolina) (1760) (1764) (1766) (1774).

242. *Id.*, pt. 12, at 45, 206, 219 (Rhode Island) (1718) (1793) (1798).

243. *Id.*, pt. 14, at 65, 78, 105, 145, 150 (Virginia) (1705) (1723) (1738) (1755).

- *Crupper*.
  - New York (1702), (1702), (1721), (1724), (1739), (1743), (1744), (1746), (1755), (1764), (1772), (1775), (1778), (1782);[244]
  - North Carolina (1760), (1764), (1766), (1774);[245]
  - Rhode Island (1718), (1793), (1798);[246]
  - Virginia (1705), (1723), (1738), (1755).[247]
- *Helmet*.
  - Connecticut (1784).[248]
- *Pectoral*.
  - Connecticut (1702).[249]

Additionally, the federal Uniform Militia Act—enacted the year following the Second Amendment's ratification—required "[e]ach dragoon to furnish himself with a serviceable horse, at least fourteen hands and an half high, a good saddle, bridle, mail-pillion and valise, holster, and a b[r]e[a]st plate and crupper, a pair of boots and spurs; a pair of pistols, a sabre, and a cartouchbox to contain twelve cartridges for pistols."[250]

2. Armor Uses in the French and Indian War and Revolutionary War

During the French and Indian War, both French and British troops in America used armor. A demand made in 1758 for "indispensable" equipment from France for French artillery in New York included 100 "Cuirasses, or complete armor."[251] Additionally, when the French constructed Fort Ticonderoga in New York, starting in 1755, they placed a backplate from a suit of engineer's armor in the wall for good luck, "in accordance with a superstitious practice of the time."[252]

Charles Willson Peale's famous 1772 painting of George Washington as colonel in the Virginia Regiment portrays the future first president wearing a gorget engraved with the royal arms.[253] Lieutenant Colonel Adam Stephen, who served under Washington in the French and Indian War, wore a gorget that has been preserved by the National Museum of American History.[254] Commissioned officers

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244. *Id.*, pt. 9, at 46, 53, 80, 89, 116, 134, 148, 165, 188, 227, 243, 252, 273, 311 (New York) (1702) (1721) (1724) (1739) (1743) (1744) (1746) (1755) (1764) (1772) (1775) (1778) (1782).

245. *Id.*, pt. 10, at 29, 35, 42, 52 (North Carolina) (1760) (1764) (1766) (1774).

246. *Id.*, pt. 12, at 45, 206, 219 (Rhode Island) (1718) (1793) (1798).

247. *Id.*, pt. 14, at 65, 78, 105, 145, 150 (Virginia) (1705) (1723) (1738) (1755).

248. *Id.*, pt. 2, at 256 (Connecticut) (1784).

249. *Id.* at 60 (1702).

250. Militia Act of 1792, 1 Stat. 271, 272 (1792).

251. *Statement of what is indispensable to send from France, by the first ships, for the service of the Artillery of this Colony*, *in* 10 DOCUMENTS RELATIVE TO THE COLONIAL HISTORY OF THE STATE OF NEW-YORK 864 (E. B. Callaghan ed., Albany, Weed, Parsons & Co. 1858).

252. PETERSON, *supra* note 111, at 308; 6 THE BULLETIN OF THE FORT TICONDEROGA MUSEUM 115 (July 1942).

253. *See George Washington Portrait by Charles Willson Peale*, MOUNTVERNON.ORG, https://www.mountvernon.org/george-washington/artwork/george-washington-portrait-by-charles-willson-peale/ [https://perma.cc/Y4JG-NSZR] (last visited Dec. 15, 2023).

254. *Adam Stephen's Waistcoat and Gorget*, NAT'L MUSEUM OF AM. HIST., https://americanhistory.si.edu/collections/nmah_441079 [https://perma.cc/3DMZ-5ZG4].

in America regularly wore gorgets throughout the first half of the eighteenth century.[255]

During the Revolutionary War, "French officers wore gorgets of gilded copper" while "[o]fficers of some German troops in the Revolution wore gorgets."[256] At least some Americans wore gorgets. Two images of General Washington from the War show him wearing a gorget.[257] William Knox's gorget is currently preserved at the Fort Ticonderoga Museum. Knox, of the Boston Independent Company, wore a gorget with an image of an armored arm hoisting an unsheathed sword with the motto "Inimica Tyrannis," meaning "Hostile to Tyrants." The letters "U S," for United States, are stamped over the initials "G R," for Georgius Rex (King George).[258] Lieutenant Alexander Hume of the Second South Carolina Regiment also wore a gorget, possibly gifted to him by George Washington. It depicted the liberty pole and the arms of war with the motto "Libertas. Portior. Vita," meaning "liberty is more important than life."[259] It is currently preserved at Mount Vernon. Another gorget worn by a South Carolina officer during the war contained the coiled snake portrayed on the Gadsden Flag.[260] After the war, "the regular army as well as many militia units returned to the practice of wearing gorgets."[261]

"[T]here is reason to believe that some of the engineers in the American Revolution were . . . equipped" with heavy suits of armor.[262] Engineers "mark[ed] out the ground for fortifications" and regularly "operated within the range of an entrenched enemy," making it "highly logical that they should have had the protection of armor."[263] A popular military manual from 1776 that George Washington owned "recommended such suits for any force that was sent against a fortified enemy in daylight."[264]

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255. PETERSON, *supra* note 111, at 311.

256. *Id.* at 312. For an example of a French gorget worn during the war, *see French Gorget,* MUSEUM OF THE AM. REVOLUTION, https://www.amrevmuseum.org/collection/french-gorget [https://perma.cc/5YEN-97P7].

257. THE AMERICAN REVOLUTION IN DRAWINGS AND PRINTS: A CHECKLIST OF 1765–1790 GRAPHICS IN THE LIBRARY OF CONGRESS 66, 67 (Donald H. Cresswell ed., 1975) (1780 engraving) (1781 portrait). The 1780 engraving can be viewed at *General Washington*, LIBR. OF CONG., https://www.loc.gov/item/2004666687 [https://perma.cc/YM2A-6VSR]. John Norman's 1781 portrait can be viewed at *His excy. George Washington Esqr. captain general of all the American forces,* LIBR. OF CONG., https://www.loc.gov/resource/pga.11781 [https://perma.cc/AV2W-K3UH]. Another portrait, although "fictitious," also shows Washington wearing a gorget. THE AMERICAN REVOLUTION IN DRAWINGS AND PRINTS, *supra*, at 66–67.

258. *Ticonderoga Online Collections*, FORTTICONDEROGA.ORG, https://fortticonderoga.catalogaccess.com/objects/2090 [https://perma.cc/3JRD-9Q63].

259. *Gorget*, MOUNTVERNON.ORG, https://emuseum.mountvernon.org/objects/889/gorget [https://perma.cc/YTJ8-LK8L].

260. PETERSON, *supra* note 111, at 313.

261. *Id.*

262. "Such armor for British engineers was mentioned as late as 1754, and in the French service it remained popular still later." *Id.* at 307.

263. 1 WEBSTER, *supra* note 7 ("ENGINEE'R"); PETERSON, *supra* note 111, at 307, 308.

264. A CATALOGUE OF THE WASHINGTON COLLECTION IN THE BOSTON ATHENAEUM 13 (William Coolidge Lane ed., 1897); PETERSON, *supra* note 111, at 307.

Ship captains during America's founding era often found it necessary to bear armor. Jacques-Pierre Bourdé de la Villehuet, a French naval officer, wrote an influential book on naval tactics in 1765 that earned a "high degree of reputation" among "men of nautical skill."[265] Villehuet argued that ship captains should be heavily armored, because their survival was essential to everyone on the ship, and they had less need to maneuver compared to their crew:

> I could then wish that the Captains of ships should, during an engagement, be covered with a good armour musket-proof, which would be a great advantage, for they would then have hardly any thing else to fear but the great shot. This armour could not be cumbersome to them, because . . . they are bound never to quit the deck on which they are acting . . . thus, an armour could not hinder a Captain from executing with ease all the motions necessary in the course of an engagement. The utility and advantages resulting from such a precaution can therefore not be denied. . . . After all, it is less for one's self than for others and the State, that a Captain is bound to take care of himself: therefore, he should not be ashamed of wearing armour . . . .[266]

John Paul Jones, sometimes called the "Father of the American Navy," was the best-known naval captain during the Revolutionary War.[267] In 1779, Jones commanded the *USS Bonhomme Richard* in a lengthy battle against the British frigate *HMS Serapis*.[268] When the British asked if Jones was ready to surrender after seriously damaging the *Bonhomme Richard*, Jones famously replied, "I have not yet begun to fight."[269] Jones proceeded to defeat the British in an important and symbolic victory off the coast of England. The breast and back plates of the corslet Jones wore during the battle are currently preserved at the U.S. Naval Academy Museum.[270]

The Americans won their decisive victory over the British at the Battle of Yorktown in 1781. The Continental Army, led by General Washington, and French forces, led by Comte de Rochambeau, laid siege to Yorktown on

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265. Jacques-Pierre Bourdé de la Villehuet, THE MANOEUVERER, OR SKILFUL SEAMAN: BEING AN ESSAY ON THE THEORY AND PRACTICE OF THE VARIOUS MOVEMENTS OF A SHIP AT SEA, AS WELL AS OF NAVAL EVOLUTIONS IN GENERAL, at iv (Chevalier de Sauseuil trans., London, S. Hooper 1788).

266. *Id.* at 218–19.

267. F. E. Cross, *The Father of the American Navy*, 53 U.S. NAVAL INST. PROC. 1296, 1296–98 (1927), https://www.usni.org/magazines/proceedings/1927/december/father-american-navy [https://perma.cc/3NTT-3D55].

268. THE LIFE OF JOHN PAUL JONES 163–76 (James Otis ed., 1900). Jones named the ship in honor of Benjamin Franklin. *The United States Navy: American Revolution to Vietnam—A Brief Survey of Influence on America's History*, *in* THE UNITED STATES NAVY 5 (1969).

269. THE UNITED STATES NAVY, *supra* note 268, at 5.

270. For the breast plate, *see The front part of the body armor of John Paul Jones*, NAVAL HIST. AND HERITAGE COMMAND, https://www.history.navy.mil/our-collections/photography/numerical-list-of-images/nhhc-series/nh-series/NH-48000/NH-48652.html [https://perma.cc/QU9E-FU3Z]. For the back plate, *see The back part of the body armor of John Paul Jones*, NAVAL HIST. AND HERITAGE COMMAND, https://www.history.navy.mil/our-collections/photography/numerical-list-of-images/nhhc-series/nh-series/NH-48000/NH-48653.html [https://perma.cc/S3LA-S4CH].

September 28. Suffering great losses and cut off from aid or escape, the British army, led by General Charles Cornwallis, was forced to surrender on October 19. The victory eventually led to the Treaty of Paris and American independence. During the war, Joel Barlow started writing his epic poem, *The Vision of Columbus,* while serving in the Continental Army.[271] Finally published in 1787 by subscription—its subscribers including George Washington (who purchased 20 copies), Benjamin Franklin, and Thomas Jefferson[272]—Barlow depicts "Brave Rochambeau, in gleamy steel array'd" as he unites with Washington to march to Yorktown.[273] Armand Louis de Gontaut, duc de Lauzun, who personally financed and led a French force that assisted Rochambeau at Yorktown, is depicted by Barlow "beneath his sail, in armour bright" as he sailed down the Chesapeake.[274] Elsewhere in the poem, Friedrich Wilhelm von Steuben, the inspector general of the Continental Army who commanded a force at Yorktown, is described "in veteran armour drest, the noble ensign beaming on his breast."[275] In 1807, Barlow published *The Columbiad*, another epic poem that expanded upon *The Vision of Columbus*. In *The Columbiad*, Rochambeau, Lauzun, and Steuben are all portrayed in armor again.[276] It is possible that Barlow was invoking imagery "reminiscent of other epics," but it is also plausible that Rochambeau, Lauzun, and Steuben wore some armor as others did during the war.[277] At the least, Barlow's writing makes clear that the Founders had not neglected the notion of defensive armor.

Many American soldiers during the Revolutionary War wore helmets, including the Philadelphia City Troop of Light Horse,[278] the Provost Company,[279] Pulaski's Legion,[280] Lee's Legion,[281] the Continental Light Dragoons,[282] 1st

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271. Brian Lee Pelanda, *Declarations of Cultural Independence: The Nationalistic Imperative Behind the Passage of Early American Copyright Laws, 1783–1787*, 58 J. COPYRIGHT SOC'Y U.S.A. 431, 442 (2011).

272. A CATALOGUE OF THE WASHINGTON COLLECTION, *supra* note 264, at 16; Carla J. Mulford, *Barlow, Joel*, *in* 2 AMERICAN NATIONAL BIOGRAPHY 166–168 (John A. Garraty & Mark C. Carnes eds., 1999), https://doi.org/10.1093/anb/9780198606697.article.1600077 [https://perma.cc/EG5M-2R7M]; THOMAS JEFFERSON'S LIBRARY: A CATALOG WITH THE ENTRIES IN HIS OWN ORDER 112 (Wilson & Gilreath eds., 2010). Jefferson also owned Barlow's *The Columbiad*. *Id.*

273. JOEL BARLOW, THE VISION OF COLUMBUS: A POEM IN NINE BOOKS 190 (Hartford, Hudson & Goodwin 1787).

274. *Id.*

275. *Id.* at 170.

276. JOEL BARLOW, THE COLUMBIAD: A POEM 199 (Steuben), 263 (Rochambeau and Lauzun, now referred to as "Biron") (Philadelphia, Fry & Kammerer 1807).

277. STEVEN BLAKEMORE, JOEL BARLOW'S COLUMBIAD: A BICENTENNIAL READING 204 (2007).

278. DIGBY SMITH & KEVIN F. KILEY, AN ILLUSTRATED ENCYCLOPEDIA OF UNIFORMS FROM 1775–1783: THE AMERICAN REVOLUTIONARY WAR 68 (2008).

279. *Id.* at 95.

280. *Id.* at 113.

281. *Id.*

282. *Id.* at 115.

Regiment of Continental Light Dragoons,[283] 2nd Continental Light Dragoons,[284] 3rd Continental Light Dragoons,[285] 4th Continental Light Dragoons,[286] the Rhode Island Train of Artillery,[287] Virginia Light Dragoons,[288] and Washington's Life Guard.[289] Some British soldiers wore helmets as well.[290]

Although armor was not as ubiquitous in the eighteenth century as it had been in previous centuries, it remained in use throughout the century—including during the Revolutionary War. As in the late-seventeenth century, armor was worn when its usefulness outweighed the burden of wearing it. For ship captains during the war, for example, it was worth the burden of wearing a corslet because agility and quick movements were less of a concern. Engineers found heavy armor worthwhile because they regularly exposed themselves to enemy fire. For some cavalry, infantrymen, and artillery, helmets were sufficient. So, Americans continued to keep and bear armor to the extent that it was effective and efficient against the arms of the time.

E. Nineteenth Century

Many Union troops and some Confederate troops used armor during the Civil War. "Inventors, manufacturers, and retailers were quick to respond to th[e] desire to prevent battlefield deaths, resulting in the appearance of various forms of body armor."[291]

"[I]t was not uncommon to find advertisements for bulletproof vests in the pages of *Harper's Weekly*, *Frank Leslie's Illustrated Newspaper*, local newspapers, and gentlemen's clothing catalogues."[292] Indeed, "[s]everal firms attempted to sell . . . bullet proof vests during the war."[293] Their advertisements attempted to address the two primary reasons soldiers hesitated to purchase body armor:

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283. *Id.* at 116.

284. *See Thomas Youngs Seymour (1757–1811), B.A. 1777* (painting), YALE UNIV. ART GALLERY, https://artgallery.yale.edu/collections/objects/67 [https://perma.cc/G9EV-KEAQ]; *Benjm. Tallmadge. Major Second Regiment Light Dragoons Continental Army* (illustration), THE N.Y. PUB. LIBR. DIGIT. COLLECTIONS, https://digitalcollections.nypl.org/items/ba49b950-6970-0130-9f6c-58d385a7bbd0 [https://perma.cc/TE5L-QUG4].

285. SMITH & KILEY, *supra* note 278, at 117.

286. *Id.*

287. CHARLES MACKUBIN LEFFERTS, UNIFORMS OF THE AMERICAN, BRITISH, FRENCH AND GERMAN ARMIES IN THE WAR OF THE AMERICAN REVOLUTION, 1775–1783, at 91 (1970).

288. PETERSON, *supra* note 111, at 315.

289. *See* MATTHIAS CHRISTIAN SPRENGEL, CALENDER ODER JAHRBUCH DER MERKWURDIGSTEN NEUEN, app., illus. 5 (Leipzig, Haude und Spener 1784).

290. *See, e.g.*, SMITH & KILEY, *supra* note 278, at 149.

291. Sarah Jones Weicksel, *Armor, Manhood, and the Politics of Mortality*, *in* ASTRIDE TWO WORLDS: TECHNOLOGY AND THE AMERICAN CIVIL WAR 157 (Barton C. Hacker ed., 2016).

292. *Id.* at 158.

293. *1862 Civil War Bulletproof Vest Broadside*, SETH KALLER, INC., https://www.sethkaller.com/item/407-21777-1862-Civil-War-Bulletproof-Vest-Broadside&from=7 [https://perma.cc/Z7BZ-N48N].

skepticism about its effectiveness[294] and the appearance of cowardice.[295] Therefore, many advertisements emphasized how easily concealed the body armor was, the bravery of the people who wore it, or how well the armor protected against bullets and edged weapons.[296]

On March 29, 1862, an advertisement for "The Soldiers' Bullet Proof Vest" in *Harper's Weekly* boasted that the armor "[h]as been repeatedly and thoroughly tested with Pistol Bullets at 10 paces, Rifle Bullets at 40 rods, by many Army Officers, and is approved and worn by them."[297] The ad further stated that "[i]t is simple, light, and is a true economy of life—it will save thousands. It will also double the value and power of the soldier; and every man in an army is entitled to its protection."[298] The ad noted that this armor was sold by private businesses in New York and Washington, D.C.[299] An advertisement by Charles Stokes and Company in Philadelphia assured that the springs that supported the vest of their body armor over the shoulders "are sufficient to resist a blow of the heaviest Sabre."[300]

A broadside issued on April 17, 1862, informed Union "officers and soldiers" that Bartlett & Munn had received more "of those MONITOR[S], or Bullet Proof Vests," and would be selling them at a stand opposite the post office in New Bern, North Carolina.[301] "Monitors" was an "obvious reference to the Union ironclad who had stood toe to toe with the *C.S.S. Virginia* in the Battle of Hampton Roads on March 8–9, 1862," and thus associated the use of the armor with

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294. President Lincoln was among those not sold on the effectiveness of the armor. His private secretary wrote about a bullet proof vest brought to the White House: "It has been there week after week, and everybody stops and turns it over. . . . It claims to be bullet-proof, and Mr. Lincoln says that if that's the case, he approves of it; but that there must be a thorough test made. The inventor can put it on, and a detail of sharpshooters can practice at it, to see whether or not a bullet will go through." WILLIAM O. STODDARD, INSIDE THE WHITE HOUSE IN WAR TIMES 39–40 (New York, Charles L. Webster & Co.1890).

295. Weicksel, *supra* note 291, at 158 ("For many men, however, the use of body armor raised the specter of cowardice. . . . [W]earing a bullet proof vest called into question . . . a man's willingness to sacrifice his life for the sake of the nation[.]"). Captain William Vermilion of the Thirty-Sixth Regiment of Iowa Infantry Volunteers (and later a state senator) assured his wife that he intended to wear his steel armor vest, "not through cowardice but because I consider it my duty to protect myself," before insisting, "Don't speak of it to anyone, Dollie. The boys here don't know it." *Id.* at 176 (citation omitted). A Massachusetts colonel conveyed a common sentiment when justifying his decision not to wear body armor to his wife: "Bullet proofs are looked upon as indicating timidity if not cowardice." PATRICK R. GUINEY, COMMANDING BOSTON'S IRISH NINTH: THE CIVIL WAR LETTERS OF COLONEL PATRICK R. GUINEY, NINTH MASSACHUSETTS VOLUNTEER INFANTRY 71 (Christian G. Samito ed., 1998).

296. *See* Weicksel, *supra* note 291, at 159, 176. One advertisement claimed that the vests were only "'worn by our best and bravest men.'" *Id.* at 176. Another asserted that "'the soldier protected' was 'twice the man as the soldier exposed.'" *Id.* at 177. Yet another declared that the vest would "double the value and the power of the soldier." 8 FRANK LESLIE'S ILLUSTRATED NEWSPAPER 252 (1862).

297. 6 HARPER'S WEEKLY 208 (1862).

298. *Id.*

299. *Id.*

300. Weicksel, *supra* note 291, at 163.

301. *1862 Civil War Bulletproof Vest Broadside*, SETH KALLER, INC., https://www.sethkaller.com/item/407-21777-1862-Civil-War-Bulletproof-Vest-Broadside&from=7 [https://perma.cc/Z7BZ-N48N].

bravery. Other advertisements attempted to alleviate concerns over ineffectiveness by boasting endorsements by military officers.[302]

Many newspaper and magazine articles promoted the use of armor.[303] *Harper's Weekly* argued that Union soldiers should embrace body armor:

> Why not mail men as well as ships? If a suit of iron makes wood invincible, why should not the same material make men invulnerable? If a man can buy for a reasonable price a light, bullet-proof armor, and, as it were, go about the battle-field in a casemate, why should he lose his life?
> This is the question which is sought to be practically answered by the bullet-proof vest, of which Messrs. Elliott, at 292 Broadway [in New York], are the agents. It is light in weight and in price. . . .
> Whatever saves precious lives in war incalculably strengthens the force of the army. Here is a simple sheath which can be slipped within the waistcoat upon going into action. Think of it, soldiers, who wish to fight as long as the rebels do. Think of it, wives and mothers, who wish those soldiers to return.[304]

The *Scientific American*, on October 26, 1861, advocated for the use of the "Secret Steel Breastplate" presented by the "ingenious inventor and mechanic," J. S. Smith:

> It is very strong in proportion to its weight, as it can resist the thrust of a bayonet or sword, and it will repel the bullets of muskets and pistols at ranges which would otherwise be fatal to life. We saw it successfully resist a powerful thrust from a heavy steel-pointed pike. It answers every purpose of a light steel cuirass.[305]

A North Carolina paper reported on the *Scientific American*'s article while using the opportunity to deride Union soldiers: "[I]t is said, [body armor] is being extensively worn by the officers and the men in the Federal army. . . . The principal objection to the thing, is that it gives protection to the front, whereas the Yankees most need protection to the rear."[306]

The body armor produced mixed results in actual battle. But armor usage was not rare.[307] As General Nathan Wales wrote, "it was worn more often than we had any idea of, but many officers felt that they should not be better protected than

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302. Weicksel, *supra* note 291, at 169.
303. *See id.* at 160.
304. *Id.* at 211.
305. *Secret Steel Breastplate*, 5 SCI. AM.: AN ILLUSTRATED J. ART & SCI. 264 (1861).
306. *Very Yankeeish*, FAYETTEVILLE OBSERVER, SEMI-WKLY., Nov. 21, 1861, at 3.
307. "The range of battles and regiments in which armor was used, along with the survival of a number of vests in varying degrees of preservation, suggests that armor use was not infrequent." Weicksel, *supra* note 291, at 166.

their men, consequently those who wore the armor did not advertise it."[308] Wales noted that "two of as brave officers as I ever knew wore it, my colonel . . . and my major," and that his own life was saved by it at the Battle of Antietam: "I had been presented with a steel vest by my father when I left Massachusetts, but I left it in Washington. When I entered the fight a brother officer, who was wounded, insisted on my putting on his steel vest. . . . When I advanced . . . a bullet struck me just below the heart . . . knocking me down."[309] Wales retreated to analyze his wound before realizing that he was wearing the vest and that it had saved his life.[310]

A Union soldier writing about the Battle of Oak Grove explained how a steel-plated vest saved a lieutenant's life and contended that Union soldiers' reputation for wearing vests prompted Confederates to shoot at their legs: "Two [balls] struck him [a lieutenant] fairly in the chest. He wore a steel-plated vest, which undoubtedly saved his life. He frankly confesses that when he discovered the first ball did not hurt him, he 'was ten times as brave' as he had been. It is probable that the rebels shoot at the legs of our men, under a belief that their breasts are protected by steel-plated vests."[311]

"One Wisconsin officer and 26 of his men were reported to have worn armor and were 'struck by rifle shot and not hurt.'"[312] An 1862 newspaper reported that "[i]n one of these [body armor vests] was an indentation made by a Minnie bullet three-fourths of an inch deep, showing that the invention is a really effectual defence against shots striking the body. . . . The officer from whom the one in question was taken was killed by a ball in the head."[313] An advertisement published that same year listed several examples of armor allegedly saving lives, including a claim that "[o]ne man, under McClellan, when before Yorktown, was struck EIGHT times in the breast, but not hurt."[314]

But there were also many accounts demonstrating the ineffectiveness of some of the armor being sold. Lucius Chittenden, while serving as the first Register of the Treasury,[315] recalled finding a fallen officer after the Battle of Fort Stevens: "I placed my hand on his chest to detect any sign of life. It encountered a metallic substance. I opened his clothing, and took from beneath it a shield of boiler-iron, moulded to fit the anterior portion of his body, and fastened at the back by straps

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308. BASHFORD DEAN, HELMETS AND BODY ARMOR IN MODERN WARFARE 58 (1920). "[T]he men who owned and used body armor for a length of time tended to be officers, who had better access to horse and transport wagons than did the ordinary volunteer private." Weicksel, *supra* note 291, at 167.

309. DEAN, *supra* note 308, at 59–60.

310. *Id.* at 60.

311. *A National Account*, *June 26, 1862*, *in* 5 THE REBELLION RECORD: A DIARY OF AMERICAN EVENTS, WITH DOCUMENTS, NARRATIVES, ILLUSTRATIVE INCIDENTS, POETRY, ETC. 232 (Frank Moore ed., New York, G. P. Putnam 1863).

312. Weicksel, *supra* note 291, at 166.

313. THE NORTH CAROLINA STANDARD, Apr. 30, 1862, at 2.

314. COLUMBIAN REGISTER, Aug. 23, 1862, at 3.

315. Chittenden's great-grandfather, Thomas Chittenden, was Vermont's first governor.

and buckles. . . . Directly over his heart, through the shield and through his body, was a hole large enough to permit the escape of a score of human lives."[316]

Over at the Eighteenth Connecticut Volunteers:

> Col. Ely found a man in the camp dispensing to the soldiers "bullet proof vests." To be "iron clad" when the bullets should fly as thick as hail! what more could a soldier ask? But Col. Ely . . . was incredulous of the statement made by the dispenser of the steel vests. He took one of the garments from the dealer, and setting it up as a target for his revolver put several holes through it. He then ordered the arrest of the vender, made him refund to each soldier the amount which he had received in exchange for the worthless armor, and gave him an opportunity for reflection in the regimental guard-house.[317]

Nevertheless, soldiers on both sides of the conflict bore armor. Every man in the 15th Connecticut Volunteers was expected to "provide[] themselves with the 'bullet proof vests' recommended by the *Morning Journal and Courier*."[318] They were delayed, a sergeant later recalled, when it was discovered that "the boys had not all" done so.[319] But they cured this deficiency by contacting a representative from the Atwater Armor Company, who then "sold over two hundred of these 'iron-clad life preservers' in one day."[320] "At least a few benefactors outfitted entire regiments with bulletproof vests, including one Massachusetts man who presented a bulletproof vest to each man in the 37th Massachusetts."[321] The regiment became known as "the 'iron clads,' because when they first arrived every man had a steel plate in his vest."[322] Many of the "men threw them away" during the first march, however, and the plates were later used "to fry pork in."[323]

Due to metal shortages in the South, the "armor that was worn in the Confederate army was generally either captured from Union soldiers or produced by local blacksmiths."[324] "[T]hose soldiers who did discuss armor, or who were associated with its use by way of newspaper reportings, hailed from a wide range of backgrounds, among them regiments from Connecticut, Illinois, Indiana,

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316. LUCIUS EUGENE CHITTENDEN, RECOLLECTIONS OF PRESIDENT LINCOLN AND HIS ADMINISTRATION 419–20 (New York, Harper & Bros. 1891).

317. CHAPLAIN WM. C. WALKER, HISTORY OF THE EIGHTEENTH REGIMENT CONN. VOLUNTEERS IN THE WAR FOR THE UNION 21 (Norwich, 1885).

318. SHELDON B. THORPE, THE HISTORY OF THE FIFTEENTH CONNECTICUT VOLUNTEERS IN THE WAR FOR THE DEFENSE OF THE UNION, 1861–1865 (New Haven, The Price, Lee & Adkins Co. 1893).

319. *Id.*

320. *Id.* Many found the armor too burdensome, however, as "at least fifty per cent of the regiment first wore away and then swore away this device." *Id.*

321. Weicksel, *supra* note 291, at 175.

322. ALL FOR THE UNION: THE CIVIL WAR DIARY AND LETTERS OF ELISHA HUNT RHODES 112 (Robert Hunt Rhodes ed., 1985) (Civil War Library ed. 1992).

323. *Id.*

324. Weicksel, *supra* note 291, at 165. Confederate soldiers also collected armor used by Union soldiers as war trophies. *See, e.g.*, THE NORTH CAROLINA STANDARD, Apr. 30, 1862, at 2 ("Among the trophies exhibited here are several shields taken from the bodies of men and officers, in which they were enveloped from neck to hips."); Weicksel, *supra* note 291, at 167.

Iowa, Massachusetts, Minnesota, and Wisconsin." Additionally, armor was used in battles in Virginia, Maryland, Tennessee, and Mississippi.[325]

Ultimately, "[n]umerous examples of armor were submitted to the U.S. Army, presented to President Abraham Lincoln, commissioned by individual soldiers, purchased from peddlers and sutlers, and sold in retail stores."[326] "The availability of bulletproof garments through the emerging mass market democratized body armor. . . . [A] vest could be purchased by any man who could pay for it."[327]

The primary takeaways from the historical uses of armor throughout American history are that Americans used armor when the benefits outweighed the burdens, and that while armor never again reached the prominence it enjoyed in the sixteenth and much of the seventeenth centuries, it never fell out of use entirely. Therefore, the absence of historical regulations, discussed next, cannot be blamed on an absence of armor use in society.[328]

III. HISTORICAL REGULATIONS

Bruen requires courts to examine the nation's historical tradition of regulation to determine whether the Second Amendment permits restrictions on conduct covered by the Amendment's plain text.[329] For laws that burden the keeping or bearing of armor, this is an easy task. There were very few restrictions on armor before 1900.

Four colonies in the seventeenth century forbade selling armor to American Indians: Massachusetts in 1633 and 1637,[330] Connecticut in 1665,[331] Pennsylvania in 1676,[332]

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325. These battles include "Bull Run, Shiloh, Yorktown, Williamsburg, Corinth, Seven Pines/Fair Oaks, Port Republic, Oak Grove, Malvern Hill, South Mountain, Fredericksburg, Stones River, Gettysburg, Boonsboro, Fort Stevens, and Dandridge." Weicksel, *supra* note 291, at 166.

326. *Id.* at 160. Sutlers provided supplies to Union soldiers during the Civil War. "The sutler was a civilian, a sort of peripatetic P.X. One was allowed to each regiment and was appointed either by the governor of the state from which the regiment came or by regimental or brigade officers." JACK COGGINS, ARMS AND EQUIPMENT OF THE CIVIL WAR 124 (Dover Publ'ns 2004) (1962). "[T]he Inspector Generals Department listed the articles he could sell, checked his merchandise, and watched his prices." *Id.*

327. Weicksel, *supra* note 291, at 168.

328. Even during the rush for armor in the early years of the Civil War, it remained entirely unregulated. "[N]o official government entity monitored quality or safety standards, nor were there regulations regarding design, manufacturing, or testing." Weicksel, *supra* note 291, at 169.

329. N.Y. State Rifle & Pistol Ass'n v. Bruen, 597 U.S. 1, 24 (2022).

330. "Nor shall any [person] amend or repair any gun belonging to any Indian, nor shall sell any armour or weapons, upon penalty of ten pounds for every gun, armour or weapons so sold, given or bartered . . . ." THE CHARTERS AND GENERAL LAWS OF THE COLONY AND PROVINCE OF MASSACHUSETTS BAY 133 (Boston, T. B. Wait & Co. 1814).

331. "It is Ordered, that noe man wthin this Jurisdiction . . . shall sell or giue to any Indean, directly or indirectly, any such gun or gunpowder, or shott, or lead, or mould, or millitary weapons, or armor, nor shall make any arrowe heads, vppon payne of ten pownd fyne for every offence at lest[.]" THE PUBLIC RECORDS OF THE COLONY OF CONNECTICUT, PRIOR TO THE UNION WITH THE NEW HAVEN COLONY 79 (J. Hammond Trumbull ed., Hartford, Brown & Parsons 1850) (1665).

332. "No Person shall sell give or Barter directly or indirectly any Gun or Guns Powder, Bullet, shott, Lead . . . to any Indian . . . nor should amend or repair any Gun belonging to any Indian, nor shall Sell any armour or weapons, upon penalty of ten pounds for every Gun, Armour, weapon, Vessell, or Boat, so Sould given or Bartered . . . ." CHARTER TO WILLIAM PENN, AND LAWS OF THE PROVINCE OF PENNSYLVANIA, PASSED BETWEEN THE YEARS 1682 AND 1700, PRECEDED BY DUKE OF YORK'S LAWS IN FORCE FROM THE YEAR 1676 TO THE YEAR 1682 32 (Staughton George et al. eds., Harrisburg, Lane S. Hart 1879).

and New York in 1680.[333] These laws restricted sales only to members of hostile foreign nations and do not establish a tradition that justifies modern restrictions on American citizens.

In 1783, Connecticut made it a capital offense to "commit Burglary" or "Robbery" while "armed with any dangerous Armour or Weapon."[334] It did not restrict the keeping or bearing of armor by peaceable persons.

Finally, Massachusetts in 1692,[335] Virginia in 1786,[336] and North Carolina by 1792[337] forbade carrying arms—including armor—into courthouses or in a manner that spread fear or terror among the public. The Supreme Court has addressed these laws. The Court determined that "courthouses" are "'sensitive places' where arms carrying [can] be prohibited consistent with the Second Amendment."[338] As for the restrictions on "bearing arms in a way that spreads 'fear' or 'terror' among the

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333. "No Person shall sell give or Barter directly or indirectly any Gun or Guns, Powder, Bullet, shott, Lead . . . to any Indian . . . nor shall amend or repair any Gun belonging to any Indian, nor shall Sell any armour or weapons, upon penalty of ten pounds for every Gun, Armour, weapon, Vessell, or Boat, so Sould given or Bartered . . . ." 1 THE COLONIAL LAWS OF NEW YORK FROM THE YEAR 1664 TO THE REVOLUTION 40–41 (Albany, James B. Lyon 1894).

334. 1783 Conn. Acts 633.

335. [E]very justice of the peace, in the county where the offence is committed, may cause to be stayed and arrested all affrayers, rioters, disturbers or breakers of the peace, and such as shall ride, or go armed offensively before any of their majesties' justices, or other their officers or ministers doing their office, or elsewhere, by night or by day, in fear or affray of their majesties' liege people, and such others as shall utter any menaces or threatening speeches; and upon view of such justice or justices, confession of the party, or other legal conviction of such offence, shall commit the offender to prison until he find sureties for the peace and good behaviour, and seize and take away his armour or weapons, and shall cause them to be apprized and answered to the king as forfeited[.]

THE CHARTERS AND GENERAL LAWS OF THE COLONY AND PROVINCE OF MASSACHUSETTS BAY 239–40 (Boston, T. B. Wait & Co. 1814).

336. That no man, great nor small, of what condition soever he be . . . be so hardy to come before the justices of any court, or either of their ministers of justice, doing their office, with force and arms, on pain, to forfeit their armour to the commonwealth, and their bodies to prison, at the pleasure of a court; nor go nor ride armed by night nor by day, in fairs or markets, or in other places, in terror of the county, upon pain of being arrested and committed to prison by any justice on his own view, or proof by others, there to abide for so long a time as a jury, to be sworn for that purpose by the said justice, shall direct, and in like manner to forfeit his armour to the commonwealth; but no person shall be imprisoned for such offence by a longer space of time than one month.

12 THE STATUTES AT LARGE; BEING A COLLECTION OF ALL THE LAWS OF VIRGINIA, FROM THE FIRST SESSION OF THE LEGISLATURE, IN THE YEAR 1619 334 (William Waller Hening ed., Richmond, George Cochran 1823).

337. [T]hat no man great nor [s]mall, of what condition [s]oever he be . . . be so hardy to come before the King's justices, or other of the King's Mini[s]ters doing their office with force and arms, nor bring no force in affray of peace, nor to go nor ride armed by night nor by day, in fairs, markets nor in the presence of the King's Ju[s]tices, or other mini[s]ters, nor in no part el[s]ewhere, upon pain to forfeit their armour to the King, and their bodies to pri[s]on at the King's plea[s]ure.

A COLLECTION OF THE STATUTES OF THE PARLIAMENT OF ENGLAND IN FORCE IN THE STATE OF NORTH-CAROLINA 60–61 (Francois-Xavier Martin ed., New Bern, Editor's Press 1792).

338. N.Y. State Rifle & Pistol Ass'n v. Bruen, 597 U.S. 1, 30 (2022).

people," these laws do not justify "banning the carrying of any class of [arms]."[339] Nor do they justify modern laws that "broadly restrict arms use by the public generally."[340] Rather, they may justify modern laws that "mitigate demonstrated threats of physical violence."[341]

In sum, there were no historical restrictions on keeping or bearing armor that applied to peaceable persons outside of sensitive places. But there are additional considerations that should be addressed.

The *Heller* Court, in adjudicating a handgun prohibition, addressed "what types" of arms the Second Amendment protects.[342] The Court recognized a "historical tradition of prohibiting the carrying of 'dangerous and unusual weapons.'"[343] Based on that tradition, the Court determined that the Second Amendment protects arms "'in common use,'"[344] but "does not protect those weapons not typically possessed by law-abiding citizens for lawful purposes."[345] It should be considered then whether body armor is "dangerous and unusual."

To be "dangerous and unusual" an arm must be both dangerous *and* unusual. The Supreme Court made this clear in *Caetano v. Massachusetts*.[346] In *Caetano*, the Court summarily reversed and remanded the Massachusetts Supreme Judicial Court's opinion upholding a ban on stun guns. After determining that the Massachusetts Supreme Judicial Court's analysis of whether stun guns were "unusual" was flawed, the Supreme Court declined to consider whether stun guns qualified as "dangerous."[347] Justice Alito, joined by Justice Thomas, elaborated in a concurring opinion:

> As the *per curiam* opinion recognizes, this is a conjunctive test: A weapon may not be banned unless it is *both* dangerous *and* unusual. Because the Court rejects the lower court's conclusion that stun guns are "unusual," it does not need to consider the lower court's conclusion that they are also "dangerous."[348]

Thus, body armor cannot be "dangerous and unusual" unless it is both exceptionally dangerous and uncommon.[349]

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339. *Id.* at 47; *see also id.* at 51 (Addressing North Carolina's law and explaining that "the North Carolina Supreme Court acknowledged 'that the carrying of a gun' for a lawful purpose '*per se* constitutes no offence.' Only carrying for a 'wicked purpose' with a 'mischievous result . . . constituted a crime.'" (quoting State v. Huntly, 25 N.C. 418, 422–23 (1843)) (brackets omitted).

340. United States v. Rahimi, 144 S. Ct. 1889, 1901 (2024).

341. *Id.*

342. District of Columbia v. Heller, 554 U.S. 570, 624 (2008).

343. *Id.* at 627.

344. *Id.* (quoting United States v. Miller, 307 U.S. 174, 179 (1939)).

345. *Id.* at 625.

346. 577 U.S. 411 (2016).

347. *Id.* at 412, 417.

348. *Id.* at 417 (Alito, J., concurring).

349. *See* Friedman v. City of Highland Park, 784 F.3d 406, 409 (7th Cir. 2015) (If "the banned weapons are commonly owned . . . then they are not unusual.").

Body armor is not exceptionally dangerous. As a defensive arm, armor is the least dangerous of all arms protected by the Second Amendment. Unlike weapons—such as knives and firearms—armor cannot be used to harm another person. At worst, armor can be misused to provide enhanced protection to criminals, but it is implausible to suggest that this makes armor more dangerous than offensive weapons, which can also be misused by criminals and are nevertheless protected arms.

Since body armor is not exceptionally dangerous, the "dangerous and unusual" analysis ends there. Moreover, except for New York's prohibition on acquiring body armor, no state prohibits the possession of armor.[350] Thus, armor is "widely owned and accepted as a legitimate means of self-defense across the country."[351]

In *Bruen*, the Court briefly discussed armor in addressing England's 1328 Statute of Northampton.[352] The Statute "provided that, with some exceptions, Englishmen could not 'come before the King's Justices, or other of the King's Ministers doing their office, with force and arms, nor bring no force in affray of the peace, nor to go nor ride armed by night nor by day, in Fairs, Markets, nor in the presence of the Justices or other Ministers, nor in no part elsewhere, upon pain to forfeit their Armour to the King, and their Bodies to Prison at the King's pleasure.'"[353] The Court noted that the Statute "appears to have been centrally concerned with the wearing of armor," which "makes sense given that armor" was "generally worn" at the time "only when one intended to engage in lawful combat or—as most early violations of the Statute show—to breach the peace."[354] The Court determined that the ancient English Statute provided little support for restricting the carrying of handguns in America. For one, "by the time Englishmen began to arrive in America in the early 1600s, the public carry of handguns was no

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350. Under a recent New York law,

> A person is guilty of the unlawful purchase of body armor when, not being engaged or employed in an eligible profession, they knowingly purchase or take possession of body armor, as such term is defined in subdivision two of section 270.20 of this article. This section shall not apply to individuals or entities engaged or employed in eligible professions, which shall include police officers as defined in section 1.20 of the criminal procedure law, peace officers as defined in section 2.10 of the criminal procedure law, persons in military service in the state of New York or military or other service for the United States, and such other professions designated by the department of state in accordance with section one hundred forty-four-a of the executive law.

N.Y. PENAL LAW § 270.21. Subdivision two of section 270.20 defines body armor as "any product that is a personal protective body covering intended to protect against gunfire, regardless of whether such product is to be worn alone or is sold as a complement to another product or garment." *Id.* § 270.20. The "[u]nlawful purchase of body armor is a class A misdemeanor for a first offense and a class E felony for any subsequent offense." *Id.* § 270.21. It is also illegal to "sell or deliver body armor to any individual or entity not engaged or employed in an eligible profession[.]" N.Y. GEN. BUS. LAW § 396-eee.

351. *Caetano*, 577 U.S. at 420 (Alito, J., concurring).

352. *See* N.Y. State Rifle & Pistol Ass'n v. Bruen, 597 U.S. 1, 40–41 (2022).

353. *Id.* at 40 (quoting 2 Edw. 3 c. 3 (1328)).

354. *Id.* at 41.

longer widely proscribed."[355] The same is true for armor, which was carried nearly everywhere in America at that time. Second, by "the decades leading up to the founding" of America, the Statute forbade only carry "accompanied with such Circumstances as are apt to terrify the People."[356] As with handguns, there is no evidence that wearing armor around the founding "would terrify people."[357] Therefore, the Court cautioned that "English common-law practices and understandings at any given time in history cannot be indiscriminately attributed to the Framers of our own Constitution."[358] Rather, "in interpreting our own Constitution, 'it [is] better not to go too far back into antiquity for the best securities of our liberties,' unless evidence shows that medieval law survived to become our Founders' law."[359] In short, no English restriction can overcome the deeply rooted American tradition of keeping and bearing armor for lawful purposes.

Another consideration is whether historical restrictions on other types of arms can be used as analogues to justify modern restrictions on body armor. *Bruen* indicates that they cannot. The *Bruen* Court considered only *handgun* carry restrictions when holding New York's handgun carry law unconstitutional. And because body armor long predates the Second Amendment, it is unnecessary to look beyond the tradition that relates to body armor. To the extent that such analogues are appropriate, however, there is no tradition of banning any particular types of arms.[360] Rather, for offensive weapons, the mainstream American legal tradition was to limit the mode of carry (e.g., no concealed carry), to limit sales to minors (either with bans or requirements for parental permission), and/or to impose extra punishment for use in a crime.[361]

This does not suggest that all body armor regulations are unconstitutional. For example, several states prohibit wearing body armor during the commission of a violent crime.[362] Because the perpetration of criminal violence is not protected by

355. *Id.* at 42.
356. *Id.* at 45 (quoting W. HAWKINS, 1 PLEAS OF THE CROWN 136 (1716)).
357. *Id.*
358. *Id.* at 35.
359. *Id.* (quoting Funk v. United States, 290 U.S. 371, 382 (1933)) (brackets omitted).
360. *See generally* Kopel & Greenlee, *supra* note 20.
361. *Id.* at 386.
362. *See, e.g.*, MD. CODE ANN., CRIM. LAW § 4-106(b) (LexisNexis 2024) ("A person may not wear bulletproof body armor in the commission of a crime of violence."); OR. REV. STAT. ANN. § 166.643 (West 2023) (Class B felony if offender knowingly "(a) Wears body armor; and (b) Possesses a deadly weapon" while "committing or attempting to commit a felony or misdemeanor involving violence"); VA. CODE ANN. § 18.2-287.2 (2024) (Class 4 felony for "wearing body armor" and possessing a "firearm or knife" while committing a crime of violence or felony); FLA. STAT. ANN. § 775.0846(2) (LexisNexis 2024) ("No person may possess a bulletproof vest while . . . he or she commits or attempts to commit any murder, sexual battery, robbery, burglary, arson, aggravated assault, aggravated battery, kidnapping, escape, breaking and entering with intent to commit a felony, criminal gang-related offense . . . or aircraft piracy."); N.J. STAT. ANN. § 2C:39-13 (West 2024) (forbidding the use of armor "while engaged in the commission of, or an attempt to commit, or flight after committing or attempting to commit murder, manslaughter, robbery, sexual assault, burglary, kidnaping, criminal escape or assault"); TENN. CODE ANN. § 39-17-1323(a)(1) (2024) (prohibiting individuals from committing "any felony whose statutory elements involve the use or threat of violence to a human being" while "knowingly wear[ing] a

the Second Amendment, the lack of historical restrictions on body armor likely does not cast doubt on most applications of these laws.

CONCLUSION

Armor was indispensable to the early European explorers and English colonists. Columbus's men bore armor as they first stepped foot on American soil, as did the Pilgrims. The first ever written arms rights guarantees for Englishmen granted the colonists the express right to possess armor. And they wore armor at nearly all times. Although the use of armor declined as evolving methods of warfare limited its usefulness later in the seventeenth century, it never fell out of use entirely. Cavalry and engineers wore armor throughout the French and Indian War and the Revolutionary War, while gorgets were worn ornamentally. Some Union and Confederate soldiers wore armor during the Civil War. Throughout American history, whenever the usefulness of armor outweighed the burden of wearing it, armor was used.

Unlike firearms, edged weapons, and impact weapons, the keeping and bearing of armor by peaceable persons was not restricted before 1900. The nation's tradition of regulation, therefore, evinces a robust right to possess and wear body armor for self-defense.

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body vest"); S.C. CODE ANN. § 16-3-1080(A) (2024) (Felony to commit, attempt, or threaten to commit "a violent crime . . . while wearing body armor").

One-Sided Pseudonymity

EUGENE VOLOKH*

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INTRODUCTION

Our legal system generally requires parties to name themselves; pseudonymous cases—*Doe v. Jones*—are allowed only in exceptional categories of cases.[1] Some of those cases have been litigated as pseudonymous on both sides *(i.e.*, as *Doe v. Roe* or the like).[2] But even when the plaintiff's identity is kept secret from the public (though not from the defendant[3]), the defendant's is often publicized.

I will argue below that, in at least some classes of cases, this one-sided pseudonymity is unfair to the defendant—especially where the plaintiff alleges sexual assault by the defendant.

To begin with, when plaintiffs are allowed to proceed pseudonymously, it is often out of concern that being identified will stigmatize them. But facing allegations of sexual assault as a defendant is at least as stigmatizing.[4]

Relatedly, one reason for plaintiff pseudonymity is that some plaintiffs may otherwise be deterred from filing even meritorious lawsuits, for fear that being publicly identified will stigmatize them.[5] But defendants may be equally deterred from raising even meritorious defenses (such as "I didn't do it" or "the sexual behavior was consensual"), for fear that being publicly identified will stigmatize them. In this respect, the case for pseudonymity for defendants in sexual assault cases stands on roughly the same footing as that for pseudonymity for plaintiffs in those cases.

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1. *See infra* Part I.
2. For more on dealing with the proliferation of confusing *Doe v. Roe* cases, see *infra* Part IX.
3. *See generally* Eugene Volokh, *The Law of Pseudonymous Litigation*, 73 HASTINGS L.J. 1353, 1362 n.25 (2022). Some cases involve named plaintiffs suing John Doe defendants because they do not yet know the defendants' identities. But the goal there is usually to use discovery (for instance, subpoenas to Internet Service Providers) to identify the defendants, and then to name them.
4. *See infra* Part V.A.
5. *See infra* Part V.C.

One-sided pseudonymity can also be unfair to the named defendant because of how it affects the litigation process. One-sided pseudonymity can change the settlement value of a case.[6] Pseudonymity granted to party witnesses may diminish incentives to tell the whole truth.[7] Party pseudonymity may also prevent other witnesses from coming forward.[8] And allowing one party to proceed pseudonymously may signal to the jury that the other party is dangerous, suggesting culpability.[9] To quote Fourth Circuit Judge J. Harvie Wilkinson's concurrence in *Doe v. Sidar*:

> Allowing one party to proceed anonymously increases the potential for abusive suits that use the threat of reputational damage to exact revenge or to extract settlements from innocent parties. Having one party incognito but not the other can tilt the scales of justice in the direction of guilt by anonymous accusation, a prospect which would be just as abhorrent to civil litigation as it is to our criminal justice system. . . . Pseudonymity may enhance the incentives for well-founded complaints to be filed, but it may also serve as a cover for actions that tarnish the innocent.[10]

This is why many courts have rejected one-sided pseudonymity,[11] and some have accepted two-sided pseudonymity.[12]

These factors, of course, are present to different degrees in different kinds of cases. For instance, say a plaintiff alleging sexual assault (or a wrongful university finding of sexual assault) is suing a university, claiming negligent supervision or a biased investigation. There is still the risk of damage to the institutional defendant's reputation. But that damage is far less—and the unfairness stemming from one-sided pseudonymity is far less—than if the lawsuit involves allegations of, say, sexual assault by a named individual defendant.[13] The same is true in many lawsuits against the government.[14]

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6. *See infra* Part III.E.
7. *See infra* Part III.B.
8. *See infra* Part III.C.
9. *See infra* Part III.F.
10. Doe v. Sidar, 93 F.4th 241, 250 (4th Cir. 2024) (Wilkinson, J., concurring). The phrase "one-sided pseudonymity" stems from this case. *See id.* (Wilkinson, J., concurring) (citing Brief of Amicus Curiae Prof. Eugene Volokh in Support of Neither Party, *id.*, 2023 WL 4447864). One court has labeled this "unilateral anonymity" and "asymmetric anonymity," Doe v. Liberty Univ., Inc., No. 6:21-CV-00059, 2022 WL 4781727, at *4–5 (W.D. Va. Sept. 30, 2022), but those are rarer terms; and "unilateral anonymity" is ambiguous, because it sometimes refers just to a plaintiff's decision to file under a pseudonym without court approval. *See, e.g.*, Patton v. Entercom Kan. City, LLC, No. CIV.A. 13-2186-KHV, 2013 WL 3524157, at *1 (D. Kan. July 11, 2013), and cases that cite this passage; Doe # 1 v. Laurel Sch. Dist., No. CIV.A. 09C-06020 WLW, 2011 WL 7063231, at *1 (Del. Super. Ct. Dec. 19, 2011).
11. *See infra* Part II.
12. *See infra* Part IV.
13. *See infra* Part VI.A.
14. *See infra* Part VI.B.

To be sure, one possible solution to the problem—mutual pseudonymity—interferes with the public's right of access to court proceedings even more than one-sided pseudonymity does.[15] But, on balance, the unfairness of one-sided pseudonymity should generally cut against the practice of allowing it, whether the optimal solution for a case would be mutual pseudonymity or none at all.

If this analysis is right, then a plaintiff who seeks pseudonymity (at least in the cases discussed above, where one-sided pseudonymity risks serious unfairness) must offer pseudonymity: The plaintiff should file with pseudonyms for both parties and move for leave for both parties to proceed pseudonymously. The judge should then decide whether to allow pseudonymity for both parties, for only one, or for neither. But, if the plaintiff seeks one-sided pseudonymity, despite publicly naming the defendant in the caption, and the judge concludes that one-sided pseudonymity is improper, then the plaintiff's motion for leave to proceed pseudonymously should be denied.[16]

I. THE BACKGROUND PRESUMPTION AGAINST PSEUDONYMITY

There is a strong presumption against pseudonymity of parties in civil litigation—whether one- or two-sided pseudonymity—which can be overcome only "in exceptional circumstances."[17] Whether exceptional circumstances are present can be a complicated question, on which courts are unsettled.[18] For instance, even on the specific question whether sexual assault plaintiffs may proceed pseudonymously, courts are sharply split.[19] They are likewise split on a wide range of other matters, such as whether plaintiffs may proceed pseudonymously to conceal mental illness.[20]

Focusing specifically on one-sided pseudonymity, this yields two related questions. First, when should a defendant's being named cut against granting the plaintiff pseudonymity, even when some plausible argument for pseudonymity is present (e.g., when plaintiff is suing over highly personal matters, such as an

15. *See infra* Part VII.

16. This article deliberately focuses on one-sided pseudonymity favoring *plaintiff*. One-sided pseudonymity favoring defendant may raise somewhat different concerns. First, the plaintiff chooses to go to court; defendants are generally dragged into court against their will, and may thus in some situations have a stronger claim for pseudonymity (though even for defendants the norm is litigating under their own names). Second, in some kinds of cases, such as defamation cases, there may be special reasons to not allow plaintiffs to proceed pseudonymously, whether or not the plaintiffs are willing to accept defendants' doing so. *See* Doe v. Doe, 85 F.4th 206, 217–18 (4th Cir. 2023) (rejecting pseudonymity for a defamation plaintiff, because "[i]t is apparent that Appellant wants to have his cake and eat it too. Appellant wants the option to hide behind a shield of anonymity in the event he is unsuccessful in proving his claim, but he would surely identify himself if he were to prove his claims."); DL v. JS, No. 1:23-CV-1122-RP, 2023 WL 8102409, at *3 (W.D. Tex. Nov. 21, 2023) (likewise); Doe v. Roe, No. 23-CV-01149-NYW-KLM, 2023 WL 4562543, at *3 (D. Colo. July 17, 2023) (likewise); Doe v. Roe, 247 N.E.3d 1143 (Ohio Ct. App.), *appeal not allowed*, 175 Ohio St. 3d 1531 (2024).

17. Doe v. Public Citizen, 749 F.3d 246, 273 (4th Cir. 2014).

18. *See generally* Volokh, *supra* note 3.

19. *See id*. at 1430–37 (cataloging cases).

20. *See id*. at 1437–41 (cataloging cases).

alleged sexual assault)? Second, when should a plaintiff's suing over such personal matters cut in favor of granting both plaintiff and defendant pseudonymity, in the interest of preventing unfairness to the defendant?

II. JUDICIAL APPROVAL OF ONE-SIDED PSEUDONYMITY

As the Introduction notes, some courts do seem open to one-sided pseudonymity. Sometimes that happens without any real discussion by the court, because of the procedural mechanisms through which pseudonymous litigation is authorized. In writing the complaint, the plaintiff decides in the first instance how the parties are to be listed. Plaintiffs seeking pseudonymity often call themselves "Jane Doe" or "John Doe" but name the defendants. Then, if the court grants the plaintiff's motion to proceed pseudonymously, one-sided pseudonymity results.

And sometimes there is discussion, with courts expressly rejecting the claim that one-sided pseudonymity is unfair. As one court reasoned, "whatever reputational harm comes to [the named] Defendant from these allegations is the same regardless of whether Plaintiff uses her actual name or Jane Doe."[21] And "[w]here Defendants know who the Plaintiffs are and are fully capable of investigating and responding to the allegations, there is no risk that allowing Plaintiffs to proceed by pseudonym will prejudice Defendants' defense."[22] Such courts conclude that the "risk of unfairness to the opposing party"[23] factor considered by many circuit courts is therefore absent so long as defendants are aware of the plaintiffs' identity. Many such cases are cited in Appendix A; they are especially common among district courts in the D.C. Circuit and the Fourth Circuit.

III. JUDICIAL DISAPPROVAL OF ONE-SIDED PSEUDONYMITY

Nonetheless, even before *Doe v. Sidar*, many courts expressed concern about such one-sided pseudonymity. "[T]here are other sources of significant unfairness

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21. Doe v. Darden Rests., Inc., No. CV JKB-24-1368, 2024 WL 2881121, at *5–6 (D. Md. June 7, 2024); *see also* Humphries v. Button, No. 2:21-CV-01412-APG-EJY, 2022 WL 744483, at *4 (D. Nev. Mar. 11, 2022); Doe v. FedEx Ground Package Sys., Inc., No. 3:21-CV-00395, 2021 WL 5041286, at *6 (M.D. Tenn. Oct. 29, 2021); Doe 167 v. Sisters of Saint Francis of Colo. Springs, No. 1:20-CV-00907-WJ-LF, 2021 WL 664006, at *3–4 (D.N.M. Feb. 19, 2021); Doe v. Penzato, No. CV10-5154 MEJ, 2011 WL 1833007, at *3–4 (N.D. Cal. May 13, 2011); Doe v. Mast, 745 F. Supp. 3d 399, 413 (W.D. Va. 2024), *appeal pending*.

22. N.C. *ex rel* J.C. v. Bd. of Educ. of Baltimore Cnty., No. 1:24-CV-00367-JRR, 2024 WL 1856293, at *3 (D. Md. Apr. 29, 2024). Of course, requiring defendants to build a defense without "know[ing] who the Plaintiffs are," *id.*, would generally be highly unfair, and is almost never allowed. *See* Volokh, *supra* note 3, at 1362 n.225.

23. *E.g.*, Doe v. Doe, 85 F.4th 206, 211 (4th Cir. 2023); *In re* Sealed Case, 931 F.3d 92, 97 (D.C. Cir. 2019); *see, e.g.*, Doe v. Cabell Huntington Hosp., Inc., No. CV 3:23-0437, 2023 WL 8529079, at *3 (S.D.W. Va. Dec. 8, 2023) ("Defendant, on the other hand, argues that it is inherently unfair for Plaintiff to be permitted to proceed pseudonymously while it has been publicly named. That unfairness surely exists in almost every case where a plaintiff seeks anonymity. The Court has not, however, been apprised of specific circumstances that would make allowing this plaintiff to proceed anonymously particularly unfair to Defendant.").

or risk of prejudice"[24] in such situations, they reason, even when defendants know who the plaintiffs are. Those courts thus implicitly call on plaintiffs to keep defendants' identities confidential if they want the same in return.

A. Unfairness

Many courts express their concern about unfairness in general terms that would apply to most pseudonymity requests (except perhaps those in lawsuits against the government[25]); many such cases are cited in Appendix B. This analysis dates back to a 1979 Fifth Circuit decision, *Southern Methodist University Ass'n v. Wynne & Jaffe*, which refused to allow employment discrimination plaintiffs to proceed pseudonymously, reasoning that:

> [T]he mere filing of a civil action against other private parties may cause damage to their good names and reputation and may also result in economic harm. Defendant law firms stand publicly accused of serious violations of federal law. Basic fairness dictates that those among the defendants' accusers who wish to participate in this suit as individual party plaintiffs must do so under their real names.[26]

A 1982 Tenth Circuit case and a 1992 Eleventh Circuit case quoted this passage favorably, as did a 2019 D.C. Circuit separate opinion by Judge Stephen Williams.[27] Likewise, here is the view of a recent District Court case:

> Plaintiff's litigation posture and framing of her complaint establish that Plaintiff has sought to avail herself of the protections of anonymity (without prior Court order), all the while single-handedly precluding the Named Defendant from the ability to avail himself of similar protections. She named him as a Defendant in the caption of the case; identified the Named Defendant nearly 60 times in the complaint; and called the Named Defendant a "rapist" right in the introduction of the complaint. Equity does not support parties' strategic use of litigant anonymity as both sword and shield.[28]

B. Concern About False or Overstated Claims

More concretely, it may be easier for an anonymous plaintiff to make false claims—or at least claims that involve some degree of spin (*e.g.*, related to the magnitude of the plaintiff's supposed emotional distress) or incomplete presentation of

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24. Doe v. Doe, 649 F. Supp. 3d 136, 141 (E.D.N.C. 2023), *aff'd*, 85 F.4th 206, 218 (4th Cir. 2023).
25. *See infra* Part III.A.
26. S. Methodist Univ. Ass'n v. Wynne & Jaffe, 599 F.2d 707, 713 (5th Cir. 1979).
27. *See* Coe v. U.S. Dist. Ct. for Dist. of Colo., 676 F.2d 411, 416–17 (10th Cir. 1982); Doe v. Frank, 951 F.2d 320, 324 (11th Cir. 1992); *In re* U.S. Off. of Pers. Mgmt. Data Sec. Breach Litig., 928 F.3d 42, 82 (D.C. Cir. 2019) (Williams, J., concurring in part and dissenting in part) (the majority did not discuss the issue).
28. Doe v. Liberty Univ., Inc., No. 6:21-CV-00059, 2022 WL 4781727, at *4–5 (W.D. Va. Sept. 30, 2022) (citation omitted).

the facts. Consider, for instance, one judge's analysis in a 2021 sexual assault lawsuit against the noted actor Kevin Spacey:

> [F]undamental fairness suggests that defendants are prejudiced when required to defend themselves publicly before a jury while plaintiffs make accusations from behind a cloak of anonymity. C.D. actively has pursued this lawsuit—including by recruiting his co-plaintiff. He seeks over $40 million in damages. He makes serious charges and, as a result, has put his credibility in issue. Fairness requires that he be prepared to stand behind his charges publicly.[29]

"[H]as put his credibility in issue" points to this concern about possible false, spun, or misleadingly incomplete claims by a shadowy, unnamed accuser. The judges in some of the recent sexual assault cases against rapper Sean "Diddy" Combs took a similar view.[30]

Likewise, some courts have expressly noted that a named witness, including a party witness, "may feel more inhibited than a pseudonymous witness from fabricating or embellishing an account."[31]

> It is one thing to accuse someone of something anonymously; it is quite another to do so out in the open. Anonymity makes people feel less restrained in what they say. *See, e.g.*, The Internet. Speaking behind a curtain can create a false sense of security, tempting whoever-they-are to say things that they wouldn't say if everyone knew who was talking. People tend to be a little more careful about what they say and write when they have to put their name to it. (Judges are no exception.)[32]

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29. Rapp v. Fowler, 537 F. Supp. 3d 521, 531–32 (S.D.N.Y. 2021) (cleaned up). *But see* Doe v. Tsai, No. 08-cv-1198, 2008 WL 11462908, at *3 (D. Minn. July 23, 2008) (expressly rejecting this argument, in case involving parents suing over allegedly false claims of abuse of their children); Doe v. Word of Life Fellowship, Inc., No. 11-cv-40077, 2011 WL 2968912, at *2 (D. Mass. July 18, 2011) (expressly rejecting this argument in case against alleged child molester); Doe v. Diocese Corp., 43 Conn. Supp. 152, 167–68 (Conn. Super. Ct. 1994) (likewise).

30. *See* Doe v. Combs, No. 23-cv-10628, 2024 WL 863705, at *4 (S.D.N.Y. Feb. 29, 2024); Doe v. Combs, No. 24-cv-8054 (MKV), 2024 WL 4635309, at *3 (S.D.N.Y. Oct. 30, 2024); Doe v. Alexander, No. 25-CV-01631 (JAV), 2025 WL 784913, at *4 (S.D.N.Y. Mar. 12, 2025); *see also* Doe v. Alexander, No. 25-CV-2107 (LJL), 2025 WL 1126617, at *4 (S.D.N.Y. Apr. 16, 2025). The various *Doe v. Combs* cases are different cases from different judges, as are the various *Doe v. Alexander* cases.

31. Doe v. Delta Airlines Inc., 310 F.R.D. 222, 225 (S.D.N.Y. 2015), *aff'd*, 672 F. App'x 48 (2d Cir. 2016); Roe v. Does 1–11, No. 20-CV-3788, 2020 WL 6152174, at *3 (E.D.N.Y. Oct. 14, 2020); Lawson v. Rubin, No. 17-cv-6404, 2019 WL 5291205, at *3 (E.D.N.Y. Oct. 18, 2019); Doe v. Zinsou, No. 19 Civ. 7025, 2019 WL 3564582, at *7 (S.D.N.Y. Aug. 6, 2019); *see also* San Bernardino Cnty. Dep't of Pub. Soc. Servs. v. Super. Ct., 232 Cal. App. 3d 188, 190 (1991); Doe v. McLellan, No. CV 20-5997, 2020 WL 7321377, at *3 (E.D.N.Y. Dec. 10, 2020) ("[D]efendants would not be able to fully and adequately cross-examine the plaintiff [because of plaintiff's anonymity.]"); Doe v. Gooding, No. 20-cv-06569, 2022 WL 1104750, at *7 (S.D.N.Y. Apr. 13, 2022) ("[A]t trial, [a plaintiff's] anonymity could affect witness confrontation, evidence presentation, and jury perception.") (citing *Delta Airlines Inc.*, 310 F.R.D. at 225). *But see* Doe v. Smith, 105 F. Supp. 2d 40, 45 n.8 (E.D.N.Y. 1999) ("While the court's order authorizes the plaintiff to proceed under a pseudonym, it does not prevent the defendant from cross-examining the plaintiff regarding her professional activities either in a deposition or at trial.").

32. *In re* Boeing 737 MAX Pilots Litig., No. 1:19-cv-5008, 2020 WL 247404, at *2 (N.D. Ill. Jan. 16, 2020).

"'Public access creates a critical audience and hence encourages truthful exposition of facts, an essential function of a trial.'"[33] Similarly, in a case where the plaintiff accused the defendant of distributing revenge porn of the plaintiff, the Seventh Circuit held:

> [Plaintiff] has denied [defendant] Smith the shelter of anonymity—yet it is Smith, and not the plaintiff, who faces disgrace if the complaint's allegations can be substantiated. And if the complaint's allegations are false, then anonymity provides a shield behind which defamatory charges may be launched without shame or liability.[34]

C. Drawing in Witnesses

When the Court recognized a public right of access to criminal trials, in *Richmond Newspapers, Inc. v. Virginia*, Justice Brennan's concurrence noted the possibility that such publicity can cause otherwise unknown witnesses to come forward.[35] Likewise, in a civil case, "[i]t is conceivable that witnesses, upon the disclosure of Doe's name, will 'step forward [at trial] with valuable information about the events or the credibility of witnesses.'"[36] And, if only one

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33. Doe v. Byrd, No. 1:18-cv-00084, 2018 WL 11691505, at *6 n.7 (M.D. Tenn. Dec. 17, 2019) (quoting Brown & Williamson Tobacco Corp. v. FTC, 710 F.2d 1165, 1177 (6th Cir. 1983) (a case involving sealing rather than pseudonymity)).

34. Doe v. Smith, 429 F.3d 706, 710 (7th Cir. 2005); *see also* United States v. Microsoft Corp., 56 F.3d 1448, 1457 (D.C. Cir. 1995) ("Anonymity may well confer a kind of immunity which permits a plaintiff to hurl rhetorical weapons that could cause a unique kind of harm not faced in ordinary litigation."); Doe v. JBF RAK LLC, No. 2:14-cv-00979-RFB-GWF, 2014 WL 5286512, at *8–9 (D. Nev. Oct. 15, 2014) (denying pseudonymity in part because the particular "allegations and claims" in the case "call Plaintiff's credibility into question in a manner not generally found in other cases involving sexual assault or abuse"). Jayne Ressler notes that publicly available court decisions denying plaintiffs pseudonymity might themselves injure the defendants' reputations, because they will name the defendants and describe the allegations against them. Jayne S. Ressler, *Privacy, Plaintiffs, and Pseudonyms: The Anonymous Doe Plaintiff in the Information Age*, 53 U. KAN. L. REV. 195, 247–48. From there, the article concludes that, "courts concerned about fairness to defendants should be more liberal in permitting plaintiffs to bring their actions pseudonymously. Doing so will enable defendants to defend the charges brought against them and avoid the publication of unsubstantiated allegations." *Id.* at 248. But I don't think that's likely to be so—the "publication of unsubstantiated allegations" would still happen if the media cover the complaint, if the complaint is available online, or if future decisions in the case (say, on a motion to dismiss) lead to publicly available opinions.

35. *See* Richmond Newspapers, Inc. v. Virginia., 448 U.S. 555, 596–97 (1980) (Brennan, J., concurring).

36. Doe v. Delta Airlines, Inc., 310 F.R.D. 222, 225 (S.D.N.Y. 2015), *aff'd*, 672 F. App'x 48 (2d Cir. 2016); Roe v. Does 1–11, No. 20-CV-3788-MKB-SJB, 2020 WL 6152174, at *3 (E.D.N.Y. Oct. 14, 2020); *see also* Doe v. Univ. of Vermont, No. 2:22-cv-144, 2022 WL 17811359, at *3 (D. Vt. Dec. 19, 2022); Ramsbottom v. Ashton, No. 3:21-cv-00272, 2021 WL 2651188, at *5 (M.D. Tenn. June 28, 2021); Rapp v. Fowler, 537 F. Supp. 3d 521, 531 (S.D.N.Y. May 3, 2021); Doe v. Leonelli, No. 22-cv-3732 (CM), 2022 WL 2003635, at *5 (S.D.N.Y. June 6, 2022); Doe v. Combs, No. 24-CV-8054 (MKV), 2024 WL 4635309, at *5 (S.D.N.Y. Oct. 30, 2024), *reconsideration denied*, 2024 WL 4753565 (S.D.N.Y. Nov. 12, 2024); Doe v. Combs, No. 24-CV-08810 (LAK), 2025 WL 268515, at *4 (S.D.N.Y. Jan. 22, 2025); Doe v. Combs, No. 24-CV-7974 (JMF), 2025 WL 1132305, at *1 (S.D.N.Y. Apr. 8, 2025), *appeal pending*; Doe v. Cook, No. 23-CV-10362 (LJL), 2025 WL 1158932, at *3 (S.D.N.Y. Apr. 21, 2025); Roe

side is pseudonymous, "information about only [the other] side may thus come to light."[37]

To be sure, such claims are by their nature hypothetical, and some judges view them as too speculative.[38] But other judges take them seriously, and I suspect there is something to them. The decisions in some of the *Doe v. Combs* cases illustrate them well:

> In this case, the most significant form of prejudice to Defendants in the Court's view is the discovery disadvantage that Plaintiff's anonymity would present. A plaintiff who levies serious allegations "puts [her] credibility in issue." In such a situation, when one party is anonymous while others are not, there is an "asymmetry in fact-gathering." This asymmetry is more profound in cases involving substantial publicity, because "information about only one side may come to light as a result."
>
> Plaintiff's own complaint demonstrates how this imbalance could play out. Doe references previously-filed public lawsuits against Combs and Pierre, including one against Combs by Cassie. In describing Cassie's suit, the Complaint asserts that almost immediately after her allegations became public, witnesses with relevant knowledge about Combs came forward to corroborate her claims. Permitting Plaintiff to remain anonymous undermines Defendants' ability to discover relevant information about Plaintiff.[39]

Courts also sometimes express a concern about pseudonymity hampering discovery generally, for instance, by making it harder to gather information, even

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v. City of New York, No. 1:24-CV-7093 (MKV), 2024 WL 4404186, at *5 (S.D.N.Y. Oct. 4, 2024); Doe v. Del Rio, 241 F.R.D. 154, 159 (S.D.N.Y. 2006); San Bernardino Cnty. Dep't of Pub. Soc. Servs. v. Super. Ct., 232 Cal. App. 3d 188, 202 (1991); Joan Steinman, *Public Trial, Pseudonymous Parties: When Should Litigants Be Permitted to Keep Their Identities Confidential?*, 37 HASTINGS L.J. 1, 19 (1985); Doe v. MacFarland, 117 N.Y.S.3d 476, 495 n.18 (Sup. Ct. 2019) (noting that pseudonymity could harm even the pseudonymous party this way, though allowing pseudonymity nonetheless).

37. *Del Rio*, 241 F.R.D. at 159; *Rapp*, 537 F. Supp. 3d at 531; Ramsbottom v. Ashton, No. 3:21-cv-00272, 2021 WL 2651188, at *5 (M.D. Tenn. June 28, 2021); *Combs*, 2024 WL 4635309, at *5; *Combs*, 2025 WL 268515, at *4; *Combs*, 2025 WL 1132305, at *1; *see also* Doe v. United States Dep't of Just. Drug Enf't Admin., No. 1:23-cv-09407-MKV, 2023 WL 7165523, at *3 (S.D.N.Y. Oct. 31, 2023); Doe v. Skyline Automobiles Inc., 375 F. Supp. 3d 401, 407 (S.D.N.Y. 2019).

38. *See* Doe v. Purdue Univ., No. 4:18-CV-00072-JVB-JEM, 2019 WL 1960261, at *4 (N.D. Ind. Apr. 30, 2019); Doe v. Roman Cath. Diocese of Greensburg, No. 20-1750 (EGS), 2021 WL 12137383, at *9 (D.D.C. Feb. 12, 2021); Doe #1 v. Syracuse Univ., No. 5:18-CV-0496(FJS/DEP), 2018 WL 7079489, at *8 (N.D.N.Y. Sept. 10, 2018), *report and recommendation adopted*, 2020 WL 2028285 (N.D.N.Y. Apr. 28, 2020); Doe v. Cabrera, 307 F.R.D. 1, 8–9 (D.D.C. 2014); *see also* Ressler, *supra* note 34, at 223 ("At least in civil litigation, the notion [that open trials help bring out witnesses] seems rather archaic, even quaint, in this era of wide-ranging discovery. . . . With the net cast so wide [by disclosure obligations and discovery] from the very start of the litigation, it seems unlikely that any potential witness would have escaped it, only to appear voluntarily and spontaneously upon reading press accounts of the case."). *Doe v. Fedex Ground Package Sys., Inc.*, No. 3:21-cv-00395, 2021 WL 5041286, at *6 (M.D. Tenn. Oct. 29, 2021), suggests that the question may turn on whether "the defendants were public figures," so that "the possibility of unknown witnesses coming forward was not insignificant."

39. Doe v. Combs, No. 23-CV-10628 (JGLC), 2024 WL 863705, at *4 (S.D.N.Y. Feb. 29, 2024); Doe v. Combs, No. 24-CV-7777 (LJL), 2025 WL 722790, at *3 (S.D.N.Y. Mar. 6, 2025).

from known witnesses.[40] But that would be an argument against pseudonymity in general,[41] and not just an argument against one-sided pseudonymity.

D. Public Self-Defense

When plaintiffs' complaints publicly identify defendants, this may draw attention from the media, from the defendants' business partners, and others.[42] Defendants might find their reputations sharply undermined by the allegations alone, long before the allegations are ultimately adjudicated. Normally, defendants could respond by arguing that plaintiffs' claims are unreliable. But if the plaintiff is pseudonymous, such public self-defense may become much harder:

> The defendants . . . have a powerful interest in being able to respond publicly to defend their reputations [against plaintiffs' allegations] . . . in . . . situations where the claims in the lawsuit may be of interest to those with whom the defendants have business or other dealings.
>
> Part of that defense will ordinarily include direct challenges to the plaintiff's credibility, which may well be affected by the facts plaintiff prefers to keep secret here: his history of mental health problems and his history of substance abuse. Those may be sensitive subjects, but they are at the heart of plaintiff's credibility in making the serious accusations he has made here. He cannot use his privacy interests as a shelter from which he can safely hurl these accusations without subjecting himself to public scrutiny, even if that public scrutiny includes scorn and criticism.[43]

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40. *See, e.g.*, Doe v. City Univ. of New York, No. 21 Civ. 9544 (NRB), 2021 WL 5644642, at *5 (S.D.N.Y. Dec. 1, 2021); Doe v. Freydin, No. 21 Civ. 8371 (NRB), 2021 WL 4991731, at *3 (S.D.N.Y. Oct. 27, 2021).

41. *See* Volokh, *supra* note 3, at 1385–86.

42. Note that this arises even when plaintiffs don't go out of their way to publicize the defendant's alleged misconduct: The very filing of the case, in a way that names the defendant, will make the allegations public.

I thus disagree with *A.D. v. Cavalier Mergersub LP*, No. 2:22-cv-095-JES-NPM, 2022 WL 4354842, at *4 (M.D. Fla. Sept. 20, 2022), which reasoned that, though "Defendants also argue that it would be unfair for Plaintiff to hide behind a cloak of anonymity while publicly disclosing her identity and facts about this case to the media or any other public forums," "[t]here is no evidence of such conduct at this point," because "[p]laintiff avers that she 'has not and does not intend to make this lawsuit public through the use of media, social media[] or any other public forum in connection with her true identity.'" The filing of the case itself associated the defendant with the allegations, as did the various pretrial decisions in the case; searching for "Cavalier Mergersub" online yields many documents from the case.

Perhaps, in this particular case, one-sided pseudonymity might not be as much of a problem, because the plaintiff sued allegedly careless or indirectly complicit hotel corporations rather than individuals, and the reputational damage to such a business defendant would be less than to, say, an individual accused of rape. *See infra* Part VI.A. My point here is simply that a lawsuit against an individual defendant can be devastatingly stigmatizing to the defendant even when the plaintiff makes the allegations public simply by filing them in court with the defendant's name attached.

43. Doe v. Ind. Black Expo., Inc., 923 F. Supp. 137, 142 (S.D. Ind. 1996) (paragraph break added); *see also* Doe v. Butler Univ., No. 1:16-CV-1266-TWP-DML, 2018 WL 11691505, at *3 (S.D. Ind. Jan. 8, 2018). Courts sometimes try to minimize this unfairness by allowing plaintiffs to be pseudonymous but threatening to revoke that permission if, for instance, plaintiff "attempts to gain an advantage through the use of the media, including social media," by "further unnecessary dissemination of public

Or, as another court put it, "[i]f Plaintiffs proceed anonymously, it is more difficult for Defendants to mitigate against the reputational damage associated with the lawsuit."[44] On the other hand, courts are not always persuaded by this argument; the Ninth Circuit, for instance, concluded in one case that defendants "argued that they face tremendous adverse publicity as a result of this lawsuit" but didn't explain how being able to publicly identify the plaintiffs would "enable them to counter that adverse publicity."[45]

Sometimes pseudonymity orders are backed by gag orders that expressly forbid defendants from naming their accusers, and thus forbid defendants from effectively defending themselves against the accusations.[46] But even where there is no gag order, few defendants would likely feel safe publicly identifying plaintiffs in whose favor the judge had issued a pseudonymity order.[47]

E. Effect on Settlement Value of Case

Allowing one side to be pseudonymous can change the settlement value of the case. Courts recognize this, and sometimes give it as a justification against pseudonymity:

> Defendants contend that anonymity creates an imbalance when it comes to settlement negotiations: While a publicly accused defendant might be eager to settle in order to get its name out of the public eye, a pseudonymous plaintiff might hold out for a larger settlement because they face no such reputational risk. . . . Allowing Plaintiff to proceed anonymously would put Defendants at a genuine disadvantage [and cause significant prejudice], particularly when it comes to settlement leverage.[48]

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comment about this case." Doe 1 v. George Wash. Univ., 369 F. Supp. 3d. 49, 68 n.9 (D.D.C. 2019). But even if the plaintiff doesn't talk to the public directly, the filing of the complaint is itself a public act that may draw public attention to the accusations against defendant.

44. Doe v. Leonelli, No. 22-cv-3732 (CM), 2022 WL 2003635, at *5 (S.D.N.Y. June 6, 2022); Doe v. Combs, No. 24-CV-8054 (MKV), 2024 WL 4635309, at *5 (S.D.N.Y. Oct. 30, 2024), *reconsideration denied*, 2024 WL 4753565 (S.D.N.Y. Nov. 12, 2024); Doe v. Combs, No. 24-CV-08810 (LAK), 2025 WL 268515, at *4 (S.D.N.Y. Jan. 22, 2025); Doe v. Alexander, No. 25-CV-2107 (LJL), 2025 WL 1126617, at *4 (S.D.N.Y. Apr. 16, 2025).

45. Does I thru XXIII v. Advanced Textile Corp., 214 F.3d 1058, 1072 (9th Cir. 2000); *see also* Doe v. Mayo Clinic, No. CV-24-01509-PHX-DGC, 2024 WL 4769771, at *2 (D. Ariz. Nov. 13, 2024).

46. *See* Volokh, *supra* note 3, at 1375–76 (discussing such gag orders); Doe v. Mast, 745 F. Supp. 3d 399, 407–08 (W.D. Va. 2024) (endorsing such orders), *appeal pending*.

47. *Cf.* Vargas v. La Bella, No. CV065001941S, 2007 WL 155158, at *4 n.6 (Conn. Super. Ct. Jan. 2, 2007) (considering media coverage of a case as a basis to deny pseudonymity, but generally warning litigants in future cases that "[a]n outcome where parties intentionally seek publication of sensitive details" in order to avoid pseudonymity "would not serve the public or parties' interests, particularly in cases involving sexual molestation charges brought by children").

48. Doe v. Fedcap Rehab. Servs., Inc., No. 17-CV-8220 (JPO), 2018 WL 2021588, at *3 (S.D.N.Y. Apr. 27, 2018); *see also* Doe v. Zinsou, No. 19 Civ. 7025 (ER), 2019 WL 3564582, at *7 (S.D.N.Y. Aug. 6, 2019); Doe v. Gooding, No. 20-cv-06569 (PAC), 2022 WL 1104750, at *7 (S.D.N.Y. Apr. 13, 2022) (noting this, though ultimately allowing pseudonymity, at least until trial); Dylan v. Doe, No. 22BBCV01327, 2024 WL 3886812 (Cal. Super. Ct. L.A. Cnty. Aug. 2, 2024).

> Allowing Plaintiff to proceed pseudonymously could disadvantage Defendants at all stages of litigation, including settlement, discovery, and trial, because Plaintiff's anonymity would . . . result in Defendants having less leverage in settlement negotiations.[49]

> [P]laintiffs' pseudonymity . . . may create an imbalance in settlement negotiation positions as a named defendant would be more eager to settle than a pseudonymous plaintiff.[50]

And this is a serious concern. Parties settle in part because of the costs of proceeding. When the subject matter of the lawsuit is personally or professionally embarrassing to both parties, that is itself part of the cost of proceeding for both parties. Allowing the plaintiff to proceed pseudonymously but having the defendant be named would reduce the plaintiff's costs but not the defendant's.

Consider a concrete scenario. Say Alan wants to sue Bob, claiming that Bob had raped him. The publicity stemming from the lawsuit may be harmful to Alan, because it identifies him as a rape victim. But it may also be harmful to Bob, because it identifies him as an alleged rapist.

Because of this, if Alan approaches Bob before the lawsuit is filed, and threatens to file a lawsuit styled *Alan v. Bob*, that case might settle for (say) $1 million. But if Alan can sue pseudonymously, as *Doe v. Bob*, Alan might hold out for (say) $2 million, because Alan no longer needs to worry about the harm to his privacy, but Bob still needs to worry about the harm to his reputation. Allowing both parties to be pseudonymous, so that the case is *Doe v. Roe*, may bring the settlement value of the case closer to the original $1 million.

In some cases—generally ones where one side has much more to lose than the other, by way of privacy or reputation—one can say that the non-pseudonymity default itself causes improper settlement leverage, which pseudonymity might solve.[51] Say, for instance, that Pamela is threatening to sue an insurance company for failing to pay on claims arising from a sexual assault against her. She might be highly reluctant to sue in her own name, because the lawsuit would reveal the highly private information about the sexual assault. If the insurance company recognizes this, then it might offer a low settlement, thinking that Pamela would accept it to avoid the publicity of a lawsuit. Letting her proceed pseudonymously may well allow her to settle for an amount that better reflects the legal merits of the case.

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49. Doe v. United States Dep't of Just. Drug Enf't Admin., No. 1:23-cv-09407-MKV, 2023 WL 7165523, at *3 (S.D.N.Y. Oct. 31, 2023) (cleaned up) (quoting Doe v. Skyline Autos. Inc., 375 F. Supp. 3d 401, 407 (S.D.N.Y. 2019)); Doe v. McLellan, No. CV 20-5997 (GRB) (AYS), 2020 WL 7321377, at *3 (E.D.N.Y. Dec. 10, 2020); *see also* Ramsbottom v. Ashton, No. 3:21-CV-00272, 2021 WL 2651188 (M.D. Tenn. June 28, 2021); Poe v. Lowe, 756 F. Supp. 3d 537, 548 (M.D. Tenn. 2024).

50. Dylan v. Doe, No. 22BBCV01327, 2024 WL 3886812, at *8–9 (Cal. Super. Ct. L.A. Cnty. Aug. 2, 2024) (citing Volokh, *supra* note 3, at 1380–82).

51. *See, e.g.*, Donald P. Balla, *John Doe Is Alive and Well: Designing Pseudonym Use in American Courts*, 63 ARK. L. REV. 691, 696 (2010).

Likewise, say that Pete is threatening to sue his former lawyer Don, alleging that Don defrauded him. Don might be worried that the lawsuit would badly damage his reputation, even if he is later vindicated. If Pete knows this, he might offer a high settlement, thinking that Don would be quite reluctant to allow the case to go to court. Letting Don proceed pseudonymously may well allow him to settle for an amount that better reflects the legal merits of that case.

But where both sides face a good deal of harm from publicity—perhaps loss of privacy for a sexual assault plaintiff, and career-killing reputational harm for a sexual assault defendant—then one-sided pseudonymity is likely to distort settlement values, rather than restore them to a level that reflects the strength of the case.

F. Jury Prejudice in Favor of Pseudonymous Party

Letting a party testify pseudonymously might also prejudice the jury, by "risk[ing] . . . giving [the party's] claim greater stature or dignity,"[52] or by implicitly "tarnish[ing]" a defendant by conveying to the jury "the unsupported contention that the [defendant] will seek to retaliate against [the plaintiff]."[53] "Defendant might well be prejudiced in defending against a complaint by being perceived as a wrongdoer by the very fact of anonymity alone."[54] "Were Doe permitted to proceed on a no-name basis, one or more jurors might conclude that she, for unknown reasons, merited extra-solicitous treatment. This might skew the jury's assessment of Doe's credibility and her claims."[55]

Query whether these risks could be minimized through suitable jury instructions,[56] or through allowing pseudonymity before trial but not at trial.[57] Indeed, many courts are particularly reluctant to allow pseudonymity to extend to trial, but are willing to allow it until then:

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52. Lawson v. Rubin, No. 17-cv-6404 (BMC) (SMG), 2019 WL 5291205, at *3 (E.D.N.Y. Oct. 18, 2019); *see also* James v. Jacobson, 6 F.3d 233, 240–41 (4th Cir. 1993) (describing the lower court's "concern that the jury's very knowledge that pseudonyms were being used would tend to validate the claim of intangible harms from the wrongdoing alleged"); Doe v. Ayers, 789 F.3d 944, 946 (9th Cir. 2015) (likewise describing the "risk that," in some cases, "the . . . use of pseudonyms might prejudice the jury" in the anonymous party's favor); Doe v. Gooding, No. 20-cv-06569 (PAC), 2023 WL 3775292, at *2 (S.D.N.Y. June 2, 2023); Doe v. Trs. of Ind. Univ., 577 F. Supp. 3d 896, 907 (S.D. Ind. 2022); Doe 1 v. George Wash. Univ., 369 F. Supp. 3d 49, 68 n.8 (D.D.C. 2019); Doe v. Rose, No. CV-15-07503-MWF-JCx, 2016 WL 9150620, at *3 (C.D. Cal. Sept. 22, 2016); Doe v. Cabrera, 307 F.R.D. 1, 10 (D.D.C. 2014); EEOC v. Spoa, LLC, No. CCB-13-1615, 2013 WL 5634337, at *3 (D. Md. Oct. 15, 2013); Doe v. N. Carolina Cent. Univ., No. 1:98CV01095, 1999 WL 1939248, at *4 (M.D.N.C. Apr. 15, 1999).

53. Tolton v. Day, No. 19-945 (RDM), 2019 WL 4305789, at *4 (D.D.C. Sept. 11, 2019); *see also* A.B.C. v. XYZ Corp., 282 N.J. Super. 494, 504 (App. Div. 1995).

54. *A.B.C.*, 282 N.J. Super. at 504.

55. Doe v. Delta Airlines, Inc., 310 F.R.D. 222, 225 (S.D.N.Y. 2015), *aff'd*, 672 F. App'x 48 (2d Cir. 2016).

56. *See James*, 6 F.3d at 242 (reasoning that they could be).

57. *See* Doe v. MIT, 46 F.4th 61, 74 (1st Cir. 2022) ("[E]ven if the case does go to trial and John is compelled to self-identify then, that fact alone does not explain why he should not remain anonymous at earlier stages of the litigation.").

> Allowing Plaintiff to proceed via a pseudonym at trial could impermissibly prejudice the jury against Defendant. . . . The Court therefore will not allow Plaintiff to proceed under a pseudonym should this case reach trial. But the Court will allow Plaintiff to proceed under a pseudonym at any other pretrial hearings. Because the Court, not the jury, is the factfinder at pretrial hearings, the risk of prejudice is far reduced.[58]

Thus, for instance, in a recent sexual assault lawsuit against actor Cuba Gooding, Jr., the court allowed the plaintiff to proceed pseudonymously in the initial stages of the case, but then denied continuing pseudonymity when the time came for trial.[59]

Likewise, courts might allow pseudonymity while a settlement seems to be looming, but warn the parties that "[t]his is subject to change if the settlement craters."[60] To be sure, such pseudonymity is not as valuable to the party as permanent pseudonymity—but it can still be quite valuable, given that nearly all cases are terminated before trial.[61]

IV. JUDICIAL EMBRACE OF TWO-SIDED PSEUDONYMITY

For these reasons, some courts have indeed endorsed two-sided pseudonymity: "[I]f the plaintiff is allowed to proceed anonymously, . . . it would serve the interests of justice for the defendant to be able to do so as well, so that the parties are

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58. Doe v. Elson S Floyd Coll. of Med. at Wash. State Univ., No. 2:20-cv-00145-SMJ, 2021 WL 4197366, at *3 (E.D. Wash. Mar. 24, 2021) (paragraph break omitted); *see also, e.g.*, Doe v. MacFarland, 117 N.Y.S.3d 476, 498 (Sup. Ct. 2019); Doe v. Rose, No. 15-cv-07503-MWF-JCx, 2016 WL 9150620, at *2 (C.D. Cal. Sept. 22, 2016); Doe 1 v. Ogden City Sch. Dist., 1:20-cv-00048-HCN-DAO, 2021 WL 4923728, at *3 n.2 (D. Utah Oct. 21, 2021); S.Y. v. Uomini & Kudai, LLC, No. 2:20-cv-602-JES-MRM, 2021 WL 3054871, at *6 (M.D. Fla. June 11, 2021); Al Otro Lado, Inc. v. Nielsen, No. 17-cv-02366-BAS-KSC, 2017 WL 6541446, at *8 (S.D. Cal. Dec. 20, 2017); Doe v. Regis Univ., No. 1:21-cv-00580-DDD-NYW, 2021 WL 5329934, at *3 (D. Colo. Nov. 16, 2021); Doe v. Gooding, No. 20-cv-06569 (PAC), 2022 WL 1104750, at *7 (S.D.N.Y. Apr. 13, 2022); Doe v. Hobart & William Smith Colls., No. 6:20-CV-06338 EAW, 2021 WL 1062707, at *4 (W.D.N.Y. Mar. 19, 2021); Lawson v. Rubin, No. 17-cv-6404 (BMC) (SMG), 2019 WL 5291205, at *2 (E.D.N.Y. Oct. 18, 2019); Doe v. Rollins Coll., No. 6:16-cv-2232-Orl-37KRS, 2017 WL 11610361, at *2 (M.D. Fla. Mar. 22, 2017). *But see* Doe v. Neverson, 820 F. App'x 984, 987–88 (11th Cir. 2020) (suggesting that pseudonymity could be allowed at trial as well). For more cases discussing how the pseudonymous analysis might change as the case progresses, see Does I thru XXIII v. Advanced Textile Corp., 214 F.3d 1058, 1069 (9th Cir. 2000); Minute Entry Granting Plaintiff's Motion to Proceed Anonymously, Doe v. Loyola Univ. Chi., No. 1:20-cv-07293 (N.D. Ill. Dec. 30, 2020); Doe v. Haynes, No. 4:18CV1930 HEA, 2019 WL 2450813, at *4 (E.D. Mo. June 12, 2019); Moe v. Grinnell Coll., No. 4:20-cv-00058-RGE-SBJ, 2020 WL 12617299, at *2 (S.D. Iowa Apr. 24, 2020); Does 1-2 v. Hochul, No. 21-CV-5067 (AMD) (TAM), 2022 WL 836990, at *9 (E.D.N.Y. Mar. 18, 2022) ("[S]hould this action continue beyond the motion to dismiss phase . . . it may be necessary to revisit whether Plaintiffs' anonymity is obfuscating discovery, causing reputational damage to Defendants, or undermining the fundamental fairness of the proceedings."); *see also* Steinman, *supra* note 36, at 36.

59. *See* Doe v. Gooding, No. 20-cv-06569 (PAC), 2023 WL 3775292, at *1–2 (S.D.N.Y. June 2, 2023).

60. SEB Inv. Mgmt. AB v. Symantec Corp., No. C 1802902 WHA, 2021 WL 3487124, at *2 (N.D. Cal. Aug. 9, 2021).

61. *See* Volokh, *supra* note 3, at 1391 n.179.

on equal footing as they litigate their respective claims and defenses."[62] "If we are to have a policy of protecting the names of individual litigants from public disclosure, there is a very substantial interest in doing so on a basis of equality."[63]

V. BROADER REASONS FOR PSEUDONYMITY APPLYING TO BOTH SIDES

Those then are the arguments why one-sided pseudonymity is unfair. But beyond this, three of the key arguments in favor of plaintiff-side pseudonymity in some cases also tend to apply equally to defendants in many such cases.

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62. Doe v. Doe, No. 20-CV-5329, 2020 WL 6900002, at *4 (E.D.N.Y. Nov. 24, 2020); *see also* Roe v. Doe, No. 18666 (CKK), 2019 WL 1778053, at *3 (D.D.C. Apr. 23, 2019); Doe v. Smith, No. 1:19-CV-1121 (GLS/DJS), 2019 WL 6337305, at *2–3, *3 n.1 (N.D.N.Y. Nov. 27, 2019); Doe v. Trs. of Boston Coll., No. 23-cv-12737-ADB, 2024 WL 816507, at *3 (D. Mass. Feb. 27, 2024) ("Given the agreement of the parties, the circumstances of this case and the unfairness of allowing Doe to proceed anonymously, but not the third parties, the cross-motion for nonparty BC employees to proceed by pseudonym is GRANTED."); Doe v. Liberty Univ., Inc., No. 6:21-cv-00059, 2022 WL 4781727, at *5 (W.D. Va. Sept. 30, 2022) ("Had Plaintiff filed a complaint in which she identified herself as Jane Doe and Named Defendant as 'John Doe'—*i.e.*, providing anonymity both for herself and the accused—the Court would have granted the request for relief with little hesitation."); Doe v. Roe, No. 1:25-cv-02978, 2025 WL 2651241, slip op. at 3 (D.D.C. Sept. 16, 2025) ("Roe [being] a private individual" "weighs against allowing the plaintiff to use a pseudonym in a claim against a private litigant who will undoubtedly have concerns about his reputation. Plaintiff has, however, attempted to mitigate this issue and avoid any risk of unfairness by moving to allow Roe to also proceed under a pseudonym. To be sure, Plaintiffs' motion on behalf of Roe is a novel approach and, if he so chooses, Roe may subsequently move to remove his pseudonym. At this stage, permitting Defendant Roe to proceed pseudonymously removes the risk to his reputation." (cleaned up)).

63. Doe v. City of New York, 201 F.R.D. 100, 102 (S.D.N.Y. 2001); *see also* B.R. v. F.C.S.B., No. 1:19-cv-00917 (RDA/TCB), 2020 WL 12435689, at *24 (E.D. Va. Mar. 10, 2020) ("[T]his Court will do what Plaintiff's counsel should have done at the outset of this litigation, and order that, from this point forward, in this litigation, each party will be referred to by the initials set forth on page one of this Order. The Court recognizes the seriousness of the alleged offenses and the wide-ranging ramifications that these accusations may hold for each of the named parties. The Court finds it necessary to not only protect the privacy interests of the accuser, but also the accused."), *aff'd as to other matters*, 17 F.4th 485 (4th Cir. 2021); Doe v. Am. Fed'n. of Gov't Emps., No. 1:20-cv-01558, 2020 WL 14023400, at *3 n.2 (D.D.C. June 19, 2020); Doe v. Intel Corp., No. 24-CV-6117 (JPO), 2024 WL 4553985, at *5 (S.D.N.Y. Oct. 22, 2024) (endorsing the view that "[i]f we are to have a policy of protecting the names of individual litigants from public disclosure, there is a very substantial interest in doing so on a basis of equality," though that solution was impossible in that case, where plaintiff had already publicly identified defendants); Doe v. Anonymous #1, No. 520605/2020E (N.Y. Sup. Ct. Kings Cnty. Feb. 24, 2021); Affirmation in Support of Defendants' Motion to Dismiss the Complaint, *id.* (Dec. 21, 2020); Doe v. Moravian College, No. 5:20-cv-00377-JMG, 2021 WL 12318058, at *1 n.2 (E.D. Pa. Jan. 11, 2021); Doe v. Smith, 105 F. Supp. 2d 40, 43–44 (E.D.N.Y. 1999); Doe v. Immaculate Conception Church Corp., No. HHBCV095011968, 2009 WL 4845449, at *1 (Conn. Super. Ct. New Britain Dist. Sept. 22, 2009); Doe v. Doe, No. CV146015861S, 2014 WL 4056717, at *2 (Conn. Super. Ct. Ansonia-Milford Dist. July 9, 2014); Doe v. Weill Cornell Medical College of Cornell Univ, No. 1:16-cv-03531-WHP (S.D.N.Y. May 12, 2016) (allowing two-sided pseudonymity "as a temporary measure," but the order was apparently never modified during the six months while the case was being litigated between filing and settlement); Doe v. Tenzin Masselli, No. MMXCV145008325, 2014 WL 6462077, at *2 (Conn. Super. Ct. Middlesex Dist. Oct. 15, 2014) (endorsing such mutual pseudonymity in principle, but rejecting it when the defendant had already pleaded no contest to a criminal charge arising out of the same facts); Notice of Removal, Doe v. Tyler Clementi Found., No. 2:20-cv-05202-JWF-PVC, Exh. A (C.D. Cal. June 11, 2020) (containing Complaint, No. 19STCV43398) (Cal. Super. Ct. L.A. Cnty. filed Dec. 3, 2019 (progressing with the individual defendant being pseudonymous, though without an explicit court decision allowing this); Adam A. Milani, *Doe v. Roe: An Argument for Defendant Anonymity When a Pseudonymous Plaintiff Alleges a Stigmatizing Intentional Tort*, 41 WAYNE L. REV. 1659, 1698–1706 (1995) (arguing for such mutual pseudonymity, at least "until judgment is entered" in cases against "defendants accused of stigmatizing intentional torts").

A. Avoiding Stigma

When a plaintiff is allowed to sue pseudonymously, it is often on the grounds that naming the plaintiff would cause social stigma, especially in sexual assault cases.[64] Regrettably, being identified as an alleged sexual assault victim does indeed stigmatize the plaintiff in some measure (though one hopes this is less true today than it was in past decades and centuries).

But being identified as an alleged sexual assault perpetrator stigmatizes the defendant at least as much, and likely more. Indeed, it may spell professional ruin for a defendant, even if the defendant is ultimately vindicated.[65] If the legal system is willing to sacrifice some degree of public access to prevent stigma to plaintiffs, that rationale would appear to apply equally to many of the defendants that those plaintiffs might be suing.[66]

To be sure, the mere concern that being identified will lead to reputational or professional harm is generally not seen as enough to justify pseudonymity[67]—or else likely most individual defendants, as well as many individual plaintiffs, would be entitled to pseudonymity. (Surely it's professionally harmful to be publicly accused of malpractice, fraud, or even of many kinds of breach of contract; likewise, it's professionally harmful for a plaintiff in an employment case to become known as a litigious employee.) My point here is simply that if a sexual assault plaintiff is entitled to proceed pseudonymously to avoid stigma, it is fair to offer the same consideration to the defendant in that very case.[68]

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64. *See* Volokh, *supra* note 3, at 1409, 1430–34.

65. The same rationale would go the other way as well: When plaintiffs sue alleging that they were falsely found guilty of sexual assault—as in the many Title IX lawsuits where such plaintiffs have sought pseudonymity, see *id.* at 1441–48—it would be unfair to allow them to avoid stigma by proceeding pseudonymously, but to have their initial accusers (who claimed they were sexually assaulted by the plaintiffs) be named. *See, e.g.*, Doe v. Virginia Polytechnic Inst. & State Univ., No. 7:21-CV-00306, 2022 WL 67324, at *4 (W.D. Va. Jan. 6, 2022) (rejecting pseudonymity):

> This case deals with a matter of a sensitive and highly personal nature because it involves allegations of sexual assault by one female student against another female student in a same-sex relationship. But it appears plaintiff in this case is not seeking to preserve her own privacy in any legitimate way. Instead, she seeks privacy while naming two non-parties . . . who assert that they are plaintiff's victims.

See also Ayala v. Butler Univ., No. 1:16-cv-1266-TWP-DKL, 2018 WL 11691505, at *3 (S.D. Ind. Jan. 8, 2018) (rejecting pseudonymity on similar grounds). Compare *Doe v. Ind. Univ.*, No. 1:19-cv-02204, 2019 WL 13510795, at *1 (S.D. Ind. Oct. 2, 2019), where the judge who decided *Ayala* nonetheless allowed plaintiff to proceed pseudonymously, distinguishing *Ayala* in part on the grounds that "the plaintiff's complaint here respects the privacy interests of others in ways the complaint in *Ayala* had not."

66. *Doe v. Doe*, 189 A.D.3d 406, 406 (N.Y. App. Div. 2020), summarily rejected a claim for defendant pseudonymity in such cases, relying chiefly on a New York statutory provision that required confidentiality for sex offense victims but didn't do the same as to accused offenders; it acknowledged the possibility of pseudonymity for other parties, but simply stated that "this exception is not properly applied here," *id.* at 407.

67. *See* Volokh, *supra* note 3, at 1415–23, 1457–60.

68. *Doe v. Diocese Corp.*, 43 Conn. Supp. 152 (1994), rejects this argument, reasoning that, "[i]n the instance where a plaintiff presents a credible case for anonymity based on neither economic harm nor on

Of course, when defendants are indeed sexual assault perpetrators, then they deserve to be stigmatized. But while the case is being litigated, they are generally merely accused. They are not presumed guilty; indeed, the burden of proof even in a civil case remains on the accuser. Some of the defendants may well be innocent.

And even if one might think that the typical defendant is indeed guilty, the civil justice system has to remain impartial. It can't just assume away defendants' privacy interests on the theory that they are likely guilty while their accusers are likely correct. In the words of one court,

> Plaintiff essentially argues . . . that [defendant] deserves to be sued anonymously because he allegedly raped and threatened a virtual stranger. However, in this posture, the allegations in Plaintiff's Complaint are merely allegations, and the Court, at this stage, must not . . . make any assumptions about whether her allegations are true or false.[69]

B. Avoiding Physical or Mental Harm

Sometimes plaintiffs argue that naming them might expose them to the risk of physical harm. Occasionally, such risks may be based on concretely identified concerns, such as past threats; in such situations, courts appear to be quite open to allowing pseudonymity.[70] But sometimes the claims of risk stem from speculative assertions that some people who dislike those in plaintiff's position might harm the plaintiff; such assertions may be equally present for defendants.[71]

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hope of gain but, rather, on concerns for substantial privacy interests, the court should not consider whether it might give the same relief to the defendant. To do so unfairly treats the privacy claim and allows the introduction of considerations having no relevance to the merits of the plaintiff's particular claim, which should stand or fall on its own." *Id.* at 163–64; *see also* Doe v. Purdue Univ., No. 4:18-cv-89, 2019 WL 1757899, at *6 (N.D. Ind. Apr. 18, 2019) (likewise). For the reasons given above, in this section and in Part II, the need to avoid unfairly unequal treatment of the parties *is* relevant to the merits of the plaintiff's claim for pseudonymity.

69. Doe v Combs, No. 24-CV-8054 (MKV), 2024 WL 4635309, at *5 (S.D.N.Y. Oct. 30, 2024), *reconsideration denied*, 2024 WL 4753565 (S.D.N.Y. Nov. 12, 2024); *see also* Doe v. Alexander, No. 25-CV-2107 (LJL), 2025 WL 1126617, at *4 (S.D.N.Y. Apr. 16, 2025) ("[Plaintiff] has made serious charges and has put her credibility in issue. Fairness requires that she be prepared to stand behind her charges publicly. Although Defendant is already in the public eye due to six pending sex trafficking charges, he is presumed innocent and has a right to fight Plaintiff's allegations. The plaintiff's anonymity may undermine the defendants' efforts to mitigate the alleged reputational damage stemming from these serious allegations." (cleaned up)).

70. *See* Volokh, *supra* note 3, at 1397–99; Doe v. Mast, 745 F. Supp. 3d 399, 409 (W.D. Va. 2024), *appeal pending*.

71. For instance, *Doe v. Garland*, No. 1:22-cv-00722, 2022 WL 22624640 (D.D.C. Mar. 10, 2022), rejected plaintiff's claim of pseudonymity that stemmed from plaintiff's having a high security clearance and thus possibly attracting "threats of violence or retaliation from subjects of investigation, or exploitation by foreign intelligence entities." *Id.* at *3. Part of the court's rationale was that plaintiff had named his former supervisors, but "offer[ed] no explanation why using defendants' full names does not create the same risks for violence, retaliation, or exploitation to OPM-OIG's investigations and operational team." *Id.*

Likewise, courts sometimes allow pseudonymity on the grounds that public exposure may expose plaintiff to mental harm, for instance if it would publicize some traumatic event (such as a sexual assault) in the plaintiff's life.[72] But defendants may equally worry that public exposure of serious allegations against them—such as allegations that the defendant had committed sexual assault—would be mentally traumatic as well. Many of us would be traumatized, at least to some extent, by allegations that expose us to public shame and the risk of immediate professional ruin (even if we hope to eventually be vindicated at trial).

At the very least, defendants should have the opportunity to equally raise mental harm concerns when the plaintiff is seeking pseudonymity on such grounds. Plaintiffs' filing complaints that name the defendants denies the defendants such an opportunity.

C. Avoiding Deterrence of Meritorious Claims and Defendants

Another reason sometimes given for pseudonymity is that requiring plaintiffs to be publicly identified can undermine the public policy that the civil causes of action are aimed to serve.[73] Plaintiffs faced with the prospect of this harm might choose not to litigate: People who were sexually assaulted, for instance, might be reluctant to continue with their lawsuits once pseudonymity is denied. Likewise for people who have been libeled, or who have been pretextually fired by their employers. They might decline to sue or might decline to continue with their lawsuits once pseudonymity is denied.

But lack of pseudonymity for defendants can likewise deter defendants from presenting meritorious defenses. Defendants—especially ones accused of an extremely serious offense such as sexual assault—might equally feel pressed to settle before complaints are filed that would publicly identify them as defendants, even if they have sound legal or factual defenses. Someone who is being accused of rape might be reluctant to defend himself in court, even if he is innocent, if he knows that the very filing of the lawsuit would publicly label him as an accused rapist.

VI. SITUATIONS WHERE ONE-SIDED PSEUDONYMITY RAISES FEWER PROBLEMS

A. Defendants That Face Little Risk of Privacy or Reputational Harm

To be sure, in many cases the stigma facing defendants is a good deal less than that facing plaintiffs. Consider a sexual assault victim suing a large employer for failing to properly protect her against a work-linked sexual assault. In that situation, the large employer will only be mildly stigmatized by the allegation—the employer itself, after all, is only accused of being careless, not of being a rapist.[74] But any individual codefendants who are actually accused of the assault (or any

72. *See* Volokh, *supra* note 3, at 1399–1400.
73. *See id.* at 1394–35.
74. *See, e.g.*, Doe v. Alger, 317 F.R.D. 37, 41 (W.D. Va. 2016).

nondefendants who are nonetheless accused by name in the complaint) will face stigma.

Or consider a mentally ill employee suing a large employer under the Americans with Disabilities Act for failing to provide suitable accommodations. The plaintiff may face considerable stigma by being named—whether or not a court concludes that the stigma suffices to justify pseudonymity[75]—but the institutional defendant likely will not.

B. Challenges to Government Action

Likewise, when a plaintiff is suing the government, without naming any supposedly highly culpable individual officials, such a lawsuit would "involve no injury to the Government's 'reputation.'"[76] In this respect, it would be different from lawsuits "against other private parties," which "may cause damage to their good names and reputation and may also result in economic harm."[77]

To be sure, there are often other reasons to deny pseudonymity to plaintiffs challenging government action.[78] But those reasons are separate from the fairness concerns raised by one-sided pseudonymity.

C. Situations Where Defendant Has Already Been Found Guilty

Of course, the unfairness described above is especially stark when the plaintiff and defendant are both merely presenting their claims, and either might be correct. When the defendant has been found guilty of the underlying sex offense—for instance, if a civil lawsuit follows a criminal conviction—the unfairness may be absent.[79] Likewise in the rare cases when the pseudonymity question arises only after the defendant has defaulted as to liability, as in *Doe v. Sidar*. Indeed, the *Sidar* majority opinion expressly (and, I think, correctly) reasoned:

> That Sidar has already been found liable for raping Doe and that further proceedings will be limited to determining the damages he must pay significantly

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75. *See* Volokh, *supra* note 3, at 1437–41 (noting the disagreement among courts on whether pseudonymity can be justified to conceal plaintiff's mental illness).

76. S. Methodist Univ. Ass'n of Women L. Students v. Wynne & Jaffe, 599 F.2d 707, 713 (5th Cir. 1979). *See also* One Standard of Just., Inc. v. City of Bristol, No. 3:22-CV-00863 (SVN), 2022 WL 17688053, at *5 (D. Conn. Dec. 9, 2022); Roe v. Doe, No. 18-cv-666-CKK, 2019 WL 2058669, at *4 (D.D.C. May 7, 2019); Doe v. Skyline Automobiles Inc., 375 F. Supp. 3d 401, 406 (S.D.N.Y. 2019); Doe v. Drake Univ., No. 4:16-cv-00623-RGE-SBJ, 2017 WL 11404865, at *3 (S.D. Iowa June 13, 2017); Doe v. JBF RAK LLC, No. 2:14-cv-00979-RFB-GWF, 2014 WL 5286512, at *5 (D. Nev. Oct. 15, 2014); Rose v. Beaumont Indep. Sch. Dist., 240 F.R.D. 264, 266–67 (E.D. Tex. 2007); Doe v. Bd. of Trustees of Univ. of Ill., No. 2:20-cv-02265-CSB-EIL, at *4 (C.D. Ill. Nov. 9, 2020); S.D. v. Decker, No. 1:22-cv-03063-VSB-BCM, 2022 WL 1239589, at *3 (S.D.N.Y. Apr. 27, 2022); Freedom From Religion Found., Inc. v. Emanuel Cnty. Sch. Sys., 109 F. Supp. 3d 1353, 1361 (S.D. Ga. 2015).

77. *S. Methodist Univ.*, 599 F.2d. at 713.

78. *See* Volokh, *supra* note 3, at 1392 (citing cases so holding).

79. *See, e.g.*, Doe v. Tenzin Masselli, No. MMXCV145008325, 2014 WL 6462077, at *2 (Conn. Super. Ct. Oct. 15, 2014) (endorsing mutual pseudonymity in principle but rejecting it when the defendant had already pleaded no contest to a criminal charge arising out of the same facts).

> reduces any "risk of unfairness to" Sidar resulting from Doe's continued anonymity.
>
> To see why, consider two sources of potential unfairness when a plaintiff seeks to proceed anonymously while making allegations against a known defendant. For one, there is a concern that anonymity may serve as a "shield behind which" false or "defamatory charges may be launched without shame or liability," thus creating the risk a blameless defendant will suffer embarrassment and reputational damage merely by being sued. There is also the one-sidedness of allowing a plaintiff to "have [their] cake and eat it too" by gaining the ability to stay anonymous if they lose—thus avoiding reputational harms from disclosing the underlying facts or bringing an unsuccessful lawsuit—while retaining the power to reveal their identity if they win.
>
> Those risks evaporate once liability has been established. At this point, Doe is not seeking to keep her identity secret because she fears she might lose this case. There is also no risk Sidar's reputation will be damaged by false accusations of wrongdoing.[80]

VII. THE PUBLIC ACCESS COST OF TWO-SIDED PSEUDONYMITY

Of course, while two-sided pseudonymity better protects parties' privacy and reputations, it undermines public access to court records even more than one-sided pseudonymity does. Imagine being a reporter who has to write about a *Doe v. Roe* lawsuit, with no ability to track down people who can offer the story behind the case (except to the extent that the lawyers are willing to provide access to those people). Though you could still see the allegations, the parties' arguments, and the court's decisions, you would be unable to independently investigate the facts. And of course, if two-sided pseudonymity is accepted as the norm in sexual assault lawsuits (or libel lawsuits over allegations of sexual assault), whole areas of the law could become difficult for the media and the public to monitor, outside the constrained accounts of the facts offered up by judges and lawyers.

Yet on balance, I think that this does not justify one-sided pseudonymity. One-sided pseudonymity would tend to lead to one-sided stories, where the reporter can quote the complaint (and the plaintiff's lawyer's elaboration on the assertions in the complaint), and can investigate the background of the named defendant, but cannot investigate the background of the pseudonymous plaintiff. The defendant can deny the allegations in the complaint, but (for reasons given in Part III.D) would likely be unable to pass along information that undermines the plaintiff's credibility, so long as that information would tend to identify the plaintiff. A concern about the public's right of access can, and usually does, require both parties to proceed in their own names.[81] But it shouldn't require the unfair preference for plaintiffs over defendants that one-sided pseudonymity would often involve.

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80. 93 F.4th 241, 248 (4th Cir. 2024).
81. *See supra* Part I.

VIII. PROCEDURE

Once a party's name is publicly disclosed, there's generally no getting the cat back in the bag[82] (or, if you prefer, the "toothpaste back in the tube"[83] or the genie back in the bottle[84]). Some courts categorically forbid retroactive attempts to seal documents or pseudonymize a party.[85] Others are open to retroactive pseudonymization[86]—but even if retroactive pseudonymization is legally authorized, it is unlikely to succeed in practice: Once a case is publicly filed, its docket sheets and many of its documents tend to get picked up by various publicly accessible and Google-searchable research services (such as Justia, Law360, and more). Certainly, if a reporter finds the case and writes about it, a named defendant's identity would become publicly known even if the court later tries to conceal the defendant's name.

Plaintiffs who seek to proceed pseudonymously should therefore file their cases with the defendants' names (or the names of third parties who are being accused of serious misconduct) pseudonymized as well. They should then move

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82. *See, e.g.*, Braxton v. Minnesota, No. 24-CV-2455 (JMB/LIB), 2024 WL 4756041, at *4 (D. Minn. Sept. 30, 2024), *report and recommendation adopted*, 2024 WL 4753636 (D. Minn. Nov. 12, 2024); GEICO Gen. Ins. Co. v. M.O., No. 21-2164-DDC-ADM, 2021 WL 4476783, at *10 (D. Kan. Sept. 30, 2021).

83. Doe v. Liberty Univ., Inc., No. 6:21-CV-00059, 2022 WL 4781727, at *6 (W.D. Va. Sept. 30, 2022).

84. Doe v. Washington Univ., 652 F. Supp. 3d 1043, 1047 (E.D. Mo. 2023); Ford v. Norton, No. 22-0355 (NLH) (EAP), 2023 WL 5164073, at *2 (D.N.J. Aug. 11, 2023).

85. Singh v. Amar, 2023 WL 3267851, at *1 (7th Cir. May 3, 2023) ("Retroactive anonymity is an oxymoron . . . ."); Kansky v. Coca-Cola Bottling Co., 492 F.3d 54, 56 n.1 (1st Cir. 2007) ("[A]t this late stage in the litigation, changing appellant's name on all court records is not feasible. It is simply too late to impose confidentiality on the materials involved in this case."); *cf.* Gambale v. Deutsche Bank AG, 377 F.3d 133, 144 & n.11 (2d Cir. 2004) (concluding—as to sealing more broadly, rather than just pseudonymity—that, once "the genie is out of the bottle" and "the cat is out of the bag," "the ball game is over," even when that stemmed from a court's own error); *see also, e.g.,* Doe v. Amar, 2023 WL 4564404, at *4 (C.D. Ill. July 17, 2023); Stankiewicz v. Universal Com. Corp., 2017 WL 3671040, at *1 (S.D.N.Y. Aug. 9, 2017); Doe v. F.B.I., 218 F.R.D. 256, 260 (D. Colo. 2003).

86. Doe v. Superior Ct., 3 Cal. App. 5th 915, 919–20 (2016); Doe v. Garland, No. 19-56522 (9th Cir. May 31, 2023) (ordering that "[t]he Clerk will replace appellants name with John Doe on the public docket," though without any publicly available analysis); Doe v. Preciado, No. 10-56218 (9th Cir. July 10, 2022) (likewise). *See also* Doe v. FriendFinder Networks, Inc., 738 F. Supp. 3d 829 (W.D. Tex. 2024) ("the retroactive pseudonymization of the record will minimize further harm and the continued likelihood that this case will be the subject of future academic blogs or appear in public media"), *aff'd in relevant part and rev'd as to other matters*, No. SA-19-CV-00727-XR (W.D. Tex. 2024); Doe No. 1 v. United States, 143 Fed. Cl. 238, 241 (2019) ("the Government's 'cat is out of the bag' argument fails because the fact that Plaintiffs have not been harassed or attacked yet does not imply that anonymizing their names now has no value"); Roe v. Doe, 2019 WL 1778053, at *4 (D.D.C. Apr. 23, 2019); Order, Doe v. Bryson, No. 1:12-cv-10240 (D. Mass. Sept. 10, 2021); Order, T.K. v. K.N., No. 1:23-cv-05441-ARR-LB, at 10 (E.D.N.Y. June 26, 2024).

for leave to proceed pseudonymously, as courts already say they must.[87] The courts would then decide whether to grant two-sided pseudonymity, grant only one-sided pseudonymity for cases where one-sided pseudonymity is proper—such as those discussed in Part VI—or deny pseudonymity altogether. (If the defendant does not want pseudonymity, then the court may consider that as well in allowing one-sided pseudonymity for the plaintiff; presumably such defendants should be able to waive their opportunity to be treated evenhandedly with the plaintiff.)

Of course, a plaintiff could still sue under a pseudonym but name the defendant. But in that situation, a judge considering the motion for leave to proceed pseudonymously could reject the motion on the grounds that one-sided pseudonymity is improper—even if the judge would have been inclined to grant the motion had two-sided pseudonymity been an available option.[88]

IX. NAMING THE CASES

More *Doe v. Doe* or *Doe v. Roe* cases means more confusion, since one important function of a case name is to distinguish precedents from each other. But similar confusion can arise from Doe cases against named institutional defendants, such as *Doe v. Trustees of Indiana University*. In a recent article,[89] I discuss some possible solutions for the problem, and ultimately recommend the EEOC's solution of choosing arbitrary first names and last initials for parties (e.g., *Ellen G. v. Peter B.*). But in any event, that problem is separate from the one-sided vs. two-sided pseudonymity question.

CONCLUSION

There are powerful reasons to allow certain plaintiffs to remain pseudonymous. But there are also powerful reasons to treat plaintiffs and defendants alike, especially when they face comparable levels of stigma from being identified as alleged wrongdoers. Judge Wilkinson was correct: One-sided pseudonymity should generally be avoided.

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87. *See, e.g.*, Citizens for a Strong Ohio v. Marsh, 123 F. App'x 630, 637 (6th Cir. 2005); W.N.J. v. Yocom, 257 F.3d 1171, 1172 (10th Cir. 2001).

88. *See, e.g.*, Doe v. Liberty Univ., Inc., No. 6:21-CV-00059, 2022 WL 4781727, at *5 (W.D. Va. Sept. 30, 2022) (refusing to allow plaintiff to proceed pseudonymously, but noting that, "[h]ad Plaintiff filed a complaint in which she identified herself as Jane Doe and Named Defendant as 'John Doe'—*i.e.*, providing anonymity both for herself and the accused—the Court would have granted the request for relief with little hesitation").

89. Eugene Volokh, *If Pseudonyms, Then What Kind?*, 107 JUDICATURE 77 (2023).

APPENDIX A: CASES SUGGESTING UNFAIRNESS TO DEFENDANT IS ABSENT WHENEVER DEFENDANT KNOWS PLAINTIFF'S IDENTITY

Second Circuit: Doe v. New York City Hous. Auth., No. 22-CV-4460 (LJL), 2022 WL 2072570, at *2 (S.D.N.Y. June 9, 2022); Doe v. Colgate Univ., No. 5:15-CV-1069-LEK-DEP, 2016 WL 1448829, at *3 (N.D.N.Y. Apr. 12, 2016).

Fourth Circuit: Doe v. Mast, 745 F. Supp. 3d 399, 413–14 (W.D. Va. 2024), *appeal pending*; Doe v. Chesapeake Med. Sols., LLC, No. CV SAG-19-2670, 2020 WL 13612472, at *2 (D. Md. Feb. 26, 2020); Doe v. 2 Unk[n]own Employee[s] of [the] EEOC, No. CV DKC 18-930, 2018 WL 3159068 (D. Md. June 28, 2018); EEOC v. Spoa, LLC, No. 13-1615, 2013 WL 5634337, at *3–4 (D. Md. Oct. 15, 2013); Doe v. Fowler, No. 317CV00730FDWDSC, 2018 WL 3428150, at *3 (W.D.N.C. July 16, 2018); Doe v. Williams, No. CV 1:23-5745-JDA-SVH, 2024 WL 1120175, at *2 (D.S.C. Mar. 14, 2024); Doe v. George Mason Univ., No. 1:19-CV-1249, 2020 WL 14000928 (E.D. Va. Apr. 23, 2020); Doe v. Burkman, No. 1:24-CV-00181, at *2 (E.D. Va. Sept. 4, 2024); Doe v. Virginia Polytechnic Inst. & State Univ., No. 7:19-CV-00249, 2020 WL 1287960, at *5 (W.D. Va. Mar. 18, 2020); Doe v. Virginia Polytechnic Inst. & State Univ., No. 7:18-CV-320, 2018 WL 5929645, at *4 (W.D. Va. Nov. 13, 2018); EEOC v. Wal-Mart Stores E., L.P., No. 5:23-CV-00623, 2024 WL 349760, at *2 (S.D. W. Va. Jan. 30, 2024); Doe v. Cabell Huntington Hosp., Inc., No. CV 3:23-0437, 2023 WL 8529079, at *3 (S.D. W. Va. Dec. 8, 2023); *cf.* Doe v. Virginia Polytechnic Inst., & State Univ., No. 7:21-CV-378, 2022 WL 972629, at *3 (W.D. Va. Mar. 30, 2022) (though noting that defendants' response to the motion for pseudonymity "described no unfairness that will result if [plaintiff] is allowed to proceed anonymously").

Fifth Circuit: Roe v. Patterson, No. 419CV00179ALMKPJ, 2019 WL 2407380, at *5 (E.D. Tex. June 3, 2019); Doe v. Univ. of Miss., No. 3:18-CV-138-DPJ-FKB, 2018 WL 1703013 (S.D. Miss. Apr. 6, 2018).

Sixth Circuit: Doe v. Lee, No. 3:22-CV-00569, 2023 WL 2587790, at *5 (M.D. Tenn. Mar. 21, 2023).

Seventh Circuit: Doe v. Butler Univ., No. 1:22-CV-01828-SEB-MG, 2022 WL 18540513, at *5 (S.D. Ind. Nov. 18, 2022).

Eighth Circuit: Doe v. Tsai, No. 08-cv-1198, 2008 WL 11462908, at *3 (D. Minn. July 23, 2008); Doe v. Sutton, No. 4:23-CV-01312-SEP, 2025 WL 871656, at *5 (E.D. Mo. Mar. 20, 2025).

Ninth Circuit: Doe v. Mayo Clinic, No. CV-24-01509-PHX-DGC, 2024 WL 4769771, at *2 (D. Ariz. Nov. 13, 2024); Doe v. City of Newport Beach, No. SACV150608JAKKES, 2015 WL 13917137, at *4 (C.D. Cal. Oct. 30, 2015).

Tenth Circuit: Williams v. New Mexico State Univ., No. 23-CV-1059 GBW/KRS, 2025 WL 894954, at *9 & n.14 (D.N.M. Mar. 24, 2025).

Eleventh Circuit: Doe v. Gutteridge Jeancharles, M.D., P.A., No. 6:24-CV-34-WWB-RMN, 2024 WL 701277, at *3 (M.D. Fla. Feb. 20, 2024), *appeal dismissed*, No. 24-10701, 2024 WL 1733980 (11th Cir. Apr. 23, 2024); Doe v. Predator Catchers, Inc., 343 F.R.D. 633, 638 (M.D. Fla. 2023); Doe v. Vazquez,

No. 2:22-CV-200-JLB-KCD, 2022 WL 3099254, at *2 (M.D. Fla. Aug. 4, 2022); Doe v. Garland, 341 F.R.D. 116, 119 (S.D. Ga. 2021); Doe v. Rollins Coll., No. 6:16-CV-2232-ORL-37-KRS, 2017 WL 11610361, at *2 (M.D. Fla. Mar. 22, 2017).

D.C. Circuit: *In re* Sealed Case, 971 F.3d 324, 326 n.1 (D.C. Cir. 2020); Doe v. Austin, No. CV 22-3474 (RC), 2024 WL 864197, at *4 (D.D.C. Feb. 29, 2024); Doe v. McKernan, No. CV 24-488 (JEB), 2024 WL 1143932, at *3 (D.D.C. Feb. 23, 2024); Doe v. Fed. Republic of Germany, 680 F. Supp. 3d 1, 6 (D.D.C. 2023), *reconsideration denied*, No. CV 23-1782 (JEB), 2023 WL 4744175 (D.D.C. July 21, 2023); Doe v. United States Dep't of Just., No. CV 23-1467 (JEB), 2023 WL 3883939, at *3 (D.D.C. June 1, 2023), *aff'd*, No. 23-5127, 2023 WL 7268249 (D.C. Cir. Oct. 31, 2023); Doe v. U.S. Dep't of Homeland Sec., No. 1:22-MC-00028, 2022 WL 1210689, at *4 (D.D.C. Mar. 14, 2022); Doe v. Garland, No. 1:22-CV-00722, 2022 WL 22624640 (D.D.C. Mar. 10, 2022); Doe v. Dep't of Army, No. 1:21-MC-00114, 2021 WL 4260393, at *3 (D.D.C. Sept. 14, 2021); Doe v. United States, No. CV 21-2142, 2021 WL 12241004, at *3 (D.D.C. Aug. 17, 2021); Doe v. Garland, No. 1:21-MC-00044, 2021 WL 3622425, at *3 (D.D.C. Apr. 28, 2021); Doe v. Roman Cath. Diocese of Greensburg, No. CV 20-1750 (EGS), 2021 WL 12137383, at *9 (D.D.C. Feb. 12, 2021); Doe v. Barr, No. 1:20-CV-03553, 2020 WL 12674163, at *3 (D.D.C. Dec. 4, 2020); Doe v. Lieberman, No. 1:20-CV-02148, 2020 WL 13260569 (D.D.C. Aug. 5, 2020); Doe v. McAleenan, No. 1:19-CV-02648, 2019 WL 13251664, at *3 (D.D.C. Sept. 5, 2019); Doe v. Benoit, No. 1:19-CV-01253, 2019 WL 13079193, at *5 (D.D.C. Apr. 30, 2019); Doe 1 v. George Wash. Univ., 369 F. Supp. 3d 49, 67 (D.D.C. 2019); Doe v. Wash. Post, No. CV 19-477, 2019 WL 2336597 (D.D.C. Feb. 26, 2019); Doe v. Merrill Lynch, No. CV 16-253 (BAH), 2016 WL 10844617, at *1 (D.D.C. Apr. 28, 2016); Doe v. U.S. Dep't of State, No. 15-cv-1971, 2015 WL 9647660, at *3 (D.D.C. Nov. 3, 2015); Doe v. Cabrera, 307 F.R.D. 1, 8 (D.D.C. 2014); Doe v. De Amigos, LLC, No. CV 11-1755 (ABJ), 2012 WL 13047579, at *3 (D.D.C. Apr. 30, 2012).

Note that some of these cases nonetheless deny pseudonymity, because they conclude that the other factors do not come out sufficiently in the would-be pseudonymous litigant's favor.

I have omitted cases where the court expressly notes that the motion was unopposed, or was not opposed on fairness grounds, since in such situations the defendants are essentially waiving any objections based on unfairness to them. (Of course, even if defendants do not oppose the motion, a judge may still deny it on the grounds that pseudonymity would unduly interfere with *the public's* right of access, or is likely to cause juror confusion or other difficulties; but this Article focuses on unfairness to the defendants.)

APPENDIX B: CASES GENERALLY SUGGESTING ONE-SIDED PSEUDONYMITY IS UNFAIR

First Circuit: Doe v. Bell Atlantic Bus. Sys. Servs., Inc., 162 F.R.D. 418, 420 (D. Mass. 1995); Doe v. Trustees of Bos. Coll., No. 23-CV-12737-ADB, 2024 WL 816507, at *3 (D. Mass. Feb. 27, 2024).

Second Circuit: K.D. v. City of Norwalk, No. 3:06-cv-406-WWE, 2006 WL 1662905, at *2 (D. Conn. June 14, 2006); Doe v. Wal-Mart Stores, Inc., No. 3:96-cv-1789-AHN, 1997 WL 114700, at *1 (D. Conn. Feb. 25, 1997); Doe v. McLellan, No. 20-cv-5997-GRB-AYS, 2020 WL 7321377, at *3 (E.D.N.Y. Dec. 10, 2020); Pierre v. Cnty. of Broome, No. 3:05-cv-332, 2006 WL 8453057, at *2 (N.D.N.Y. Mar. 13, 2006); Doe v. Colgate Univ., No. 5:15-cv-1069-LEK-DEP, 2015 WL 5177736, at *2 (N.D.N.Y. Sept. 4, 2015); Doe v. NYSARC Tr. Serv., Inc., No. 1:20-cv-00801-BKS-CFH, 2020 WL 5757478, at *7 (N.D.N.Y. Sept. 28, 2020), *report & recommendation adopted*, 2020 WL 7040982 (N.D.N.Y. Dec. 1, 2020); Doe v. Cornell Univ. No. 3:19-cv-1189-MAD-ML, 2021 WL 6128738, at *7 (N.D.N.Y. Jan. 28, 2021), *aff'd*, 2021 WL 6128807 (N.D.N.Y. Sept. 22, 2021); Doe v. St. Lawrence Univ., No. 8:23-CV-426 (BKS/DJS), 2024 WL 3339859, at *5 (N.D.N.Y. July 9, 2024); Doe v. Shakur, 164 F.R.D. 359, 361 (S.D.N.Y. 1996); Mateer v. Ross, Suchoff, Egert, Hankin, Maidenbaum & Mazel, P.C., No. 96-cv-1756-LAP, 1997 WL 171011, at *6 (S.D.N.Y. Apr. 10, 1997); Anonymous v. Simon, No. 13-cv-2927-RWS, 2014 WL 819122, at *2 (S.D.N.Y. Mar. 3, 2014); Doe v. Delta Airlines, Inc., 310 F.R.D. 222 (S.D.N.Y. 2015), *aff'd*, 672 F. App'x 48 (2d Cir. 2016); Doe v. Skyline Automobiles Inc., 375 F. Supp. 3d 401 (S.D.N.Y. 2019); Doe v. Gong Xi Fa Cai, Inc., No. 19-cv-2678-RA, 2019 WL 3034793, at *2 (S.D.N.Y. July 10, 2019); Doe v. Townes, No. 19-cv-8034-ALCO-TW, 2020 WL 2395159, at *6 (S.D.N.Y. May 12, 2020); Doe v. Freydin, No. 21-cv-8371-NRB, 2021 WL 4991731, at *3 (S.D.N.Y. Oct. 27, 2021); Doe v. Leonelli, No. 1:22-cv-03732-CM, 2022 WL 2003635, at *5 (S. D.N.Y. June 6, 2022); Doe v. N.Y. City Dep't of Educ., No. 1:23-CV-00198 (MKV), 2023 WL 5237520, at *4 (S.D.N.Y. Aug. 15, 2023); Doe v. Telemundo Network Grp. LLC, No. 22 CIV. 7665 (JPC), 2023 WL 6259390, at *6 (S.D.N.Y. Sept. 26, 2023); Doe v. Intel Corp., No. 24-CV-6117 (JPO), 2024 WL 4553985, at *5 (S.D.N.Y. Oct. 22, 2024); Doe v. Combs, No. 24-CV-7777 (LJL), 2025 WL 722790, at *3 (S.D.N.Y. Mar. 6, 2025); Doe v. Fashion Inst. of Tech., No. 25 CIV.950 (JPC), 2025 WL 1000927, at *3 (S.D.N.Y. Apr. 3, 2025); Doe v. Combs, No. 24-CV-7974 (JMF), 2025 WL 1132305, at *3 (S.D.N.Y. Apr. 8, 2025), *appeal pending*.

Third Circuit: B.L. v. Zong, No. 3:15-cv-1327, 2017 WL 1036474, at *4 (M.D. Pa. Mar. 17, 2017); Doe v. Ct. of Common Pleas of Butler Cnty., No. 17-cv-1304, 2017 WL 5069333, at *3 (W.D. Pa. Nov. 3, 2017).

Fourth Circuit: Doe v. Doe, 649 F. Supp. 3d 136, 140 (E.D.N.C.), *aff'd*, 85 F.4th 206 (4th Cir. 2023); Doe v. Corp. Sec. Sols., Inc., No. 5:24-CV-451-D, 2024 WL 4342800, at *4 (E.D.N.C. Sept. 27, 2024); Doe v. N. State Aviation, LLC, No. 1:17CV346, 2017 WL 1900290 (M.D.N.C. May 9, 2017); Doe v. N. Carolina Cent. Univ., No. 1:98CV01095, 1999 WL 1939248, at *4 (M.D.N.C.

Apr. 15, 1999); Candidate No. 452207 v. CFA Inst., 42 F. Supp. 3d 804, 810 (E.D. Va. 2012); Doe v. Liberty Univ., Inc., No. 6:21-CV-00059, 2022 WL 4781727, at *5 (W.D. Va. Sept. 30, 2022); Doe v. Kuhn, No. 7:23-CV-209, 2023 WL 4687209, at *4 (W.D. Va. July 21, 2023).

Fifth Circuit: S. Methodist Univ. Ass'n v. Wynne & Jaffe, 599 F.2d 707, 713 (5th Cir. 1979). Doe v. BrownGreer PLC, No. 14-cv-1980, 2014 WL 4404033, at *3 (E.D. La. Sept. 5, 2014); Doe v. Merritt Hospitality, LLC, 353 F. Supp. 3d 472, 474–75, 482 (E.D. La. 2018); Plaintiff Dr. v. Hosp. Serv. Dist. #3, No. 18-cv-7945, 2019 WL 351492, at *3 (E.D. La. Jan. 29, 2019); Doe *ex rel.* Doe v. Harris, No. 14-cv-00802, 2014 WL 4207599, at *2 (W.D. La. Aug. 25, 2014); Doe v. Hallock, 119 F.R.D. 640, 644 (S.D. Miss. 1987); Rose v. Beaumont Indep. Sch. Dist., 240 F.R.D. 264, 266–67 (E.D. Tex. 2007); Doe v. Compact Info. Sys., Inc., No. 3:13-cv-5013-M, 2015 WL 11022761, at *7 (N.D. Tex. Jan. 26, 2015); Doe v. Univ. of the Incarnate Word, No. SA-19-cv-957-XR, 2019 WL 6727875, at *4 (W.D. Tex. Dec. 10, 2019).

Sixth Circuit: Doe v. Webster Cnty., No. 4:21-cv-00093-JHM, 2022 WL 124678, at *2 (W.D. Ky. Jan. 12, 2022); Doe v. Wolowitz, No. 01-73907, 2002 WL 1310614, at *2 (E.D. Mich. May 28, 2002); Doe v. Bruner, No. CA2011-07-013, 2012 WL 626202, at *3 (Ohio Ct. App. Feb. 27, 2012); Ramsbottom v. Ashton, No. 3:21-cv-00272, 2021 WL 2651188, at *5 (M.D. Tenn. June 28, 2021); Poe v. Lowe, No. 3:24-CV-368, 2024 WL 4678470, at *6 (M.D. Tenn. Nov. 1, 2024).

Seventh Circuit: *In re* Boeing 737 MAX Pilots Litig., No. 1:19-cv-5008, 2020 WL 247404, at *2 (N.D. Ill. Jan. 16, 2020); Doe v. Trustees of Ind. Univ., No. 1:21-cv-02903-JRS-MJD (S.D. Ind. Jan. 3, 2022).

Eighth Circuit: Doe v. Hartz, 52 F. Supp. 2d 1027, 1048 (N.D. Iowa 1999).

Ninth Circuit: Doe v. JBF RAK LLC, No. 2:14-cv-00979-RFB-GWF, 2014 WL 5286512, at *9 (D. Nev. Oct. 15, 2014); Doe No. 1 v. Wynn Resorts Ltd., No. 219CV01904GMNVCF, 2022 WL 3214651, at *9 (D. Nev. Aug. 9, 2022).

Tenth Circuit: Sherman v. Trinity Teen Solutions, Inc., 339 F.R.D. 203, 206 (D. Wyo. 2021); Doe v. Regents of Univ. of Colorado, 603 F. Supp. 3d 1014, 1020 (D. Colo. 2022); Doe v. Maloit, No. 24-cv-02383-PAB-KAS, at *3 (D. Colo. Jan. 31, 2025).

Eleventh Circuit: Doe v. Frank, 951 F.2d 320, 323–24 (11th Cir. 1992); A.L. v. G6 Hosp. Prop. LLC, No. 25-80056-CV, 2025 WL 1151750, at *2 (S.D. Fla. Apr. 18, 2025); Doe v. Alabama Dep't of Corr., No. 2:24-CV-455-ECM, 2025 WL 942750, at *8 (M.D. Ala. Mar. 27, 2025); Doe v. Family Dollar Stores, Inc., No. 1:07-cv-1262-TWT-CCH, 2007 U.S. Dist. LEXIS 105268, at *9 (N.D. Ga. Oct. 17, 2007).

D.C. Circuit: United States v. Microsoft Corp., 56 F.3d 1448, 1463–64 (D.C. Cir. 1995); *In re* U.S. Off. of Pers. Mgmt. Data Sec. Breach Litig., No. 17-5217, 2019 WL 2552955, at *28 (D.C. Cir. June 21, 2019) (Williams, J., concurring in part and dissenting in part).

State courts: Doe v. Heitler, 26 P.3d 539 (Colo. Ct. App. 2001); R.W. v. Hampe, 426 Pa. Super. 305, 316–17 (1993); Doe v. Briscoe, 61 Va. Cir. 96, at *3 (2003).

Carnal Knowledge: How Viewing Child Pornography Violates Privacy Rights

MATTHEW CAVEDON*

ABSTRACT

Can a liberal society like America ban the viewing of child pornography? Yes, although explaining why takes a surprising amount of work. U.S. Supreme Court precedent discusses child pornography in terms of harm and economics. This misses the heart of the matter, and the liberalization of the law toward sexual vices, including obscenity, has left child pornography doctrine isolated.

Rethinking two underdeveloped areas of law—children's rights and privacy rights—would help make sense of banning child pornography. This article uses approaches including social and legal history, feminism, vulnerability theory, technology, secular and Christian ethics, and childism to propose that the law should recognize ***children's negative right to intimate privacy****. Doing so would help reframe the viewing of child pornography as a rights violation. While building off the work of other scholars who address sexual privacy rights and children's privacy rights, this article's synthesis uniquely condemns viewing child pornography as a rights violation.*

It also addresses practical legal issues. Its rights framing would rationalize several areas of law, including the ban on possessing child pornography and anti-voyeurism measures. It would also help address emerging challenges like "revenge porn" and child pornography generated by artificial intelligence. This article closes by suggesting that ethical values should supplement legal rights.

The social consensus against child pornography has masked doctrinal problems that should be remedied. Failing to do so leaves child victims on the sidelines—as objects *of both child pornography and the laws banning it, but not* subjects *in their own right.*

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* For our godchildren and for Eliana. I am the former Robert Pool Fellow in Law and Religion at the Emory University School of Law. A former public defender, including for juveniles, I have taught and litigated First Amendment issues. My scholarship is supported by the McDonald Agape Foundation. Thanks to my wife Julie for her pure, and purifying, love. Ashley Audisho provided excellent research assistance, especially for my discussion of artificial intelligence. Helpful feedback also came from John Witte Jr., Kay Levine, Alexander "Sasha" Volokh, Anthony Dillof, Whittney Barth, M. Christian Green, Thomas Jared Farmer, Silas Allard, Ariel Liberman, John Bernau, Songfeng Li, Terri Montague, Lynne Borsuk, and Alexa Windsor. I also appreciate my First Amendment students who workshopped this article with me. Lastly, an enthusiastic thank you to the editors and staff of the *Georgetown Journal of Law & Public Policy* for their interest and hard work preparing this article for publication. © 2025, Matthew Cavedon.

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What is obvious to laypeople is a problem only for lawyers.
— Josephine Potuto (1987)[1]

INTRODUCTION

Americans are by and large liberal on some level: suspicious of government coercion, they require justifications for limitations of personal freedom.[2] Many Americans believe coercive force should be limited.[3] They think private vices should generally be tolerated, met with neighborly care and gentle persuasion instead of criminalization. They believe criminal law should generally punish rights violations.[4]

Is that attitude compatible with banning the possession and viewing of child pornography?[5] Yes, although explaining why requires a trip to liberalism's outer limits and beyond. After all, most traditional sex crimes have been abolished or made into dead letters.[6] American criminal law no longer justifies offenses

1. Josephine Potuto, Stanley + Ferber = *The Constitutional Crime of At-Home Child Pornography Possession*, 76 KY. L.J. 15, 80 (1987) (capitalization altered).

2. *See, e.g.*, *Liberalism* § 1.1, STANFORD ENCYCLOPEDIA OF PHILOSOPHY (revised Sept. 10, 2007), https://plato.stanford.edu/archives/spr2010/entries/liberalism [https://perma.cc/EZ2S-RQLF].

3. See Matthew P. Cavedon, *The Marijuana Insurgency: Federalism and Social Reframing in Policy Reform*, 47 SEATTLE U. L. REV. 1573 (2024); John Witte, Jr., *Church, State, and Sex Crimes: What Place for Traditional Sexual Morality in Modern Liberal Societies?*, 68 EMORY L.J. 837, 859 (2019); Charles G. Koch & Mark V. Holden, *The Overcriminalization of America*, POLITICO (Jan. 7, 2015), https://www.politico.com/magazine/story/2015/01/overcriminalization-of-america-113991 [https://perma.cc/G3QE-P5MU].

4. *Cf.* Neil M. Gorsuch, *Law's Irony*, 37 HARV. J.L. & PUB. POL'Y 743, 748 (2014) ("[W]hat happens to individual freedom and equality—and to our very conception of law itself—when the criminal code comes to cover so many facets of daily life that prosecutors can almost choose their targets with impunity?").

5. This article uses the term "child pornography," rather than "image-based sexual violence" or "child sexual abuse material," because the former is more familiar and more commonly used in law. *But see* Clare McGlynn et al., *Beyond 'Revenge Porn': The Continuum of Image-Based Sexual Abuse*, 25 FEMINIST LEGAL STUD. 25, 39 (2017).

6. Witte, *supra* note 3, at 840.

based on "God, morality, or nature," but mainly in light of personal rights.[7]

Many of the resulting practical changes have deep historical and philosophical foundations. As William Blackstone wrote, "Let a man . . . be ever so abandoned in his principles, or vitious in his practice, provided he keeps his wickedness to himself, and does not offend against the rules of public decency, he is out of the reach of human laws."[8] Several centuries earlier, Saint Thomas Aquinas wrote that human laws "chiefly prohibit those vices that are to the hurt of others" and warned that too much coercion would "break out into yet greater evils."[9] The modern trend toward liberalization reflects these longstanding distinctions between private behavior and public concerns.[10]

However, two key dimensions are missing from U.S. Supreme Court child pornography precedent: children's rights and privacy rights. Both hold a tenuous position in American law. Bereft of them, the Court has explained the evil of child pornography in terms of harm and economics. Neither gets to the heart of why looking at child pornography is so wrong, even in a liberal society: it is a rights violation, inflicting a morally serious and legally significant wrong.

Courts are still developing ways to think about child pornography.[11] This article offers a resource for doing so better: the law should recognize children's negative right to intimate privacy. A rights framing could have concrete effects. In assessing laws' constitutionality, courts inquire into governmental interests, and in enacting laws, legislators pursue certain aims. Child pornography laws should be drafted, defended, and explained in terms of children's negative right to intimate privacy.[12]

Part I of this article discusses the history of child pornography law. Part II articulates a rights framework. Part III details flaws in the precedent upholding possession bans. Part IV identifies a rights framework's benefits, including rationalizing the possession ban, revisiting the U.S. Sentencing Guidelines, and combating voyeurism. Part V turns to emerging issues: a rights approach would support banning "revenge porn" and clarify that child pornography generated by artificial intelligence violates rights when it depicts an identifiable child's nudity. Finally, Part VI notes a complementary role for ethical values. Uncovering children's nakedness is a way of knowing them. But some knowledge should remain forbidden.

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7. *Id.* at 841.

8. 1 WILLIAM BLACKSTONE, COMMENTARIES *120.

9. THOMAS AQUINAS, SUMMA THEOLOGIAE, I-II, Q. 96, art. 2, resp. & ad. 2, trans. Fathers of the English Dominican Province (2d. ed. 1920), https://www.newadvent.org/summa [https://perma.cc/R3CV-7FJC]; *see also* Matthew P. Cavedon, *Early Stirrings of Modern Liberty in the Thought of St. Thomas Aquinas*, 16 POL. & RELIGION 567, 571 (2023); Jean Bethke Elshtain, *"There Oughta Be a Law"—Not Necessarily*, 58 EMORY L.J. 71, 73 (2008).

10. *See generally* Elshtain, *supra* note 9.

11. Lori J. Parker, *Validity, Construction, and Application of Federal Enactments Proscribing Obscenity and Child Pornography or Access Thereto on the Internet*, 7 A.L.R. Fed. 2d 1, 3 (2005).

12. *Cf.* Carpenter v. United States, 585 U.S. 296, 398 (2018) (Gorsuch, J., dissenting) (proposing that judges "consult what the people's representatives have to say about their rights").

I. THE SUPREME COURT HAS IGNORED RIGHTS

> My own academic field dismisses the subject of the child as being trivial and sentimental, good only for second-rate minds and perhaps for women.
> — Anne Higonnet (1998)[13]

American law's approach to child pornography is distorted by four problems: (1) a split approach to speech and privacy; (2) discomfort with children's rights; (3) overreliance on obscenity precedent about consenting adults; and (4) instrumentalism. These issues have led the Supreme Court away from understanding child pornography as a rights violation, leaving its precedent's logic limited.

A. Early Legal History

Before modern cameras, child pornography was not a major legal concern, but early precedent about speech and children caused later doctrinal shortcomings.

1. Speech Law

Modern speech law has forgotten ancient connections between sexual decency, privacy, and dignity, but these gesture toward a rights-based approach to child pornography. Legal remedies for untoward speech date back to antiquity. Greece and Rome imposed sanctions (known in Roman law as "delicts," akin to modern torts) for dignitary harms.[14] The sixth-century Code of Justinian recognized a delict called *iniuria*, which included defamation.[15] *Iniuria* also covered sexual predation, such as "constantly following a matron, or a young boy or girl below the age of puberty, or attempting anybody's chastity."[16] Other legal wrongs included seducing a minor boy, solicitation, indecently accosting females, and indecent exposure.[17] *Iniuria* guarded "body, dignity, and reputation."[18]

Early medieval law recognized similar interests, but defamation suits were relocated to ecclesiastical courts for jurisdictional reasons.[19] They returned to common law courts under Queen Elizabeth I, but by then required reputational

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13. ANNE HIGONNET, PICTURES OF INNOCENCE: THE HISTORY AND CRISIS OF IDEAL CHILDHOOD 13 (1998) (discussing art history) (*quoted in* Amy Adler, *The Perverse Law of Child Pornography*, 101 COLUM. L. REV. 209, 210 n.5 (2001)); *see also* Adler, *supra*, at 210 n.5 ("Few law review articles have been written on the subject of child pornography and the First Amendment."); John Wall, *Human Rights in Light of Childhood*, 16 INT'L J. CHILD.'S RTS. 523, 531 (2008) ("One of the most widely read texts on human rights theory . . . devotes exactly half a page, out of close to 300 pages, to the rights specifically of children . . . .").

14. Cristina Carmody Tilley, *Rescuing Dignitary Torts from the Constitution*, 78 BROOK. L. REV. 65, 66 (2012); Cosimo Cascione, *Roman Delicts and Criminal Law: Theory and Practice*, *in* OBLIGATIONS IN ROMAN LAW: PAST, PRESENT, AND FUTURE 267–95 (Thomas A. J. McGinn ed., 2012).

15. Tilley, *supra* note 14, at 86.

16. *Id.* (citation omitted).

17. *Id.* at 87 n.87.

18. *Id.* at 86–87.

19. *Id.* at 92.

injury.[20] Body and dignity came to be protected by different legal doctrines than reputation.

These three interests did remain connected in legal philosophy. John Locke argued for a natural right of self-ownership.[21] He criticized "meddling" as a privacy violation.[22] Blackstone similarly recognized a natural right to "personal security" protecting a person's "enjoyment of his life, his limbs, his body, his health, and his reputation."[23] This right and Blackstone's theory of personal liberty later undergirded the tort of invasion of privacy.[24]

Early American common law recognized defamation.[25] The colonies lacked specific actions for invasion of privacy, though some provided remedies for gossip and public disclosure of private information.[26] Eighteenth-century courts recognized that people could withdraw parts of their lives from public scrutiny, and defamation suits sometimes remedied privacy invasions.[27]

The Framers thought liberty was limited by natural law and by others' natural rights.[28] Interference could include selfish acts undertaken against others' happiness.[29] Thoughts enjoyed immunity, but if expressive conduct was harmful, the law could respond.[30] Opinions enjoyed legal immunity only if they were decent and true.[31] By 1792, all but one state prosecuted libel, and every one criminalized blasphemy, profanity, or both.[32] The first reported American obscenity conviction dates from an 1815 common law case in Pennsylvania.[33] In 1821, there was a Massachusetts conviction, as well as the enactment of a Vermont statute banning the distribution of "lewd or obscene" material.[34] Congress banned importing such material two decades later.[35] Enforcement was rare until around 1870, when reformer Anthony Comstock ushered in new measures.[36] Within thirty years, at least thirty states had banned the distribution of obscenity, and the federal government passed twenty obscenity laws between 1842 and 1956.[37]

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20. *Id.* at 92–93.
21. *Id.* at 95.
22. *Id.* at 108.
23. *Id.* at 96.
24. *Id.* at 108.
25. *Id.* at 66.
26. *Id.* at 110.
27. *Id.*
28. Jud Campbell, *Natural Rights and the First Amendment*, 127 YALE L.J. 246, 271 (2017).
29. *Id.* (citing Vermont jurist Nathaniel Chipman (1752–1843)).
30. *Id.* at 281, 287.
31. *Id.* at 310.
32. Roth v. United States, 354 U.S. 476, 483 (1957).
33. Paris Adult Theater I v. Slaton, 413 U.S. 49, 104 (1973) (Brennan, J., dissenting) (citing Commonwealth v. Sharpless, 2 Serg. & Rawle 91 (Pa. 1815)).
34. *Id.* (citing Commonwealth v. Holmes, 17 Mass. 336 (1821); Laws of Vermont, 1824, c. XXXII, No. 1, § 23).
35. *Id.* (citing Tariff Act of 1842, § 28, 5 Stat. 566).
36. *Id.* at 104–05.
37. *Id.* at 105.

Privacy law developed as well. An 1891 U.S. Supreme Court decision held that no right is "more sacred, or is more carefully guarded . . . than the right of every individual to the possession and control of his own person."[38] This right protected bodily privacy:

> The inviolability of the person is as much invaded by a compulsory stripping and exposure as by a blow. To compel any one, and especially a woman, to lay bare the body, or to submit it to the touch of a stranger, without lawful authority, is an indignity, an assault and a trespass . . . .[39]

In a landmark 1890 article, Samuel Warren and Louis Brandeis articulated a right to privacy.[40] They connected speech regulations with bodily privacy, including against sexual exploitation: "If you may not reproduce a woman's face photographically without her consent, how much less should be tolerated the reproduction of her face, her form, and her actions, by graphic descriptions colored to suit a gross and depraved imagination."[41] Fifteen years later, Warren and Brandeis's doctrine was endorsed by the Georgia Supreme Court in *Pavesich v. New England Life Insurance Co.*[42]

Pavesich heralded more protection for privacy and attracted scholarly attention.[43] However, privacy law shifted focus from rights to harms, a change that would later affect child pornography law. In 1960, Dean William L. Prosser wrote a highly influential article entitled simply *Privacy*.[44] He identified four relevant torts: (1) intrusion upon seclusion; (2) public disclosure of private facts; (3) false-light publicity; and (4) appropriation of name or likeness.[45] His classification narrowed Warren and Brandeis's right; he saw the tort law of privacy as remedying a few discrete injuries rather than vindicating a broad right.[46] Prosser's approach dominated when modern child pornography jurisprudence developed, and his framing obscured connections between speech law and privacy rights.[47]

2. Children and the Law

Children's rights have long carried moral weight, but also lacked legal protection and even now remain contested. Plato proposed communal childrearing as a

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38. Union Pac. Ry. Co. v. Botsford, 141 U.S. 250, 251 (1891).
39. *Id.* at 252.
40. Samuel Warren & Louis Brandeis, *The Right to Privacy*, 4 HARV. L. REV. 193 (1890).
41. *Id.* at 214.
42. Pavesich v. New Eng. Life Ins. Co., 122 Ga. 190, 206 (1905). An earlier suit found an invasion of privacy in a bodily intimacy context when a man watched a woman give birth. De May v. Roberts, 46 Mich. 160 (1881).
43. *See* Cox Broad. Corp. v. Cohn, 420 U.S. 469, 488–89 (1975) (noting *Pavesich*'s influence).
44. William L. Prosser, *Privacy,* 48 CALIF. L. REV. 383 (1960).
45. *Id.* at 389.
46. Danielle Keats Citron, *Mainstreaming Privacy Torts*, 98 CALIF. L. REV. 1805, 1821–22, 1825 (2010).
47. *See id.* at 1824.

way of fighting nepotism.[48] Aristotle responded that the natural family has priority over the state.[49] In medieval times, Aquinas followed Aristotle's naturalism, proposing that family law should account for the sex drive of young adults, children's vulnerability, and male tendencies to sexually exploit women and children.[50] He endorsed monogamy and marital fidelity.[51] Medieval canon law recognized several children's rights, including "the right to life and the means to sustain life; the right to care, nurture, and education; the later right to contract marriage or to enter into a religious life; and the right to" parental support and inheritance.[52] It made special provision for children who were illegitimate, poor, abandoned, or abused.[53]

In the Enlightenment era, Locke taught that children are vulnerable and so have the right to parental support.[54] This extended to education and social cultivation.[55] Early feminist Mary Wollstonecraft argued that children have a right from God not to be sold into slavery, burdened with irrational laws, or abused and exploited.[56] Theologian William Paley asserted that parents have a right to raise their children, but not "destroy [the] child's happiness."[57] Blackstone agreed.[58] Chancellor James Kent wrote that parents owe their children a "sacred trust" of providing for "their future usefulness and happiness."[59]

In spite of this moral discourse, children's rights were not part of common law. The law did not compel fathers to support their children materially until the sixteenth century. Even then, the legal remedy for a violation was apprenticeship—not for the sake of the child's vocational development, but for society's benefit.[60] New England Puritans believed that parents had to combat children's "natural depravity."[61] This included keeping them from "profane," "filthy," and "amorous" literature.[62] Enlightenment thinkers saw children as "blank slates," and this reinforced parental educational rights.[63] Many rights theorists, including Locke and Immanuel Kant, saw reason as the basis for most autonomy rights—and believed

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48. JOHN WITTE, JR., CHURCH, STATE, AND FAMILY: RECONCILING TRADITIONAL TEACHINGS AND MODERN LIBERTIES 257 (2019).

49. *Id.*

50. *Id.* at 258.

51. *Id.*

52. *Id.* at 260.

53. *Id.*

54. *Id.* at 262.

55. *Id.* at 263.

56. *Id.* at 263–64.

57. *Id.* at 264 (quoting WILLIAM PALEY, THE PRINCIPLES OF MORAL AND POLITICAL PHILOSOPHY 213 (Liberty Fund 2002) (1785)).

58. *Id.* at 265.

59. *Id.* at 266.

60. John Eekelaar, *The Emergence of Children's Rights*, 6 OXFORD J. LEGAL STUD. 161, 166–67 (1986).

61. Brown v. Ent. Merchs. Ass'n, 564 U.S. 786, 823 (2011) (Thomas, J., dissenting) (quoting STEVEN MINTZ & SUSAN KELLOGG, DOMESTIC REVOLUTIONS 2 (1988)).

62. *Id.* (quoting THE HISTORY OF GENESIS vi–vii (3d ed. corrected 1708)).

63. *Id.* at 824.

children and women to be less reasonable than men.[64] Adults were supposed to shield children from immorality and preserve their minds "untainted."[65]

Most parental rights did not come with legal duties. Perhaps having an uninstructed child was seen as punishment enough.[66] Children's rights were collapsed into parental self-interests: the law compensated fathers of injured children because an injury to the child was an injury to the parent.[67] Early laws regulating child labor protected children from harm, but mainly because this hurt "the interests of their parents to profit from their labour as much as of the employers."[68] John Adams thought children lacked "Judgment or Will of their own."[69]

There were exceptions to children's legal invisibility. At least theoretically, criminal law protected children against severe injuries and threats to their lives, including those caused by parents.[70] Children's interests in being protected from (socially defined) immorality factored into custody decisions.[71] Still, not until 1889 did British legislation even implicitly recognize children's interest in protection against cruelty generally, and not until 1893 did a court acknowledge a child's own "ties of affection."[72]

Children's rights have advanced. Major international accords were enacted in 1924 (the Geneva Declaration of the Rights of the Child) and 1959 (the Declaration of the Rights of the Child).[73] Much of the 1948 Universal Declaration of Human Rights and 1966 international covenants on civil, political, economic, social, and cultural rights (ICCPR and ICESCR) was explicitly extended to children by the 1989 Convention on the Rights of the Child (CRC).[74] The U.S. Supreme Court has held that children have some constitutional rights.[75]

However, children's rights remain precarious in America. Every nation except the United States has ratified the CRC.[76] Some critics think that ratification would

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64. Richard P. Hiskes, *The Image of a Lesser God:* Imago Dei *and the Human Rights of Children*, 45 HUM. RTS. Q. 513, 519 (2023).

65. *Brown*, 564 U.S. at 827 (Thomas, J., dissenting) (quoting Noah Webster, *On the Education of Youth in America, in* ESSAYS ON EDUCATION IN THE EARLY REPUBLIC 63 (Frederick Rudolph ed., 1965)).

66. Eekelaar, *supra* note 60, at 164.

67. *Id.*

68. *Id.* at 167.

69. *Brown*, 564 U.S. at 826 (Thomas, J., dissenting) (quoting Letter from John Adams to James Sullivan (May 26, 1776), *in* 4 PAPERS OF JOHN ADAMS 210 (Robert Taylor ed., 1979)).

70. Eekelaar, *supra* note 60, at 167.

71. *Id.* at 168.

72. *Id.* at 169.

73. *See* WITTE, *supra* note 48, at 238; Wall, *supra* note 13, at 534 (discussing the 1924 Declaration's emphasis on developmental interests and 1959 Declaration's focus on protection); *see also* discussion *infra* Section III.C.

74. WITTE, *supra* note 48, at 238–39.

75. Planned Parenthood of Cent. Mo. v. Danforth, 428 U.S. 52, 74 (1976); *see also Brown*, 564 U.S. at 795 n.3; Bellotti v. Baird, 443 U.S. 622, 633–34 (1979) (plurality opinion).

76. WITTE, *supra* note 48, at 239.

let the United Nations interfere with family law.[77] Theoretical reservations about children's rights remain too, especially among conservative Evangelical Protestants concerned that such theories undermine traditional morality, social cohesion, and parental authority.[78] Various social forces contribute to the marginalization of children as well. The Sexual Revolution of the 1960s and other trends have prioritized adult happiness over procreation and childrearing.[79] Children are seen by many as "an impediment to adult fulfillment"—or as something added on after it has been achieved—"rather than an essential aspect" of it, and childlessness is becoming more common.[80]

B. Supreme Court Precedent

In developing child pornography precedent from its obscenity caselaw, the Supreme Court has sidelined rights in favor of social morality, economics, and harm.

1. Obscenity Cases

Early Supreme Court precedent considered obscenity a social ill and, partly because the images in question featured consenting adults, it did not discuss the privacy rights of those depicted. This left the Court without the resources to adequately assess child pornography. In 1931, the Court approved in dicta of decency laws.[81] In 1942's *Chaplinsky v. New Hampshire*, it declared that "the lewd and obscene" lacked constitutional protection.[82] Why? Such material had "slight social value" compared to "the social interest in order and morality."[83]

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77. *See* CONG. RES. SERV., R40484, THE UNITED NATIONS CONVENTION ON THE RIGHTS OF THE CHILD 9 (2015), https://crsreports.congress.gov/product/pdf/R/R40484 [https://perma.cc/KK4M-WQC9].

78. WITTE, *supra* note 48, at 240–41, 243; *see also* BARBARA BENNETT WOODHOUSE, HIDDEN IN PLAIN SIGHT: THE TRAGEDY OF CHILDREN'S RIGHTS FROM BEN FRANKLIN TO LIONEL TATE 8 (2008) (noting also left-wing concerns that children's rights could justify state intervention into the lives of vulnerable families); John Wall, *Fatherhood, Childism, and the Creation of Society*, 75 J. AM. ACAD. RELIGION 52, 53–59 (2007) (discussing Christian patriarchy).

79. Clay Routledge & Will Johnson, *The Real Story Behind America's Population Bomb: Adults Want Their Independence*, USA TODAY (Oct. 12, 2022), https://www.usatoday.com/story/opinion/2022/10/12/why-americans-not-having-babies-low-birth-rate/8233324001 [https://perma.cc/TA44-PFZN] (discussing survey results); Bonnie J. Miller-McLemore, *Feminism, Children, and Mothering: Three Books and Three Children Later*, 2 J. CHILDHOOD & RELIGION 1, 10 (2011).

80. Miller-McLemore, *supra* note 79, at 10; *cf.* Andrew Van Dam, *Millennials Aren't Having Kids. Here's Why.*, WASH. POST (Nov. 3, 2023), https://www.washingtonpost.com/business/2023/11/03/millennials-only-children [https://perma.cc/4MVQ-T9UM] ("'We have a pretty strong set of prerequisites: You absolutely should finish school, and have a decent job, and you should make a decent income, and you should be in a good partnership, and you should live on your own,' Guzzo told us. 'That takes a while to accomplish, especially in this day and age. Some people may feel like they're never going to be in a good place.'").

81. Near v. Minnesota *ex rel.* Olson, 283 U.S. 697, 716 (1931); *see also id.* at 737 (Butler, J., dissenting).

82. Chaplinsky v. New Hampshire, 315 U.S. 568, 571–72 (1942).

83. *Id.* at 572.

The modern obscenity regime was born in 1957's *Roth v. United States*.[84] *Roth* held that obscenity is unprotected because it lacks value.[85] Partially concurring, Justice Harlan wrote that pornography can inspire immoral and antisocial sexual conduct.[86] Obscenity degrades sex and so lowers social morality.[87] Justice Douglas dissented based on free speech absolutism, writing that criminal law "should be concerned with antisocial conduct, not with utterances."[88] The approaches taken in *Roth* set the stage for later child pornography precedent to evade rights in favor of value and extrinsic harms.

The Court soon limited the definition of obscenity in ways that would later raise questions relevant to child pornography. In 1962, a plurality of the Court held that nudity is not always obscene.[89] In 1964's *Jacobellis v. Ohio*, another plurality opinion held that "material dealing with sex in a manner that advocates ideas, or that has literary or scientific or artistic value or any other form of social importance, may not be branded as obscenity."[90] This became a majority holding two years later.[91]

Concurring in the latter case, Justice Douglas again criticized leaving obscenity unprotected, suggesting that pornography may even "provide a substitute—not a stimulus—for antisocial sexual conduct."[92] In his dissent to *Ginzburg v. United States*, he asked why it was "unlawful to cater to the needs" of "offbeat, nonconformist, and odd" sexual groups (specifying masochists and homosexuals), as sexual diversity is no different from musical preferences.[93] Courts should not "probe the mysteries of the subconscious of our people and say that this is good for them and that is not," and no group should be forced to "repress its inner desires."[94] His stance anticipated the gay rights movement, but also child pornography apologists. However, it was rejected by a majority of the Court in *Mishkin v. New York*, which held that material can be obscene even if it appeals only to "a clearly defined sexual deviant group."[95]

The Court noted that it had yet to address the government's interest in protecting children.[96] The first case doing so was 1968's *Ginsberg v. New York*, but that case concerned the distribution of obscene materials *to* minors.[97] *Ginsberg*

84. Roth v. United States, 354 U.S. 476 (1957).
85. *Id.* at 484.
86. *Id.* at 501–02 (Harlan, J., concurring in the judgment in part and dissenting in part).
87. *Id.* at 502.
88. *Id.* at 512–13 (Douglas, J., dissenting).
89. Manual Enters., Inc. v. Day, 370 U.S. 478, 489–90 (1962) (plurality op. of Harlan, J.).
90. Jacobellis v. Ohio, 378 U.S. 184, 191 (1964) (plurality op. of Brennan, J.) (internal citation omitted).
91. A Book Named "John Cleland's Memoirs of a Woman of Pleasure" v. Att'y Gen. of Mass., 383 U.S. 413, 421 (1966).
92. *Id.* at 432 (Douglas, J., concurring in the judgment).
93. Ginzburg v. United States, 383 U.S. 463, 489 (1966) (Douglas, J., dissenting).
94. *Id.* at 491.
95. Mishkin v. New York, 383 U.S. 502, 505, 508 (1966).
96. Redrup v. New York, 386 U.S. 767, 769 (1967) (per curiam).
97. Ginsberg v. New York, 390 U.S. 629, 631 (1968).

recognized government interests in preventing harm to youths' development, but did not comment on children's rights.[98] Concurring in terms that echoed Locke and Kant, Justice Stewart noted that children have fewer rights than adults because they lack the "full capacity for individual choice."[99]

In 1969, the Court issued a key decision that would pose specific problems in addressing child pornography. In *Stanley v. Georgia*, the Court held that there is a constitutional right to privately possess obscene material: "If the First Amendment means anything, it means that a State has no business telling a man, sitting alone in his own house, what books he may read or what films he may watch."[100] Every person has "the right to satisfy his intellectual and emotional needs in the privacy of his own home," and the government cannot "control men's minds."[101] The government's interest in fighting obscenity distribution did not outweigh the individual's "right to read or observe what he pleases."[102]

Stanley cited "traditional notions of individual liberty."[103] However, its rhetoric stretched too far, as the Court itself soon acknowledged. The *Stanley* Court did recognize in a footnote that "compelling reasons" might exist for overriding the freedom of media consumption.[104] Still, in 1973, the Court largely returned to its earlier approach when it revised *Roth*'s definition of obscenity in *Miller v. California*: "A state [obscenity] offense must . . . be limited to works which, taken as a whole, appeal to the prurient interest in sex, which portray sexual conduct in a patently offensive way, and which, taken as a whole, do not have serious literary, artistic, political, or scientific value."[105] Then, in *Paris Adult Theater I v. Slaton*, the Court eschewed *Stanley*'s thought-control concerns, endorsing state interests in promoting virtue by banning public and commercial obscenity.[106]

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98. *Id.* at 639–42.

99. *Id.* at 650 (Stewart, J., concurring).

100. Stanley v. Georgia, 394 U.S. 557, 559 (1969). *Stanley* had a precursor in Mapp v. Ohio, 367 U.S. 643 (1961). That case is canonical for extending the Fourth Amendment's exclusionary rule to the states, but it arose from the private possession of alleged obscenity, which Justice Stewart argued was protected by the freedoms of thought and expression. *See id.* at 659–60 (majority opinion); *id.* at 672 (memorandum of Stewart, J.).

101. *Stanley*, 394 U.S. at 565.

102. *Id.* at 567–68.

103. *Id.* at 565; *see also* Lawrence v. Texas, 539 U.S. 562, 562 (2003); BLACKSTONE, *supra* note 8, at *120 (endorsing broad tolerance for private vices); Cavedon, *supra* note 9, at 571 (arguing that Aquinas's approach to vice laws was "at least prudentially libertarian").

104. *Stanley*, 394 U.S. at 568 n.11.

105. Miller v. California, 413 U.S. 15, 24 (1973).

106. *Compare Slaton*, 413 U.S. at 63 ("If we accept the unprovable assumption that a complete education requires the reading of certain books, and the well nigh universal belief that good books, plays, and art lift the spirit, improve the mind, enrich the human personality, and develop character, can we then say that a state legislature may not act on the corollary assumption that commerce in obscene books, or public exhibitions focused on obscene conduct, have a tendency to exert a corrupting and debasing impact leading to antisocial behavior?" (internal citations omitted)), *with id.* at 110 (Brennan, J., dissenting) ("[I]f a State, in an effort to maintain or create a particular moral tone, may prescribe what its citizens cannot read or cannot see, then it would seem to follow that in pursuit of that same objective a State could decree that its citizens must read certain books or must view certain films."). For a

Rounding out the early history, two years later, in *Erznoznik v. City of Jacksonville*, the Court held that not all nudity is obscene "even as to minors."[107] Protected material could include "a film containing a picture of a baby's buttocks, the nude body of a war victim, or scenes from a culture in which nudity is indigenous . . . [and] newsreel scenes of the opening of an art exhibit as well as shots of bathers on a beach."[108] These distinctions would affect later child pornography jurisprudence.

Obscenity cases provided the tools the Court would use to analyze child pornography: value, children, privacy, and free speech absolutism. Obscenity was unprotected because it lacked value. However, sophisticated material might not be obscene. Children were of concern in some of these cases but, as shown below, always as objects at risk of being harmed and not as bearers of rights entitled to protection.

2. Child Pornography Cases

The Court first confronted child pornography in 1982's *New York v. Ferber*, which concerned a distribution ban.[109] By then, the federal government and 47 states had passed laws against child pornography.[110] The Court held that a state could ban sexual images of children even if they were not obscene under *Miller*.[111] Its reasoning focused on harm and economics. It held that states have a compelling interest in protecting children's physical and psychological welfare, noting the "sacred" duty of caring for children and not subjecting them to abuse.[112]

In just one footnote did the Court mention that the distribution of child pornography invades children's "privacy interests"—noting this alongside future sexual and relational dysfunctions.[113] The Court did say that distribution "is intrinsically related to the sexual abuse of children" in that the images are "a permanent record of the children's participation" and "the harm to the child is exacerbated by their circulation."[114] However, the Court then moved on to saying that it is hard to stop exploitation by targeting producers alone.[115] Neither rationale straightforwardly identified viewing child pornography as intrinsically harming a child or violating

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synthesis of *Stanley* and *Slaton*, see United States v. Reidel, 402 U.S. 351, 359 (1971) (Harlan, J., concurring) (understanding *Stanley* as concerning means of enforcement).

107. Erznoznik v. City of Jacksonville, 422 U.S. 205, 213 (1975).

108. *Id.*

109. New York v. Ferber, 458 U.S. 747, 749 (1982). For statutory changes from the mid-1970s to the late-1990s, see Free Speech Coal. v. Reno, 198 F.3d 1083, 1087–91 (9th Cir. 1999), *rev'd*, 535 U.S. 234 (2002).

110. *Ferber*, 458 U.S. at 749.

111. *Id.* at 753.

112. *Id.* at 756–57 (quoting N.Y. Penal Law § 263.00 (McKinney 1977)).

113. *Id.* at 758 n.9.

114. *Id.* at 759.

115. *Id.* at 759–61. For a critique of *Ferber*'s economic analysis, see Nadine Strossen, United States v. Stevens*: Restricting Two Major Rationales for Content-Based Speech Restrictions*, 2009–10 CATO SUP. CT. REV. 67, 96.

a child's rights. Besides, the Court continued, depictions of children engaged in sexual conduct lack social value.[116]

Justice Brennan took issue with this last point. He found it "inconceivable how a depiction of a child that is itself a serious contribution to the world of art or literature or science" could be unprotected.[117] For Justice Stevens, too, context was everything: "a serious work of art, a documentary on behavioral problems, or a medical or psychiatric teaching device, might include a scene from one of these films."[118] Additionally, the state's interest in preventing sexual abuse was lessened for child pornography produced in a foreign country.[119] For both Justices, only the value of the end product and whether *American* children were sexually abused mattered. Justice O'Connor disagreed with them, but discussed only harm and not rights: "a 12-year-old child photographed while masturbating surely suffers the same psychological harm whether the community labels the photograph 'edifying' or 'tasteless.'"[120] Clearly, the *Ferber* Court was aware of children's privacy rights, and just as clearly, none of the Justices thought such rights deserved more than parenthetical references.

Justices followed the approaches found in *Ferber* in 1989's *Massachusetts v. Oakes*.[121] At issue was a law that banned "adults from posing or exhibiting nude minors."[122] The defendant had taken ten photographs of his 14-year-old stepdaughter, topless, lounging on a bar, "clad only in a red and white striped bikini panty and a red scarf."[123] A plurality of the Court held the case moot.[124] Justice Brennan dissented. He did describe as compelling the state's interest in preventing sexual exploitation and abuse.[125] However, he denied that states have *any* interest in "prohibiting adults from allowing minors to appear naked in photographs, films, and pictures with their genitals or, in the case of adolescent girls, their breasts less than opaquely covered."[126] There is a First Amendment right to depict adolescents in "nonexploitative" images such as "poolside shots" as well as legitimate "acting or professional modeling by teenagers."[127] Justice Brennan cited an amicus brief listing "nonpornographic photographs, films, and paintings" of children.[128] The brief celebrated the defendant's "pin-up" photographs of his teenage stepdaughter.[129] It praised using children for "the expression of erotic

116. *Ferber*, 458 U.S. at 762.
117. *Id.* at 777 (Brennan, J., concurring in the judgment).
118. *Id.* at 778 (Stevens, J., concurring in the judgment).
119. *Id.* at 779.
120. *Id.* at 774–75 (O'Connor, J., concurring).
121. Massachusetts v. Oakes, 491 U.S. 576 (1989).
122. *Id.* at 578.
123. *Id.* at 580 (plurality op. of O'Connor, J.).
124. *Id.* at 585.
125. *Id.* at 592 (Brennan, J., dissenting).
126. *Id.*
127. *Id.* at 593.
128. *Id.* at 593 n.3.
129. Brief for Law & Humanities Institute as Amicus Curiae in Support of Respondent at *3, Massachusetts v. Oakes, 491 U.S. 576 (1988) (No. 87-1651).

sentiment on the part of photographer, subject, or both."[130] It said that child nude art depicts "the somber beauty" of "an emerging and uncorrupted sexuality."[131] Teenagers should be free to pose topless for "a modeling portfolio; or for exhibition in a commercial gallery, an art magazine, a book of photographs of the nude, or the family photo-album; or for their own use or experimental purposes, or for uses by the child."[132]

Liberalism may have kept Justice Brennan and the *amicus* from seeing children as different from adults, including in terms of their ability to consent. These authorities did not even address precedent holding that a state has *parens patriae* powers to protect vulnerable people.[133] Such omissions disturbed Justice Scalia, who thought purportedly "artistic" imagery could easily qualify as exploitative.[134] He also doubted that many innocent family photographs depict genitalia.[135]

Justice Brennan and the *amicus* saw modeling and acting—in both family and commercial settings—as places of pure and consensual artistic eroticism. It is worth noting that the 1989 *Oakes* decision came at the tail end of a pro-pedophilia campaign. In the 1970s, prominent Francophone intellectuals protested age-of-consent laws as heteronormative, while one scholar has described that decade's elite sexual mores as "like the casual rules of a paedophile playground."[136]

Arts and entertainment are no longer seen as a setting for happy, sexually charged encounters between adults and children.[137] Revelations of Hollywood producer Harvey Weinstein's abuses released a hurricane of claims of sexual predation.[138] A claim for $100 million was brought by Olivia Hussey and Leonard Whiting for a teenage nude scene in the 1968 film *Romeo and Juliet*.[139] Their complaint said that the director lied to them twice about how they would appear,

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130. *Id.* at *5.

131. *Id.* at *5–6.

132. *Id.* at *23.

133. Addington v. Texas, 441 U.S. 418, 426 (1979); Andrea Slane, *From Scanning to Sexting: The Scope of Protection of Dignity-Based Privacy in Canadian Child Pornography Law*, 48 OSGOODE HALL L.J. 543, 564 (2010).

134. Massachusetts v. Oakes, 491 U.S. 576, 589 (1989) (Scalia, J., concurring in the judgment in part and dissenting in part).

135. *Id.* at 590.

136. Jean Bérard & Nicolas Sallée, *The Age(s) of Consent: Gay Activism and the Sexuality of Minors in France and Quebec (1970–1980)*, 42 CLIO 99 (2015); David Pilgrim, *The Sexual Norms of the 1970s Now Look Like the Casual Rules of a Paedophile Playground*, THE CONVERSATION (July 11, 2014), https://theconversation.com/the-sexual-norms-of-the-1970s-now-look-like-the-casual-rules-of-a-paedophile-playground-28999 [https://perma.cc/QXT2-5QK2].

137. *See* Jessica N. White, Comment, *Kiddie Porn in the Gallery: Defending the Artist's Corpus on Invading the Corporal Integrity of the Subject*, 18 VILL. SPORTS & ENT. L.J. 683, 684–85 (2011) (discussing apparent sexual exploitation in art depicting two prepubescent girls made by their father); David Isaacs & Thomas G. Isaacs, *Is Child Nudity in Art Ever Pornographic?*, 46 J. PAEDIATRICS & CHILD HEALTH 369, 370–71 (2010).

138. Sara Khorasani, *Harvey of Hollywood: The Face that Launched a Thousand Stories*, 41 HASTINGS COMM. & ENT. L.J. 103, 104–05 (2019).

139. Timothy Bella & Annabelle Timsit, *'Romeo and Juliet' Stars Sue for Sexual Abuse over 1968 Film's Nude Scene*, WASH. POST (Jan. 4, 2023), https://www.washingtonpost.com/arts-entertainment/2023/01/04/romeo-juliet-lawsuit-nude-scene-hussey-whiting [https://perma.cc/85MC-FF7A].

then warned of career consequences if they refused.[140] Perhaps something of the old attitudes lingers: that scene was recently cited by Judge Easterbrook as an example of normal artistic child nudity.[141] By and large, though, naivety of the sort shown by Justice Brennan and the *amicus* is no longer plausible.[142]

Despite these cultural changes, the Supreme Court has yet to articulate a rights framing for understanding child pornography. In 1990's *Osborne v. Ohio*, the Court considered whether a state could prohibit the private possession of child pornography.[143] Distinguishing *Stanley*, it held that a state has much stronger interests in this context.[144] However, the Court again relied on harm and economics.[145] The Court said possession bans were "necessary" mainly because production had escaped suppression.[146] They would reduce harm because images of abuse "haunt[]" the children depicted and some pedophiles use child pornography to "seduce other children."[147] The Court still did not see the very act of viewing as intrinsically violating a right. Justice Brennan dissented, citing *Stanley*'s holding that private possession cannot be banned in order to target production.[148] He also disagreed that a child could be harmed by an image the child is unaware of.[149] States had other options for curbing "sexual exploitation."[150] He did not, then, understand viewing child pornography to be exploitation per se.

More recent decisions have not articulated a rights rationale, either. In 2002's *Ashcroft v. Free Speech Coalition*, the Court struck down as overbroad a ban on non-obscene sexual imagery that purports to depict children, but in fact features

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140. *See id.* The claim was dismissed on First Amendment and procedural grounds. *See Actors Lose Romeo & Juliet Nude Lawsuit*, BBC (May 26, 2023), https://www.bbc.com/news/entertainment-arts-65725714 [https://perma.cc/GAF5-AAMF]; *cf.* Hillel Aron, *Judge Tosses Second Lawsuit over Nude Scene in 1968 Filming of 'Romeo and Juliet'*, COURTHOUSE NEWS SERV. (Oct. 21, 2024), https://www.courthousenews.com/judge-tosses-second-lawsuit-over-nude-scene-in-1968-filming-of-romeo-and-juliet [https://perma.cc/9WYM-CR5L]. Hussey did downplay the scene in a 2018 interview. *See* Roxy Simons, *What 'Romeo and Juliet' Actors Said About 1968 Film Before Suing Paramount*, NEWSWEEK (Jan. 4, 2023), https://www.newsweek.com/romeo-juliet-actors-olivia-hussey-leonard-whiting-suing-paramount-child-abuse-1771092 [https://perma.cc/H7N9-CW9U].

141. *See* United States v. Donoho, 76 F.4th 588, 602 (7th Cir. 2023) (Easterbrook, J., concurring).

142. For a late article with a naïve approach, see Harris Mirkin, *The Social, Political, and Legal Construction of the Concept of Child Pornography*, 56 J. HOMOSEXUALITY 233, 251, 254 (2009) (describing much child pornography as not harmful, including imagery depicting Eastern European child prostitutes and "girl models in Japan" who "are often treated like stars and have Web sites devoted to them").

143. Osborne v. Ohio, 495 U.S. 103, 108 (1990). The acts of possession and viewing are often conflated, but images sometimes "exist only in cyberspace" rather than on a browser cache or a hard drive. Rebecca Michaels, Note, *The Insufficiency of Possession in Prohibition of Child Pornography Statutes: Why Viewing a Crime Scene Should Be Criminal*, 30 W. NEW ENG. L. REV. 817, 832 (2008). Viewing is the offense's heart, though possession is often circumstantial evidence, facilitates it, poses a risk of blackmail, and should also continue to be banned.

144. *Osborne*, 495 U.S. at 108.

145. *Id.* at 109–10.

146. *Id.* at 110–11.

147. *Id.* at 111.

148. *Id.* at 145 n.19 (Brennan, J., dissenting).

149. *Id.* at 144 n.18 (brackets and internal citation omitted).

150. *Id.* at 142, 144–45.

youthful-looking adult performers or digital imagery.[151] The Court discussed harm (real) children suffer from pornography, but not children's rights.[152] In 2008's *United States v. Williams*, the Court upheld a ban on pandering or soliciting child pornography, describing such imagery as valueless and harmful.[153] Dissenting, Justice Souter revived *Osborne*'s instrumentalism, saying that child pornography bans rest "not on the content of the picture but on the need to foil the exploitation of child subjects."[154] In 2010's *United States v. Stevens*, the Court apparently reduced the role of value in free-speech analysis.[155] However, it did say that child pornography is "integral" to criminal conduct.[156] This reinforced the emphasis on harm. In dissent, Justice Alito followed *Osborne* and wrote that the *underlying* sexual abuse *depicted by* child pornography causes "severe personal injury."[157]

Most recently, in 2014's *Paroline v. United States*, the Court addressed restitution as part of a child pornography criminal sentence.[158] It again focused on harm.[159] Its opinion noted that the victim was sexually abused as a girl, underwent therapy, and her life improved.[160] However, when she was seventeen, she learned that images of her abuse were circulating online.[161] She was afraid this could cause her fresh humiliation.[162] She also described the harm she suffered each time someone viewed the images: "It hurts me to know someone is looking at them—at me . . . now I am there forever in pictures that people are using to do sick things."[163] She felt like she was "being abused over and over and over again."[164] The Court recognized that "every viewing of child pornography is a repetition of the victim's abuse."[165] Dissenting, Justice Sotomayor did say that viewing child pornography "would amount to an intentional invasion of privacy tort—and an extreme one at that."[166] The Court thus came closer to articulating a right by acknowledging the abusiveness inherent in every viewing. Still, a fully elaborated rights rationale remains elusive. The Court's precedent sometimes treats child pornography as little more than an incentive for what it considers the

151. Ashcroft v. Free Speech Coal., 535 U.S. 234, 239–40, 255–56, 258 (2002).

152. *See id.* at 244–45, 249, 256; *see also id.* at 262 (O'Connor, J., concurring in the judgment in part and dissenting in part).

153. United States v. Williams, 553 U.S. 285, 288, 307 (2008).

154. *Id.* at 310 (Souter, J., dissenting).

155. United States v. Stevens, 559 U.S. 460, 464 (2010).

156. *Id.* at 471 (in obiter dicta).

157. *Id.* at 493 (Alito, J., dissenting).

158. Paroline v. United States, 572 U.S. 434, 440, 448 (2014).

159. *Id.* at 440–41.

160. *Id.* at 440. This article uses "victim," as it is a familiar legal term. *But see* Rachel A. Rein, Note, *Suffering at the Margins: Applying Disability Critical Race Studies to Human Trafficking in the United States*, 42 COLUM. J. GENDER & L. 183, 184 n.4 (2022) (explaining the use of "survivor" instead).

161. *Paroline*, 572 U.S. at 440.

162. *Id.* at 440–41.

163. *Id.* at 441.

164. *Id.*

165. *Id.* at 457.

166. *Id.* at 483 (Sotomayor, J., dissenting); *see also id.* at 484 n.4.

real problem—physical child abuse—and sometimes as intrinsically harmful. It does not identify viewing child pornography as intrinsically a rights violation.

II. IGNORING RIGHTS CAUSES PROBLEMS

> The Court's child pornography jurisprudence departs so dramatically from the contours of obscenity law . . . .
> Amy Adler (2001)[167]

The Supreme Court's decisions have left child pornography as the main functioning part of a mostly obsolete obscenity regime. They allow for government control unusual within First Amendment jurisprudence, are difficult to reconcile with liberal commitments, ignore children's subjectivity, and fail to reflect society's assessment of viewing child pornography.

A. The Collapsed Obscenity Regime

The Supreme Court's treatment of child pornography as a subset of obscenity makes historical sense. As *Pavesich* noted, "wherever it was legally possible to base a judgment upon principles which had been recognized by a long course of judicial decision, this has been done."[168] However, that has left child pornography law in a peculiar position as obscenity restrictions have collapsed.

Obscenity law always faced implementation problems. Leading feminist scholar Catherine MacKinnon notes that prosecutions made challenged works into best-sellers; as she quipped (in the early days of the internet, no less), they helped the pornography industry quadruple in size.[169] In the 1990s, anti-obscenity enforcement started to decline.[170] A controversial trial involving photographs by Robert Mapplethorpe contributed to a cultural shift in favor of risqué material.[171] Pornography proliferated during the Clinton Administration.[172] This made it less likely that images would satisfy *Miller*, which defines obscenity in light of community standards.[173] The George W. Bush Administration enforced obscenity laws only against "extremely hard-core pornography," while the Obama Administration dropped even these efforts.[174] Obscenity laws go largely unenforced except where

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167. Amy Adler, *Inverting the First Amendment*, 149 U. PA. L. REV. 921, 938–39 (2001).

168. Pavesich v. New Eng. Life Ins. Co., 122 Ga. 190, 213 (1905).

169. CATHERINE A. MACKINNON, ONLY WORDS 87 (1996). MacKinnon helped draft a 1984 Indianapolis law classifying much pornography as sex discrimination; it was struck down under the First Amendment. *See* Am. Booksellers Ass'n v. Hudnut, 771 F.2d 323, 324–25, 334 (7th Cir. 1985).

170. Amy Adler, *The Shifting Law of Sexual Speech: Rethinking Robert Mapplethorpe*, 2020 U. CHI. LEGAL F. 1, 25 (2020).

171. *Id.* at 3.

172. *Id.* at 26.

173. *Id.*

174. *Id.*

minors are involved and, at the state level, against businesses not authorized to sell such material.[175]

Is this good? Liberals are rightly skeptical about policing thoughts and feelings.[176] *Stanley* is in line with traditional ideas about tolerating private vices, but the government also has an interest in maintaining "pristine and proper public spaces."[177] It can be true both that "public morality does not justify invading the sphere of privacy" and that once activity becomes a public concern—in terms of location, commerce, government recognition, or the involvement of people without full autonomy—the law should be able to say, "No thank you; we don't do that here."[178]

In any event, as a practical and doctrinal matter, obscenity laws have retreated to the margins.[179] Deserting child pornography on an enforcement island is not necessarily a problem. It is, though, another reminder of the differences between child pornography doctrine and its origins in obscenity law. As Amy Adler has contended, the harm from viewing child pornography "seems to reside more in the realm of a privacy violation (akin to revenge porn) and less in the kind of harm on which *Ferber* was premised."[180] Child pornography law is adrift.

B. Child Pornography Exceptionalism

This doctrinal isolation has effects. Unlike obscenity, material can be child pornography regardless of its context within a work.[181] *Ferber*'s holding that prohibitable child pornography includes work that is not legally obscene invites "the categorization and regulation of speech based on how people might respond to it."[182] Does that make sense? Adler says no, inviting readers to consider a hidden-camera video of two girls bathing taken by a voyeur who then uses the recording for sexual gratification.[183] The recording is clearly violative; it is also legally considered child pornography, even though the footage features innocent activity.[184]

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175. *Id.* at 3; *see also* Geoffrey R. Stone, *Sexual Expression and Free Speech: How Our Values Have (D)evolved*, 43 HUM. RTS. 22, 24 (Oct. 2018), https://www.americanbar.org/groups/crsj/publications/human_rights_magazine_home/the-ongoing-challenge-to-define-free-speech [https://perma.cc/WFR6-JFT8] ("The law has simply been overwhelmed by technology and by changing social mores."); Jennifer M. Kinsley, *The Myth of Obsolete Obscenity*, 33 CARDOZO ARTS & ENT. L.J. 607, 638–39 (2015); Amy Adler, *All Porn All the Time*, 31 N.Y.U. REV. L. & SOC. CHANGE 695, 700–01 (2007).

176. Andrew Koppelman, *Does Obscenity Cause Moral Harm?*, 105 COLUM. L. REV. 1635, 1639 (2005).

177. Jennifer M. Kinsley, *Sexual Privacy in the Internet Age: How Substantive Due Process Protects Online Obscenity*, 16 VAND. J. ENT. & TECH. L. 103, 118 (2013).

178. *Id.* at 120; John Witte, Jr., *Why No Polygamy*, *in* THE CONTESTED PLACE OF RELIGION IN FAMILY LAW 446, 466 (Robin Fretwell Wilson ed., 2018). Whether internet obscenity is public per se is a tricky question. *See* Kinsley, *supra* note 177, at 125. Of course, constitutional rights and practical considerations can limit public-morals regulation.

179. Koppelman, *supra* note 176, at 1639.

180. Adler, *supra* note 170, at 34 n.142.

181. *Id.* at 32; Adler, *supra* note 167, at 940.

182. Adler, *supra* note 167, at 926; *see also* discussion *supra* Part I.B.1.

183. Adler, *supra* note 167, at 959.

184. *Id.*

Child pornography law focuses on how images can be used, not how they are created. That poses a problem: *any* picture of a child might have sex appeal for a pedophile, who thus becomes "a nightmarish sort of King Midas: everything he touches turns to smut."[185]

Adler wonders why material can be banned if there is no abuse in its production and the child may not even know of the image's existence.[186] After all, "a picture of a piece of fruit is not the fruit itself; an image of a child is not the same thing as the real child it portrays"; child pornography law "criminalizes pictures in which there was no underlying crime."[187] Adler, then, follows *Ferber* and *Osborne* in looking for some abuse extrinsic to viewing the image and, finding none, criticizes their holdings.[188] Similarly, Carissa Byrne Hessick has called the harm from viewing child pornography "purely derivative."[189] She concludes that equating child pornography to child abuse is hyperbolic.[190] These critiques are onto something. As Judge Kozinski wrote (before retiring amidst allegations involving the sharing of sexual images), "obscenity precedents just don't work in the child pornography context."[191]

However, Adler also conceded that privacy rights might "be a particularly strong and independent justification" for banning child pornography.[192] This article aims to show how. Adler sharply distinguished harm that "happened to the child" from "the possibility of seeing a picture in a certain way, in how someone might perceive the child."[193] Such a distinction is too broad, as discussed below in the next section. Still, Adler is correct that it is time to fundamentally rethink child pornography doctrine.

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185. *Id.* at 960.

186. *Id.* at 942 n.92.

187. *Id.* at 982, 987–88.

188. *See id.* at 985.

189. Carissa Byrne Hessick, *Disentangling Child Pornography from Child Sex Abuse*, 88 WASH. U. L. REV. 853, 865 (2011); *see also* John Quigley, *Child Pornography and the Right to Privacy*, 43 FLA. L. REV. 347, 370 (1991) (writing that the state's interest in banning child pornography "is to protect children from the harm suffered from being posed in sexual conduct and from having the depictions circulated in commerce," but "an invasion into the privacy of the home is not a narrowly tailored means of effectuating that interest."). I recently coauthored an amicus brief with Professor Hessick on an unrelated issue.

190. Hessick, *supra* note 189, at 865.

191. United States v. X-Citement Video, Inc., 982 F.2d 1285, 1294 (9th Cir. 1992) (Kozinski, J., dissenting in part), *rev'd*, 513 U.S. 64 (1994); *see also* Matt Zapotosky, *Federal Appeals Judge Announces Immediate Retirement Amid Probe of Sexual Misconduct Allegations*, WASH. POST (Dec. 18, 2017), https://www.washingtonpost.com/world/national-security/federal-appeals-judge-announces-immediate-retirement-amid-investigation-prompted-by-accusations-of-sexual-misconduct/2017/12/18/6e38ada4-e3fd-11e7-a65d-1ac0fd7f097e_story.html [https://perma.cc/5NRX-U292].

192. Adler, *supra* note 167, at 989 n.309; *see also* Adler, supra note 170, at 34 n.142; *cf.* Adler, *supra* note 167, at 990 (noting dignitary and reputational questions left unexplored by the Supreme Court).

193. Adler, *supra* note 167, at 995.

C. Liberal Critiques

A fresh start is necessary in part because Adler's liberalism-driven concerns are reasonable. *Stanley* is sound when it says:

> If the First Amendment means anything, it means that a State has no business telling a man, sitting alone in his own house, what books he may read or what films he may watch. Our whole constitutional heritage rebels at the thought of giving government the power to control men's minds.[194]

As Justice Brennan put it, Plato's vision of citizens being formed through government censorship "is a brilliant one, but it is not our own."[195] Justice Brennan's *Osborne* dissent, too, correctly notes that *Stanley* protected the home from efforts to fight the production and distribution of obscenity, and that the government could use more tailored means to combat physical child abuse.[196]

America's liberal constitution tasks government with determining "where the rights of one end and those of another begin."[197] By not recognizing any right held by children depicted in pornography, Supreme Court precedent fails to set the proper frame. Perusing information is normally a right. When no countervailing one appears, banning the viewing of child pornography becomes needlessly hard to justify.

D. Decentering Victims

There are two other normative reasons to rethink child pornography law. Precedent does not take seriously enough either the young people depicted in child pornography or the nature of social opposition to such images. Supreme Court majorities have said that children suffer harm from being in child pornography and that viewing it incentivizes its production. Some other jurists, though, have even cast topless teenage girls as happy participants in their stepfathers' "pin-up" photographs. Either way, children are not understood as bearers of rights. Their personhood is missing, as are related ideas like dignity, autonomy, consent, equality, liberty, respect, personal worth, and privacy.[198]

To be sure, the Court's focus on harm is in keeping with much criminal jurisprudence. No one expects the average murder case to elaborate a theory of the right to life, or one about burglary to theorize about property rights. But is such an omission justifiable here? No. Ignoring rights has left the Court unclear as to whether the harm caused by child pornography is intrinsic to the act of viewing it or whether the real problem is some extrinsic harm, like exploitative production.

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194. Stanley v. Georgia, 394 U.S. 557, 565 (1969).
195. Bowen v. Gilliard, 483 U.S. 587, 632 (1987) (Brennan, J., dissenting).
196. Osborne v. Ohio, 495 U.S. 103, 140 (1990) (Brennan, J., dissenting).
197. W. Va. State Bd. of Educ. v. Barnette, 319 U.S. 624, 630 (1943).
198. *See* Anna High, *Sexual Dignity and Rape Law*, 33 YALE J.L. & FEMINISM 1, 4, 7 (2022).

What is more, as discussed above in Part I.A.2, children have long been objects of solicitude, but not full legal persons who hold rights. Child pornography doctrine, too, has been *about* children without truly being about *them*. This is concerning. Anna High recalls that there was a time when rape victims "were objectified as sites of a harm done *to men*" (their fathers and husbands).[199] There was concern about harm, but women and girls were not fully recognized as rights-bearing people.[200] Such a status has still not arrived for child pornography's victims. Children are treated as "objects of concern," not subjects.[201] It matters little that child pornography law is "about them."[202] Children still lack "the right to possess rights."[203] After all, pecuniary interests and chattel can suffer legal harm, too. Only rights affirm that children are fully human.[204] There are even times when children are seen as vicariously suffering harm really done to society. Judge Posner argued that children are not "the victims" protected by child pornography laws because what really motivates these is society's "sheer disgust" at pedophilia.[205] His statutory interpretation may well have been right: Congress can neglect children's rights just like the Supreme Court can. But that is disturbing, too.

Part of the reason for failing to recognize rights in this context is surely the double marginalization of girls as females and as minors.[206] While boys and girls are both depicted in child pornography, juvenile females are magnitudes likelier to be sexually exploited than are boys.[207] Issues disproportionately affecting girls are often conflated with those affecting either children writ large or women.[208] Girls are certainly objects of sexual regulation.[209] But legal discourse does not speak in terms of them having rights. Upfronting rights is part of recognizing children's, and girls', full humanity.

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199. *Id.* at 9.

200. *Id.*

201. Michael Freeman, *Why It Remains Important to Take Children's Rights Seriously*, *in* CHILDREN'S RIGHTS: PROGRESS AND PERSPECTIVES 6 (Michael Freeman ed., 2011) [hereinafter Freeman 2011].

202. *Id.* at 18.

203. *Id.* at 9.

204. *Id.* at 8.

205. United States v. Sherman, 268 F.3d 539, 550, 552 (7th Cir. 2001) (Posner, J., dissenting from denial of rehearing en banc). The government in *Sherman* sent the defendant child pornography as part of a sting operation, and as the Seventh Circuit noted, that is incompatible with understanding the act of viewing child pornography as an inherent rights violation. *See id.* at 548–50.

206. Nura Taefi, *The Synthesis of Age and Gender: Intersectionality, International Human Rights Law and the Marginalisation of the Girl-Child*, *in* Freeman 2011, *supra* note 201, at 120.

207. David Finkelhor et al., *The Prevalence of Child Sexual Abuse with Online Sexual Abuse Added*, 149 CHILD ABUSE & NEGLECT 106634, 106637 (2024); Ateret Gewirtz-Meydan & David Finkelhor, *Sexual Abuse and Assault in a Large National Sample of Children and Adolescents*, 25 CHILD MALTREATMENT 203, 207 (2019).

208. Taefi, *supra* note 206, at 120; *cf.* Miller-McLemore, *supra* note 79, at 5 ("Even in the best feminist theological scholarship on family and mutuality, children remained mostly a tough reality with which women have had to deal.").

209. *See* Taefi, *supra* note 206, at 133.

E. Disconnect from Social Morality

Finally, Supreme Court precedent is increasingly divorced from common sense. Viewing child pornography may be seen as a mere vice when considered in terms of the lust that can motivate it rather than the perspective of the children depicted.[210] However, a recent study found that 72% of subjects thought of child pornography as "directly," not "indirectly," "responsible for creating child victims."[211] Society may well recognize the nature of the evil of child pornography better than does the Supreme Court.

III. CHILDREN'S NEGATIVE RIGHT TO INTIMATE PRIVACY

> The inviolability of the person is as much invaded
> by a compulsory stripping and exposure as by a blow.
> — *Union Pac. Ry. Co. v. Botsford*, 141 U.S. 250, 252 (1891)

The law should recognize a negative right protecting children's bodily and sexual privacy. This section discusses rights' role in a liberal criminal justice system before situating this proposal among different categories of rights. Then, it turns to why intimate and bodily privacy are important. After that, it sets out the proper reach of the right proposed here. The next question is how children can be said to hold that right. This section closes by evaluating tension between paternalism and autonomy.

A. Liberal Criminal Law

A liberal constitutional order limits criminal law's reach, and "punishing consenting adults for private acts" is a policy of more recent vintage than many might suppose.[212] However, penal law still has important roles to fill, including safeguarding rights. There is no one list of all the possible rights a liberal criminal order could protect. Descriptively speaking, personal moral rights become legal rights "if there is some recognition of their importance by the rest of society and consequently the imposition of correlative legal duties on others."[213] Constitutionally speaking, rational deliberation by citizens, lawmakers, and judges gives rights form and effect.

Normatively speaking, reality, philosophy, and history give guidance and set outer limits in identifying rights. For instance, the Declaration of Independence says governments must protect the rights to "Life, Liberty and the pursuit of Happiness."[214] Similarly, in Thomas Jefferson's preamble to the draft Virginia

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210. McGlynn et al., *supra* note 5, at 25, 28.

211. Chad M. S. Steel et al., *Public Perceptions of Child Pornography and Child Pornography Consumers*, 51 ARCHIVES SEXUAL BEHAV. 1173, 1177, 1180 (2022).

212. Lawrence v. Texas, 539 U.S. 558, 570 (2003); *see also* Cavedon, *supra* note 3, at 1576 ("For all the (many) anachronisms in modern liberal ideology, armed government agents kicking in people's front doors to stop them from getting high and raiding the backyard grow sites of cancer patients are historical innovations.").

213. JANE FORTIN, CHILDREN'S RIGHTS AND THE DEVELOPING LAW 15 (3d ed. 2009).

214. *Declaration of Independence: A Transcription*, NAT'L ARCHIVES (accessed June 5, 2024), https://www.archives.gov/founding-docs/declaration-transcript [https://perma.cc/Z2ZR-EUXR]. On

criminal code of 1778, he says that penal law is necessary because of people "resigning themselves to the dominion of inordinate passions" who "commit violations on the lives, liberties and property of others."[215] Looking to Jefferson and John Stuart Mill, Markus Dirk Dubber has suggested that a liberal order does not punish every sort of "pain, discomfort, or unease," but rather, harm to personhood.[216]

Does viewing child pornography qualify as a rights violation? Yes. It injures core personal interests. The next section discusses the harm child pornography does to the dignity, autonomy, and development of those it depicts. It is the lustful exploitation of another person's body, even if mediated through images.

B. What Sort of Right

People have a longstanding legal interest in intimate privacy, dating back at least to Roman law.[217] Its recognition today is a matter of articulating how this ancient right applies to changing circumstances—especially the existence of child pornography in a digital world.[218] The right proposed here is not a constitutional right per se, as it is claimed against private actors.[219] Civil law has already begun to recognize this right and it is implicit in some criminal law as well.

Courts should not graft this right onto existing laws from nothing. If Judge Posner is right that federal child pornography statutes do not reflect this right, then they should be amended.[220] However, attorneys defending the constitutionality of child pornography laws should explain their importance for protecting children's rights, thereby humanizing victims and recognizing the valid liberal justification for prohibition.

The right proposed here is narrow. Some theorists have proposed that teenagers should have rights to broad sexual autonomy.[221] However, as discussed below,

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19th-century European syntheses of liberalism and natural law by criminal law scholars Cesare Beccaria and Francesco Carrara, see Mike C. Materni, *The 100-Plus-Year-Old Case for a Minimalist Criminal Law (Sketch of a General Theory of Substantive Criminal Law)*, 18 NEW CRIM. L. REV. 331, 344–46 (2015).

215. Markus Dirk Dubber, *Toward a Constitutional Law of Crime and Punishment*, 55 HASTINGS L.J. 509, 537 (2004) (quoting Thomas Jefferson, A Bill for Proportioning Crimes and Punishments, in THE COMPLETE JEFFERSON 90, 90–91 (Saul K. Padover ed., 1943) (1779)).

216. *Id.* at 568.

217. *See* discussion *supra* Part I.A.1.

218. *Cf.* Pavesich v. New Eng. Life Ins. Co., 122 Ga. 190, 194 (1905).

219. *But see* RANDY E. BARNETT & EVAN D. BERNICK, THE ORIGINAL MEANING OF THE FOURTEENTH AMENDMENT: ITS LETTER AND ITS SPIRIT 319–51 (2021) (arguing that the Equal Protection Clause imposes on governments positive obligations to protect natural rights).

220. *Cf.* United States v. Sherman, 268 F.3d 539, 552 (7th Cir. 2001) (Posner, J., dissenting from denial of rehearing en banc).

221. Blaire Bayliss, Comment, *The Kids Are Alright: Teen Sexting, Child Pornography Charges, and the Criminalization of Adolescent Sexuality*, 91 U. COLO. L. REV. 251, 269 (2020); Moira Aikenhead, *A "Reasonable" Expectation of Sexual Privacy in the Digital Age*, 41 DALHOUSIE L.J. 273, 288–90 (2018); MacKenzie Smith, Note, *You Can Touch, But You Can't Look: Examining the Inconsistencies in Our Age of Consent and Child Pornography Laws*, 87 S. CAL. L. REV. 859, 887–90 (2014).

the liberal model of the autonomous actor is the wrong way to understand children's rights. Certain rights safeguard dignity. Part VI.C below discusses that very malleable idea, but the rights framework proposed here does not depend on any one theory of it.[222]

The right this article articulates is protective (negative), not facilitative (positive), and is based on rights of exclusion.[223] Familiar in the property context, these rights reflect the "total exclusion of the right of any other" to access what is one's own.[224] Negative rights are old-fashioned and have even been criticized as sexist and classist.[225] Understood only as limits on government coercion, they have been used to immunize violence committed in private spaces.[226] Moira Aikenhead also notes that females' privacy rights have often been invoked to protect only a sexist notion of modesty.[227]

Modesty is not as hopelessly outdated as some claim.[228] Aikenhead notes that some critics of privacy rights do not want to imply that "disclosures related to women's bodies or sexuality . . . are inherently shameful."[229] Still, "[e]ven people who have nothing rationally to be ashamed of can be mortified" by bodily exposure.[230] To quote Judge Posner's memorable example: "Although it is well known that every human being defecates, no adult human being in our society wants a newspaper to show a picture of him defecating."[231]

Children's bodily privacy should be especially guarded. Notably, Aikenhead refers to *women*, not girls. Children's negative right to intimate privacy should not be downplayed for the benefit of some hoped-for sexual revolution for adults, nor should children's need for protection be sacrificed in the name of adults' autonomy. As Danielle Citron contends, part of the old patriarchy's problem was the *lack* of sexual privacy for battered women and girls.[232] Privacy rights should be equalized, not erased.[233]

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222. High, *supra* note 198, at 3.

223. Aikenhead, *supra* note 221, at 282.

224. 2 WILLIAM BLACKSTONE, COMMENTARIES *2; *see also* Heidi Reamer Anderson, *Plotting Privacy as Intimacy*, 46 IND. L. REV. 311, 315 (2013) (noting partial overlap between bodily and property privacy).

225. *See* Aikenhead, *supra* note 221, at 283.

226. *Id.*

227. *Id.*

228. *See* discussion *infra* Part VI.B.

229. Aikenhead, *supra* note 221, at 283.

230. Haynes v. Alfred A. Knopf, Inc., 8 F.3d 1222, 1229 (7th Cir. 1993) (per Posner, J.); *see also* RESTATEMENT (SECOND) OF TORTS § 652D cmt. b (AM. LAW. INST. 1965) ("Every individual has some phases of his life and his activities and some facts about himself that he does not expose to the public eye . . . . [s]exual relations, for example . . . .").

231. *Haynes*, 8 F.3d at 1229.

232. Danielle Keats Citron, *Sexual Privacy*, 128 YALE L.J. 1870, 1877 (2018).

233. *Id.*

Protecting old-fashioned modesty with an old-fashioned negative right would be a positive development.[234] This proposal should not foreclose other approaches, but there are times when saying less is enough.[235] Hopefully, the approach proposed here is conventional enough to garner support and so strengthen an important area of law while also nudging more consideration of privacy rights and children's rights.

C. Carnal Knowledge

The law should protect the negative right to intimate privacy—or to adopt a familiar legal phrase, it should help people shield "carnal knowledge" of themselves.[236] Those words are often considered a mere euphemism for sexual intercourse.[237] However, they reveal deep, important connections between bodies, sexuality, and privacy. The phrase originated from the biblical Book of Genesis. Eve and Adam eat the fruit of the tree of knowledge, then Adam comes to "know" his wife Eve.[238] The Hebrew verb translated as "know" is "*yada*," which means "to know and distinguish between moral categories and to be aware of one's own and another's physical difference (nakedness)."[239] Similarly, the Torah refers to certain sexual crimes as uncovering nakedness.[240] These passages led to the medieval legal term "carnal knowledge," which suggests "that embodied knowledge of oneself and another human being can be attained in the intimacy of lovemaking."[241] Engaging in sexual activity, Michel Foucault wrote, is a way of seeking "secret and profound truths about the individual . . . the structure of his fantasies, the roots of his ego, the forms of his relationship to reality."[242]

Pornography and other forms of sexual exploitation separate this knowledge from interpersonal intimacy. Whether pornography is always immoral depends on judgments that exceed this article's scope.[243] However, Wendy Doniger has

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234. *See* Citron, *supra* note 46, at 1852 ("[I]t is fruitful to continue the project that Warren and Brandeis spearheaded and that Prosser developed.").

235. *Cf.* Pavesich v. New Eng. Life Ins. Co., 122 Ga. 190, 200 (1905) ("It may be said that to establish a liberty of privacy would involve in numerous cases the perplexing question to determine where this liberty ended and the rights of others and of the public began. This affords no reason for not recognizing the liberty of privacy and giving to the person aggrieved legal redress . . . .").

236. *See* WILLIAM L. CLARK & WILLIAM L. MARSHALL, A TREATISE ON THE LAW OF CRIMES 645 (1900), *quoted in* Jill Elaine Hasday, *Contest and Consent: A Legal History of Marital Rape*, 88 CALIF. L. REV. 1373, 1392 n.53 (2000); 4 WILLIAM BLACKSTONE, COMMENTARIES *210.

237. Wendy Doniger, *Carnal Knowledge*, FATHOM ARCHIVE, https://fathom.lib.uchicago.edu/1/777777121879 [https://perma.cc/P5EB-YUAY].

238. *See* Genesis 2–4; Yofi Tirosh & Michael Birnhack, *Naked in Front of the Machine: Does Airport Scanning Violate Privacy?*, 74 OHIO STATE L.J. 1263, 1287 (2013).

239. Doniger, *supra* note 237.

240. *See* Leviticus 18:17.

241. Doniger, *supra* note 237.

242. *Quoted in id.*

243. *Compare* Mary Anne Franks, *"Revenge Porn" Reform: A View From the Front Lines,* 69 FLA. L. REV 1251, 1260 (2017); Danielle Keats Citron & Mary Anne Franks, *Criminalizing Revenge Porn,* 49 WAKE FOREST L. REV. 345, 385–86 (2016); Laura A. Rosenbury & Jennifer E. Rothman, *Sex In and Out of Intimacy*, 59 EMORY L.J. 809 (2010), *with* Gerard V. Bradley, *Prolegomenon on Pornography*,

reasonably said that pornography "denies individuality and reduces sexuality to animality."[244] Exploiters want to "know" their victims, "cut [them] open," and "conquer [them] in [their] sexuality, in [their] hiddenness."[245] Adults can consent to this, but the law forbids subjecting children to it.[246] Turning again to MacKinnon, child pornography lets an abuser feel "[w]hat he felt as he watched you as he used you . . . done again and lived again and felt again."[247] It also lets other people "watch you and get off any time."[248]

The resulting harm is not just embarrassment. It is present even if a child's face is obscured and the image is viewed entirely in private.[249] Granted, a child would not experience *subjective* harm from unknown viewing.[250] But every viewer *objectively* exploits child victims' intimate privacy.[251] Every viewing inflicts injury.[252] Viewings strip children of self-control.[253] Bodily privacy is normally the subject of social regulation reinforced through education and criminal offenses.[254] When nudity is exposed for cosmetic or medical reasons, "an unspoken convention renders the cosmetician or physician's gaze functional or clinical,

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41 HARV. J.L. & PUB. POL'Y 447 (2018); Elizabeth Harmer Dionne, *Pornography, Morality, and Harm: Why* Miller *Should Survive* Lawrence, 15 GEO. MASON L. REV. 611 (2008).

244. Doniger, *supra* note 237; *cf.* Tirosh & Birnhack, *supra* note 238, at 1291–92 ("[S]ubjecting [airport] passengers to a gaze that exposes our nakedness . . . has a destabilizing potential in stripping off the comforting enfolding of culture around our person and demoting us to raw, animalistic, untamed, and uncivilized creatures."); Citron, *supra* note 46, at 236 ("[W]hen individuals' intimate habits are publicly exposed, they may be 'reduced' to nothing more than those habits, their genitals, or a sexual act." (citation omitted)).

245. Doniger, *supra* note 237.

246. United States v. Wiegand, 812 F.2d 1239, 1245 (9th Cir. 1987); *see also* Potuto, *supra* note 1, at 41 (distinguishing adult pornography because of consent, discussed in Part III below).

247. MACKINNON, *supra* note 169, at 4.

248. *Id.*; *see also* Potuto, *supra* note 1, at 32 ("Because pornography remains a present fact, the harm it causes has the capacity to recur in a way that actual sexual abuse—however injurious—does not."); Paroline v. United States, 572 U.S. 434, 441 (2014) (quoting similar thoughts from someone depicted in child pornography).

249. *Contra* Carissa Byrne Hessick, *The Limits of Child Pornography*, 89 IND. L.J. 1437, 1463 (2014).

250. Anthony M. Dillof, *Possession, Child Pornography, and Proportionality: Criminal Liability for Aggregate Harm Offenses*, 44 FLA. ST. U. L. REV. 1331, 1358–59 (2017).

251. *See* Audrey Rogers, *From Peer-to-Peer Networks to Cloud Computing: How Technology Is Redefining Child Pornography Laws*, 87 ST. JOHN'S L. REV. 1013, 1046 (2013) ("The harm that others further down the chain inflict lacks physicality, but they too inflict distinct, actual harm on the child . . . ."); *cf.* Slane, *supra* note 133, at 576 ("By including images wherein the subject cannot be identified, the voyeurism offence views sexual objectification as a collective dignity-based privacy harm.").

252. *Cf.* Potocnik v. Carlson, No. 13-CV-2093, 2016 U.S. Dist. LEXIS 92497, at *7 (D. Minn. July 15, 2016) (describing "the viewing of private information without lawful authority" as closely related to the right to privacy); RESTATEMENT (SECOND) OF TORTS § 652A cmt. b (AM. L. INST. 1977) (describing the right to privacy as keeping people "free from the prying eyes" of others); *contra* Dillof, *supra* note 250, at 1361 (treating viewings as inflicting diminishing harm as the number increases).

253. Tirosh & Birnhack, *supra* note 238, at 1283; *see also* John P. Elwood, Note, *Outing, Privacy, and the First Amendment*, 102 YALE L.J. 747, 763 (1992).

254. Tirosh & Birnhack, *supra* note 238, at 1287–89; *cf.* 1 *Corinthians* 12:23 ("[O]ur less presentable parts are treated with greater propriety . . . .").

neutralizing any potential sexual meanings."[255] Safeguards exist, like medical-examination observers, dressing rooms, patient gowns, and so on.[256] Protections are so ubiquitous that even a leading trade association for pornographic actors advises:

> You . . . don't have to change wardrobe or prep for your scene in view of any of the directors, producers, on-set PA's, camera operators, or even your own scene partner. You can get dressed in a restroom, or separate room by yourself. You can also request no behind-the-scenes personal vids or pics be taken by the crew can be shot[sic] or posted anywhere unless you give them clear consent and permission.[257]

Much nudity "is decidedly not a benign, everyday experience."[258] *Pavesich* said the right to privacy is founded on human nature.[259] It distinguished between the private and the public.[260] The former includes bodily intimacy: without consent, "the body of a person can not be put on exhibition."[261] People have the "right to withdraw from the public gaze."[262] Recall the *iniuria* delict of Roman law.[263] The Supreme Court has even equated "compulsory stripping" with battery.[264] The sexual exploitation of one's naked body, whether in-person or in an image, violates the bodily intimacy at the heart of the right to privacy.[265]

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255. Tirosh & Birnhack, *supra* note 238, at 1290; *see also* Safford United Sch. Dist. No. 1 v. Redding, 557 U.S. 364, 375 (2009) ("Changing for gym is getting ready for play; exposing for a search is responding to an accusation reserved for suspected wrongdoers and fairly understood as so degrading that a number of communities have decided that strip searches in schools are never reasonable . . . ." (internal citation omitted)).

256. Tirosh & Birnhack, *supra* note 238, at 1290–91.

257. *Inspire: Industry Newcomer Support Program*, FREE SPEECH COAL., https://www.freespeechcoalition.com/inspire/performer-protocols [https://perma.cc/3HWJ-MYKL].

258. Tirosh & Birnhack, *supra* note 238, at 1293, 1303.

259. *Pavesich* v. New Eng. Life Ins. Co., 122 Ga. 190, 194 (1905).

260. *Id.*

261. *Id.* at 196.

262. *Id.*; *see also* Sean M. Scott, *The Hidden First Amendment Values of Privacy*, 71 WASH. L. REV. 683, 722 (1996) ("The disclosure of private facts may offend the principle of autonomy because it violates the individual's right to choose who shall be privy to such information.").

263. *Pavesich*, 122 Ga. at 197.

264. Union Pac. Ry. Co. v. Botsford, 141 U.S. 250, 252 (1891); *cf.* Students for Fair Admissions, Inc. v. President & Fellows of Harv. Coll., 600 U.S. 181, 340 (2023) (Sotomayor, J., dissenting) (criticizing "intrusive physical examinations" and "photographing of unclothed students" conducted as part of racist scientific inquiries).

265. Elwood, *supra* note 253, at 757; *see also* West v. Radtke, 48 F.4th 836, 850 (7th Cir. 2022); Ioane v. Hodges, 939 F.3d 945, 953 (9th Cir. 2019). Bodily intimacy is different from thought or speech about it. Merely being the subject of another person's imagined fantasy or truthful account of shared sexual experiences does not violate the right to intimate privacy and such acts are protected by freedom of thought or, usually, by freedom of speech. *See* Campbell, *supra* note 28, at 281, 287; Diane Leenheer Zimmerman, *The "New" Privacy and the "Old": Is Applying the Tort Law of Privacy Like Putting High-Button Shoes on the Internet?*, 17 COMMC'N L. & POL'Y 107, 120–21 (2012); Daniel J. Solove, *The Virtues of Knowing Less: Justifying Privacy Protections Against Disclosure*, 53 DUKE L.J. 967, 1012–20 (2003); Elwood, *supra* note 253, at 776.

D. The Right's Scope

Citron gives a good definition of sexual privacy: "the concealment of naked bodies and intimate activities including, but not limited to, sexual intercourse."[266] Her definition thus includes "up-skirt" photographs and depictions of bathroom activities.[267]

Citron's definition is also helpful in terms of what it excludes. Although a child's subjective consent should generally not be a factor for the reasons given in the next section, this definition does not cover depictions that do not invade bodily concealment—including where consent can be imputed objectively in light of social norms.[268] A pediatrician does not violate a child's negative right to intimate privacy during a physical examination. Parents do not violate it by recording their toddlers playing naked in the backyard. Viewing prepubescent girls' nipples depicted in a mundane way, or anthropological footage of naked children, is not a rights violation.

Exceeding such implied social licenses could violate rights. *Mens rea* would be relevant; a pediatrician surreptitiously photographing patients' genitalia for his own later sexual gratification would violate their rights.[269] However, *mens rea* would not necessarily be determinative. For instance, the Sixth Circuit has upheld civil liability for a legal expert who displayed child pornography during a public trial, an outcome arguably consistent with the analysis proposed here.[270]

Citron's definition may also exclude some borderline cases involving clothed children, such as a child "dressed in a sexually seductive manner" with spread legs.[271] Does viewing this invade the concealment of bodily privacy? Depiction of a child dressed only in underwear could conceivably be akin to an upskirt photo, in that it would reveal normally concealed parts of the child's body. However, the same degree of bodily exposure is common in some public settings like swimming. A clearer rights violation would be a closely focused image depicting the outline of a child's genitalia. This could be "technological enhancement of ordinary perception" undermining a child's ability to conceal his or her

266. Citron, *supra* note 46, at 1874; *see also id.* at 1880–81.

267. *Id.* at 1877, 1900, 1909; *see also* Adams v. Sch. Bd. of St. Johns Cnty., 3 F.4th 1299, 1328–29 (11th Cir. 2021) (Pryor, C.J., dissenting) (discussing bathroom privacy), *vacated and reh'g granted*, 9 F.4th 1369 (11th Cir. 2021).

268. *Cf.* Florida v. Jardines, 569 U.S. 1, 8 (2013) (recognizing in the Fourth Amendment context the implied social license to approach houses' front doors).

269. *Cf. id.* at 12 (Kagan, J., concurring) (noting the possibility of exceeding an implied social license).

270. Doe v. Boland, 630 F.3d 491, 493 (6th Cir. 2011); *see also* United States v. Sherman, 268 F.3d 539, 548–50 (7th Cir. 2001) (criticizing the government for sending the defendant child pornography as part of a sting operation); Kiel Willmore, *Protecting Child Victims' Rights as Vigorously as Criminal Defendants' When Prosecuting Possession or Distribution of Child Pornography*, 87 WASH. L. REV. 883 (2012) (defending 18 U.S.C. § 3509 (m)'s discovery regulations in child pornography prosecutions).

271. *Compare* United States v. Dost, 636 F. Supp. 828, 832 (S.D. Cal. 1986) (in obiter dicta), *with* United States v. Blouin, 74 M.J. 247, 251 (CAAF 2015) (noting a statutory amendment arguably requiring nudity).

body.[272] What about a child who is clothed, but depicted alongside an adult engaging in sexual activity?[273] Citron's definition includes "intimate activities." As long as the child was involved in sexual activity with another, viewing the image would invade the child's negative right to intimate privacy.[274] When interpreted to incorporate social norms, Citron's definition describes the right this article proposes well.

E. Children's Rights

Much of the right proposed here applies to both adults and children. How should children be understood to hold it? Answering that question requires reconsidering people and rights, as well as embracing a "childist" perspective—"thinking in light of childhood."[275] Martha Albertson Fineman has written about how liberalism assumes that people are "ideally independent, fully-functioning adults"—autonomous, rational, "liberty-seeking and capable of negotiation, bargaining, and giving informed consent."[276] John Rawls defines "person" as "someone who can be a citizen, that is, a normal and fully cooperating member of society over a complete life."[277] Approaches like these keep childhood out of focus.[278]

For Fineman, this is a reason to discard liberalism.[279] I am skeptical, but recognizing how children differ from the competent adult assumed by liberalism is helpful.[280] Childism requires recognizing children's inequality and vulnerability.[281] MacKinnon argues that society's failure to do so has hidden the evil of child pornography: "The ability to see that child pornography is harmful has everything to do with a visceral sense of the inequality in power between children and adults, yet inequality is never mentioned."[282]

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272. Kyllo v. United States, 533 U.S. 27, 33–35 (2001) (holding that a thermal scan of a home interior was a search under the Fourth Amendment); *cf., e.g.*, Fla. Stat. § 847.001 (11) (2022) (defining nudity as including "the depiction of covered male genitals in a discernibly turgid state").

273. *See* United States v. Howard, 968 F.3d 717, 723 (7th Cir. 2020) (resolving the case on statutory grounds).

274. *Howard* concerned a man masturbating beside a child who was asleep, *see id.* at 719. In this "odd case," it is not clear that the depiction at issue depicted the *child's* sexual activity. *Id.* at 721.

275. Wall, *supra* note 13, at 524.

276. Martha Albertson Fineman, *Reasoning from the Body: Universal Vulnerability and Social Justice*, Emory Univ. Sch. of L. Legal Stud. Rsch. Paper Series No. 22–18, at 14 (2022).

277. JOHN RAWLS, POLITICAL LIBERALISM 18 (expanded ed. 2005).

278. Fineman, *supra* note 275, at 11.

279. *See id.* at 12.

280. Fineman rejects treating some categories of people, like children, as "special," because this changes the assumed "appropriate level of state responsibility" for each individual's well-being. Martha Albertson Fineman, *The Limits of Equality: Vulnerability and Inevitable Inequality*, *in* RESEARCH HANDBOOK ON FEMINIST JURISPRUDENCE 85 (Robin West & Cynthia G. Bowman eds., 2019). I disagree with her as to the proper role of government in the lives of autonomous adults and so am more comfortable with such distinctions.

281. *Id.* at 73; *cf.* Roper v. Simmons, 543 U.S. 551, 570 (2005) ("Their own vulnerability and comparative lack of control over their immediate surroundings mean juveniles have a greater claim than adults to be forgiven for failing to escape negative influences in their whole environment."); Thompson v. Oklahoma, 487 U.S. 815, 823 (1988) ("[T]here *are* differences which must be accommodated in determining the rights and duties of children as compared with those of adults." (citation omitted)).

282. MACKINNON, *supra* note 169, at 91.

Children's differences affect how they can hold rights. Children have protective rights in that they have interests protected "by the imposition of (legal or moral) normative constraints on the acts and activities of other people."[283] Children's rights can also be categorized in three ways: (1) basic rights to "physical, emotional and intellectual care"; (2) developmental rights; and (3) qualified autonomy rights.[284]

Basic and developmental rights easily cover children's negative right to intimate privacy. Children have a basic right to be free from sexual abuse and exploitation, and violations of that right can also gravely harm their development. The CRC proclaims children's right to be free of sexual abuse and exploitation, and it names child pornography as an example.[285] This is reasonable. Children depicted in pornography commonly suffer severe injury to their sense of self, control, and security, harms incompatible with their emotional and intellectual well-being.[286] The CRC also acknowledges the developmental harm child pornography causes by requiring states to provide exploited children rehabilitation.[287]

Regarding autonomy, child pornography strips children of control over their bodies. That affects their development, too. Child pornography conscripts children as participants in others' sexual activity to which they usually cannot give valid consent.[288] Having one's exposed body, or images of it, used "for the sake of the expression of somebody's sexual fantasies or ideas is . . . highly destructive to the child's freedom of thought."[289] So is what *Ferber* called child pornography's power to "haunt" its victims throughout life.[290]

Freedom from sexual exploitation protects children's development and autonomy rights to, in Citron's words, "figure out their *future* selves."[291] She is too focused on adult-style autonomy, arguing for freedom "from familial or societal censure"; surely child pornography is an autonomy violation that receives much adult censure.[292] Still, it is worth noting that child sexual exploitation can harm children's future ability to form relationships and even harm their future job prospects (a consequence due to the further injustice of their would-be employers).[293] Child

283. FORTIN, *supra* note 213, at 13 (citation and quotation marks omitted); *see also* WOODHOUSE, *supra* note 78, at 313 (characterizing children's rights as creating "a moral environment for thinking about what we owe to our children").

284. Eekelaar, *supra* note 60, at 170–71. For other classifications of children's rights, see FORTIN, *supra* note 213, at 17.

285. Convention on the Rights of the Child, arts. 19, § 1 & 34(c), Nov. 20, 1989, 1577 U.N.T.S. 3, 50, 55. While the United States has not adopted the Convention, it is still persuasive authority.

286. Andrea Slane, *Legal Conceptions of Harm Related to Sexual Images Online in the United States and Canada*, 36 CHILD & YOUTH SERVS. 288, 299–301 (2015).

287. Convention on the Rights of the Child, art. 39, 1577 U.N.T.S. 56.

288. United States v. Hernandez, 183 F. Supp. 2d 468, 470 (D.P.R. 2002).

289. *Id.* at 470–71.

290. New York v. Ferber, 458 U.S. 747, 759 n.10 (1982).

291. Citron, *supra* note 46, at 1884.

292. *Id.* at 1884–85.

293. *Id.* at 1899, 1909.

pornography is a present offense that can do long-lasting damage to development and autonomy.

Many children's rights, especially basic and developmental ones, "are simply affirmations of what were traditionally called natural rights (those rooted in human nature) and are now often called dignity rights (based on human needs)."[294] They should be seen as children's own rights, as they must frequently be claimed against adults, including sometimes close relatives.[295] Among them should be a negative right to intimate privacy.

F. Paternalism and Autonomy

Can people under the age of 18 *ever* consent to appearing in pornography? This question has become salient due to the proliferation of cellphone cameras.[296] It is separable from the rights framework proposed here—many negative rights can be consensually waived, subject to public policy,[297] and a reader could differ from this section's conclusions while still accepting the article's main argument. Nevertheless, this subject is related and merits discussion.

Child autonomy rights can conflict with basic and developmental rights.[298] Many thinkers give priority to the latter two categories.[299] Doing otherwise falls back into the liberal trap of assuming competent adult norms instead of children's vulnerability.[300] Autonomy should not be equated with atomization. Contrary to what strict individualism assumes, autonomy—for adults as well as minors—is exercised relationally and socially.[301] Limiting minors' autonomy teaches them that agency is inseparable from obligations, citizenship, and caution.[302] Gradually expanding children's autonomy can integrate them into family and community life as responsibly autonomous "husbands, wives, friends, neighbors, and citizens."[303] It can help them create "socially inclusive rather than exclusive worlds

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294. WITTE, *supra* note 48, at 244.

295. *See id.*

296. As late as 2016, one study found that 98% of child pornography featured children under the age of 16. *See* Alisdair A. Gillespie, *Child Pornography*, 27 INFO. & COMMC'NS TECH. L. 30, 33 (2018).

297. *See* Pavesich v. New Eng. Life Ins. Co., 122 Ga. 190, 199 (1905).

298. Eekelaar, *supra* note 60, at 171.

299. *See id.*; *see also* FORTIN, *supra* note 213, at 27 ("[W]hat if adolescents foreclose on their future opportunities by reaching decisions which adults consider unwise or even dangerous? They may truant from school, take up smoking or drinking and, more dramatically, take risks with their health by refusing life-saving medical treatment.").

300. Tom D. Campbell, *The Rights of the Minor: As Person, as Child, as Juvenile, as Future Adult*, 6 INT'L J.L. POL'Y & FAM. 1, 20 (1992).

301. Angela Campbell et al., *Child Citizenship and Agency as Shaped by Legal Obligations*, 23 CHILD & FAM. L.Q. 489, 510 (2011).

302. *Id.* at 510–11.

303. *See id.* at 511; MARCIA J. BUNGE, A MORE VIBRANT THEOLOGY OF CHILDREN 14 (2003), https://ifl.web.baylor.edu/sites/g/files/ecbvkj771/files/2023-01/childrenarticlebunge_0.pdf [https://perma.cc/R7L8-M794]; *cf.* Hodgson v. Minnesota, 497 U.S. 417, 448–49 (1990) (upholding an abortion parental-notification law because it let parents advise their daughter about "religious or moral implications" and give "needed guidance and counsel in evaluating the impact of the decision on her future").

of meaning and practice."[304] Minors are more vulnerable to undue influences than are adults, and limits can also protect them from commercialized sexual exploitation.[305]

Limitations on some sexual activity, including child pornography, are sensible. In modern liberal societies, the legal permissibility of sex has come to depend on autonomy, with age as the main objective limit.[306] The one thing that can be said of all children is that they have not lived as long as adults.[307] There is a rational connection between age and a lack of experiential wisdom.[308] Experiential wisdom differs from abstract intelligence. Young math prodigies can be found from time to time, but a child who is an expert in ruling—either the self or others—cannot, as Aristotle noted.[309] Smarts can come from nature, but savvy depends on life experience.

Wisdom is rationally connected (and then some) with age. Experience prepares the way for full autonomy, building "capacities for belief formation, deliberation and choice, formation of plans, and adoption of commitments and projects."[310] Age is a reasonable basis (and then some) for the law to treat children differently than adults.[311] Room for autonomy to be learned not too bitterly is key to good development.[312]

Neither wisdom nor autonomy arrives suddenly at the eighteenth birthday.[313] Children are subjects who should make meaningful decisions, including mistakes, and learn from them.[314] But it is reasonable to structure rights to grow with life experience and let parents help guide a child's personal development. For example, children's vulnerability should be taken into account when assessing informed consent to medical procedures.[315] After all, such procedures can have

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304. Wall, *supra* note 78, at 67.

305. *Id.* at 63.

306. Sara Jahnke & Agustín Malón, *How Pedophilic Men Think About Adult-Child Sex: Effects of Child Gender and Physical Maturity*, 25 PSYCH. CRIME & L. 90, 92 (2019).

307. *See* Campbell, *supra* note 300, at 18–19.

308. *See* Bellotti v. Baird, 443 U.S. 622, 635 (1979) (plurality op. of Powell, J.) ("[M]inors often lack the experience, perspective, and judgment to recognize and avoid choices that could be detrimental to them.").

309. *See* ARISTOTLE, NICOMACHEAN ETHICS 109 (bk. VI, ch. 8, § 6) (Terence Irwin trans., Hackett Publ'g Co. 2019). John Wall's endorsement of children receiving the right to vote whenever they have "sufficient understanding and desire to exercise it competently" conflates intelligence with wisdom. John Wall, *Democratising Democracy: The Road from Women's to Children's Suffrage*, 18 INT'L J. HUM. RTS. 646, 656 (2014).

310. Jules Holroyd, *Relational Autonomy and Paternalistic Interventions*, 15 RES PUBLICA 321, 325 (2009).

311. *See* Miller v. Alabama, 567 U.S. 460, 482 (2012) ("[I]t is the odd legal rule that does *not* have some form of exception for children.").

312. *See id.* at 477 (saying that "hallmark features" of youth include "immaturity, impetuosity, and failure to appreciate risks and consequences"); Graham v. Florida, 560 U.S. 48, 79 (2010) (noting juveniles' need "to achieve maturity of judgment and self-recognition of human worth and potential").

313. Campbell, *supra* note 300, at 18–19 (noting "the significance for the growing human individual of the transitional period from paradigmatic childhood to full-blown adulthood").

314. *See* Annemie Dillen, *For the Sake of Children?: Theology, Care and Children*, 15 HAPÁG 85, 94 (2021).

315. *See, e.g.*, L.W. v. Skrmetti, 83 F.4th 460, 475 (6th Cir. 2023), *aff'd sub nom.* United States v. Skrmetti, 145 S. Ct. 1816 (2025); Martha Albertson Fineman, *Vulnerability in Law and Bioethics*,

lasting physical and psychological impacts.[316] Further, vulnerability is heightened during youth.[317] Sexual autonomy should follow a similar course.[318] Perhaps a fourteen-year-old may lawfully have sex with a seventeen-year-old, but not a forty-year-old.[319] A similar judgment leads to laws letting a sixteen-year-old decide to have intercourse with anyone, but not to having that activity recorded for the permanent consumption of strangers.[320]

Better tailoring of the law to gradually growing wisdom would itself be wise.[321] A Canadian Supreme Court decision offers one promising way to do so. In *R. v. Sharpe*, the Court read two limited exceptions into a child pornography statute.[322] Both depend on the lawfulness of the depicted acts and the consent of those depicted, as well as on the recording being kept for use only "by the creator and the persons depicted."[323] Wider disclosure would violate privacy rights.[324] This approach accommodates autonomy without ignoring the negative right to intimate privacy, at least in theory.

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30 J. HEALTH CARE POOR & UNDERSERVED 52, 53 (2019) (*citing* Universal Declaration on Bioethics & Human Rights art. 8, UNESCO (2005), https://www.unesco.org/en/legal-affairs/universal-declaration-bioethics-and-human-rights?hub=66535 [https://perma.cc/8UF2-R2ZA]); Michelle Oberman, *Re-Evaluating Modern Statutory Rape Law*, 85 J. CRIM. L. & CRIMINOLOGY 15, 53 (1994).

316. *Cf.* Campbell et al., *supra* note 301, at 506 (noting Canadian jurisprudence suggesting that a minor cannot threaten her own "health or physical integrity").

317. *See* Fineman, *supra* note 315, at 57 (discussing infancy).

318. *See* Campbell et al., *supra* note 301, at 492 (describing "law's awareness of a teen's developing autonomy as she bridges childhood and adult life, which would result in a wider breadth of obligations").

319. *See, e.g.*, O.C.G.A. § 16-6-3 (c) (reducing the penalty for statutory rape based on age).

320. *See* Thompson v. Oklahoma, 487 U.S. 815, 824 (1988) (noting that 15-year-olds cannot serve on juries; buy pornography; or drive, marry, or gamble without parental consent); People v. Hollins, 971 N.E.2d 504, 511 (Ill. 2012) ("The dangers of appearing in pornographic photographs or videos are not as readily apparent . . . ."); People v. Campbell, 94 P.3d 1186, 1189 (Colo. Ct. App. 2004). However, the line Ohio has drawn—sexually propositioning a sixteen-year-old is illegal, but having intercourse with one is legal—seems absurd and possibly unconstitutional. Eugene Volokh, *Explicit Sexual Proposition to 16-Year-Old Can Be a Crime, Even if Sex with the 16-Year-Old Isn't*, VOLOKH CONSPIRACY (Aug. 22, 2023), https://reason.com/volokh/2023/08/22/explicit-sexual-proposition-to-16-year-old-can-be-a-crime-even-if-sex-with-the-16-year-old-isnt [https://perma.cc/3JPS-NZ6C]. For contrary arguments that restrictions on consensual child pornography illegitimately seek to "eradicate any evidence of [an] entire demographic's sexuality," see Amy F. Kimpel, *Using Laws Designed to Protect as a Weapon: Prosecuting Minors Under Child Pornography Laws*, 34 N.Y.U. REV. L. & SOC. CHANGE 299, 328 (2010); Quigley, *supra* note 189, at 391.

321. *See* A.H. v. State, 949 So.2d 234, 237–39 (Fla. 1st Dist. Ct. App. 2007) (affirming a sixteen-year-old's delinquency adjudication for producing private explicit images of herself with her seventeen-year-old boyfriend); *cf.* Slane, *supra* note 133, at 592 (expressing concern that expanding autonomy without careful tailoring "would lead to young people who consent to being photographed suffering a reduced expectation of privacy in the resulting images").

322. R. v. Sharpe, [2001] 1 S.C.R. 45, 111 (Can.).

323. *Id.*

324. Slane, *supra* note 133, at 568. The Court "has refined the intimacy requirement by requiring proof that the minor subject of the sexual photo shares pleasure in the use of that photo," assuming a "power differential" to be "inherent to sexual photography." *Id.* This assumption may or may not always be reasonable. *But see* Roper v. Simmons, 543 U.S. 551, 569 (2005) (noting juveniles' susceptibility to peer pressure). I learned of the *Sharpe* decision from Slane's article.

Children's lack of experiential wisdom and their development rights are good reasons for the law to protect them from permanent, publicly circulating images of their juvenile nakedness or sexual activity, at least to the extent *Sharpe* sets forth.[325] The law protects minors from decisions they make without enough information (indeed, the word "in-formation" itself suggests that experiences form wisdom and are important for exercising full autonomy). In terms of permanence and distributability, images differ from other forms of sexual exploration that may be better left to family guidance and minors' autonomy.[326] The ongoing regret and fear felt by those whose images forever circulate matters.[327] Teenagers, "although old enough to consent to sexual relations, may not fully appreciate that today's recording of a private, intimate moment may be the Internet's biggest hit next week."[328] It is reasonable to favor children's basic and developmental rights over their choice to haphazardly consent to appearing in pornography. It is reasonable to carefully guide children's autonomy rather than unleashing it for self-destruction.[329]

"Children have a right to be children and not adults."[330] A negative right to intimate privacy is well-grounded in the realities of sexuality and children's vulnerability, and it should take precedence over autonomy.

IV. A RIGHTS APPROACH HELPS SOLVE PROBLEMS

> I leave for another day the question of how to frame and prosecute this kind of harm as a privacy violation.
> — Amy Adler (2020)[331]

Framing child pornography as a rights violation would help address jurisprudential problems. It would rationalize banning possession, clarify who are child pornography's victims, support restitution, justify anti-voyeurism measures, harmonize criminal and civil law, and possibly help justify continued federal action.

A. Prohibiting Private Possession

A rights-based approach would justify banning private possession of child pornography. Under *Stanley*, privately viewing obscenity is constitutionally

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325. Potuto, *supra* note 1, at 35.

326. *See* Rogers, *supra* note 251, at 1045–46.

327. *See* Potuto, *supra* note 1, at 33 ("[T]he pornography victim faces a greater possibility that his or her sexual activity will not remain secret, a continuing possibility of disclosure, and certainly a decreased likelihood that, if disclosed, he or she successfully can protect his or her privacy and reputation . . . ."); Citron, *supra* note 232, at 1927 (describing a fifteen-year-old victim's suicide) ("Just before killing herself, she posted a video on YouTube explaining her devastation that the photograph is 'out there forever' and she can never get it back.").

328. State v. Senters, 699 N.W.2d 810, 817 (Neb. 2005).

329. Janet Delgado, *Re-thinking Relational Autonomy: Challenging the Triumph of Autonomy Through Vulnerability*, 5 BIOETHICS UPDATE 50, 59 (2019).

330. FORTIN, *supra* note 213, at 5.

331. Adler, *supra* note 170, at 34 n.142 (capitalization altered).

protected despite that material's lack of social value.[332] If viewing child pornography can be subject to strict bans, it should be because that act is evil. MacKinnon asks the key question: "Is it mere 'fear' of injury to children that supports the law against the use of children to make pornography?"[333] Adler and Hessick say yes—they want to ban only child pornography *created* abusively.[334] But if viewing child pornography is itself "brigaded with illegal action," if it is intrinsically evil (a *malum in se*) and a violation of children's rights, then *Osborne* reached the right result, even under a strict pro-speech rubric.[335]

B. Federal Sentencing

Whether viewing child pornography qualifies as a *malum in se* or a *malum prohibitum* (evil for extrinsic reasons) affects federal criminal sentencing. Many child pornography offenses involve multiple counts, especially in the Internet era. Under the U.S. Sentencing Guidelines, counts are grouped if they are "Closely Related."[336] This includes offenses that "involve substantially the same harm," including by having "the same victim."[337] However, a Guidelines comment says "victim" does not mean "indirect or secondary victims" like "society at large."[338] Judge Posner thought this comment applied to child pornography distribution.[339] A Fourth Circuit panel that included former Justice Powell agreed.[340] Other jurists, though, have held that Congress's goal was protecting children from harm, so children are the relevant victims.[341]

Here there is precedent from lower courts for a rights-based approach to possessing child pornography. A Seventh Circuit majority held (over Judge Posner's dissent) that child pornography "directly victimizes the children portrayed by violating their right to privacy, and in particular violating their individual interest in

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332. Genevieve Lakier says the Court cited value in explaining why "child pornography could be entirely prohibited," but she cites *Ferber* (which concerned distribution) and not *Osborne* (which concerned private possession). Genevieve Lakier, *The Invention of Low-Value Speech*, 128 HARV. L. REV. 2166, 2211 n.209 (2015). *Osborne* mentioned *Ferber*'s value holding, but assumed "a First Amendment interest in viewing and possessing child pornography" before distinguishing *Stanley*. Osborne v. Ohio, 495 U.S. 103, 108 (1990).

333. MACKINNON, *supra* note 169, at 104.

334. Hessick, *supra* note 249, at 1443.

335. A Book Named "John Cleland's Memoirs of a Woman of Pleasure" v. Att'y Gen. of Mass., 383 U.S. 413, 426 (1966) (Douglas, J., concurring in the judgment), *disapproved of by* Miller v. California, 413 U.S. 15, 23 (1973); *see also* Eugene Volokh, *Florida "Revenge Porn" Bill*, VOLOKH CONSPIRACY (Apr. 10, 2013, 7:51 PM), https://volokh.com/2013/04/10/florida-revenge-porn-bill [https://perma.cc/9HYV-GB8W] (opining that a ban on "nonconsensual posting of nude pictures of another" would be constitutional).

336. U.S. SENT'G GUIDELINES MANUAL § 3D1.1(a)(1) (U.S. SENT'G COMM'N 2023); *see also* United States v. Tillmon, 195 F.3d 640, 642 (11th Cir. 1999) (per curiam).

337. U.S. SENT'G GUIDELINES MANUAL § 3D1.2(a), (b); *see also Tillmon*, 195 F.3d at 642.

338. U.S. SENT'G GUIDELINES MANUAL § 3D1.2 cmt. n.2; *see also Tillmon*, 195 F.3d at 642.

339. *See* United States v. Sherman, 268 F.3d 539, 552 (7th Cir. 2001) (Posner, J., dissenting from denial of reh'g en banc).

340. United States v. Toler, 901 F.2d 399, 403 (4th Cir. 1990).

341. *Tillmon*, 195 F.3d at 643; United States v. Boos, 127 F.3d 1207, 1210–11 (9th Cir. 1997); United States v. Rugh, 968 F.2d 750, 756 (8th Cir. 1992).

avoiding the disclosure of personal matters."[342] The Eleventh Circuit similarly deemed child pornography distribution "a continuing invasion of privacy."[343] The Fifth Circuit held that "the mere existence of child pornography represents an invasion of the privacy of the child depicted," a "despicable intrusion on the lives of the young and the innocent."[344] These are good steps. If lawmakers, courts, and prosecutors see those depicted in child pornography as sufferers of rights violations, then identifying the victim of such crimes becomes easy.

A rights-based understanding could also affect the Sentencing Guidelines themselves. The Guidelines addressing child pornography have been criticized for arbitrariness. They frequently result in longer sentences than those recommended for repeat child molesters.[345] Even under a rights framework, that criticism is merited: of course not every instance of viewing is a worse rights violation than a physical sexual assault. A rights framework also suggests the disproportionality of subjecting every juvenile who views child pornography to sex-offender registration—consensual, private sharing of images among teenagers, as discussed in Part III.F above, may not be a rights violation at all, and lifetime registration seems a cruel response to it.[346]

Turning to specific aspects of the Guidelines, they adjust the offense-severity level for child pornography possession based on factors including distribution, economic motives, the age of the child, and the number of images possessed.[347] An official comment recommends an upward departure where the number of images "substantially underrepresents the number of minors depicted."[348] Videos count as seventy-five images each, but an upward departure may be proper if the videos are much longer than five minutes.[349] The Supreme Court's focus on distribution and economics is indeed misplaced,[350] but understanding the viewing of child pornography as an intrinsic rights violation does not require treating these factors as altogether irrelevant—after all, if viewing is itself evil, then distributing images so that they can be viewed more is a serious offense.[351] Receiving

342. *Sherman*, 268 F.3d at 547.

343. *Tillmon*, 195 F.3d at 644.

344. United States v. Norris, 159 F.3d 926, 930 (5th Cir. 1998).

345. Hessick, *supra* note 189, at 860–61; Dillof, *supra* note 250, at 1345–46; *but see* Audrey Rogers, *Child Pornography's Forgotten Victims*, 28 PACE L. REV. 847 (2008) (arguing for tougher penalties for possession).

346. *See* Catherine L. Carpenter, *Against Juvenile Sex Offender Registration*, 82 U. CIN. L. REV. 747 (2014).

347. U.S. SENT'G GUIDELINES MANUAL § 2G2.2(b) (U.S. SENT'G COMM'N 2023).

348. *Id.* cmt. n.6(B)(i).

349. *Id.* cmt. n.6(B)(ii).

350. *See* discussion *supra* Parts I–II.

351. *See* United States v. Price, 711 F.3d 455, 460 (4th Cir. 2013) ("[H]is conduct had the effect of exponentially multiplying both the real and projected evils . . . . [T]he district court was true to both the spirit and letter of Section 2G2.2(b)(7) in counting every image [the defendant] sent . . . to every person when applying the number of images enhancement.").

payment for doing so makes it likelier that distribution will be widespread and repeated, which is also relevant.[352]

As for the age of the child, a rights framework points in multiple directions. A right is a right no matter who it belongs to, and older minors' right to intimate privacy should not receive less protection simply because of their age.[353] However, harm to younger children's developmental and autonomy rights may generally be of greater concern, as they are still in a more formative stage of life.[354] Then again, older juveniles may better understand the injury they suffer from being depicted.[355] Other considerations are relevant to age as well, including society's responsibility for those who are most vulnerable.[356] A right is relevant to thinking about age's role, but not in a straightforward way.

A rights framework does clearly support the Guidelines' approach to the number of images. Weighing the number of children depicted, and not just the number of images, recognizes that wrong is done to each child. A rights framework also suggests taking into account images' focus and, where determinable, the length and amount of viewing. A quick glance at a blurry or oblong photo invades bodily privacy less than slowly and methodically examining a child's private body parts and sexual acts. The degree of carnal knowledge the defendant extracts should matter. The Guidelines may already hint at this in treating videos as more serious than photos, and longer videos as more serious still. A rights framework justifies these distinctions.

C. Justifying Restitution

People convicted of federal child pornography crimes must pay restitution to victims.[357] In *Paroline*, the Supreme Court decided how much any particular viewer is responsible for providing.[358] As described in Part I.B.2 above, the victim in that case suffered much harm. However, images of her circulated among thousands of viewers, and the defendant in the case at hand possessed just two

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352. *Cf.* State v. Jacobellis, 179 N.E.2d 777, 781 (Ohio 1962) (describing a film as not "filth for filth's sake. It was worse. It was filth for money's sake."), *rev'd*, 378 U.S. 184 (1964).

353. *See* State v. Parker, 147 P.3d 690, 698 (Alaska 2006) (finding no basis in state law for treating "production and use of pornographic images of sixteen-and seventeen-year-olds more leniently").

354. Ateret Gewirtz-Meydan et al., *Psychopathology among Adult Survivors of Child Pornography*, 98 CHILD ABUSE & NEGLECT, at 2 (Dec. 2019) ("[Y]ounger age at trauma exposure is associated with increased risk for posttraumatic stress disorder (PTSD) . . . .").

355. *Id.* ("[O]lder age at sexual abuse is associated with a higher risk for psychopathology, as survivors have more awareness that these experiences are taboo and stigmatizing." (internal citations omitted)).

356. United States v. Cahill, No. ACM 36769, 2007 CCA LEXIS 495, at *4 (A.F. Ct. Crim. App. Oct. 5, 2007) ("Little in nature is so universally evident as is the desire to protect the youngest and most vulnerable members of a society."); U.S. SENT'G GUIDELINES MANUAL § 3A1.1 cmt. n.2 (B) (U.S. SENT'G COMM'N 2023) (recommending stronger penalties for hate crimes against a victim "who is unusually vulnerable due to age, physical or mental condition").

357. 18 U.S.C. § 2259(a), (c)(4).

358. Paroline v. United States, 572 U.S. 434, 439 (2014).

such images.[359] The issue before the Court was whether he could be ordered to pay $3.4 million in restitution.[360]

A rights framework clarifies half of the problem presented by *Paroline*. Viewers do have individual moral responsibility, though how much each should pay remains a hard question. First, every viewer is meaningfully culpable. Anthony Dillof has written that while viewers contribute to the harm children suffer, individual cases of possession "are insufficient contributing causes of the production of child pornography, child sexual abuse, and privacy violations."[361] The harms children suffer from viewings are inflicted in the aggregate.[362] Dillof writes that the culpability of any given viewer is less than that of a joint actor working with a limited number of others to inflict an injury.[363] He concludes that the penalties for possession are disproportionately severe.[364]

A rights approach complicates this argument. Culpability does not depend only on the infliction of harm. While the marginal harm from an offense like the viewing of a widely distributed image of child pornography may decrease as more people possess the image, every viewing remains equally a rights violation.[365] That does not resolve the issue of restitution altogether, as causation of harm is relevant. But a defendant who violates a right has committed a wrong that can be imputed to that defendant, even if many others also contributed to the resulting harm.

Paroline interpreted the federal restitution statute as including a proximate-cause requirement.[366] The defendant's "contribution to the causal process underlying the victim's losses was very minor," the Court held, and federal defendants have no right to contribution from each other.[367] The Court therefore concluded that defendants' restitution obligations should be assessed "in proportion to their respective causal roles and their own circumstances," so as to educate people about the harms victims suffer.[368] *Paroline* accepts that every viewer can be made to give restitution, a holding compatible with a rights framework.

D. Fighting Voyeurism

Building child pornography doctrine from obscenity law, rather than rights theory, has made voyeurism needlessly debatable. Recall Adler's argument that a hidden-camera recording of two girls bathing is not obscene because it is sexual only to the pedophilic gaze.[369] Under *Miller*, the recording itself may not be

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359. *Id.* at 440–41.
360. *Id.* at 441.
361. Dillof, *supra* note 250, at 1363.
362. *Id.*
363. *Id.* at 1366.
364. *Id.* at 1366, 1378.
365. I thank Dillof for our correspondence and his detailed suggestions for this article.
366. Paroline v. United States, 572 U.S. 434, 446 (2014).
367. *Id.* at 454–55.
368. *Id.* at 462.
369. *See* discussion *supra* Part II.B.

obscene, and it would be troubling for (most) parents to be convicted for possessing it.

But is it child pornography? The relevant federal statutes define criminal offenses with reference to "lascivious" and "graphic" displays of genitalia.[370] That limit makes sense in that not all minor nudity is obscene.[371] However, it has also led some courts to reject convictions for highly exploitative privacy invasions. In one recent D.C. Circuit case, the defendant—who also physically sexually abused his girlfriend's daughter—hid a camera in the girl's bedroom.[372] He recorded her undressing, exposing her genitalia for nine seconds and her breasts for around eleven minutes, grooming her genitalia, and walking around naked.[373] He also hid a camera in a bathroom vent, capturing two girls toileting and grooming their genitalia; he captured images of both girls' buttockses (for twenty seconds each) and one's pubic area (for sixteen seconds).[374] The court reversed his conviction, holding that the relevant provision covers only depictions of a child who "exhibits sexual desire or an inclination to engage in . . . sexual activity."[375] As a matter of statutory interpretation, that is plausible. As the Second Circuit noted, "overreliance on the intent of the photographer, and his idiosyncratic desires, raises constitutional concerns" and the possibility of an overly subjective standard.[376]

The D.C. Circuit's holding does represent a minority approach among federal appellate courts. Seven have endorsed factors more amenable to prosecutions, and at least one Eleventh Circuit opinion directed courts to consider a defendant's intent in creating even an objectively innocent image.[377] As Judge Henderson wrote in dissent from the D.C. Circuit decision, if harm was Congress's main concern, then a voyeur who planted recording devices to capture naked images should not escape punishment simply because the child was not intentionally acting in a sexual way.[378]

However, this is the logical outcome of an approach devoid of rights. Indeed, the D.C. Circuit noted anti-voyeurism statutes that are more rights-oriented than

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370. 18 U.S.C. § 2256(2)(A)(5), (2)(B)(3). This definitions section used "lewd" instead of "lascivious" until a 1984 amendment. *See* 18 U.S.C.S. § 2256 (Lexis), Amend. Notes (1984).

371. *See* Erznoznik v. City of Jacksonville, 422 U.S. 205, 213 (1975). That is not to say that this specific limitation is the only constitutional one. *See* United States v. Hillie, 39 F.4th 674, 685 (D.C. Cir. 2022), *reh'g en banc den'd*, 38 F.4th 235 (D.C. Cir. 2022).

372. *Hillie*, 39 F.4th at 677.

373. *Id.* at 678.

374. *Id.*

375. *Id.* at 685.

376. United States v. Spoor, 904 F.3d 141, 151 (2d Cir. 2018).

377. *Hillie*, 39 F.4th at 696–97 (Henderson, J., dissenting); United States v. Dost, 636 F. Supp. 828, 832 (S.D. Cal. 1986) (listing the factors as "1) whether the focal point of the visual depiction is on the child's genitalia or pubic area; 2) whether the setting of the visual depiction is sexually suggestive, i.e., in a place or pose generally associated with sexual activity; 3) whether the child is depicted in an unnatural pose, or in inappropriate attire, considering the age of the child; 4) whether the child is fully or partially clothed, or nude; 5) whether the visual depiction suggests sexual coyness or a willingness to engage in sexual activity; 6) whether the visual depiction is intended or designed to elicit a sexual response in the viewer"); United States v. Holmes, 814 F.3d 1246, 1252 (11th Cir. 2016).

378. *Hillie*, 39 F.4th at 699–700 (Henderson, J., dissenting).

(its interpretation of) the child pornography statute.[379] As Citron has likewise summarized, the heart of voyeurism is an invasion of intimate privacy.[380] Understanding both voyeurism and child pornography as violations of related rights would connect these two areas of law rather than artificially divorcing them.

One well-established doctrinal starting point could be analogizing from personally identifying information ("PII").[381] PII enjoys protection mostly uncurtailed by First Amendment precedent.[382] To be sure, not all voyeuristic images and child pornography reveal a person's identity—close-up shots depicting only certain body parts might be effectively anonymous and thus not count as PII. However, federal law protects financial PII if it is "nonpublic."[383] Possessors of most kinds of images revealing nudity certainly have "access to privileged information about the victim (hence damaging the victim's capacity to control his or her presentation of self to others)."[384] That is true even if the images reveal only anonymous private body parts and not a face. Privacy rights are related to reputational concerns, but protect distinct interests.[385] One's genitalia are entitled to privacy regardless of whether one's eyes are also visible. Indeed, Brandeis and Warren connected images of "a woman's face" to those of "her form, and her actions . . . colored to suit a gross and depraved imagination."[386] Nude images, be they voyeuristic or child pornography, should be entitled to privacy protections, just like financial and medical information.[387]

E. Harmonizing Criminal and Civil Law

A rights-based approach would also draw on the insights of civil law. Civil law already treats the viewing of child pornography as a rights violation. Civil privacy rights protect against "intrusion upon an individual's private self-esteem and

379. *See id.* at 685 (majority opinion); *accord* United States v. Donoho, 76 F.4th 588, 601 (7th Cir. 2023) (Easterbrook, J., concurring). The federal voyeurism statute applies only in federal enclaves and maritime jurisdictions. *See* 18 U.S.C. § 1801(a).

380. Citron, *supra* note 232, at 1874.

381. Kelsey Benedick, Note, *Eradicating Revenge Porn: Intimate Images as Personal Identifying Information*, 22 LEWIS & CLARK L. REV. 232, 259 (2018).

382. *Id.* at 258; *see also* Citron & Franks, *supra* note 243, at 345, 346–47 (noting the criminalization of "many privacy invasions"); *but see* Bartnicki v. Vopper, 532 U.S. 514, 528–30, 535 (2001) (holding that distribution of an illegally recorded conversation was constitutionally protected where its content was a matter of public concern).

383. 15 U.S.C. § 6809(4); *see also* Paul M. Schwartz & Daniel J. Solove, *The PII Problem: Privacy and a New Concept of Personally Identifiable Information*, 86 N.Y.U. L. REV. 1814, 1830 (2011).

384. Slane, *supra* note 133, at 562.

385. *See* Citron, *supra* note 232, at 1939; *cf.* Scott, *supra* note 262, at 727 ("The interest protected by privacy is not reputation."); Anthony L. Pessino, Note, *Mistaken Identity: A Call To Strengthen Publicity Rights for Digital Personas*, 4 VA. SPORTS & ENT. L.J. 86, 99 (2004) (noting that appropriation protects a depicted person's financial interests, but not personal privacy).

386. Warren & Brandeis, *supra* note 40, at 214.

387. Franks, *supra* note 243, at 1260, 1311, 1325; *see also* Paul Ohm, *Sensitive Information*, 88 S. CAL. L. REV. 1125, 1153, 1158–59 (2016) (contrasting America's lack of protections for intimate privacy with European law and U.S. protections for children's data).

dignity."[388] Because civil law doctrines protect rights, they have mostly avoided First Amendment conflicts.[389] Adopting as a rationale the civil protection of "the individual's inviolate personality by limiting unwanted disclosures of personal information" would bolster the case for criminalizing the viewing of child pornography.[390]

F. Supporting the Federal Role?

Lastly, centering rights could support the federal role in prohibiting child pornography, which is currently understood as an exercise of Congress's Commerce Clause power.[391] Under current precedent, this is proper.[392] However, that caselaw may not have been rightly decided. The Constitution lets Congress "regulate Commerce . . . among the several States."[393] The possession of child pornography is not inherently economic. As the Eleventh Circuit once held, it may involve "no transactions, no consumption of goods or services, and no necessary resort to the marketplace."[394] The federal government lacks any general police powers over non-commercial activity.[395] The court therefore held that prosecution for possession was unconstitutional.[396] It arguably understood the Commerce Clause correctly.[397]

That does not mean originalists should reject federal criminalization. Randy Barnett and Evan Bernick have determined that as originally understood, the Fourteenth Amendment lets Congress affirmatively protect natural rights where states fail to do so.[398] Barnett and Bernick's understanding of the Fourteenth Amendment does conflict with longstanding Supreme Court precedent requiring state action, but that precedent is itself questionable.[399] While Congress has found that federal prohibition "is essential to the effective control of the interstate

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388. Pessino, *supra* note 385, at 99 (citation omitted).

389. *See* Pavesich v. New Eng. Life Ins. Co., 122 Ga. 190, 202 (1905) ("The right to speak and the right of privacy have been coexistent."); Solove, *supra* note 265, at 975 ("Privacy interests often do not conflict with the reasons for which society values free speech. In fact, privacy may serve these ends as well as or even better . . . ."); Scott, *supra* note 262, at 744.

390. Citron, *supra* note 46, at 1852.

391. *See, e.g.*, United States v. Wehrle, 985 F.3d 549, 556–57 (7th Cir. 2021); United States v. McCall, 833 F.3d 560, 564–65 (5th Cir. 2016); United States v. Ramos, 685 F.3d 120, 134 (2d Cir. 2012); United States v. Smith, 459 F.3d 1276, 1284–85 (11th Cir. 2006).

392. *See* Gonzales v. Raich, 545 U.S. 1, 17 (2005) ("Our case law firmly establishes Congress' power to regulate purely local activities that are part of an economic 'class of activities' that have a substantial effect on interstate commerce.").

393. U.S. CONST. art. I, § 8, cl. 3.

394. United States v. Maxwell, 386 F.3d 1042, 1056 (11th Cir. 2004), *vacated*, 546 U.S. 801 (2005), *rev'd in relevant part*, 446 F.3d 1210 (11th Cir. 2006).

395. *Id.* at 1060.

396. *Id.* at 1069.

397. *See, e.g.*, United States v. Lopez, 514 U.S. 549, 584–602 (1995) (Thomas, J., concurring).

398. BARNETT & BERNICK, *supra* note 219, at 319–51.

399. *Contra* United States v. Stanley, 109 U.S. 3, 11 (1883) (*The Civil Rights Cases*); *compare* United States v. Cruikshank, 92 U.S. 542, 554–55 (1875), *with Stanley*, 109 U.S. at 58–59 (Harlan, J., dissenting); BARNETT & BERNICK, *supra* note 219, at 319–51.

market in child pornography," it could also assert authority to protect children's rights when states cannot do so.[400] This rationale seems reasonable in the digital era.

In any event, thinking of how criminal law can help protect rights—rather than just being their opposite—is a worthwhile project for a free society.[401] For those concerned about the reach of federal power (including me), understanding child pornography as a rights violation could justify federal action even if Commerce Clause precedent has gone astray.

V. A RIGHTS APPROACH HELPS ADDRESS EMERGING ISSUES

> Where the case is only new in instance, and the sole question is upon the application of a recognized principle to a new case, it will be just as competent to courts of justice to apply the principle to any case that may arise two centuries hence as it was two centuries ago.
> — *Pavesich* (1905)[402]

A negative right to intimate privacy offers ways to think about non-consensual adult pornography and child pornography generated by artificial intelligence.

A. Revenge Pornography

Non-consensual pornography involving adults, including the subset of "revenge porn," has become a prominent issue.[403] Four percent of American internet users have either had their explicit images posted online without their consent or been threatened with that.[404] Most of America now has laws against non-consensual pornography.[405]

Jurisprudence regarding it is still developing. Much like child pornography, non-consensual pornography does not fit well into conventional frameworks. The Supreme Court has not recognized it as a distinct exception to the First Amendment.[406] It differs from obscenity for several of the same reasons as does child pornography, including the reasons for banning it.[407] The scope of what counts

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400. Adam Walsh Child Protection and Safety Act of 2006, Pub. L. No. 109-248, § 501(1)(F), 120 Stat. 587, 624 (2006).

401. *See Ex parte* Metzger, 610 S.W.3d 86, 104 (Tex. App. 2020) ("[T]he rights to personal seclusion, bodily integrity, and sexual privacy are substantial rights; and the state has a compelling interest in protecting those rights . . . ."); *cf.* Katherine Hunt Federle, *Rights Flow Downhill*, 2 INT'L J. CHILD.'S RTS. 343, 366 (1994) ("[R]ights tied to power create zones of mutual respect for power that limit the kinds of things we may do to one another.").

402. Pavesich v. New Eng. Life Ins. Co., 122 Ga. 190, 194 (1905) (capitalization altered, citation and quotation marks omitted).

403. *See* State v. VanBuren, 214 A.3d 791, 794 (Vt. 2018); Diane Bustamante, Comment, *Florida Joins the Fight Against Revenge Porn: Analysis of Florida's New Anti-Revenge Porn Law*, 12 FIU L. REV. 357, 360–64 (2017) (chronicling the history of revenge porn from 1980 to 2014).

404. *VanBuren*, 214 A.3d at 795.

405. *See* Citron, *supra* note 232, at 1932 (counting 42 states plus the District of Columbia).

406. *See VanBuren*, 214 A.3d at 800.

407. *See id.*

as non-consensual pornography also differs from obscenity, as such imagery "need not appeal to the prurient interest or be patently offensive" and the goal is often to "shame the subject, not arouse the viewer."[408] Vermont counts as non-consensual pornography non-obscene nude images.[409]

Nevertheless, as the Vermont Supreme Court noted, such material violates privacy rights.[410] That court relied on three authorities: (1) U.S. Supreme Court suggestions "that the government may regulate speech about purely private matters that implicates privacy and reputational interests"; (2) Warren and Brandeis; and (3) the tort of publicity.[411] It held that the law in question furthered compelling state interests and satisfied the First Amendment.[412] This opinion is laudable. The court shifted from obscenity to privacy, then upheld a criminal prohibition. The only thing missing was a theory of rights (which the Indiana Supreme Court and Texas Court of Appeals did gesture at in upholding similar laws).[413]

An important aspect of the Vermont decision is its recognition that consent waives privacy only to a specific extent. A victim may well have consented to appear in images and share them with one or more people. Indeed, much revenge porn originates from perceived betrayal—hence its name.[414] Disturbingly, though, consent is often overread. In a case involving the *Girls Gone Wild* video series, a judge considered a woman's mere presence at Mardi Gras constructive consent to being videotaped.[415] Similarly, a Florida appellate decision held that two teenagers lacked any right to privacy in sexual photographs because a reasonably prudent person would not trust a teenager to keep them private.[416] New York's highest court notoriously held that Brooke Shields could not disaffirm her mother's consent to continued distribution of racy nude photographs of Brooke's ten-year-old self.[417] Too often, courts treat any waiver of privacy as categorical.[418]

That is wrong. *Pavesich* observed that privacy can be "waived for one purpose and still asserted for another; it may be waived in behalf of one class and retained as against another class; it may be waived as to one individual and retained as

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408. *Id.* at 801.
409. *See id.*
410. *Id.*
411. *Id.* at 802.
412. *Id.* at 808.
413. *See* State v. Katz, 179 N.E.3d 431, 447 (Ind. 2022); *see also Ex parte* Metzger, 610 S.W.3d 86, 103–04 (Tex. App. 2020).
414. *See* Citron, *supra* note 232, at 1899; Christian Nisttáhuz, Comment, *Fifty States of Gray: A Comparative Analysis of 'Revenge-Porn' Legislation Throughout the United States and Texas's Relationship Privacy Act*, 50 TEX. TECH L. REV. 333, 339 (2018).
415. Benjamin J. Cooper, Note, *Naked Before the Law: Reality Porn and the Capacity to Contract*, 11 CARDOZO WOMEN'S L.J. 353, 356 (2005) (*quoting* Tr. of Mar. 8, 2002, at 29, Doe v. Mantra Films, Inc., No. 01-12450 (Civ. Dist. Orleans 2002)).
416. A.H. v State, 949 So.2d 234, 237 (Fla. Dist. Ct. App. 2007).
417. Shields v. Gross, 448 N.E.2d 108, 109 (N.Y. 1983).
418. *See* Justin Pitcher, Comment, *The State of the States: The Continuing Struggle to Criminalize Revenge Porn*, 2015 B.Y.U. L. REV. 1435, 1443 (2015).

against all other persons."[419] The Illinois Supreme Court, too, has held that sharing a sexual image with one person does not waive all privacy.[420] Still, these rules are offset by the assumption that "the right to bodily privacy—especially in photographs—can be lost or traded away by being the subject of public attention or by consenting to share information or images."[421] The Brooke Shields decision even assumed that a parent alone decides whether a child's sexualized nudity can be financially exploited through public distribution.

Recognizing a negative right to intimate privacy would strengthen the case against non-consensual pornography by connecting such imagery to other abuses.[422] The viewing of any of these violates privacy. Looking at non-consensual pornography probably cannot be banned without a strong *mens rea* requirement, as unlike much child pornography, the contraband nature of non-consensual pornography may not be immediately apparent.[423] It is also worth asking whether the viewing of non-consensual pornography, especially of celebrities, spreads so quickly that viewing it has to be tolerated as a practical matter. However, consider an anecdote from a major hack of nude photos in 2014. One of the celebrities depicted announced that she was underage when photographed.[424] Web moderators rushed to remove the images even from edgy sites like Reddit.[425] Mary Anne Franks concluded that criminal law can be "a powerful motivator."[426] A negative right to intimate privacy would reinforce that waivers are not always categorical and their scope should be decided only by the person depicted (rather than, say, a parent), reinforce moral concerns about non-consensual pornography, and support criminal prohibitions on producing, distributing, and viewing it.[427]

B. AI Child Pornography

A more technologically complex problem is posed by pornography generated by artificial intelligence ("AI"), but children's negative right to intimate privacy can provide some guidance here as well. AI refers to the use of computers and

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419. Pavesich v. New Eng. Life Ins. Co., 122 Ga. 190, 199 (1905). Aikenhead assumes only a positive right to privacy makes this true. Aikenhead, *supra* note 221, at 289. She worries that a negative right would "require women and girls to take extraordinary measures to conceal their bodies in order to avoid being objectified and sexualized for consumption online." *Id.* at 289–90. Our goals overlap, but I see a negative right as requiring conscious and specific waiver, too, as in *Pavesich*. Our difference here may be semantic.

420. People v. Austin, 155 N.E.3d 439, 452 (Ill. 2019).

421. Slane, *supra* note 133, at 545.

422. McGlynn et al., *supra* note 5, at 26 (describing a "continuum of image-based sexual abuse" (citation omitted)).

423. *Cf.* United States v. X-Citement Video, Inc., 513 U.S. 64 (1994) (interpreting scienter requirements broadly for the federal criminal prohibition on distributing child pornography).

424. Franks, *supra* note 243, at 1304.

425. *Id.* at 1304–05.

426. *Id.* at 1305.

427. People v. Austin, 155 N.E.3d 439, 452 (Ill. 2019) ("Consent is contextual."); *see also* Faloona v. Hustler Magazine, Inc., 607 F. Supp. 1341, 1352, 1357 (N.D. Tex. 1985) (rejecting liability based on a pornographic magazine running nude photographs of children as part of an excerpt from an educational book they consented to being depicted in).

other technology to develop "intelligent" machines that can simulate human capabilities and even perform tasks no human can perform. These are trained to recognize essentially any data set.

If a machine is fed pornographic images, then it can generate pornographic images that are amalgamations of the originals. These are called synthetic images.[428] AI lets users craft nude, semi-nude, and sexual images without the direct participation of any actual people. People can use "text-to-image" technology to create images from text prompts using a massive database of existing images labeled with keywords.[429] The resulting new images are "remixes."[430] Using AI, users can create child pornography without actually photographing, recording, or interacting with a child.

One common text-to-image model is Stable Diffusion XL.[431] Its "Acceptable Use Policy" requires that users not exploit or harm children, including by creating or disseminating exploitative content.[432] Other text-to-image AI models also have rules relevant to child pornography. OpenAI—the creator of ChatGPT and other AI programs—says that its models may not be used to sexually exploit children.[433] It also tells users that it reports child pornography to the National Center for Missing and Exploited Children.[434]

Nevertheless, there are ways to bypass these filters and "jailbreak"[435] AI programs so that they produce sexually explicit content.[436] Researchers and offenders have successfully done this.[437] There are three common forms of child pornography produced by AI: computer-generated, morphed, and virtual. *Computer-generated* child pornography is developed by a computer with no exploitation whatsoever of real children (i.e., it consists of a generic image of a child).[438] *Virtual* child pornography

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428. Mark L. Schiebler & Carri Glide-Hurst, *Synthetic Images Are Here to Stay*, 308 RADIOLOGY 1 (2023), https://pubs.rsna.org/doi/10.1148/radiol.231098 [https://perma.cc/XEB4-XYM3]; *see also What is Synthetic Imaging?*, BAE SYS., https://www.baesystems.com/en-us/definition/what-is-synthetic-imaging [https://perma.cc/9YNA-5WK7].

429. Carmen Drahl, *AI Was Asked to Create Images of Black African Docs Treating White Kids. How'd It Go?*, NPR (Oct. 6, 2023), https://www.npr.org/sections/goatsandsoda/2023/10/06/1201840678 [https://perma.cc/7PK6-TKSJ].

430. *Id.*

431. *Stable Fusion XL*, STABILITY.AI, https://stability.ai/stable-diffusion [https://perma.cc/MA32-CE5T].

432. *Acceptable Use Policy*, STABILITY.AI, https://stability.ai/use-policy [https://perma.cc/TU3V-HNNR].

433. *Usage Policies*, OPENAI, https://openai.com/policies/usage-policies [https://perma.cc/V7BH-5CQH].

434. *Id.*

435. *Jailbreaking*, PCMAG ENCYCLOPEDIA, https://www.pcmag.com/encyclopedia/term/jailbreaking [https://perma.cc/CY8U-3P75] (defining jailbreaking as to "remove a restricted mode of operation"; jailbreaking is also sometimes referred to as "rooting").

436. Rhiannon Williams, *Text-to-Image AI Models Can Be Tricked into Generating Disturbing Images*, MIT TECH. REV. (Nov. 17, 2023), https://www.technologyreview.com/2023/11/17/1083593 [https://perma.cc/E2JA-ZG9J].

437. *Id.*

438. Jisuk Woo, *The Concept of "Harm" in Computer-Generated Images of Child Pornography*, 22 J. MARSHALL J. COMPUT. & INFO. L. 717, 719 (2004).

appears to feature minors but instead uses images of adults who, naturally or because of digital manipulation, look young.[439] *Morphed* child pornography digitally manipulates innocent images of children into new, sexualized images.[440]

In virtual and computer-generated child pornography, no identifiable child's negative right to intimate privacy is violated. The Supreme Court has held that non-obscene sexual images of youthful-looking adult performers or digital creations are protected by the First Amendment because they "record[] no crime and create[] no victims by [their] production.[441]" A negative right to intimate privacy does not change this analysis, regardless of whether it is right, and the Court's holding may logically extend to similar images generated entirely by AI. However, as *Ashcroft* noted: "Pictures of young children engaged in certain acts might be obscene where similar depictions of adults, or perhaps even older adolescents, would not."[442] Obscenity laws can still ban many images of childhood nudity and sexuality, even if these feature no imagery of actual children.[443]

As for morphed explicit imagery, some courts have held that it can be punished, either because it qualifies as child pornography or because the government can protect children from reputational and psychological harm.[444] At least one court has instead held that it is constitutionally protected because the mere use of a child's face results in "no demonstrable harm," especially where the child does not know of images' existence.[445] Morphed images do not invade children's bodily privacy rights, though reputation is a distinct issue.[446]

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439. Ashcroft v. Free Speech Coal., 535 U.S. 234, 234 (2002).

440. Carliette Sierralta, *Should "Morphed" Child Pornography Fall Under the Protection of the First Amendment's Free Speech Clause?*, 46 NOVA L. REV. 305, 306 (2022). "Morphed" images may be better described as "composite." *See Ashcroft*, 535 U.S. at 242; United States v. Rearden, 349 F.3d 608, 613 (9th Cir. 2003).

441. *Ashcroft*, 535 U.S. at 250.

442. *Id.* at 240.

443. Justice Thomas did note that a ban on such pornography might survive scrutiny if "technological advances" made it so realistic that it interfered with child pornography prosecutions. *Id.* at 259 (Thomas, J., concurring in the judgment); *accord id.* at 263, 265 (O'Connor, J., concurring in the judgment in part and dissenting in part). That consequentialist concern is distinct from a rights-based or other ontological argument.

444. *See* United States v. Mecham, 950 F.3d 257, 267 (5th Cir. 2020); United States v. Anderson, 759 F.3d 891, 896 (8th Cir. 2014) (holding that morphed images are not child pornography but can still be banned); Doe v. Boland, 698 F.3d 877, 880–82 (6th Cir. 2012); United States v. Hotaling, 634 F.3d 725, 729 (2d Cir. 2011); United States v. Bach, 400 F.3d 622, 632 (8th Cir. 2005); Russell Spivak, *"Deepfakes": The Newest Way to Commit One of the Oldest Crimes*, 3 GEO. L. TECH. REV. 339, 373 (2019); *cf.* Citron, *supra* note 232, at 1921 (arguing that "deep-fake" pornography "hijack[s] people's sexual and intimate identities"). One court also held that a sadistic-conduct enhancement applied where the defendant created a virtual image that merely "made it appear" that a minor was being subjected to violence. *Hotaling*, 634 F.3d at 731–32.

445. State v. Zidal, 156 N.H. 684, 693–94 (2008); *see also* Parker v. State, 81 So.3d 451 (Fla. 2d Dist. Ct. App. 2011) (reaching a similar statutory result); Stelmack v. State, 58 So.3d 874 (Fla. 2d Dist. Ct. App. 2010) (same).

446. *See* Citron, *supra* note 232, at 1939; Scott, *supra* note 262, at 727.

However, pornography that either includes explicit images of "an identifiable child" or uses these as a baseline for developing a final image could violate children's negative right to intimate privacy.[447] As *Pavesich* held, one's "form and features" belong to oneself.[448] People have long enjoyed the right to prevent their features—"whether normal or distorted"—from being used without permission.[449] To the extent a child's intimate body parts remain identifiable in morphed pornography, there is a rights violation. Identifiability may be a judgment call, and perhaps one best left to a jury's reasonable discretion, as there is no binary point at which an image is transformed "enough." Other people with technological and intellectual property expertise should propose ways to vindicate children's negative right to intimate privacy without expanding it to cover, say, each and every child whose image serves as a baseline for AI together with potentially limitless others.

VI. ETHICS SHOULD SUPPLEMENT RIGHTS

> Human dignity is offended by the pornographer. . . . Legally, an adult can consent to its diminishment. When a child is made the target of the pornographer-photographer, the statute will not suffer the insult to the human spirit, that the child should be treated as a thing.
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> — *United States v. Wiegand*, 812 F.2d 1239, 1245 (9th Cir. 1987)

Finally, ethics have a role in furthering rights. Much has been said about the decline of intermediary institutions between individuals and the government. Also regrettable is the loss of intermediary values between liberty and penal law. The criminalization of sexual acts has narrowed drastically, and as Andrew Koppelman wrote: "It matters what we think and feel. But it does not follow that the law should police" this.[450] However, policing is not all that the law does. Liberal criminal law is compatible with public roles for morals. Governments endorse ethical judgments reached through public deliberation.[451] They selectively fund viewpoints.[452] They are tasked with maintaining "the quality of life and the total community environment, the tone of commerce."[453] In the context of public schooling, they are "a principal instrument in awakening the child to cultural values . . . and in helping him to adjust normally to his environment."[454]

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447. 18 U.S.C. § 2256 (8)(C) (prohibiting virtual pornography where a specific child is identifiable); *cf.* Tirosh & Birnhack, *supra* note 238, at 1283 ("[L]inkability is the key to deanonymize identity.").

448. Pavesich v. New Eng. Life Ins. Co., 122 Ga. 190, 217 (1905).

449. Clayman v. Bernstein, 38 Pa. D. & C. 543, 546 (Ct. Comm. Pleas 1940).

450. Koppelman, *supra* note 176, at 1639.

451. Pleasant Grove City v. Summum, 555 U.S. 460, 467–68 (2009) (citing Johanns v. Livestock Mktg. Ass'n, 544 U.S. 550, 574 (2005) (Souter, J., dissenting); NEA v. Finley, 524 U.S. 569, 598 (1998) (Scalia, J., concurring in the judgment).

452. Rust v. Sullivan, 500 U.S. 173, 194 (1991).

453. Paris Adult Theatre I v. Slaton, 413 U.S. 49, 58, 63 (1973).

454. Brown v. Bd. of Educ., 347 U.S. 483, 493 (1954).

While a liberal government does not exercise Platonist thought control,[455] ethics pervade its work. Three virtues are especially relevant to child pornography: chastity, modesty, and dignity.

A. Chastity

James Madison wrote: "If men were angels, no government would be necessary."[456] He knew better than to think people were this good. Still, the entire reason society needs laws against the sexual exploitation of children is people sexually exploiting children. Sexual restraint used to have a much greater purchase than it does now. Chastity has often been set aside as quaint, and some have even accused it of reinforcing male domination.[457] One imagines certain men, all too eager to live without restraint, nodding along.

Yes, chastity was long part of a set of patriarchal principles regulating sexuality, both male and female.[458] But the idea that the world would be a better place—for people of every sex, age, and variety of sexuality and gender expression—if people did not let their lustful gaze roam need not be outdated.[459] Chastity was once offered as an antidote to a legalistic mindset that focused only on the act of adultery.[460] It was meant to safeguard human beings and relationships in a more principled way; hence legend praised the townsfolk who averted their eyes from looking on Lady Godiva's nakedness.[461]

Such self-restraint has become almost unimaginable, as a practice and even as an ideal. "It is no longer considered merely acceptable to look at women naked without their consent; lack of consent has increasingly become the entire point of the spectacle, the factor that provides the erotic charge."[462] Legalism is back in fashion, and indulgence is celebrated with cultural enthusiasm right up until it becomes a jailable rights violation. That kind of reasoning may be adequate for criminal law, but as a guiding principle for society, it leaves much wanting. John Adams thought the liberal order he helped institute "was made only for a moral and religious people," "wholly inadequate to the government of any other."[463] A

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455. Bowen v. Gilliard, 483 U.S. 587, 632 (1987) (Brennan, J., dissenting).

456. THE FEDERALIST NO. 51 (James Madison).

457. *See* Rachel Budde Patton, *Taking the Sting Out of Revenge Porn: Using Criminal Statutes to Safeguard Sexual Autonomy in the Digital Age*, 16 GEO. J. GENDER & L. 407, 419–20 (2015) (criticizing chastity as the product of "pre-sexual-revolution views of women, particularly . . . the belief that women should remain sexually 'pure' before marriage and that sex, for women, should be confined to the marriage bed").

458. *See id.* ("Men are allowed, even encouraged, to have sex outside of committed relationships, but women who exercise the same sexual freedom are criticized.").

459. *Matthew* 5:28.

460. *Id.* at 5:27.

461. Franks, *supra* note 243, at 1253.

462. *Id.* at 1254.

463. John Adams, *To the Officers of the First Brigade of the Third Division of the Militia of Massachusetts* (Oct. 11, 1798), *quoted in* JOHN ADAMS ON RELIGION AND THE CONSTITUTION, ONLINE LIBR. OF LIBERTY, https://oll.libertyfund.org/quote/john-adams-religion-constitution [https://perma.cc/36JK-LX55].

society that does not use education and neighborly influence to channel its most animalistic urges toward proper human goods may find itself needing force rather than enjoying freedom.

B. Modesty

If chastity concerns curbing one's lust toward others, its complement is modesty—avoiding deliberately exciting others' lust. Some feminists dismiss this virtue as racist, sexist, and classist.[464] Aikenhead prioritizes instead the autonomy rights to "[a]ppearing in public, consenting to be photographed in a sexualized context, or sharing sexualized photographs with some limited audience."[465] However, teaching people—especially children—about sexual caution can help guard them against exploitation and future regrets. Even advocates for broad sexual autonomy can agree that tech savviness should be included in sex education classes.[466]

Abstaining from sexual acts and the production of nude images has proven possible for many minors. Only around 40% of American teenagers have had sexual intercourse by the age of 19.[467] Youth sharing of self-taken sexual images has "likely plateaued" with just 20% of minors sending such images, 35% receiving them, and 14.5% forwarding them without consent.[468] Modesty does appeal to some minors.

Intense shame and familial exclusion are likelier to break a young person's spirit than nudge it toward healthy commitments, and victims should certainly not be blamed for sexual offenses committed against them.[469] However, just as chastity can help inspire respect for others, so too can modesty inform caution, self-restraint, and self-respect.[470]

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464. Aikenhead, *supra* note 221, at 283; *see also* Citron, *supra* note 232, at 1876 ("Others warn that efforts to protect sexual privacy reinforce outmoded views of sexual modesty and shame . . . ."); *cf.* High, *supra* note 198, at 10–11 (criticizing Article 27 of the Geneva Convention (IV) for referring to rape as a violation of women's "honour").

465. Aikenhead, *supra* note 221, at 289.

466. Smith, *supra* note 221, at 882.

467. Joyce C. Abma & Gladys M. Martinez, *Teenagers in the United States: Sexual Activity, Contraceptive Use, and Childbearing, 2015–2019*, 196 NAT'L HEALTH STAT. REP. at *5 (Dec. 14, 2023), https://www.cdc.gov/nchs/data/nhsr/nhsr196.pdf [https://perma.cc/EX6X-YTBJ].

468. Camille Mori et al., *Are Youth Sexting Rates Still on the Rise? A Meta-Analytic Update*, 70 J. ADOLESCENT HEALTH 531, 531 (2022).

469. *See* Cathren Page, *Unbelievable: How Narrative Can Help Vulnerable Narrators Overcome Perceived Unreliability in the Legal System*, 27 LEGAL WRITING 35, 101 (2023) (mentioning the prevalence of victim-blaming and "slut-shaming"); Alexa Dodge, *"Try Not to Be Embarrassed": A Sex Positive Analysis of Nonconsensual Pornography Case Law*, 29 FEMINIST LEGAL STUD. 23, 23–24 (2021).

470. *See* Ardith Amon, *Rightly Remembering the Ladies*, READING WHEEL REV., https://crcd.net/review-the-rights-of-women [https://perma.cc/K622-4YKX] (reviewing ERIKA BACHIOCHI, THE RIGHTS OF WOMEN: RECLAIMING A LOST VISION (2021)) (writing that Wollstonecraft believed "both men and women should be expected to cultivate the virtue of chastity, using their reason to govern their sexual desires" and "[t]his fight for men to be held accountable to the same standards as women was a key pillar of first wave feminism").

C. Dignity

Finally, dignity abounds in legal and ethical discourse about sexual exploitation.[471] At the most abstract level, it is a conviction that every person has inherent worth.[472] It has ontological, moral, social, and existential aspects.[473] Some of its power comes from its identification of individual acts of violence with a rejection of "collective norms of humanity" and an assault on human personhood.[474] Dignity also recognizes victims as humans regardless of other characteristics like race, sexuality, or age.[475]

Beyond this, dignity is debated.[476] It is related to, but not the same as, autonomy.[477] For Kantians, dignity requires apex respect for each person's autonomy.[478] For other approaches, dignity can reject self-devaluation.[479] Either way, dignity is a justification for rejecting the pornographic depiction of people with impaired autonomy, such as children.[480] All dignity theories condemn sexual violence and exploitation as *dehumanizing*. One Australian court called rape a denial of dignity because the offender treated the victim as "chattel," a "thing that you could do with whatever you pleased."[481] Canadian courts, too, have referred to objectification, saying child sexual exploitation offends dignity because "the child is reduced to a nameless thing."[482]

Likewise, child pornography makes its victims "a mere means serving the voyeur's purposes."[483] This is often true even when images are produced with a teenager's supposed consent.[484] Autonomous adults can consent to being depicted in pornography under American law.[485] The law even allows for children to be used

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471. High, *supra* note 198, at 3, 6 (citing judicial decisions from India, Rwanda, and Canada, and constitutional provisions from Germany, Israel, and South Africa).

472. Dicastery for the Doctrine of the Faith, *Declaration "Dignitas Infinita" on Human Dignity* ¶ 1 (Apr. 2, 2024), https://www.vatican.va/roman_curia/congregations/cfaith/documents/rc_ddf_doc_20240402_dignitas-infinita_en.html [https://perma.cc/M7T8-FKRB]; *accord* High, *supra* note 198, at 6.

473. Dicastery for the Doctrine of the Faith, *supra* note 472, at ¶ 7.

474. High, *supra* note 198, at 11; *see also id.* at 22 (describing a gang-rape and murder as showing "irreverence" toward humanity (*quoting* Mukesh v. State for N.C.T. of Delhi, (2017) 6 SCC 1, ¶ 356)).

475. *Id.* at 11, 18.

476. *Id.* at 6.

477. *Id.* at 4.

478. *Id.* at 7.

479. *Compare id.* at 5, 33–34 (criticizing this interpretation), *with* Dicastery for the Doctrine of the Faith, *supra* note 472, at ¶ 7 (embracing it).

480. High, *supra* note 198, at 32 (describing a permanently comatose person).

481. *Id.* at 22 (*quoting* NPA v. Western Australia, [2018] WASCA 131 (2 August 2018) ¶ 53 (Austl.) (citation omitted)).

482. *Id.* (*citing* R. v. E.M.W., [2011] 308 N.S.R. 2d 15, ¶ 13 (Can.)).

483. United States v. Wiegand, 812 F.2d 1239, 1245 (9th Cir. 1987).

484. *See* LoveIsRespect, *Healthy Relationship High School Educators Toolkit*, at 3, https://www.loveisrespect.org/wp-content/uploads/2016/08/highschool-educators-toolkit.pdf [https://perma.cc/JBK3-9MG6] ("One in three adolescents in the U.S. is a victim of emotional, physical or sexual abuse from a dating partner . . . .").

485. *Wiegand*, 812 F.2d at 1245.

for entertainment and commercial purposes in ways many later find exploitative.[486] However, dignity teaches as a matter of ethics the importance of the line drawn by law: society "will not suffer the insult to the human spirit, that the child should be treated" as fodder for adult lust.[487]

CONCLUSION

> Once abused women are heard and—this is the real hitch—become real, women's silence can no longer be the context in which pornography and speech are analyzed.
>
> — Catherine MacKinnon (1996)[488]

Children must be centered in discussions of child pornography. Making their rights real means thinking through sex and its relationship to privacy. It also means realizing how children differ from competent adults. Does that mean abandoning liberalism? Fineman thinks so; I do not.[489] It does require going beyond liberalism *horizontally*—accepting it for competent adults, but recognizing there are other members of the human family as well. It is also important to think beyond liberalism's borders *vertically*. Liberalism can tell us that certain core rights should be protected, like freedom from physical violence and fraud. But what else must law revere? That depends on natural, historical, and social concerns. There is room for debate, deliberation, and decisions to fill in liberalism's content.

A liberal society should recognize children's negative right to intimate privacy. What children are, what intimacy is, how history has considered both, and how society understands both all demand this. Criminalizing the viewing of child pornography is no mere matter of addressing harm or curbing economic incentives. It vindicates rights.

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486. *See, e.g.*, MiKayla B. Jayroe, Comment, *Kidfluencers: New Child Stars in Need of Protection*, 76 ARK. L. REV. 771 (2024).

487. *Wiegand*, 812 F.2d at 1245.

488. MACKINNON, *supra* note 169, at 9.

489. *See* Fineman, *supra* note 276, at 12.

Judicial Humility and Reticence in Administrative Law

JACK FITZHENRY* AND GIANCARLO CANAPARO**

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Humility has been top of mind for Justice Elena Kagan, a concern surfacing often in her questions and opinions across several terms whenever the case involves a federal agency. The Supreme Court, in her view, lacks humility. And it demonstrates this lack whenever it questions agency priorities.

In January, the Court heard two cases challenging the *Chevron* doctrine, which requires courts to defer to an agency's "reasonable" interpretation of gaps or ambiguities in statutes.[1] Justice Kagan answered that challenge by calling *Chevron* a "doctrine of humility."[2] "We know in our heart of hearts," she explained "that agencies know things that courts do not. And that's the basis of

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1. Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244 (2024) (No. 22-451); Relentless, Inc. v. Dep't of Com., No. 22-1219.

2. Transcript of Record at 34, Loper Bright Enters. v Raimondo, 144 S. Ct. 2244 (2024) (No. 22-451).

Chevron."[3] Justice Kagan, and likeminded thinkers, rely on the agency-specific ability to "know things" as the primary justification for assuming that Congress prefers agencies, not courts, to resolve ambiguities in statutes. Convinced of the agencies' epistemic superiority, Justice Kagan reminded her colleagues in *West Virginia v. EPA* that "this Court has historically known enough not to get in the way."[4] Many scholars defend judicial deference in similar terms.[5]

The types of determinations for which agencies demand judicial deference vary; the determination may be factual, whether pertaining to the agency's area of expertise or not; it may be a determination of the law's application to certain facts; or it may be a pure question of law, a assertion of what a provision in the agency's organic statute means or what that law's metes and bounds are. Regardless of the type of decision for which deference is sought, there are good reasons to think that the epistemic gap between agencies and courts is neither so deep nor so wide as to merit deference and that the insistence on deference as a form of humility is premised less on a judicial incapacity to address borderline cases and more about a preference for shifting policymaking towards the executive branch.[6] This conclusion has implications for other deference rationales.

As for the epistemic gap rationale, it fails because the gap can be closed.[7] As Paul Ray explains in a forthcoming paper, there are "good reasons" to conclude "that the expertise underlying the most important interpretations could be communicated to reviewing courts at quite manageable costs."[8] This is so because at several junctures in the internal processes by which an agency crafts a final rule,

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3. *Id.*

4. West Virginia v. EPA, 597 U.S. 697, 782 (2022).

5. *See, e.g.*, ADRIAN VERMEULE, LAW'S ABNEGATION: FROM LAW'S EMPIRE TO THE ADMINISTRATIVE STATE 8 (2016) (arguing that the judiciary's surrender of power to the administrative state was done for "valid lawyerly reasons" and that "good Dworkinians" should support it); Cass R. Sunstein, *Chevron As Law*, 107 GEO. L.J. 1613, 1666 (2019) (acknowledging the possibility that *Chevron* "unleashes political officials from law" but taking the position nonetheless that it is a doctrine of judicial humility); Gillian E. Metzger, *The Roberts Court and Administrative Law*, 2019 SUP. CT. REV. 1, 43–44 (2019) ("Moreover, the arguments for deference to agencies on fact and policy matters-such as agencies' greater political accountability, expertise, or congressional authorization-also push toward deference in law application, which easily spills over into law interpretation."); Stephen Breyer, *The Executive Branch, Administrative Action, and Comparative Expertise*, 32 CARDOZO L. REV. 2189, 2193 (2011) ("Courts find the notion of comparative expertise useful, indeed necessary, when reviewing administrative decisions."); Mark Seidenfeld, *Chevron's Foundation*, 86 NOTRE DAME L. REV. 273, 275 (2011) (arguing that *Chevron* "encourages courts to refrain from dictating outcomes in policy-laden decisions"); David J. Barron & Elena Kagan, *Chevron's Nondelegation Doctrine*, 2001 SUP. CT. REV. 201, 223 (2001) ("[Chevron] stressed more heavily the virtues of placing interpretive decisions in the hands of accountable and knowledgeable administrators.").

6. *See* Aditya Bamzai, *The Origins of Judicial Deference to Executive Interpretation*, 126 YALE L.J. 908, 994 (2017); *see id.* at 994 n.370.

7. Paul J. Ray, *Lover, Mystic, Bureaucrat, Judge: The Communication of Expertise and the Deference Doctrines* (CSAS Working Paper 23-32, 2023), https://administrativestate.gmu.edu/paper/lover-mystic-bureaucrat-judge-the-communication-of-expertise-and-the-deference-doc trines [https://perma.cc/5AXJ-XULG].

8. *Id.* at 1.

regulation, or decision, agency experts have "*already* successfully communicate [d] their expertise to non-experts."[9]

As Ray points out, judicial deference to agencies on the basis of agencies' expertise is justified only if four things are true: (1) that the agency has expertise in the subject at hand; (2) that the expertise is necessary to making a good decision; (3) that the agency uses its expertise to make decisions; and (4) that a reviewing court does not have the expertise and cannot reasonably learn it.[10] The Supreme Court regularly denies deference when any of the first three conditions is violated, but neither the Supreme Court nor other courts have paid much attention to the fourth requirement.[11] They tend to assume that judges simply cannot come to know what agency experts know.[12]

This assumption is wrong.[13] First, all agency expertise is communicable. It is gained through instruction or experience.[14] In the early days of the administrative experiment, experience was more important; today, instruction.[15] In most present instances, someone taught the agency's experts most of what they know, and they, in turn, can teach it to others.[16] Indeed, agency experts teach what they know to others all the time.[17] That's why agencies publish guidance documents and the like: to pass on to regulated parties, the public, and the agency officials' successors what the agency believes is lawful, necessary, and proper to resolve a public policy problem.[18]

The process of creating regulations "is thick with demands for justification."[19] Throughout the process, subject matter experts within agencies must teach their expertise to "a host of interlocutors both within their own agency and throughout the broader executive branch."[20] Many political appointees to whom the regulatory choices must be explained have only limited training or expertise of their own to rely on. Yet they, as much as anyone in the agency and in the administration more broadly, must be convinced of the soundness and feasibility of the proposed approach. Thus, by the time any case challenging a finalized regulation arrives before a judge, the experts will have communicated their knowledge to many non-experts; there is no reason they could not do the same to judges.[21] Judges *can*, therefore, come to know what agency experts know.

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9. *Id.* at 3.
10. *Id.* at 6–7.
11. *Id.* at 9.
12. *Id.*
13. *Id.* at 9–14.
14. *Id.*
15. *Id.*
16. *Id.*
17. *Id.*
18. *See*, *e.g.*, FOOD & DRUG ADMIN., CNTR. FOR DRUG EVALUATION & RESEARCH, PSYCHEDELIC DRUGS: CONSIDERATIONS FOR CLINICAL INVESTIGATIONS, GUIDANCE FOR INDUSTRY, DRAFT GUIDANCE (June 2023).
19. Ray, *supra* note 7, at 13.
20. *Id.*
21. *Id.*

That conclusion has implications for an array of contexts in which the question of deference may arise. Not only can agencies provide judges with the explanations of their legal interpretations—which judges are expert in assessing—agencies also can effectively communicate their thinking on factual determinations to judges, even determinations on matters that seem at first glance impenetrably abstruse to a generalist. The point is not to provide judges with license to supplant the agency's choice where that determination is purely factual. But the most confounding questions in agency cases arise when the determination at issue could plausibly be characterized as factual or legal with the choice between the two dictating much about whether the judge will examine the question in search of the best answer or merely defer to a facially plausible one.[22] Expertise does not birth fully formed policy solutions absent the inclusion of other ingredients, often normative or even nakedly political in nature. Being better informed about the types of judgments comprising the arc of a policy's development can assist judges in sifting through those decisions to distinguish between matters that are truly factual and those that entail additional value judgments. Value judgments may be inevitable, but where the kernel of controversy is the agency's authority to act, then courts will be better positioned to assess the extent to which agencies' value judgments are a faithful execution of Congress's purposes and whether those ends are being pursued within proper statutory bounds.

This conclusion has implications for the subsidiary justification for preferring agencies as interpreters of statutory ambiguity: that agencies are more democratically accountable than judges. Although no agency employee is elected, and though most are career civil servants, by dint of presidential control and a few presidential appointees, agency personnel are relatively more accountable than federal judges.[23] But congressional representatives are still more accountable than either agency personnel or judges. Should not the accountability rationale favor more decisions being made by the *most* accountable body and not merely a relatively more accountable one?

The reason for not following the accountability rationale to this conclusion is the countervailing effect of the expertise rationale. Sure, Congress is more accountable, but much like judges, congressmen do not know much of anything. Justice Kagan again:

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22. *See* Bamzai, *supra* note 6 (quoting John Dickinson, Administrative Procedure Act: Scope and Grounds of Broadened Judicial Review, 33 ABA J. 434, 517 (1947)) ("Dickinson noted that, far from being a sign of judicial quiescence, the Court's ability to redraw the line between questions of law and fact—and, hence, to 'draw the line between what is "general" and what is "technical"'—necessarily lodged great power in the Justices by 'leaving to the Court's discretion the determination of whether it would or would not review a legal question.'").

23. *See* Elena Kagan, *Presidential Administration*, 114 HARV. L. REV. 2245, 2331 (2001) ("Presidential administration promotes accountability in two principal and related ways."); Kenneth W. Starr, *Judicial Review in the Post-Chevron Era*, 3 YALE J. ON REG. 283, 312 (1986) ("*Chevron* shifts power from the courts to the agencies, shifting with it the site of the real battle over regulatory decisions. In numerous ways, the decision returns the power to set policy to democratically accountable officials, not least by making it easier for a new administration to oust an old regulatory order.").

> Members of Congress often can't know enough—and again, know they can't—to keep regulatory schemes working across time. Congress usually can't predict the future—can't anticipate changing circumstances and the way they will affect varied regulatory techniques. Nor can Congress (realistically) keep track of and respond to fast-flowing developments as they occur.[24]

Fair enough. But there is more than a little here to debate. Let us assume, maybe unkindly, that members of Congress know even less than judges. Should we conclude that representatives are fundamentally unteachable in some way that judges are not? There is no sound basis for that. If secret, incommunicable knowledge is no more valid in justifying regulations to legislators than to judges, then what fundamental obstacle prevents agencies from educating legislators on the relevant points of expertise? And what then should prevent the truly, not merely relatively, accountable body from legislating based on the agencies' best proposals? Greater input from agencies on the front-end of the legislative process seems likely to result in fewer back-end interpretive difficulties as Congress would have a better opportunity to understand and legislate on the appropriate means of implementing its designs based on a fuller understanding of the technical aspects of the problem it seeks to address.

The rejoinder, as in the case of judges, is that the costs are too high, a premise implicit in the assertion that Congress cannot "realistically" keep pace with modernity's multifarious policy demands.[25] Congress oversees priorities so numerous and diverse that its members cannot possibly attain an adequate understanding of more than a few matters. Perhaps. But perhaps both Congress and the federal government writ large have arrogated too many responsibilities to themselves, taking too many away from state or local authorities sometimes with the cooperation of the federal courts. Perhaps, to the extent Congress feels overwhelmed, that is a symptom of an unnecessary problem of their own making. If so, it seems that decentralizing some of this work to non-federal authorities is as plausible a solution as choosing to concentrate it further still within the executive branch.

Putting that aside, the unmanageable-workload argument still gets one only so far. Congress consists of 535 members, somewhat less than the total number of federal judges. But with the assistance of considerably larger staffs and committees with investigatory power, they possess even greater practical ability to assimilate and implement the relevant agency expertise than does any single federal judge.

As a deliberative institution of equals, though, Congress fails to embody the features of idealized agencies. Maybe new, unforeseen challenges ought to occasion deliberative evaluation in Congress? But no, there is no time—not when every new policy challenge from climate change to student loans is its own

24. West Virginia v. EPA, 597 U.S. 697, 781–82 (2022).
25. *Id.*

emergency, or so we are told.[26] Agencies behave not like agents but like a policy vanguard overcoming novel challenges, applying expertise synthesized within their hierarchical chain of command. There is no lag waiting for Congress to gather up its fragmented collective mind, just expert solutions ready to salve the collective angst of a nation perpetually in need. Or so the argument goes.[27] One suspects that those who defend deference on these grounds are only one or two rhetorical moves away from invoking the right of self-preservation to justify agency action.[28] But one consequence of the insistence that agencies must have latitude to innovate is to ensure that deliberative reconsideration of policy becomes an intramural affair within agencies, where they revise and repurpose outmoded congressional programs like they are running software updates. Congress need not trouble or be troubled. Its members need never face the political risks of making hard policy compromises.

Congress may enjoy at least one comparative advantage: "Congress knows about how government works in ways courts don't. More specifically, Congress knows what mix of legislative and administrative action conduces to good policy."[29] That may be true, but the statement assumes away another plausible explanation for the "mix" Congress chooses: the mix may have little to do with good policy and much to do with shielding Congress from political accountability.[30] Why courts should defer to arrangements made on that basis is unclear. But the statement also sets a baseline presumption that is not self-evidently true, namely, that Congress prefers agencies not only as executors of the law but as the law's

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26. *See generally* GianCarlo Canaparo & Paul J. Larkin, *The Constitution and Emergencies: Regulating Presidential Emergency Declarations*, HERITAGE FOUND., Legal Memo. No. 335 (June 20, 2023), https://www.heritage.org/sites/default/files/2023-06/LM335_0.pdf [https://perma.cc/83C2-25NU] (examining the prolific use of emergency powers for non-emergencies).

27. *But cf.* Brett M. Kavanaugh, *Fixing Statutory Interpretation*, 129 HARV. L. REV. 2118, 2151 (2016) (reviewing ROBERT A. KATZMANN, JUDGING STATUTES, xi, 171 (2014)) ("We must recognize how much *Chevron* invites an extremely aggressive executive branch philosophy of pushing the legal envelope (a philosophy that, I should note, seems present in the administrations of both political parties)."); *see also* RACHEL AUGUSTINE POTTER, BENDING THE RULES: PROCEDURAL POLITICKING IN THE BUREAUCRACY 5 (2019) (acknowledging that the view of bureaucrats as neutral experts is incorrect—they are "inherently political"—while also urging bureaucrats to "use administrative tools to strategically and systematically insulate their rule-making proposals from political scrutiny and interference"). *But cf.* Sunstein, *supra* note 5, at 1667 (deriding the view that agencies push political priorities through statutory mouseholes as "a cartoon.").

28. *See, e.g.*, VERMEULE, *supra* note 5, at 59–60 ("Legislative institutes are structurally incapable of supplying policy change at the necessary rates," and so we must give power to the administrative state, even if we must sacrifice "the quality of policy," "impartiality," and the "very goal of minimizing abuses of power.").

29. West Virginia v. EPA, 597 U.S. 697, 783 (2022).

30. *See* DAVID SCHOENBROD, POWER WITHOUT RESPONSIBILITY: HOW CONGRESS ABUSES THE PEOPLE THROUGH DELEGATION (1993) (arguing that Congressional delegations undermine the accountability that the Article I lawmaking procedures provide); Peter H. Aranson, et al., *A Theory of Legislative Delegation*, 68 CORNELL L. REV. 1 (1982) (applying a public choice lens to congressional delegation); Neomi Rao, *Administrative Collusion: How Delegation Diminishes the Collective Congress*, 90 N.Y.U. L. REV. 1463 (2015) (arguing that congressional deference "destroys the Madisonian checks and balances").

primary interpreters as well. Of course, only the executive branch can execute the laws, but when it comes to interpretation, it is just as reasonable to think, as Professor Tom Merrill does, that "Congress undoubtedly perceives the independent judiciary as a more plausible faithful agent than the executive branch agencies" because the latter "are more likely to interpret statutes to further transitory political objectives of the incumbent President."[31]

Finally, it is all well to talk about honoring Congress' intended division of labor between itself and agencies. But when Congress prescribed what it deemed the proper mix of agency discretion and judicial review in the 1946 Administrative Procedure Act, courts paid little attention and continued building in an ad hoc fashion a jurisprudence of deference.[32] The current Supreme Court, until recently, paid little attention to what the APA's judicial review provision, Section 706, might mean for deference. In that section, Congress instructed courts to "decide all relevant questions of law" and "hold unlawful and set aside agency action" that is "in excess of statutory jurisdiction, authority, or limitations, or short of statutory right."[33]

Although there is some room for disagreement about the precise interpretive rules Congress intended to codify in the APA, the law makes no mention of deferential review and the overwhelming weight of prior jurisprudence supported judicial deference only where the agency's interpretation of law had been a longstanding construction developed contemporaneously with the law's enactment.[34] The departure from those norms towards deference doctrines that privilege even novel and inconsistent agency interpretations seems to have been more a matter of preference (in both the federal judiciary and the Department of Justice) than a principled adherence to Congress' wishes in the APA.[35] The Supreme Court has gone so far as to declare that *Chevron* deference is owed to an agency's determination of its own jurisdiction, despite that holding's tendency to render nugatory the judicial duty to set aside agency action in excess of statutory jurisdiction.[36] Despite the administrative state's tendency to strain the traditional tripartite division of government, the judiciary has in many instances declared itself unwilling to say when agencies have pushed too far. For defenders of this judicial reticence, the judiciary does its best when it is as small an impediment as possible to policymaking;[37] when it does not, as Kagan puts it, "get in the way."[38]

But this vision of restraint is backwards.[39] Although judicial freewheeling is a legitimate concern, the restraint that ought to concern judges at least as much is

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31. THOMAS W. MERRILL, THE *CHEVRON* DOCTRINE: ITS RISE AND FALL, AND THE FUTURE OF THE ADMINISTRATIVE STATE 231 (2022).

32. Bamzai, *supra* note 6, at 995.

33. 5 U.S.C. § 706 (West).

34. Bamzai, *supra* note 6, at 962–65.

35. MERRILL, *supra* note 31, at 94–96.

36. City of Arlington v. F.C.C., 569 U.S. 290 (2013).

37. VERMEULE, *supra* note 5, at 58–60.

38. West Virginia v. EPA, 597 U.S. 697, 782 (2022) (Kagan, J., dissenting).

39. *See* MERRILL, *supra* note 31, at 231 (arguing that the "better baseline assumption is" not that court's should defer to agency determinations but "that questions of law must be resolved by courts

restraining the *other* branches.[40] After all, the voluntary contraction of the judicial power vested by Article III is not a costless enterprise. The judiciary is intended to be an obstacle, a mighty "bulwark" in Alexander Hamilton's words, defending the "limited constitution" against the encroachments of the executive and legislative branches.[41] Through interpretation, courts "expound and define the [law's] true meaning and operation" without which, the laws themselves would be but "a dead letter."[42] By exercising its "peculiar" expertise in "interpretation of the laws," the courts both interpose themselves as the protective "intermediate body between the people and the legislature" and keep the rival powers "within the limits assigned to their authority."[43] Much of that constitutional role ends up obscured in agency cases by the distinctly modern form of judicial humility that says that courts ought to defer for expediency's sake.

During the oral arguments challenging *Chevron*, Justice Kagan observed that when courts read a statute, "sometimes law runs out," meaning that at some point in the legislative process, Congress stopped making decisions.[44] The question is whether that point marks the beginning of a frontier open for the agency's policy-making authority or whether it marks the end of delegated authority to act. Deference broadly, and *Chevron* deference specifically, conditions the way that judges approach and answer that question. Undoubtedly, there are questions integral to a statutory scheme that Congress has not answered with the degree of detail necessary for implementation. Here, agencies must bring their expertise to bear, devising a means for bringing Congress's design to fruition.

But it is not always the case that Congress is inviting the agency to pick up where the drafters left off. Take the two cases challenging *Chevron*.[45] Congress gave the national marine fisheries service authority to fund its at-sea monitor program through fee collection in limited circumstances and subject to strict constraints. [46] Small herring vessels are not among those covered by Congress's specific delegation of fee-collecting authority.[47] Nevertheless, the agency took that specific delegation as indicative of a much broader authority that Congress had supposedly transferred to it to extract fee funding from fishermen whenever their monitor programs wanted for resources. Implausible and self-serving though this sounds, the D.C. Circuit gave the agency's interpretation Chevron

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unless Congress has actually delegated authority to the agency to act as the primary interpreter with respect to the provision in question").

40. *See* City of Arlington, Tex. v. F.C.C., 569 U.S. 290, 327 (2013) (Roberts, C.J., dissenting) (stating that the judiciary is constitutionally obligated "not only to confine itself to its proper role, but to ensure that the other branches do so as well").

41. THE FEDERALIST No. 78 (Alexander Hamilton).

42. THE FEDERALIST No. 22 (Alexander Hamilton).

43. THE FEDERALIST No. 78 (Alexander Hamilton).

44. Transcript of Record at 12, Relentless, Inc. v. Dep't of Com., No. 22-1219.

45. Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244 (2024) (No. 22-451); Relentless, Inc. v. Dep't of Com., No. 22-1219.

46. Loper Bright Enters. v. Raimondo, 45 F.4th 359 (D.C. Cir. 2022), cert. granted in part sub nom. Loper Bright Enters. v. Raimondo, 143 S. Ct. 2429 (2023).

47. *Id.*

deference.[48] Deference, as Justice Samuel Alito put it in another context, allows the executive branch to "acquire authority forbidden by law through a process akin to adverse possession."[49]

Judges weaned on doctrines requiring deference to agencies have a blind spot for the possibility that the power to act should be strictly construed even, perhaps especially, where an agency is involved. A part of the explanation is a legitimate hesitancy to approach questions that in their most extreme presentations verge on intractable. Because there are limits to the answers law can provide, neither the law nor its most discerning practitioners are able to settle all questions pertaining to government, at least not in terms of law alone.[50] Even where the law's domain has not run out entirely, an inability to formulate those answers in terms of clear consistent divisions or clean syllogistic tests, can make lawyers cautious to the point of paralysis. What, for instance, is the dividing line between a question of law and fact? Between policy questions and legal questions? When Congress has legislated, which matters in the bill count as "important subjects, which must be entirely regulated by the legislature itself," and which mere "details" which agencies may address?[51] What is the *sine qua non* of an intelligible principle? Is the distinction between jurisdictional and non-jurisdictional determinations real or imagined when the actor is an agency?[52] The answers to these questions bear directly on when and how agencies have authority to act. No less a lawyer and jurist than the late Justice Antonin Scalia quailed at the prospect of answering many such questions while on the bench.[53]

But where the maintenance of the separation of powers is at stake, it is no answer to say that the judiciary is equipped to adjudicate only questions with clear answers.[54] As Merrill says, "[i]f courts can apply the jurisdiction-nonjurisdiction distinction in considering judicial authority, they should be capable of applying the same distinction in deciding what standard of review to apply to agency

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48. *Id.*

49. Biden v. Texas, 597 U.S. 785, 830 (2022) (Alito, J. dissenting).

50. Justice Robert Jackson made a similar observation in his dissenting opinion in *Korematsu*, writing that the tools of law are so ill-suited to reviewing military judgments that courts "can never have any real alternative to accepting the mere declaration of the authority that issued the order that it was reasonably necessary from a military viewpoint." Korematsu v. United States, 323 U.S. 214, 245 (1944) (Jackson, J., dissenting). But that, of course, is not the case with administrative agencies which must act reasonably, and which communicate the reasons for their actions constantly. *See* Ray, *supra* note 7.

51. Wayman v. Southard, 23 U.S. (10 Wheat.) 1, 31, 43 (1825).

52. *See* City of Arlington, Tex. v. F.C.C., 569 U.S. 290, 297 (2013).

53. *Id.*; Mistretta v. United States, 488 U.S. 361, 415 (1989) (Scalia, J., dissenting) ("But while the doctrine of unconstitutional delegation is unquestionably a fundamental element of our constitutional system, it is not an element readily enforceable by the courts.").

54. *Mistretta*, 488 U.S. at 415 (Scalia, J., dissenting) ("It is difficult to imagine a principle more essential to democratic government than that upon which the doctrine of unconstitutional delegation is founded: Except in a few areas constitutionally committed to the Executive Branch, the basic policy decisions governing society are to be made by the Legislature."); *see also* MERRILL, *supra* note 31, at 225 ("The solution to the 'fox-in-the-henhouse syndrome' according to Scalia, was for courts to strictly enforce statutory limits that are clear or unambiguous. What this means, of course, is that agency power will be limited only when Congress has legislated unambiguously to limit it.").

interpretation of law."[55] Concerning the litany of other difficult dichotomies, there is similarly good reason to believe that judges, though far from infallible, are not nearly so impotent as deference proponents pretend. Expansion of the administrative state thrives in these legal borderlands, the space separating clear dichotomies on a doctrinal continuum, where expansive and novel claims of authority are made on the assumption —held by Congress and the executive branch alike—that courts cannot or will not police them. Yet, given the scale of innovation occurring at the margins between these questions, routinized judicial deference amounts to an abdication of any meaningful role in maintaining the separation of powers.[56] It is to cede to the combination of the executive and legislative branches practically unlimited sovereignty to reshape the federal government according to the lights of expediency. Thus, the question is not whether courts can provide unfailing answers in all borderline cases but whether they can blanketly exempt themselves from adjudicating all such controversies.

This brings us to a second related explanation: the lack of real belief in a *limited* Constitution. Instead, proponents of a muscular administrative state are convinced, at least implicitly, that "the federal government for all intents and purposes has acquired by prescription, over time, a de facto police power."[57] From the expansion of agencies in the progressive era onward to today, the judiciary has tailored and contracted itself to accommodate the growth of this police power within the administrative state.[58] Even as agencies have actively enlarged their sphere of operation, deference-prone jurists demonstrate little concern for the incentives their rulings create for agency actors. In many instances, the Supreme Court's jurisprudence has, as Justice Clarence Thomas observed, "emboldened" agencies "to make the bid for deference" to interpretations that exceed even the "extremely permissive limits on agency power."[59] One longtime appellate jurist described the problem as follows: "it seems to me that the agency is not trying to answer the same question that [courts] are. The court tries to find the best objective interpretation of the statute, based on the statutory text. The agency instead asks if there is a *colorable* interpretation that will support the policy result that the agency wants to reach."[60] It is not the ineliminable indeterminacies of language that bring about this approach; it is judicial deference, whether

55. MERRILL, *supra* note 31, at 224.

56. *See* Gundy v. United States, 139 S. Ct. 2116, 2142 (2019) (Gorsuch, J. dissenting) ("To leave this aspect of the constitutional structure alone undefended would serve only to accelerate the flight of power from the legislative to the executive branch, turning the latter into a vortex of authority that was constitutionally reserved for the people's representatives in order to protect their liberties.").

57. ADRIAN VERMEULE, COMMON GOOD CONSTITUTIONALISM: RECOVERING THE CLASSICAL LEGAL TRADITION 34 (2022).

58. *See generally* PHILIP HAMBURGER, IS ADMINISTRATIVE LAW UNLAWFUL? (2014); JOSEPH POSTELL, BUREAUCRACY IN AMERICA: THE ADMINISTRATIVE STATE'S CHALLENGE TO CONSTITUTIONAL GOVERNMENT (2017).

59. Michigan v. EPA, 576 U.S. 743, 763 (2015) (Thomas, J., concurring).

60. Raymond Kethledge, *Ambiguities and Agency Cases*, 70 VAND. L. REV. EN BANC VOL. 315, 323 (2017) (emphasis added).

crystallized as a formal doctrine, *e.g.*, *Chevron* and *Auer*, or whether applied as a deeply ingrained judicial reflex that appears in the guise of ad-hoc presumptions.[61] Given the political control of agencies and the broadened policy horizons enabled by deference, it is no wonder that agencies are anxious to interpret law in this fashion, if not as a routine matter, then often enough and in important enough controversies for the approach to be a serious concern even for proponents of administrative governance.

When the Supreme Court rejects expansive agency interpretations, dissenters declare that the Court is making policy.[62] But seldom does the Court ever tell an agency or Congress to adopt any particular policy. By defining the spectrum of policy choices permitted by the law or the Constitution, the Court may indirectly influence policy, but so does a court that reflexively defers. Deference is a commitment to a kind of policy maximization—any means suited to the broadly defined congressional objectives in the statute must be allowed to the agency unless expressly prohibited by the statutory text. Deference is, in effect, a subtler form of purposivism, a judicially supplied necessary-and-proper clause for the administrative state.

Courts should not retreat from their duty to say what the law is.[63] To be sure, courts have no roving commission to act like bushwhackers hacking off the limbs of the administrative state right and left. But when a case or controversy challenges the agencies' often audacious claims of power, judges owe their country and their office the benefit of their best independent judgment of the law.

Judicial humility, then, is not self-deprecation, nor is it the epistemic insecurity that causes judges to worry about "getting in the way" of subject-matter experts. Rather, judicial humility is the singular focus on the core judicial duty of preserving our constitutional structures. To borrow an observation made in a different context, a humble judge "will not be thinking about humility: he will not be thinking about himself at all."[64]

ADDENDUM

As the Supreme Court sent *Chevron* deference to the depths, the theme of judicial humility and its attendant debates resurfaced. Justice Elena Kagan, with Justices Sonia Sotomayor and Ketanji Brown Jackson in tow, spent much of her dissent lobbing accusations of judicial hubris at the majority.[65] Her criticisms,

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61. *See, e.g.*, Relentless, Inc. v. United States Dep't of Com., 62 F.4th 621, 629 (1st Cir. 2023) (deciding in favor of an agency interpretation based on the "default norm . . . that the government does not reimburse regulated entities for the cost of complying with properly enacted regulations").

62. *See, e.g.*, West Virginia v. EPA, 596 U.S. at 783 (Kagan, J., dissenting) ("In rewriting that text, the Court substitutes its own ideas about delegations for Congress's. And that means the Court substitutes its own ideas about policymaking for Congress's.").

63. *See* Marbury v. Madison, 5 U.S. 137, 177 (1 Cranch 137) (1803) ("It is emphatically the province and duty of the judicial department to say what the law is.").

64. C.S. LEWIS, MERE CHRISTIANITY 114 (1960).

65. *See, e.g.*, Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244, 2294 (2024) (Kagan, J., dissenting) ("A rule of judicial humility gives way to a rule of judicial hubris."); *id.* at 2295 ("And the majority cannot destroy one doctrine of judicial humility without making a laughing-stock of a second.

previewed during oral arguments, did not deter the majority or save *Chevron*. They did, however, prompt responses from Chief Justice Roberts, writing for the six-justice majority, and from Justice Neil Gorsuch, who used his solo concurrence to develop his own thoughts on how humility guides a judge's relationship to judicial predecessors and precedent.

We glossed the theme of judicial humility in relation to judicial deference before the close of the Supreme Court's 2023 term.[66] Now, we reflect on these debates in light of that term's decisions in *Loper Bright Enterprises v. Raimondo* and *Relentless v. Department of Commerce* in this addendum.

Before taking up the opinions from the bench, consider an opinion that is bench-adjacent—indeed, as near to the decisions as one can be without having written them. Not long after the Supreme Court handed down its rulings, Paul Clement—appellate counsel for *Loper Bright*—characterized the decision as a "Copernican" shift in the understanding of administrative law.[67] Of course, the authors are not bound to *defer* to that characterization even coming from an advocate of Clement's eminence. Nevertheless, his opinion might prevail based on its ability to persuade the listener that it captures the decision's significance. And "Copernican" is an apt way to put the matter.

The shock Copernicus gave to the medieval mind with his insistence on a heliocentric universe did not alter reality. The celestial bodies described by his theorem remained in motion as before. Copernicus, however, changed the way people understood reality, their place in a broader cosmos. Something similar—though far less grand—is true here. The bodies of the federal government, great and small, continue to move in their courses much as they did on June 27, 2024. Neither the hopes of *Loper Bright*'s proponents nor the fears of its detractors can convert the decision into the tool that suddenly fells the cloud of administrative satellites orbiting the executive branch. What changed on June 28, 2024, when the decisions in *Loper Bright* and *Relentless* were announced, was the way that judges, civil servants, and legislators are obliged to approach questions of the administrative state's relationship to the major planets of the constitutional cosmos.

Copernican is also an apt characterization because it evokes imagery central to the administrative state's mythology. Woodrow Wilson, the godfather of the federal administrative state, considered the framers' vision of constitutional order

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(If opinions had titles, a good candidate for today's would be Hubris Squared.)"). Justice Jackson recused herself from the *Loper Bright* case given her prior exposure to the case while serving on the U.S. Court of Appeals for the District of Columbia. She did, however, hear arguments in *Relentless* and joined Justice Kagan's dissent as it applied to that case.

66. *See* discussion *supra* pp. 1–10.

67. The Federalist Society 2024 Annual Supreme Court Round Up (at 10:50) https://www.youtube.com/watch?v=LXr8Ez80kYI [https://perma.cc/36FV-B4KA].

outmoded because it was "Newtonian" in conception.[68] Wilson criticized the framers' insistence on a system in which the three branches operated in their separate spheres as a government constructed on the model of "an orrery."[69] Wilson insisted to the contrary that a government was not a "solar system" but an organism, that it answered "to Darwin, not to Newton," and that it must be permitted to evolve whatever cooperative arrangements were best adapted to the challenges of the times.[70]

But with legal formalism resurgent on the Supreme Court, the planetary analogy retains not only appeal but relevance. Despite periodic experiments in novel government arrangements—hybrid entities like the Federal Trade Commission or the Consumer Financial Protection Bureau—the tripartite separation of federal powers has not faded into history but remained the polestar for government actors in every branch. And while complete differentiation of the branches' respective powers may not be practicable, it is the beau idéal with which judges must reckon in every case that implicates the horizontal separation of powers. Thus, the Newtonian/Copernican notion that the great bodies of government should move in their appointed orbits and retain or roughly fixed relations to one another remains a serviceable analogy. While Darwin, a stranger to the founders' generation, is not in vogue with legal thinkers who aspire to understand, if not emulate, the designs of our government's architects.

Just as Copernicus's heliocentrism reoriented mankind's attention to the solar system's real center, so the *Loper Bright* decision attempts to reorient its audience's attention towards its proper focus. To what exactly? Not to the courts, at least not primarily as the dissenters think. Rather, in the most immediate sense, it is to the Administrative Procedure Act, "the fundamental charter of the administrative state," that somehow escaped notice or mention in the 1984 *Chevron* decision.[71] In a more remote sense, towards the Constitution's first three articles, which gave interpretive authority to the courts, gave legislative authority to Congress, and gave neither to the supporting cast of executive branch actors.

THE CASES

Both *Loper Bright* and *Relentless* were filed by fishermen challenging the National Marine Fisheries Service's interpretation of the Magnuson-Stevens Act.[72] The Fisheries Service oversees a congressionally mandated program under which fishing vessels are obliged to carry monitors aboard, who would, among

68. WOODROW WILSON, *What Is Progress?*, *in* THE NEW FREEDOM: A CALL FOR THE EMANCIPATION OF THE GENEROUS ENERGIES OF A PEOPLE (1912) https://www.gutenberg.org/files/14811/14811-h/14811-h.htm#II [https://perma.cc/73JJ-ZHWJ].

69. *Id.*

70. *Id.*

71. John F. Duffy, *Chevron, De Novo: Delegation, Not Deference*, 31 GEO. MASON L. REV. 541 (2024) (discussing "the glaring omission in the Chevron opinion of any mention of section 706 or any other section of the APA").

72. Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244, 2255–56 (2024).

other things, take a portion of the fishermen's catch for scientific research and ensure that the fishermen weren't overfishing or using prohibited gear.[73]

Since 1976, when Congress passed the Magnuson-Stevens Act, the government had paid its monitors' costs and wages.[74] In 2020, however, the Fisheries Service decided that the fishermen should have to pay at the rate of 710 dollars per day.[75] The fishermen sued, arguing that the Magnuson-Stevens Act gave the Fisheries Service no power to shift the costs in this manner.[76] Although the Act was silent on that point, lower courts saw enough linguistic fog in the text to conclude that it was "not wholly unambiguous" whether the Service had the power.[77] And because there was "some question" about Congress's intent, the lower courts granted the government *Chevron* deference, ratifying the Fisheries Service's late discovery of a latent power.[78]

When the case reached the Supreme Court, the fisherman offered the Court two ways to decide in their favor: (1) holding that the lower courts applied *Chevron* wrongly, or (2) overruling *Chevron* entirely or "at least clarify[ing] that statutory silence . . . does not constitute an ambiguity requiring deference."[79] The Court took up the second question, ignored its second clause, and charged headlong at *Chevron*. The fishermen, having done their duty of getting the case up to the Supreme Court, then more or less disappeared from the decision and the dissent. The facts of their case, the particulars of the Magnuson-Stevens Act, and the Fisheries Service's dubious reading of that law were all largely ignored as the justices took their positions assaulting or defending *Chevron*.

The majority, led by the Chief Justice, wielded the Administrative Procedure Act against *Chevron*.[80] That law codified "the unremarkable, yet elemental proposition reflected by judicial practice dating back to *Marbury*: that courts decide legal questions by applying their own judgment."[81] The Act's plain text—"the reviewing court shall decide *all* relevant questions of law"[82]—"means what it says" and "cannot be squared" with *Chevron* deference.[83] Henceforth, courts "must exercise their independent judgment in deciding whether an agency has acted within its statutory authority, as the APA requires."[84] Justice Thomas, concurring, wielded Article III to the same end: "[b]ecause the judicial power requires judges to exercise their independent judgment, the deference that

73. *Id.* at 2255.
74. *Id.*
75. *Id.*
76. *Id.* at 2256.
77. *Id.* (quoting lower court decisions).
78. *Id.* (quoting lower court decisions).
79. Petition for Writ of Certiorari, i–ii, Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244 (2024).
80. *See* Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244, 2263 (2024) ("The deference that *Chevron* requires of courts reviewing agency action cannot be squared with the APA.").
81. *Id.* at 2261.
82. 5 U.S.C. § 706.
83. *Loper Bright*, 144 S. Ct. at 2262, 2263.
84. *Id.* at 2273.

Chevron requires contravenes Article III's mandate."[85] And Justice Gorsuch, also concurring, attempted to wrest the shield of *stare decisis* away from *Chevron*'s defenders: "the doctrine of stare decisis supports [ending *Chevron*]."[86]

On the opposing side, Justices Kagan (joined by Justices Sotomayor and Jackson) attempted to push back against the majority and Justice Gorsuch. Her overriding theme, as usual, was that the majority destroyed "[a] rule of judicial humility" and replaced it with "a rule of judicial hubris."[87] Reiterating her claims from previous opinions, Justice Kagan argued that Congress often writes ambiguous statutes and intends that "some other actor" will clarify them.[88] Judges, meanwhile, "do not know everything" and therefore one can conclude that Congress wants bureaucrats, not judges, to clean up the ambiguities it leaves behind.[89]

THE DISSENT CHARTS JUDICIAL HUMILITY'S DESCENT

Justice Kagan believes that the majority has sinned doubly against humility, and lest her point be overlooked, she proposes that "[i]f opinions had titles, a good candidate for today's would be Hubris Squared."[90] Stare decisis, she explains, "shares something important with *Chevron*. Both tell judges that they do not know everything, and would do well to attend to the views of others. So today, the majority rejects what judicial humility counsels not just once but twice over."[91]

For the dissenters, deference seemed the very substance of judicial humility. The majority's decision to overrule *Chevron*, therefore, is humility at its lowest ebb and hubris at its highwater mark. De novo review of legal questions, which the majority's holding now requires, is thus transformed from the default setting for judicial proceedings into a judicial power grab and the denigration of the coordinate federal branches. To make their power-grab characterization stick, the dissenters undertake both to show that the judiciary ought not to have what it is grabbing (independent judgment) and to provide a compelling historical pedigree for deference to show the majority's disregard for history and tradition.

THE GRAY SQUIRREL'S BURDEN

The western gray squirrel is an unassuming fellow.[92] He "live[s] in trees, rarely venture[s] into open spaces, and subsist[s] principally on acorn and

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85. *Id.* at 2274 (Thomas, J., concurring).
86. *Id.* at 2276 (Gorsuch, J., concurring).
87. *Id.* at 2294 (Kagan, J., dissenting).
88. *Id.*
89. *See id.* at 2307; *see generally* Part I, *supra* (collecting examples of this theme in Justice Kagan's opinions and statements at oral arguments).
90. *Id.* at 2295 (Kagan, J., dissenting).
91. *Id.* at 2307.
92. This section was originally drafted in August of 2024, before the tragic death of P'Nut, the eastern gray squirrel, at the hands of bureaucrats working for New York's inaptly named Department of Environmental Conservation. Our discussion of P'Nut's western brother was prompted only by his prominent role in Justice Kagan's dissent. Still, we would be remiss now if we did not point out that P'Nut's demise was an example of regulatory overreach so profound that it prompted a recent discussion

nuts."[93] Lately, he's had a rough go in Washington state where dwindling numbers have made him a potential object of the Fish and Wildlife Service's solicitude.[94] Unfortunately for this humble critter, Justice Kagan has assigned him an additional task: upholding the status quo in administrative law. Not the whole burden of that task, of course, squirrel shoulders being what they are; still the gray squirrel features prominently among Justice Kagan's examples of delicate statutory ambiguities now committed to the rustics appointed to the federal bench.[95]

"Deciding when one squirrel population is 'distinct' from another (and thus warrants protection) requires knowing about species more than it does consulting a dictionary."[96] The Fish and Wildlife Service is staffed with more experts than any judge's chambers, and the Service has the benefit of the expertise that can only be derived from experience administering the statute. From this, and examples like it, Justice Kagan derives *Chevron's* default congressional preference for agencies to be the authoritative interpreter of all such statutory ambiguities, gaps, or silences.[97]

According to Justice Kagan, "*Chevron* asks, what would Congress want?"[98] But that anodyne summary of a controversial practice runs into some problems, not least among them, a problem of authority. Chevron deference never asked the agency to show that the ambiguity over which it sought interpretive primacy was in fact a delegation, not an accident; rather *Chevron* reflected a blanket judicial assumption that Congress invariably intends for ambiguities to be delegations to agencies. Chief Justice Roberts is no longer willing to countenance the assumption, stating that "in our democracy unelected judges possess no authority to elevate their own fictions over the laws adopted by the Nation's elected representatives."[99]

Yet Justice Kagan defends her ideal Congress and implicitly ascribes several normative commitments to that body: that it prizes efficiency, has faith in the unalloyed goodness and uprightness of agency motives and personnel, and presumes that the projects of federal agencies are so beneficial and so urgent that their operation should not be hampered by aggrieved private parties. But to borrow a line from Justice Oliver Wendell Holmes, the views of that fictional Congress and its proponents are based on a "theory which a large part of the country does not entertain."[100]

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and tribute from Justice Neil Gorsuch, who diagnosed the incident as a symptom of our nation's pathology of regulatory overreach. *See* Zach Schonfeld, *Gorsuch Invokes P'nut the Squirrel in Federalist Society Dinner Keynote*, THE HILL (Nov. 14, 2024, 10:24 PM), https://thehill.com/homenews/administration/4992094-gorsuch-invokes-pnut-the-squirrel-in-federalist-society-dinner-keynote [https://perma.cc/DH6E-E3WR].

93. Nw. Ecosystem All. v. U.S. Fish & Wildlife Serv., 475 F.3d 1136, 1138 (9th Cir. 2007).

94. *Id.*

95. *See Loper Bright*, 144 S. Ct. at 2296, 2298, 2300, 2306 (Kagan, J., dissenting).

96. *Id.* at 2298.

97. But see, *Ray*, *supra* note 7 (arguing that this sort of expert knowledge can be taught to judges during litigation with little cost).

98. *Loper Bright*, 144 S. Ct. at 2301 (Kagan, J., dissenting).

99. *Id.* at 2282.

100. Lochner v. New York, 198 U.S. 45, 75 (1905) (Holmes, J., dissenting).

The problem is not only one of authority to adopt the hypothetical; attributing preferences to Congress suffers from the same difficulties that afflict all such rationalizing exercises.[101] Whether theorizing about man's lot in a state of nature, or about justice from behind the veil of ignorance, one might identifying an array of relevant considerations and motives, but the selection of that array and the relative weight one assigns within it is likely to reflect unstated normative preferences, shielded from examination and criticism.[102] For instance, one can posit what the "warp and woof of modern government"[103] or "modern-day adaptable governance *must* look like";[104] insist that means expedient to these amorphous concepts are in fact dire necessities; and then mold the relevant law or, if needed, the Constitution to fit the contours of these necessities. This sort of tendentious reasoning, however, is what Justice Amy Coney Barrett (in another administrative law decision this term) described as "a host of policy arguments masquerading as 'matter[s] of congressional intent.'"[105] The fictional Congress, like other archetypes—the rational economic actor or utility maximizer—ends up laundering the preferences of the theorist responsible for the hypothetical.

There are myriad reasons why actual congressional representatives might not prefer to make agencies the authoritative interpreters of any and every ambiguity that a law might yield to the reader determined to find them. As noted above, Congress has good reason to suspect that independent courts may be the more faithful interpretive agents than agencies beholden to the shifting political whims and fortunes of the presidency.[106] Congress may hew to the traditional view that the adversarial process of litigation, rather than the internal process of agency rulemaking, is the better mode of liquidating the meaning of statutory terms. Congress may appreciate that generalist courts are better at weighing the competing rights and claims of regulated parties than are civil servants accustomed to internal, mission-focused agency processes. In short, Congress may prize values or hold concerns that give it a more jaundiced view of agencies' judgment and the expertise that putatively informs it. But Justice Kagan's fictional Congress need not harbor any such doubts or preferences. Meanwhile, the image of the judge

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101. United States v. O'Brien, 391 U.S. 367, 383–84 (1968) ("Inquiries into congressional motives or purposes are a hazardous matter. . . . What motivates one legislator to make a speech about a statute is not necessarily what motivates scores of others to enact it, and the stakes are sufficiently high for us to eschew guesswork. We decline to void essentially on the ground that it is unwise legislation which Congress had the undoubted power to enact and which could be reenacted in its exact form if the same or another legislator made a 'wiser' speech about it.").

102. *See* Jeffrey A. Pojanowski, *Legal Thought in Enlightenment's Wake*, 4 JURISPRUDENCE 158, 159 (2013) (discussing how appeals to non-normative frameworks such as so-called "public reason" permits disputants "to smuggle in the critical premises that [they] cannot help but hold, yet the very act of smuggling frees [them] from defending or justifying those beliefs").

103. *Loper Bright*, 144 S. Ct. at 2294 (Kagan, J., dissenting).

104. Sec. & Exch. Comm'n v. Jarkesy, 144 S. Ct. 2117, 2175 (2024) (emphasis added).

105. Corner Post, Inc. v. Bd. of Governors of Fed. Rsrv. Sys., 144 S. Ct. 2440, 2459 (2024) (citation omitted).

106. MERRILL, *supra* note 31, at 231.

that compliments this picture calls to mind G.K. Chesterton's description of the "sceptic" who "is so humble that he doubts if he can even learn."[107]

Whether in markets or in government, the default settings that guide decision-makers matter.[108] Is Justice Kagan's account compelling enough to make the rule of deference the judiciary's default approach to agency interpretations? Most of her colleagues were unpersuaded. In fact, the majority and the two solo concurrences are curiously insensible to the gray squirrel and his plight. Perhaps, they do not think the gray squirrel has much to fear from courts interpreting the Endangered Species Act (or any other law) de novo. The majority, like many inside of government and out, chose not to be overborne by the weight of the expertise rationale.

THE REAL AND THE IDEAL AMONG JUDGES AND ADMINISTRATORS

The account of the "rational optimizer" bureaucrat and his comparative advantage over judges and legislators is too flat to be mistaken for reality.[109] As we stated before the *Loper Bright* decision, proponents of the expertise rationale tend to chronically discount the extent to which subject matter experts can and must explain themselves to non-experts within the executive branch, individuals who are (generally) no more learned or perceptive than their colleagues in Congress and on the bench. When agencies explain themselves in the context of litigation judges become "steeped in the subject matter, and reviewing courts have the benefit of their [expert] perspectives."[110]

Also discounted by proponents of agency expertise is the degree to which judicial experience prepares judges to do better than "muddl[ing]" through in the face of interpretive difficulties.[111] Before their appointments, judges may have pursued literature and philosophy more readily than the material sciences. However, the life of a judge managing varied dockets has equipped them with different skills. For instance, patent litigation relies on generalist judges to sift the competing proffers from subject-matter experts and to construe the meaning of a disputed patent. This means parsing such gnarly technical terms as "molecular

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107. Gilbert K. Chesterton, ORTHODOXY (1908).

108. *Cf.* United States, et al. v. Google, LLC, No. 20-cv-3010 (APM), 2024 U.S. Dist. LEXIS 138798 at *63 (D.D.C. Aug. 5, 2024) ("That users overwhelmingly use Google through preloaded search access points is explained in part by default bias, or the power of defaults. The field of behavioral economics teaches that a consumer's choice can be heavily influenced by how it is presented. The consensus in the field is that "defaults have a powerful impact on consumer decisions." (internal citations and quotation marks omitted)).

109. The "rational optimizer" term is borrowed from Matthew Crawford. *See* Matthew Crawford, *Big Tech and the Challenge of Self-Government*, THE HERITAGE FOUNDATION (July 2, 2024) https://www.heritage.org/conservatism/report/big-tech-and-the-challenge-self-government [https://perma.cc/Y2M9-C6MB].

110. Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244, 2267 (2024).

111. *See id.* at 2298 (Kagan, J., dissenting).

weight,"[112] "metacode map,"[113] and "geodesic sphere phased array antenna system."[114] Despite the indispensability of technical knowledge in such inquiries, judges, not experts, make the final determination of the patent's meaning. Even when *Chevron* was in broad usage, courts pointedly declined to give that degree of deference to the determination of the Patent Trademark Office, only *Skidmore* consideration was afforded.[115]

Nor are judges simply a passive audience receiving the benefits of expert testimony, they are gatekeepers, even skeptics to a point. The American system of adversarial litigation asks judges to assimilate the expertise of others, decide which side has the stronger view on technical questions and even to exercise discretion at the threshold of the inquiry, deciding the types of experts and methodologies that are admissible. "This entails a preliminary assessment of whether the reasoning or methodology underlying the testimony is scientifically valid and of whether that reasoning or methodology properly can be applied to the facts in issue."[116] Contra those with a low view of judicial capabilities, the Supreme Court in *Daubert v. Merrell Dow* was "confident that federal judges possess the capacity to undertake this review."[117] And it has carried that confidence into other spheres. In *Martin v. Occupational Safety and Health Review Commission*, for example, the Court played this same gatekeeping role in choosing which of two agencies was better qualified to resolve an ambiguity within the Occupational Safety and Health Act.[118] Moreover, in *Gonzales v. Oregon*, the Court established that a precondition for deference was that the agency was actually using its

112. In Teva Pharms. USA, Inc. v. Sandoz, Inc., the district court was obliged to parse and choose from among three competing definitions for the term molecular weight because the "phrase might refer (1) to molecular weight as calculated by the weight of the molecule that is most prevalent in the mix that makes up copolymer–1. (The scientific term for molecular weight so calculated is, we are told, 'peak average molecular weight.') The phrase might refer (2) to molecular weight as calculated by taking all the different-sized molecules in the mix that makes up copolymer–1 and calculating the average weight, i.e., adding up the weight of each molecule and dividing by the number of molecules. (The scientific term for molecular weight so calculated is, we are told, 'number average molecular weight.') Or, the phrase might refer (3) to molecular weight as calculated by taking all the different-sized molecules in the mix that makes up copolymer–1 and calculating their average weight while giving heavier molecules a weight-related bonus when doing so. (The scientific term for molecular weight so calculated, we are told, is 'weight average molecular weight.')." Teva Pharms. USA, Inc. v. Sandoz, Inc., 574 U.S. 318, 322–23 (2015).

113. i4i Ltd. P'ship v. Microsoft Corp., 670 F. Supp. 2d 568, 573 (E.D. Tex. 2009), aff'd as modified, 589 F.3d 1246 (Fed. Cir. 2009), opinion withdrawn and superseded on reh'g, 598 F.3d 831 (Fed. Cir. 2010), aff'd, 564 U.S. 91 (2011).

114. Bondyopadhyay v. United States, 129 Fed. Cl. 793, 795 (Fed. Cl. 2017).

115. Merck & Co. v. Kessler, 80 F.3d 1543, 1550 (Fed. Cir. 1996) ("Such deference as we owe to the PTO's interpretive "Final Determination" regarding the interrelationship by the URAA and the Hatch–Waxman Act thus arises, not from the rule of Chevron, but solely from, inter alia, the thoroughness of its consideration and the validity of its reasoning, i.e., its basic power to persuade if lacking power to control.").

116. Daubert v. Merrell Dow Pharms., Inc., 509 U.S. 579, 592–93 (1993).

117. *Id.* at 593.

118. *See* Martin v. Occupational Safety and Health Review Comm'n, 499 U.S. 144, 146–47 (1991).

expertise, which naturally required the Court to assess both the scope and use of the agency's expertise.[119]

All this is far from placing judges on equal footing with those who possess true subject-matter expertise. Yet it should cast doubt on those who would increase the power of agencies based on a fear that judges could do nothing more than muddle and meddle.[120]

From a more pragmatic standpoint, the expertise rationale loses gravitas when the executive branch creates or reinforces the perception that expertise is not what it used to be. Take, for instance, the Biden-Harris administration's directive to federal departments and agencies to make use of something it refers to as "indigenous knowledge" and apply it in "Federal research, policies, and decision making."[121] The directive is vague on what indigenous knowledge is, yet it is insistent that such knowledge is "unique to each group of Indigenous Peoples."[122] Is this knowledge in which agencies can become experts? Is identity-based knowledge consistent with the rationalistic premises of the administrative state or consonant with the norms of democratic accountability that the APA requires? Although native people's communal knowledge may record certain observable phenomena accessible regardless of one's own background, whence comes the administration's authority to privilege non-rational "spiritual" elements of one community's perspective and make them authoritative?

That is but one vivid illustration of the fact that the expertise invoked inside the bureaucratic archipelago can be more mystification than the genuine article. Often enough, "expertise" is a label under which controversial value judgments are smuggled while agency personnel insist that only objective metrics are being applied.[123] Of course, these problems arose long before the current administration. In her 2001 article "Presidential Administration," then-Professor Elena Kagan candidly acknowledged that not only do "Agency officials often make decisions for reasons having little to do with expert knowledge" but "Bureaucratic expertise . . . cannot alone or even predominantly drive administrative decisions."[124] Instead, "value judgments" for which "agency experts have neither democratic warrant nor special competence" drive the choice of means for implementing or extending congressional commands.[125]

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119. *See* Gonzales v. Oregon, 546 U.S. 243, 255–56 (2006).

120. See generally Ray, *supra* note 7.

121. OFF. OF SCI. AND TECH. POLICY, EXECUTIVE OFFICE OF THE PRESIDENT, MEMORANDUM FOR HEADS OF FEDERAL DEPARTMENTS AND AGENCIES (2022).

122. *Id.*

123. *See*, *e.g.*, Temporary Halt in Residential Evictions in Communities With Substantial or High Transmission of COVID-19 To Prevent the Further Spread of COVID-19, 86 Fed. Reg. 43244, 43247 (Aug. 6, 2021) (asserting that "the COVID-19 vaccination effort has a slower rate of penetration among the populations most likely to experience eviction" as a basis for preventing certain owners from exercising control of their rental properties).

124. Elena Kagan, *Presidential Administration*, 114 HARV. L. REV. 2245, 2352, 2353 (2001).

125. *Id.* at 2353.

Now, in an era where it is commonplace for the executive branch to dedicate the "whole of government" to achieving purposes outside of agencies' normal remit, such expertise as agencies may bring to bear in these campaigns takes on a decidedly mercenary quality.[126]

Although agency judgments may be highly political, these are not outgrowths of the popular democratic politics undergirding the accountability rationale for judicial deference to agencies. As noted above, Congress has incentives to avoid making politically controversial judgments and to force agencies to make them instead through policymaking under the guise of statutory interpretation. In that process direct political accountability is intentionally supplanted by a more attenuated one. Even that attenuated accountability is less than it first appears to be. As then-Professor Kagan explained, there are "inherent limits on the President's capacity to control, or even interest in controlling, much administrative action," and "Presidents (and their staffs) do not often think enough, know enough, or care enough to impede" agency action.[127]

When Congress uses delegation to avoid hard choices, it creates paths which the executive may use in unforeseen ways to bypass Congress in future policymaking. Using executive action to transfer the student-debt burden of certain borrowers to taxpayers or to deploy the Veterans Administration as a Trojan horse for abortions in states where voters have restricted them are certainly attempts by the executive branch to avoid the elected representatives in Congress, perhaps the voting public as well.[128]

In certain instances, the appeal of administrative policymaking over legislative, is to save one the effort of persuading others, that is, the inconvenience of democratic politics.[129] Thus, it is the favored means "to install the automated enforcement of cutting-edge social norms," the sort that the democratic populous could not be expected to endorse were they actually consulted.[130] Examples such as mandating the use of an individual's preferred pronouns in schools, opening of women's facilities and activities to biological males, or instructing federal officers "to facilitate access" of unaccompanied minors to abortions come to mind.[131]

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126. Examples of policy areas subject to the whole-of-government approach under the Biden-Harris administration include Advancing Racial Equity, *see* 86 Fed. Reg. 7009 (2021).

127. Kagan, *supra* note 121, at 2355.

128. *See, e.g.*, Biden v. Nebraska, 143 S. Ct. 2355, 2373 (2023) ("the Secretary's assertion of administrative authority has conveniently enabled [him] to enact a program that Congress has chosen not to enact itself.") (internal quotations and citations omitted); Rachel N. Morrison, *Department of Veterans Affairs Rule Doubles Down on Abortion*, THE FEDERALIST SOCIETY BLOG (March 13, 2024), https://fedsoc.org/commentary/fedsoc-blog/department-of-veterans-affairs-rule-doubles-down-on-abortion [https://perma.cc/822M-YDGE] ("The VA claimed it had 'good cause' to issue the IFR because, after Dobbs, 'veterans living in States that ban or restrict abortions may no longer be able to receive [abortions] in their communities as a result of State restrictions.'").

129. Matthew Crawford, *Big Tech and the Challenge of Self-Government*, THE HERITAGE FOUNDATION (July 2, 2024) https://www.heritage.org/conservatism/report/big-tech-and-the-challenge-self-government [https://perma.cc/U3K6-MBDX].

130. *Id.*

131. *See* Tennessee v. Cardona, No. 24-5588, 2024 WL 3453880, at *1 (6th Cir. July 17, 2024) (describing the effects of the Biden Administration's proposed revisions to Title IX); Office of Refugee Resettlement, DEPT. OF HEALTH & HUMAN SERVICES, RE: Field Guidance #21 – Compliance with Garza Requirements and Procedures for Unaccompanied Children Needing Reproductive Healthcare

When contentious policies like these appear in forms like internal agency guidance, as the guidance on abortions for alien minors did, agency personnel seem to be muting the prospects for post-hoc political accountability by diminishing the opportunities for the public to become aware of its policies or to make their own thoughts known to the decision makers.

Factually, *Loper Bright* and *Relentless* presented the Court with a funding question that, while important, was far less controversial. Still, the dissenters' unwillingness to address the less idealized motives for administrative policymaking and its implications for the accountability rationale reduces the force of their critique.

IS THE DEVIL ACTUALLY IN DE NOVO?

The dissenters' difficulty in identifying the dire consequences of de novo review for agencies' missions does not help either. Roberts preempts that attack with several citations to the 1944 decision *Skidmore v. Swift*, which held that where a statutory question is truly within the agency's "specialized experience" then the court could accord the agency's views weight commensurate with the "thoroughness evident in [the agency's] consideration, the validity of its reasoning, its consistency with earlier and later pronouncements."[132] Expertise will necessarily remain a significant factor in judicial adjudication of agency cases. Yet, because expertise no longer has the power to bind judges, Justice Kagan contends that the "majority turns itself into the country's administrative czar."[133] That caricature leaves unanswered the question of why *Skidmore* respect would be inadequate for tough cases. Merely because it does not enjoin judges? If judges exercise judicial humility only when they are bound to do so, one wonders whether it is truly humility at all.

The claimed difficulty with *Skidmore* is that judges will "argue [] about what 'respect' requires."[134] As lawyers by training, judges can surely argue among themselves about anything, yet the legal system continues apace with all the difficult line-drawing doctrines. Justice Kagan acknowledges this, though she draws a different conclusion from it.[135] She has faith that courts can and have overcome the difficulties of *Chevron*'s imprecise inquiries for ambiguity and reasonableness, but

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(November 10, 2022), https://www.acf.hhs.gov/sites/default/files/documents/orr/field-guidance-21.pdf [https://perma.cc/X37B-P4Q3].

132. Skidmore v. Swift & Co., 323 U.S. 134, 139–40 (1944). The *Loper Bright* majority evidently sees nothing in *Skidmore*, a pre-APA decision, that contradicts the APA's command of de novo review. Professor John Duffy notes that what is often called Skidmore deference is, at a minimum, "the close sibling of de novo review." Duffy, *supra* note 71, at 554. Commentary from several justices during oral argument indicates that they too see little, if any, daylight between the standards because *Skidmore* is not deferential in application. *See* Jack Fitzhenry and Caleb Sampson, *After Chevron, a New Birth of Deference for the Administrative State?*, Federalist Society Blog (Aug. 13, 2024) (canvassing the justices' discussion of *Skidmore*).

133. Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244, 2295 (2024) (Kagan, J., dissenting).

134. *Id.* at 2309.

135. *See id.* at 2309–10.

she doubts that courts can manage *Skidmore*'s factors without hamstringing regulators. Justice Kagan, however, offers readers few reasons to think that chaos will ensue from *Skidmore* review or that judges (particularly lower court ones with larger dockets to manage) would have any enthusiasm for displacing the closely reasoned bases for an agency's interpretation, particularly when there is a tight connection between the contested statutory ambiguity and the types of factual determinations for which the agency would receive deferential review under APA § 706(2)(E).

Returning to our friend the gray squirrel, if his distinctness "requires knowing about species more than it does consulting a dictionary,"[136] as Justice Kagan contends, then the premises underlying Fish and Wildlife's determination would likely be heavily factual in nature. Those subsidiary premises are the sorts of determinations for which the APA expressly commands judicial deference.[137] The agency's ultimate legal conclusion, though lacking the ability to control the judge's determination, would practically speaking enjoy the aura of deference accorded to the underlying factual findings from which it derives.[138] Chief Justice Roberts seems to confirm this intuition when he states that "an agency's interpretation of a statute . . . may be especially informative 'to the extent it rests on factual premises within [the agency's] expertise.'"[139]

To the extent the gray squirrel's distinctness is a matter of historic usage, one that depends on "how the term has covered the population segments of other species"[140] in past agency determinations, then that "common-law" reasoning is the sort of information that agency counsel can readily communicate to judges because it requires no technical knowledge and trades in the same sort of reasoning that judges themselves are accustomed to applying. If "agencies often know things about a statute's subject matter that courts could not hope to," such historical knowledge is not among those things.[141] Where the agencies' usage of an ambiguous term has been consistent and longstanding, then precedent militates heavily in favor of judges according it respect.[142]

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136. *Id.* at 2298.

137. 5 U.S.C. § 706(2)(E) (providing that agency fact-finding may be overturned only if "unsupported by substantial evidence"). *But cf.* Evan D. Bernick, *Is Judicial Deference to Agency Fact-Finding Unlawful?*, 16 GEO. J.L. & PUB. POL'Y 27 (2018) (arguing that in "cases involving administrative deprivations of . . . core private rights to 'life, liberty, or property,' fact deference violates both Article III and the Due Process of Law Clause of the Fifth Amendment").

138. Justice Kagan notes that "an interpreter decide[s] when one population segment of a species is 'distinct' from another . . . by considering that requirement with respect to particular species, like western gray squirrels." *Loper Bright*, 144 S. Ct. at 2306 (Kagan, J., dissenting). The close connection in this inquiry between scientific fact and legal conclusion makes it the sort of interpretation more naturally eligible for judicial respect.

139. *Loper Bright*, 144 S. Ct. at 2267 (quoting Bureau of Alcohol, Tobacco and Firearms v. FLRA, 464 U.S. 89, 98 n. 8 (1983)).

140. *Id.* at 2298 (Kagan, J., dissenting).

141. *Id.*

142. Skidmore v. Swift & Co., 323 U.S. 134, 140 (1944) (granting an agency's judgement "weight" when that judgment is, among other things, consistent with prior decisions); *see also* Aditya Bamzai, *The Origins of Judicial Deference to Executive Interpretation*, 126 YALE L.J. 908, 942 (2017) ("A

A return to de novo review, though not an enabling doctrine for agencies, is hardly an invitation for courts to adopt interpretations that make a hash of Congress's regulatory programs. Although "construing statutory language is not merely an exercise in ascertaining 'the outer limits of a word's definitional possibilities," even the most rigorous textualists attempt to harmonize statutory provisions and choose the interpretation that "produces a substantive effect that is compatible with the rest of the law."[143] It is entirely possible that a certain disuniformity in regulatory schemes may result from competing judicial interpretations. But as one far more incisive commentator on this subject observed, "To note legal pluralism's costs is not the same as establishing that they are prohibitive."[144]

A DE NOVO LOOK AT THE APA

When formulating a doctrine like *Chevron* deference based on a hypothetical Congress there is a tendency to obscure the intentions and preferences of real Congresses.[145] For instance, by adopting *Chevron*'s presumption that Congress generally wants an agency's interpretation to control, courts avoid the more nuanced task of examining the breadth of the specific statutory delegations Congress made to an agency and the corresponding respect owed by courts to those determinations.[146]

Then there is the difficulty of reconciling a rule of broad-gauge deference with the intent of the 79th Congress which passed the Administrative Procedure Act in 1946. The majority's holding rests on the APA's command that "the reviewing court shall decide all relevant questions of law, interpret constitutional and statutory provisions, and determine the meaning or applicability of the terms of an agency action."[147]

The majority draws on, or at least agrees with, the work of Professor Aditya Bamzai, who filed an amicus brief in the case, and garnered a citation from Justice Gorsuch.[148] Bamzai's scholarship explains that previous efforts to clarify APA 706's command had misunderstood the judicial practices that the 79th Congress codified.[149] He challenges the view that there is a "long tradition of deference to agency interpretations" by demonstrating that what prevailed in courts

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number of seminal cases followed this mode of analysis by giving weight to early and longstanding constructions of ambiguous constitutional provisions.").

143. Sackett v. Env't Prot. Agency, 598 U.S. 651, 676 (2023) (internal quotations and citations omitted).

144. Jeffrey A. Pojanowski, *Without Deference*, 81 MISSOURI L. R. 4 1075, 1083 (2016).

145. *Loper Bright*, 144 S. Ct. at 2269 ("At best, our intricate Chevron doctrine has been nothing more than a distraction from the question that matters: Does the statute authorize the challenged agency action?").

146. Duffy, *supra* note 71, at 541.

147. 5 U.S.C. § 706.

148. *See* Brief of Professor Aditya Bamzai as Amicus Curiae in Support of Neither Party, Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244 (2024); *Loper Bright*, 144 S. Ct. at 2283–84 (Gorsuch, J., concurring) (citing Aditya Bamzai, *The Origins of Judicial Deference to Executive Interpretation*, 126 YALE L. J. 908, 987 (2017)).

149. *See generally* Bamzai, *supra* note 22.

prior to the New-Deal Era was "not a form of judicial deference, as it has come to be understood in the post-*Chevron* era" but a form of "respect" accorded only to "longstanding and contemporaneous executive interpretations of law as part of a practice of deferring to longstanding and contemporaneous interpretation generally."[150] And far from incorporating the judiciary's then-recent departures from that practice, the 79th Congress intended "to stop this deviation from the traditional interpretive rules" and "to reject the experimentation of the 1940s Court."[151]

Bamzai's work gives lawyers, scholars, and judges a reason to prefer "the testimony of the more distant past, as against the more proximate past" of the 1940s decisions on which the dissent relies.[152] That is exactly what the majority does with its extended treatment of the historical norms de novo review to the core judicial function from *Marbury v. Madison* onward.[153] And though only Justice Gorsuch cites Bamzai, the majority repeatedly cites with approval the tradition of affording respect to legal interpretations that are longstanding or contemporaneous with the law's enactment—the core contributions of Bamzai's scholarship on the APA.[154]

The dissenters' disagreement with the majority over the nature of the APA's demands reproduces a version of the *Chevron* problem. The majority concludes that this language requires judges to exercise their independent judgment without deference to agencies.[155] "The text of the APA means what it says," they contend.[156] The dissenters deny that section 706 necessarily requires that meaning. Because Congress did not expressly foreclose deference, they maintain that the text must be "'generally indeterminate' on the matter of deference."[157] In other words, to create space for deference the dissenters employ the same ambiguity-injecting interpretive approach that *Chevron* deference invites. By searching only for express congressional prohibitions on their preferred interpretation, the dissenters continue the practice of treating statutory text as an obstacle to be overcome rather than a source of instruction.[158]

There is a certain irony in arguing that a case that ignored the APA entirely is nonetheless a definitive judicial construction of that law's meaning. Indeed, the dissenters cannot claim that the text of APA requires deference, they can make only the weaker claim that the APA is "compatible" with *Chevron* deference.[159] Still, they maintain that the majority has its history wrong. This argument has two

150. *Id.* at 912, 916.
151. *Id.* at 918.
152. MATTHEW CRAWFORD, THE WORLD BEYOND YOUR HEAD: ON BECOMING AN INDIVIDUAL IN AN AGE OF DISTRACTION 289 (2016).
153. Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244, 2257–58 (2024).
154. *Id.* at 2257–59, 2262; *id.* at 2283 (Gorsuch, J., concurring).
155. *Loper Bright*, 144 S. Ct. at 2261.
156. *Id.* at 2262.
157. *Id.* at 2302 (Kagan, J., dissenting) (quoting ADRIAN VERMEULE, JUDGING UNDER UNCERTAINTY 207 (2006)).
158. *Id.*
159. *Id.* at 2302 (Kagan, J., dissenting).

main elements. First "is that in the years preceding the APA, courts became ever more deferential to agencies."[160] Second, because "Section 706 was generally understood to 'restate[] the present law as to the scope of judicial review,'" it therefore codified even the aberrations from standard practice exemplified by decisions like *Gray v. Powell* (1941) and *NLRB v. Hearst Publications* (1944).[161] The dissent acknowledges that even such deference as these decisions afforded fell well short of the categorical approach that *Chevron* deference became.[162]

Perhaps the dissent's greatest weakness on this front is its failure to engage with the majority's claim that the longstanding judicial practice was not one of deference to the executive branch but only of giving non-controlling respect for longstanding and contemporaneous interpretations.[163] These terms go unmentioned in the dissent. The dissent also offers little to explain why the aberrations of *Gray* and *Hearst* were the objects of Congress's approval in the APA rather than the mistakes that Congress sought to correct. Its argument on that matter amounts to an assertion that because the *Gray* and *Hearst* decisions existed, Congress must have approved of them.

Ultimately, the dissent's fidelity to *Chevron* implies a contraction of the judicial role. The dissent insists that the "court still has a role to play: It polices the agency to ensure that it acts within the zone of reasonable options."[164] Rather than answering a critic's doubts, that contention only raises more. Can the zone of the "reasonable" be determined without reference to policy considerations? The dissent seems to think that all implied delegations are policy determinations.[165] Do courts then have any realistic means of "policing" agency's application of impliedly delegated power? Are courts limited to halting only an agency's most flagrant efforts to disobey explicit congressional commands? Although *Chevron* was nearly forty years old when it passed from existence, the Supreme Court had never settled on a consistent approach to the *Chevron* Step 2 "reasonableness inquiry."[166] Readers of Justice Kagan's dissent are left with no clearer idea of what courts might have done to police the "zone of reasonable options" at Step 2 had *Chevron* survived. They are left only with the impression that judges

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160. *Id.* at 2304.

161. *Id.*

162. *Id.* ("To be clear: Deference in those years was not always given to interpretations that would receive it under Chevron. The practice then was more inconsistent and less fully elaborated than it later became.").

163. *Id.* at 2260 n.3.

164. *Id.* at 2300 (Kagan, J., dissenting).

165. *See*, *e.g.*, *id.* at 2299 ("Still more, *Chevron*'s presumption reflects that resolving statutory ambiguities, as Congress well knows, is "often more a question of policy than of law."); *id.* at 2300 ("Absent a legislative directive, either the administering agency or a court must take the lead. And the matter is more fit for the agency. The decision is likely to involve the agency's subject-matter expertise; to fall within its sphere of regulatory experience; and to involve policy choices . . . .").

166. Kent H. Barnett and Christopher J. Walker, *Chevron Step Two's Domain*, 93 NOTRE DAME L. REV. 1441, 1445 (2018) (explaining that "the Supreme Court has not articulated a coherent approach to step two—originally suggesting some sort of hypertextualist inquiry but, increasingly, suggesting that step two includes an APA-like arbitrary-and-capricious review").

are to approach agencies' interpretations cautiously, with little skepticism and few questions. Call it "laissez faire pour la bureaucratie."

FINAL JUDGMENT

What about the majority? Does its handiwork epitomize hubris or humility? The majority did not go as far as they might have; Justice Thomas's solo concurrence opposing *Chevron* on constitutional grounds makes that evident.[167] The majority chose only statutory grounds, though the petitioners offered both species of argument.[168] Thus, the Court leaves Congress the ability to prescribe deferential standards of review in specific statutes.[169]

The majority's major nod to the humility theme is to note that "part of 'judicial humility' . . . is admitting and in certain cases correcting our own mistakes, especially when those mistakes are serious."[170] Justice Gorsuch adds that "continuing to abide *Chevron* deference would require us to transgress the first lesson of *stare decisis*—the humility required of judges to recognize that our decisions must yield to the laws adopted by the people's elected representatives."[171]

As it works out its own notions of judicial humility, the majority reprises themes familiar from the last few terms of the Roberts Court: formalism; originalism (statutory and constitutional); and a derivative preference for fixity over dynamism in law.

Although the majority chose statutory grounds to resolve the cases, formalism, the concern with the maintenance of the separation of powers, seeps into the majority's discussion of (and evident concern for) the traditional judicial role.[172] Formalism may not be especially sensitive to pragmatic considerations, and that insensibility can make its proponents sound abstract or detached. But there is humility in the justices' effort to keep faith with an inherited design that is not of one's own making.

Statutory originalism, like its constitutional counterpart, is concerned with fixing the meaning of a legal command. If a particular statutory term or concept makes multiple interpretations available, then the majority's insistence on settling on a best meaning affords stability and fixity. That arguably better serves rule of law values, allowing the regulated to know what is required of them. It also has implications for intragovernmental relations. Fixity of meaning can be understood as a corollary to formalism. With less discretionary space in a statute for an

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167. *Loper Bright*, 144 S. Ct. at 2273–74 (Thomas, J., concurring).

168. Brief for Petitioners at 23, Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244 (2024) (No. 22-451) ("Chevron's rule of judicial deference to the executive's interpretation of statutes is flatly inconsistent with Constitution, the APA, and centuries of tradition.").

169. *See Loper Bright*, 144 S. Ct. at 2263 ("[T]he role of the reviewing court under the APA is, as always, to independently interpret the statute and effectuate the will of Congress subject to constitutional limits. The court fulfills that role by recognizing constitutional delegations, fixing the boundaries of the delegated authority.") (internal quotations omitted).

170. *Id*. at 2272 (internal citations omitted).

171. *Id*. at 2282 (Gorsuch, J., concurring).

172. *See id*. at 2257–58.

agency to fill up with interpretation, agencies will have less ability to innovate new powers not expressly granted by Congress. Thus, statutory originalism may promote greater agency reliance on Congress. Still, as Chief Justice Roberts acknowledges, the statutory originalist may find that the best available meaning of a given statute is that Congress meant to give an agency an open-ended task.[173] If a fixed dynamic meaning is not an oxymoron, then at least it must be conceded that fixity of meaning and dynamic delegations exist in tension with each other. Though, Chief Justice Roberts indicates that even dynamic delegations from Congress to the executive come with judicially enforceable limits attached.[174]

Even the formalist is not totally immune to practical appeals. Fixed statutory meanings are steady reference points that make the judge's task of setting aside agency action "in excess of statutory jurisdiction, authority, or limitations, or short of statutory right" more manageable.[175] If the power conferred by Congress is ever evolving, then "it remains a mystery how [judges] are supposed to 'ascertain whether the will of Congress has been obeyed.'"[176] Both because of and in spite of its concern for the separation of powers, the majority wants to exert some influence on Congress. The majority is concerned for how loosely Congress exercises its legislative powers. To be sure, it does not always act on that concern. In less-discussed administrative-state case from the '23 term, the Court by a vote of 7-2 resoundingly reversed a Fifth Circuit decision, which held that perpetual independent funding for the Consumer Financial Protection Bureau violated the Appropriations Clause.[177] The basis for the decision was that the laconic Appropriations Clause did not provide an enforceable limit on Congress's exercise of its legislative discretion apart from a limit on military spending.[178] The majority opinion was authored by the Court's arch formalist, Justice Clarence Thomas. Still the court's more conservative wing would prefer if Congress did not enact so-called "Rorschach Statutes."[179] If the present condition of the court's non-delegation jurisprudence prevents the court from rejecting many works verging on Rorschach-status, then *Loper Bright* expresses the majority's more modest preference that Congress enact laws defined primarily by what they do say rather than what they do not, *i.e.*, gaps and silences.

Overmuch focus on interbranch competition, though, obscures the fact that when courts have an opportunity to address an agency interpretation of law it is

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173. *Id.* at 2263 ("When the best reading of a statute is that it delegates discretionary authority to an agency, the role of the reviewing court under the APA is, as always, to independently interpret the statute and effectuate the will of Congress subject to constitutional limits.").

174. *Id.*

175. 5 U.S.C. § 706(2)(C).

176. Petition for Review on Petition for Rehearing En Banc at 26, Consumers' Research v. Federal Communications Commission, 109 F.4th 743, (5th Cir. July 24, 2024) (No. 22-60008) (holding that Congress violated the non-delegation doctrine in the Telecommunications Act of 1996 by delegating its taxing power to the FCC) (quoting Mistretta v. United States, 488 U.S. 361, 379 (1989)).

177. Consumer Fin. Prot. Bureau v. Cmty. Fin. Servs. Ass'n of Am., Ltd., 601 U.S. 416 (2024).

178. *Id.* at 424.

179. *See* STEVEN D. SMITH, FICTION, LIES AND THE AUTHORITY OF LAW 91 (2021).

often because a private citizen or entity has brought the matter before the court, claiming an injury. When a court construes an ambiguous law, its primary concern is not with comprehensively mapping the power an agency wields, rather, it is with "ascertain[ing] the rights of the parties" before it.[180] The due-process criticism featured less prominently among the constitutional counterarguments that brought about *Chevron*'s demise. More often, critics focused on the degree to which *Chevron* detracted from the courts' Article III powers or Congress's Article I powers. Still, in cases like *Loper Bright* and *Relentless*, the applicability of the due-process criticism was too obvious to be ignored entirely, and Justice Gorsuch made sure it was not unmentioned.[181] The fishing vessels are family-owned businesses operating on tight margins, fearing that even such margins as they had would be erased by the Fisheries Service's novel interpretive requirement that they pay for on-board monitors.[182] No one doubts the importance of the Fisheries Service's mandate to preserve the marine environments and resources on which these businesses depend. But "no law pursues its purpose at all costs, and [] the textual limitations upon a law's scope are no less a part of its 'purpose' than its substantive authorizations."[183] Agencies, Justice Gorsuch reminds us, "cannot invoke a judge-made fiction to unsettle our Nation's promise to individuals that they are entitled to make their arguments about the law's demands on them in a fair hearing, one in which they stand on equal footing with the government before an independent judge."[184]

No doubt there are less sympathetic challengers to agency authority—payday lenders come to mind.[185] Nevertheless, cognizance of non-government actors and a sensitivity to interests that compete with the priorities of the federal government require a certain humility about the justness and perfection of a regulatory scheme and its application. The judiciary's role is neither to obstruct nor abet its fellow government actors. It is to mediate impartially between private parties and the government. Managing the tension in these interests with dispassionate fairness has a good claim to be the substance of humility. The end of mandated deference to executive legal interpretations removes one obstacle to that humility's realization.

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180. Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244, 2257 (2024) (quoting Decatur v. Paulding, 14 Pet. 497, 515, 10 L.Ed. 559 (1840)).

181. *Id.* at 2285 (Gorsuch, J., concurring).

182. *See* Brief for Petitioner at 39, Loper Bright Enters. v. Raimondo, 144 S. Ct. 2244 (2024) (No. 22-451).

183. Rapanos v. United States, 547 U.S. 715, 752 (2006) (plurality opinion).

184. *Loper Bright*, 144 S. Ct. at 2289 (Gorsuch, J., concurring).

185. *See* Consumer Fin. Prot. Bureau v. Cmty. Fin. Servs. Assoc. of America, 601 U.S. 416 (2024).

ESSAY

The Process Was the Punishment: Georgetown Law's Failure to Stand Up for Speech

ILYA SHAPIRO*

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I. INTRODUCTION

I never intended to be a poster boy for cancel culture. Yet, for several months in 2022, I found myself in that terribly unenviable position. Two Georgetown offices were conducting a joint investigation into off-the-cuff comments I posted on social media. Would I be allowed to start my job as the head of a prestigious law school center or would I be terminated for wrongspeak? That was the bizarro world I found myself in. I did not think I was naive about higher education, but still my eyes were opened to the institutional rot in academia—most alarmingly at law schools.[1]

When I accepted a position with the Georgetown University Law Center, one of the most prestigious law schools in the most credential-focused profession, I thought it would be an opportunity to have a big impact. After nearly 15 years at the Cato Institute, ultimately directing the think tank's center for constitutional studies and rising to the level of vice president, I was open to a new challenge. Having developed Cato's nationally renowned *amicus curiae* (friend of the court)

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1. *See generally* Anemona Hartocollis, *A Conservative Quits Georgetown's Law School Amid Free Speech Fight*, N.Y. TIMES (June 6, 2022), https://www.nytimes.com/2022/06/06/us/georgetown-ilya-shapiro.html [https://perma.cc/7KX7-C4JN].

brief program and published a bestselling book on the Supreme Court,[2] I needed to consider what else I could do in my career. And so, when I received an offer to be the next executive director of Georgetown Law's Center for the Constitution, I had to take it. The Center was renowned for advancing originalism, the idea that constitutional provisions should be interpreted according to their original public meaning. It was a chance to do something different, to have more of an academic profile while expanding the Center's footprint.

If I wanted a new challenge, that was what I got—but it was not quite what I had imagined when I was first approached about the possibility over dinner at a Capitol Hill bistro.

On January 26, 2022, five days before I was set to start at Georgetown, Supreme Court Justice Stephen Breyer announced his retirement. Or rather, because his press conference did not happen until the next day, it was announced for him. Rumor has it that White House Chief of Staff Ron Klain leaked the news to lock in Justice Breyer's decision and ensure that there would be a vacancy for President Joe Biden to fill while Democrats had control of the Senate.[3] Indeed, we have not had a Supreme Court confirmation process under divided government since 1991, when then-Senator Biden presided over an explosive set of hearings for Justice Clarence Thomas.

I was on a plane to Austin, Texas, when the news broke. Upon landing, my phone blew up, and I spent the rest of the afternoon fielding media queries about Justice Breyer's legacy and the search for his successor. My bottom line was that it was unfortunate and unseemly that President Biden was narrowing his candidate pool by race and sex—he had promised during the presidential campaign that he'd pick a black woman[4]—but that whomever he picked would be a reliable vote on the Court's left wing. After all, it has long been the case that Democratic-appointed justices vote much more in lockstep than their Republican-appointed counterparts do.[5]

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2. ILYA SHAPIRO, SUPREME DISORDER: JUDICIAL NOMINATIONS AND THE POLITICS OF AMERICA'S HIGHEST COURT (2020).

3. *E.g.*, Jim Geraghty, *Ron Klain Gave Democratic Senators a Heads Up About Breyer's Retirement*, NAT'L REV. (Feb. 1, 2022), https://www.nationalreview.com/corner/ron-klain-gave-democratic-senators-a-heads-up-about-breyers-retirement [https://perma.cc/F7GR-7XNR]; Callie Patteson, *White House's Klain Leaked Breyer Retirement News: Dem Sen. Durbin*, N.Y. POST (Feb. 1, 2022), https://nypost.com/2022/02/01/white-houses-klain-leaked-breyer-retirement-news-dem-sen-durbin [https://perma.cc/HB3M-H34Y].

4. Harper Neidig, *Biden Pledges to Nominate Black Woman to Supreme Court*, THE HILL (Feb. 25, 2020), https://thehill.com/regulation/court-battles/484656-biden-pledges-to-nominate-black-woman-to-supreme-court/ [https://perma.cc/87B8-5J9G]; Sahil Kapur, *Biden Pledged to Put a Black Woman on the Supreme Court. Here's What He Might Have to Do.*, NBC NEWS (May 6, 2020), https://www.nbcnews.com/politics/2020-election/problem-biden-s-pledge-black-woman-justice-n1200826 [https://perma.cc/Y59S-QRJ3].

5. *See* Ilya Shapiro, *Liberal Supreme Court Justices Vote in Lockstep, Not the Conservative Justices*, USA TODAY (Sept. 10, 2019), https://www.usatoday.com/story/opinion/2019/09/10/liberal-supreme-court-justices-vote-in-lockstep-not-the-conservative-justices-column/2028450001 [https://perma.cc/FKE4-LZ23]; Adam Feldman, *Changes Are Afoot: Evidence from 5-4 Decisions During the 2018 Term and What This Tells Us About the Supreme Court Moving Forward*, EMPIRICAL SCOTUS (July 7, 2019), https://empiricalscotus.com/2019/07/07/changes-are-afoot [https://perma.cc/ET2Q-7P5X].

At a certain point, the immediate media cycle ended, and I went to a dinner celebrating a friend's new job. Walking back to my hotel from the restaurant, I was feeling festive and feisty. As I doomscrolled Twitter before going to bed—not a best practice—I became increasingly upset about the criteria being applied to the Supreme Court nomination. I asked myself: "If I were a Democratic president, whom would I pick?" I thought about it and concluded: Sri Srinivasan, the chief judge of the U.S. Court of Appeals for the D.C. Circuit, an Obama appointee who had argued 25 cases in the high court and was universally respected for his intellect and legal acumen. Also, he had been born in India and immigrated to Kansas with his parents, so he combined diversity and the American dream. Judge Srinivasan had the potential to have a huge impact as a justice and had been considered for the 2016 nomination that had ultimately gone to Merrick Garland. But he was now preemptively disqualified because of his race and gender.

I fired off a late-night tweet:

> Objectively best pick for Biden is Sri Srinivasan, who is solid prog & v smart. Even has identify [identity] politics benefit of being first Asian (Indian) American. But alas doesn't fit into the latest intersectionality hierarchy so we'll get lesser black woman. Thank heaven for small favors?[6]

In other words, I argued, in stilted shorthand given the platform, that Chief Judge Srinivasan was the best candidate, meaning that *everyone else in the entire world* was less qualified. So, if President Biden kept his promise, he would pick a less-qualified—or, given Twitter's character limit, "lesser"—black woman.

Then I went to bed.

Overnight, a firestorm erupted on social media, particularly over those three words: "lesser black woman." I deleted the tweet and apologized for my inartful choice of words but stood by my view that President Biden should have considered "all possible nominees," as 76 percent of Americans agreed in an ABC News poll released a few days later.[7] Many politicians and legal commentators made the same point. But it was too late. My ideological opponents were out for blood, or at least my new job, even before I assumed it.

The day after the tweet was the second-worst day of my life, after another January day nearly 25 years earlier, when my mom died. I thought that I had blown up my life and killed my career. Everything I had worked hard for over decades—the sacrifices my parents had made in getting me out of the Soviet Union, the earnest striving of an immigrant kid to get to the Ivy League and work

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6. Robby Soave, *Georgetown Ends Investigation of Ilya Shapiro for Bad Tweet, Will Not Fire Him*, REASON (June 2, 2022), https://reason.com/2022/06/02/ilya-shapiro-georgetown-tweet-investigation [https://perma.cc/X5YF-LE74].

7. Brittany Shepherd, *Majority of Americans Want Biden to Consider 'All Possible Nominees' for Supreme Court Vacancy: Poll*, ABC NEWS (Jan. 30, 2022), https://abcnews.go.com/US/majority-americans-biden-nominees-supreme-court-vacancy-poll/story?id=82553398 [https://perma.cc/WWH9-ZQ54].

in the halls of power, the life my wife and I were building for our two young sons (who would be joined later that year by boy-girl twins)—all of it was crumbling. Over a tweet.

Never mind that a good-faith reader would not construe what I said to be offensive. It is willful miscomprehension to read my tweet to suggest that "the best Supreme Court nominee could not be a Black woman,"[8] or that I considered black women to be "lesser than" everyone else. Although my tweet could have been phrased better, as I readily admitted, its meaning that I considered one candidate to be best and thus all others to be less qualified is clear. Only those acting in bad faith would misconstrue what I said to suggest otherwise. Only those trying to get me fired for my political beliefs would campaign for my banishment from polite society.

Thanks to friends and allies with public platforms and private back channels to the Georgetown administration, I was not fired during those initial four days of hell. Instead, I was onboarded but suspended pending an investigation into whether I had violated university policies. That investigation continued for more than four months of purgatory, during which I was banned from campus.

It is clear now that the "investigation," led by Human Resources (HR) and the Office of Institutional Diversity, Equity and Affirmative Action (IDEAA), and advised by the prestigious (and expensive) Washington law firm WilmerHale, was a sham. The process was the punishment. It does not take months to investigate a tweet—or to look at a calendar. Any junior law professor could have applied the law (the short policies at issue, particularly Georgetown's vaunted Speech and Expression Policy[9]) to the facts (an even shorter tweet) and come up with a quick answer—specifically that I had engaged in protected speech that was not discriminating against or harassing anyone. But that did not happen, and as the process dragged on, it became abundantly clear that university officials were just stalling until students left campus.

Indeed, on June 2, 2022, about a week after the semester ended, I was reinstated on the technicality that I was not an employee when I had tweeted and, therefore, was not subject to discipline under the relevant policies. I celebrated that technical victory in the pages of the *Wall Street Journal*,[10] but after reading the IDEAA report in detail, realized that Georgetown had made it impossible for me to fulfill the duties for which I had been hired. After consulting with colleagues, my lawyer, and other trusted advisers, especially my wife—a better

8. William M. Treanor, *Dean William M. Treanor's Statement on Recent Ilya Shapiro Tweets,* GEORGETOWN L. (Jan. 27, 2022), https://www.law.georgetown.edu/dean-william-m-treanors-statement-on-recent-ilya-shapiro-tweets [https://perma.cc/F8QM-GJXJ].

9. *See* GEORGETOWN UNIV., HUMAN RESOURCES POLICY MANUAL § 1008: POLICY ON SPEECH AND EXPRESSION (2024), https://policymanual.hr.georgetown.edu/1000-university-policies/1008-policy-on-speech-and-expression [https://perma.cc/9F4M-MYLL].

10. Ilya Shapiro, *My Cancel Culture Nightmare Is Over*, WALL ST. J. (June 2, 2022), https://www.wsj.com/articles/ilya-shapiro-georgetown-twitter-kbj-cancel-law-school-supreme-court-appointee-twitter-free-speech-11654211044 [https://perma.cc/YD5F-VVN6].

lawyer than any of us—I concluded that remaining in the job I was hired for was untenable.

I recount my reasoning later in this essay, but suffice it to say that Georgetown implicitly repealed its free-speech policy and set me up for discipline the next time I transgressed progressive orthodoxy. Instead of participating in that slow-motion firing, I quit.[11]

Now, alongside the publication of my book, *Lawless: The Miseducation of America's Elites*, about the illiberal takeover of legal education that builds on my experience at Georgetown, I decided to publish the definitive account of that experience with the *Georgetown Journal of Law & Public Policy*.

II. FOUR DAYS OF HELL

On the morning of January 27, 2022, I woke up in my Austin hotel room refreshed and ready to take on the world, knowing that I would now be spending the week before I joined the Georgetown Law faculty discussing Justice Breyer's legacy and succession. But when I checked my phone, my heart sank, and I realized I would be taking on the world in a completely different way.

Mark Joseph Stern, Slate's legal correspondent and a Georgetown Law alum, had taken advantage of my inartful phrasing to go after my head—or, more precisely, my job. Screen-capturing my tweets, he commented, "I hate to draw attention to this troll because attention is what he craves. But now that @GeorgetownLaw has hired him, I feel an obligation to condemn his overt and nauseating racism, which has been a matter of public record for some time. I am deeply ashamed of my alma mater."[12]

Before Stern's salvo, my tweets had not been getting that much attention. But afterward, the Twitter mob piled on. In addition to the usual collection of bots and anonymous accounts, left-wing activists and intellectuals pounced, including would-be future colleagues. Other future colleagues showed me grace and offered personal support, sometimes despite ideological disagreements. These colleagues demonstrated compassion and professionalism from day one. Although I had online defenders as well, I quickly realized that things were getting out of hand and that a debate about what I had actually meant was both professionally unhelpful and a distraction from my point about judicial nominations.

Stern also got some social-media backlash, causing him to backpedal and insist that he was not out to get me fired. Charles C. W. Cooke, who is a friend, skewered Stern's facetious posture in *National Review*:

> There he was on Twitter, minding his own business, when he came across some tweets he disliked from Georgetown's Ilya Shapiro, screenshotted and

11. Ilya Shapiro, *Why I Quit Georgetown*, WALL ST. J. (June 6, 2022), https://www.wsj.com/articles/why-i-quit-georgetown-11654479763 [https://perma.cc/R5G5-6CHN].

12. Mark Joseph Stern (@mjs_DC), X (Jan. 27, 2022, 8:42 AM), https://x.com/mjs_DC/status/1486696022516682752 [https://perma.cc/E26G-5XWQ].

> shared them, condemned their author as a racist troll in tweets that tagged his employer, insisted dramatically that he was "ashamed" of his "alma mater," solicited and published a reproaching comment from that alma mater's dean, and . . . well, for some inexplicable reason, the people watching this saga concluded that Stern was trying to get Shapiro *fired*. . . .
>
> When Stern said that Shapiro was a "troll" and a "racist" whose "overt and nauseating" bigotry made him "ashamed" of Georgetown, he was simply confirming that overtly racist nauseating trolls are precisely the sort of people whom Georgetown should *keep on staff*—and maybe even give a promotion and a raise.[13]

Many others in the media would also come to my defense with both reported and opinion pieces. But on that first morning, the damage had been done. As Cooke noted, Georgetown Law's leadership, having been apprised of the brewing "scandal," put out a statement mischaracterizing what I had said as a "suggestion that the best Supreme Court nominee could not be a Black woman" and labeling that as "appalling."[14] The statement also said that my tweets were "at odds with everything we stand for at Georgetown Law and are damaging to the culture of equity and inclusion that Georgetown Law is building every day."[15]

"As soon as I read the dean's email, I thought, 'Oh my gosh, this is gonna make it so much worse,'" said the then-editor of the *Georgetown Journal of Law & Public Policy* in a media interview.[16] The GULC administration's statement, he said, "took an already volatile situation and made it worse by inferring that students should adopt the worst possible reading of Mr. Shapiro's tweets."[17]

It was not at all clear what would happen to me, though it was certainly within the realm of possibility—perhaps more likely than not—that I would be fired later that afternoon. I had repeated conversations with a close friend and advisor, who was an academic leader of the libertarian legal movement and has long been one of my mentors and heroes. We discussed whether I should just resign to avoid being dragged further through the mud. In the end, we decided that this would not be the right course, that it would show weakness and damage the ideals of free speech and academic freedom, which were already under attack on university campuses.

It was time to move into damage control and crisis public relations. I would need both an "outside" strategy of media and public statements and an "inside"

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13. Charles C. W. Cooke, *Poor, Misunderstood Mark Joseph Stern*, NAT'L REV. (Jan. 28, 2022), https://www.nationalreview.com/corner/poor-misunderstood-mark-joseph-stern [https://perma.cc/W8N2-RXCH].

14. Treanor, *supra* note 8.

15. *Id.*

16. Nate Hochman, *Inside Georgetown Law's Campaign to Cancel Ilya Shapiro: 'This Is Melting Down'*, NAT'L REV. (Feb. 2, 2022), https://www.nationalreview.com/2022/02/inside-georgetown-laws-campaign-to-cancel-ilya-shapiro-this-is-melting-down [https://perma.cc/B7W8-W2DR].

17. *Id.*

strategy working behind the scenes in private communications to push Georgetown Law not to fire me.

I emailed Greg Lukianoff, whom I had known for a long time, with the subject heading "My Twitter storm crisis." Greg is the president and CEO of what was then called the Foundation for Individual Rights and Education (FIRE), the nation's premier organization dedicated to the freedom of speech and expression in the academic world. (That summer, FIRE would rebrand itself as the Foundation for Individual Rights and *Expression*, expanding its mission to defend and promote "the value of free speech for all Americans in our courtrooms, on our campuses, and in our culture."[18]) I was no stranger to FIRE, having worked with the organization's lawyers on Supreme Court and other appellate cases over the years, either supporting them with amicus briefs or joining together on filings. Never had I expected that I would personally need the organization's services, as the target of potential disciplinary action in response to something I had said or written. But then nobody does—or should. It is a sad testament to the state of the academic world that FIRE continues to exist, and expand, 26 years after it was founded.

A basic question about how I should deal with media queries quickly evolved into an A-Team thread regarding all aspects of speech-related crisis management and legal action. Greg did not hesitate to involve all of his top people. In the next 48 hours, that core group exchanged so many emails that we had to start a new thread several times.

The day was drawing on, and I needed to get dressed, check out of my hotel, and eventually fly home. The day before, I had made lunch plans to meet an old friend, Fifth Circuit Court Judge Don Willett, along with a few of his current and former clerks. I texted him to say that I was running late because of "a Twitter-related personal crisis." The fact that I was meeting this particular federal judge made the episode seem scripted; Don had gained national acclaim for being the most active judicial Twitter user when he was on the Texas Supreme Court, but had ended his tweeting upon being nominated to the Fifth Circuit in 2017.

I spent the rest of the afternoon before the flight home strategizing with friends and allies, dodging media queries, and trying to settle my nerves. A trusted advisor offered that we were in a "wait and see" period, and there was not much to be done unless things escalated. Just in case, and with FIRE's help, I drafted several statements, some combative, some conciliatory, eventually settling on a short one regretting my choice of words but doubling down on my point about colorblind judicial selection. But I did not tweet or send anything out yet.

Seeing that the furor was not dying down on either social media or the Georgetown faculty listserv, however, I was advised to prepare an apologetic letter to the dean and faculty—apologetic with regard to my language, not my message. The FIRE brain trust was uniformly against my issuing *any* further apology,

18. FOUND. FOR INDIVIDUAL RTS. & EXPRESSION, *FIRE's Mission* (2024), https://www.thefire.org/about-us/mission#:~:text=FIRE's%20mission%20is%20to%20defend,most%20essential%20qualities%20of%20liberty [https://perma.cc/Z4YU-9VCF].

because in its experience with academic persecutions, apologies are taken as admissions of guilt and capitulation and never achieve a beneficial result. At 11:03 p.m.—still day one of the initial "four days of hell"—I sent a statement to the faculty listserv, again expressing regret for my communication failure and leaving it at that.

There was no immediate response, but the next day, the Georgetown Black Law Students Association (BLSA), joined by many other groups and individuals—including the Student Bar Association, the school's ACLU chapter, and the school's American Constitution Society chapter, among others—issued a letter criticizing the administration's "bare-bones email" for offering "no apology or action plan" and arguing that I was undeserving of "a space as a leader and educator in the Georgetown community."[19] The letter laid out a series of demands, including that my employment contract be revoked. Other demands included expanding the IDEAA Office, giving BLSA a voice on the faculty hiring committee, and funding an endowment for black students. One allegation was that my comments "pit South Asian communities against Black communities in furtherance of white supremacy."[20] Numerous members of the faculty joined in the attacks over Twitter and email.

A Georgetown student, who told a *National Review* reporter that he "tends to lean a little more liberal," was thrown off a group chat after being called "privileged" for defending students who questioned those calling for my cancellation.[21] "That's what really got to me," he said. "Like, my mom was undocumented for 35 years. I grew up on food stamps and welfare and had to dig myself out of a hole to get to go to Georgetown Law. My life has been difficult, but I don't complain. And it just bothered me that these kids that didn't even know me—you know, a fellow person of color—were telling me that I'm privileged. Like, you don't know the things that I had to see growing up and what I had to do and struggle to get here."[22] He was also kicked out of a separate group chat for first-generation law students. "Some people encouraged me to go to the administration, but like, you've seen the administration's response," he explained. "They're not going to be on my side. . . . I'm on a scholarship. I don't want to get kicked out, you know?"[23]

Other students and alumni organized counter-letters. Georgetown Law's Conservative and Libertarian Student Association (CALSA) bravely put out a strong statement of support.[24] FIRE organized a nationwide faculty letter that was

19. Georgetown BLSA (@GeorgetownBLSA), X (Jan. 28, 2022, 12:51 PM), https://x.com/GeorgetownBLSA/status/1487121210039230469 [https://perma.cc/5US8-EYCT].

20. *Id.*

21. Hochman, *supra* note 16.

22. *Id.*

23. *Id.*

24. *See* Philip Klein, *Georgetown Law's Conservative and Libertarian Students Rally Around Ilya Shapiro*, NAT'L REV. (Jan. 29, 2022), https://www.nationalreview.com/corner/georgetown-laws-conservative-and-libertarian-students-rally-around-ilya-shapiro [https://perma.cc/CWQ5-ZUNL].

ultimately signed by more than 200 academics.[25] The Academic Freedom Alliance, spearheaded by Princeton Professor Keith Whittington, issued a similarly powerful letter.[26] Nadine Strossen, a former head of the ACLU, wrote a particularly strong statement, concluding that my case "provides an especially compelling context for Georgetown to abide by the important constitutional norms that it has committed to honor."[27] She also wrote a pointed personal missive to the law school's administration.

Peter Kirsanow, a member of the U.S. Commission on Civil Rights and former member of the National Labor Relations Board who happens to be black, wrote in support of me and my "mainstream opinion" that "deserves to be heard at a law school, which is supposed to be a place of free expression and intellectual inquiry."[28] Eugene Volokh and other academics at the influential *Volokh Conspiracy* blog took up my cause.[29]

Thanks to both public and private efforts by my allies and supporters—most of whom acted without my asking—I survived that second day. The administration let the campus community know that Friday afternoon that there would be no decision made about my situation until Monday.

That was a reprieve of sorts; surviving the first 24–48 hours is key in cancellation campaigns. But I was not out of the woods yet, and the emotional toll was beginning to manifest itself physically: not just sleepless nights, but I lost my appetite and felt ill. My wife was also, of course, affected. There were tears—from both of us—and she told me over and over, "Fix this, fix this." Kristin had prophetically warned me over dinner a few days earlier, before my trip to Austin, that at Georgetown I would have to be particularly careful about issues of race and sex. And now I had stepped into that exact quagmire because I was not yet in the mode of thinking of myself as being in academia. We tried not to convey our worries to our two young sons (then six and almost four), but kids can sense when something's not quite right with Mommy and Daddy, so they displayed some unusual behavior.

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25. Letter from Eugene Volokh, Distinguished Professor of L., UCLA, to William M. Treanor, Dean, Georgetown Univ. L. Ctr. (Jan. 31, 2022), https://www.thefire.org/research-learn/faculty-letter-support-ilya-shapiro-january-31-2022 [https://perma.cc/DT2W-M7RQ].

26. Letter from Keith Whittington, Chair, Acad. Comm., Acad. Freedom All., to William M. Treanor, Georgetown Univ. L. Ctr. (Feb. 1, 2022), https://academicfreedom.org/wp-content/uploads/2022/02/AFA-Letter-to-GULC-regarding-Ilya-Shapiro.pdf [https://perma.cc/9QJW-X6V3].

27. Nadine Strossen, *Statement on the Ilya Shapiro Free Expression Controversy*, FIRE (Jan. 30, 2022), https://www.thefire.org/research-learn/statement-nadine-strossen-ilya-shapiro-and-free-expression-georgetown-january-30 [https://perma.cc/XR6K-DQ2U].

28. Letter from Peter Kirsanow, Comm'r, New Am. Civ. Rts. Project, to Dean Treanor, Geo. L. Sch. (Jan. 28, 2022), https://web.archive.org/web/20220722094932/https://www.newamericancivilrightsproject.org/wp-content/uploads/2022/01/Letter-to-Treanor-re-Ilya-Shapiro-1.pdf [https://perma.cc/XVW7-4MMK].

29. *E.g.*, Will Baude, *Faculty Letter Against Firing Ilya Shapiro*, VOLOKH CONSPIRACY (Jan. 31, 2022), https://reason.com/volokh/2022/01/31/faculty-letter-against-firing-ilya-shapiro [https://perma.cc/Q33A-DXXN]; Josh Blackman, *Ilya Shapiro Is Shouted Down at U.C. Hastings*, VOLOKH CONSPIRACY (Mar. 3, 2022), https://reason.com/volokh/2022/03/03/ilya-shapiro-is-shouted-down-at-u-c-hastings [https://perma.cc/Z9SZ-ZESN].

The trend of canceling speakers rather than challenging them, of being oblivious to the "LOL nothing matters" collateral damage, also represents the loss of grace in our culture more broadly. There is a desire to ascribe malign motives to one's political enemies and unwillingness to think of them as merely wrong, rather than evil. As American society has secularized, politics has replaced religion to fill our spiritual needs. In that context, it's easy to see one's political opponents as heretics—and then of course their sacrilege isn't worth hearing. It'll take courage from cultural influencers to get us back to where we can disagree without wanting to ruin the lives of people with whom we have those disagreements.

On Saturday, January 29, after further discussions with my advisors and my good friend Libby Locke, one of the nation's premier plaintiff-side First Amendment lawyers and also a Georgetown Law alum, I asked to meet with the law school's leadership. The meeting was arranged for the next day via Zoom. It would have been better to meet in person, but Georgetown was maintaining extreme Covid measures such that masks were required even for small gatherings, which would have been even more surreal and impersonal.

During the Zoom meeting, I was asked for suggestions on where we should go next. I said that principles of free speech and the university's own policy protected my expression, so I should be allowed to take up my job. I said that the administration itself had muddied the waters by mischaracterizing my tweet and thus advancing the notion that a maliciously unreasonable reading of my tweet as racist was its best reading. Nonetheless, and despite that unfortunate start to my Georgetown tenure, I said that I was prepared to do my job and be a better communicator in the future.

I was asked whether I could be effective given the offense I had caused. I explained that I could because I still had my professional skills, networks, and media contacts, and that students and faculty who did not want to interact with me would not have to. (The appointed investigators would eventually use that point, which I reiterated when they interviewed me, to claim that I would be denying "access" to some students' educational opportunities.) I was asked whether I was open to issuing a further apology, perhaps in the context of structural racism. Biting my tongue about the reference to critical race theory, I explained that I had already said enough and that any further statements would have to be issued jointly in the context of the continuation of my employment.

The meeting lasted less than half an hour. That evening, I was in touch with two prominent members of Georgetown Law's Board of Visitors, who were in my corner and disappointed by my treatment. It could be that their entreaty was the last straw that allowed me to survive past the initial decision-making period, to persuade the administration to punt.

The next day, Monday, January 31, Georgetown declined to take my suggestion and vindicate the values of free speech and grace, but it also declined to take the student organizations' suggestion to cut ties with me and grant their desired concessions. Instead, the law school announced that, even as I would be onboarded the next day, per my contract, I would be immediately placed on paid

administrative leave pending an investigation into whether my social-media comments had violated university policies on harassment, antidiscrimination, and professional conduct.[30]

My personal hell had ended, only for my purgatory to begin.

III. FOUR MONTHS OF PURGATORY

Once the acute pain of the immediate "scandal" ended, a period of chronic annoyance began in which pain ebbed and flowed. I think that the phrase "banality of evil" is apt for an evil that can result "merely" in career death rather than loss of life. My experience with the IDEAA Office was one of encountering bureaucrats enforcing an illiberal regime that expects people to bend the knee to established orthodoxy or suffer the consequences. IDEAA, and the DEI offices that have spread across academia, go far beyond merely preventing discriminatory practices and ensuring that everyone has access to university facilities. They are the apotheosis of what those warning about political correctness in the 1990s feared: thought police.

The problem isn't limited to canceling professors and treating speakers differently based on their viewpoints. The illiberal takeover of law schools involves the clash between the classical pedagogical model of legal education and the postmodern activist one. This dynamic was crystallized in Stanford DEI Dean Tirien Steinbach's memorable question to Judge Kyle Duncan when she fomented the mob that shouted him down in March 2023: "Is the juice worth the squeeze?"[31] It's just a cute way of giving ideological opponents a heckler's veto—not only on speakers, but on class materials, extracurricular activities, whatever. If they hate an idea enough, surely it isn't worth exposing students to a person who espouses that idea.

Initially, I did not think that the "investigation" would last long— it was suggested by someone with reason to know that it might take a month or six weeks—so I took it seriously because, after all, I wanted both to keep my job and to stand up for free speech.

What I did not understand was that the values I was expecting to be applied—reason, good faith, and professional courtesy—had long since been abandoned by Georgetown's bureaucracy. There's a difference between an investigation and an inquisition. The first is trying to find the truth, and the second is trying to

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30. *See* GEORGETOWN UNIV., HUMAN RESOURCES POLICY MANUAL § 1004: POLICY STATEMENT ON HARASSMENT (2024), https://policymanual.hr.georgetown.edu/1000-university-policies/1004-policy-statement-on-harassment [https://perma.cc/SZV4-RPG4]; GEORGETOWN UNIV., EQUAL OPPORTUNITY AND NONDISCRIMINATION IN EMPLOYMENT (2024), https://georgetown.app.box.com/s/qqtpk66pgqy2cnx90ihl [https://perma.cc/L4M7-J5QW].

31. Josh Blackman, *Is the DEI Juice Worth the Squeeze?*, VOLOKH CONSPIRACY (Mar. 11, 2023), https://reason.com/volokh/2023/03/11/is-the-dei-juice-worth-the-squeeze [https://perma.cc/VH57-89G5]. For a comprehensive account of this event, *see* David Lat, *Yale Law Is No Longer #1—For Free-Speech Debacles*, ORIGINAL JURISDICTION (Mar. 10, 2023), https://davidlat.substack.com/p/yale-law-is-no-longer-1for-free-speech [https://perma.cc/2B5E-HY8E].

assemble evidence for a predetermined result. Bureaucracy is about order, tidiness, and obedience. Academia is about growth, challenge, and debate—or it should be. What differentiates education systems in liberal democracies from those in authoritarian regimes is the emphasis on the free exchange of ideas, which enhances education, innovation, and personal growth. Bureaucratic bloat and governance by administrators trained on something other than scholarly values is deadly to the survival of the academic mission.

What should have given me a clue that the investigation was farcical from the outset was that its very genesis patently contradicted Georgetown's Speech and Expression Policy, which is actually quite good on paper and worth quoting from.

> It is not the proper role of a university to insulate individuals from ideas and opinions they find unwelcome, disagreeable, or even deeply offensive. . . .
> It is for the individual members of the University community, not for the University as an institution, to judge the value of ideas, and to act on those judgments not by seeking to suppress speech, but by openly and vigorously contesting those arguments and ideas that they oppose. . . .
> . . . [C]oncerns about civility and mutual respect can never be used as a justification for closing off the discussion of ideas, no matter how offensive or disagreeable those ideas may be to some members of our community.[32]

Given that my speech alone was being investigated—and that I was not harassing or discriminating against anyone, except possibly President Biden for having a racist and sexist employment policy—the case should have been open-and-shut. Even the left-wing literary critic Jeet Heer tweeted that my comments "were vile but well within the parameters of academic free speech. The university is betraying fundamental principles here."[33] Critical race theorist Nikole Hannah-Jones, the founder of the 1619 Project, which aims to recenter America's story around racism and slavery, joined the criticism of Georgetown's decision to investigate me, however non-disciplinary my leave might be framed. "I agree," she quote-tweeted Heer.[34]

And recall that all of this took place at a law school, where any junior professor could have applied the above policy to the discrete set of facts and closed the case before the last sleepy-headed students rolled in for morning class. That's what would have happened in a sane world.

In the real world, something different happened. It quickly became apparent that the true priority for those campus bureaucrats was not implementing due process but pleasing everyone who had an opinion about the matter. On February 1, 2022, my first official day as a Georgetown faculty member, students held a

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32. GEORGETOWN UNIV., *supra* note 9, at 174–75.

33. Jeet Heer (@HeerJeet), X (Jan. 31, 2022, 1:43 PM), https://x.com/HeerJeet/status/1488221335193100292 [https://perma.cc/4H8A-AU5N].

34. Ida Bae Wells (@nhannahjones), X (Jan. 31, 2022, 9:33 PM), https://x.com/nhannahjones/status/1488339601668386816 [https://perma.cc/59KX-MK2N].

sit-in, calling for "the immediate termination of Ilya Shapiro."[35] Georgetown administrators attended the sit-in, fielding questions for more than an hour. Student activists floated the idea of defunding the Center for the Constitution—"I really want you to defend why we really need it, beyond, like, you know, free speech, and beyond diversity of opinion"—and demanded everything from "reparations" to free food to a crying room. "Is there an office they can go to?" one student asked. "I don't know what it would look like, but if they want to cry, if they need to break down, where can they go?"

"It is really, really hard to walk out of class or a meeting in tears, and you should always have a place on campus where you can go," an administrator replied. "And if you're finding that you're not getting the person that you want to talk to or not getting the space that you need, reach out to me anytime—anytime—and we will find you space."

The administration defended the Center for the Constitution as "important" but added that they wanted to "draw a line between conservatism and things that are racist." Georgetown was trying to placate the students without committing to any action. "Since we're a private institution, the First Amendment doesn't apply to us," but "on the other hand, the university does have a free speech and expression policy which binds us." It was not exactly a courageous defense of the principles of academic freedom and free speech.

Throughout the protest, the Georgetown administrators present maintained a deferential tone but remained noncommittal about taking concrete steps: "I'm grateful for you taking the time to talk; I'm grateful for your insights; I heard a lot today that I won't just be reflecting on but that I'll be moving forward with, and I will be in dialogue with you about what we're doing." The students, far from being mollified, were irate.

At the same time, the law school's "bias reporting" hotline fielded complaints about a student who had defended me in a national publication—taking particular issue with the article's headline (which of course the editor, not the student, had written). While sitting in class later that week, that student received a letter stating that law school administrators were evaluating a potential violation of the same policies under which I was being investigated.[36] The student hired a lawyer to push back. Georgetown ultimately decided not to go through with an investigation, but there, too, the process was the punishment: in addition to anxiety and distress, the episode cost the student upwards of $10,000 in legal fees.

There have been, in just the last few years, numerous attempts to "cancel"—shame, ostracize, and threaten the careers of—anyone who deviates from a "safe" discourse. In April 2023, FIRE released a comprehensive report that explored

35. Nate Hochman, *Georgetown Law Students Stage Sit-in, Demand Dean Fire Ilya Shapiro*, NAT'L REV. (Feb. 1, 2022, 1:56 PM), https://www.nationalreview.com/corner/georgetown-law-students-stage-sit-in-demand-dean-fire-ilya-shapiro [https://perma.cc/G3CE-UM7X]. All quotes from the sit-in in this and the next few paragraphs come from this article.

36. Author's conversation with the student.

cancel culture in colleges and universities across the country.[37] It examined attempts to punish or professionally sanction scholars from 2000 to 2022 for speech that is—or would be in public settings—protected by the First Amendment. Its findings are staggering, with 1,080 scholar sanction attempts, almost two-thirds of which (698) resulted in sanctions, including 225 terminations.[38] Alarmingly, the annual number of attempts at cancellation has increased dramatically over time, from 4 in 2000 to 145 in 2022.[39] Perhaps not surprisingly, 75 percent of attempts by undergrads, 82 percent by fellow scholars, and *94 percent by graduate students* (which includes law students) came from the ideological left.[40] The schools with the most cancellation attempts were Harvard (23), Stanford (22), UCLA (19), Georgetown (16), Columbia (14), and Penn (14).[41] What's most telling is that law professors were targeted more than any other discipline.

While those sorts of spectacles were taking place on campus, I began the virtual "onboarding" process: setting up direct deposit for my hard-earned paycheck, signing up for benefits, figuring out email and computer systems, going through HR training, and other standard procedures. I was contacted by both HR and IDEAA to arrange my investigatory interview. We set it for February 17, 2022, at 9:00 a.m., via Zoom again because my presence on campus could be "triggering" and "harmful." For me, the virtual meeting would actually be at 6:00 a.m. Pacific time, because I was on the West Coast speaking to chapters of the Federalist Society and participating in an academic conference. That was all in my personal capacity, because Georgetown's letter also specified that I was "not to perform work for the University."

And so, I prepared to face my investigators. I was staying with a friend in San Diego, which was where, in the wee hours that Thursday morning—three weeks after the tweet that shook the world—I fired up my laptop.

The reason that bureaucrats have eschewed all of the virtues undergirding the rule of law is that they've accepted the new orthodoxy that what matters is not the objective meaning of a given statement or even its intent but its effect—not the facts but the feelings. In retrospect, it's obvious that IDEAA's questions that morning were not about understanding me or what I had said but instead about getting me to agree with a bad-faith reading of the situation. It was a struggle session in which I was supposed to admit my guilt. If others perceived what I said as bad, it *must be* bad. No wonder we got nowhere; we were in a pitched epistemological battle.

Georgetown's investigators questioned me for an hour, almost exclusively asking variations of three questions:

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37. Komi Frey & Sean Stevens, Scholars Under Fire: Attempts to Sanction Scholars from 2000 to 2022, FOUND. FOR INDIVIDUAL RTS. & EXPRESSION (2023), https://www.thefire.org/research-learn/scholars-under-fire-attempts-sanction-scholars-2000-2022 [https://perma.cc/2X8U-7PK5].

38. *Id.* at 2.

39. *Id.*

40. *Id.* at 18 n.42.

41. *Id.* at 3.

> What did you mean by your tweet?
>
> What was the context of your tweet?
>
> Do you think you can still be effective in the job for which you were hired?

The questions were repetitive; my interlocutors were not really focused on my answers but waiting for me to say the magic words "I was completely wrong." They also tried another tack: pointing out that other people had *felt* harmed by my words. How, then, could I not concede that I was wrong? Of course, the idea that the freedom to speak depends on the emotional reactions the speech elicits has long been rejected, including by Georgetown's own speech and expression policy. There is an exception for the incitement of violence, to be sure, but nobody accused me of doing that!

It was all rather straightforward and, dare I say, easy. It was not a lawyerly deposition. There were no gotcha games or sharp questions. The investigators were incredulous that I didn't back away from my explanation that I had just imperfectly expressed a sentiment by which I stood, but there was nothing that they gleaned that could affect their predetermined judgment that I was guilty of creating a "hostile educational environment" because some people were offended. It was clear that, even if I had fallen on my sword and pledged fealty to critical race theory, the outcome was preordained.

On Monday, February 21, I filed my written submission with HR and IDEAA. The upshot was that I urged Georgetown to uphold its values and live up to its ideals.

The following week, on March 1, I headed back to California to speak at the law school then known as UC Hastings, which would mark another bizarre twist in the saga. By the time I flew back to California, my lawyer and I decided that I should resume a normal schedule of public events and writings. The thinking was that it would help my case to show that I was still capable of performing as a communicator and exponent of my area of expertise. That course of action would also address the investigators' concerns about my being able to do my job. And it would be a psychological balm, because I was beginning to get antsy about being bottled up and "inside my head" about the surreal situation I was in. Moreover, the publisher of my last book had decided to release *Supreme Disorder* in paperback—I had begun working on an epilogue that would update the narrative to include Amy Coney Barrett and whomever Biden would now pick—so being "out there" would help sales.

What I was about to discover was a truth that contradicted the most prominent defenses of cancel culture. Cancel-culture apologists like to claim that cancellation is about accountability for bad actors. Who could oppose that? Every society needs a way to chastise those who have broken its rules. What puts the lie to the "accountability" defense, however, is that cancellations aren't specific; they're blanket punishments. Accountability is designed to seek truth and *then* punish, but cancellation seeks to isolate its victims without investigation—and to isolate

them in every way across their careers. That's simply an exercise of power. Presumption of innocence? Forget about it. Grace? That's for chumps. Such an atmosphere is particularly detrimental to the development of lawyers.

After all, if an English or sociology department is led astray, that is unfortunate and a loss to the richness of life and the accumulation of human knowledge. But the implosion of legal education has much more dire consequences.[42] Law schools train future lawyers and politicians and judges, who are the gatekeepers of our institutions and of the rules of the game on which American prosperity, liberty, and equality sit. An illiberal takeover of medical schools might be more immediately dangerous, in that you wouldn't have the best doctors treating people, but law students who police their professors' microaggressions and demand the "deplatforming" of "harmful" speakers will eventually occupy positions of authority. Without any understatement, it would be a disaster for the American way of life to have future generations of lawyers think that applying the law equally to all furthers white supremacy or that the strength of one's rights depends on one's level of privilege—or that due process and freedom of speech protect oppressors and perpetuate injustice.

As it happened, the day before I flew to San Francisco to speak at UC College of the Law, San Francisco—renamed from UC Hastings "in recognition of harms done by the school's founder against the Yuki Indians"[43]—President Biden announced the nomination of then-Judge Ketanji Brown Jackson to the Supreme Court. "Great," I thought, "Professor Rory Little and I will be able to discuss not just the role that politics plays in judicial nominations or my ongoing Georgetown travails, but the merits of this particular nominee." But it was not to be; we did not get to discuss anything at all. I was shouted down, not allowed to speak at all, throughout a bizarre experience I have chronicled elsewhere.[44]

So it went the next few months. I did some legal consulting, wrote popular and academic articles, filed amicus briefs—including in the Harvard/UNC affirmative-action cases that the Supreme Court would decide in June 2023[45]—gave speeches and panel remarks, explored some idea-entrepreneurship opportunities, and otherwise kept busy so as not to think about the dragged-out "investigation." One highlight was an event at Princeton, my undergraduate alma mater, focused on threats to collegiate free speech, after which I had dinner with Professor

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42. *See, e.g.*, Tunku Varadarajan, *DEI at Law Schools Could Bring Down America,* WALL ST. J. (Mar. 28, 2023), https://www.wsj.com/articles/woke-law-schools-could-bring-down-america-ilya-shapiro-dei-bureaucracy-stanford-supreme-court-rule-of-law-34c402c2 [https://perma.cc/QZJ7-TA5T] (interviewing author on subject matter).

43. *UC Hastings Is Now UC Law SF,* UNIV. OF CAL. COLL. OF L., S.F. (Jan. 1, 2023), https://www.uclawsf.edu/new-name [https://perma.cc/FE98-6M6L].

44. For a detailed description of that episode, *see* Ilya Shapiro, *Mob Rule and Cancel Culture at Hastings Law School*, WALL ST. J. (Mar. 22, 2022), https://www.wsj.com/articles/mob-rule-at-hastings-law-school-shouting-obscenities-ilya-shapiro-georgetown-yale-law-11647957949 [https://perma.cc/G8QT-U892]; Ilya Shapiro, *Learning from My Lived Experience with Academic Intolerance,* 27 TEX. REV. L. & POL. 743 (2023).

45. Students for Fair Admissions, Inc. v. President & Fellows of Harvard Coll., 600 U.S. 181 (2023).

Joshua Katz and his lovely wife, Solveig Gold. Josh is a classicist and a linguistic genius, whose long-ago disciplinary case for an inappropriate (but consensual) relationship with a student was reopened after he bucked progressive orthodoxy in the aftermath of the George Floyd protests.[46] He would be stripped of his tenure and fired later that spring.

It was an emotional roller coaster. There were fun, rewarding times and plenty of both quality and quantity time with my family. But there were pits of . . . not despair but doubt and mental exhaustion. The word is overused, but it was surreal: Was all this happening because of one tweet? Where was my career going? Sure, I had a jocular personality in public, trying to make constitutional law more accessible, but I was getting tired of being the case study and making news rather than explaining cases on news programs.

More broadly, what was happening to our country and to legal academia? Why were professors not teaching students that they would face bigger issues in their careers than offensive speakers?

But as I mentioned in the introduction, my experience was no isolated incident—not even for that month of March 2022! On March 10, a Yale Law School discussion bringing together Monica Miller of the American Humanist Association and Kristen Waggoner of the Alliance Defending Freedom—who agreed on little other than the importance of free speech—was interrupted by dozens of protesters who were upset about ADF's positions on LGBTQ issues.[47] The protesters continued their disruption in the hallway outside in a way that further disrupted several classes and a faculty meeting, while Miller and Waggoner had to be escorted out of the room. It would take Dean Heather Gerken more than two weeks to respond and essentially let the disrupters off with a warning.[48]

Then students obstructed a debate at the University of Michigan on Texas's heartbeat bill featuring its architect, former Texas solicitor general Jonathan Mitchell, with whom I overlapped in law school. They focused on the particularly clever method of holding signs at the front of the room that prevented the audience from seeing Mitchell and his presentation. Somehow, that event was not livestreamed and didn't make the national news; I learned of it only because I was due to speak in Ann Arbor the following week.

The only thing the disrupted events had in common was that nonprogressive speakers were presenting ideas that some students found objectionable. We have gotten to a place where questioning affirmative action or abortion is outside the

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46. Colleen Flaherty, *Princeton Moves to Fire Professor*, INSIDE HIGHER ED (May 19, 2022), https://www.insidehighered.com/quicktakes/2022/05/20/princeton-moves-fire-professor [https://perma.cc/FD46-XYBX].

47. Robby Soave, *'Grow Up': Yale Law School Students Interrupt Event, Demand Right to Talk Over Speakers*, REASON (Mar. 16, 2022), https://reason.com/2022/03/16/yale-law-school-students-disrupt-event-adf-aha [https://perma.cc/GK46-T3UE].

48. *See* Heather K. Gerken, *A Message from Dean Gerken on the March 10 Protest*, YALE L. SCH. (Mar. 28, 2022), https://law.yale.edu/yls-today/news/message-dean-gerken-march-10-protest [https://perma.cc/P5K7-CKDT].

academic Overton window, the acceptable range of policy views. We have also gotten to a place where the demand for racism—to justify allegations of "systemic racism" and racialist "antiracism"—far outstrips the supply, so outrages have to be manufactured.

Nearly all these cases follow the same pattern: Students weaponize hurt feelings—which are often performative, not genuine—to demand the obliteration of a political opponent's career. Institutional cultures are so weak, thanks to a bureaucratic explosion and increase in academic activists, that administrators are easily overwhelmed by these moral panics and either engage in performative denunciations of the accused or actually terminate them. This pernicious dynamic is reminiscent of the Chinese Cultural Revolution, in which students publicly shamed and otherwise humiliated professors to scare them into ideological obedience.

At least I can report some counterexamples from my personal experience, though it's unclear whether these are green shoots or exceptions that prove the rule. My Michigan event was supposed to cover the politics of Supreme Court nominations, but in light of national and local developments was reformatted as a discussion on the importance of free speech on campus. Apparently, between the Mitchell event and mine, deans had read the leaders of student organizations the riot act, reiterating university policies on free speech and telling them, "We don't want to be Hastings or Yale." And right before my event, which also featured Northwestern law professor Andrew Koppelman, a longtime sparring partner, the dean of students (who happened to be a black woman), told the audience that I was "most welcome" and reiterated school policies on disciplinary actions against those who disrupt speaker events.

Koppelman said that my substantive legal writings on a range of constitutional issues were "a lot worse than an insulting tweet" but that paying attention to what I said would help those on the left fight their opponents.[49] I gave as good as I got, assailing him and progressives for having upended the rule of law in favor of a constitutionally untethered pursuit of social justice. It was a fantastic event, and we ended up writing about our experience for the *Heterodox Academy* blog, modeling civil engagement despite vehement disagreement over real issues.[50]

In addition to my Michigan event, I had a thrilling and serious two-hour standing-room-only discussion at the University of Oklahoma College of Law. Then-Dean Katheleen Guzman attended the whole thing, took copious notes, and came up to me afterward to ask what administrators should do to promote civil discourse. I suggested that just as law school deans imbue the importance of diversity and public service, they should imbue the values of free speech and civil

49. Andrew Koppelman & Ilya Shapiro, *How We Fought Each Other at Michigan Law*, HETERODOX ACAD. (May 11, 2022), https://heterodoxacademy.org/blog/how-we-fought-each-other-at-michigan-law [https://perma.cc/QSC8-A587].

50. *Id.*

discourse. I do not think it is that hard, but there is little desire to do it or to demonstrate the backbone to stand up to the anti-free-speech mob.

But more people emerged from outside the academy to advocate for free speech in the academy. Two weeks before my Hastings debacle, Fifth Circuit Judge James C. Ho came to Georgetown Law to give a talk on originalism. "But I hope you won't mind that I've decided to address a different topic today instead," he announced to much surprise. "I'm going to spend my time today talking about Ilya Shapiro."[51]

Now, I should disclose that I have known Judge Ho for about 20 years, and we see each other fairly regularly. But I had no idea that he was going to do what he did. A Taiwanese American who immigrated to the United States with his parents as a child, Judge Ho became the first person of Asian descent to sit on the Fifth Circuit when he was appointed by former President Donald Trump in 2017. He is also a cochair of the Judiciary Committee of the National Asian Pacific American Bar Association, a member of the U.S. delegation to the United Nations Committee on the Elimination of Racial Discrimination, and a former attorney in the Justice Department's Civil Rights Division. Judge Ho's personal background featured prominently in his remarks. "I confronted racial discrimination," he said, but "cancel culture is not just antithetical to our constitutional culture and our American culture;" it is "completely antithetical to the very legal system that each of you seeks to join."[52]

Judge Ho's speech, which he later annotated and published in this Journal, argued generally about the importance of freedom of speech, since it is "the foundation of our entire adversarial system of justice."[53] Paralleling Koppelman, he explained that "[y]ou must understand your opponent's views in order to fully understand, and thus powerfully defend, your own views. And that means exposing yourself, not just to the *arguments* on the other side—but to the very *people* who most fervently believe those arguments."[54]

Going beyond the general, he also defended my substantive point that we should be against racial preferences and for equality of opportunity, which he described as "fundamental to who we are, and to who we aspire to be, as a nation."[55] "Ilya has said that he should have chosen different words. That ought to be enough," he said.[56] "I have no doubt—zero doubt—that Ilya did not intend anywhere near the worst interpretation that has been applied to his remarks."[57]

"Make no mistake," he intoned. "If there is any racial discrimination in statements like these, it's not coming from the *speaker*—it's coming from the *policy*

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51. Hon. James C. Ho, *On Ilya Shapiro, Cancel Culture, and Color Blindness,* 20 GEO. J. L. & PUB. POL'Y 381 (2022).
52. *Id.* at 382, 388.
53. *Id* at 382.
54. *Id.* at 383.
55. *Id.* at 385.
56. *Id.* at 384.
57. *Id.* at 385.

that the speaker is criticizing."[58] That statement was a not-so-veiled criticism of Georgetown, but he went even further to show that there was no daylight between the positions I was taking and his own views.

"[L]et me be clear: I stand with Ilya on the paramount importance of color blindness. And that same principle should apply whether we're talking about getting into college, getting your first job, or receiving an appointment to the highest court in the land."[59] As evidence, Judge Ho cited testimony that he had given at a House Judiciary Committee hearing on "The Importance of a Diverse Federal Judiciary,"[60] in which he had echoed my longtime criticism of race-based judicial appointments, calling it "un-American" to restrict a judgeship to members of only one race.[61] Calling racism "a scourge" on America, he added, "the first step in fighting racial discrimination is to stop practicing it. That's all Ilya is trying to say. That's all he has ever tried to say."[62] "If Ilya Shapiro is deserving of cancellation, then you should go ahead and cancel me too."[63]

I got in touch with Judge Ho that evening to thank him. He said it had been the least he could do and asked if there was any other way he could help. I told him that more statements from federal judges couldn't hurt! Indeed, I had members of the media and lawyers defending me, but having a federal judge come to Georgetown to say all those powerful things was next-level support.

As March gave way to April and April to May, my lawyer, Jesse Binnall, and I heard nothing about the investigation. I knew that the investigators had also interviewed at least one other Georgetown Law professor. I suspected that they had interviewed the leader(s) of student organization(s), who had orchestrated the campus campaign against me, to show the alleged harm I had caused. What was taking so long, and what was the university paying WilmerHale to advise it on?

IV. REDEMPTION AND RESIGNATION

In early May, I attended the Manhattan Institute's annual Alexander Hamilton Award Dinner, that year honoring Paul Gigot, the editor of the *Wall Street Journal*'s opinion page. I had long been friends and professional colleagues with lots of folks there, notably Jim Copland, MI's head of legal policy. I did not receive a job offer that night, but it is quite possible, given various synergies and mutual admiration, that had I not tweeted and remained at Georgetown, I would still be an MI adjunct scholar of some sort. In any event, it was a great night in New York, where I had not been since before the pandemic.

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58. *Id.*

59. *Id.* at 388.

60. *See The Importance of a Diverse Federal Judiciary Before the Subcomm. on Cts., Intell. Prop., and the Internet of the H. Comm. on the Judiciary*, 117th Cong. 116 (2021) (statement of Hon. James C. Ho, J., 5th Cir.)

61. Ho, *supra* note 51, at 387.

62. *Id.* at 388.

63. *Id.*

I was beginning to feel antsy but cautiously optimistic. If Georgetown had wanted to fire me, it would have done so sooner. Clearly, they were waiting for the semester to end and students to leave campus. Graduation was coming up, Jesse had been having occasional contacts with WilmerHale's Bruce Berman, and trusted advisors had been having occasional contacts with the Georgetown administration. We had an inkling that this would all soon be over.

By the time classes and exams ended, the farcical "investigation" was approaching its four-month mark. I was starting to get plaudits all over the place for just "hanging in there" and taking the high road by not publicly attacking Georgetown's insanity and the law school administration's timidity. Twitter was also abuzz, pointing out time-related perversities. Lawyer Ted Frank began noting after every Georgetown basketball loss that the team had been cursed ever since the Law Center's administration had put me under the spotlight.[64] Already on a seven-game losing streak when I tweeted, the Hoyas did not win again the rest of the season, a total of 21 losses.

Georgetown Law held its commencement ceremony on May 22, 2022. A week later, I got a note that the Georgetown Administration wanted to meet with me. It would again be over Zoom because of the continuing Covid mania. And so, at 1:00 p.m. on June 2, I clicked on the link and opened the *Brady Bunch* window.

It was a short meeting. Georgetown informed me that, although both the IDEAA and HR had found that my comments had made a "significant negative impact on the Georgetown Law community," they were making no findings regarding whether I had violated university policies because I was not an employee when I tweeted. Accordingly, I was being reinstated and would start work the next day, subject to certain "expectations" that they presented to me in a letter.

In other words, it had taken two university bureaucracies, plus untold billable Big Law hours, more than four months to determine that the policies under which I was being investigated did not apply to me. This was an obvious attempt to split the baby, castigating me for my political incorrectness while allowing me to keep my job. I was guilty but let out of academic jail on a technicality. Long live due process—or rather, long live the public and private pressure campaigns that made the cost of firing me too high to bear.

I felt relieved—not fully vindicated but relieved—that I could finally get to work. I celebrated the technical victory in the pages of the *Wall Street Journal*, saying that

> I'm confident that even without the jurisdictional technicality, I would've prevailed. After all, Georgetown's Speech and Expression Policy provides that the "University is committed to free and open inquiry, deliberation and debate in all matters, and the untrammeled verbal and nonverbal expression of ideas." There's an exception for harassment, of course, but I wasn't harassing anyone except possibly Mr. Biden.

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64. *E.g.*, Ted Frank (@tedfrank), X (Mar. 10, 2022, 4:22 AM), https://x.com/tedfrank/status/1501851085736140802?s=46 [https://perma.cc/3TPX-VBAZ].

> In any case, I look forward to teaching and engaging in a host of activities relating to constitutional education and originalism. As befitting a center for the Constitution, all students and participants in my programs can expect to be accorded the right to think and speak freely and to be treated equally. A diversity of ideas will be most welcome.[65]

After submitting that piece, I took my son to soccer practice, had a relaxing dinner with family, and played tennis. As I concluded in my op-ed, it was "a new day."

Except it wasn't, not really. A couple of things still sat uneasily with me. The first was Georgetown's public statement on June 2 about the resolution of my case, in which the administration framed the question as a conflict between two principles: (1) the Law Center's "dedication to speech and expression" and (2) its dedication to "building a culture of equity and inclusion."[66] The statement quoted Georgetown's Speech and Expression Policy—"The freedom to debate and discuss the merits of competing ideas does not mean that individuals may say whatever they wish, wherever they wish"[67]—noting that it does not supersede harassment or professional conduct policies. After running through a discussion similar to what was in their letter to me, the statement concluded, "I am deeply aware of the pain this incident has given rise to in our campus community," and said that while the Law Center is "committed to preserving and protecting the right of free and open inquiry, deliberation, and debate," it has "an equally compelling obligation to foster a campus community that is free from bias, and in which every member is treated with respect and courtesy."[68]

Worryingly, this statement did not quote or discuss the part of the speech policy that says, "Deliberation or debate may not be suppressed because the ideas put forth are thought by some or even by most members of the University community to be offensive, unwise, immoral, or ill conceived."[69] Nor did it explain how I had failed to treat any member of the community with respect. "Whatever," I thought. "This progressive doublespeak is what I signed up for when I decided to go into academia. If people want to protest me for imagined or manufactured slights, have at it."

But then, later that afternoon, while I was writing my *Wall Street Journal* piece, IDEAA's report landed in my inbox. As I read the report closely, it quickly became clear that little was over except my suspension. Georgetown was setting me up for a fall: it appeared that the next time I said something—while speaking, writing, or teaching—that someone (anyone) claimed was offensive, I would be back under investigation. It became clear that my position at Georgetown was

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65. Shapiro, *supra* note 10.

66. William M. Treanor, *Dean's Statement on Ilya Shapiro*, GEORGETOWN UNIV. L. CTR. (June 2, 2022), https://www.law.georgetown.edu/deans-statement-re-ilya-shapiro [https://perma.cc/J8S5-7EQ2].

67. GEORGETOWN UNIV., *supra* note 9.

68. Treanor, *supra* note 66.

69. GEORGETOWN UNIV., *supra* note 9.

untenable. By midday Saturday, I knew that I would have to resign. It was both a terrifying and a liberating realization. Moreover, in light of the illiberal denouement that betrayed deep injustice, it would have to be what lawyers call a "noisy withdrawal," using the spotlight I had been given to show that all was not right at Georgetown Law even if it had "reinstated" me.

Deciding to quit the job which I had fought so hard to keep was another surreal experience. The saga was over, the farce had ended, and I was out of purgatory, yet I would never be able to live the life I had been expecting when I announced that I was leaving Cato, when Georgetown had celebrated my hiring.[70] It was certainly not a hellacious period like the first days after my tweet, but it was a fast-moving, uncertain time that I would have to handle nearly perfectly to emerge into—if not quite heaven—a psychologically and professionally comfortable situation.

Over that June 4–5 weekend, I did two things: (1) put together my resignation letter and (2) found another job. In my letter, I first argued that the IDEAA report speciously found that my tweet had made a "significant negative impact," requiring "appropriate corrective measures" to address my "objectively offensive comments and to prevent the recurrence of offensive conduct based on race, gender, and sex." [71] Although my tweet had been inartful, as I had admitted many times, its meaning that I considered all potential candidates to be less qualified than my preferred pick is clear. Only those acting in bad faith would misconstrue what I had said to suggest otherwise.

Second, any harm or "negative impact" had been created by those seeking to get me fired. I deleted my tweet well before any student was likely to learn of it. Screen captures were then disseminated by others seeking to settle ideological scores. It was they, not I, who intentionally and knowingly caused distress to any member of the Georgetown community who later came to learn of the tweet.

Third, under IDEAA's reasoning, none of that analysis even mattered. As the report put it, "The University's anti-harassment policy does not require that a respondent intend to denigrate or show hostility or aversion to individuals based on a protected status. Instead, the Policy requires consideration of the 'purpose or effect' of a respondent's conduct."[72] The mere fact that many people were offended, or claimed to be, was enough for me to have violated the relevant policies. Although there was no formal finding of a violation because I had not been subject to the policies when I had tweeted, so long as someone claims that a

70. *See* Press Release, Georgetown Univ. L. Ctr., Constitutional Law and Supreme Court Expert Ilya Shapiro Joins the Georgetown Center for the Constitution (Jan. 21, 2022), https://www.law.georgetown.edu/news/constitutional-law-and-supreme-court-expert-ilya-shapiro-joins-the-georgetown-center-for-the-constitution [https://perma.cc/JNH5-QN2N].

71. *See* Letter from Ilya Shapiro, Exec. Dir. & Senior Lecturer, Georgetown Univ. L. Ctr., to William M. Treanor, Dean, Georgetown Univ. L. Ctr. (June 6, 2022), https://www.thefire.org/research-learn/ilya-shapiro-resignation-letter-georgetown-university-law-center-june-6-2022 [https://perma.cc/7HGF-B5FU].

72. *Id.*

statement "denigrate[s]" or "show[s] hostility or aversion" to a protected class, that is enough to constitute a violation of Georgetown antidiscrimination rules.[73] Georgetown has thus adopted what constitutional law describes as an impermissible "heckler's veto."[74]

Fourth, regardless of the "effect" of what I had tweeted, the IDEAA report found that "if [I] were to make another, similar or more serious remark as a Georgetown employee, a hostile environment based on race, gender, and sex likely would be created."[75] On this theory, all sorts of comments that someone—anyone—could find offensive would subject me to disciplinary action.

And not only would faculty now be subject to discipline for subjective perceptions of offense, but that standard was being applied unevenly, with many left-wing faculty members not being "investigated" for various inflammatory statements in recent years and even months. I also gave examples of not-very-hypothetical scenarios that would subject me to renewed investigation and discipline.

It was a slow-motion firing, one in which I would not participate. I concluded thus:

> It's all well and good to adopt free-speech policies that track the gold standard, the University of Chicago Principles of Freedom of Expression—and more broadly that same university's 1967 Kalven Report, which states that "the neutrality of the university . . . arises out of respect for free inquiry and the obligation to cherish a diversity of viewpoints"—indeed, it's essential. But it's not enough. If university administrators aren't willing to stand up to left-wing activists, Georgetown's enacted free speech and expression policy is a mere "pixel barrier."
>
> What's worse, the problem isn't limited to fearful administrators. The proliferation of IDEAA-style offices (more typically styled Diversity, Equity, and Inclusion) enforce[s] an orthodoxy that stifles intellectual diversity, undermines equal opportunity, and excludes dissenting voices. Even a stalwart T-14 law school dean bucks these bureaucrats at his peril.
>
> Since I accepted your offer of employment, I've come to learn that Georgetown is by no means a follower in these trends. Instead, it's a leader. In contrast to the Jesuitical values that you're fond of reciting, this institution no longer stands for tolerance, respect, good faith, self-reflective learning, and generous service to others.
>
> On the GULC website it reads: "Our motto 'Law is but the means, justice is the end' sums up the core commitment of Georgetown Law." But your and

73. *Id.*

74. A "heckler's veto" is when an individual or group, who disagrees with a speaker's message, interferes with the speaker's constitutionally protected speech, typically through the threat of or use of disorderly conduct. *See* Cox v. Louisiana, 379 U.S. 536, 551 (1965) (holding "constitutional rights may not be denied because of hostility to their assertion or exercise"); Wright v. Georgia, 373 U.S. 284, 293 (1963) (stating possibility of breach of peace by others cannot justify the exclusion of persons who otherwise would be allowed to exercise constitutional rights); *but see* Feiner v. New York, 340 U.S. 315, 320–21 (1951) (holding constitutional right to free speech may be interfered with when speaker incites violence or is an "immediate threat to public safety").

75. Shapiro, *supra* note 71.

> IDEAA's treatment of me suggests that neither the due process of law nor justice actually prevails.
>
> I cannot again subject my family to the public attacks on my character and livelihood that you and IDEAA have now made foreseeable, indeed inevitable. As a result of the hostile work environment that you and they have created, I have no choice but to resign.[76]

What Georgetown subjected me to, what it would have subjected me to if I had stayed, is a heckler's veto, one that would lead to a Star Chamber.[77] "Live not by lies," warned Aleksander Solzhenitsyn, in what has become my mantra.[78] I could not live that way, so I made a noisy exit that drew the nation's attention.

Over the next five days, I did more than 25 media hits, explaining my decision and what I had learned about the state of American higher education and cancel culture. Most notably, the day after my resignation, I broke the news of my move to the Manhattan Institute live on Tucker Carlson's old show on Fox News. "There are a lot of cowardly administrators who refuse to stand up to the woke mob, who insist that there's no deviation from a progressive orthodoxy," I explained. "I could not stay at a place where if I'm commenting on a Supreme Court opinion or teaching a class and someone says they're uncomfortable or claims they're offended, all of a sudden I'm back in the Star Chamber."[79]

"Yeah, that's the end of a great American institution after hundreds of years, and it's bigger than even your particular case, and it says something really ominous," Tucker concluded.

But do not take my or Tucker's word for it. Cornell law professor William Jacobson, the founder of the influential website Legal Insurrection, was quoted as saying that my case showed that "Diversity, Equity, and Inclusion bureaucracies are growing in size and power at almost every major university. . . . they serve as ideological commissars of a critical-race focused viewpoint."[80] He went on to say that "the DEI focus is not on the rights of the speaker (Shapiro) but on the sensitivities of the listeners (students). This puts the power to control speech and expression in the hands

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76. *Id.*

77. The Star Chamber was an English court that existed outside the regular judicial system of the common law courts. When "it was used by Charles I to enforce unpopular political and ecclesiastical policies, it became a symbol of oppression." *Star Chamber*, BRITANNICA, https://www.britannica.com/topic/Star-Chamber [https://perma.cc/24ZR-CAZJ]. The Star Chamber's "methods lacked the safeguards that common-law procedures provided for the liberty of the subject." *Id.*

78. *See* Aleksandr Solzhenitsyn, *Live Not by Lies*, ALEKSANDR SOLZHENITSYN CTR., https://www.solzhenitsyncenter.org/live-not-by-lies [https://perma.cc/3R8T-XQJE].

79. *Tucker Carlson Tonight: Georgetown Law Lecturer Resigns After Questioning Biden's Race-Based Litmus Tests* (Fox News broadcast June 7, 2022), https://www.foxnews.com/video/6307433750112 [https://perma.cc/SB92-TVYZ].

80. Taylor Penley & Cortney O'Brien, *Academics Hit 'Bureaucratic' Georgetown Law Office of Diversity Following Investigation of Ilya Shapiro,* FOX NEWS (June 9, 2022), https://www.foxnews.com/media/critics-georgetown-law-office-diversity-investigation-ilya-shapiro [https://perma.cc/A9LM-TBUK].

of the most vocal complainers and reverses our historical norms as to free speech."[81]

DePauw University media studies professor Jeffrey McCall likewise lamented the state of free speech on college campuses, using the term "bureaucratic" to describe the Georgetown affair. "While Shapiro wasn't technically disciplined, the chilling effect in play here clearly would have made it difficult or even impossible for him to carry out his duties. In a sense, Georgetown has turned its back on its own free expression guidelines, supporting an atmosphere in which shrill voices stifle people with whom they disagree."[82] He went on to say that "universities can hardly go around shutting up any faculty member or student who says something 'inartful.' It is contrary to free expression philosophy on one level, but also quite impractical on another. . . . Georgetown, and other universities that seek to stifle robust discussion, are reducing the free expression environment of the academy to only approved dogmas or unserious topics."[83]

I was finally in control of the media cycle, creating my own narrative! The two workweeks after I resigned were by far the most gratifying in quite some time.

I was finally a free man, free to speak my mind and liberated from the shackles of the Institution. A few days after my resignation, when I attended a special preopening reception at the spectacular and powerful new Victims of Communism Museum in downtown Washington, D.C., I theatrically crossed out the Georgetown affiliation on my name tag and wrote in "Free Man." This denouement could not have been more fitting. My parents took me out of the Soviet Union more than 40 years ago because they did not want me to grow up under a regime that tried to control one's every word and thought. I then moved myself from Canada to the United States because I prefer "life, liberty, and the pursuit of happiness" over "peace, order, and good government." Yet sadly, far too many Americans are blasé about their freedoms, which are now threatened by a growing culture of ignorance and illiberalism. When the freedom of conscience is forced to bend at the wheel of other, "equally important" values, we lose our shining city on a hill and destroy everything that human civilization has achieved. To quote John F. Kennedy, it's "the peace of the grave or the security of the slave."[84]

And so, for three years now, I have been using the heightened platform I have been given to shine a light on the institutional rot in academia—and at law schools in particular. You would think that future lawyers would have greater appreciation for spirited and open engagement with provocative ideas. After all, they will be facing much harder situations in their careers than bad tweets. You would think that legal faculty would be at the vanguard of protections for free speech and due process, given their deep understanding of the importance of the rule of law. But it is at law schools in particular that academic freedom is under

81. *Id.*
82. *Id.*
83. *Id.*
84. John F. Kennedy, President of the U.S., Commencement Address at American University (June 10, 1963), https://www.jfklibrary.org/archives/other-resources/john-f-kennedy-speeches/american-university-19630610 [https://perma.cc/Q23C-7TQH].

threat, free speech in retreat, and civil discourse now a thing of the past. Illiberal forces are on the march.

V. CONCLUSION

I do not intend to let those four-plus months of Georgetown farce define my life or career. I am enjoying my job as director of constitutional studies at the wonderful Manhattan Institute. MI, as it's known, has described itself as "a think tank whose mission is to develop and disseminate new ideas that foster greater economic choice and individual responsibility,"[85] one that "works to keep America and its great cities prosperous, safe, and free."[86] That sounds pretty good to me. It's a shame that Georgetown did not work out, because I would have enjoyed having the sort of impact that teaching provides, as well as engaging in public discourse from an academic perch. But it's clear that I can influence the climate of ideas just as much, if not more, given where I landed.

Although MI has long had legal scholars doing excellent work in areas ranging from criminal justice to civil litigation and the administrative state, it never had a constitutional focus as such. So, this is a natural fit and a mutually beneficial relationship. Both in that day job and beyond, I have remained in the arena, trying to influence the climate of ideas in areas ranging from the First Amendment and federalism to civil rights and deregulation. And I'm still watching the Supreme Court, particularly with the updated paperback edition of my last book, *Supreme Disorder*, having come out just as I joined MI.

With my newfound experience, I have continued, and will continue, to comment on culture and politics. I care deeply about this country and believe it's man's last, best hope for freedom in this world. That means constitutionalism, it means (classical) liberal values, and it means gratitude for the tremendous opportunities we enjoy here—and why so many people still want to come here and live the American dream. I'm generally long on America—to quote Brett Kavanaugh at his confirmation hearings, I live on the "sunrise side of the mountain"[87]—but I'm pessimistic about academia, if slightly less so than in the summer of 2022.

Perhaps we've passed "peak woke" in society writ large, as normal people, concerned with their families and livelihoods rather than performative virtue-signaling, call out the excesses of the progressive movement. But we may also have passed the point of no return on the illiberal takeover of higher education. The backlash to antisemitism that exploded on campuses after Hamas's October 7, 2023, attack on Israel is another inflection point and may provide an opportunity for reform—and the second Trump administration is certainly being zealous in that regard—but we're still in the eye of that storm, so it is too soon to tell.

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85. *See, e.g.,* MANHATTAN INST., "Chris Pope Joins Manhattan Institute as Senior Fellow in Health Policy," Apr. 3, 2017, https://manhattan.institute/article/chris-pope-joins-manhattan-institute-as-senior-fellow-in-health-policy [https://perma.cc/74LV-NUNK].

86. MANHATTAN INST., https://manhattan.institute [https://perma.cc/XP6C-ST4S].

87. *Confirmation Hearing on the Nomination of Hon. Brett M. Kavanaugh to Be an Associate Justice of the Supreme Court of the United States Before the S. Comm. on the Judiciary*, 115th Cong. 112 (2018) (statement of Hon. Brett M. Kavanaugh, J., D.C. Cir.).

NOTES

End *Arlington Heights*

CONNOR P. FRALEY*

ABSTRACT

Legislative motive is back in court, but it shouldn't last. In Coalition for TJ v. Fairfax County School Board, *the Fourth Circuit upheld a facially race-neutral admissions policy to a competitive public magnet school in an* Arlington Heights *challenge despite extensive evidence of the School Board's racially discriminatory motive and the policy's disparate racial impact. The opinions in* TJ *mark the first bout in the next phase of litigation after* Students for Fair Admissions v. Harvard. *This Article examines how the* TJ *decision exemplifies the irredeemable workability issues attendant to judicial examination of legislative motive under* Arlington Heights, *details the aberration from legal history and principle that the* Arlington Heights *regime represents, and argues why, both normatively and legally,* Arlington Heights *should be abandoned.*

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INTRODUCTION

Legislative motive is back in court, but it shouldn't last. The Supreme Court recently found that race-based affirmative action programs constitute unlawful racial discrimination,[1] but the next civil rights battle has just begun. In addition to routine enforcement of the *Harvard* decision through discovery and traditional litigation,[2] civil rights activists[3] and public interest firms are bringing the fight for the promise of equal protection to new contexts,[4] like in law firm fellowships,[5]

1. Students for Fair Admissions, Inc. v. President & Fellows of Harvard Coll. (*SFFA*), 600 U.S. 181, 230–31 (2023).

2. *See* Douglas Belkin, *Affirmative-Action Plaintiff Warns of Consequences If Schools Defy Supreme Court Ruling*, WALL ST. J. (July 13, 2023), https://www.wsj.com/articles/affirmative-action-plaintiff-warns-of-consequences-if-schools-defy-supreme-court-ruling-52865e04 [https://perma.cc/8XD3-UYVD] (discussing letter sent by Edward Blum, the attorney for Students for Fair Admissions, to 150 selective colleges and universities threatening litigation if schools try to work around the constitutional protections recognized in *SFFA*); Press Release, *Do No Harm Files Class Action Lawsuit Against UCLA Medical School for Racial Discrimination in Admissions*, DO NO HARM (May 8, 2025), https://donoharmmedicine.org/2025/05/08/lawsuit-ucla-medical-school-admissions-racial-discrimination [https://perma.cc/M7JE-EK6E].

3. Wade Miller et al., *How to Defeat Left-Wing Racialism*, CITY J. (Summer 2023), https://www.city-journal.org/article/how-to-defeat-left-wing-racialism [https://perma.cc/Q4R6-WFAH].

4. *See* Theo Francis & Lauren Weber, *The Legal Assault on Corporate Diversity Efforts Has Begun*, WALL ST. J. (Aug. 8, 2023), https://www.wsj.com/articles/diversity-equity-dei-companies-blum-2040b173 [https://perma.cc/BJZ6-GPSB].

5. *See, e.g.*, Douglas Belkin & Eril Mulvaney, *Activist Behind Supreme Court Affirmative Action Cases Is Now Suing Law Firms*, WALL ST. J. (Aug. 22, 2023), https://www.wsj.com/us-news/edward-blum-lawsuits-affirmativeaction-law-firms-b8871ab1 [https://perma.cc/SS22-RSY2]; Complaint, Am. All. for Equal Rts. v. Perkins Coie LLP, 3:23-cv-1877 (N.D. Tex. Aug. 22, 2023); Complaint, Am. All. for Equal Rts. v. Morrison & Foerster LLP, 1:23-cv-23189 (S.D. Fla. Aug. 22, 2023). Some have already given up on trying to defend their policies. *See* Erin Mulvaney, *Law Firms Alter Diversity Programs Amid Legal Challenges*, WALL ST. J. (Oct. 9, 2023), https://wsj.com/us-news/law/law-firms-alter-diversity-programs-amid-legal-challenges-5608eab4 [https://perma.cc/9H9W-LV3N] (discussing fellowship program changes by Perkins Coie and Morrison & Foerster).

corporate hiring,[6] grant programs,[7] federal contracting,[8] scholarships,[9] protection from harassment on campus,[10] and admission to the military academies.[11]

But as to school admissions, the law is settled—new litigation here will mostly be about the facts. Schools have varied in their responses to the decision, with some disavowing racially discriminatory policies[12] and others completely

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6. *See* Letter from James K. Rogers, Senior Couns., Am. First Legal Found., to EEOC, (Jan. 11, 2024), https://media.aflegal.org/wp-content/uploads/2024/01/11210910/Nike-EEOC-letter-01112024.pdf [https://perma.cc/3TEA-7EAG]; Letter from Ian D. Prior, Senior Advisor, Am. First Legal Found., to EEOC; (Dec. 19, 2023), https://media.aflegal.org/wp-content/uploads/2023/12/19214240/Hasbro-Letter-EEOC-12192023.pdf [https://perma.cc/C7EW-HULV]; Letter from Ian D. Prior, Senior Advisor, Am. First Legal Found., to EEOC; (Dec. 19, 2023), https://media.aflegal.org/wp-content/uploads/2023/12/19214241/Mattel-EEOC-Letter-12192023.pdf [https://perma.cc/B8CL-S49M]. Many corporations are adjusting their programs to limit their exposure, but by and large are maintaining their programs in a more subtle form. *See* Richard Vanderford, *Corporate America Tweaks Diversity Initiatives Amid Pushback*, WALL ST. J. (Feb. 5, 2024), https://www.wsj.com/articles/corporate-america-tweaks-diversity-initiatives-amid-pushback-062cfe89 [https://perma.cc/C3ZP-3YDK].

7. *See* Am. All. for Equal Rts. v. Fearless Fund Mgmt., LLC, 103 F.4th 765 (11th Cir. 2024) (granting preliminary injunction); First Amended Complaint, Chu v. Rosa, 1:24-cv-00075 (N.D.N.Y. Apr. 5, 2024); Ruth Simon & Theo Francis, *Companies Are Scrapping or Rolling Back DEI Grants*, WALL ST. J. (Oct. 10, 2024), https://www.wsj.com/business/companies-are-scrapping-or-rolling-back-dei-grants-e192efc1 [https://perma.cc/NTR4-893P].

8. *See* Ultima Servs. Corp. v. U.S. Dep't of Agric., 683 F. Supp. 3d 745 (E.D. Tenn. 2023) (granting injunction against use of race to create a rebuttable presumption of social disadvantage in federal contracting); Michael Toth, *Federal Contracting Is the Next DEI Target*, WALL ST. J. (Jan. 15, 2024), https://www.wsj.com/articles/federal-contracting-is-the-next-dei-target-race-affirmative-action-supreme-court-ca60eaf4 [https://perma.cc/MV69-Y6A3]; Judge Glock, *Welcome to the World of Minority Contracting*, CITY J. (Spring 2023), https://www.city-journal.org/article/welcome-to-the-world-of-minority-contracting [https://perma.cc/E4MK-QVG6] ("Government goals and set-asides for 'disadvantaged' firms breed corruption and fraud, deepen racial divisions, and cost taxpayers billions.").

9. *See* Complaint, Do No Harm v. Nat'l Ass'n of Emergency Med. Technicians, 3:24-cv-00011 (S.D. Miss. Jan. 10, 2024) (challenging race-restricted scholarship for emergency medical technician school as unlawful racial discrimination in contracting under 42 U.S.C. § 1981); Verified Complaint, Young Ams. for Freedom v. U.S. Dept. of Ed., 3:24-cv-00163 (D.N.D. Aug. 27, 2024); Lauren Weber, *Ph.D.s Are Next in Fight over Affirmative Action*, WALL ST. J. (Aug. 28, 2024), https://www.wsj.com/us-news/education/ph-d-s-are-next-in-fight-over-affirmative-action-8b1cc36f [https://perma.cc/P3HK-RHMM].

10. *See* Complaint, Kestenbaum v. President & Fellows of Harvard Coll., 1:24-cv-10092 (D. Mass. Jan. 10, 2024) (Jewish students challenging under Title VI of the Civil Rights Act Harvard's alleged deliberate indifference to campus antisemitism).

11. This question was explicitly reserved in the Harvard case. Students for Fair Admissions, Inc. v. President & Fellows of Harvard College, 600 U.S. 181, 213 n.4 (2023). Litigation is at various stages at time of writing. *See* Students for Fair Admissions v. U.S. Naval Acad., 707 F. Supp. 3d 486 (D. Md. 2024) (denying relief after bench trial), *appeal docketed*, No. 24-2214 (4th Cir. Dec. 10, 2024); Students for Fair Admissions v. U.S. Mil. Acad., 709 F. Supp. 3d 118 (S.D.N.Y. 2024) (denying preliminary injunction).

12. *See, e.g.*, Joe Killian, *UNC System Issues New Directives After U.S. Supreme Court Ruling on Race in Admissions*, NC NEWSLINE (Aug. 23, 2023), https://ncnewsline.com/2023/08/23/unc-system-issues-new-directives-after-u-s-supreme-court-ruling-on-race-in-admissions [https://perma.cc/WVX4-WNCM] (detailing new directives abandoning written and unwritten race-based admissions policies and practices and as disavowing the use of proxies or pretexts aimed at race); *Statement Regarding Recent U.S. Supreme Court Decision*, UNIV. OF MO. SYS. (June 29, 2023), https://www.umsystem.edu/ums/news/news_releases/202306292029248061_news [https://perma.cc/QX43-CDCD] (discontinuing discriminatory admissions and scholarship practices); Tim Minella, *University of Kentucky Ditches DEI in Latest Victory over Discriminatory Regime*, GOLDWATER INST. (Aug. 26, 2024), https://www.

shutting down their diversity programs.[13] Still others have reaffirmed their commitment to continuing their racial diversity initiatives in some form or fashion.[14] These strategies include the covert use of quota-style "critical mass" policies[15] and attempts by admissions departments to hide their tracks[16] by eliminating

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goldwaterinstitute.org/university-of-kentucky-ditches-dei-in-latest-victory-over-discriminatory-regime [https://perma.cc/8DEU-6RZD].

13. *See, e.g.*, Claire Bryan, *Why Seattle Public Schools Is Closing Its Highly Capable Cohort Program*, SEATTLE TIMES (Mar. 31, 2024), https://www.seattletimes.com/education-lab/why-seattle-public-schools-is-closing-its-highly-capable-cohort-program [https://perma.cc/3BNX-LTED] (program designed to turbocharge high-achieving students terminated because the district believed its aggregate racial makeup was "highly inequitable" due to the smaller number of "Black, Latino, Indigenous, Alaskan and Pacific Islander and low-income students" who qualified); Sarah Karp, *Chicago Could Move Away from School Choice. Here's What That Means for Parents and Students*, CHI. SUN-TIMES (Dec. 27, 2023), https://chicago.suntimes.com/education/2023/12/27/24012377/cps-school-choice-education-chicago-mayor-brandon-johnson-magnet-hunger-games-city-hall-downtown [https://perma.cc/T6ZX-B5WL] (signaling the move because the selective schools "have historically been disproportionately white, Asian and middle class"). This approach is reminiscent of the attempts by Virginia and Louisiana to abolish the entire public school system rather than run a racially integrated one. *See* Griffin v. Cnty. Sch. Bd. of Prince Edward Cnty., 377 U.S. 218, 221 (1964); Hall v. St. Helena Par. Sch. Bd., 197 F. Supp 649 (E.D. La. 1961), *aff'd*, 368 U.S. 515 (1962) (mem.).

14. *See, e.g.*, Harvard University, *President-Elect Claudine Gay Message to the Community*, YOUTUBE (June 29, 2023), https://www.youtube.com/watch?v=AoGjh3tbPm4 [https://perma.cc/3FLY-RPV2] ("The Supreme Court's decision on college and university admissions will change how we pursue the educational benefits of diversity—but our commitment to that work remains steadfast."); Luke Fountain, *Affirmative Action Is No More. What Does UVa Do?*, DAILY PROGRESS (June 30, 2023), https://dailyprogress.com/news/local/education/affirmative-action-is-no-more-what-does-uva-do/article_6469e030-16c5-11ee-a406-77aa7ba87304.html [https://perma.cc/N9C2-HCUT] (detailing various workarounds the University of Virginia is considering to pursue their commitment to racial diversity "even if our ability to pursue that goal is constrained"). *See also* Jeffrey Selingo, *How Elite Colleges Will Work Around the Supreme Court's Ruling*, WALL ST. J. (July 5, 2023), https://www.wsj.com/articles/how-elite-colleges-will-still-seek-diversity-despite-the-supreme-courts-rejection-of-affirmative-action-a2c7f340 [https://perma.cc/4E34-TNFT] (admissions advisor describing strategies such as abandoning standardized testing to hide key evidence of discrimination, focusing on high schools based on their demographics, and expanding recruitment efforts at targeted schools). In the non-admissions context, see also Ray A. Smith & Lauren Weber, *How the Push for Diversity at Colleges and Companies Came Under Siege*, WALL ST. J. (Jan. 4, 2024), https://www.wsj.com/business/how-the-push-for-diversity-at-colleges-and-companies-came-under-siege-036d4065 [https://perma.cc/US5D-35B8] (reporting on companies making minor alterations to "address the areas where they see the most potential legal or reputational risk," but "just plan to be quieter about what they're doing").

15. As tacitly approved by the Civil Rights Divisions at the Departments of Justice and Education in the last presidential administration. *See* Letter from Kristen Clarke, Assistant Att'y Gen., C.R Div., U.S. Dep't of Just. & Catherine E. Lhamon, Assistant Sec'y for C.R., Off. for C.R., U.S. Dep't of Educ., (Aug. 14, 2023) (reiterating approval of admissions policies that work toward "student bodies [that] reflect the rich diversity of our communities"). For background on critical mass, see generally Liliana M. Garces & Uma M. Jayakumar, *Dynamic Diversity: Toward a Contextual Understanding of Critical Mass*, 42 EDUC. RESEARCHER 115 (2014) (describing the idea of a threshold number of students in each racial group before the diversity interest is achieved on campus).

16. *See* Rahem D. Hamid, Vivi E. Lu & Nia L. Orakwue, *'Bad News for Harvard': Future of Affirmative Action in Doubt as Conservative Court Takes Up Admissions Case*, HARV. CRIMSON (Jan. 25, 2022), https://www.thecrimson.com/article/2022/1/25/scotus-admissions-expert-opinions/ [https://perma.cc/94YB-VTCW] (quoting Professor Laurence Tribe, "[u]niversities as intelligent as Harvard will find ways of dealing with the decision without radically altering their composition," but that "they will have to be more subtle than they have been thus far").

objective data like standardized test scores.[17] These schools have begun a game of cat and mouse with civil rights groups in litigation and discovery battles over compliance with the *Harvard* decision.[18] While the Court may eventually have to come back to sort out the "essay loophole" left in its *Harvard* decision, the grounds for this battle have largely already been set, and only time will tell how each policy approach plays out in practice.[19]

Other schools have begun approaching their racial diversity goals more subtly, adopting facially race-neutral policies designed to have non-race-neutral effects.[20] This has included policies that give preference based on socio-economic background;[21] give automatic admission to students with certain class rank cut-offs at all high schools, regardless of school-level competitiveness, as in the "Top 10%" policy at issue in the *Fisher* affirmative action case;[22] or give geographic

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17. *See* Erin Einhorn, *Inside the Vast National Experiment in Test-Optional College Admissions*, NBC NEWS (Apr. 10, 2022), https://www.nbcnews.com/news/us-news/college-admissions-test-sat-act-rcna23574 [https://perma.cc/HWF7-GWUV]. Some schools are finding that the attempt has not been as successful as they had hoped and are reverting to the original justification for having a standardized test serve as an equalizer to "better position Admissions [offices] to identify high-achieving less-advantaged applicants." Editorial, *Dartmouth Sees the Value of the SAT*, WALL ST. J. (Feb. 5, 2024), https://www.wsj.com/articles/dartmouth-reinstates-sat-act-requirement-admissions-standardized-tests-3ed5fb42 [https://perma.cc/TJ33-VBEY].

18. *See* Jason L. Riley, *Some Elite Colleges Dodge the Affirmative-Action Ruling*, WALL ST. J. (Sept. 24, 2024), https://www.wsj.com/opinion/some-elite-colleges-dodge-the-affirmative-action-ruling-85c8939c [https://perma.cc/H3NB-RVJD] ("At Duke, Princeton and Yale, Asian enrollment went down after last year's Supreme Court decision."); Joseph Pisani, *Harvard Enrolls Fewer Students Identifying as Black, More Don't Disclose Race*, WALL ST. J. (Sept. 11, 2024), https://www.wsj.com/us-news/education/harvards-latest-class-fewer-students-who-identify-as-black-more-who-didnt-disclose-their-race-b79c28a6 [https://perma.cc/C9FR-HQT3] ("Enrollment of students who identify as Asian-American remained unchanged at 37%.").

19. *See* Students for Fair Admissions v. President & Fellows of Harvard Coll. (*SFFA*), 600 U.S. 181, 230 (2023); Rahem D. Hamid & Neil H. Shah, *Inside the Decision: Here's What the Supreme Court Said About Affirmative Action*, HARV. CRIMSON (June 30, 2023), https://www.thecrimson.com/article/2023/6/30/scotus-affirmative-action-analysis [https://perma.cc/EZ43-NBSQ] (quoting Professor Dershowitz and Dean Chemerinsky discussing the essay "loophole" which "leave[s] open the door to considering race"); Jason L. Riley, *Minorities Reap the Benefit When Affirmative Action Ends*, WALL ST. J. (Sept. 10, 2024), https://www.wsj.com/opinion/minorities-reap-the-benefit-when-racial-preferences-end-higher-education-66d5b7c8?msockid=051eacad0e0368db0b3ebd530fb4691d [https://perma.cc/C2PL-Z7HV] (detailing how in the 1990s "black graduation rates rose sharply after racial preferences ended" in California).

20. *See* Coal. for TJ v. Fairfax Cnty Sch. Bd., No. 23-170, 2024 WL 674659, at *5 n.9 (mem.) (U.S. 2024) (Alito, J., dissenting from denial of certiorari).

21. *See* ANTHONY P. CARNEVALE, ZACHARY MABEL & KATHRYN PELTIER CAMPBELL, RACE-CONSCIOUS AFFIRMATIVE ACTION: WHAT'S NEXT 25–26 (2023); *see also* Bos. Parent Coal. for Acad. Excellence Corp. v. Sch. Comm. for Bos., 996 F.3d 37, 42 (1st Cir. 2021) (using zip code as proxy for socioeconomic status). Although it does not appear at this juncture that too many universities will end up taking this route. *See infra* note 25.

22. Fisher v. Univ. of Tex., 579 U.S. 365 (2016); *see* Coal. for TJ v. Fairfax Cnty. Sch. Bd., 68 F.4th 864, 875 (4th Cir. 2023), *cert. denied*, No. 23-170, slip op. (Feb. 20, 2024); *Governor Hochul Announces Initiatives to Increase Access to Higher Education*, GOV. KATHY HOCHUL (Jan. 9, 2024), https://www.governor.ny.gov/news/governor-hochul-announces-initiatives-increase-access-higher-education [https://perma.cc/R5U2-MGSH]; Mike Porter, *VCU Announces Guaranteed University Admission Program*, VCU NEWS (Oct. 4, 2023), https://news.vcu.edu/article/2023/10/vcu-announces-guaranteed-university-admission-program [https://perma.cc/MJV8-EDGK].

preferences which serve as rough proxies for the racial composition the institution is seeking.[23]

These policies are vulnerable to *Arlington Heights* challenges. Rather than only invalidating actions that explicitly discriminate based on race, *Arlington Heights* declares as facially unconstitutional policies which are neutral on their face, but were enacted with illicit discriminatory motives.[24] Regardless of what form it takes (and there are great policy arguments for many race-neutral changes to admissions policies),[25] this is where the next round of affirmative action litigation will take place —fighting constitutional challenges over the motives of policymakers.

In May 2023, the Fourth Circuit decided just such a case. In *Coalition for TJ v. Fairfax County School Board*,[26] a divided panel upheld a facially race-neutral

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23. *See, e.g.*, *TJ*, 68 F.4th at 875; *Boston Parent*, 996 F.3d at 42 (using zip code as proxy for race).

24. Vill. of Arlington Heights v. Metro. Hous. Dev. Corp., 429 U.S. 252, 263–64 (1977).

25. A common call is for universities to abandon legacy admissions or to commit greater resources to allow students from poor backgrounds who can meet the academic rigor of elite universities, but are excluded from the opportunity due to cost. *See, e.g.*, Rikki Schlott, *Bipartisan Congress Wants To Defund Colleges Over Legacy Admissions—It's About Time*, N.Y. POST (Jan. 11, 2024), https://nypost.com/2024/01/11/news/bipartisan-congress-aims-to-defund-colleges-over-legacy-admissions [https://perma.cc/YST2-PBHP]; Ming Hsu Chen, *We Should End Legacy Admissions. But It Won't Make Up for Losing Affirmative Action*, BOS. GLOBE (Jan. 13, 2024), https://www.bostonglobe.com/2024/01/13/opinion/we-should-end-legacy-admissions-it-wont-make-up-losing-affirmative-action [https://perma.cc/RK6K-BH8A]; Michelle N. Amponsah & Emma H. Haidar, *Could Losing Legacy Admissions Sustain Racial Diversity?*, HARV. CRIMSON (Sept. 22, 2023), https://www.thecrimson.com/article/2023/9/22/harvard-without-legacy [https://perma.cc/4QC7-K8N5]. *But see, e.g.*, Jason L. Riley, *Legacy Admissions May Not Be at Odds with Diversity*, WALL ST. J. (Feb. 6, 2024), https://www.wsj.com/articles/legacy-admissions-may-not-be-at-odds-with-diversity-hcbu-campus-culture-b893e6b7 [https://perma.cc/5P3H-VGL4]. This author is partial to these proposals, especially so at government-run schools, and some have admirably taken the plunge on their own or under compulsion of law. *See* Liam Knox, *First Out of the Gate*, INSIDE HIGHER ED. (July 31, 2023), https://www.insidehighered.com/news/admissions/traditional-age/2023/07/31/wesleyan-president-discusses-why-he-ended-legacy [https://perma.cc/GSB8-96VQ]; Nicholas Hatcher, *California Bans Legacy Admissions at Private Colleges*, WALL ST. J. (Oct. 2, 2024), https://www.wsj.com/us-news/education/california-bans-legacy-admissions-at-private-colleges-7818df1d [https://perma.cc/QB59-783F]. But many schools seem more interested in retaining their privileged positions as finishing schools for the well-connected rather than institutions committed to the pursuit of knowledge and pressing the advantage of our young, energetic, bright minds, whatever their background. *See* Christopher Rim, *Some Universities Are Retiring Legacy Admissions But the Ivy League Won't Join Them Without a Fight*, FORBES (July 25, 2023), https://www.forbes.com/sites/christopherrim/2023/07/25/some-universities-are-retiring-legacy-admissions-but-the-ivy-league-wont-join-them-without-a-fight/?sh=3569c95b5a26 [https://perma.cc/HV8N-DTS5] (stating that 28% of Harvard admissions include legacies and describing how few universities have abandoned the policies, despite 75% of Americans disapproving of legacy admissions, and ongoing investigations and lawsuits into the practice); Marc Novicoff, *Why Won't Elite Colleges Deploy the One Race-Neutral Way to Achieve Diversity?*, POLITICO (Sept. 15, 2023), https://www.politico.com/news/magazine/2023/09/15/supreme-court-admissions-elite-schools-00116087 [https://perma.cc/MB8P-TAB9] (detailing how some elite schools have refused to take the socioeconomic status route and predicting that "no other university will try it either"). Nonetheless, for the purposes of this Note, even if these policies were adopted and properly applied in a race-neutral way, under current doctrine, their legality would turn not on the faithfulness of their application, but on the motivation of their adopters. *See infra* Section I.A.

26. 68 F.4th 864 (4th Cir. 2023), *cert. denied*, No. 23-170, 2024 WL 674659 (mem.) (U.S. Feb. 20, 2024).

change in admissions policy for one of the top public magnet high schools in the nation.[27] The policy was explicitly designed to help the school achieve its goal of increasing the number of non-Asian students it admitted so that its student body would better reflect the racial composition of the school system as a whole.[28] Against a challenge by aggrieved Asian-American applicants under the *Arlington Heights* framework, the panel held, contrary to the logic of *Arlington Heights* and the clear evidentiary record, not only that the policy in question was not intended to have a racially discriminatory effect, but that it also had no disparate impact at all.[29] The decision came over a well-reasoned dissent highlighting the facts in the case and making a compelling argument for the opposite outcome under the existing *Arlington Heights* framework.[30]

TJ exposes with striking clarity the perils of deciding facial constitutional challenges on charges of illicit legislative motive.[31] Until the Supreme Court weighs in on these issues definitively, it is hard to see anything but a deep and bitter circuit split developing over these facially race-neutral policies aimed at achieving racial diversity goals. When the Court eventually takes one of these cases up,[32] the ground will be laid for it to revisit *Arlington Heights* in a new context.

This Article first analyzes the tension in the *TJ* decision and its likely implications for future affirmative action litigation. It then highlights the broader problems with *Arlington Heights* most recently demonstrated in *TJ*, arguing that *Arlington Heights* violates fundamental principles of adjudication and broke with core, universally held doctrine that traces from the founding of the Republic to the Warren Court and continues to be applied in other contexts even after *Arlington Heights*. For these reasons, *TJ* should mark the beginning of the end of *Arlington Heights*.

Part I provides a background of *TJ* and *Arlington Heights*. Part II assesses the opinions in *TJ* and how they demonstrate the intractable administrability issues inherent in judicial investigation of legislative motive. Part III contextualizes the current legislative motive regime within the jurisprudential history. Part IV

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27. *Id.* at 871; Renu Mukherjee, *The Next Battle over Racial Preferences*, CITY J. (Autumn 2023), https://www.city-journal.org/article/the-next-battle-over-racial-preferences [https://perma.cc/SWD6-D642].

28. *TJ*, 68 F.4th at 873.

29. *Id.* at 887.

30. *Id.* at 891–906.

31. The policy at issue was adopted by a multi-member elected school board exercising its legislative power, not a state legislature. Nonetheless, because problems with legislative motive analysis apply equally to any legislative body acting within the bounds of its own rules of decisionmaking, I refer to the doctrine as "legislative motive" throughout.

32. The Court appears content to wait for a split to develop. *See* Adam Liptak, *Supreme Court Won't Hear New Case on Race and School Admissions*, N.Y. TIMES (Feb. 20, 2024), https://www.nytimes.com/2024/02/20/us/supreme-court-race-school-admissions.html [https://perma.cc/VNZ3-AF7F]. But it will have numerous opportunities to weigh in when it is ready. *See* Chris Kieser, *Supreme Court Should Revisit Racial Equity in High-School Admissions*, NAT'L REV. (Sept. 11, 2024), https://www.nationalreview.com/bench-memos/supreme-court-should-revisit-racial-equity-in-high-school-admissions [https://perma.cc/Q7WD-V77T].

argues why, on both legal and normative grounds, *Arlington Heights* should be abandoned as a tool for deciding equal protection challenges. Part V addresses potential objections.

I. FACTS AND CONTEXT FOR *ARLINGTON HEIGHTS* AND *COALITION FOR TJ*

A. The Arlington Heights *Framework*

The Court tipped its hat to legislative motive in *Washington v. Davis*.[33] *Davis* involved an equal protection challenge to a verbal skills test for police officers in the District of Columbia. The plaintiffs alleged and showed disparate passage rates across racial groups, but failed to show that the test did anything other than measure the verbal skills ability of those who took it.[34] The Court held that there was no constitutional infirmity in the test itself, which was "neutral on its face and rationally may be said to serve a purpose the Government is constitutionally empowered to pursue," and that disparate impact does not in itself establish an equal protection violation.[35] Nonetheless, the Court surmised in dicta that use of the skills test might have crossed the line if, in addition to the disparate impact, the test was adopted as the result of a "racially discriminatory purpose."[36]

The Court then adopted this motive framework in *Village of Arlington Heights v. Metropolitan Housing Development Corp*.[37] There, the plaintiffs alleged that a zoning board improperly denied variances for affordable housing because of a racially discriminatory motive.[38] While the claim was not successful on the merits, the Court provided a non-exhaustive list of factors that courts can examine to identify unconstitutional discriminatory motive.[39] These include, but are not limited to, the historical background of the provision, particularly if it reveals a pattern; the real-world impact of the policy, if extreme; the specific sequence of events leading to the decision; departures from normal procedures or substantive departures from past practice; and legislative or administrative history, including contemporaneous statements from members of the decision-making body, meeting minutes, and reports.[40] In extreme circumstances, the Court even sanctioned calling in legislators to testify about their motives.[41] The Supreme Court has not

33. Washington v. Davis, 426 U.S. 229 (1976).
34. *Id.* at 235–36.
35. *Id.* at 246.
36. *Id.* at 239.
37. Vill. of Arlington Heights v. Metro. Hous. Dev. Corp., 429 U.S. 252 (1977).
38. *Id.* at 254–58.
39. *Id.* at 266–68.
40. *Id.*
41. *Id.* at 268. This was not beyond the pale either, as the Court had earlier sanctioned haling a cabinet secretary into court for a 27-day trial to investigate his motivations as to an administrative decision. GELLHORN & BYSE'S ADMINISTRATIVE LAW 1147 (13th ed. 2023) (citing Citizens to Pres. Overton Park v. Volpe, 401 U.S. 402, 420 (1971)).

definitively weighed in on whether a threshold showing of disparate impact is an additional requirement, but a number of circuit courts have so held.[42]

In *Hunter v. Underwood*,[43] the doctrine took another turn. There, in a challenge to an Alabama constitutional provision regarding criminal disenfranchisement, the Court tacked on a burden-shifting approach to this doctrine, which the Court began to experiment with in contexts beyond the civil rights statutes that had become well known for their burden-shifting tests.[44] Under this approach, once an impermissible motive is found, the law can still survive the challenge if the government can show that the same legislative action would still have been taken in the absence of the discriminatory motive.[45]

Finally, in *Abbott v. Perez*, the Court emphasized a rebuttable presumption of good faith for the governmental actor, regardless of prior findings in other cases.[46] Consistent with other constitutional doctrines weighing in favor of regularity, the burden is on the plaintiff to show that a legitimate law was passed with illicit motives.[47]

Thus stands the doctrine. While it sounds rather simple, the test in application has not been.[48]

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42. *Compare* Chinese Am. Citizens All. of Greater N.Y. v. Adams, 116 F.4th 161, 164 (2d Cir. 2024) (holding that disparate impact is a necessary element for an *Arlington Heights* claim), Bos. Parent Coal. for Acad. Excellence Corp. v. Sch. Comm. for Bos., 89 F.4th 46, 56 (1st Cir. 2023) (same), *cert. denied*, No. 23-1137, 2024 WL 5036302 (Mem.) (U.S. 2024), *and* Coal. for TJ v. Fairfax Cnty. Sch. Bd., 68 F.4th 864, 879 (4th Cir. 2023) (same), *with* Lewis v. Ascension Par. Sch. Bd., 806 F.3d 344, 358–59 (5th Cir. 2015) (holding that disparate impact is not a necessary element for an *Arlington Heights* claim), Doe v. Lower Merion Sch. Dist., 665 F.3d 524, 549 (3d Cir. 2011) (same), *and* Anderson v. Boston, 375 F.3d 71, 89 (1st Cir. 2004) (same). The uncertainty stems in part from the lack of clarity about what the equal protection right at issue in *Arlington Heights* actually is. If it is freedom from policies adopted with any hint of discriminatory motives, the impact, in theory, should be completely irrelevant. *See Boston Parent*, No. 23-1137, 2024 WL 5036302 (Mem.), at *2–*3 (Alito, J., dissenting from denial of certiorari) (rejecting disparate impact as a necessary element of an equal protection claim and endorsing it as simply one factor among many). *But see infra* note 234 and accompanying text (Justice Scalia noting that a law enacted with a discriminatory motive that "ineptly" failed to achieve its purported ends would simply constitute a failed attempt at violating someone's equal protection rights). If, however, the right, as applied to legislative acts, is for the law to treat similarly situated individuals similarly while pursuing permissible government policies, *see supra* notes 33–35 and accompanying text; *infra* note 323 and accompanying text, then it is not clear that *Arlington Heights* does much of anything to help identify actual violations of the right. *See infra* Sections V.B, V.D.

43. Hunter v. Underwood, 471 U.S. 222 (1985).

44. *See, e.g.*, McDonnell Douglas Corp. v. Green, 411 U.S. 792, 802–05 (1973) (Title VII employment discrimination); Batson v. Kentucky, 476 U.S. 79, 93–98 (1986) (jury selection); Tex. Dept. of Hous. & Cmty. Affs. v. Inclusive Cmtys. Project, Inc., 576 U.S. 519, 527 (2015) (Fair Housing Act).

45. *Underwood*, 471 U.S. at 228.

46. Abbott v. Perez, 138 S. Ct. 2305, 2324 (2018). *Contra* W. Kerrel Murray, *Discriminatory Taint,* 135 HARV. L. REV. 1190 (2022) (arguing for expanding a doctrine of taint and weakening the presumption of good faith).

47. *Abbott*, 138 S. Ct. at 2324.

48. *See infra* Section II.D.

B. TJ *Facts*

In *Coalition for TJ v. Fairfax County School Board*,[49] the Fairfax County School Board, which oversees the Thomas Jefferson High School for Science and Technology, a competitive magnet school in Northern Virginia, changed the school's admissions policy with the stated goal of increasing racial diversity at the school. At the time, the student body was disproportionately more Asian American and less African American, Latino, and Anglo American than the general population of the area, with most students coming from a handful of "feeder" middle schools which disproportionately enrolled students who excelled academically, many of whom were of Asian descent.[50]

The School Board selected its new policy after considering a variety of proposals, paired with expert analysis addressing the likely effect each policy would have on the racial makeup of the incoming class.[51] The policy the Board settled on allocated a seat for the top 1.5% of students at each middle school in the district, regardless of its relative competitiveness, with the remaining 100 seats spread among all applicants, but with a bonus for students from underrepresented schools.[52] The evaluation of individual applications was to be undertaken without any consideration of race or any target percentage for the class.[53] The policy was designed to secure slots for students at underrepresented middle schools, which had disproportionately African-American and Latino student bodies—eight of which had had zero students gain admission during the final year under the old policy.[54] The policy put additional downward pressure on admissions from the feeder middle schools by pegging the preallocated seats to the students' school of attendance rather than to school zones because high-achieving Asian students would frequently attend the feeder schools from outside their home districts.[55]

Throughout the process, various Board members showed their understanding of the likely racial effects of the policy and expressed that those effects were indeed the aim of their policy change, making comments such as that the racial makeup under the prior policy was "unacceptable" and calling out how Asian-Americans are "over-represented."[56] The Board also unanimously adopted a resolution explicitly establishing that the "goal is to have [Thomas Jefferson's] demographics represent the [Northern Virginia] region" because prior policies "did not have the desired impacts with respect to diversity."[57] Some Board members candidly admitted that "there has been an anti [A]sian feel underlying some of this,

49. 68 F.4th 864 (4th Cir. 2023), *cert. denied*, No. 23-170, 2024 WL 674659 (Mem.) op. (Feb. 20, 2024).
50. *Id.* at 872.
51. *Id.* at 872–75.
52. *Id.* at 900 (Rushing, J., dissenting).
53. *Id.*
54. *Id.* at 875 (majority opinion).
55. *Id.* at 901 (Rushing, J., dissenting).
56. *Id.* at 895.
57. *Id.* at 896.

hate to say it lol," with some believing that "Asians hate us."[58] Others acknowledged that the policy change was being driven by the Superintendent, who "ha[d] made it obvious with 'racist' and 'demeaning' remarks and . . . '[c]ame right out of the gate blaming' Asian students and parents."[59]

The Board regularly considered and requested demographic data as it considered policy options.[60] At one point it even rejected a lottery proposal because it "left too much to chance" and could not "guarantee an increase in racial/SES [socio-economic status] diversity."[61] In evaluating the factors in the "holistic" review system that it ended up adopting, the Board adjusted the relative weights of each factor to "change who got in."[62] It also rejected an alternative proposal that used geographic subregions because it could "continue to admit more students from a few top-performing FCPS middle schools."[63]

The Board's efforts to change the racial makeup of the school were successful.[64] Instead of Asian-American students making up 73% of the class, the new policy reduced that percentage to 54%.[65]

Students and parents sued, alleging that the change in policy was motivated by impermissible discriminatory intent based on race and that the policy should be invalidated under *Arlington Heights*.[66] The district court ruled for the plaintiffs on summary judgment, but the Fourth Circuit panel reversed and rendered summary judgment for the School Board.[67]

II. HOW THE *COALITION FOR TJ* JUDGES' DIFFERENT APPROACHES TO *ARLINGTON HEIGHTS* DEMONSTRATE THE INCURABLE WORKABILITY ISSUES WITH EXAMINING LEGISLATIVE MOTIVE

A. Panel Majority and Concurrence

The majority ruled that Asian-American students suffered from no disparate impact under the policy because Asian students (in the aggregate) continued to receive offers of admission in a higher proportion than their percentage of the applicant pool under the new policy.[68] Rather than applying a before-and-after analysis, which the court protested might immutably lock in the existing statistics, the court opted instead for a group-to-group comparison under the new policy.[69]

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58. *Id.* at 901.
59. *Id.*
60. *See id.* at 898–900.
61. *Id.* at 898.
62. *Id.*; *Id.* at 871 (majority opinion).
63. *Id.* at 900 (Rushing, J., dissenting).
64. *Id.* at 902.
65. *Id.* at 894, 875–76 (majority opinion).
66. *Id.* at 876.
67. *Id.* at 871.
68. *Id.* at 881–82.
69. *Id.* at 879–81.

The court also found no discriminatory motive targeting Asian Americans in particular on the part of the Board.[70] The court credited the claim that the motive of the Board was to improve overall diversity, not a particular invidious motive against Asian Americans.[71] It found that the evidence relied on by the dissent suggesting otherwise was "sparse," and took a narrow view of precedent repudiating the practice of racial balancing, finding that the Board was not pursuing such balancing under that narrower view.[72]

The concurring judge noted how, at the admissions department, the admissions process was formally race-blind, while acknowledging that that has no bearing on an *Arlington Heights* challenge.[73] He went on to argue that the illicit motive must be to "disadvantage any applicant based on race," a claim unsupported by the evidence in the concurrence's view.[74] He also found that the disparity was smaller than that in other cases which affirmed the policies at issue.[75]

Finally, the concurrence pointed to prior Supreme Court affirmative action opinions that argue in favor of race-neutral alternatives in the narrow tailoring prong of strict scrutiny, taking those statements to mean that such policies are constitutionally approved as efforts to "undo the effects of past discrimination."[76]

B. Dissent

The dissenting judge went deeper into the record and found that the evidence clearly established a discriminatory motive due to the explicit statements of the Board members, a resolution they unanimously adopted, and the pervasive consideration of race throughout the entire process.[77] She also found that the stark and immediate reduction in admissions easily satisfied any measure of disparate impact.[78]

Finding that the motive and impact "ripen[ed] into proof" of discrimination, she would have shifted the burden to the Board to show the policy would have been enacted even without the discriminatory motive, a burden that they would not have been able to carry.[79] Therefore, the Board would have to satisfy strict scrutiny, a standard they would certainly fail due to the small universe of compelling interests that can justify racial discrimination.[80] By the dissent's reckoning, the change in policy was unconstitutional, and the Board would have to justify any future changes in policy with motivations that do not violate the rights of Asian-American students.[81]

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70. *See id.* 882–86.
71. *Id.* at 885–86.
72. *Id.* at 882–86.
73. *Id.* at 888–89 (Heytens, J., concurring).
74. *Id.* at 889.
75. *Id.* at 889–90.
76. *Id.* (internal quotation omitted).
77. *See id.* at 905–06 (Rushing, J., dissenting).
78. *Id.* at 902–03.
79. *Id.* at 903, 905.
80. *Id.* at 905–06.
81. *Id.* at 906.

C. Analysis

As a matter of principled application of *Arlington Heights*, the dissent has the better reasoning. On impact, by the majority's reckoning, the school system could deliberately cut an outperforming racial group "down to size" to match their proportion of the population, and no disparate impact would have occurred.[82] Such a determination is inconsistent with the purpose of *Arlington Heights*, which is specifically aimed at preventing such group-targeted policies. While "success rate"[83] may be appropriate to examine in some contexts, when the challenge is to a *change* in policy, rather than to a new or existing policy, before-and-after makes more sense.

From an evidentiary standpoint, an existing admissions policy found in the wild that produces admissions demographics identical to the racial makeup of the region of eligible students, in a vacuum, would not in itself raise a suspicion of disparate impact. In this situation, the "success rate" of each demographic group would be identical provided that their application rate was the same as well. But additional context may make that close proportionality suggestive of impermissible racial balancing, such as if some admissions criteria are not in fact evenly distributed along racial lines. For something like SAT scores in the college context, where there is a persistent average academic skills gap between Asian-American students and African-American students to the tune of 300 points, racially proportionate outcomes might still raise suspicion.[84]

But for a changed admissions policy that produces demographics significantly different than the prior policy, a significant change in outcomes easily suggests that the policy change may have had something to do with it. While more context and evidence would be necessary and the change may be unrelated to race, it defies common sense to say that the change is irrelevant when assessing whether the change itself was lawful so long as it moves particular racial groups closer to proportional representation. As it relates to a change in policy, the *change* disproportionately impacts one group even if the resulting policy, in a vacuum, would not.

On motive, a common problem in *Arlington Heights* cases is the absence of a smoking gun, certainly as to the legislative body as a whole, even if the court has direct evidence as to individual legislators. But this case involved a unanimous resolution enacted by the legislative body explicitly adopting and declaring their motivations. The *TJ* court also did not have the benefit of the *SFFA* decision, which made clear that "admissions are zero-sum. A benefit provided to some applicants but not to others necessarily advantages the former group at the

82. *See id.* at 884 (majority opinion).

83. *Id.* at 881.

84. Heather Mac Donald, *Affirmative Action Bred 50 Years of "Mismatch,"* WALL ST. J. (July 10, 2023), https://www.wsj.com/articles/racial-preferences-bred-50-years-of-mismatch-harvard-sat-scores-equality-7942bd8e [https://perma.cc/7574-LYA6].

expense of the latter."[85] The *TJ* court thus incorrectly rejected that argument.[86] The zero-sum environment is inconsistent with the court's finding that the policy can survive *Arlington Heights* if the Board's diversity rationale is pursued with benign motives toward African-American and Latino applicants rather than discriminatory motives toward Asians.[87] In admissions, those motives are two sides of the same coin.

Some scholars have argued that cases such as *TJ* are not on a collision course with *Arlington Heights* because they have been approved by the Court, pointing to statements by the Court which speak positively about using race-neutral alternatives to pursue diversity goals.[88] They have argued that a concurrence by Justice Kennedy signaling approval of race-neutral proxies constitutes a holding entitled to stare decisis treatment under the *Marks* rule.[89] They also argue that a majority decision on the Fair Housing Act in which Justice Kennedy quoted the earlier concurrence constitutes a holding as to the Equal Protection Clause.[90] More careful analysis reveals that these statements are definitively dicta.

First, as to the Kennedy concurrence, he agreed that strict scrutiny applied in that case and that the provision was not narrowly tailored.[91] Those two propositions had five votes and were sufficient to resolve the case. The portion of his concurrence that diverged from the majority was not a concurrence on narrower grounds necessary for the outcome, but a partial dissent as to the Court's repudiation of diversity as a compelling interest in itself.[92] The case involved an explicit racial classification subject to strict scrutiny. A majority of the Court struck down the program because the district "failed to show that they considered methods other than explicit racial classifications."[93] Kennedy's disagreement on the compelling interest front as it relates to racial proportionality and his endorsement of race-neutral policies, which were not at issue in the case, were therefore purely dicta. Second, the Fair Housing Act case involved statutory interpretation, not the Equal Protection Clause.[94] While Justice Kennedy

85. Students for Fair Admissions, Inc. v. President & Fellows of Harvard Coll. (*SFFA*), 600 U.S. 181, 218–19 (2023).

86. *TJ*, 68 F.4th at 885.

87. *See* Sonja Starr, *The Magnet School Wars and the Future of Colorblindness*, 76 STAN. L. REV. 161, 174 (2024).

88. *Id.* at 183–84, 231 (the Court called the efforts "commendable" and a Kennedy concurrence endorsed the use of race-conscious measures); Richard A. Primus, *Equal Protection and Disparate Impact: Round Three*, 117 HARV. L. REV. 493, 538–49 (2003) (arguing for various ways to reconcile race-neutral affirmative action programs ("alternative action") with *Arlington Heights*).

89. Starr, supra note 87, at 183–85 (citing Parents Involved in Cmty. Schs. v. Seattle Sch. Dist. No. 1, 551 U.S. 701, 782–98 (Kennedy, J., concurring in part and concurring in the judgment)).

90. *Id.* at 186–87.

91. *Parents Involved*, 551 U.S. at 787, 790 (Kennedy, J., concurring in part and concurring in the judgment) ("I agree that in the context of these plans, the small number of assignments affected suggests that the schools could have achieved their stated ends through different means.").

92. *Id.* at 787–89 ("This is by way of preface to my respectful submission that parts of the opinion by The Chief Justice imply an all-too-unyielding insistence that race cannot be a factor in instances when, in my view, it may be taken into account.").

93. *Id.* at 735 (majority opinion).

94. Tex. Dept. of Hous. & Cmty. Affs. v. Inclusive Cmtys. Project, Inc., 576 U.S. 519, 546 (2015).

quoted the language from his earlier concurrence favorably, he did so with a "cf." cite and in a part of the opinion not necessary for the outcome—in a section allaying concerns that allowing disparate impact claims under the FHA could lead to excessive consideration of race.[95] While Supreme Court dicta in a majority opinion is persuasive and perhaps somewhat predictive as an endorsement of a particular approach, a holding it is not.[96]

And for good reason. When it made these statements, the Court was confronting explicit racial classifications with no record or argument raising *Arlington Heights*. Adversarial presentation with facts under which the outcome is decided by the legal question at hand sharpens the issues and demands the careful judicial attention that underlies a well-reasoned holding. None of that is present in these cases. The various affirmative action cases in the past that endorsed race-neutral alternatives all involved the narrow tailoring analysis, not an independent approval of race-neutral classifications aimed at racial results. It does not make sense to treat these cases as creating an exemption from *Arlington Heights*, not only because it was not presented, but also because the end result of running afoul of *Arlington Heights* is strict scrutiny. In cases where there was a compelling interest, it did not matter whether an explicit racial classification or a discriminatory motive triggered that scrutiny. The same tailoring analysis would have applied either way.

Finally, these race-neutral programs cannot pass strict scrutiny today because the Court rejected their aims as compelling interests in *SFFA*.[97] To the extent race-neutral policies were recognized as legal in the past, that recognition was only for a limited time as a part of the compelling interest of correcting specific, identified instances of past discrimination—and that time period has ended.[98] Even if the TJ program is narrowly tailored, it cannot be said to further a compelling state interest this far removed from the past discrimination.

Based on these considerations, it's hard to see how other circuits will not come out the other way in cases like *TJ*.[99] A circuit split is likely to develop

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95. *Id.* at 545.

96. *See* BRYAN A. GARNER, CARLOS BEA, REBECCA WHITE BERCH, NEIL M. GORSUCH, HARRIS L HARTZ, NATHAN L. HECHT, BRETT M. KAVANAUGH, ALEX KOZINSKY, SANDRA L. LYNCH, WILLIAM H. PRYOR JR., THOMAS M. REAVLEY, JEFFREY S. SUTTON & DIANE P. WOOD, THE LAW OF JUDICIAL PRECEDENT 54–56 (2016).

97. Students for Fair Admissions, Inc. v. President & Fellows of Harvard Coll. (*SFFA*), 600 U.S. 181, 207 (2023); Coal. for TJ v. Fairfax Cnty. Sch. Bd., 68 F.4th 864, 905–06 (4th Cir. 2023) (Rushing, J., dissenting).

98. *See SFFA*, 600 U.S. at 317 (Kavanaugh, J., concurring).

99. The First Circuit recently decided a similar case. Bos. Parent Coal. for Acad. Excellence Corp. v. Sch. Comm. for Bos., 996 F.3d 37 (1st Cir. 2021) (denying preliminary injunction), *aff'd*, 89 F.4th 46 (1st Cir. 2023) (on fuller treatment, affirming denial of 60(b) motion), *cert. denied*, No. 23-1137, 2024 WL 5036302 (Mem.) (U.S. 2024). The program started by giving slots to those with the top 20% of GPAs across all schools. *Id.* at 53. For the rest of the applicants, the board then divided the city into zip codes and admitted students from the top of each list for each zip code, starting with the zip code that

sooner rather than later.[100]

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had the lowest aggregate family income and then ascending to the highest. *Id.* Where student achievement was not consistent across zip codes, this meant that students with lower GPAs in poorer zip codes were admitted in front of students with higher GPAs in wealthier zip codes.

The court upheld the policy even after newly discovered text messages revealed clear racial animus. *Id.* at 63. The evidence included decision makers saying that race-neutral plans "actually [did not] go far enough" because it did not exclude enough Asian and White students and were embarrassed by a "Hot mic!!!" catching one of them "making fun of the Chinese names." *Id.* at 53. Board members also shared, in text messages during the meeting, "Wait til the White racists start yelling [a]t us" and "sick of westie whites," and "I hate WR" (a predominately white neighborhood, West Roxbury) with another member agreeing, "me too." *Id.* at 54.

The district court found that "it is clear from the new record that the race-neutral criteria were chosen precisely because of their effect on racial demographics," that is, "but for the increase in Black and Latinx students at the Exam Schools, the Plan's race-neutral criteria would not have been chosen." 2021 WL 4489840, at *15. Nonetheless, according to the court, the record failed to show "any legally cognizable disparate impact." *Boston Parent*, 89 F.4th at 54.

The Court's denial of certiorari drew even more attention than *TJ* did, with Justice Gorsuch weighing in along with Justices Alito and Thomas to acknowledge "a number of significant concerns about the First Circuit's analysis." *Boston Parent*, No. 23-1137, 2024 WL 5036302 (Mem.), at *1 (U.S. 2024) (statement of Gorsuch, J.). As in *TJ*, Justice Alito expressed significantly similar concerns with the First Circuit's methodology. *Id.* (Alito, J., dissenting from denial of certiorari) ("The following events might sound familiar."). When describing the First Circuit's agreement with the Fourth that there is no disparate impact so long as Asian Americans are still overrepresented as a group, he said "the error has metastasized and spread." *Id.* at *2. He accurately concluded that the view "threatens to perpetuate race-based affirmative action in defiance of *Students for Fair Admissions*" and would "reject root and branch this dangerously distorted view of disparate impact." *Id.* at *3.

100. The Second Circuit recently split from the other circuits on the methodological question of how to measure disparate impact. *See* Chinese Am. Citizens All. v. Adams, 116 F.4th 161 (2d Cir. 2024). That case involved a change in admissions policies to the most competitive high schools in New York City. *Id.* at 164. The city changed the qualifications under its separate admissions pipeline for economically disadvantaged students and increased the number of seats allocated to it from 5% to 20%. *Id.* at 164. Rather than measuring eligibility based on the individual, as it had before, the city also required the student to attend a middle school that on average had a certain threshold of economic disadvantage based on an "Economic Need Index." *Id.*

The city made the change "with the stated goal of creating a wider and more diverse pool of applicants" for the schools. *Id.* The mayor of New York called the existing racial statistics at the schools a "monumental injustice." *Id.* at 167. The City admitted that it "model[ed] the effects that various [Economic Need Index] cutoffs would have on the racial composition of the students," bragging in a press release that the revised program would result in a significant increase in the number of offers going to African American and Latino individuals. *Id.* They selected the particular community economic condition cutoffs as "a way to support greater geographic, racial, and socioeconomic diversity" at the schools. *Id.* (internal quotation marks omitted). The chancellor said, "I just don't buy into the narrative that any one ethnic group owns admission to these schools. *Id.* The city's "modeling also projected that the changes to the Discovery Program would decrease the number of Asian Americans" at the schools. *Id.*

The plaintiffs in the case sued based on the adverse impact the policy change had on Asian American students who were economically disadvantaged, but attended middle schools which were comparatively well off. *Id.* at 165. Their categorical exclusion from 20 percent of the seats was the harm underlying the claim. *Id.* Under the original program, Asian American students made up a plurality or majority of all the competitive schools, a greater proportion than that of the city as a whole, with African American and Latino students gaining admission at a lower proportion than that of the city as a whole. *Id.* at 166.

The first year of the program actually saw a small increase in the overall Asian American demographic in addition to increases for African American and Latino students, all at the expense of Anglo students. *Id.* at 168. This unexpected change for the benefit of Asian American students as a whole resulted from dramatic increases in the economic ratings of many of the middle schools disproportionately attended by Asian American students. *See id.* at 168–69. The district court dismissed, applying a test that required a negative impact on aggregate demographic data to establish disparate

D. Administrability Issues

The disagreements demonstrated by the majority, concurrence, and dissent are not confined to this case, or even the affirmative action context. The case highlights a long-lasting, repeatedly failed attempt to bring predictability and consistency to a doctrine that is incapable of becoming workable.

Arlington Heights ushered in an utterly manipulable standard that cannot be applied in a principled fashion. *Arlington Heights* established factors for showing improper motive which sounded simple,[101] but have only proven unruly, and no amount of adjustment and fine tuning has been able to rein it in.

A few examples are in order.

- The Court has said foreseeability is not enough to show improper motive.[102] Except when it is.[103]
- The sequence of events or departure from normal procedures can show improper motive.[104] But following normal procedures will not do much for you.[105]
- An improper motivation need not be the dominant motivation.[106] Except when it must be.[107]

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impact. *Id.* at 169. It found one- to two-percent decreases at a few of the individual schools too minor to constitute disparate impact. *Id.*

The Second Circuit rejected this test because Asian American students do not experience the admissions program as members of a group, but as individuals. *See id.* at 175. "It is undisputed that a large group of Asian-American students at certain middle schools across New York City was excluded from the revised Discovery Program under the new criteria." *Id.* at 176. And a significant number of the economically disadvantaged plaintiffs were excluded from eligibility because of their comparatively-more-advantaged peers. *Id.* at 177 ("11 of 24 majority-Asian-American middle schools were rendered ineligible . . . .") For them, the policy does create a disparate impact, and if that disparate impact was on account of their race, the city would have to satisfy strict scrutiny. *Id.* at 177.

Because the district court did not make a determination on discriminatory motive and discovery was not granted for that purpose, the Second Circuit had to assume without deciding that discriminatory motive could be proven on remand. *Id.* at 179.

101. Vill. of Arlington Heights v. Metro. Hous. Dev. Corp., 429 U.S. 252, 265–68 (1977).

102. Pers. Adm'r of Mass. v. Feeney, 442 U.S. 256, 278–79 (1979) (upholding state hiring policy that gave preference to veterans even though they knew it would disproportionately benefit men).

103. *See* Columbus Bd. of Educ. v. Penick, 443 U.S. 449, 464 (1979) (affirming lower court conclusion that foreseeable consequences can nonetheless show discriminatory motive).

104. *See* Shaw v. Reno, 509 U.S. 630, 647 (1993) (approving use of objective, traditional districting principles such as compactness, contiguity, and respect for political subdivisions as baseline normal procedures).

105. *See* Bethune-Hill v. Va. State Bd. of Elections, 580 U.S. 178, 189 (2017) (holding that following traditional districting principles does not remove strict scrutiny or win the case, even if the legislature could have drawn the lines in accordance with those traditional criteria).

106. *Arlington Heights*, 429 U.S. at 265.

107. *See* Miller v. Johnson, 515 U.S. 900, 916 (1995) (to win a redistricting challenge, the plaintiff must show "that race was the predominant factor motivating the legislature").

- When important policy factors point one way and the legislature goes another, that can show improper motive.[108] But following some important factors gets the legislature no credit.[109]
- Legislative history and statements are relevant.[110] But it can be clear error to rely on them.[111]
- "Intentional" legislative inaction is not good evidence for showing an improper motive.[112] Except when it is.[113]
- Historical background of discrimination is a relevant factor.[114] But not relevant enough to justify making a decision based on it.[115] Or perhaps even at all.[116]
- Voter sentiments do little to color the provision in question.[117] Except when they do.[118]
- Statutes passed with racially discriminatory motives are unconstitutional.[119] Unless the legislature convinces the court it would have passed the statute anyway.[120]

The courts can't even agree on whether an *Arlington Heights* claim even requires a showing of disparate impact because of how foggy and imprecise the Court has been over the years in identifying what exactly the equal protection right *Arlington Heights* purports to vindicate even is.[121] And this is just from

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108. *Arlington Heights*, 429 U.S. at 267.

109. *See* Ala. Legis. Black Caucus v. Alabama, 575 U.S. 254, 272 (2015) (holding adjustments in redistricting made to ensure equal population do not count in evaluating predominance).

110. *Arlington Heights,* 429 U.S. at 268.

111. *See* Easley v. Cromartie, 532 U.S. 234, 257 (2001) (holding that the district court committed clear error when it concluded that legislator statements about racial balancing and emails admitting to moving the "Greensboro Black community" to a different district supported a finding of racial motivation).

112. *See* City of Mobile v. Bolden, 446 U.S. 55, 71 n.17 (1980) (rejecting the notion that a prior decision without improper motive creating an at-large voting system can become unconstitutional if it remains unchanged due to an alleged improper motive later on).

113. *See* Rogers v. Lodge, 458 U.S. 613, 626 (1982) (striking down at-large voting system that was admittedly passed with neutral origins because it had been "subverted to invidious purposes" and the failure to affirmatively change it had discriminatory motive).

114. *Id.* at 623–26.

115. *See Bolden*, 446 U.S. at 73–74 (rejecting lower court factual findings that history of discrimination rendered at-large voting system unconstitutional).

116. *See id.* at 74 ("[P]ast discrimination cannot, in the manner of original sin, condemn governmental action that is not itself unlawful."); Abbott v. Perez, 585 U.S. 579, 603 (2018) (rejecting "taint" theory based on a prior finding of discriminatory motive and applying identical standard of review on subsequent challenge).

117. *See* Cuyahoga Falls v. Buckeye Cmty. Hope Found., 538 U.S. 188, 195–97 (2003) (discounting voter sentiment in a referendum as unreflective of state action).

118. *See* Crawford v. Bd. of Educ., 458 U.S. 527, 545 (1982) (crediting support from the electorate as obviating discriminatory motive).

119. *See* Washington v. Davis, 426 U.S. 229, 239–41 (1976).

120. *See* Hunter v. Underwood, 471 U.S. 222, 228 (1985) (allowing burden shifting).

121. *See supra* note 42 and accompanying text.

cases at the Supreme Court. *Arlington Heights* suggests there are any number of other factors still out there undiscovered.[122]

Even if the Court could perfectly fine tune the system, numerous issues remain that are inherent in the hunt for legislative motive that will never be eliminated. Among these are the inference issue, the findings of fact issue, and the baseline issue.

1. The Inference Issue

Because finding motive involves interpreting circumstantial evidence, the judicial factfinder is asked to make a number of inferences. Those inferences often come out wildly differently depending on which factfinder you ask. A set of North Carolina cases demonstrates the problem.

In *Holmes v. Moore*, a lame-duck Democratic majority on the state supreme court struck down a race-neutral voter ID law, finding that the haste with which the lame-duck Republican supermajority that passed the law pursuant to a newly enacted constitutional amendment betrayed a discriminatory motive.[123] The court inferred a racial motivation to explain Republicans' rejection of proposed Democratic amendments.[124] This inference was consistent with similar findings in federal court regarding the same provisions at the preliminary injunction phase, and the state intermediate appellate court earlier in the case.[125] The legislature would have to pass the law again without the benefit of a supermajority.

On rehearing, the newly constituted court, now with a Republican majority, held the exact opposite.[126] Where the prior court had inferred discriminatory motive in the selection of which ID's would be valid, the new court applied the presumption of good faith and found that none of the evidence overcame that presumption.[127] This was consistent with similar inferences and reversal of the preliminary injunction in federal court.[128]

These five courts were all working with identical evidence. *Arlington Heights* allows the facial constitutionality of a democratically enacted statute to turn on mere inferences from circumstantial evidence. Such inferences are manipulable in a way that facts regarding the actual effect of legislation are not, and are especially problematic because of deferential appellate rules about findings of fact.

Arlington Heights is distinct from other fact-bound inquiries, which are an inherently squishy, but perfectly legitimate part of the judicial system. When it comes to tort cases, criminal cases, or contract cases, inferences are necessary for the legal system to recognize the way the real world works. Conversely, current

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122. *See* Vill. of Arlington Heights v. Metro. Hous. Dev. Corp., 429 U.S. 252, 268 (1977).
123. 881 S.E.2d 486, 510 (N.C. 2022).
124. *Id.* at 506.
125. N.C. State Conf. of the NAACP v. Cooper, 430 F. Supp. 3d 15 (M.D.N.C. 2019); Holmes v. Moore, 840 S.E.2d 244, 265 (N.C. App. 2020).
126. Holmes v. Moore, 886 S.E.2d 120 (N.C. 2023).
127. *Id.* at 139.
128. N.C. State Conf. of the NAACP v. Raymond, 981 F.3d 295 (4th Cir. 2020).

Arlington Heights doctrine asks courts to do opposite things: assess evidence of motive, including inferences therefrom, while also applying a presumption of good faith that attaches to all legislative enactments paired with the high standard for facial challenges. These directives are at war with each other. Formally speaking, the presumption should almost always be determinative because it requires factual inferences to be drawn in favor of the constitutionality of the act in question. Unless the act is "unexplainable on any ground other than race," the enactment should be found to not have been enacted based on race. But that is not how the courts have applied *Arlington Heights*.

2. The Findings of Fact Issue

Arlington Heights challenges frequently turn on findings of fact. This feature invites a game of cat and mouse between trial and appellate courts. First, it tempts district courts, often sitting with a single judge, to attempt to tie the hands of reviewing courts by making flimsy factual findings that support desired policy results.[129] Second, it places appellate courts in the unenviable position of either deferring to dodgy factual findings, or, more likely, also misbehaving *sub rosa* by declining to defer to findings of fact that are not clearly erroneous in order to achieve or counter policy-driven inferences.[130]

Compounding this problem is the oddity of facial unconstitutionality under *Arlington Heights* turning on factual findings. The standard formulation of facial challenges is that they will only be sustained when "no set of circumstances" exists under which the statute could be constitutional.[131] This is traditionally considered to be a legal question, one that is frequently answered without concrete facts in front of the court. In this context, factual findings seem only to be relevant in that they can show that a set of circumstances *does* exist which could defeat the facial challenge, such as if gerrymandered maps were drawn with regard to party affiliation. This might explain the lesser deference findings of fact seem to receive on appeal under *Arlington Heights*. Nonetheless, the attempted combination of factfinding with a facial constitutional challenge is, at most, an uncomfortable one.

3. The Baseline Issue

Arlington Heights requires a baseline showing of disparate impact in addition to the showing of motive in several circuits.[132] *TJ* amply demonstrates this issue and the manipulability of the baseline and denominator when measuring

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129. *See, e.g.*, Columbus Bd. of Educ. v. Penick, 443 U.S. 449, 480–81 (1979) (Powell, J., dissenting) (upholding under deference to factual findings "a chain of 'presumptions'" and legal "fictions" in order to attribute state action to existing housing patterns).

130. *See, e.g.*, *id.*; Easley v. Cromartie, 532 U.S. 234, 257 (2001) (reversing despite the Court "conced[ing] the record contains a modicum of evidence" to support the factual findings).

131. *See* United States v. Salerno, 481 U.S. 739, 745 (1987).

132. *See supra* note 42; Vill. of Arlington Heights v. Metro. Hous. Dev. Corp., 429 U.S. 252, 264–65 (1977).

impact.[133] One court may find a disparate impact by picking a smaller denominator, but the next might make the impact disappear by picking a larger denominator. The fight over the baseline is inherent in the enterprise, and, given its fact-sensitive nature, is particularly susceptible to inconsistency, or worse, manipulation.[134]

TJ is just one standard example of *Arlington Heights* factfinding. The motive standard simply cannot be made workable.

III. History of Judicial Examination of Legislative Motive

To better understand where the Court went wrong, it is worthwhile to examine the history. Where over the past 200 years, Chief Justice Marshall, Chief Justice Chase, Chief Justice White, Chief Justice Rehnquist, Chief Justice Warren, Justices Field, Scalia, and Thomas, recent unanimous Courts, and every single state court agree about the impropriety of judicial examination of legislative motive, one might begin to suspect that the doctrine has taken a wrong turn.

A. *Before* Arlington Heights

Chief Justice Earl Warren articulated a vision of a judiciary that understood its important, but limited role in the messy process of democratic lawmaking:

> It is a familiar principle of constitutional law that this Court will not strike down an otherwise constitutional statute on the basis of an alleged illicit legislative motive. As the Court long ago stated:
>
> 'The decisions of this court from the beginning lend no support whatever to the assumption that the judiciary may restrain the exercise of lawful power on the assumption that a wrongful purpose or motive has caused the power to be exerted.'
>
> Inquiries into congressional motives or purposes are a hazardous matter . . . when we are asked to void a statute that is, under well-settled criteria, constitutional on its face, on the basis of what fewer than a handful of Congressmen said about it. . . . We decline to void essentially on the ground that it is unwise legislation which Congress had the undoubted power to enact and which could be reenacted in its exact form if the same or another legislator made a 'wiser' speech about it.[135]

133. *See supra* Sections II.A, D.3.

134. *See* Harness v. Watson, 47 F.4th 296, 314–16 (5th Cir. 2022) (en banc) (upholding a felony disenfranchisement provision where judges disagreed on the relevant denominator for evaluating racial impact—the general population versus the general felon population).

135. United States v. O'Brien, 391 U.S. 367, 383–84 (1968) (cleaned up) (quoting McCray v. United States, 195 U.S. 27, 56 (1904)); *see also* Arizona v. California, 283 U.S. 423, 455 & n.7 (1931) (collecting almost a dozen Supreme Court cases reflecting the long history of refusing to inquire into legislative motive).

Chief Justice Marshall addressed the same principle in the face of a claim of corruption by the Georgia legislature.[136] He was wary of the power he was asked to take for the judiciary, "[i]f the majority of the legislature be corrupted, it may well be doubted, whether it be within the province of the judiciary to control their conduct, and, if less than a majority act from impure motives, the principle by which judicial interference would be regulated, is not clearly discerned."[137] He rejected the power, declaring that "[i]f the title be plainly deduced from a legislative act, which the legislature might constitutionally pass, if the act be clothed with all the requisite forms of a law," courts may not "sustain a suit brought by one individual against another founded on the allegation that the act is a nullity, in consequence of the impure motives which influenced certain members of the legislature which passed the law."[138]

Chief (then-Associate) Justice White explained why avoiding the investigation of legislative motive was essential to retaining the checks and balances of our Constitutional system: "[t]o announce such a principle would amount to declaring that, in our constitutional system, the judiciary was not only charged with the duty of upholding the Constitution, but also with the responsibility of correcting every possible abuse arising from the exercise by the other departments of their conceded authority."[139] He recognized that the logical conclusion of the principle was that "the abuse by one department of the government of its lawful powers is to be corrected by the abuse of its powers by another department."[140] To him, the answer to the problem of legislative abuse lay not in a "mere act of judicial usurpation . . . but in the people, upon whom, after all, under our institutions, reliance must be placed for the correction of abuses committed in the exercise of a lawful power."[141]

Chief Justice Chase agreed, too, acknowledging that the courts "are not at liberty to inquire into the motives of the legislature. We can only examine into its power under the Constitution."[142]

And even if an improper motive were to be assumed, Justice Field explained that ill motives do not "thereby change[] [the ordinance] from a legitimate police regulation, unless in its enforcement it is made to operate only against the class" claiming animus.[143] In applying the rule, he looked to the statute itself:

136. Fletcher v. Peck, 10 U.S. (6 Cranch) 87, 129–30 (1810).
137. *Id.* at 130.
138. *Id.* at 131.
139. *McCray*, 195 U.S. at 54.
140. *Id.*
141. *Id.* at 54–55.
142. *Ex parte* McCardle, 74 U.S. 506, 514 (1869).
143. Soon Hing v. Crowley, 113 U.S. 703, 711 (1885).

> There is nothing, however, in the language of the ordinance, or in the record of its enactment, which in any respect tends to sustain this allegation. And the rule is general with reference to the enactments of all legislative bodies that the courts cannot inquire into the motives of the legislators in passing them, except as they may be disclosed on the face of the acts, or inferrible from their operation, considered with reference to the condition of the country and existing legislation. The motives of the legislators, considered as the purposes they had in view, will always be presumed to be to accomplish that which follows as the natural and reasonable effect of their enactments.[144]

Every single state high court agreed, too: Alabama,[145] Alaska,[146] Arizona,[147] Arkansas,[148] California,[149] Colorado,[150] Connecticut,[151] Delaware,[152] Florida,[153]

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144. *Id.* at 710.

145. Ables v. S. Ry. Co., 51 So. 327, 329 (Ala. 1909) ("[T]he principle is settled that the courts cannot inquire in to the motives of the legislative department . . . . If the legislative department is untrue to the trusts imposed upon it, other remedies must be applied." (citations omitted)).

146. *See* Warren v. Boucher, 543 P.2d 731, 735 (Alaska 1975) ("We must infer the purposes and intentions of the framers from the language of the constitution itself . . . ."); State Dept. of Nat. Res. v. Tongass Cons. Soc'y, 931 P.2d 1016, 1019 (Alaska 1997) ("In general, judicial inquiries into the motives of those enacting or rejecting proposed legislation are to be avoided." (citing S.C. Educ. Ass'n v. Campbell, 883 F.2d 1251, 1257 (4th Cir. 1989))).

147. State *ex rel.* Conway v. S. Pac. Co., 145 P.2d 530, 532 (Ariz. 1943) ("The courts do not inquire into the motives of the legislature." (quoting State v. Pate, 138 P.2d 1006, 1010 (N.M. 1943))), *rev'd on other grounds sub nom.* S. Pac. Co. v. Arizona *ex rel.* Sullivan, 325 U.S. 761 (1945).

148. City of Little Rock v. Town of North Little Rock, 79 S.W. 785, 786 (Ark. 1904) ("It is equally clear that we cannot inquire into the motives of the Legislature in passing the act . . . .").

149. Stockton & Visalia R.R. Co. v. Common Council of Stockton, 41 Cal. 147, 158 (1871) ("[W]e are not here to pass upon the motives of the authors of the statute. Though 'corruption may invade the halls of legislation, and the interests of the people be betrayed by their chosen representatives' . . . the constitutional authority of these functionaries to enact this statute would, nevertheless, be precisely as broad and deep in its measure as though the Act in question were admitted to have found its inspiration in the wisest statesmanship and the purest public virtue."); *see also* Werner v. S. Cal. Assoc. Newspapers, 216 P.2d 825, 830 (Cal. 1950) ("[A] judiciary must judge by [the] results, not by the varied factors which may have determined legislators' votes." (quoting Daniel v. Fam. Sec. Life Ins. Co., 336 U.S. 220, 224 (1949) (other citation omitted))).

150. *See* Platte & Denver Canal & Milling Co. v. Dowell, 30 P. 68, 71 (Colo. 1892) ("Courts will not presume dishonest or improper motives on the part of legislative bodies.").

151. Carroll v. Socony-Vacuum Oil Co., 68 A.2d 299, 306 (Conn. 1949) ("'[A] statute must be tested by its operation and effect.' The motive of the legislature is immaterial." (quoting Near v. Minnesota, 283 U.S. 697, 708 (1931) (citations omitted))).

152. State *ex rel.* McVey v. Burris, 49 A. 930, 931 (Del. 1901) ("It is no function of this court to pass upon the motives of the legislature in the discharge of their duty.").

153. West v. Town of Lake Placid, 120 So. 361, 365 (Fla. 1929) ("The constitutionality of a statute, however, is not to be tested by influence brought to bear to secure its enactment, or by motives or purposes which may have actuated the Legislature.").

Georgia,[154] Hawaii,[155] Idaho,[156] Illinois,[157] Indiana,[158] Iowa,[159] Kansas,[160] Kentucky,[161] Louisiana,[162] Maine,[163] Maryland,[164] Massachusetts,[165] Michigan,[166]

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154. Clements v. Powell, 116 S.E. 624, 625 (Ga. 1923) ("We are not at liberty to inquire into the motives of the Legislature. The courts will conclusively presume that no general laws are ever passed, either through want of information on the part of the Legislature, or because it was misled." (citations omitted)).

155. State v. Bunn, 440 P.2d 528, 536 (Haw. 1968) ("In determining the constitutional validity of Act 48, the motivation of the Legislature in enacting it, or its assumption as to its efficacy in producing more convictions, is immaterial. What is material is the actual action which the Legislature took.").

156. Blaine Cnty. v. Heard, 45 P. 890, 890 (Idaho 1896) ("[I]t [is] not the province of the court to inquire, through the medium of the journals or otherwise, into the motives which prompted the legislature, or any member or members thereof, in the enacting of a law." (citing Wright v. Kelly, 43 P. 565 (Idaho 1895))).

157. People *ex rel.* Woodyatt v. Thompson, 40 N.E. 307, 312 (Ill. 1895) ("Nor can the courts inquire into the motives which may have moved the general assembly to enact the statute in question, making the apportionment as it was made.").

158. Wright v. Defrees, 8 Ind. 298, 302–03 (1856) ("The powers of the three departments are not merely equal,–they are exclusive, in respect to the duties assigned to each. They are absolutely independent of each other. It is now proposed that one of the three powers shall institute an inquiry into the conduct of another department, and form an issue to try by what motives the legislature were governed in the enactment of a law. If this may be done, we may also inquire by what motives the executive is induced to approve a bill or withhold his approval; and, in case of withholding it corruptly, by our mandate compel its approval. To institute the proposed inquiry would be a direct attack upon the independence of the legislature, and a usurpation of power subversive of the constitution.").

159. Miners' Bank of Dubuque v. United States, 1 Greene 553, 565 (Iowa 1848) (investigating legislative motives would "extend the jurisdiction of the courts, from expounding the law as they find it, to decisions of what the law should be, a doctrine repudiated by all enlightened courts").

160. Campos v. Garden City Co., 201 P.2d 1017, 1019 (Kan. 1949) ("Courts do not inquire into the motive or wisdom of legislation. Such considerations are solely the province of the lawmakers.").

161. Louisville & Jefferson Cnty. Metro. Sewer Dist. v. Joseph E. Seagram & Sons, Inc., 211 S. W.2d 122, 125 (Ky. 1948) ("It is firmly settled that the courts will not inquire into motives which impel or the expediency or wisdom of legislative or administrative action, for that does not affect its legality or validity." (citing O'Bryan v. Highland Apt. Co., 128 Ky. 282 (1908) (other citations omitted))).

162. State *ex rel.* Blaise v. City of New Orleans, 76 So. 244, 245 (La. 1917) ("It is no longer an open question that the motives which may induce the Legislature to pass a law are beyond judicial inquiry." (citations omitted)), *superseded on other grounds by statute*, 1918 La. Acts No. 27 (codified at La. Stat. Ann. § 33:4731–32), *as recognized in* State *ex rel.* Civello v. City of New Orleans, 97 So. 440, 445 (La. 1923).

163. Inhabitants of Skowhegan v. Heselton, 102 A. 772, 773 (Me. 1917) ("The motive of the framers to discriminate against a certain class, which does not appear from the language of the ordinance or statute, will not make the enactment void or unconstitutional." (citation omitted)).

164. Mayor of Balt. v. State *ex rel.* Bd. of Police, 15 Md. 376, 461 (1860) ("[W]hile the motives of the Legislature can have no effect upon the efficiency of the laws, neither can they be regarded by the judiciary when testing their power to pass them.").

165. Paine v. City of Boston, 124 Mass. 486, 490 (1877) ("For, although the circumstances surrounding and accompanying the passage of the order may be given in evidence, it does not by any means follow that the motives, reasons and considerations which operated upon the minds of the members of the council to induce them to vote for an order which partakes so much of the character of legislation, are competent or proper.").

166. People v. Marxhausen, 171 N.W. 557, 575 (Mich. 1919) ("While we may not inquire into the intent of the legislator, we are bound to ascertain the legislative intent; and this we must determine by what is done by the Legislature as an entity.").

Minnesota,[167] Mississippi,[168] Missouri,[169] Montana,[170] Nebraska,[171] Nevada,[172] New Hampshire,[173] New Jersey,[174] New Mexico,[175] New York,[176] North

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167. Jewell v. Weed, 18 Minn. 272, 277 (1872) ("Being the act of the legislature passed, (so far as appears) in compliance with the constitution, reasons too plain to warrant mention forbid this court to inquire into the motives which prompted the action of those who promoted it, or of the legislature by which it was passed. *Having passed*, it is *law*, and nothing in the history of its origin or passage can furnish any reason why the *courts* should not execute it.").

168. Pagaud v. State, 13 Miss. 491, 497 (1845) ("The legislative intent can be deduced from the legislative acts alone. In construing statutes, courts may look to the history and condition of the country as circumstances from which to gather the intention. Testimony to explain the motives which operated upon the law-makers, or to point out the objects they had in view, is wholly inadmissible. It would take from the statute law every semblance of certainty, and make its character depend upon the varying and conflicting statements of witnesses."). The principle here is particularly dangerous because it can be applied in other contexts, too. For example, if a court finds that the voters elected a particular candidate or supported a particular referendum because they were misinformed, influenced improperly, or had what the court considered an evil motive (like preventing mass immigration or criminalizing abortion, take your pick), the court could set aside that election or referendum to protect the people from themselves. *See* Paul Kirby & Nick Thorpe, *Romania's Cancelled Presidential Election and Why It Matters*, BBC (Dec. 6, 2024), https://www.bbc.com/news/articles/cx2yl2zxrq1o [https://perma.cc/8EZG-TZJK]. Whatever that court would claim to be vindicating, it's not democracy.

169. State *ex rel*. Blakeman v. Hays, 49 Mo. 604, 607–08 (1872) ("The motives which actuated the law-makers in the passage of the act, we are precluded from examining or looking into. The Legislature is a co-ordinate branch of the State government, and in the enactment of laws is entirely independent of the judiciary; and if the laws are otherwise legal, the courts have no power to annul or set them aside on the ground that the members acted from improper or unlawful views.").

170. State v. Safeway Stores, 76 P.2d 81, 85 (Mont. 1938) ("It is enough for our decision if the legislation under review was passed in the exercise of an admitted power of government . . . ." (quoting Bunting v. Oregon, 243 U.S. 426, 437 (1917) (other citations omitted))).

171. Bradshaw v. City of Omaha, 1 Neb. 16, 22 (1871) ("It is easy in any of these cases for an individual to charge the legislature with having acted improperly and from wrong motives; and if the courts can enter upon a consideration of such questions, they may easily draw within their jurisdiction the whole legislative power of the State, and set aside the laws from their own views of the facts, when they find themselves differing with the legislature as to what is proper, just and politic. One coordinate department of the government would thus be made subordinate to another, which would exercise a supervisory power, limited only by its own discretion.").

172. City of Reno v. Stoddard, 167 P. 317, 319 (Nev. 1917) ("The motives of the Legislature are not subject to judicial inquiry.").

173. *In re* Farnum, 51 N.H. 376, 378 (1871) ("We are not, however, to inquire into the motives of the legislature, or to judge of the wisdom of their acts. Our plain and simple duty is, to declare and apply the law . . . .").

174. Two Guys From Harrison, Inc. v. Furman, 160 A.2d 265, 279 (N.J. 1960) ("If a legislator votes for a measure to further some undisclosed, invalid purpose, he is accountable to his conscience alone. The Judiciary may not interfere with the exercise of lawful power upon the assumption that a wrongful purpose caused it to be exerted." (citing McCray v. United States, 195 U.S. 27, 54 (1904))).

175. State v. Pate, 138 P.2d 1006, 1010 (N.M. 1943) ("The courts do not inquire into the motives of the legislature.").

176. Bacon v. Miller, 160 N.E. 381, 384 (N.Y. 1928) ("With the motives which actuated the board of aldermen we have nothing to do at all events.").

Carolina,[177] North Dakota,[178] Ohio,[179] Oklahoma,[180] Oregon,[181] Pennsylvania,[182] Rhode Island,[183] South Carolina,[184] South Dakota,[185] Tennessee,[186] Texas,[187]

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177. People *ex rel.* Van Bokkelen v. Canaday, 73 N.C. 198, 226 (1875) ("It is the effect of the act and not the intention of the legislature which renders it void." (emphasis omitted) (citing Jacobs v. Smallwood, 63 N.C. 112 (1869))).

178. State v. Wallace, 187 N.W. 728, 732 (N.D. 1922) ("[C]ourts are not to inquire as to the motive of the Legislature . . . ." (citations omitted)).

179. State *ex rel.* Evans v. Dudley, 1 Ohio St. 437, 450–51 (1853) ("[A]s to the manner the law under consideration was passed through the legislative body[,] it is only necessary to say that such considerations cannot be permitted to influence judicial action. The members of that body were responsible for their official conduct, to the people that elected them, but not to the judicial tribunals. The only question that can here arise, is one of constitutional power. If that is found to exist, however, much they may have abused the confidence reposed in them, it can in no degree justify a court in usurping power to remedy the evils they may have committed.").

180. Atchison, Topeka & Santa Fe Ry. Co. v. State, 113 P. 921, 923 (Okla. 1911) ("No human government can be devised in which powers must not be somewhere reposed which may be abused. It is not irrational to hold that, when a legislative body has put forth a bill meaning to do so, and that bill has been duly authenticated in the prescribed manner, then the common safety of law-abiding citizens requires that the court should respect it as law, without inquiring into the modes of its passage. It is this consideration which lies at the foundation of the rule everywhere recognized, that no law can be impeached for fraudulent motives actuating the legislators . . . ." (quoting Webster v. City of Little Rock, 44 Ark. 536, 548 (1884))) (overruling aberrant cases which failed to follow the rule).

181. Stoppenback v. Multnomah Cnty., 142 P. 832, 837 (Or. 1914) ("Whatever reason prompted the passage of the statute or prevented an exercise of the referendum power with respect thereto are legislative questions, and not subject to inquiry by the judicial department, the duties of which are limited to a consideration of the fundamental law involved.").

182. Sunbury & Erie R.R. Co. v. Cooper, 33 Pa. 278, 283 (1859) ("However far the legislature may depart from the right line of constitutional morality, we have no authority to supervise and correct their acts on the mere ground of fraudulent or dishonest motives. We know of no such check upon legislation, and would not desire to see such a one instituted. The remedy for such an evil is in the hands of the people alone, to be worked out by an increased care to elect representatives that are honest and capable. If the judiciary have such authority, then every justice of the peace is competent to sit in judgment upon every act of legislation which disorderly moralists or knavish or ignorant anarchists may choose to charge as fraudulent.").

183. Gorham v. Robinson, 186 A. 832, 837 (R.I. 1936) ("That we do not believe that any law, the constitutionality of which is brought in question before us, is in accordance with sound principles of good government, cannot justify this court in holding it unconstitutional. And, as Judge Cooley has rightly said, '[t]he validity of legislation can never be made to depend on the motives which have secured its adoption, whether these be public or personal, honest or corrupt.' These are matters for the electorate to consider, but not for this court." (citation omitted)).

184. State v. Cardozo, 5 S.C. 297, 312 (1874) ("So far as it implies any wrong or improper motive on the part of the Legislature in the particular enactment, it is beyond the control of the judicial department. It cannot examine into the inducements to any act. Public and proper motives are alone to be attributed to the Legislature.").

185. McFarland v. Barron, 164 N.W.2d 607, 611 (S.D. 1969) ("[I]f a statute appears on its face to be constitutional and valid, we may not inquire into the motives of the legislature.").

186. Williams v. City of Nashville, 15 S.W. 364, 366 (Tenn. 1891) ("If the act in question is unwise and oppressive, the bill may be remedied by repeal or amendment. The courts have nothing to do with the policy of legislation, nor the motives with which it is made." (citations omitted)).

187. *See* Anderson Cnty. v. Hous. & Great N. R.R. Co., 52 Tex. 228, 239 (1879) ("It is not for the courts to impute improper motives to the Legislature.").

Utah,[188] Vermont,[189] Virginia,[190] Washington,[191] West Virginia,[192] Wisconsin,[193] and Wyoming.[194]

Yet the Court in *Arlington Heights* abandoned this deeply rooted principle against examining legislative motive. The principle sounds in the separation of powers and the very concept of a limited and restrained judiciary. The risk of judicial usurpation under *Arlington Heights* is simply too high. It is at odds with separation-of-powers principles and with a previously unbroken and unanimously held practice of respecting the legislative power by declining to entertain inquiries into why the legislature did what it did.

B. After Arlington Heights

Even after opening the door in *Arlington Heights*, the Court continued to come back to the old principle in other contexts.

In *City of Erie v. Pap's A.M.*, the Court upheld an ordinance banning nude dancing against a First Amendment challenge.[195] In finding a legitimate government end toward which the ban was aimed, the Court upheld the measure while observing that "[r]espondent's argument that the ordinance is 'aimed' at suppressing expression through a ban on nude dancing" based on public statements by the city attorney that it "was not intended to apply to 'legitimate' theater productions . . . is really an argument that the city council also had an illicit motive in enacting the ordinance."[196] Even if the council subjectively had that motive, the Court's duty was to disregard such possibilities and rule based on the ordinance

188. State v. Carman, 140 P. 670, 672 (Utah 1914) ("[W]hat view the Legislature may have entertained is wholly immaterial to us . . . . The question we must solve is: What is the law? And, when we have solved that question, the reason why it was made the law, while perhaps interesting, is without any force.").

189. Lucia v. Vill. of Montpelier, 15 A. 321, 324 (Vt. 1888) ("And here it may be said that as to the legislative acts and discretion of the higher legislative bodies the motives and the intent of individual legislators are not subject-matter for judicial inquiry.").

190. Meade v. Commonwealth, 43 S.E.2d 858, 862 (Va. 1947) ("We are not, however, called upon to pass upon the reasons for the rule, or the wisdom of the law. A lack of good reason may be ground for the legislature to change the law; but we must construe the law as it is."), *overruled on other grounds by* Brown v. Commonwealth, 292 S.E.2d 319 (Va. 1982).

191. Ettor v. City of Tacoma, 106 P. 478, 481 (Wash. 1910) ("We cannot inquire into the motive of the Legislature. It is enough that it had the power to repeal the old law, and has exercised it."), *rev'd on other grounds*, 228 U.S. 148 (1913).

192. Slack v. Jacob, 8 W. Va. 612, 630 (1875) ("Were acts of the Legislature subject to be impeached and declared void because the courts might deem the reasons or motives of their enactment mistaken or unsatisfactory, there would be but little certainty as to the validity of statutes upon any subject, and as little security to the rights of property or other things dependent thereon.").

193. State *ex rel.* Klefisch v. Wisc. Tel. Co., 195 N.W. 544, 548 (Wisc. 1923) ("[T]he motives which prompted the Legislature to exercise its power in this respect are not subject to judicial review, approval, or condemnation." (citations omitted)).

194. Rasmussen v. Baker, 50 P. 819, 828 (Wyo. 1897) ("Whatever the actual purpose was, even if there existed at that time a misconception of the provision, it must bow to the supremacy of the words themselves. They constitute the only safe and reliable index of the intent and purposes of the convention and the people.").

195. 529 U.S. 277, 283 (2000).

196. *Id.* at 292.

itself and any proper governmental ends toward which it could rationally be oriented.[197]

Similarly, in administrative law, courts look to see if the record supports the conclusion as stated by the agency.[198] If there appears to be a discrepancy or outside influence, the court will still affirm an action if it could have been taken on the record, regardless of the 'actual' motive.[199]

So too for legislative immunity, a closely related doctrine which prevents individual legislators from being sued for harms caused by their legislative acts. Writing for a unanimous Court, Justice Thomas explained that whether an act is legislative cannot be determined by motives, and that the immunity doctrine would be a paper tiger if a plaintiff could avoid dismissal simply by alleging illicit motive.[200] The Court continued, "it is simply 'not consonant with our scheme of government for a court to inquire into the motives of legislators.'"[201]

The religious context reveals similar reliance on the old rule after taking a bad trip into legislative motive with the *Lemon* test. *Lemon v. Kurtzman*[202] attempted to create a "grand unified theory"[203] of the Establishment Clause by only upholding government action when (1) the policy has a secular legislative purpose, (2) it does not have the principle or primary effect of advancing or inhibiting religion, and (3) it does not foster an excessive entanglement with religion.[204] While the first prong seems to indicate the ends toward which the statute is directed, application of the *Lemon* test eventually fell into the purpose-motive trap,[205] with the court treating it as a legislative motive element.[206]

Wallace v. Jaffree exemplifies the old motive regime in Establishment Clause cases. There, Alabama had passed a law which added "or voluntary prayer" to an existing law which authorized a one-minute moment of silence during the school day for "meditation."[207] No one disputed that there was "nothing wrong" with having a minute of silence during the day, and the addition of "or voluntary

197. *Id.* This is consistent with common, sensible judicial review principles, which continue today. *See* Walt Disney Parks & Resorts U.S., Inc. v. Desantis, 716 F. Supp. 3d 1216, 1226–27 (N.D. Fla. 2024).

198. *See* Sierra Club v. Costle, 657 F.2d 298, 407–10 (D.C. Cir. 1981).

199. *See id.*

200. Bogan v. Scott-Harris, 523 U.S. 44, 54 (1998).

201. *Id.* at 55.

202. 403 U.S. 602 (1971), *abrogation recognized by* Kennedy v. Bremerton Sch. Dist., 597 U.S. 507, 534 (2022).

203. *Kennedy*, 597 U.S. at 534.

204. *Lemon*, 403 U.S. at 612–13.

205. *See infra* notes 255–65 and accompanying text (on the slippery distinction between purpose and motive).

206. *See* Wallace v. Jaffree, 472 U.S. 38, 56 n.42 (1985) ("The purpose prong of the *Lemon* test asks whether government's actual purpose is to endorse or disapprove of religion." (quoting Lynch v. Donnelly, 465 U.S. 668, 690 (1984) (O'Connor, J., concurring))).

207. *Id.* at 40.

prayer" to the statute did not change the school's policy an iota because students were already allowed to pray during the moment of silence.[208]

The Court looked to a statement that the bill's sponsor put into the legislative record that the law allowing for meditation or prayer was "'an effort to return voluntary prayer' to the public schools."[209] The sponsor later testified that he had no other motive, and the state did not present evidence of any other motive either.[210]

The Court made clear that the motive made the difference: "The legislative intent to return prayer to the public schools is, of course, quite different from merely protecting every student's right to engage in voluntary prayer during an appropriate moment of silence during the schoolday."[211] Therefore, the statute violated the First Amendment, and even would have done so if they were convinced that the addition of the words "or voluntary prayer" was purposeless.[212]

While it did not affect the free exercise of any students or establish any particular state religion, the motives behind the provision signaled that the state thought prayer was a good thing—and that the Constitution could not brook, even if the law had no effect at all.[213]

In the end, perhaps recognizing it was a failed and unworkable experiment, the Court abandoned the *Lemon* test.[214]

The Court took a stab at legislative motive under the Free Exercise Clause as well. It cited *Arlington Heights* as it tried to wrestle with the tricky issue of what laws are neutral.[215] In analyzing a law which, in response to the creation of a Santeria church in the town, banned certain kinds of animal butchering that included Santeria ritual sacrifices, the Court endorsed the search for "the city council's object."[216] If they enacted the ordinance "because of" rather than "in spite of" the effect on religious practice, that would result in strict scrutiny, even if the law was otherwise neutral on its face.[217] The record included many hostile statements by members of the council, the public, and the city attorney.[218] This was an alternative theory which supported the Court's finding that the law was not neutral because the ordinances "by their own terms" targeted religious exercise, with provisions "gerrymandered with care to proscribe religious killings of animals but to exclude almost all secular killings."[219]

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208. *See id.* at 41.
209. *Id.* at 56–57.
210. *Id.* at 57.
211. *Id.* at 59.
212. *See id.* at 59–60.
213. *Id.* at 60.
214. *See* Kennedy v. Bremerton Sch. Dist., 597 U.S. 507, 534 (2022) (acknowledging abandonment of the *Lemon* test).
215. Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah, 508 U.S. 520, 540 (1993).
216. *Id.*
217. *See id.* at 540, 546.
218. *Id.* at 541–42.
219. *Id.* at 542. The Court has not since definitively rejected the use of legislative motive in the free exercise context, but its doubt remains ongoing and recent Free Exercise cases have not turned on that question. *See, e.g.,* Masterpiece Cakeshop v. Colo. Civ. Rts. Comm'n, 584 U.S. 617, 636 (2018)

Justice Scalia took direct issue with the examination of legislative motive of this sort because it was out of step with our history and the text of the constitution.[220] It was unprincipled because the law, in his view, is embodied in the text itself.[221] Whether the law violates the substantive provisions of the constitution must be based on the law, not the subjective motivations of those who voted for it.[222] Chief Justice Rehnquist joined the opinion.[223]

Amid so great a cloud of witnesses, it is perhaps somewhat surprising how badly *Arlington Heights* missed the mark.

IV. WHY *COALITION FOR TJ* SHOULD MARK THE BEGINNING OF THE END OF *ARLINGTON HEIGHTS*

For the reasons highlighted by *TJ* and other cases attempting to make sense of the doctrine, *Arlington Heights* can and should be abandoned on both legal and normative grounds.

A. Legal Argument – Stare Decisis Analysis

Dobbs v. Jackson Women's Health Organization[224] most comprehensively discusses how the Court today decides stare decisis questions. The *Dobbs* factors are: (1) the nature of the error, (2) the quality of the reasoning, (3) workability, (4) disruptive effects on other areas of the law, and (5) reliance interests.[225] All five factors weigh decisively in favor of overruling *Arlington Heights*.

1. Nature of the Error

The nature of the error refers to the significance to and context of the issue.[226] Decisions of constitutional caliber that affect major issues and are difficult to correct in the political process (without a constitutional amendment) will receive

("Members of the Court have disagreed on the question whether statements made by lawmakers may properly be taken into account in determining whether a law intentionally discriminates on the basis of religion. . . . In this case, however, the remarks were made . . . by an adjudicatory body deciding a particular case."); *Kennedy*, 597 U.S. at 526 (involving a policy which by its terms directly targeted religious practice); Fulton v. City of Philadelphia, 593 U.S. 522, 533 (2021) (deciding case "under the rubric of general applicability"); Espinoza v. Mont. Dep't of Revenue, 591 U.S. 464, 479 (2020) (deciding case based on direct targeting of religious status); Carson v. Makin, 596 U.S. 767, 780 (2022) (same); Trinity Lutheran Church of Columbia, Inc. v. Comer, 582 U.S. 449, 462 (2017) (same); Roman Cath. Diocese of Brooklyn v. Cuomo, 592 U.S. 14, 17 (2020) (deciding case based on direct categorization of churches); Tandon v. Newsom, 593 U.S. 61, 62–63 (2021) (same).

220. *Lukumi*, 508 U.S. at 557–58 (Scalia, J., concurring).

221. *See id.*

222. *See id.* at 557–59 (citing Edwards v. Aguillard, 482 U.S. 578, 636–40 (1987) (Scalia, J., dissenting)) (explaining how a law that fails to inhibit free exercise does not inhibit free exercise, while one that does, does, regardless of motive).

223. *Id.* at 557.

224. 597 U.S. 215 (2022).

225. *Id.* at 268.

226. *See id.* at 268–69 (comparing the constitutional significance of *Plessy v. Ferguson* to that of *Roe v. Wade*).

less staying power due to the greater deleterious effects of judicial error.[227] On the flipside, the more narrow the effects of the decision are and the closer it is to an "arcane corner of the law," the more deference it will receive.[228] Additionally, when a decision upends the proper allocation of authority within our republic, such decisions "[should] be[] overruled at the earliest opportunity[.]"[229] Such is the case here, as the decision improperly usurped the role of evaluating the motives of legislators from the voters and placed it in the hands of judges. It also threw out of whack the balance between the legislature and the judiciary by upending the presumption of good faith and constitutionality that applies to legislative acts.

Add to this the nature of what is being overturned. Where the Court refers to internal procedures or modes of decision, so-called "interpretive" or "methodological precedent,"[230] the substantive rights of parties are not directly affected, and prior cases settling particular statutes need not have their results overturned for a new test to be applied on a forward-looking basis.[231]

Such is the case here, where *Arlington Heights* presents a method of identifying equal protection violations. The strength of precedent and justification for hewing to the *Arlington Heights* framework is thus comparatively light. To the extent that it holds that the Equal Protection Clause contains a substantive right to be free from laws passed with discriminatory motive despite not otherwise violating equal protection, traditional stare decisis analysis decisively supports overruling such a holding as an atextual outgrowth of the poor reasoning described below.

2. Quality of the Reasoning

The quality of the reasoning relates to the logical force of the decision.[232] Where a decision breaks from prior practice, commits logical error, lacks textual support, or relies on cases that do not support its conclusion, its force as precedent is weakened.[233]

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227. *See id.* (discussing the need for the Court to maintain the power to overrule cases that unfairly conflict with the Constitution's principles and values).

228. *Id.* at 268.

229. *Id.*

230. *See generally* Aaron-Andrew P. Bruhl, *Eager to Follow: Methodological Precedent in Statutory Interpretation*, 99 N.C. L. REV. 101 (2020) (describing the underappreciated role of methodological precedent regarding how courts make decisions and arguing that such precedent does exist and is followed to some extent). The adoption of a new test can potentially lead to the displacement of decisions based on that old test, but other stare decisis factors like reliance carry much more weight in the statutory context and in cases dealing with specific applications. *See* GARNER ET AL., *supra* note 96, at 31 (explaining that "when the Supreme Court overturns the standard that it had previously used . . . the results reached under the old standard" are not binding precedent (citing Seminole Tribe of Fla. v. Florida, 517 U.S. 44, 66–67 (1996); Planned Parenthood of Se. Pa. v. Casey, 947 F.2d 682, 691–93 (3d Cir. 1991))); *id.* at 79 ("[T]he *modes of analysis* that courts use in analyzing statutes or legal decisions influence judicial decision-making. Modes of analysis aren't binding on future courts in the same way as legal rules are.").

231. *Cf.* Kisor v. Wilkie, 588 U.S. 558, 622–26 (2019) (Gorsuch, J., concurring) (arguing for lesser *stare decisis* effect for "abstract default rule[s] of interpretative methodology that settles[] nothing of [their] own force").

232. *See Dobbs*, 597 U.S. at 269–70 (finding that *Roe* had not been grounded in "text, history, or precedent").

233. *See id.*

a. Textual Support

There is no textual basis on which to hang the contention that the Equal Protection Clause invalidates law enacted with bad motivations rather than laws that in fact deny equal protection by their operation.[234] Judges must apply the law as they find it. Under our system, positive law is promulgated through bicameralism and presentment, or through other democratic processes, depending on the government body. Provided those requirements are followed, it is not appropriate for the judicial branch to do anything other than analyze that law the same as any other law, regardless of how it came to be. The Court never explained how discriminatory motive affects the *protection* that the law gives, which is the textual hook it must hang its hat on.[235]

b. Precedent

The cases the *Arlington Heights* and *Washington v. Davis* Courts cited did not support the conclusions they reached. Further, the Court inadequately distinguished more relevant cases that pointed the other way. The result was an unworkable doctrine inconsistent with the rest of the law.

The biggest case the Court had to confront was *Palmer v. Thompson*.[236] In *Palmer*, the Court plainly stated the question posed in an equal protection challenge: "[T]he issue here is whether black citizens in Jackson are being denied their constitutional rights when the city has closed the public pools to black and white alike."[237] The Court continued, "Nothing in the history or the language of the Fourteenth Amendment nor in any of our prior cases persuades us that the closing of the Jackson swimming pools to all its citizens constitutes a denial of 'the equal protection of the laws.'"[238] While it was clear that the legislators did not want to operate integrated swimming pools, the Court was nonetheless bound by its inability to consider that in determining the constitutionality of the action. "[N]o case in this Court has held that a legislative act may violate equal protection solely because of the motivations of the men who voted for it."[239]

Even the dissenters agreed with this proposition. "A candidate may be defeated because the voters are bigots. A racial issue may inflame a community causing it to vote a humane measure down. The federal judiciary cannot become involved

234. *See* Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah, 508 U.S. 520, 558–59 (1993) (Scalia, J., concurring) (describing the Court's tradition of considering a law's effects—rather than the subjective motivations of the enacting legislature—when determining its validity and finding that an act adopted with "evil motives" that nonetheless "ineptly" failed to actually discriminate would not in fact violate the constitution).

235. *See* Vill. of Arlington Heights v. Metro. Hous. Dev. Corp., 429 U.S. 252, 264–68 (1977) (taking as given that disparate impact plus discriminatory motive amounts to denial of equal protection).

236. Palmer v. Thompson, 403 U.S. 217 (1971).

237. *Id.* at 226.

238. *Id.*

239. *Id.* at 224.

in those kinds of controversies. The question . . . is not what the motive was, put [sic] what the consequences are."[240]

The *Arlington Heights* Court sidestepped this principle by pointing to other cases that purportedly endorsed the use of motive,[241] but the Court in *Palmer* had it right. Only in *Washington v. Davis* did the Court (with the same nine justices that decided *Arlington Heights*) say, in dicta, that motive could be a legitimate factor.[242]

Cases the Court relied on related to discrimination by individuals in executive or judicial roles, where the assessment of motive is meaningful,[243] including in the employment context.[244] Others dealt with whether particular lines on district maps were in fact drawn on the basis of race rather than other factors and were not explainable in any other way.[245] Some merely pass on the actual effect of the laws[246] or grant unfettered discretion to government

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240. *Id.* at 236 (Douglas, J., dissenting); *id.* at 271 (Marshall, J., dissenting) (joined by Brennan & White, JJ.).

241. Vill. of Arlington Heights v. Metro. Hous. Dev. Corp., 429 U.S. 252, 265 (1977).

242. Washington v. Davis, 426 U.S. 229, 243 (1976).

243. *See* Strauder v. West Virginia, 100 U.S. 303 (1879) (considering the spirit of the Fourteenth Amendment alongside a West Virginia statute that "singled out and expressly denied" colored peoples' jury participation); Akins v. Texas, 325 U.S. 398, 403 (1945) (describing the "wide range of choice" enjoyed by the jury commissioners—who had been "appointed by the judge of the trial court"—in selecting a grand jury); Alexander v. Louisiana, 405 U.S. 625, 628–29 (1972) (discussing the State's responsibility to not "deliberately and systematically deny to members of his race the right to participate as jurors in the administration of justice"); Carter v. Jury Comm'n, 396 U.S. 320, 335–37 (1970) (discussing the wide range of choice left to commissioners); Cassell v. Texas, 339 U.S. 282, 287–90 (1950) (finding discrimination existed when commissioners have "exclude[d] all negroes whom they do not know to be qualified and who neither know nor seek to learn whether there are in fact any qualified to serve"); Patton v. Mississippi, 332 U.S. 463, 468–69 (1947) (dismissing the Mississippi Supreme Court's proportionality analysis in attempting to disprove systematic racial discrimination in jury selection); Smith v. Texas, 311 U.S. 128 (1940) (upholding the Fourteenth Amendment's prohibition on racial discrimination when selecting grand juries); Pierre v. Louisiana, 306 U.S. 354, 362 (1939) (describing the principles that entitle "every colored man . . . in the selection of jurors to pass upon his life, liberty, or property . . . shall be no exclusion of his race, and no discrimination against them because of their color"); Neal v. Delaware, 103 U.S. 370, 397 (1880) (upholding the constitutional provision that "no agency of the State", nor its "officers or agents[,]" may "deny any person within its jurisdiction the equal protection of the laws); Hill v. Texas, 316 U.S. 400, 404 (1942) (finding racial discrimination in contravention of the Equal Protection Clause in grand juror selection); Avery v. Georgia, 345 U.S. 559 (1953) (finding that the State of Georgia had failed to meet its burden to overcome a prima facie case of discrimination); Whitus v. Georgia, 385 U.S. 545 (1967) (finding similar circumstances to *Avery*, *supra*); Turner v. Fouche, 396 U.S. 346, 361 (1970) (same as *Avery*, *supra*); Eubanks v. Louisiana, 356 U.S. 584, 587 (1958) (reaffirming *Patton*, *supra*).

244. *See Davis*, 426 U.S. at 244 n.12 (listing cases in the public employment context that caused a disproportionate racial impact, amounting to violations of the Equal Protection Clause).

245. *See* Gomillion v. Lightfoot, 364 U.S. 339, 340–42 (1960) (striking down a map that drew an "uncouth twenty-eight-sided figure" which carved out almost every African American in Tuskegee after determining it was in fact drawn on racial lines); Wright v. Rockefeller, 376 U.S. 52, 58 (1964) (upholding majority-minority districts due to factual findings that they were not in fact drawn by race); Keyes v. Sch. Dist. No. 1, Denver, Colo., 413 U.S. 189 (1973) (school district boundaries).

246. Griffin v. Cnty. Sch. Bd. of Prince Edward Cnty., 377 U.S. 218 (1964) (Virginia shutting down government schools in one county denied equal protection vis-à-vis the rest of the state, but would not have if they had shut down all of them); Hunter v. Erickson, 393 U.S. 385 (1969); James v. Valtierra,

officials.[247] Others incorporated by reference factors which were explicitly discriminatory by their inevitable effect,[248] while some excessively entangled the state in explicit discrimination by private individuals, triggering state action.[249] In none of them was legislative motive necessary to make a finding of unconstitutionality.

It should be no surprise that the subjective motivations of some or even many legislators were bent toward evil ends when they passed laws that were in fact discriminatory. But in none of the cases the Court cited did the outcome of the case turn on legislative motivation—rather, either non-legislative action was at issue or the laws themselves *in fact*, by inevitable operation, denied equal protection or violated some other provision of the Constitution.

c. Scholarship

Investigation into the motivations of legislators was never going to work out—and the scholarly community knew it.

As in the abortion context, Professor John Hart Ely spoke prophetically when discussing the *Arlington Heights* regime.[250] "[A]nalyses that purport to test a classification against the purposes that 'actually' inspired it will necessarily be charades, invalidations on such grounds inevitably unconvincing."[251] He suggests that "the purpose that will most comfortably establish the rationality of a classification—that is, the purpose that fits its terms most closely—is most likely to be the purpose that generated it."[252] He continued, "[t]hus, far from its taking a court determined to uphold the statute at all costs to conclude that the purpose that is most helpful constitutionally is probably the one that inspired it, it would usually take a court hell-bent on invalidation to reach any other conclusion."[253] "I'm skeptical that a method of forcing articulation of purposes can be developed that will be both workable and helpful."[254]

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402 U.S. 137 (1971); Grosjean v. Am. Press Co., 297 U.S. 233 (1936) (law violates freedom of the press by basing tax on mere publication).

247. *See* Yick Wo v. Hopkins, 118 U.S. 356 (1886) (board deciding whether Chinese laundries can operate under standardless policy); Schnell v. Davis, 81 F. Supp. 872 (S.D. Ala. 1949), *aff'd per curiam* 336 U.S. 933 (1949) (arbitrary power to elections officials under indeterminate standard on a literacy test for voting).

248. *See* Guinn v. United States, 238 U.S. 347 (1915) (grandfather clause for voting); Lane v. Wilson, 307 U.S. 268 (1939) (grandfather clause referring to election held under the illegal grandfather clause in *Guinn*).

249. *See* Reitman v. Mulkey, 387 U.S. 369, 381 (1967) (striking down constitutional amendment promoting private discrimination).

250. *See* Dobbs v. Jackson Women's Health Org., 597 U.S. 215, 278 (2022) (citing John Hart Ely, *The Wages of Crying Wolf: A Comment on* Roe v. Wade, 82 YALE L.J. 920 (1973)); JOHN HART ELY, DEMOCRACY & DISTRUST 16–18, 125–131, 136–145 (1980).

251. ELY, *supra* note 250, at 126.

252. *Id.* at 126–27.

253. *Id.* at 127.

254. *Id.* at 129.

The word "purpose" deserves much of the blame for where the *Arlington Heights* Court went wrong because it is a slippery legal term.[255] "Purpose" means "end," as well as "intention."[256] Past references to legislative purpose must be in the "end" sense. This usage goes back to the earliest days of the republic.[257]

Professor Ely addressed the purpose-motive confusion.[258] His main objection is that courts have used the terms interchangeably and turned them into mere signals of whether they approve of the examination of motive or not.[259]

Ely rightly criticized prior attempts to distinguish purpose and motive by their proximity to the goals individual legislators believed they were pursuing by their votes.[260] That distinction would lead to unmanageable standards: "Although I would think the effort ill-advised, one might attempt to work out a detailed calculus for determining when to refer to, and how much weight to attach to, the various evidentiary sources."[261] Sources include "the terms of the law in issue, those effects which must have been foreseen by the decision makers, the historical context in which the law was passed, and the legislative history and other recorded statements of intention."[262] But even if such distinctions are possible in theory, there is "no law which would prevent a commentator from labeling those motivations which can be inferred in accordance with his calculus 'purposes' and calling all others 'motives.'"[263]

Sound familiar? *Arlington Heights* adopts a number of these unworkable standards later. Nonetheless, Ely was right to say that courts sifting through evidence of this sort does not solve the "paradox" of the Supreme Court's use of the term "purpose."[264] That is because purpose is something completely different.

Purpose is generally easy to discover. For example, the purpose of a tax is to contribute to the fisc. The purpose of a time limit on appeal is to close off appeal after a certain time.[265] Purpose then, is the specific objective end toward which a

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255. *See* Robert A. Sedler, *The Governmental Interest Approach to Choice of Law: An Analysis of Reformulation*, 25 UCLA L. Rev. 181, 197 (1977) (discussing the distinction between purpose and motive as it relates to evaluating the legislative purpose of policies in performing interest analysis for choice of law purposes).

256. *Purpose*, BLACK'S LAW DICTIONARY (4th rev. ed. 1968).

257. *See, e.g.* McCulloch v. Maryland, 17 U.S. 316, 324 (1819) ("The true view of the subject is, that if it be a fit instrument to an *authorized purpose*, it may be used, not being specially prohibited." (emphasis added)).

258. *See* John Hart Ely, *Legislative and Administrative Motivation in Constitutional Law*, 79 YALE L.J. 1205, 1217 (1970) [hereinafter Ely, *Legislative Motivation*] (describing the distinction between legislative "motive" and "purpose," particularly as employed by "commentators and lower courts").

259. *Id.*

260. *See* Ira M. Heyman, *The Chief Justice, Racial Segregation, and the Friendly Critics*, 49 CALIF. L. REV. 104, 115–16 (1961) (evaluating "purpose" versus "motives" of legislatures in the context of public-school segregation).

261. Ely, *Legislative Motivation*, *supra* note 258, at 1220.

262. *Id.*

263. *Id.*

264. *Id.* at 1221.

265. ANTONIN SCALIA & BRYAN A. GARNER, READING LAW: THE INTERPRETATION OF LEGAL TEXTS 34–35 (2012).

law is oriented. This is the "ends" part of the various tests in constitutional tiers of scrutiny analysis, which explains the presence of the term in constitutional litigation.

At bottom, the question is not what the motive was, but whether the legislative body had the authority to adopt the law and whether the law in fact denies equal protection by its operation. If it does not and the legislature does have the authority, then it is for the voters, not the court, to respond to any motives they infer.

3. Workability

Workability examines whether the rule in question can be understood and applied in a consistent and predictable manner.[266] As explored above, *Arlington Heights* fails this test at every turn.[267] When a test "is difficult to apply and yields unprincipled results" and the "'crucible of litigation' . . . has produced only consistent unpredictability," there is no reason to continue the "sisyphean task of trying to patch together" the doctrine.[268]

Justice Gorsuch's compelling concurrence in *Loper Bright*, rooted in a deep common law understanding of stare decisis, reinforces the truth that some judicial experiments fail.[269] There, overruling *Chevron* made sense because it "represent [ed] a grave anomaly when viewed against the sweep of historic judicial practice."[270] *Chevron* was overruled in part because "[t]hroughout its short life, this Court has been forced to supplement and revise *Chevron* so many times that no one can agree on how many 'steps' it requires, nor even what each of those 'steps' entails."[271] *Chevron*'s malleable test caused the "search for ambiguity [to] devolve[] into a sort of Snark hunt."[272] *Arlington Heights* has had numerous supplements and revisions as well, as the Court has tried and failed to square it with the rest of judicial practice.[273]

A relatively recent development in the political question doctrine adds more color to this issue as well. In addition to the "textually demonstrable commitment to a coordinate branch" of government standard,[274] the Court recently gave teeth to the category of "no judicially manageable standard."[275] For partisan redistricting, the Court determined that decisions regarding appropriate limits on gerrymandering are best left to the legislatures, since various legitimate factors could lead to the adoption of any particular map and the baseline issue would be

266. Dobbs v. Jackson Women's Health Org., 597 U.S. 217, 280–81 (2022).

267. *See supra* Section II.D.

268. Wallace v. Jaffree, 472 U.S. 38, 112 (1985) (Rehnquist, J., dissenting) (encouraging the Court to abandon the unworkable *Lemon* test).

269. Loper Bright Enters. v. Raimondo, 603 U.S. 369 (2024).

270. *Id.* at 448 (Gorsuch, J., concurring).

271. *Id.* at 436.

272. *Id.* at 437.

273. *See supra* Sections I.A, II.D.

274. *See, e.g.*, Nixon v. United States, 506 U.S. 224, 229, 237–38 (1993) (holding that the Senate's trial of impeachments is a nonreviewable political question).

275. Rucho v. Common Cause, 588 U.S. 684, 696, 702 (2018).

intractable.[276] Difficulties have also arisen in the context of racial gerrymanders under the Fifteenth Amendment.[277] A similar dynamic is at play in *Arlington Heights*, where the evaluation of mixed motives among a large body of legislators is inherently difficult to weigh and quantify. Where the legislature is working within the bounds of their power, evaluating motives is best left to the voters.[278]

4. Effect on Other Areas of the Law

When a decision's application disrupts other settled areas of law, the purpose of stare decisis is not served by following the decision.[279] Such disruptions suggest that the decision may have been incorrect because it is out of step with the broader legal environment. Overruling decisions that disrupt other areas of law increases stability, rather than reducing it.[280] And the greater the disruption, the greater the importance of overruling the aberrant case.

With open season on legislative motive, no law is safe from ad-hoc nullification in an *Arlington Heights* claim.[281] Laws from every sector have been questioned by advocates and activists based on alleged illicit motive—motive unmoored from the question of whether the laws in fact deny equal protection by their operation.[282]

Arlington Heights has weakened various fundamental legal principles. It has diluted the strict standard of facial constitutional challenges, leading to the absurdity that when presented with two facially identical laws, one can be *facially* valid and the other not.[283] The standard has disregarded the doctrine of constitutional avoidance[284] and weakened other presumptions in favor of legality.[285] It flies in the face of the long- and still-acknowledged rule against investigating

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276. *Id.* at 715–16.

277. *See* Alexander v. S.C. State Conf. of the NAACP, 602 U.S. 1, 40 (2024) (Thomas, J., concurring in part) ("There are no judicially manageable standards for resolving claims about districting, and, regardless, the Constitution commits those issues exclusively to the political branches. . . . The Court's insistence on adjudicating these claims has led it to develop doctrines that indulge in race-based reasoning inimical to the Constitution.").

278. *See supra* Part III; *e.g.*, notes 141, 182–83 and accompanying text.

279. *See* Dobbs v. Jackson Women's Health Org., 597 U.S. 217, 286–87 (2022).

280. *See id.*

281. *Cf. id.* at 286 ("[N]o legal rule or doctrine is safe from ad hoc nullification by this Court when an occasion for its application arises in a case involving state regulation of abortion.") (internal citation omitted).

282. *See supra* Section II.D.

283. *See supra* Section II.D.2.

284. *See* United States v. Salerno, 481 U.S. 739, 744 (1987) ("A facial challenge to a legislative Act . . . must establish that no set of circumstances exists under which the Act would be valid."). Even accepting *Arlington Heights* as a given, the courts acknowledge that there is a circumstance which exists under which the act would be constitutional—if it had been enacted without impermissible motive—but strike the law down anyway.

285. The *Arlington Heights* standard is unique in that it admits that the law it invalidates is facially valid while facially striking it down.

legislative motive[286] and warps the application of the rules of appellate deference to factfinding.[287]

In opening the door to tell legislatures to reenact the same law,[288] it has encouraged the treatment of a coordinate branch of government with contempt and ridicule[289] and has created farcical claims in its wake.

One stark example bears mentioning. In Iowa, an evenly divided state supreme court declined to dissolve a permanent injunction against a heartbeat abortion law after *Roe v. Wade* was overturned.[290] Arguing that a heartbeat bill passed by both houses of the legislature and signed by the governor does not constitute law in Iowa, three justices claimed that "the legislature was enacting a hypothetical law" rather than an actual law of the state, and therefore the challenged statute could not take effect unless it was passed again with the requisite motivation.[291] The justices said that "[t]oday, such a statute might take effect . . . . But uncertainty exists about whether a fetal heartbeat bill would be passed today," and therefore the law was not actually the law.[292]

Three other justices pointed out the absurdity of this approach. Effectively, they explained, their colleagues thought that "[t]he legislature . . . didn't really mean it when they enacted the statute" and based their decision on their "view of [the] legislators' *motivations* when they pass[ed] [the] law[]."[293] They concluded that the heartbeat law "is an actual law. And contrary to [our] colleagues' assertion, the legislature does not need to 'reenact [the statute]' to demonstrate that it is an actual law."[294] When courts let legislative motivation in, there is no principle by which anyone can tell which laws on the books are real and which ones are not without asking a judge first.

Arlington Heights has abandoned the "basic premise of our legal order: that we are governed not by the shifting whims of politicians and bureaucrats, but by written laws whose meaning is fixed and ascertainable."[295] It has turned the courts of law into courts of lawfare for litigants who lost at the legislature and instead

286. *See supra* Part III.

287. *See supra* Sections II.D.1–2.

288. *See* Rebecca Aviel, *Second-Bite Lawmaking*, 100 N.C. L. REV. 947, 979–1001, 1012–13 (2022) (approving of the reenactment enterprise and proposing more adjustments to the motive inquiry).

289. *See generally* Louis S. Raveson, *Unmasking the Motives of Government Decisionmakers: A Subpoena for Your Thoughts*, 63 N.C. L. REV. 879 (1985) (arguing in favor of dragging lawmakers to court to testify about their motives in legislation).

290. Planned Parenthood of the Heartland, Inc. v. Reynolds, Iowa S. Ct. No. 22-2036, 2023 WL 4635932, at *2 (June 16, 2023) (opinion of Waterman, J.). The case was not an *Arlington Heights* challenge, but the acceptance of legislative motive opened the door for reasoning like this.

291. *Id.* at *4 (opinion of Waterman, J.).

292. *Id.*

293. *Id.* at *24 (opinion of McDermott, J.).

294. *Id.* at *14 (opinion of McDonald, J.).

295. Kisor v. Wilkie, 139 S. Ct. 2400, 2442 (2019) (Gorsuch, J., concurring).

turn to requesting judgments from courts that give them the appearance of politicization.[296]

As with the Court's abortion jurisprudence, "[w]hen vindicating a doctrinal innovation requires courts to engineer exceptions to longstanding background rules, the doctrine has failed to deliver the principled and intelligible development of the law that *stare decisis* purports to secure."[297]

5. Reliance

The reliance factor accords stronger staying power to rules which people rely on when arranging their affairs "where advance planning of great precision is most obviously a necessity," typically in contract or property law.[298] There is no such reliance here, since *Arlington Heights* is simply a test which purports to help identify equal protection violations. The intangible expectation that some judicial tools will continue to be available is not concrete reliance for stare decisis purposes.[299]

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Stare decisis does not support keeping *Arlington Heights* around any longer. The constant doctrinal adjustments and inconsistent results that occur each time *Arlington Heights* meets a new set of facts shows that the rule cannot achieve its goal with consistency. So the choices are to "continue to make up new [motive] rules" or to return "to the approach to judicial review that prevailed for most of our history."[300] The answer should be easy. "[I]f the rule of law means anything, it means that we are governed by the . . . words found in statutes and regulations, not by their authors' private intentions. This is a vital part of what it means to have 'a government of laws, and not of men.'"[301]

Like with legislative history, "anyone who thinks that by excluding legislative [motive] we will be excluding predictable results has not read the cases."[302] As Justice Cardozo once said, "when a rule, after it has been duly tested by experience, has been found to be inconsistent . . . there should be less hesitation in frank avowal and full abandonment."[303]

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296. *See* Cooper v. Harris, 581 U.S. 285, 335 (2017) (Alito, J., concurring) ("There is a final, often-unstated danger where race and politics correlate: that the federal courts will be transformed into weapons of political warfare.").

297. Dobbs v. Jackson Women's Health Org., 597 U.S. 215, 287 (2022) (internal quotation omitted).

298. *Id.* (internal quotation omitted).

299. *See id.* at 288–90 (perceptions about the law in the national psyche and possible implications for other precedents not before the court are not tangible reliance interests).

300. *See* Kisor v. Wilkie, 139 S. Ct. 2400, 2443 (2019) (Gorsuch, J., concurring).

301. *Id.* at 2441 (Gorsuch, J., concurring) (quoting Marbury v. Madison, 5 U.S. (1 Cranch) 137, 163 (1803)).

302. *See* SCALIA & GARNER, *supra* note 265, at 388.

303. BENJAMIN CARDOZO, THE NATURE OF THE JUDICIAL PROCESS 150 (1921).

B. Normative Argument

1. Textualism

For the textualists among us, there are strong reasons to abandon this legislative motive regime. Some of textualists' greatest objections to living constitutionalism and various other interpretive theories regard their squishiness and inability to ensure a consistent and known written law based on an objective standard.[304]

Besides being an intuitive methodology tied up with the very nature of written law,[305] textualism is also predicated on the idea that the "intent" of a legislature is reflected in the text and context of its enactments and nothing else.[306] Legislative history, indeed, was one of Justice Scalia's mortal enemies,[307] as was the notion that the law we are governed by is based on the motive of Congress rather than the meaning of Congress's enactments.[308]

This is part of the nature of legislative and democratic decision making generally. "The Legislature" is a corporate body, essentially a file folder that can only act with the consent its members. But it is nonetheless separate from them. In our system, the Legislature speaks with the force of law only through the bicameralism and presentment process or through the treaty power.[309] This means that for the Legislature to act, some combination of up to 536 people must come together for it to speak with the force of law. In such an arrangement, how can any unified intent be found other than the text that they all agreed on?[310] Speeches by individual legislators, then, as mere voters for one part of the process in which the corporate Legislature acts, mean nothing if they are not incorporated into the law that is the "supreme power" which speaks.

Textualists rely on the idea that if every legislator in both houses and the President shared an intent, even if they spoke in unison, if they do not write that intent down, it is not law.[311] In a government of written laws, and not of men, what can someone subject to the laws look to except what was enacted?[312]

A necessary part of this regime, then, is the idea that "The Legislature," which is the only entity with the power to make laws, cannot have any meaningful motive or intent other than the words that it speaks in enacted law. When evaluating the meaning and constitutionality of the law, all that judges can examine is if the Legislature had the power to make the enactment or not and whether the

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304. SCALIA & GARNER, *supra* note 265, at 403–10.

305. *Id.* at 78–92 (Fixed-Meaning Canon, what the words meant when they were adopted, they continue to mean now).

306. *Id.* at 56–58 (Supremacy-of-Text Principle, "[t]he words of a governing text are of paramount concern, and what they convey, in their context, is what the text means").

307. *Id.* at 369–90 (describing "the false notion that legislative history is worthwhile in statutory interpretation").

308. *Id.* at 391–96.

309. U.S. CONST. art. I, § 7, cl. 2; *id.* art. II, § 2, cl. 2.

310. SCALIA & GARNER, *supra* note 265, at 391–93.

311. *Id.* at 374–75.

312. *See id.*; *e.g.*, *supra* note 166 and accompanying text.

enactment in fact violates some provision of the constitution. Textualists, then, must reject notions of "legislative motive."

2. Social Justice

Those that follow a social justice framework should also reject legislative motive. The *TJ* case itself, which by all lights appears to have fallen on the wrong side of our legislative motive test, would be on very solid footing in the absence of this motive regime. Race-neutral programs designed to advance diversity would be valid provided they are explainable on any ground other than race and otherwise make distinctions that are consistent with legitimate legislative aims. And since there is no constitutional obligation for a school system to run magnet schools based on pure merit,[313] a change to a zip code or top 10%-style program would almost certainly present no constitutional issue.

The free-roaming license that the legislative motive regime gives to judges can do nothing but limit the universe of creative new ways to solve problems of social justice. In a legal reality where race blindness is part of our positive law,[314] examination of legislative motive could prove to be a significant roadblock for those who do not believe it is enough to simply have neutral laws that lack any regard for the racialized realities underneath.

Practically speaking, it cannot be good for social justice interests to have a legal standard that allows plaintiffs to go to court and allege a violation of the Constitution's commitment to colorblindness by pointing to statements by legislators expressing support for statutes which advance an equitable agenda.[315] This is an open invitation to interest groups and judges to let the constitutionality of such statutes rise and fall based on the political priors of the legislators. One can only imagine a case where statements on the campaign trail about promoting diversity, equity, and inclusion could lead to the invalidation of neutral laws passed

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313. Some schools that admit on a pure lottery basis have found success in educating disadvantaged students of all racial backgrounds. *See, e.g.,* Ray Domanico, *Corps Values*, CITY J., Autumn 2024, at 64, 64–71. The New Orleans Military & Maritime Academy has achieved top marks for student progress, standardized test scores, and student outcomes while enrolling a class that is 84.4% economically disadvantaged, 41.8% Latino, 28.1% African American, 22.5% Anglo American, and 7.6% all others. *Id.* at 69–70. It has done so by fostering discipline by demanding "respect and taking responsibility" and a "meritocratic culture" of "high standards" with a merit-demerit system, utilizing work-study and technical training, mandating participation in JROTC, creating space for mentorship among the students, and focusing on character in every classroom. *Id.* at 64, 67–68. As a result, 56% graduate with an industry-based credential, more than half of the students go to college, another 15 to 20% join the armed services, and the remainder go to technical school or the workforce. *Id.* at 69. School boards would do well to shift their focuses to replicating the successes of schools like the New Orleans Military & Maritime Academy if they want to help bridge academic skills gaps and other group-level inequalities.

314. Students for Fair Admissions, Inc. v. President & Fellows of Harvard Coll. (*SFFA*), 600 U.S. 181, 204 (2023) ("The time for making distinctions based on race has passed.").

315. *See* Plessy v. Ferguson, 163 U.S. 537, 554 (1896) (Harlan, J., dissenting) ("[T]he Constitution of the United States does not, I think, permit any public authority to know the race of those entitled to be protected in the enjoyment of [civil] rights.").

by that legislator. In a world where hostilities to DEI programs are increasing,[316] this tool could prove to be a potent one in the hands of DEI's opponents.

V. OBJECTIONS

Abandoning a standard developed with the stated goal of ferreting out hidden racial discrimination could open the door to some abuses. While the ultimate consequences of a proper legal decision are significantly less relevant for judges to consider, what tools remain in the event of a change in the law is a legitimate concern for advocates seeking to advance their clients' interests. This part addresses some of the pressure points in the equal protection landscape without *Arlington Heights*. My suggestion of these alternative tools comes with less conviction and thoroughness than my demonstration of the impropriety of *Arlington Heights* as a tool. Nonetheless, the part provides some examples and useful analogies that can be used as a starting point for advocates as potential tools to combat misbehaving government actors.

A. Abandoning Arlington Heights *Would Mean that There Are No Options for Litigants and Courts to Address Racially Discriminatory, but Facially Neutral Policies Passed by Legislatures*

There are many tools still available that do not require inquiries into legislative motive. Policies clearly violative of equal protection have been backed by plenty of benign motives and justifications throughout history. Among them: slavery being a positive good and segregation preserving harmony, reducing resentment, preventing violence, and providing health benefits.[317] Justice Stevens recognized this problem in *Davis,* explaining, "[i]n my judgment . . . subjective good faith . . . would [not] save [the challenged verbal skills test] if it were otherwise invalid," but decided the test was constitutional because it was "in fact neutral."[318] He continued:

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316. *See* Charles Lipson, *Code Red: DEI Is in the ICU*, SPECTATOR (Jan. 2, 2024), [https://perma.cc/23DWGG3Y]; Editorial, *The DEI Rollback of 2023*, WALL ST. J. (Dec. 26, 2023), https://www.wsj.com/articles/dei-wisconsin-oklahoma-state-universities-88ecc684 [https://perma.cc/9NNL-3BE6]; Howard Levitt, *Claudine Gay Resignation May Signal the Beginning of the End of Woke DEI Cabal*, FIN. POST (Jan. 5, 2024), https://financialpost.com/fp-work/howard-levitt-claudine-gay-resignation [https://perma.cc/4ESP-NG4A]; Andy Kessler, *Pop Goes the DEI Bubble*, WALL ST. J. (Jan. 21, 2024), https://www.wsj.com/articles/pop-goes-the-dei-bubble-affirmative-action-claudine-gay-harvard-esg-blackrock-39c77d13 [https://perma.cc/PU3P-A355]; Marcela Rodrigues, *Gov. Abbott Signs DEI Bill Into Law, Dismantling Diversity Offices at* Colleges, DALL. MORNING NEWS (June 14, 2023), https://www.dallasnews.com/news/education/2023/06/14/gov-abbott-signs-dei-bill-into-law-dismantling- diversity-offices-at-colleges/ [https://perma.cc/67F8-SZSF]; *Governor Ron DeSantis Signs Legislation to Strengthen Florida's Position as National Leader in Higher Education*, FL. GOVERNOR'S. OFF. (May 15, 2023), https://www.flgov.com/2023/05/15/governor-ron-desantis-signs-legislation-to-strengthen-floridas-position-as-national-leader-in-higher-education/ [https://perma.cc/HRG3-FTDZ]; *Governor Stitt Signs Anti-Discrimination Executive Order, Takes Aim at DEI Measures*, OK.GOV (Dec. 13, 2023), https://oklahoma.gov/governor/newsroom/newsroom/2023/december2023/governor-stitt-signs-anti-discrimination-executive-order–takes-.html [https://perma.cc/EDH3-4NEJ].

317. *See SFFA*, 600 U.S. at 267–68 (2023) (Thomas, J., concurring).

318. Washington v. Davis, 426 U.S. 229, 254–55 (1976) (Stevens, J., concurring).

> It is unrealistic . . . to invalidate otherwise legitimate action simply because an improper motive affected the deliberation of a participant in the decisional process. A law conscripting clerics should not be invalidated because an atheist voted for it.
>
> . . . the line between discriminatory purpose and discriminatory impact is not nearly as bright, and perhaps not quite as critical, as the reader of the Court's opinion might assume. . . . [W]hen the disproportion is as dramatic as in [*Gomillion*] or [*Yick Wo*] it really does not matter whether the standard is phrased in terms of purpose or effect.[319]

Justice Stevens has it right. The model used in the First Amendment context is instructive. Consider flag burning. The validity of a law which affects "expressive conduct" turns on a number of factors.[320] The key factor—the statute being "unrelated to the suppression of free expression"—seems to point to legislative motive.[321] But it is actually getting at something else entirely, something that can be used in the equal protection context.

Under this model, penalizing someone for flag burning under a law banning open burning of any object within 50 feet of a building would be lawful, but punishing the same person under a law that specifically bans flag burning would not be. Both laws have the purpose of preventing certain acts of burning, but one of them, on its face, is unrelated to expression (preventing building fires), while the other has a much more direct relationship to the "expressive" part of the expressive conduct (preventing a specific, unpopular kind of burning because of the message it conveys).

The government interests that can justify the first law cannot justify the second. Note how in this analysis, no reference to the motive of the legislature is necessary. If the first law had been passed in response to flag burning on the courthouse steps or for perfectly benign reasons, it would be legitimate either way. Similarly, if the second law had been passed for some benign reason or to suppress a disfavored viewpoint, it would be illegitimate either way.

Imagine a school system with two competitive magnet high schools: one is a STEM high school, the other a Spanish immersion high school designed for those interested in language. Instruction at the STEM high school will be provided only in English. Instruction at the immersion high school will be primarily in Spanish, but also in English.

Next, imagine the school board, with serious animus toward Latinos, publicly announced in a unanimous resolution on the same day, adopts a facially neutral policy for all applicants adding two requirements for admission to both high

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319. *Id.* at 253–54.

320. United States v. O'Brien, 391 U.S. 367, 377 (1968).

321. *Id.*; *see also* Maria Colombo & Connor P. Fraley, *Laboratories of Democracy: North Carolina's Experiment with the Unalienable Right to the Fruits of Your Own Labor*, 2 J.L. & CIV. GOVERNANCE TEX. A&M (forthcoming 2025) (manuscript at 50–52) (on file with authors) (describing careful means-ends scrutiny in the economic liberty context).

schools: first, the students must be fluent in English and, second, the students must not be fluent in Spanish. Assume there are no state constitutional rights to education at issue, that language fluency is not a suspect classification, and the policy disproportionately leads to the exclusion of Latino students from both schools.

Now imagine two Latino students, one who is only fluent in Spanish and another who is fluent in both Spanish and English. Both would like to gain admission to both schools. Both students are otherwise qualified, but are denied at both schools. They raise an equal protection challenge. But since the court cannot look at motive and no independent constitutional right is at issue, are our students simply out of luck?

The Board will argue that the policy has no reference to ethnicity and applies equally to all applicants. They have legitimate interests in both requirements. Their reason for the English fluency requirement is that both schools provide English language instruction and it would not make sense to give a seat to a student who will not be able to learn without interpreter resources that they are unable (and, for our hypothetical, not required) to provide. Their justification for the second requirement is that they do not want to provide seats to students who already know Spanish because they are already too well educated and want to help maximize and equalize educational benefits.

For our Spanish-only student, he is truly out of luck. As applied to the STEM school, the requirement of fluency in the language of instruction is aligned with the educational mission there. And as applied to the Spanish immersion school, the no-Spanish-fluency requirement is aligned with the educational mission there as well. A student already fluent in Spanish has less to learn at a Spanish immersion school. The Board must answer to the voters for this student.

How about the bilingual student? As to the Spanish immersion school, he too will be out of luck due to his advanced language skills. But what about the STEM school? He satisfies the English requirement, but was denied because of his Spanish fluency. How does excluding this student from the STEM school align with the no-Spanish policy's goal of maximizing and equalizing educational benefits? It doesn't. The interest in maximizing educational benefits that supports exclusion at the immersion school cannot justify exclusion at the STEM school—regardless of the motives of the Board. Under equal protection, our bilingual student would have a judicial remedy for the STEM school—even if he is not Latino.

As in the First Amendment context, equal protection issues can be evaluated by the legitimate ends toward which laws are actually ordered. It may not capture every unsavory legislative act, but it can catch cunningly designed laws that in fact violate equal protection.

B. Abandoning Arlington Heights *Would Mean that Courts Can No Longer Enforce Any Standard that Turns on Racially Discriminatory Motives*

Abandoning *Arlington Heights* does not mean that courts cannot ever consider the motives of government actors—particularly in the executive branch. As courts judge the intent of individuals in criminal cases, so too can they continue to apply standards that require a showing of subjective intent, as in employment discrimination cases, jury selection, or selective enforcement.

On the legal front, the executive obligation under equal protection is distinct from the legislative one. Because legislative equal protection is only embodied in the statutes themselves, the question of equal protection is limited to the law itself, regardless of its provenance. But the executive obligation is different. It requires the law to be faithfully executed without regard to persons, neutrally applying the law as written. Under this distinct obligation, discrimination in enforcement is itself a violation of equal protection which courts are obligated to remedy.

On the evidentiary front, executive challenges generally will turn on the mental state of individuals, who, unlike corporate legislatures, are subject to meaningful inquiries into motive. And while executive officers often receive a presumption of regularity, that presumption does not combine with other legal standards to prevent the presumption from being displaced by evidence of what the actor actually did. The question in such a case is whether discrimination *occurred*, not whether a legislature had the power to adopt a particular policy and if any set of circumstances exists in which the law *could* be constitutionally applied.

The separation of powers concerns are not as stark either. In an as-applied challenge to executive action, the judiciary is asked to vindicate equal protection by invalidating the discriminatory application of the law at issue. The remedy is limited and tailored to the harm, leaving the neutral and generally applicable law in place for everyone else.

C. Abandoning Arlington Heights *Would Mean that Government Actors Will Be Emboldened to Oppress Unpopular Minorities So Long as Laws Are Neutrally Drawn and Within Their Power to Enact*

It is no objection to observe that a power can be abused.[322] That fact is a given in any allocation of power within government. So the question is not whether shifting power away from judges will increase the possibility that the legislatures will get away with abusing their powers in the short term, but whether we should be more concerned about abuse by a large, regularly elected group of legislators or by singular or small groups of unelected judges who, by design, answer to no one.

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322. *See supra* notes 136–141 and accompanying text.

D. Abandoning Arlington Heights *Would Mean that Disparate Impact, No Matter How Extreme, Cannot Serve as Evidence that a Law Is Unconstitutional*

To the extent that this objection turns on the idea that disparate impact is a denial of equal protection in itself, it is simply incorrect. Equal protection means the law applies equally to everyone similarly situated, not that it must have an equi-proportional group-level effect.[323]

Nonetheless, disparate impact can be relevant, or even determinative, as in the redistricting context. If "legislation, though race-neutral on its face, rationally cannot be understood as anything other than an effort to separate voters into different districts on the basis of race," equal protection can be violated.[324] Such laws, "unexplainable on grounds other than race,"[325] can be invalidated with no need to investigate motive.

These cases have helpful analogs in other contexts, such as when state courts must determine if a particular legislative enactment which classifies cities or counties in some facially neutral way is in fact special legislation barred by the state constitution.

One court describes its test as a three-step inquiry: first, the court must determine the end or purpose of the enactment; second, it applies the law to the situation at hand; and third, it evaluates whether the classification, *as it actually operates*, makes a reasonable classification with reference to its ends.[326] In that case, the New Jersey Supreme Court faced a statute which exempted certain special vocational school districts from taxation for vocational schools in the greater county. The initial bill did that in general fashion, but the legislative process resulted in a bill that only exempted districts in counties with populations between 550,000 and 700,000 and a density of more than 3,000 people per square mile, and only applied to programs that had been in existence for at least 20 years.[327] These restrictions narrowed the legislation from affecting all counties to three counties (with the population minimum), then to one county (with the population maximum and density requirement), then to the single municipality which had lobbied them for the bill in the first place (with the longevity provision).[328]

The court identified two purposes the statute served: first, to prevent double taxation and, second, to promote the development of new programs.[329] It found that the statute was not drawn in a way to rationally advance those goals because, as to tax relief, it excluded many similarly situated municipalities subject to the same burden and, as to development of schools, excluded counties both larger and smaller than the one identified in the statute without any evidence suggesting

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323. *See* Adarand Constructors, Inc. v. Pena, 515 U.S. 200, 227 (1995) ("[T]he Fifth and Fourteenth Amendments to the Constitution protect *persons*, not *groups*.").

324. Shaw v. Reno, 509 U.S. 630, 649 (1993).

325. Vill. of Arlington Heights v. Metro. Hous. Dev. Corp., 429 U.S. 252, 266 (1977).

326. *See* Town of Secaucus v. Hudson Cnty. Bd. of Tax'n, 628 A.2d 288, 294 (N.J. 1993).

327. *Id.* at 290–91.

328. *Id.*

329. *Id.* at 294.

lesser need in those counties.[330] Further, the longevity requirement actually worked to *dis*courage the development of more schools.[331] In sum, the classification did not align with the ends of the statute in actual operation, and the legislation, which on its face appeared to be general legislation, was in fact unconstitutional special legislation.[332] The court made that determination without reference to the motives of the legislature.[333] Other states conduct similar inquiries that serve as useful touchstones for how courts work to identify the actual operation of statutes.[334]

The First Amendment context provides another analogy, as in the case of facially content-neutral restrictions on all "First Amendment activities" at the airport[335] or banning all live performances in a borough.[336] While these bans do not target particular subject matter or viewpoints, there is no way to read the restriction as neutral with regard to expression, regardless of the motives of the enactors.

Even if in these cases an improper motive is clear as a matter of deduction, the infirmity in the law is the *fact* that it denies equal protection, not the motive that lies behind it. Admittedly, this is often a high bar, but it is nonetheless a tool that can be and has been effectively used in the cases sampled here. These tools, unlike *Arlington Heights*, are in harmony with broader constitutional doctrine.

CONCLUSION

The response to the recent affirmative action ruling is leading the courts toward the next big legal question: is it constitutional under *Arlington Heights* for an

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330. *Id.* at 295–96.

331. *Id.* at 296.

332. *Id.* at 297–98.

333. *See generally id.* The court also acknowledged that the legislature was candid in the legislative history that the legislation would exempt the specific named city. *See id.* at 291.

334. *See, e.g.*, City of Asheville v. State, 794 S.E.2d 759, 770 (N.C. 2016) (striking down a law transferring city sewers to a state authority because the facially neutral classifications were not "germane to the law" or based on a "reasonable and tangible distinction"); Knoop v. City of Little Rock, 638 S.W.2d 670 (Ark. 1982) (striking down law that changed methods of electing the mayor for cities of certain populations because of the lack of a connection between election methods and city size); *In re* Vill. of Vernon Hills, 658 N.E.2d 365 (Ill. 1995) (striking down special fire district statute affecting intermediate-sized counties only as not being "founded upon a rational difference of situation or condition existing in the persons or objects upon which the classification rests" in relation to the "objects and purposes" of the statute); Jefferson Cnty. Fire Prot. Dists. Ass'n v. Blunt, 205 S.W.3d 866, 868 (Mo. 2006) (striking down a fire district regulation with a very narrow population band as lacking a "substantial justification"), *standard overruled by* City of Aurora v. Spectra Commc'ns. Grp., 592 S.W.3d 764, 779–81 (Mo. 2019) (rejecting the substantial justification standard for one that places the burden on the challenger and that "does not require unearthing the legislature's subjective intent in making the classification"); Jackson Cnty. v. State, 207 S.W.3d 608 (Mo. 2006) (upholding population classification requiring competitive bidding while distinguishing laws with closed-ended characteristics from those with open-ended ones and upholding a law that created an open-ended population band), *test modified by City of Aurora*, 592 S.W.3d at 781–82 (using the open-versus-closed distinction as relevant to evaluating rational basis rather than as a per se indicator of the presence of special legislation).

335. *See* Bd. of Airport Comm'rs v. Jews for Jesus, 482 U.S. 569 (1987).

336. *See* Schad v. Borough of Mount Ephraim, 452 U.S. 61 (1981).

educational institution to, with the intent of advancing racial diversity, adopt a facially race-neutral policy in a zero-sum environment that helps achieve those racial diversity goals? The principled answer is "no."

Coalition for TJ v. Fairfax County School Board is a model for this question. It spotlights the intractable issues in the *Arlington Heights* regime. In the face of widespread adoption of race-neutral admissions policies designed to advance racial diversity, a deep circuit split is likely to develop in short order.

The history of judicial examination of legislative motive shows that *Arlington Heights* was an aberration and a departure from longstanding background rules of adjudication. Where, as here, Chief Justice Marshall, Chief Justice Warren, Justices Scalia and Thomas, and so many others are in agreement, far be it from anyone to stand in their way.

Textualists would count the end of *Arlington Heights* as a win supporting the principle that "the law" is embodied in the text, not the motives of legislators. Abandonment would also open legal space for those interested in advancing social justice, especially in school admissions where a principled application of *Arlington Heights* would invalidate many policy changes currently being contemplated by universities and school boards. On a broader level, *Arlington Heights* could be an existential threat to all policies motivated by the values of diversity, equity, and inclusion. The stare decisis factors weigh decisively against retaining *Arlington Heights*.

In abandoning the long tradition against scrutinizing legislative motivation, *Arlington Heights* has revealed the wisdom of the old rule, for

> it hath been an ancient observation . . . that whenever a standing rule of law of which the reason perhaps could not be remembered or discerned, hath been wantonly broken in upon by statutes or new resolutions, the wisdom of the rule hath in the end appeared from the inconveniences that have followed the innovation.[337]

When the Court takes up the next round of affirmative action cases, it should affirmatively abandon *Arlington Heights*.

337. 1 WILLIAM BLACKSTONE, COMMENTARIES *70.

Taxed from Home: How Post-Pandemic Remote Work Magnifies the Constitutional Issues with Taxing Telecommuters

PHOEBE LEACH*

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INTRODUCTION

Source state telecommuter tax laws—such as the one passed by Massachusetts during the pandemic and the "convenience of the employer" rule in New York—are unconstitutional. They violate the dormant Commerce Clause, Due Process Clause, and the Privileges and Immunities Clause. Congress should pass legislation protecting telecommuters from such unconstitutional taxation.

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Some definitions are in order. This paper focuses on telecommuters, not mobile workers. Telecommuters (or teleworkers or remote workers) are those "who work[] for an employer in a state they do not live in and lack[] physical presence but earn[] income from their employer in that state."[1] The residence state refers to the state where the telecommuter claims residence and has a physical presence. The source state is the state where the telecommuter's employer is located—the telecommuter would have a physical presence in this state were they to commute and work in person. When discussing telecommuter tax laws, this paper refers to a tax law enacted by a source state taxing the income of a telecommuter who works from another state (their residence state).

This paper begins by examining an example so the reader can understand the issue at hand. Next, it discusses the tax from the example: the Massachusetts telecommuter tax. It analyzes the constitutional challenges of this tax before proceeding to a similar tax commonly referred to as the "convenience of the employer" rule, such as the one instated in New York. Again, the paper examines the constitutional challenges to this tax. Finally, the paper concludes with a proposed solution for the constitutional issues raised throughout.

I. EXAMPLE OF PANDEMIC TELECOMMUTER TAX

Consider taxpayer Jill. In 2019, she took a job as a social media manager for a Massachusetts-based company. For the first year of her job, Jill lived in Massachusetts and worked in the office. When she filed her 2019 tax return, she filed as a Massachusetts resident and paid income tax to Massachusetts.

However, in March 2020, Jill received an email from her employer. Due to the pandemic, Jill was told to work from home for the next two weeks. Jill's lease was up, and she wanted to live somewhere new. On March 10, 2020—while abiding by relevant COVID-19 safety precautions—Jill moved out of her Massachusetts apartment and began living and working from a home she purchased in New Hampshire. It quickly became clear that the pandemic would not resolve within two weeks, and Jill's employer suspended the return-to-office date indefinitely. While the adjustment to working remotely was initially difficult, Jill eventually found she could manage her employer's social media presence successfully while working remotely. When her employer reopened the office in October 2020 with the option to continue working remotely, Jill opted to stay remote and work from her new home in New Hampshire.

During the pandemic, Massachusetts passed a law taxing the income of employees of Massachusetts-based businesses who worked remotely out of state.[2] Thus, when Jill filed her 2020 tax return, she paid Massachusetts income tax on 100% of the income she earned in 2020. This was frustrating for Jill as she had looked forward to moving to New Hampshire because it is a state without an

1. Young Ran (Christine) Kim, *Taxing Teleworkers*, 55 U.C. DAVIS L. REV. 1149, 1164 (2021).
2. 830 MASS. CODE REGS. § 62.5A.3 (2020).

income tax.[3] As a New Hampshire homeowner, Jill paid property taxes at a higher rate than the national average—something she anticipated would be offset by not incurring an income tax.[4] Instead, Jill found herself facing Massachusetts income tax rates and New Hampshire property tax rates.

While her office remained in Massachusetts, Jill had no contact with the office for 75% of the year. She personally was not relying on the office's presence in Massachusetts. In contrast, Jill did rely on New Hampshire. One day, while working, Jill had her laptop plugged into a faulty surge protector. The outlet sparked and caused a small fire, which Jill quickly extinguished. However, as an extra layer of caution, she called the fire department and had them come take a look. The fire caused an issue with her fuse box, and Jill called her county electric company to come and resolve the issue. Feeling shaken by the experience, Jill worked from her local library for a few days following the fire. Because she was working in New Hampshire, Jill relied on services her state and local government provided, which she gladly supported by paying her property taxes. However, Jill received no benefit from paying income tax to Massachusetts.

II. MASSACHUSETTS NON-RESIDENT TELECOMMUTER TAX

On April 21, 2020, Massachusetts passed 830 CMR 62.5A.3 (hereafter "the Massachusetts telecommuter tax" or "the Massachusetts tax"), a regulation taxing the income of nonresidents who began telecommuting due to the pandemic.[5] The tax applied retroactively to "employee services performed commencing March 10, 2020" and was set to remain in effect until "90 days after the date on which the Governor of the Commonwealth gives notice that the COVID-19 state of emergency is no longer in effect."[6] The language of the regulation states the tax applies to telecommuting resulting from "pandemic-related circumstances," which includes "any other work arrangement in which an employee who performed services at a location in Massachusetts prior to the Massachusetts COVID-19 state of emergency performs such services for the employer from a location outside Massachusetts during a period in which 830 CMR 62.5A.3 is in effect."[7] This broad definition covered any instance where an employee would work remotely following the start of the pandemic, such as Jill from the example above.[8]

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3. *Taxes in New Hampshire*, TAX FOUND., https://taxfoundation.org/location/new-hampshire/#library [https://perma.cc/Q732-6D9Y].

4. Single-family homeowners in New Hampshire on average pay the fourth-highest amount of property tax in the country. Jeff Feingold, *Report: New Hampshire Had 7th-Highest Effective Tax Rate in '21*, N.H. BUS. REV., May 6, 2022, at 4.

5. 830 MASS. CODE REGS. § 62.5A.3 (2019).

6. *Id.*

7. *Id.*

8. This could apply to Jill's situation, which is arguably a pandemic-related circumstance. It could also apply to a situation where a Massachusetts employer has a long-standing option for employees to work remotely. Employee A never took advantage of the remote-work option, but in October of 2019, A planned to start working remotely on March 15, 2020, to be near family in another state. Though A's

The motivation behind the Massachusetts law is clear: in order to maintain the pre-pandemic budget for public services, Massachusetts needed to maintain the pre-pandemic revenue streams. This law is justified by the rationale that Massachusetts was still the source state of the income—the employer company resides in Massachusetts and relies on relevant Massachusetts public services. Further, Massachusetts had a legitimate public policy rationale for the telecommuter tax. Following the COVID-19 recession, states with income taxes fared better than those without, emphasizing the important role income taxation played in balancing state budgets.[9] To minimize the pandemic's negative impact on the state budget, Massachusetts was incentivized to maintain income tax revenue as much as possible.

There is precedent for source states levying income taxes. *Shaffer v. Carter* states, "[J]ust as a State may impose general income taxes upon its own citizens and residents whose persons are subject to its control, it may . . . levy a duty of like character, and not more onerous in its effect, upon incomes accruing to nonresidents from their property or business within the State, or their occupations carried on therein."[10] Generally, however, a source state only imposes an income tax on the nonresident's income resulting from work performed while the nonresident was physically in the source state.[11] The privilege of taxing an individual on the entirety of their income, regardless of source, is reserved for residence states.[12] The source state's taxation powers over nonresidents are limited by the Constitution, but "[a] state is free to pursue its own fiscal policies, unembarrassed by the Constitution, if by the practical operation of a tax the state has exerted its power in relation to opportunities which it has given, to protection which it has afforded, to benefits which it has conferred by the fact of being an orderly, civilized society."[13] Massachusetts can argue it grounded the telecommuter tax in the opportunities it offered to the Massachusetts-based employers. Viewed from this perspective, Massachusetts's telecommuter tax seems reasonable.

However, such a cursory analysis ignores the burden the Massachusetts tax places on either the telecommuter, the residence state, or both. As discussed above, residence states have the right to tax a resident's whole income regardless of where the income was earned. Tax credits for income earned out-of-state will be discussed later, but in the case of a telecommuter, the income is not earned out-of-state. The telecommuter was physically present in the residence state while earning their income. If a residence state has the right to tax income earned

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decision to work remotely was not triggered by the pandemic, this still falls under the regulation's definition of a pandemic-related circumstance because of the timing.

9. Erin Adele Scharff & Darien Shanske, *The Surprisingly Strong Case for Local Income Taxes in the Era of Increased Remote Work*, 74 HASTINGS L.J. 823, 825 (2023).

10. Shaffer v. Carter, 252 U.S. 37, 52 (1920).

11. Kim, *supra* note 1, at 1152.

12. New York *ex rel.* Cohn v. Graves, 300 U.S. 308, 313 (1937) (holding that residency allows the jurisdiction to tax the taxpayer's income regardless of source).

13. Wisconsin v. J.C. Penney Co., 311 U.S. 435, 444 (1940).

out-of-state, it certainly has the right to tax income a resident earns in-state. There is no precedent requiring a residence state to cede the right of income taxation to a source state. Therefore, a residence state may rightly tax the same income as the Massachusetts telecommuter tax, resulting in double taxation for the telecommuter. As remote work is here to stay,[14] the possibility of double taxation for telecommuters should be alarming. Double taxation effectively penalizes a work situation often necessary during the pandemic and common post-pandemic.

The Massachusetts tax made no provisions or exceptions for telecommuter taxpayers who may have faced double taxation. As a result, if a residence state wished to spare its resident taxpayers double taxation, the residence state had to offer a tax credit for income taxes paid to Massachusetts.[15] However, this solution had its own problems. By offering a credit, the residence state "foregoes collecting taxes from its residents despite all the public services it has offered."[16] As Justice Ginsburg articulated in her dissenting opinion in *Maryland v. Wynne*, "[t]he justification for the residence tax is that individuals should contribute to the state they live in since it is that state which provides them with public services."[17] Think of the example of Jill from above. Were Jill to live in a state that levied an income tax and offered a tax credit for the amounts paid to Massachusetts, she would not contribute to the public services she used while working in New Hampshire.

Where there are tax credits available to a telecommuting taxpayer, those credits do not necessarily erase the possibility of double taxation. It is common practice for states to offer an income tax credit only to the amount of income taxes their resident would have paid to the residence state if they had worked in-state rather than for an employer in another state. This means a telecommuting taxpayer whose residence state offers a tax credit may still be paying more in income tax than their neighbor who works solely in-state. Or, a taxpayer may face a situation like Alabama's tax credit regime: a resident of Alabama with income from another state will always pay income tax on the out-of-state income at the higher

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14. Working remotely increased dramatically during the pandemic, but numbers of employees working from home were rising pre-pandemic. The presence of pre-pandemic teleworking indicates that not all of the 88% of employees working from home at least once a week during the pandemic will return to the office. *See, e.g.,* Kim, *supra* note 1, at 1156.

15. There are broad inconsistencies among the format of tax credits, so even the presence of a tax credit is not guaranteed to alleviate the double-tax burden on the taxpayer. Some states "like New York, offer[] up a limited credit mechanism that will only allow a credit for taxes paid to the other state if the income was sourced to that state using the home state's sourcing rules. . . . Others—like Oregon, Michigan, and Montana—have broader provisions like New Jersey's, allowing in most instances a credit for taxes paid to the other states so long as the income was also taxed in the home state." Timothy P. Noonan, *Remote Workforce Doctrine and Policy: Looking to the New York Approach*, 12 COLUM. J. TAX L. (October 21, 2020) (footnotes omitted), https://journals.library.columbia.edu/index.php/taxlaw/announcement/view/350 [https://perma.cc/5NB5-4BDW].

16. Kim, *supra* note 1, at 1153.

17. Veazie Bank v. Fenno, 75 U.S. 542, 582–83 (2015) (Ginsburg, J., dissenting).

tax rate between Alabama and the source state.[18] And while some neighboring states have income tax reciprocity with each other, the nature of remote work allows a taxpayer to work for an employer in a state on the other side of the country. Reciprocity between the residence state and the state where the employer is located is unlikely. The particularities of each state's tax credit structure or reciprocity agreements are too vast an issue to discuss here. Suffice to say, it is complex and far from uniform from state to state. When considering issues of a telecommuter tax, relying on income tax credits or reciprocity is not a solution.

It is unsurprising, then, that New Hampshire challenged the Massachusetts tax law by filing a motion for leave to file a bill of complaint with the Supreme Court. Ohio, Arkansas, Indiana, Kentucky, Louisiana, Missouri, Nebraska, Oklahoma, Texas, Utah, New Jersey, Connecticut, Hawaii, and Iowa signed amicus curiae briefs supporting New Hampshire's motion. The motion was filed on October 19, 2020. On June 28, 2021, the motion was denied. It should be noted that Justice Thomas and Justice Alito would have granted the motion. Because the motion was denied, whether a telecommuter income tax like the one instituted by Massachusetts is constitutional remains an open question. However, the proceeding analysis demonstrates that New Hampshire was correct to challenge the Massachusetts tax—such income taxes on telecommuters are unconstitutional.

A. Dormant Commerce Clause Analysis

The first cause of action New Hampshire alleged was a dormant Commerce Clause violation. The Commerce Clause is found in Art. I, § 8 of the United States Constitution. The dormant Commerce Clause has been read into the explicit text: the Commerce Clause "contains a further, negative command, known as the dormant Commerce Clause, prohibiting certain state taxation even when Congress has failed to legislate on the subject."[19] The goal of the dormant Commerce Clause is to advance the purpose behind the Commerce Clause—"preventing a State from retreating into economic isolation or jeopardizing the welfare of the Nation as a whole, as it would do if it were free to place burdens on the flow of commerce across its borders that commerce wholly within those borders would not bear."[20] In other words, the dormant Commerce Clause "generally prohibits tax statutes that create a risk of multiple taxation of interstate commerce.'[21] This is a broad definition, and it has not always been clear how the dormant Commerce Clause operates. It has been "characterized by the United States Supreme Court as a 'tangled underbrush,' or a 'quagmire.'"[22]

The "quagmire" is evident in the ambiguity of determining which state has priority over taxing income: the residence state or the source state. On one hand,

18. Kim, *supra* note 1, at 1165.
19. Okla. Tax Comm'n v. Jefferson Lines, Inc., 514 U.S. 175, 179 (1995).
20. *Id.* at 179–80.
21. John A. Swain & Walter Hellerstein, *State Jurisdiction to Tax 'Nowhere' Activity*, 33 VA. TAX REV. 209, 223 (2013).
22. Kim, *supra* note 1, at 1174.

"While the Commerce Clause precludes the multiple taxation of income derived from interstate commerce, there is nothing in the Court's Commerce Clause jurisprudence to suggest that residence states 'lose' jurisdiction in a territorial sense to tax income that is taxable elsewhere."[23] On the other hand, "Under the Commerce Clause, a state's power to tax income from interstate commerce on a residence basis is limited by other states' power to tax the same income on a source basis insofar as is necessary to avoid the risk of multiple taxation that the Commerce Clause generally prohibits . . . the state of the taxpayer's residence must yield to the state of the income's source to avoid the risk of multiple taxation."[24] While it seems the source state may ultimately prevail, such a conclusion relies on the premise that the source state has a valid claim on the income in question.

Such a determination requires the four-prong test provided in *Complete Auto Transit, Inc. v. Brady* to determine whether a state tax on interstate commerce will be sustained: (1) if the activity being taxed has a substantial nexus with the taxing state; (2) if the tax is fairly apportioned; (3) if the tax does not discriminate against interstate commerce; and (4) if the tax is fairly related to the services provided by the taxing state.[25] New Hampshire alleged that the "Massachusetts[] tax rule violates the dormant Commerce Clause under the *Complete Auto* test as well as the Due Process Clause because (1) nonresident teleworkers' activity lacks substantial nexus with Massachusetts, (2) the income is not fairly apportioned between source and residence states, (3) Massachusetts'[s] tax rule discriminates against multistate teleworkers and burdens interstate commerce, and (4) it taxes activities not fairly related to the services provided by Massachusetts."[26] In other words, it fails all four prongs of the test.

Substantial nexus, the first prong of the *Complete Auto* test, requires that "there must be a connection to the activity itself, rather than a connection only to the actor the State seeks to tax."[27] New Hampshire argued that the Massachusetts tax was "based solely on the location of the employer regardless of the work being done and where."[28] Massachusetts responded that the tax was based on the activity—that the employee was earning Massachusetts-sourced income. However, this appears inconsistent with the rest of Massachusetts's tax policy. Out-of-state residents who worked from home for Massachusetts-based employers before the pandemic were not subject to Massachusetts income tax.[29] This is because there is no substantial nexus between Massachusetts and a nonresident telecommuter's income. There is a substantial nexus between Massachusetts and the Massachusetts-based employers, and Massachusetts is free to tax the earnings of those businesses. But the employees

23. Swain & Hellerstein, *supra* note 21, at 224.
24. *Id.*
25. Complete Auto Transit, Inc. v. Brady, 430 U.S. 274, 279 (1977).
26. Kim, *supra* note 1, at 1158.
27. Allied-Signal, Inc. v. Dir., Div. of Tax'n, 504 U.S. 768, 778 (1992).
28. Motion for Leave to File Bill of Complaint at 26, New Hampshire v. Massachusetts, 141 S. Ct. 2848 (2021) (No. 220154).
29. *Id.* at 21.

who never have physical presence in Massachusetts are separate taxpayers from their employers. There is no evidence to suggest that the state of emergency induced by the COVID-19 pandemic would trigger nexus with nonresident telecommuters that did not preexist the pandemic. The Massachusetts tax law fails the first prong.

The second prong requires the tax law be "fairly apportioned." *Central Greyhound Lines, Inc. v. Mealey* provides helpful precedent for New Hampshire. At issue in that case was a New York State tax applied to "100% of the gross receipts earned by a bus company even though 43% of the buses' mileage physically occurred in Pennsylvania and New Jersey. The Court held that the dormant Commerce Clause required New York to 'fairly apportion[]' its gross receipts tax based on the buses' relative 'mileage within' New York and the two other states."[30] Though the bus company relied on the state of New York for the bus route, New York did not have taxing jurisdiction over the entirety of the bus's profits from that route. The issue is that multiple states have competing claims on the gross receipts. Problems arise "whenever one State's act of overreaching combines with the possibility that another State will claim its fair share of the value taxed: the portion of value by which one State exceeded its fair share would be taxed again by a State properly laying claim to it."[31] The concern is that a failure to fairly apportion a tax will trigger double taxation, even when such double taxation is only a possibility.[32] While New Hampshire does not have an income tax, as discussed above, it has the right to tax its residents' income. All the income earned by New Hampshire residents teleworking for Massachusetts-based employers is earned in New Hampshire, relying on New Hampshire services and infrastructure. New Hampshire, therefore, would be justified in taxing that income. The Massachusetts tax needs to be fairly apportioned.

Fair apportionment has two tests: "The first . . . is what might be called internal consistency—that is, the formula must be such that, if applied by every jurisdiction, it would result in no more than all of the unitary business income being taxed. The second and more difficult requirement is . . . external consistency—the factor or factors used in the apportionment formula must actually reflect a reasonable sense of how income is generated."[33] The Massachusetts tax makes no apportionment provisions. Applying the internal consistency test, it seems likely that, were every jurisdiction to apply the Massachusetts tax without apportionment, it would increase overall taxation. Massachusetts argued against this point, relying on the fact that they offer tax credit for all residents who found themselves in a similar situation—working from home for an out-of-state employer due to the pandemic. However, Massachusetts's counterargument is weak on two points. First, Massachusetts's argument requires every state to adopt a taxation regimen

30. Edward A. Zelinsky, *The Proper State Income Taxation of Remote and Mobile Workers*, 12 COLUM. J. TAX L. nn.9–11 (October 21, 2020), https://journals.library.columbia.edu/index.php/taxlaw/announcement/view/350 [https://perma.cc/5NB5-4BDW].

31. Okla. Tax Comm'n v. Jefferson Lines, 514 U.S. 175, 184 (1995).

32. *See, e.g.*, Evco v. Jones, 409 U.S. 91, 94 (1972).

33. Swain & Hellerstein, *supra* note 21, at 220 (citing Container Corp. of Am. v. Franchise Tax Bd., 463 U.S. 159, 169 (1983)).

identical to Massachusetts—including having an income tax in the first place. This is simply impractical. Second, Massachusetts resident telecommuters working from home before the pandemic were taxed by Massachusetts on their income, meaning Massachusetts acknowledged a residence state's right to tax income on resident telecommuters working for out-of-state employers. Applying the internal consistency test would require every jurisdiction to adopt an inconsistent tax regimen due to a pandemic. And while the COVID-19 pandemic is certainly disruptive, there is nothing to indicate a telecommuter working from home due to the pandemic has more nexus with Massachusetts than a telecommuter who was previously working from home before the pandemic. Massachusetts fails the internal consistency test. The Massachusetts tax law obviously fails the external consistency test—it does not apportion the tax whatsoever, which does not reflect that income is solely earned in another state. The Massachusetts law fails the second prong.

The third *Complete Auto* prong looks at potential discrimination against interstate workers. The Massachusetts tax law is not facially discriminatory: it simply continues to tax previously in-person employees of Massachusetts-based employers, whether they are Massachusetts residents or not. However, because of the threat of double taxation, there is "a powerful incentive to engage in intrastate rather than interstate economic activity."[34] Again, consider Jill from the opening example. Jill moved to New Hampshire and found she faced heavy property taxation from New Hampshire, in addition to continued income taxation from Massachusetts. Jill would be reasonably incentivized to consider moving back to Massachusetts for a better tax situation. The Massachusetts tax discriminates against interstate activity and, thus, fails the third prong of the test.

The fourth and final prong of the *Complete Auto* test looks at whether the taxed activity can reasonably be attributed to the services the state provides. This is not a high bar: "the Commerce Clause has been read to embrace a forgiving standard . . . requiring only that the income be reasonably attributable to in-state activities."[35] Nevertheless, New Hampshire and tax scholars argued that Massachusetts cannot meet this low requirement. New Hampshire's argument was that the source state "can tax the in-state employer for the services provided to it. But the remote worker is a separate person from the employer and, as a separate taxpayer, should only be taxed on her income by the second state when the worker actually spends time there, not when she telecommutes from her out-of-state home."[36] Massachusetts, however, argued that the non-resident taxpayers do personally continue to enjoy Massachusetts's services while telecommuting, such as "the employee protections that Massachusetts provides, [and] to the very jobs [nonresidents] hold that

34. Comptroller of the Treasury v. Wynne, 575 U.S. 542, 561 (2015).

35. Swain & Hellerstein, *supra* note 21, at 223 (citing Allied-Signal, Inc. v. Dir., Div. of Tax'n, 504 U.S. 768, 777 (1992) (observing that "[t]he principle that a State may not tax value earned outside its borders rests on . . . *both* the Due Process and Commerce Clauses . . . ." (emphasis added))).

36. Zelinsky, *supra* note 30.

Massachusetts has created."[37] Nonresidents may rely on Massachusetts's employment laws, but Massachusetts does not adequately address the distinction between the employer and the employee. The Massachusetts business is still liable to Massachusetts for relevant taxation. The employee relies on Massachusetts's employment laws by nature of their relationship to the business, but that is distinct from the employee relying on Massachusetts itself for such services Jill used while working in New Hampshire. Massachusetts has not demonstrated that the tax is reasonably attributable to services provided by the state, and therefore fails the fourth prong. The Massachusetts tax law violates the dormant Commerce Clause and is, therefore, unconstitutional.

B. Due Process Clause Analysis

The Due Process Clause is a distinct analysis from the dormant Commerce Clause. "Indeed, in . . . *Quill Corp. v. North Dakota*, the Court . . . observ[ed] that '[d]ue process centrally concerns the *fundamental fairness of governmental activity*' whereas the central concern of the Commerce Clause is to 'limit the reach of state taxing authority so as to ensure that state taxation does not unduly burden interstate commerce.'"[38] Fairness is analyzed by "tying the states' taxing power to 'benefits' and 'protections' that they confer upon taxpayers."[39] As the Court elsewhere articulated, "[t]he simple but controlling question is whether the [S]tate has given anything for which it can ask in return."[40] It should be noted that, unlike the dormant Commerce Clause, "[t]he Due Process Clause does not forbid double taxation of income on the basis of residence and source: '[i]ncome may be taxed both by the state where it is earned and by the state of the recipient's domicile. Protection, benefit, and power over the subject matter are not confined to either state.'"[41]

In the case of the Massachusetts tax law, the analysis hinges on whether Massachusetts has offered enough services as the source state to justify a claim on nonresident telework income. *Chickasaw Nation* held a state may tax a nonresident on income from sources within the state,[42] but *Shaffer v. Carter* held that income sourced outside the state is out of the state's jurisdiction.[43] The focus, then, is to what extent Massachusetts was a source state for the income being

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37. Brief in Opposition to Motion for Leave to File Complaint at 37, New Hampshire v. Massachusetts, 141 S. Ct. 2848 (2021) (No. 220154).

38. Swain & Hellerstein, *supra* note 21, at 220 (emphasis added) (citing Quill Corp. v. North Dakota, 504 U.S. 298, 317–18 (1992) (reaffirming the rule that vendors without a physical presence in a state could not be required to collect use taxes on goods shipped to in-state customers)).

39. *Id.* at 219.

40. Wisconsin v. J.C. Penney Co., 311 U.S. 435, 444 (1940).

41. Swain & Hellerstein, *supra* note 21, at 221 (citing Curry v. McCanless, 307 U.S. 357, 368 (1939); Guar. Tr. Co. v. Virginia, 305 U.S. 19, 22–23 (1938) (holding that the Due Process Clause does not bar multiple taxation of income from trust)).

42. Okla. Tax Comm'n v. Chickasaw Nation, 515 U.S. 450, 463 n.11 (1995).

43. Shaffer v. Carter, 252 U.S. 37, 57 (1920).

taxed, and "[t]he standard for determining whether income has its source in the state is '[r]ough approximation rather than precision.'"[44]

New Hampshire argued the Massachusetts tax law "require[d] no connection between Massachusetts and the nonresidents on whom it impose[d] Massachusetts income tax other than the address of the nonresident's employer."[45] In rebuttal, Massachusetts relied heavily on the fact that "non-residents must have worked for their Massachusetts employer in person in Massachusetts in the immediate pre-pandemic period and, indeed, are taxed only in direct proportion to the days worked in person versus remotely in that period."[46] This, however, suggests that past connection justifies current taxation. And while Massachusetts referenced the ongoing benefits taxpayers receive from their employment by Massachusetts's businesses, the analysis above for the dormant Commerce Clause reveals the services Massachusetts offered to taxpayers were more related to the employer than the taxpayer's activities in Massachusetts. The Massachusetts tax law, therefore, violated the Due Process Clause and is, therefore, unconstitutional.

C. Privileges and Immunities Clause Analysis

While New Hampshire's complaint against Massachusetts did not present a Privileges and Immunities argument, it is worth considering. In *Ward v. Maryland*, the Court defined the Privileges and Immunities Clause as

> the clause [which] plainly and unmistakably secures and protects the right of a citizen of one State to pass into any other State of the Union for the purpose of engaging in lawful commerce, trade, or business without molestation; to acquire personal property; to take and hold real estate; to maintain actions in the courts of the State; and to be exempt from any higher taxes or excises than are imposed by the State upon its own citizens.[47]

The purpose of the clause is to turn the several independent sovereign states into a unified nation, where an individual citizen of, say, New Hampshire can enter Massachusetts and enjoy the same privileges as Massachusetts's citizens.[48] This supports the essential concept of federalism: "The Privileges and Immunities Clause, by making noncitizenship or nonresidence an improper basis for locating a special burden, implicates not only the individual's right to nondiscriminatory treatment

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44. Swain & Hellerstein, *supra* note 21, at 221 (citing Ill. Cent. R. R. v. Minnesota, 309 U.S. 157, 161 (1940)).

45. Motion for Leave to File Bill of Complaint at 29, New Hampshire v. Massachusetts, 141 S. Ct. 2848 (2020) (No. 220154).

46. Brief in Opposition to Motion for Leave to File Complaint at 36, New Hampshire v. Massachusetts, 141 S. Ct. 2848 (2021) (No. 220154).

47. Ward v. Maryland, 79 U.S. 418, 430 (1870).

48. Toomer v. Witsell, 334 U.S. 385, 395 (1948); *but see* Austin v. New Hampshire, 420 U.S. 656, 662 (1975) (stating "Our review of tax classifications has generally been concomitantly narrow, therefore, to fit the broad discretion vested in the state legislatures." Each state's sovereign power to enact taxation will be balanced, but not erased by the Privileges and Immunities Clause.).

but also, perhaps more so, the structural balance essential to the concept of federalism."[49]

The test for analyzing a Privileges and Immunities issue is to determine whether a greater tax burden is placed on nonresidents than residents.[50] Where there is a negative disparity between the tax treatment of nonresidents and residents, a state may defend itself by demonstrating "(i) there is a substantial reason for the difference in treatment; and (ii) the discrimination practiced against nonresidents bears a substantial relationship to the State's objective."[51]

On its face, the Massachusetts tax law seems to place the same income tax burden on nonresidents and residents alike. However, because the tax law was passed during the COVID-19 pandemic, nonresidents were paying for benefits which they could no longer receive, but residents could. The Massachusetts tax law only applied to employees who were not working remotely before the pandemic but, due to the emergency circumstances, began working remotely after March 10, 2020. Nonresidents were taxed at the same rate as before but, because of work from home orders and safety concerns, they no longer used the same Massachusetts's services as before. Again, from the example, Jill no longer used Massachusetts's emergency or public services. In fact, had she entered Massachusetts to do so, she would have violated New Hampshire's shelter-in-place orders.[52] Residents, however, continued to have access to the same services. So, while nonresidents and residents continued to contribute the same income taxes, the benefits offered in exchange for the taxes were disproportionately inaccessible for nonresidents. This essentially places a greater tax burden on nonresidents. And while Massachusetts assumed telecommuting taxpayers could rely on residence state tax credits to alleviate double taxation, coercing another state to remedy Massachusetts's undue tax burden is contrary to the principles of federalism.[53]

In order to justify the greater tax burden, Massachusetts would need to show (i) there is a substantial reason for the difference in treatment; and (ii) the discrimination bears a substantial relationship to Massachusetts's objective. Massachusetts claimed the purpose of the tax was to "maintain[] the pre-pandemic status quo for tax filing obligations and thereby . . . avoid uncertainty and spare employers

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49. *Austin*, 420 U.S. at 662.

50. *See, e.g.*, Chalker v. Birmingham & N.W. Ry. Co., 249 U.S. 522 (1919); Toomer v. Witsell, 334 U.S. 385 (1948); Mullaney v. Anderson, 342 U.S. 415 (1952).

51. Sup. Ct. of N.H. v. Piper, 470 U.S. 274, 284 (1985).

52. *See, e.g.*, Office of Governor Charlie Baker and Lt. Governor Karyn Polito, COVID-19 ORDER NO. 33, (May 18, 2020), https://www.mass.gov/doc/may-18-2020-re-opening-massachusetts-order/download [https://perma.cc/AKX9-ELG3] (outlining the history of orders issued during March 2020 to restrict all non-essential movement outside the home, which presumably would include traveling to Massachusetts to work in the office for a job that could be worked from home in New Hampshire).

53. *See, e.g.*, *Austin*, 420 U.S. at 666–67 (stating, "[W]e do not think the possibility that Maine could shield its residents from New Hampshire's tax cures the constitutional defect of the discrimination in that tax," concerning an income tax New Hampshire only applied to nonresident workers which only applied if the nonresidents received a tax credit from their residence state to offset the New Hampshire tax).

additional compliance burdens amidst the unprecedented circumstances."[54] However, the pre-pandemic status quo in Massachusetts was that remote workers do not pay income tax to Massachusetts on income earned while out-of-state. This reasoning is far from compelling. If Massachusetts truly wished to maintain pre-pandemic norms, it would retain the policy that remote workers do not owe Massachusetts state income tax. The implementation of the discriminatory tax policy does not bear a substantial relationship to Massachusetts's objective. Failing both prongs of analysis, the Massachusetts tax, therefore, violates the Privileges and Immunities Clause.

D. Procedural Posture of the Complaint

As stated above, New Hampshire filed a motion for leave to file a bill of complaint on October 19, 2020. Several states filed an amicus brief in support of New Hampshire with respect to the constitutional challenges of the Massachusetts tax law. However, on June 28, 2021, New Hampshire's motion was denied, and the challenge ended.

After extending the tax law beyond the original deadline,[55] Massachusetts eventually exited a state of emergency due to the COVID-19 pandemic and ceased levying the tax on September 13, 2021. However, because neither Congress nor the Supreme Court have provided guidance on the question of taxing telecommuters, Massachusetts could reinstate the tax law, or one of like nature, at any time.

There is no method of preventing a state from extending a "temporary" telecommuter tax indefinitely; "at this time there is no uniform guideline by state or federal governments."[56] What guidance does exist is either written in light of pre-pandemic work structures or treats post-pandemic conditions as temporary, expecting a quick return to pre-pandemic norms.[57] Massachusetts's decision to repeal the telecommuter tax does not resolve the issue when the introduction of more such laws remains possible.

III. CONVENIENCE OF THE EMPLOYER RULES

While the Massachusetts tax law was a "temporary" measure to navigate the pandemic, more permanent telecommuter tax laws are present in five states: Arkansas, New York, Delaware, Nebraska, and Pennsylvania. All five of these states have "convenience of the employer" rules. Connecticut has adopted a "convenience of the employer" rule reciprocally against these five states. New York is

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54. Brief in Opposition to Motion for Leave to File Complaint at 3, New Hampshire v. Massachusetts, 141 S. Ct. 2848 (No. 220154) (2020).

55. Originally, the tax was to apply to income earned from March 10, 2020, through December 31, 2020, or 90 days after the date on which the Governor of the Commonwealth gave notice that the Massachusetts COVID-19 state of emergency is no longer in effect. *Massachusetts Issues Final Regulations Concerning Income Tax Withholding for Employees Working Temporarily in the State Due to COVID-19,* TAX NEWS UPDATE: U.S. EDITION (October 26, 2020), https://taxnews.ey.com/news/2020-2554-massachusetts-issues-final-regulations-concerning-income-tax-withholding-for-employees-working-temporarily-in-the-state-due-to-covid-19 [https://perma.cc/6AUX-2A5T].

56. Kim, *supra* note 1, at 1149.

57. *Id.* at 1155.

largely considered the model for "convenience of the employer" tax rules, and the analysis below will follow New York with the assumption that it is generally representative of the other states.

New York's "convenience of the employer" rule has been around for decades. While the date of its first use is difficult to identify, it was definitely "embodied in regulation by 1960."[58] The rule operates as follows:

> [T]he source of the employment compensation generated while working remotely depends on the reason for working remotely—specifically whether the employee was working remotely for convenience or by necessity in the service of her employer. If the latter, the income will be determined by the employee's physical location; in other words, the days worked at home will "count" as out-of-state days. If the former, the income source defaults to the employer's location.[59]

In other words, if work completed out-of-state was not required by an employee's New York-based employer, the income will be apportioned to New York for income tax purposes. The key word is "convenience." It is generally understood that "New York requires that services performed outside the state be done out of *necessity* as opposed to convenience."[60] (emphasis added). This rule is strictly enforced and whether "an employee is working in another state for the convenience of the employer is strictly scrutinized."[61]

The law has withstood decades of challenge.[62] In 2003, Professor Edward Zelinsky pursued a claim against the law to the New York Court of Appeals.[63] Bills on the issue have been before Congress for at least a decade, and the

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58. Ellen S. Brody & Cory M. Paul, *In Defense of the "Convenience of the Employer" Test*, 12 COLUM. J. TAX L. (Oct. 21, 2020) (citing Huckaby v. Tax Appeals Tribunal, 829 N.E.2d 276, 280 (N.Y. 2005) (finding that a Tennessee domiciliary working as a computer programmer for a New York employer was required to source income to New York despite working in the state only a few days per year)), https://journals.library.columbia.edu/index.php/taxlaw/announcement/view/350 [https://perma.cc/5NB5-4BDW].

59. Timothy P. Noonan, *Remote Workforce Doctrine and Policy: Looking to the New York Approach*, 12 COLUM. J. TAX L. (Oct. 21, 2020), https://journals.library.columbia.edu/index.php/taxlaw/announcement/view/350 [https://perma.cc/5NB5-4BDW].

60. Chris Atkins, *Telecommuter Tax Fairness Act of 2005: Restoring Balance to State Taxation of Telecommuters*, TAX FOUND. (Jan. 31, 2006), https://taxfoundation.org/research/all/federal/telecommuter-tax-fairness-act-2005-restoring-balance-state-taxation-telecommuters [https://perma.cc/3RG7-TWJR].

61. Brody & Paul, *supra* note 58.

62. *See, e.g.*, Paul R. Comeau et al., *New York's Revised Convenience Rule Provides Some Clarity and Continued Controversy*, 16 J. MULTISTATE TAX'N & INCENTIVES 18, 21 (2006); Brody & Paul, *supra* note 58 ("While this challenge did not arise out of the Covid-19 pandemic, it was certainly exacerbated by it as it no longer simply impacts those employees who used to commute daily between neighboring states, but also now impacts employees who fled their apartments in big cities to homes in more isolated communities around the country.").

63. Darien Shanske, *Remote Workforce Doctrine and Policy: Short-Term and Long-Term Considerations*, 12 COLUM. J. TAX L. (Oct. 21, 2020) (citing Zelinsky v. Tax Appeals Tribunal, 801 N.E.2d 840 (N.Y. 2003), cert. denied, 541 U.S. 1009 (2004), https://journals.library.columbia.edu/index.php/taxlaw/announcement/view/350 [https://perma.cc/5NB5-4BDW].

Multistate Tax Commission approved model legislation for a mobile workforce statute in 2011.[64] The pandemic raised more issues with the law—Is working from home due to COVID-19 for the necessity of the employer?[65] And while some scholars assume the days worked outside New York due to the pandemic will not be allocated to New York, others are not so sure.[66] Such questions heighten the concern with the law. The consistent outcry is that the "convenience of the employer" rule violates the Constitution.

A. Dormant Commerce Clause Analysis

As discussed above, a dormant Commerce Clause analysis uses a four-prong test: (1) if the activity being taxed has substantial nexus with the taxing state, (2) if the tax is fairly apportioned, (3) if the tax does not discriminate against interstate commerce, and (4) if the tax is fairly related to the services provided by the taxing state.[67]

The analysis of the first prong follows the analysis completed above for the Massachusetts tax law. Again, "there must be a connection to the activity itself, rather than a connection only to the actor the State seeks to tax."[68] And, again, this analysis is focused on activity performed wholly out-of-state. New York's "convenience of the employer" analysis does not depend on the activity itself, rather looking to the reason for the employee's presence in another state. New York concedes that work performed out-of-state for the employer's convenience may be apportioned to the other state, which underscores the fact that New York is not basing nexus on the activity itself. Whether or not an employer requires the work completed out-of-state does not change the character of the activity, only the employer's relationship to that activity. There is nothing to suggest that the attitude of an employer changes the status of New York's nexus to out-of-state activity. New York fails this prong.

The second prong looks to fair apportionment. This analysis is different than that of the Massachusetts tax law because the New York "convenience of the employer" rule does provide an apportionment formula. There are two tests to apply: (i) internal consistency and (ii) external consistency. Defenders of this rule claim "the convenience rule is . . . easy to administer and is internally consistent, such that if every state followed the same rule, there would be no multiple taxation."[69] Assuming arguendo that every state agreed on the definition of "convenience," this would be true. However, the external consistency test is not so easily

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64. *Id.*

65. *See* Walter Hellerstein, *Nonresident NY Employees Are Not Currently Working at Home for Their 'Convenience'*, TAX NOTES (Apr. 6, 2020), https://www.taxnotes.com/featured-analysis/nonresident-ny-employees-are-not-currently-working-home-their-convenience/2020/04/02/2cbx8 [https://perma.cc/U4TW-GGD5].

66. *See* Brody & Paul, *supra* note 58.

67. Complete Auto Transit v. Brady, 430 U.S. 274, 279 (1977).

68. Allied-Signal, Inc. v. Dir., Div. of Tax'n, 504 U.S. 768, 778 (1992).

69. Brody & Paul, *supra* note 58 (citing Zelinsky v. Tax Appeals Tribunal, 801 N.E.2d 840, 845 (N.Y. 2003), *cert. denied*, 541 U.S. 1009 (2004)).

met. As in Massachusetts's tax analysis, there is an issue with the "convenience of the employer" rule actually reflecting a reasonable sense of how income is generated. Any time income earned out-of-state is apportioned as in-state income for tax purposes, there is dissonance between how the income is actually generated and how it is apportioned. While internally consistent, the New York "convenience of the employer" rule is externally inconsistent and fails the second prong of the dormant Commerce Clause analysis.

The third prong requires an absence of interstate discrimination. Because of the strict scrutiny with which the "convenience of the employer" rule is enforced, it could easily have a chilling effect on nonresident workers working outside New York unless strictly necessary. The danger being, of course, that a telecommuter could risk double taxation if, for example, they worked from home. Further, "while it is often true that States will credit their residents for taxes paid to other States, they are not required to do so."[70] And "even where a State does provide a tax credit, the tax rate of the taxing jurisdiction could be higher than that of the resident's Home State."[71] Remote work is now a significant portion of interstate commerce. Where an employer offers the option for an employee to be remote full-time, it cannot reasonably be said the employee is out-of-state for the employer's necessity. By apportioning 100% of that employee's income to New York, New York opens that employee to double taxation—something a nonresident working full-time in New York would be less likely to face (and a resident working in New York would not face). The New York law fails the third prong.

The fourth prong is whether the tax is fairly related to the services provided by the taxing state. Again, as in the Massachusetts analysis, New York is providing services to the employer—not the employee—when the employee is working out-of-state. The employer and employee are separate entities, and the tax laid on the employee must be related to the services provided to the employee. When an employee is working outside of New York, they are not relying on the services provided by New York. New York's "convenience of the employer" rule violates this prong, and, therefore, it violates the dormant Commerce Clause.

B. Due Process Clause Analysis

The Due Process analysis for the New York "convenience of the employer" rule is nearly identical to that of the Massachusetts tax law. As discussed in that analysis above, the question focuses on what services New York is offering in exchange for the tax it levies on the nonresident's income when working out-of-state and not for the convenience of their New York-based employer. The services a source state provides to a nonresident telecommuter are inherently limited. While work has shifted to remote, the source state services remain largely based

70. Brief for States of New Jersey & Connecticut et al. as Amicus Curiae in Support of Plaintiff at 6–7, New Hampshire v. Massachusetts, 141 S. Ct. 2848 (2021) (No. 220154).

71. *Id.* at 7.

on physical presence in the state. As long as that is true for New York, the "convenience of the employer" rule violates the Due Process clause.

C. Privileges and Immunities Clause Analysis

A Privileges and Immunities analysis looks to whether a greater tax burden is placed on nonresidents than residents.[72] The New York "convenience of the employer" rule does not necessarily place a greater tax burden on nonresidents than residents. While the tax does open nonresident telecommuters to double taxation, the New York tax itself is not a greater burden. New York residents owe New York income tax on all their income—regardless of source. In contrast to the Massachusetts tax law, which taxed nonresident telecommuters as if they were in-state while COVID-19 precautions forbid them from commuting to Massachusetts, New York's law is not coupled with other regulations preventing nonresidents from accessing the services New York offers in-state employees. It seems unlikely, then, that the Court would find that New York's "convenience of the employer" rule violates the Privileges and Immunities Clause. However, such a finding is unnecessary to prove the unconstitutionality of the law: New York's "convenience of the employer" rule violates both the dormant Commerce Clause and the Due Process Clause. It is unconstitutional.

IV. PROPOSED SOLUTION

"Double taxation arises when one state uses a convenience of the employer test and the other looks at the physical location of where the employee is performing the work. If a nation-wide standard was adopted, this double taxation would be eliminated and tax credits would work as intended."[73] While many have lamented that the Supreme Court declined to hear *New Hampshire v. Massachusetts*, the true solution to telecommuter tax issues lies in federal preemption by Congress. When writing on the Massachusetts tax law, Professor Zelinsky stated,

> The correct approach to [the Massachusetts tax situation] and similar contexts involving interstate remote work is embodied in the Multi-State Worker Tax Fairness Act of 2020, introduced in the House by Representatives Himes, Pappas and Hayes: No taxation of this New Hampshire resident by Massachusetts as long as this resident exclusively lives, works, and receives public services in New Hampshire.[74]

The Himes-Hayes-Pappas bill "would prohibit on a national level any state from adopting convenience of the employer rules and instead require states to tax nonresidents only on income earned while physically present in a state."[75]

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72. *See, e.g.*, Chalker v. Birmingham & N.W. Ry. Co., 249 U.S. 522, 526–27 (1919); Toomer v. Witsell, 334 U.S. 385, 395–99 (1948); Mullaney v. Anderson, 342 U.S. 415, 416 (1952).
73. Brody & Paul, *supra* note 58.
74. Zelinsky, *supra* note 30.
75. Brody & Paul, *supra* note 58.

Another bill introduced to Congress was proposed by Iowa Senator Chuck Grassley. This bill would prevent a state from taxing "wages or other remuneration earned by an employee" other than the residence state or "any taxing jurisdiction within which the employee is present and performing employment duties for more than 30 days during the calendar year."[76]

The best legislative solution is found in Senate Bill S.1274 - Remote and Mobile Worker Relief Act (2021).[77] The Senate should pass this bill and preempt unconstitutional taxation of nonresident telecommuters. S.1274 prohibits the "wages or other remuneration earned by an employee who is a resident of a taxing jurisdiction (i.e., states, localities, the District of Columbia, territories or possessions) and performs employment duties in more than one taxing jurisdiction" from being subject to income tax in any other taxing jurisdiction other than (1) the taxing jurisdiction of the employee's residence, and (2) the taxing jurisdiction within which the employee is present and performing employment duties for more than [thirty] days during the calendar year in which the wages or remuneration are earned."[78] This bill eliminates the possibility of unconstitutional taxation by source states, preserving a residence state's right to tax income earned in its borders and protecting telecommuters from double taxation.

There are those who oppose this model and argue that the "convenience of the employer" rules should be protected. There are genuine concerns about whether physical presence should matter in a world so dependent on the internet: "[T]he real world implementation of Commerce Clause doctrines now makes it manifest that the physical presence rule . . . must give way to the 'far reaching systemic and structural changes in the economy' and 'many other societal dimensions' caused by the Cyber Age."[79] This, however, ignores that the services offered in exchange for income taxation services like police and fire departments, electricity, public transit, etc.—are tied to physical location. We have not completely shifted to a cyber world, and we risk incurring unconstitutional tax burdens if we tax based on cyber-presence while the rest of our lives remain geographically dependent. Another argument is that remote work is damaging the economies of large cities as workers can now work anywhere: "a national approach would promote mobility of employees without depleting the tax base of the large cities that must rely on the personal income tax to fund the numerous services they provide."[80] This concern, however, does not address the constitutional concerns with implementing source state income taxes on telecommuters. Large cities will have to find other ways to attract in-person employees and residents. They cannot be maintained by unconstitutional taxes on nonresidents. The best solution lies in federal preemption protecting telecommuters and residence states.

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76. American Workers, Families, and Employers Assistance Act, S. 4318, 116th Cong. § 403(a)(1)(b) (2020).

77. Remote and Mobile Worker Relief Act of 2021, S. 1274, 117th Cong. (2021).

78. *Id.*

79. South Dakota v. Wayfair, Inc., 585 U.S. 162, 184 (2018).

80. Brody & Paul, *supra* note 58.

Hybrid Rights and Taxation

ALEXANDER M. JOHNSON*

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INTRODUCTION

Across American history, taxes have had no shortage of critics. Writing about "[o]ur new Constitution" in a 1789 letter to Jean-Baptiste Le Roy, Benjamin Franklin famously declared "in this world nothing can be said to be certain, except death and taxes."[1] Nearly 150 years later, author Margaret Mitchell conveyed a similar sentiment in her Pulitzer Prize–winning novel, *Gone with the Wind*: "Death and taxes and childbirth! There's never any convenient time for any of them!"[2] Physicist Albert Einstein reportedly lamented to his accountant that "[t]he hardest thing in the world to understand is income taxes,"[3] comedian Jon Stewart once joked that the Internal Revenue Service "forc[es] Americans to live as borderline hoarders,"[4] and the late President Jimmy Carter labeled the Internal Revenue Code "a disgrace to the human race."[5] Even Chief Justice John Marshall, often praised as the greatest American jurist,[6] argued "the power to tax involves the power to destroy."[7]

He was far from the only prominent Founding-era figure airing this concern. Recalling then-recent frustrations with British levies during the colonial period, the Continental Congress sought to strictly circumscribe their newfound central government's taxing authority.[8] And despite widespread acknowledgment that the resulting Articles of Confederation failed largely due to these overly weak tax

1. Letter from Benjamin Franklin to Jean-Baptiste Le Roy (Nov. 13, 1789), *in* 12 THE WORKS OF BENJAMIN FRANKLIN 160, 161 (John Bigelow ed., federal ed. 1904).

2. MARGARET MITCHELL, GONE WITH THE WIND 668 (1936).

3. Leo Mattersdorf, Letter to the Editor, *Einstein on Taxes*, TIME, Feb. 22, 1963, at 12.

4. *The Daily Show with Jon Stewart: IRS—Straight Outta Incompetence*, COMEDY CENT., at 06:16 (television broadcast June 24, 2014).

5. Jimmy Carter, Address Accepting the Presidential Nomination at the Democratic National Convention in New York City (July 15, 1976), *reprinted in Transcript of Carter Address Accepting Democratic Nomination for Presidency*, N.Y. TIMES, June 16, 1976, at 10.

6. *See* OLIVER WENDELL HOLMES, *John Marshall. From the Bench, February 4, 1901 Address at Northwestern University Law School, 1902*, *in* COLLECTED LEGAL PAPERS 266, 270 (1920) (celebrating Chief Justice Marshall's legacy).

7. McCulloch v. Maryland, 17 U.S. (4 Wheat.) 316, 431 (1819).

8. *See* MICHAEL J. KLARMAN, THE FRAMERS' COUP: THE MAKING OF THE UNITED STATES CONSTITUTION 16 (2016).

provisions,[9] the delegates to the Constitutional Convention extensively debated[10] and ultimately established another scheme of governmental limits on,[11] and individual protections from,[12] taxation. Indeed, even when abrogating one of the most notorious Supreme Court decisions to date over one century after the Founding,[13] Congress and forty-two ratifying states[14] expanded the government's taxing powers subject to a crucial—yet still hotly contested[15]—condition.[16]

But to the presumed chagrin of statesmen from these pivotal moments, their seeming limits on taxation have proven ineffective. Through precedent dating back as early as 1796,[17] the Supreme Court has generally proven receptive to Congress's increasingly expansive,[18] intrusive,[19] and lucrative[20] taxing practices. And in the rare instances when this has not occurred,[21] the Court quickly returned to government-favored tax jurisprudence[22] after receiving sharp backlash from the academy and public alike.[23] It should come as no surprise, then, that many

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9. *See* ROGER H. BROWN, REDEEMING THE REPUBLIC: FEDERALISTS, TAXATION, AND THE ORIGINS OF THE CONSTITUTION 155 (1993) (arguing the requisition system's failure formed the "central impetus" for the Constitution).

10. *See* Bruce Ackerman, *Taxation and the Constitution*, 99 COLUM. L. REV. 1, 6 (1999) ("During the revolutionary era, taxation was at the very center of popular consciousness. The break with Britain was motivated largely by this issue, and debate continued unabated throughout the 1780s."); Rebecca M. Kysar, *On the Constitutionality of Tax Treaties*, 38 YALE J. INT'L L. 1, 2 (2013) ("Debates over which governmental body could impose taxes inflamed the delegates to the Constitutional Convention.").

11. *See, e.g.*, U.S. CONST. art. I, § 2, cl. 3 (establishing, inter alia, the apportionment rule).

12. *See, e.g.*, U.S. CONST. amend. V (establishing, inter alia, the Due Process Clause).

13. *See* Jamal Greene, *The Anticanon*, 125 HARV. L. REV. 379, 388–89 (2011) (listing *Pollock* among the "anticanon").

14. *See* JOHNNY H. KILLIAN ET AL., CONG. RSCH. SERV., THE CONSTITUTION OF THE UNITED STATES OF AMERICA: ANALYSIS AND INTERPRETATION, S. DOC. NO. 108-17, at 33 n.8 (2004).

15. *See* Ari Glogower, *A Constitutional Wealth Tax*, 118 MICH. L. REV. 717, 741 (2020) (noting "[s]cholars continue to debate the limits of Congress's power" conferred under the Sixteenth Amendment).

16. *See* U.S. CONST. amend. XVI (empowering Congress to tax "income[]" without apportionment).

17. *See generally* Hylton v. United States, 3 U.S. (3. Dall.) 171 (1796) (upholding tax on carriage possession).

18. *See, e.g.*, Knowlton v. Moore, 178 U.S. 41, 43, 81, 83 (1900) (upholding estate taxes as indirect); Bromley v. McCaughn, 280 U.S. 124, 134, 138 (1929) (upholding gift taxes as indirect).

19. *See, e.g.*, Polselli v. IRS, 598 U.S. 432, 445 (2023) (upholding unnoticed and unchallengeable IRS summonses).

20. *See, e.g.*, Cook v. Tait, 265 U.S. 47, 56 (1924) (upholding tax on income generated by Mexican property while taxpayer lived in Mexico since "government by its very nature benefits the citizen and his property wherever found").

21. *See, e.g.*, Pollock v. Farmers' Loan & Tr. Co., 158 U.S. 601, 618 (1895) (invalidating pre–Sixteenth Amendment income tax); Eisner v. Macomber, 252 U.S. 189, 219 (1920) (invalidating post–Sixteenth Amendment stock split tax).

22. *See, e.g.*, Flint v. Stone Tracy Co., 220 U.S. 107, 177 (1911) (upholding pre–Sixteenth Amendment corporate income tax); United States v. Phellis, 257 U.S. 156, 165, 168–69 (1921) (upholding tax on distribution of subsidiary's stock).

23. *See, e.g.*, Letter from Archibald Butt to Clara Butt (July 1, 1909), *in* 1 TAFT AND ROOSEVELT: THE INTIMATE LETTERS OF ARCHIE BUTT, MILITARY AIDE 133, 134 (1930) ("Nothing has ever injured the prestige of the Supreme Court more than [*Pollock*] . . . ."); Thomas Reed Powell, *Income from Corporate Dividends*, 35 HARV. L. REV. 363, 376 (1922) (noting the oddity "in the idea that a man may indefinitely grow richer without ever being subject to an income tax").

scholars today describe congressional taxing authority as extremely capacious, if not outright unlimited.[24] To coopt a rhetorical question "[f]or folks at home" during President Joe Biden's last State of the Union address: "[D]oes anybody really think the tax code is fair?"[25]

Last year, the Court seemingly had a chance to correct course. In 2005, Charles and Kathleen Moore invested $40,000 for thirteen percent of the common stock in an Indian corporation that the Code deemed a "controlled foreign corporation" (CFC) due to its majority U.S. ownership.[26] While this business generated consistent profits between 2006 and 2017 (all of which it reinvested in itself), the Moores incurred zero taxes from the IRS;[27] instead, they received favorable treatment because Congress had exacted levies on only various passive categories of undistributed foreign receipts, not active business income.[28] This regime changed, however, with the overhaul of international taxation in the colloquially named Tax Cuts and Jobs Act of 2017.[29] As part of this reform, Congress enacted the Mandatory Repatriation Tax (MRT), which established a retroactive, one-time transitional levy on CFC profits made between 1987 and 2017 for certain U.S. investors—including the Moores.[30] Incurring nearly $15,000 in additional taxes from the MRT alone, they alleged this provision violated the Constitution[31] in *Moore v. United States*.[32]

Unfortunately for the Moores and other litigious taxpayers, seven Justices disagreed.[33] Writing for a five-member majority,[34] Justice Kavanaugh delivered a self-labeled "narrow"[35] holding wherein Congress may constitutionally tax an entity's realized yet undistributed income either by taxing the entity itself or by "attributing" such income to the entity's owners and then taxing them accordingly.[36] Repeatedly

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24. *See, e.g.*, Michael J. Klarman, *The Founding Revisited*, 125 HARV. L. REV. 544, 555 n.65 (2011) (book review) (referring to "Congress's unlimited taxing power"); Abigail R. Moncrieff & Jonathan Dinerstein, *Will Uncooperative Federalism Survive* NFIB*?*, 76 MONT. L. REV. 75, 83 (2015) ("Congress holds an unlimited (legal) power to tax and spend."); Eric Kades, *Preserving a Precious Resource: Rationalizing the Use of Antibiotics*, 99 NW. U.L. REV. 611, 669 n.175 (2005) (describing "virtually unlimited taxation powers of Congress"); Charles E. Rice, *A Cultural Tour of the Legal Landscape: Reflections on Cardinal George's Law and Culture*, 1 AVE MARIA L. REV. 81, 87 (2003) (same).

25. President Joseph Biden, State of the Union Address (Mar. 7, 2024), *in* 170 CONG. REC. S2272, S2275 (daily ed. Mar. 7, 2024).

26. Moore v. United States, 144 S. Ct. 1680, 1686 (2024); *see also* I.R.C. § 957(a) (defining CFC).

27. *Moore*, 144 S. Ct. at 1686.

28. *Id.*

29. *Id.* at 1685–86; *see also* Pub. L. No. 115-97, 131 Stat. 2054 (2017) (codified as amended in scattered sections of 26 U.S.C.).

30. *Moore*, 144 S. Ct. at 1686; *see also* I.R.C. § 965 (establishing said tax).

31. *See* Complaint for Refund of Federal Income Tax and Interest ¶¶ 24, 34–36, *Moore*, No. C19-1539.

32. 144 S. Ct. 1680.

33. *Id.* at 1684.

34. Justice Barrett, joined by Justice Alito, concurred in the judgment to both assert the presence of a realization requirement in the Sixteenth Amendment, *id.* at 1700 (Barrett, J., concurring in the judgment), and criticize the majority's overly lax approach toward the arbitrariness limit on income attribution, *id.* at 1708.

35. *Id.* at 1696 (majority opinion) ("[W]e emphasize that our holding today is narrow.").

36. *Id.* at 1688–89.

noting his opinion's consistency with "longstanding precedents,"[37] Justice Kavanaugh rejected the Moores' "inventive" attempts to distinguish both prior cases and similar attribution-based taxes.[38] Instead, he argued the MRT's unconstitutionality would throw a host of other foundational taxes into legal dubiety—depriving the federal government of "trillions in lost tax revenue," and ultimately creating "fiscal calamity."[39]

Indeed, the sheer volume of cases, statutes, regulations, and other legal authority threatened by the taxpayer's (now-hypothetical) victory in *Moore* was simply staggering.[40] In the buildup to *Moore*'s release, numerous well-established tax scholars observed the massive disruption that such a holding would impose across the Code, ranging from partnership tax[41] to original issue discount rules.[42] And although legal cynics often claim the Roberts Court no longer respects stare decisis,[43] even the most obstinate of jurists would look for feasible alternatives before casting doubt over such vast bodies of complex and significant law. Accordingly, without some principled means to distinguish controversial taxes of present from those imposed and upheld in the past, the Court seems destined to indefinitely repeat Justice Kavanaugh's maneuver in *Moore*: reaffirm precedent and continue endorsing ever-broader invocations of congressional taxing authority.

But there is a new, yet also familiar, path forward. Instead of hewing closely to stare decisis or dismantling much of the current Code, the Court can restore individual protections from taxation by adopting a doctrine commonly associated with its Free Exercise Clause jurisprudence: hybrid rights. By enabling litigants to combine multiple claims of constitutional impropriety into a single, more potent sum, this framework would repackage government-favored precedent on standalone clauses into meaningful overall protections for taxpayers—thereby foreclosing the most contentious proposals currently before Congress, including levies on wealth and unrealized gains.

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37. *Id.* at 1685, 1689, 1691.

38. *Id.* at 1693–96.

39. *Id.* at 1695–96.

40. *See* Brief of Amici Curiae Reuven Avi-Yonah et al. in Support of Respondent at 3–18, *Moore*, 143 S. Ct. 2656 (No. 22-800) (Oct. 19, 2023) (documenting numerous areas of tax law disturbed had the petitioners in *Moore* prevailed).

41. *See* Ari Glogower et al., Moore v. United States*: Avoiding a Damaging Limiting Principle in the Sixteenth Amendment*, YALE J. ON REG: NOTICE & COMMENT (Jan. 12, 2024).

42. *See* Reuven S. Avi-Yonah, Letter to the Editor, *If* Moore *Is Reversed*, TAX NOTES (June 26, 2023), available at https://www.taxnotes.com/featured-analysis/if-moore-reversed/2023/06/23/7gwyt [https://perma.cc/8VAM-LVBB].

43. *E.g.*, Khiara M. Bridges, *The Supreme Court, 2021 Term—Foreword: Race in the Roberts Court*, 136 HARV. L. REV. 23, 53 (2022) ("[T]he Roberts Court does not appear to consider itself particularly bound by stare decisis."); Anita S. Krishnakumar, *The Common Law as Statutory Backdrop*, 136 HARV. L. REV. 608, 664 (2022) ("[T]he Roberts Court's textualist Justices have proved quite willing to reject stare decisis and overrule even directly on-point precedents . . . ."); *see also* William Baude, *Precedent and Discretion*, 2019 S. CT. REV. 313, 334 (2020) (anticipating "many reports in the coming years will likely assert that the Roberts Court has rendered stare decisis nothing but a pretense").

This Note investigates the prospects of such a doctrinal extension. Part I surveys tenable and commonly cited constitutional provisions that purport to constrain federal taxation, concluding each was originally intended to limit Congress but has since been rendered a nullity. Part II details hybrid rights recognized elsewhere in constitutional law; despite this doctrine's facial relegation to just the Free Exercise Clause, Justices of widely varying ideologies have substantively applied analogous logic across other individual rights and the Constitution more broadly. Finally, Part III leverages the reasoning detailed in Part II to circumvent the deficiencies identified in Part I, arguing that hybrid rights are especially well-suited for taxation given their ability to bolster governmental constraints without overruling precedent. While often characterized among legal conservatives as promoting extraconstitutional policymaking, this doctrine can facilitate principled decisions with desirable outcomes in certain contexts. And taxation is one of them.

I. THE INEFFECTIVENESS OF CONSTITUTIONAL TAX CLAIMS STANDING ALONE

Before extending the hybrid-rights doctrine any further, a crucial premise first warrants discussion: why can most taxpayer-litigants, including the Moores, not simply rely on standalone constitutional provisions? After all, the Framers tried to carefully circumscribe Congress's largely newfound taxing authority during the Constitutional Convention,[44] and these limits should presumably maintain potency across at least a substantial portion of modern jurists who claim to interpret the Constitution as originally understood.[45] However, given the ratification of the Sixteenth Amendment and a series of pragmatically reasoned cases, such constitutional restraints by themselves have proven futile in invalidating expansive invocations of federal taxing authority. This Part chronicles such developments, arguing that the clauses most directly intended to cabin Congress have instead, as interpreted by the Court, posed trivial or easily avoidable impediments.

A. The Uniformity Clause

As a preliminary matter, the Framers generally sought to expand federal taxing authority during the Constitutional Convention.[46] Whereas the Articles of

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44. OWEN M. FISS, TROUBLED BEGINNINGS OF THE MODERN STATE, 1888–1910, at 88–89 (1993) (noting "the constitutional context" was "defined by the desire to prevent abuses of the power of taxation").

45. *See* Keith E. Whittington, *The New Originalism*, 2 GEO. J.L. & PUB. POL'Y 599, 599 (2004) (describing the rise of originalism, which "regards the discoverable meaning of the Constitution at the time of its initial adoption as authoritative for purposes of constitutional interpretation," over the second half of the twentieth century).

46. *See* AKHIL REED AMAR, AMERICA'S CONSTITUTION: A BIOGRAPHY 28–29 (2005) (noting "America needed a new system" after the Confederation period, *id.* at 29, due partially to Congress's inability to impose direct taxes, *id.* at 28); CALVIN H. JOHNSON, RIGHTEOUS ANGER AT THE WICKED STATES: THE MEANING OF THE FOUNDERS' CONSTITUTION 2 (2005) (labeling the Constitution a "pro-tax document").

Confederation fatally restrained its central government to nominally binding[47] requisitions "in proportion to the value of all land within each state,"[48] the Constitution responded to this condition's practical unworkability through its broad grant of taxing authority in the first enumerated power of Article I, the Taxing Clause: "The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises . . . ."[49] Reminded of the British Parliament's perceived abusive taxes on American colonies,[50] however, the Framers conditioned this baseline power on several (seemingly) major caveats.

First, situated in the same sentence as the excerpt above, the Uniformity Clause provides that "all Duties, Imposts and Excises shall be uniform throughout the United States."[51] As repeatedly interpreted by the Court, this condition poses a clear-cut and undemanding test in which Congress may establish "indirect taxes" (a phrase technically never written in the Constitution)[52] so long as they "operate[] with the same force and effect in every place where the subject of [them] is found."[53] Stated more concretely, indirect taxes defined in nongeographical terms meet the standard whereas those containing geographic language trigger "close[]" examination "to see if there is actual geographic discrimination."[54] For example, Congress likely could not tax a sale in Iowa at a ten percent rate and an otherwise identical transaction in Minnesota at a five percent rate.

But even this facially invalid levy might pass muster with additional facts. In *United States v. Ptasynski*,[55] the Court (after reaffirming the general rules above) upheld a tax exemption on oil produced in areas of Alaska and certain territorial waters[56] because, according to Justice Powell, Congress did not intend to discriminatorily favor the state.[57] Rather, the legislature "determin[ed], based on neutral factors, that this oil required separate treatment," a rationale rendering the

47. *See* THE FEDERALIST NO. 15, at 103 (Alexander Hamilton) (Clinton Rossiter ed., 2003) (noting "binding" requisitions "are mere recommendations which the States observe or disregard at their option").

48. ARTICLES OF CONFEDERATION OF 1781, art. VIII.

49. U.S. CONST. art. I, § 8, cl. 1.

50. *See* THE DECLARATION OF INDEPENDENCE para. 12 (U.S. 1776) (alleging King of Britain "erected a multitude of New Offices, and sent hither swarms of Officers to harass our people, and *eat out their substance*" (emphasis added)).

51. U.S. CONST. art. I, § 8, cl. 1.

52. *See* THE FEDERALIST NO. 36, *supra* note 47, at 215 (Alexander Hamilton) (labeling "duties and excises" indirect).

53. Edye v. Robertson, 112 U.S. 580, 594 (1884).

54. United States v. Ptasynski, 462 U.S. 74, 85 (1983) (citing Blanchette v. Conn. Gen. Ins. Corps., 419 U.S. 102, 160–61 (1974)).

55. 462 U.S. 74.

56. *See* Crude Oil Windfall Profit Tax Act of 1980, Pub. L. No. 96-223, 94 Stat. 229 (repealed 1988) (the tax at issue).

57. *Ptasynski*, 462 U.S. at 86 (noting the absence of legislative history suggesting an "undue preference" for Alaska).

geographically delineated statute permissible under the Uniformity Clause.[58] In other words, this constitutional provision hardly poses a restraint on government; Congress effectively enjoys a safe harbor whenever it defines indirect taxes in nongeographical terms, and *Ptasynski* reserves room for validation of the already rare instances wherein indirect levies land outside this qualification.[59]

B. The Apportionment Rule

Restraints on direct taxation have not fared much better in checking congressional power. Incorporating a mechanism from the Confederation Congress's final requisition,[60] the Constitution provides "direct Taxes shall be apportioned among the several States which may be included within this Union[] according to their respective Numbers."[61] Further, to address a concern that Congress could exploit its direct taxing authority by overly burdening states that had been delinquent during the requisition system,[62] this clause bore later restating: "No Capitation, or other direct, Tax shall be laid, unless in Proportion to the Census or enumeration herein before directed to be taken."[63]

Under the then-common belief of equal per capita wealth across states,[64] apportionment theoretically promoted impartial governance by barring a congressional majority from tyrannically decreasing favored states' tax liabilities at the minority's expense.[65] But when the United States varies in interstate wealth and income (as it does today), this regime requires poor states to tax their residents at higher rates than rich states.[66] For example, based on current population statistics, residents of Kansas and Mississippi would collectively need to contribute almost identical amounts of direct taxes even though the per capita income of the former is over thirty percent higher than that of the latter.[67] Given the perverseness of

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58. *Id.* at 85–86.

59. *See* Nelson Lund, Comment, *The Uniformity Clause*, 51 U. CHI. L. REV. 1193, 1203 n.47 (1991) (arguing *Ptasynski* "was deliberately adopting a rule designed to make it easy for Congress to prevent uniformity clause challenges").

60. *See* Calvin H. Johnson, *Apportionment of Direct Taxes: The Foul-Up in the Core of the Constitution*, 7 WM. & MARY BILL RTS. J. 1, 13 (1998) (finding the final requisition contravened the Articles by being based on population).

61. U.S. CONST. art. I, § 2, cl. 3.

62. 5 DEBATES ON THE ADOPTION OF THE FEDERAL CONSTITUTION 545 (Jonathan Elliot ed., 1845).

63. U.S. CONST. art. I, § 9, cl. 4; *see also Capitation*, BLACK'S LAW DICTIONARY 252 (10th ed. 2014) (defining "capitation" as "[a] tax or payment of the same amount for each person").

64. *See* 1 THE RECORDS OF THE FEDERAL CONVENTION OF 1787, at 585 (Max Farrand ed., 1911).

65. *See* Johnson, *supra* note 60, at 8 n.26 (citing an array of Founding-era records evincing such concerns).

66. *See* Calvin H. Johnson, *Binding Constitutional History: Reverse* Pollock *and End Fatal Apportionment*, 25 FLA. TAX REV. 740, 761 (2022) (observing income inequality and lamenting "[t]he Constitution did not require idiocy").

67. *Compare Kansas*, U.S. CENSUS BUREAU, (2024) https://www.census.gov/quickfacts/fact/table/KS/PST045223 [https://perma.cc/9BEN-VAE9] (2,940,546 people and $38,108 per capita income), *with Mississippi*, U.S. CENSUS BUREAU (2024), https://www.census.gov/quickfacts/fact/table/MS/PST045223 [https://perma.cc/46TM-K6KL] (2,939,690 people and $29,209 per capita income).

such a system, Congress rarely imposed apportioned direct taxes before the Civil War and has abandoned them as a feasible revenue source since then.[68]

As a near-total opposite to the Uniformity Clause's lack of teeth, then, the apportionment rule effectively bars levies bearing the "direct tax" label. But therein lies the problem: the Framers never gave a definition for direct taxes.[69] An oft-quoted passage from James Madison's Founding-era notes encapsulates this dilemma: "[Rufus] King asked what was the precise meaning of *direct* taxation? No one answd [sic]."[70] And in the more than two hundred years since the Constitutional Convention, academics continue to robustly debate the meaning of these facially simple words.[71]

Landmark precedent has proven similarly controversial. Wrestling with the direct/indirect dichotomy as early as 1796, the unanimous Court in *Hylton v. United States*[72] upheld a seemingly direct tax on carriage possession by recharacterizing it as an excise on carriage use.[73] In their seriatim opinions, Justice Iredell argued that direct taxes referred exclusively to levies that "could be apportioned,"[74] Justice Chase lobbied for requiring apportioned taxes only when "reasonabl[e],"[75] and Justice Paterson deemed the apportionment rule "radically wrong."[76] While the Court did not establish a framework for conclusively identifying future direct taxes, several sentiments from the Justices (as confirmed by later commentary on *Hylton*[77]) suggested they would narrowly define the category to cover levies on people, land, and not much else.[78]

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68. *See* Joseph M. Dodge, *What Federal Taxes Are Subject to the Rule of Apportionment Under the Constitution?*, 11 U. PA. J. CONST. L. 839, 914 (2009).

69. *See* Brief for the United States, Hylton v. United States, 3 U.S. (3. Dall.) 171 (1796), *reprinted in* 8 THE WORKS OF ALEXANDER HAMILTON 378, 378 (Henry Cabot Lodge ed., Fed. Ed. 1904) ("It is a matter of regret that terms so uncertain and vague in so important a point are to be found in the Constitution.").

70. 2 THE RECORDS OF THE FEDERAL CONVENTION OF 1787, *supra* note 64, at 350.

71. *See* Dawn Johnsen & Walter Dellinger, *The Constitutionality of a National Wealth Tax*, 93 IND. L.J. 111, 119 n.37 (2018) (summarizing debates over the topic and writing that "[c]ommentators provide impressive, detailed accounts of the origins of the 'direct' tax limitation in the course of reaching varying interpretations, narrow and broad").

72. 3 U.S. (3 Dall.) 171.

73. *See id.* at 175 (opinion of Chase, J.) ("[A] tax on *expence* is an *indirect* tax; and . . . an *annual* tax on a carriage for the conveyance of persons, is of *that kind* . . . ."); *id.* at 180 (opinion of Paterson, J.) ("All taxes on expences or consumption are indirect taxes. A tax on carriages is of this kind . . . ."); *id.* at 182 (opinion of Iredell, J.) ("This is not an apportionment, of a tax on *Carriages*, but of the money a tax on carriages might be supposed to produce . . . .").

74. *Id.* at 181 (opinion of Iredell, J.) (emphases omitted).

75. *Id.* at 174 (opinion of Chase, J.) (emphasis omitted).

76. *Id.* at 178 (opinion of Paterson, J.).

77. *See* Pollock v. Farmers' Loan & Tr. Co., 157 U.S. 429, 635 (1895) ("[T]he court here treated the decision in the *Hylton case* as conveying the view that the only direct taxes were 'taxes on land and appurtenances.'").

78. *See Hylton*, 3 U.S. (3 Dall.) at 175 (opinion of Chase, J.) ("I am inclined to think, but of this I do not give a judicial opinion, that the direct taxes contemplated by the Constitution, are only two, to wit, a capitation . . . and a tax on land . . . ." (emphases omitted)); *id.* at 177 (opinion of Paterson, J.) ("Whether direct taxes . . . comprehend any other tax than a capitation tax, and a tax on land, is a questionable

Unfortunately, this once-simple doctrine has grown only more complicated over time. Just before *Hylton*'s centennial, the Court's direct-tax jurisprudence was overhauled in the notorious *Pollock v. Farmers' Loan & Trust Co.*[79] Striking down a two-percent tax on income exceeding $4,000,[80] Chief Justice Fuller spent over ten pages citing evidence from the Constitutional Convention, ratification debates, and state practices to conclude that indirect taxes describe those "paid primarily by persons who can shift the burden upon someone else," whereas direct taxes "cannot be avoided" since they apply to "property holders in respect of their estates, whether real or personal, or of the income yielded by such estates."[81] Founding-era records offer some intuition behind this argument: Since taxpayers can shift indirect levies onto other parties (such as by increasing the prices of affected goods), market forces theoretically confer sufficient protection against excessive taxation to warrant a low constitutional restraint.[82] Direct taxes, by contrast, justify the harsher apportionment rule to replace this market-based check.[83]

In addition to dramatically departing from precedent,[84] *Pollock* has come to represent a one-time high-water mark for the apportionment rule's reach.[85] Shortly after this decision, the Court referred to Chief Justice Fuller's market-based approach as a "distinction [that] rests more upon the differing theories of political economists than upon the practical nature of the tax itself,"[86] and the Court has never again hinged its direct/indirect determinations on whether the respective tax can be shifted.[87] Instead, it soon returned to an expansive notion of indirect levies, such as by upholding a pre–Sixteenth Amendment corporate income tax after recharacterizing it as an excise on the "privilege of doing business in a corporate capacity."[88] And in *Moore*, Justice Kavanaugh wrote that direct taxes "[g]enerally" refer to those "imposed on persons or property" while indirect taxes "are the familiar federal taxes imposed on activities or transactions," expressly slotting income taxes in the latter.[89] As a byproduct of this

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point."); *id.* at 183 (opinion of Iredell, J.) ("A land or poll tax may be considered [direct] . . . In regard to other articles, there may possibly be considerable doubt.").

79. 158 U.S. 601 (1895).

80. *See* Wilson-Gorman Tariff of 1894, ch. 349, § 27, 28 Stat. 509, 553.

81. *Pollock*, 158 U.S. at 558; *see also id.* at 558–70.

82. *See, e.g.*, THE FEDERALIST NO. 21, *supra* note 47, at 138 (Alexander Hamilton) (comparing indirect taxes "to a fluid, which will in time find its level with the means of paying them").

83. *See id.* at 139 ("[N]o limits to the discretion of the government are to be found in the nature of [direct taxes].").

84. *See* Ackerman, *supra* note 10, at 25 ("Only in 1895 did the Court depart from this unbroken line of precedent to strike down a federal income tax statute in *Pollock* . . . .").

85. *See* BORIS I. BITTKER & LAWRENCE LOKKEN, FEDERAL TAXATION OF INCOME, ESTATES AND GIFTS ¶ 1.2.4, at 1-26 (3d ed. 1999) (stating Direct Tax Clauses have "never again had the power" given to them in *Pollock* and *Macomber*).

86. Nicol v. Ames, 173 U.S. 509, 515 (1899).

87. *See* Calvin H. Johnson, *Fixing the Constitutional Absurdity of the Apportionment of Direct Tax*, 21 CONST. COMMENT. 295, 339–50 (2004) (noting the immediate judicial and political "[w]ithering" of *Pollock*).

88. Flint v. Stone Tracy Co., 220 U.S. 107, 151 (1911); *see id.* at 177.

89. Moore v. United States, 144 S. Ct. 1680, 1687 (2024).

clarification, the majority suggested that the Sixteenth Amendment—passed and ratified in response to *Pollock*—was unnecessary.[90]

Despite this recent commentary, the precise line between direct and indirect taxes remains blurry; indeed, Justice Kavanaugh acknowledged in *Moore* itself that his opinion left ambiguous implications for the classification of wealth taxes.[91] But should the Court ever conclusively address this issue, it will likely side closer to *Hylton* than *Pollock*. Beyond respecting stare decisis and mitigating constitutional infirmities in the Code, a relatively expansive conception of indirect taxation wields crucial originalist support. Whereas scholars have extensively criticized *Pollock* for its slipshod historical analysis,[92] the four Justices in *Hylton* should presumably be experts on the Constitution's original meaning since they all partook in the Founding.[93] And under the latter's reading of the Direct Tax Clauses, the apportionment rule—while potent when invoked—extends to just a narrow subset of levies perhaps no greater than head and land taxes. In short, when compared to the Uniformity Clause, the apportionment rule has stronger teeth with little to bite.

C. The General Welfare Clause

Despite being discussed first, the Uniformity Clause forms the second restraint on federal power within the Taxing Clause; continuing the quotation from this Part's introductory paragraph, the Framers wrote that "Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, *to pay the Debts and provide for the common Defence and general Welfare of the United States*."[94] Debates over this italicized excerpt's meaning have persisted for centuries and trace back to two prominent Framers: whereas James Madison believed the General Welfare Clause constrained congressional authority by requiring that taxes fund expenditures related to powers enumerated in the Constitution,[95] Alexander Hamilton argued (albeit after ratification) for a broad interpretation wherein fiscal policy need only abstractly advance society and avoid favoring certain regions.[96] Reviewing this discourse decades later, Justice Story embraced

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90. *See id.* at 1688 (noting "income taxes are indirect taxes" and "permitted under Article I, § 8 without apportionment").

91. *Id.* at 1697 (describing taxes on wealth and unrealized appreciation as "potential issues for another day").

92. *See, e.g.*, Johnson, *supra* note 60, at 78 ("The *Pollock* court overruled [the Framers'] intent for reasons private to the judges and not legitimate by constitutional policy."); Ackerman, *supra* note 10, at 26 ("We should recognize *Pollock* for what it was: an illegitimate departure from the *Hylton* tradition of judicial restraint.").

93. *See, e.g.*, Johnson, *supra* note 60, at 74–75 ("*Hylton* has a special legitimacy on both its holding and its functional perspective on constitutional construction, because of who the actors were.").

94. U.S. CONST. art. I, § 8, cl. 1 (emphasis added).

95. *See, e.g.*, THE FEDERALIST NO. 41, *supra* note 47, at 258–59 (James Madison) ("It has been urged and echoed that the [General Welfare Clause] amounts to an unlimited commission to exercise every power[.] . . . But what color can th[is] objection have, when a specification of the objects alluded to by these general terms immediately follows and is not even separated by a longer pause than a semicolon?").

96. *See* ALEXANDER HAMILTON, FINAL VERSION OF THE REPORT ON THE SUBJECT OF MANUFACTURES (1791), *reprinted in* 10 THE PAPERS OF ALEXANDER HAMILTON 230, 303 (Harold C. Syrett et al. eds.,

the Hamiltonian-esque view of Thomas Jefferson,[97] asserting that the General Welfare Clause qualifies federal taxation by mandating that expenditures concern matters of general interest to the United States.[98]

If this standard sounds generous, it should. Indeed, just one year after expressly adopting Justice Story's construction,[99] the Court held that it must defer to congressional interpretations of the general welfare "unless the choice is clearly wrong."[100] In other words, what might have been a limit on taxation instead turned into a freestanding "Spending Clause."[101] And despite some recent interest in reviving Madison's narrow reading,[102] the General Welfare Clause has hardly posed a barrier to Congress's taxing power—a reality that will persist into the foreseeable future.

D. The Due Process Clause

The Founding-era Constitution continued its theoretical restraints on federal levies with the Bill of Rights. For example, the Court has read the Free Press Clause to prohibit taxes "singl[ing] out" newspapers,[103] and the Establishment Clause has previously been cited to nullify tax credits and deductions for parents of children receiving non-public education.[104] Yet despite the undoubted importance of these constitutional protections for American society, they generally lack tax-specific doctrines. Rather, taxpayers invoke them only in limited circumstances wherein unique facets of a given tax, such as its exclusive imposition on certain newspapers[105] or disproportionate relief for people paying tuition at religious schools,[106] render it constitutionally dubious.

1976) ("It is therefore of necessity left to the discretion of the National Legislature, to pronounce, upon the objects, which concern the general Welfare, and for which under that description, an appropriation of money is requisite and proper.").

97. *See* Thomas Jefferson, Opinion on the Constitutionality of a National Bank (Feb. 15, 1791), *reprinted in* 6 THE WORKS OF THOMAS JEFFERSON 199–200 (Paul Leicester Ford ed., New York, G.P. Putnam's Sons 1904) ("[Congress is] not to lay taxes ad libitum for any purpose [it] please[s]; but only to pay the debts or provide for the welfare of the Union. In like manner, they are not to do anything they please to provide for the general welfare, but only to lay taxes for that purpose." (emphases omitted)).

98. *See* 1 JOSEPH STORY, COMMENTARIES ON THE CONSTITUTION OF THE UNITED STATES § 924, at 653 (Boston, Little, Brown & Co. 4th ed. 1873) ("The preamble of the Constitution declares one of the objects to be, to provide for the common defence and to promote the general welfare; and if the power to lay taxes is in express terms given to provide for the common defence and general welfare, what ground can there be to construe the power short of the object?").

99. United States v. Butler, 297 U.S. 1, 66 (1936) ("[T]he reading advocated by Mr. Justice Story is the correct one.").

100. Helvering v. Davis, 301 U.S. 619, 640 (1937).

101. Robert G. Natelson, *The General Welfare Clause and the Public Trust: An Essay in Original Understanding*, 52 U. KAN. L. REV. 1, 4 (2003).

102. *See* Health & Hosp. Corp. of Marion Cnty. v. Talevski, 599 U.S. 166, 206 (2023) (Thomas, J., dissenting) ("The General Welfare Clause is thus most naturally read as a qualification on the substantive taxing power.").

103. Minneapolis Star & Trib. Co. v. Minn. Comm'r of Revenue, 460 U.S. 575, 592 (1983).

104. *See* Comm. for Pub. Educ. & Religious Liberty v. Nyquist, 413 U.S. 756, 789, 798 (1973).

105. *See Minneapolis Star & Trib.*, 460 U.S. at 578–79.

106. *See Nyquist*, 413 U.S. at 761–69.

Nevertheless, one guarantee in the Bill of Rights warrants special focus above all others: the Due Process Clause. In addition to its outsized influence on constitutional law more broadly,[107] this provision often receives attention from hopeful taxpayer-litigants as a possible means of escaping controversial levies. Indeed, although the Court at one point seemed to foreclose all Fifth Amendment challenges of federal taxes,[108] it has since conveyed interest in reviewing such claims with the same degree of (albeit heavily government-favored) scrutiny that it applies to other economic legislation.[109] And while most of the sitting Justices have little desire to expand substantive due process jurisprudence into new domains[110] (presumably including tax), two well-established—and Supreme Court–recognized—due process doctrines supply ostensibly enticing ammunition for taxpayers alleging constitutional impropriety: attribution and retroactivity.

1. Attribution

Ranging from Subchapter K[111] to Subpart F,[112] the Code constantly attributes taxable income to parties who did not directly generate or receive such earnings. For example, the global intangible low-taxed income (GILTI) regime taxes certain shareholders of foreign corporations based on the latter's earnings, as adjusted for various expenses and excluded categories, regardless of whether the former received any corporate distributions.[113] And the Court has held Congress may constitutionally attribute income in such fashion absent a showing that "lawmakers have done a wholly arbitrary thing, have found equivalence where there was none nor anything approaching it, and laid a burden unrelated to privilege or benefit."[114]

As evinced by this excerpt's capacious language, taxpayers can rarely craft plausible arguments of unconstitutional attribution. Indeed, while the majority in

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107. *See* MILTON R. KONVITZ, FUNDAMENTAL RIGHTS: HISTORY OF A CONSTITUTIONAL DOCTRINE ix (2001) ("[T]he most significant and enduring development [in twentieth-century constitutional law] has been [incorporation] and the doctrine that there are rights that are so 'fundamental' that any restriction is subject to judicial 'strict scrutiny.'").

108. *See* Brushaber v. Union Pac. R.R. Co., 240 U.S. 1, 24 (1916) ("So far as the due process clause of the 5th Amendment is relied upon, it suffices to say that there is no basis for such reliance, since it is equally well settled that such clause is not a limitation upon the taxing power conferred upon Congress by the Constitution . . . .").

109. *See* BITTKER & LOKKEN, *supra* note 85 ¶ 1.2.5, at 1-28 ("[C]ourts have applied to the distinctions drawn by Congress . . . the familiar rule now used in reviewing regulatory and other economic legislation: 'Normally, a legislative classification will not be set aside if any state of facts rationally justifying it is demonstrated to or perceived by the courts.'" (quoting United States v. Md. Savings-Share Ins. Corp., 400 U.S. 4, 17–18 (1970)).

110. *See* Caitlin Millat, *The Education-Democracy Nexus and Educational Subordination*, 111 GEO. L.J. 529, 594 (2023) (noting the "Roberts Court's increasing skepticism of substantive due process claims").

111. *See* I.R.C. § 702(a) (attributing partnership income to partners rather than partnership).

112. *See* I.R.C. § 951(a)(1)(A) (attributing CFCs' income to their U.S. shareholders on a prorated basis).

113. *See generally* I.R.C. § 951A.

114. Burnet v. Wells, 289 U.S. 670, 679 (1933).

Moore just briefly mentioned this arbitrariness limit (since the Moores did not raise it),[115] Justice Barrett labeled its contours "uncertain" and noted the Court "ha[s] never before applied the arbitrariness test to a tax law that attributes a corporation's income to its shareholders."[116] The Due Process Clause accordingly places some distant boundary on attributed income in egregious scenarios,[117] but nearly all taxes that survive Article I's burdensome legislative process should encounter little question of validity under this doctrine alone.

2. Retroactivity

While constitutional due process rights trigger comparatively stricter review for all retroactive legislation,[118] tax statutes disproportionately find themselves within this doctrine because they are often at least partially backward-looking in application.[119] For instance, Congress sometimes updates the Code's tax rate schedules or substantive provisions during the same taxable year in which such amendments arise,[120] and it has even enacted taxes exclusively targeting periods that ended before the respective statute's passage.[121] Indeed, instances of the former have proven so commonplace that the Court categorically upholds them;[122] as succinctly explained by Justice Holmes, "[w]e all know that we shall get a tax bill every year."[123]

Taxes with longer windows of retroactivity generally still survive challenge, but they prove to be closer calls. Analyzing a due process challenge (under the Fourteenth Amendment) to a state tax imposed on dividends received two years

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115. *See* Petition for Writ of Certiorari at i, Moore v. United States, 144 S. Ct. 1680 (2024) (No. 22-800) (listing the meaning of the Sixteenth Amendment as the sole question presented).

116. *Moore*, 144 S. Ct. at 1708 (Barrett, J., concurring in the judgment).

117. Justice Barrett listed three potential factors relevant to this analysis: (1) "whether the taxpayer has 'sufficient power and control over . . . the income'"; (2) "whether the taxpayer receives a special 'privilege or benefit' from the entity that earns the income"; and (3) "whether the corporation is foreign and thus outside the reach of an accumulated earnings tax." *Id.* (quoting Comm'r v. Sunnen, 333 U.S. 591, 604 (1948); *Burnet*, 289 U.S. at 679).

118. *See* Landgraf v. USI Film Prods., 511 U.S. 244, 266 (1994) ("The Due Process Clause also protects the interests in fair notice and repose that may be compromised by retroactive legislation; a justification sufficient to validate a statute's prospective application under the Clause 'may not suffice' to warrant its retroactive legislation." (citing Usery v. Turner Elkhorn Mining Co., 428 U.S. 1, 17 (1976))).

119. *See* United States v. Darusmont, 449 U.S. 292, 296 (1981) ("In enacting general revenue statutes, Congress almost without exception has given each such statute an effective date prior to the date of actual enactment.").

120. *See generally* Lauren Williams, *Retroactivity in the Federal Tax Field*, 12 U. SO. CAL. 1960 TAX. INST. 79 (extensively documenting this practice).

121. *See, e.g.*, Revenue Act of 1918, 40 Stat. 1057 (1919) (raising income tax rates for the previous calendar year); Life Insurance Company Income Tax Act of 1959, Pub. L. No. 86-69, 73 Stat. 112 (imposing a new tax effective the year before enactment).

122. *See* Stockdale v. Atl. Ins. Co., 87 U.S. (20 Wall.) 323, 331 (1873) ("The right of Congress to have imposed this tax by a new statute, although the measure of it was governed by the income of the past year, cannot be doubted; much less can it be doubted that it could impose such a tax on the income of the current year, though part of that year had elapsed when the statute was passed.").

123. Untermyer v. Anderson, 276 U.S. 440, 446 (1928) (Holmes, J., concurring).

before the levy's enactment into law,[124] the Court wrote that retroactivity-based impropriety requires case-by-case scrutiny into "the nature of the tax and the circumstances in which it is laid before it can be said that its retroactive application is so harsh and oppressive as to transgress the constitutional limitation."[125] It justified this position as follows:

> Taxation is neither a penalty imposed on the taxpayer nor a liability which he assumes by contract. It is but a way of apportioning the cost of government among those who in some measure are privileged to enjoy its benefits and must bear its burdens. Since no citizen enjoys immunity from that burden, its retroactive imposition does not necessarily infringe due process . . . .[126]

Six decades later, the Court shed further light when assessing the retroactive application of new qualification criteria for an estate tax deduction.[127] Rejecting the taxpayer's due process challenge while writing for the majority, Justice Blackmun noted two facets that fueled the tax's validity: Congress "acted promptly and established only a modest period of retroactivity," and its "purpose in enacting the amendment was neither illegitimate nor arbitrary."[128] As with the Court's government-favored framework for attribution, Justice Blackmun's two-part test has proven easily satisfied; indeed, the Moores forwent their retroactivity argument after the Ninth Circuit quickly rejected it,[129] and no federal income tax has ever been deemed unconstitutional on this ground.[130]

E. The Sixteenth Amendment

As mentioned in section I.B, *Pollock* quickly proved controversial among academics and the public; equated in disfavor to *Dred Scott*[131] and (according to then-President Taft) "injur[ing] the prestige of the Supreme Court more" than anything before,[132] Chief Justice Fuller's holding received spirited condemnation for unduly protecting wealthy taxpayers during the Gilded Age, a period of rampant economic inequality.[133] Accordingly, less than two decades after *Pollock*, Congress submitted one sentence to state legislatures for an eventually ratified Sixteenth Amendment: "The Congress shall have power to lay and collect taxes on incomes, from whatever source derived, without apportionment among the

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124. *See* Welch v. Henry, 305 U.S. 134, 141 (1938).
125. *Id.* at 147.
126. *Id.* at 146–47.
127. *See* United States v. Carlton, 512 U.S. 26, 28–29 (1994).
128. *Id.* at 32.
129. Moore v. United States, 144 S. Ct. 1680, 1686 (2024).
130. BITTKER & LOKKEN, *supra* note 85 ¶ 1.2.7, at 1-35.
131. *See* Joseph R. Long, *Tinkering with the Constitution*, 24 YALE L.J. 573, 576 (1913) ("[P]robably no[] [decision] since the *Dred Scott Case* has been so widely condemned.").
132. Letter from Archibald Butt to Clara Butt, *supra* note 23, at 134.
133. *See* BENJAMIN I. PAGE & MARTIN GILENS, DEMORACY IN AMERICA? WHAT HAS GONE WRONG AND WHAT WE CAN DO ABOUT IT 4 (2017) (describing the Gilded Age as a period involving "extreme inequalities of income and wealth" that "empowered the wealthy few and undermined democracy").

several States, and without regard to any census or enumeration."[134] Since the other doctrines in this Part consistently fall short, many taxpayer-litigants, including the Moores, have opted to root their constitutional challenges in this language.

As a preliminary matter, the frequency of such claims should give pause. The Constitution contains several express limits on federal taxation, yet alleged improprieties generally rely on the Sixteenth Amendment—a provision worded and intended to expand congressional power.[135] By starving taxpayers of colorable arguments elsewhere in the Constitution, the Court has ironically relegated them to a provision that, at first blush, dramatically expands possibilities for valid federal levies. Indeed, so long as it imposes taxes on "incomes[] from whatever source derived,"[136] Congress need not worry about apportionment. But as with the direct/indirect dichotomy from over one century ago,[137] therein lies the question: what is the constitutional meaning of income?

The answer is similarly unclear.[138] For instance, whereas several dictionaries and treatises dated near the Sixteenth Amendment's ratification define income to involve an accession in wealth potentially requiring some concrete separation between such accession and the income-producing property,[139] tax experts in the nineteenth century often denominated state property taxes as levies on income.[140] Perhaps in recognition of this ambiguity, the Court dodged analyzing the meaning of income in its earliest applications of the Sixteenth Amendment by instead effectively deferring to the government's interpretation—even over objections to its excessive breadth.[141] But in 1920, this judicial abdication ended. Denying Congress's attempt to tax pro rata stock dividends without apportionment under

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134. S.J. Res. 40, 61st Cong., 44 CONG. REC. 4390, 4411 (1909) (enacted); *see also* U.S. CONST. amend. XVI.

135. *See* Brushaber v. Union Pac. R.R. Co., 240 U.S. 1, 18 (1916) ("[T]he [Sixteenth] Amendment was drawn for the purpose of doing away for the future with the principle upon which the *Pollock Case* was decided.").

136. U.S. CONST. amend. XVI.

137. *See supra* note 70 and accompanying text.

138. *See* Charlotte Crane, *Pollock, Macomber, and the Role of the Federal Courts in the Development of the Income Tax in the United States*, LAW & CONTEMP. PROBS., Winter 2010, at 1, 6 (2010) ("The meanings of 'income' and 'income tax' at the time of the Sixteenth Amendment was passed were surprisingly uncertain.").

139. *See, e.g.*, HENRY CAMPBELL BLACK, A TREATISE ON THE LAW OF INCOME TAXATION UNDER FEDERAL AND STATE LAWS § 32, at 77 (1913) ("[T]he farmer's crop is not his income; it is the source from which his income will be derived when it is converted into cash."). *Compare* Benjamin G. Barokh, Note, *The Meaning of "Incomes" in the Sixteenth Amendment*, 15 GEO. J.L. & PUB. POL'Y 409, 422–23 (2017) (citing four dictionaries from that era to conclude "income necessitates an increase in *monetary* wealth," *id.* at 423 (emphasis added)), *with* John R. Brooks & David Gamage, *Moore v. United States* and the Original Meaning of Income 9 (July 13, 2023) (available at https://ssrn.com/abstract=4491855 [https://perma.cc/9GLL-Q8RJ]) (arguing none of the dictionaries from that era include a realization concept).

140. *See* EDWARD R.A. SELIGMAN, THE INCOME TAX 367–91 (1911) (surveying numerous pre–Sixteenth Amendment levies that, despite being denominated "income taxes," were closer in substance to property taxes).

141. *See* Charlotte Crane, *The Income Tax and the Burden of Perfection*, 100 NW. U. L. REV. 171, 179 n.21 (2006) (noting the Court in this era "indicated little interest in interfering with Congress's definition of 'income' despite complaints from the [taxpayers]").

the Sixteenth Amendment,[142] Justice Pitney promulgated the colloquially named realization requirement while writing for a narrow majority in *Eisner v. Macomber*[143]:

> We are clear that not only does a stock dividend really take nothing from the property of the corporation and add nothing to that of the shareholder, but that the antecedent accumulation of profits evidenced thereby, while indicating that the shareholder is the richer because of an increase of his capital, at the same time shows *he has not realized or received any income in the transaction*.[144]

However, this single taxpayer victory was followed by more than a century of resounding losses.[145] Within one year of *Macomber*, for instance, the Court had deemed taxes on capital gains and distributions of a corporate subsidiary's stock to both land within the Sixteenth Amendment.[146] Alongside scholarly criticism of a constitutional realization requirement,[147] numerous Justices have cast doubt over *Macomber*'s longevity with less-than-charitable comments such as "[w]e see nothing to be gained by the discussion of judicial definitions,"[148] "[t]he [realization] rule[] [was] founded on administrative convenience,"[149] "[*Macomber*] was not meant to provide a touchstone to all future gross income questions,"[150] and "*Macomber* dies a slow death."[151] Indeed, although the Court has not yet formally overruled *Macomber*,[152] many have justifiably cited this case law to argue

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142. *See* Revenue Act of 1916, ch. 463, § 2(a), 39 Stat. 756 ("[T]he net income of a taxable person shall include . . . dividends . . . [*p*]*rovided*, [t]hat the term 'dividends' as used in this title shall be held to mean any distribution made or ordered to be made by a corporation . . . whether in cash or in stock . . . ."); Eisner v. Macomber, 252 U.S. 189, 199–200, 219 (1920).

143. 252 U.S. 189.

144. *Id.* at 212 (emphasis added).

145. *See* BITTKER & LOKKEN, *supra* note 85 ¶ 1.2.4, at 1-26 ("*Eisner v. Macomber* was the high-water mark in the Supreme Court's attempt to provide an all-purpose definition of 'income.'").

146. *See* Merchants' Loan & Tr. Co. v. Smietanka, 255 U.S. 509, 515, 519–20 (1921) (upholding capital gains tax); Eldorado Coal & Mining Co. v. Mager, 255 U.S. 522, 526 (1921) (same); Goodrich v. Edwards, 255 U.S. 527, 533–35 (1921) (same); Walsh v. Brewster, 255 U.S. 536, 537–38 (1921) (same); United States v. Phellis, 257 U.S. 156, 165, 168–69 (1921) (upholding tax on distribution of subsidiary's stock); Rockefeller v. United States, 257 U.S. 176, 180–84 (1921) (same).

147. *See, e.g.*, Ackerman, *supra* note 10, at 52 ("While [tax lawyers] continue to feature *Macomber* in their casebooks, their treatment of this 'leading case' is anything but respectful."); Boris I. Bittker, *Constitutional Limits on the Taxing Power of the Federal Government*, 41 TAX LAW. 3, 4 (1987) ("Even in law school, once the instructor has finished flogging *Eisner v. Macomber*, the class usually moves on to the 'real' issues of federal income taxation . . . .").

148. United States v. Kirby Lumber Co., 284 U.S. 1, 3 (1931).

149. Helvering v. Horst, 311 U.S. 112, 116 (1940).

150. Comm'r v. Glenshaw Glass Co., 348 U.S. 426, 431 (1955) (citing Helvering v. Bruun, 309 U.S. 461, 468–69 (1940); *Kirby Lumber*, 284 U.S. at 3).

151. Helvering v. Griffiths, 318 U.S. 371, 404 (1943) (Douglas, J., dissenting).

152. *See* Lawrence Zelenak, *The Income Tax, the Constitution, and the Unrealized Importance of* Helvering v. Griffiths, 43 VA. TAX REV. 257, 259 (2023) ("*Macomber* is still there, never overruled . . . .").

that Justice Pitney's holding applies only to pro rata stock dividends and nothing more.[153]

Of course, the Court could have decisively revitalized or "stabbed" (in the words of Chief Justice Roberts[154]) this realization principle in *Moore*. But it opted for neither. Instead, the majority clarified that it need not resolve the issue because, assuming arguendo the Sixteenth Amendment demands a realization event, the MRT satisfies this requirement by validly taxing foreign corporate earnings—albeit through a retroactive levy attributed to shareholders.[155] And while five Justices expressed a willingness to conclusively answer this matter in one direction[156] or the other,[157] the remainder of the Court was content in maintaining its habit developed over the last century of Sixteenth Amendment cases: uphold the tax at issue and keep *Macomber* clinging to life support.

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With the drawn-out downfall of a realization requirement, the Court has hammered its final nail in the coffin for constitutional challenges to federal taxes. Although the Framers set forth an array of seemingly meaningful protections during the Constitutional Convention, such guarantees have waned in potency through, inter alia, a narrow view of direct taxation; the ratification of the Sixteenth Amendment and its expansive, at least as later interpreted, permission to tax "incomes"; and the government-favored tests for clauses elsewhere that might have otherwise circumscribed congressional power. When mixed, these trends leave few chances to raise even tenable arguments of constitutional impropriety. For better or worse, taxpayer-litigants are almost doomed to fail if they ground their cases in the Constitution's tax-related clauses—standing by themselves, that is.

II. THE COMPLICATED AND CONTROVERSIAL DEVELOPMENT OF HYBRID RIGHTS

Cue hybrid rights. Facially originating from a Justice Scalia–authored opinion on the Free Exercise Clause[158] but substantively dating back to one of the Court's

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153. *See, e.g.*, MICHAEL J. GRAETZ, FEDERAL INCOME TAXATION: PRINCIPLES AND POLICIES 201 (Foundation Press, 2d ed. 1988) ("[A]lthough the court has not overruled *Macomber*, it has confined the decision to its facts"); Thomas L. Evans, *The Taxation of Nonshareholder Contributions to Capital: An Economic Analysis*, 45 VAND. L. REV. 1457, 1464 n.19 (1992) (citing the previous source and an assortment of other scholarship reaching similar conclusions).

154. *See, e.g.*, Transcript of Oral Argument at 61, Moore v. United States, 144 S. Ct. 1680 (2024) (No. 22-800), https://www.supremecourt.gov/oral_arguments/argument_transcripts/2023/22-800_097c.pdf [https://perma.cc/QK5V-HJ35] (fearing that Solicitor General Elizabeth Prelogar "stabbed *Macomber*" by limiting application of its holding to just pro rata stock dividends).

155. *Moore*, 144 S. Ct. at 1688 ("Critically, however, the MRT *does* tax realized income—namely, income realized by the corporation, KisanKraft.").

156. *See id.* at 1689 (Jackson, J., concurring) (rejecting the presence of a realization requirement). No other Justice joined this concurrence or expressly rejected a constitutional realization requirement elsewhere in *Moore*.

157. *See id.* at 1704 (Barrett, J., concurring in the judgment) (confirming the presence of a realization requirement); *id.* at 1722 (Thomas, J., dissenting) (same). Justice Alito joined Justice Barrett while Justice Gorsuch joined Justice Thomas.

158. *See* Emp. Div. v. Smith, 494 U.S. 872, 881–82 (1990); *infra* section II.A.

earliest landmark cases on congressional power,[159] this doctrine permits the judicial recognition of rights stemming from interactions between two or more clauses in the Constitution—even when these provisions alone fall short of conferring such protection. In other words, hybrid rights form the jurisprudential embodiment of "the whole is greater than the sum of its parts." Indeed, they prove especially salient when constitutional challenges invoke elements of multiple provisions yet reside just inside the bounds of propriety for each of them individually. In such instances, the hybrid-rights doctrine can deliver the final nudge needed for judicial invalidation. And given the ineffectiveness of taxpayers' arguments under each of the Constitution's taxing clauses by themselves, hybrid rights provide a colorable means to repackage these unsuccessful claims into a potent amalgamation.

But there is a catch: hybrid rights have a complex past, controversial present, and uncertain future. Among other scathing critiques, respectable jurists have labeled the doctrine "untenable,"[160] "completely illogical,"[161] and "not intended to be taken seriously."[162] Indeed, just four years ago, one-third of the current Court (Justices Thomas, Alito, and Gorsuch) expressed interest in outright eliminating recognition of such rights since they purportedly "baffled the lower courts" and had not enjoyed Supreme Court–level endorsement in over three decades.[163]

Yet remarkably, the doctrine (at least on its surface) remains good law across most of the nation and (in substance) supports well-known precedent beyond its explicit origins in the Free Exercise Clause. This Part accordingly surveys foundational precedent to grasp the theoretical and historical underpinnings of otherwise elusive hybrid rights. In doing so, it posits that the Court has repeatedly applied this doctrine in landmark cases outside both First Amendment jurisprudence and individual rights more broadly—thereby laying the groundwork for its extension into taxation.

A. Alfred Smith and the Terrible, Horrible, No Good, Very Bad Doctrine[164]

Coverage of hybrid rights often starts (and ends) with the Court's controversial decision in *Employment Division v. Smith*.[165] Writing for the narrow majority, Justice Scalia rejected a First Amendment challenge to Oregon's denial of unemployment compensation for a member of the Native American Church who had lost his job after illegally consuming peyote, a hallucinogen, as part of a religious

159. *See* McCulloch v. Maryland, 17 U.S. (4 Wheat.) 316, 406 (1819); *infra* section II.C.

160. Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah, 508 U.S. 520, 567 (Souter, J., concurring in part and concurring in the judgment).

161. Kissinger v. Bd. of Trs., 5 F.3d 177, 180 (6th Cir. 1993).

162. Michael W. McConnell, *Free Exercise Revisionism and the* Smith *Decision*, 57 U. CHI. L. REV. 1109, 1122 (1990).

163. Fulton v. City of Philadelphia, 593 U.S. 522, 600, 603–04 (2021) (Alito, J., concurring in the judgment).

164. *Cf.* JUDITH VIORST, ALEXANDER AND THE TERRIBLE, HORRIBLE, NO GOOD, VERY BAD DAY (1972) (cover).

165. 494 U.S. 872.

ceremony.[166] Effectively performing (without stating as such) rational basis review,[167] Justice Scalia concluded—to many commentators' surprise[168]—that the Free Exercise Clause "does not relieve an individual of the obligation to comply with a 'valid and neutral law of general applicability on the ground that the law proscribes (or prescribes) conduct that his religion prescribes (or proscribes).'"[169] Reconciling his bright-line rule with decades of seemingly contradictory precedent, Justice Scalia argued such past cases "involved not the Free Exercise Clause alone, but the Free Exercise Clause *in conjunction with other constitutional protections*."[170] In his view, these "hybrid situation[s]"[171] warranted stricter judicial review because they implicated multiple areas of the Constitution, such as freedom of speech and the press, simultaneously.[172] And it is this portion of Justice Scalia's opinion that, technically without ever mentioning the two-word phrase, formed the Court's seminal guidance on hybrid rights.

While *Smith* superficially remains good law, its days are numbered; after over three decades of criticism from within[173] and beyond[174] legal academia, the core of Justice Scalia's opinion—requiring merely a rational basis for most neutral, generally applicable laws that burden religious practice—received skepticism or outright disdain from five sitting Justices in *Fulton v. City of Philadelphia*.[175] Namely, Justices Alito and Gorsuch (both of whom were joined by Justice Thomas as well as each other) endorsed overruling the "fundamentally wrong"[176] and "mistaken"[177] holding in *Smith* whereas Justice Barrett (joined only by Justice Kavanaugh in this portion of her concurrence) signaled she would reach the same conclusion in a future case and expressed the Court's need for a suitable doctrine in *Smith*'s wake.[178] Perhaps unsurprisingly, countless scholars have

166. *See id.* at 874, 890.

167. *See, e.g.*, Jamal Greene, Essay, *The Age of Scalia*, 130 HARV. L. REV. 144, 163–64 (2016) (referring to the test applied in *Smith* as "rational basis review," *id.* at 163).

168. *See, e.g.*, Douglas Laycock, *The Remnants of Free Exercise*, 1990 SUP. CT. REV. 1, 1 (1991) ("*Smith* produced widespread disbelief and outrage.").

169. *Smith*, 494 U.S. at 879 (quoting United States v. Lee, 455 U.S. 252, 263 n.3 (1982) (Stevens, J., concurring in the judgment)).

170. *Id.* at 881 (emphasis added).

171. *Id.* at 882.

172. *See id.* at 881–82.

173. *See, e.g.*, Ira C. Lupu, Employment Division v. Smith *and the Decline of Supreme Court-Centrism*, 1993 B.Y.U. L. REV. 259, 269 (1993) ("Criticizing *Smith* is no longer original or useful; we have all become repetitive in our criticisms, and by now, our audiences are either persuaded or turned off."); Steven H. Shiffrin, *The Pluralistic Foundations of the Religion Clauses*, 90 CORNELL L. REV. 9, 11 n.2 (2004) (citing other scholarly attacks, and some defenses, of *Smith*).

174. *See, e.g.*, *The* Smith *Decision*, PEW RSCH. CTR. (Oct. 24, 2007), https://www.pewresearch.org/religion/2007/10/24/a-delicate-balance6/[https://perma.cc/ZR97-RBCF] ("The *Smith* decision produced a significant political protest from religious organizations and civil liberties groups . . . .").

175. 593 U.S. 522 (2021); *see id.* at 543 (Barrett, J., concurring); *id.* at 545 (Alito, J., concurring in the judgment); *id.* at 618 (Gorsuch, J., concurring in the judgment).

176. *Id.* at 545 (Alito, J., concurring in the judgment).

177. *Id.* at 618 (Gorsuch, J., concurring in the judgment).

178. *See id.* at 543–44 (Barrett, J., concurring).

scrutinized replacements for *Smith* in seeming anticipation of its eventual downfall.[179]

But the hybrid rights baby need not be thrown out with the rational basis bathwater. Despite collectively indicating their interest in overruling *Smith* to the extent that it imposed rational basis review, these five Justices lacked comparable consensus on the portions of Justice Scalia's opinion concerning hybrid rights. Justice Alito criticized this "curious doctrine" as (among other things) "unworkable" in his three-vote concurrence,[180] but Justice Barrett's three-vote concurrence—and Chief Justice Roberts's majority—forwent discussing the matter.[181] Further, any future rejection of *Smith*'s holding does not necessitate simultaneously eliminating the hybrid-rights doctrine. Indeed, in ironic attempts to cabin the latter's relevance, the Second, Third, and Sixth Circuits have deemed Justice Scalia's discourse on hybrid rights "dicta" that could accordingly be ignored.[182] Leveraging this same label, future jurists could credibly argue for the continued vitality of the hybrid-rights doctrine regardless of the Court's growing disfavor toward other portions of *Smith*.

Another problem looms large: the Court has thus far expressly invoked hybrid rights in only cases involving the Free Exercise Clause's alleged interaction with some other constitutional provision.[183] That is to say, for litigants raising claims of unconstitutionality elsewhere, this doctrine may not apply altogether. Especially when combined with the justified concerns over *Smith*'s continued validity, novel theories further propagating the hybrid-rights doctrine must offer support beyond Justice Scalia's widely panned and largely one-off opinion. Fortunately, the Court has repeatedly applied this now-contested framework in well-known decisions outside the context of the First Amendment—just without acknowledging as such.[184]

B. The (Real) Origins of Hybrid Rights

From one controversial case to another, the Court in *Griswold v. Connecticut*[185] invalidated a state law that barred "[a]ny person," including married couples, from using "any drug, medicinal article or instrument for the

179. *See, e.g.*, Stephanie H. Barclay, *Replacing* Smith, 133 YALE L.J. F. 436, 439 (2023) (arguing for strict scrutiny); Christopher C. Lund, *Answers to* Fulton*'s Questions*, 108 IOWA L. REV. 2075, 2093 (2023) (same).

180. *Fulton*, 593 U.S. at 599 (Alito, J., concurring in the judgment).

181. *See id.* at 543–44 (Barrett, J., concurring); *id.* at 526–43 (majority opinion).

182. *See* Knight v. Conn. Dept. of Pub. Health, 275 F.3d 156, 167 (2d Cir. 2001); Combs v. Homer-Ctr. Sch. Dist., 540 F.3d 231, 247 (3d Cir. 2008); Watchtower Bible & Tract Soc'y of N.Y, Inc. v. Village of Stratton, 240 F.3d 553, 561 (6th Cir. 2001).

183. *See* Ariel Porat & Eric A. Posner, *Aggregation and Law*, 122 YALE L.J. 2, 2 (2012) ("[T]he hybrid rights doctrine permits courts to aggregate two weak constitutional claims as long as one involves free exercise of religion.").

184. Dan T. Coenen, *Reconceptualizing Hybrid Rights*, 61 B.C. L. REV. 2355, 2363 (2020) (arguing the Court in *Smith* and *Obergefell* simply "acted as it routinely acts in dealing with rights-related disputes").

185. 381 U.S. 479 (1965).

purpose of preventing conception."[186] Writing for the majority, Justice Douglas deemed this statute unconstitutional through a now-famous and oft-criticized[187] argument strikingly similar to Justice Scalia's conception of hybrid rights: "[S]pecific guarantees in the Bill of Rights have penumbras, formed by emanations from those guarantees that help give them life and substance."[188] He next posited that "[v]arious" of these "guarantees create zones of privacy," including the First Amendment's freedom of association, the Third Amendment's prohibition against forcibly quartering soldiers during peacetime, the Fourth Amendment's protection against unreasonable searches and seizures, the Fifth Amendment's Self-Incrimination Clause, and the Ninth Amendment's guarantee that enumerated rights "shall not be construed to deny or disparage others retained by the people."[189] Emphasizing that both the Fourth and Fifth Amendments limited "governmental invasions 'of the sanctity of a man's home and the privacies of life,'"[190] Justice Douglas cited several cases wherein the Court established "penumbral rights of 'privacy and repose'" to conclude "the right of privacy which presses for recognition here is a legitimate one."[191]

Albeit without writing the word "hybrid," Justice Douglas in *Griswold* substantively relied on the same analytical approach as that of Justice Scalia squaring away precedent in *Smith*.[192] Just as the Free Exercise Clause purportedly supplies stronger protection for religious practices involving some second domain of the Constitution,[193] the scattered privacy-conferring elements in the Bill of Rights allegedly combine to guarantee contraceptive access for married couples even though no standalone constitutional provision offers such protection.[194] Further evidencing this analogousness, the academic barrage toward *Smith*'s hybrid rights generally applies with equal fervor to *Griswold*'s penumbras. For instance, Professor John Hart Ely labeled Justice Douglas's opinion "vague and open-ended,"[195] and Professor Cass Sunstein has more recently asserted that "almost no one defends *Griswold* as originally written."[196] Indeed, these criticisms share many of the same critics; for instance, both one year before and after joining

186. CONN. GEN. STAT. REV. § 53-32 (1958).

187. *See, e.g.*, ROBERT H. BORK, THE TEMPTING OF AMERICA: THE POLITICAL SEDUCTION OF THE LAW 234 (1990) (referring to Justice Douglas's opinion as an "intellectual catastrophe").

188. *Griswold*, 381 U.S. at 484.

189. *Id.*

190. *Id.* (quoting Boyd v. United States, 116 U.S. 616, 630 (1886)).

191. *Id.* at 485.

192. *See* Michael Coenen, *Combining Constitutional Clauses*, 164 U. PA. L. REV. 1067, 1078, 1081 (2016) (arguing both *Smith* and *Griswold* exemplify "right/right combinations" that "find a reason to invalidate government action in the combined operation of two or more rights-related provisions").

193. *See* Emp. Div. v. Smith, 494 U.S. 872, 881–82 (1990).

194. *See Griswold*, 381 U.S. at 484.

195. John Hart Ely, *The Wages of Crying Wolf: A Comment on* Roe v. Wade, 82 YALE L.J. 920, 929 n.69 (1973).

196. Cass R. Sunstein, *The Supreme Court, 2007 Term—Comment: Second Amendment Minimalism:* Heller *as* Griswold, 122 HARV. L. REV. 246, 261 (2008).

Justice Alito's *Fulton* concurrence lambasting the hybrid-rights doctrine,[197] Justice Thomas criticized *Griswold*'s logic as "mystifying," "baseless,"[198] and deserving of the Court's "reconsider[ation]."[199]

Yet simultaneously, and again like *Smith*, the "penumbral reasoning" of *Griswold* facially remains good law.[200] Although Justice Thomas expressly supported reexamining this precedent when the Court rejected a constitutional right to abortion in *Dobbs v. Jackson Women's Health Organization*,[201] none of his colleagues joined the call to action. Instead, the majority clarified its decision had no bearing on the validity of *Griswold* (among other case law),[202] and four Justices further stressed this assurance across two opinions—one concurring[203] and the other dissenting.[204] Accordingly, while *Dobbs* casts nonnegligible uncertainty over precedent on constitutional rights to reproductive freedom, *Griswold* need not fall in tandem with *Roe* and *Casey*.[205] Far from being isolated to Justice Scalia's one-time harmonization of precedent involving the Free Exercise Clause, the hybrid-rights doctrine first received support from a majority of Justices at least twenty-five years earlier in a case that remains good law and resides outside the First Amendment context.

C. A More Recent, Yet in Denial, Invocation of Hybrid Rights

Thus far, the cases invoking hybrid rights enjoy weak relevance today; *Fulton* all but sounded the death knell for *Smith*, and the Court has rarely endorsed constitutional penumbras in the sixty years since *Griswold*.[206] Recently, however, the Court marked its return to the hybrid-rights doctrine—again without explicitly saying so—in yet another hotly contested decision: *Obergefell v. Hodges*.[207] Writing for a one-vote majority, Justice Kennedy deemed a series of state restrictions on same-sex marriage unconstitutional[208] through an argument comparable to both Justice Scalia's hybrid rights and Justice Douglas's penumbras:

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197. *See supra* note 176 and accompanying text.

198. June Med. Servs. v. Russo, 591 U.S. 299, 372 (2020) (Thomas, J., dissenting).

199. Dobbs v. Jackson Women's Health Org., 597 U.S. 215, 332 (2022) (Thomas, J., concurring).

200. *See* Marc Spindelman, Dobbs' *Sex Equality Troubles*, 32 WM. & MARY BILL RTS. J. 117, 168 (2023).

201. *Dobbs*, 597 U.S. at 332 (Thomas, J., concurring).

202. *Id.* at 295 (majority opinion) ("[T]he dissent suggests that our decision calls into question *Griswold* . . . [b]ut we have stated unequivocally that '[n]othing in this opinion should be understood to cast doubt on precedents that do not concern abortion.'" (quoting *id.* at 290 (alteration in original))).

203. *Id.* at 346 (Kavanaugh, J., concurring) (listing *Griswold* among cases possibly thrown into question after *Dobbs* but reaffirming that "[o]verruling *Roe* does *not* mean the overruling of those precedents, and does *not* threaten or cast doubt on those precedents").

204. *See id.* at 386 (Breyer, Sotomayor & Kagan, JJ., dissenting) ("If we had to guess, we suspect the prospects of this Court approving bans on contraception are low.").

205. *Cf.* William W. Van Alstyne, *Closing the Circle of Constitutional Review from* Griswold v. Connecticut *to* Roe v. Wade*: An Outline of a Decision Merely Overruling* Roe, 1989 DUKE L. J. 1677, 1683 ("*Griswold*, then, did not imply *Roe*, or anything even close.").

206. *See* Mary Anne Case, *Donorsexuality After* Dobbs, 2022 U. CHI. LEGAL F. 101, 123 ("[T]he reasoning and language of *Griswold* . . . have never been taken up in later cases . . . .").

207. 576 U.S. 644 (2015).

208. *See id.* at 653–54, 681.

> The Due Process Clause and Equal Protection Clause are connected in a profound way, though they set forth independent principles. Rights implicit in liberty and rights secured by equal protection may rest on different precepts and are not always co-extensive, yet in some instances they may be instructive as to the meaning and reach of the other. In any particular case one Clause may be thought to capture the essence of the right in a more accurate and comprehensive way, even as the two Clauses may converge in the identification and definition of the right.[209]

In the words of Chief Justice Roberts's dissenting opinion, this reasoning is "quite frankly, difficult to follow."[210] While some read *Obergefell* to suggest that *either* the Due Process Clause or the Equal Protection Clause suffice in establishing a constitutionally protected right to gay marriage,[211] many believe Justice Kennedy grounded his holding in some unspecified *combination* of these provisions[212] as evidenced by, inter alia, his emphasis on their "interrelation"[213] and "synergy."[214] Under this latter reading, the Court again interpreted the Constitution in a manner substantively comparable to Justice Scalia's reconciliation of precedent in *Smith*.[215] Even though due process and equal protection rights, when standing alone, might not guarantee access to same-sex marriage,[216] the overall bounds of constitutional protections expand to encompass such access when analyzing these provisions in combination with each other. In other words, without writing the phrase "hybrid rights," the Court substantively reaffirmed Justice Scalia's facially controversial doctrine in a watershed decision released just ten years ago.[217] And building on *Griswold*, it did so not only outside the context of the First Amendment, but also partially outside the Bill of Rights.

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209. *Id.* at 672.

210. *Id.* at 706 (Roberts, C.J., dissenting).

211. *See, e.g.*, Russell K. Robinson, *Unequal Protection*, 68 STAN. L. REV. 151, 179 (2016) ("Justice Kennedy arguably held that the marriage laws before the Court violated due process and equal protection . . . .").

212. *See, e.g.*, David A. Strauss, *The Supreme Court, 2014 Term—Foreword: Does the Constitution Mean What It Says?*, 129 HARV. L. REV. 1, 6 (2015) ("The Court in *Obergefell* explicitly conflated the Due Process and Equal Protection Clauses, and that is unusual." (footnote omitted)).

213. *Obergefell*, 576 U.S. at 672.

214. *Id.* at 673.

215. *See* Coenen, *supra* note 184, at 2357–58 (analogizing *Smith* and *Obergefell*).

216. *See, e.g.*, Kerry Abrams & Brandon L. Garrett, *Cumulative Constitutional Rights*, 97 B.U. L. REV. 1309, 1335 (2017) ("The Court implied that the discrimination claim and the fundamental rights claim, standing alone, were not as strong.").

217. *See* Coenen, *supra* note 184, at 2358 ("Then came *Obergefell v. Hodges*. In that watershed ruling, the Court again put hybrid-rights reasoning to work in invalidating all state restrictions on same-sex marriage." (footnote omitted)).

At this point, the main problem with citing *Obergefell* should sound familiar: this case risks being overruled.[218] Alongside criticizing *Griswold*, Justice Thomas in *Dobbs* casted doubt over *Obergefell* "[b]ecause any substantive due process decision is 'demonstrably erroneous.'"[219] Yet while anxiety over *Obergefell*'s downfall[220] carries some merit, a sufficiently large subset of the Court does not seem to share Justice Thomas's vindictiveness; his *Dobbs* concurrence received no other votes,[221] several Justices signaled support for *Obergefell* in that same case,[222] and even Justice Thomas acknowledged the possibility of a right to same-sex marriage existing elsewhere in the Constitution (namely, the Privileges or Immunities Clause).[223] Indeed, in a six-vote per curiam opinion from 2017 that included Chief Justice Roberts (who concurred with the judgment in *Dobbs*[224]), the Court began by confirming that "the Constitution entitles same-sex couples to civil marriage 'on the same terms and conditions as opposite-sex couples.'"[225] In other words, although *Obergefell* does not stand on the surest footing, it provides a recent application of the hybrid-rights doctrine that should resonate with a nonnegligible portion of the current Court.

D. The Government's Hybrid Powers

While *Smith*, *Griswold*, and *Obergefell* provide the three most well-known invocations of hybrid rights (presumably due to their political salience), the Court has leveraged this doctrine—be it expressly or impliedly—in numerous contexts across the broader realm of individual liberty.[226] And the binding precedent does not end there; dating back to *McCulloch v. Maryland*,[227] the Court has recognized a governmental cognate to hybrid rights (which this Note names "hybrid powers") wherein multiple constitutional provisions intersect to expand the breadth of federal authority.[228] In particular, despite the Constitution's facial

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218. *See* Melissa Murray & Katherine Shaw, Dobbs *and Democracy*, 137 HARV. L. REV. 728, 758 (2024) ("[T]here is every reason to fear that *Obergefell* could be next.").

219. Dobbs v. Jackson Women's Health Org., 597 U.S. 215, 332 (Thomas, J., concurring) (quoting Ramos v. Louisiana, 590 U.S. 83, 138 (2020) (Thomas, J., concurring in the judgment)).

220. *See, e.g.*, Nina Varsava, *Precedent, Reliance, and* Dobbs, 136 HARV. L. REV. 1845, 1897 n.257 (2023) (citing an assortment of scholarly anxiety about other precedent, including *Obergefell*, being overruled after *Dobbs*).

221. *See Dobbs*, 597 U.S. at 330 (Thomas, J., concurring).

222. Both Justices Alito and Kavanaugh listed *Obergefell* alongside *Griswold* when stating that *Dobbs* does not require overruling any other landmark precedent. *See Dobbs*, 597 U.S. at 295; *id.* at 346 (Kavanaugh, J., concurring).

223. *See Dobbs*, 597 U.S. at 333 (Thomas, J., concurring) ("[W]e could consider whether any of the rights announced in this Court's substantive due process cases are 'privileges or immunities of citizens of the United States.'" (quoting U.S. CONST. amend. XIV)).

224. *See id.* at 347 (Roberts, C.J., concurring in the judgment).

225. Pavan v. Smith, 582 U.S. 563, 564 (2017) (per curiam) (quoting Obergefell v. Hodges, 576 U.S. 644, 676 (2015)).

226. *See* Coenen, *supra* note 192, at 1080–82 (citing other invocations of the hybrid-rights doctrine).

227. 17 U.S. (4 Wheat.) 316 (1819).

228. *See* Coenen, *supra* note 192, at 1078 (referring to this same concept wherein "combinations find a reason to validate congressional action in the combined operation of two or more constitutional grants of lawmaking authority" as "power/power combinations").

silence regarding Congress's ability to charter a national bank, Chief Justice Marshall concluded that no such language was needed since the Necessary and Proper Clause impliedly vested the legislature with authority over measures "incidental" to its enumerated powers.[229] He found this standard satisfied via five distinct clauses:

> Although, among the enumerated powers of government, we do not find the word "bank" or "incorporation," we find the great powers to lay and collect taxes; to borrow money; to regulate commerce; to declare and conduct a war; and to raise and support armies and navies. The sword and the purse, all the external relations, and no inconsiderable portion of the industry of the nation, are entrusted to its government.[230]

Roughly fifty years later, the Court in *Knox v. Lee*[231] (one of the *Legal Tender Cases*) conveyed even clearer support for hybrid powers when defending the constitutionality of paper money[232]: "It is allowable to group together any number of [enumerated powers] and infer from them all that the power claimed has been conferred."[233] The reasoning in these landmark decisions tracks that of *Smith*'s hybrid rights, *Griswold*'s penumbras, and *Obergefell*'s synergies.[234] Indeed, whereas critics of the latter cases (and any related precedent) inevitably emphasize the absence of language in the Constitution conferring such individual protections,[235] the Necessary and Proper Clause requires interplay with other constitutional domains since it has long been deemed to "not itself [be] a grant of power."[236] And although the Court has rarely embraced hybrid *enumerated* powers (i.e., the combination of provisions beyond the Necessary and Proper Clause), scholars attribute this phenomenon to the expansiveness of certain standalone provisions—primarily the Commerce Clause[237]—that preclude the need for the hybrid-powers doctrine.[238] Consequently, in addition to exemplifying still-well-renowned invocations of combinatory constitutional analysis, *McCulloch*

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229. *McCulloch*, 17 U.S. (4 Wheat.) at 406, 411–12.

230. *Id.* at 407.

231. 79 U.S. (12 Wall.) 457 (1871).

232. *See id.* at 529, 552.

233. *Id.* at 534.

234. *See* Coenen, *supra* note 192, at 1077–78 (lumping "'right/right' combinations" and "'power/power' combinations," *id.* at 1078, into the broader category of "combination analysis," *id.* at 1077).

235. *See, e.g.*, Obergefell v. Hodges, 576 U.S. 644, 716 (2015) (Scalia, J., dissenting) ("We have no basis for striking down a practice that is not expressly prohibited by the Fourteenth Amendment's text . . . .").

236. Kinsella v. United States *ex rel.* Singleton, 361 U.S. 234, 247 (1960).

237. *See* Bruce Ackerman & David Golove, *Is NAFTA Constitutional?*, 108 HARV. L. REV. 799, 857 n.255 (1995) (noting that, by the middle of the twentieth century, the Court "construed Congress's commerce powers as virtually unlimited").

238. *See, e.g.*, Coenen, *supra* note 192, at 1088 ("[W]hy bother combining the Commerce Clause with another power-related provision when the Commerce Clause will most likely suffice to uphold an enactment on its own?").

and *Knox* demonstrate that the federal government enjoys a slice of the hybridity pie.

E. A Hybrid of Hybrid Rights and Hybrid Powers

One more category: alongside individual-specific hybrid rights and government-specific hybrid powers, the Court has occasionally analyzed intersections *between* these two categories of provisions. For a recent and well-known application of this doctrine, Justice Kennedy returns with his majority opinion in *United States v. Windsor*.[239] In striking down a section of the Defense of Marriage Act (DOMA) that purported to deny federal recognition of same-sex marriages,[240] he not only relied upon equal protection and substantive due process rights (as in *Obergefell*),[241] but also fundamental principles of federalism: "DOMA, because of its reach and extent, departs from [the United States'] history and tradition of reliance on state law to define marriage."[242] The outcome-determinative linchpin in *Windsor* remains ambiguous[243] (especially since *Obergefell* found a constitutional right to same-sex marriage despite lacking federalism concerns[244]), but Justice Kennedy's emphasis on state power suggests that *Windsor* would have come out differently had the Court been unable to cite such structural concerns alongside the Equal Protection and Due Process Clauses.[245] And while some contest this interpretation of *Windsor*,[246] earlier opinions have more expressly leveraged analogous reasoning regardless. For instance, the Court in *Hampton v. Mow Sun Wong*[247] combined principles of equal protection and nondelegation to invalidate an agency regulation that barred noncitizens from employment in federal civil service positions.[248]

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239. 570 U.S. 744 (2013).

240. *See* Defense of Marriage Act, Pub. L. No. 104-199, § 3, 110 Stat. 2419 (1996).

241. *Windsor*, 570 U.S. at 769 ("DOMA seeks to injure the very class New York seeks to protect. By doing so it violates basic due process and equal protection principles applicable to the Federal Government.").

242. *Id.* at 768.

243. *See id.* at 799 (Scalia, J., dissenting) ("Lord, an opinion with such scatter-shot rationales as this one (federalism noises among them) can be distinguished in many ways.").

244. *See* Obergefell v. Hodges, 576 U.S. 644, 672 (2015).

245. *Compare, e.g.*, Bostic v. Schaefer, 760 F.3d 352, 379 (4th Cir. 2014) ("*Windsor* does not teach us that federalism principles can justify depriving individuals of their constitutional rights . . . ."), *with id.* at 398 (Niemeyer, J., dissenting) ("The U.S. Constitution does not, in my judgment, restrict the States' policy choices on this issue. If given the choice, some States will surely recognize same-sex marriage and some will surely not. But that is, to be sure, the beauty of federalism.").

246. *E.g.*, Douglas Nejaime, Windsor'*s Right to Marry*, 123 YALE L.J. ONLINE 219, 219 (2013) ("[T]hough the U.S. Supreme Court's decision in Windsor's favor is sprinkled with elements of federalism and due process, it ultimately rests on equal protection grounds."); Cary Franklin, *Marrying Liberty and Equality: The New Jurisprudence of Gay Rights*, 100 VA. L. REV. 817, 871 (2014) ("*United States v. Windsor* was (at least in part) an equal protection decision—about that, lower courts are in agreement.").

247. 426 U.S. 88 (1976).

248. *See* Coenen, *supra* note 192, at 1083–84 ("Though ostensibly grounded in equal protection principles, [*Mow Sun Wong*] also pointed to the absence of presidential or congressional involvement . . . .").

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Admittedly, none of the mezzanine-hybrid cases connect their analytical frameworks to the hybrid rights and hybrid powers precedent detailed earlier. Yet all three categories, in substance, rely on the same foundation[249]: certain constitutional provisions mix to create a whole greater than the sum of its parts. Despite being often restricted to the Free Exercise Clause (and perhaps substantive due process[250]), hybrid rights and powers have permeated through landmark precedent from the Court—spanning a diverse array of constitutional provisions—for over two centuries. Several sitting Justices might downplay the marked influence of this doctrine on present-day jurisprudence,[251] but such an approach requires either overruling or overhauling the logic behind numerous legally and politically salient cases. Accordingly, while the Court has proven reluctant to endorse new constitutional rights, future litigants can cite the cases above to credibly argue that still-valid precedent justifies the extension of hybrid constitutional analysis into new forays.

III. THE PLAUSIBLE PROSPECTS FOR HYBRID RIGHTS IN TAXATION

As the prior discussion elucidates, hybrid rights and powers firmly reside within the Court's constitutional jurisprudence yet suffer from an outsized share of criticism and inconsistent application. However, since all of the relevant precedent in Part II remains good law (at least for the moment), hopeful litigants should consider resorting to such hybrid theories when raising constitutional challenges that lack compelling arguments under standalone clauses. And if the Court continues its trend of expanding federal taxing powers while simultaneously narrowing procedural safeguards (as Part I had detailed), this strategy offers one of the few remaining routes for taxpayers to escape constitutionally dubious levies. Consequently, this Part discusses the prospects for extending the hybrid-rights doctrine into taxation, explaining the basic mechanics of such a maneuver before addressing its jurisprudential coherence and challenges.

A. The Fundamentals

First, the groundwork: rather than the current landscape wherein taxpayer-litigants raise ill-fated claims of constitutional impropriety on a clause-by-clause basis, the hybrid-rights doctrine would recognize challenges that incorporate elements from multiple tax-related provisions. Just as the Court has previously found, say, "penumbras" across the Bill of Rights[252] and "synergy" between due process and equal protection principles,[253] it could endorse a legally relevant

249. *See id.* at 1078 (lumping "right/right," "right/no-power," and "power/power" combinations into the overarching category of "combination-based reasoning within operative constitutional doctrine").

250. *See* Am. Friends Serv. Comm. Corp. v. Thornburgh, 951 F.2d 957, 960 (9th Cir. 1991) (noting that hybrid rights "are restricted to express constitutional protections such as freedom of speech, and firmly recognized substantive due process rights").

251. *See supra* note 180 and accompanying text.

252. Griswold v. Connecticut, 381 U.S. 479, 484 (1965).

253. Obergefell v. Hodges, 576 U.S. 644, 673 (2015).

intersection connecting, say, the Direct Tax Clauses with the Sixteenth Amendment. Through this expansion, the hybrid-rights doctrine would create better opportunities for courts to invalidate taxes that approach the bounds of several constitutional provisions yet do not transcend any of them individually. In other words, while retaining the centuries of still-valid case law from Part I, taxpayer-litigants could credibly cite the centuries of still-valid case law from Part II to justify repackaging the Constitution's oft-futile restraints on federal taxation into a single, potent whole.

For a concrete example of this doctrine, look no further than the taxpayers' oral argument in *Moore*. While the Court granted certiorari for the MRT's alleged unconstitutionality under the Sixteenth Amendment only,[254] this tax simultaneously raises due process concerns for two reasons: it attributes income from CFCs to U.S. shareholders and retroactively taxes up to thirty years of past earnings.[255] Without explicitly conceding as such, the petitioners in *Moore* substantively relied on the same logic underpinning the hybrid-rights doctrine; namely, responding to skepticism from Justices Sotomayor and Barrett regarding the alleged difference in constitutionality between the MRT and Subpart F, the taxpayers argued the latter distinctly "looks at income *as it comes in* while the controlling shareholder has the *ability to redirect that stream of income*"[256]—the italicized language of which (as noted by these two Justices) sounds more like an issue of due process than of realization.[257] But since the petitioners framed their argument as concerning the Sixteenth Amendment and Direct Tax Clauses on standalone bases,[258] the Court never addressed possible interactions between any constitutional provisions.[259] Even still, *Moore* exemplifies taxpayers' hunger for new frameworks.

Within the broader category of hybrid rights, this hypothesized variety in *Moore* most closely parallels the case law of section II.E. In particular, the petitioners were combining a constitutional restraint on congressional taxing authority (the Sixteenth Amendment's reference to "incomes") alongside a constitutional protection for individuals (the Due Process Clause) to reach a limit-powered hybrid right. But this need not be the doctrine's sole iteration for

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254. *See* Petition for Writ of Certiorari, *supra* note 115, at i ("The question presented is: Whether the Sixteenth Amendment authorizes Congress to tax unrealized sums without apportionment among the states.").

255. *See* I.R.C. § 965(a) (increasing the "subpart F income" of certain foreign corporations by "the accumulated post-1986 deferred foreign income of such corporation"); I.R.C. § 951(a)(1)(A) (requiring certain U.S. shareholders of foreign corporations to include their "pro rata share" of "subpart F income" in "gross income").

256. Transcript of Oral Argument, *supra* note 154, at 11 (emphasis added).

257. *See id.* at 10 ("It sounds to me that what you're attacking is only a due process issue . . . ." (statement of Sotomayor, J.)); *id.* at 11 ("But isn't that then just a question of whether it's fair to attribute—fair from a due process point of view, as Justice Sotomayor was saying . . .?" (statement of Barrett, J.)).

258. *See* Brief for Petitioners at 15, Moore v. United States, 144 S. Ct. 1680 (2024) (No. 22-800) (concluding the summary of its argument by writing "the MRT is an outright tax on property because of ownership" and "petitioners realized *nothing* from their ownership of shares").

259. *See generally Moore*, 144 S. Ct. at 1684–97.

federal taxes; rather, the following table supplies a nonexhaustive list of individual rights and governmental limits that, except for the mutually-exclusive-apportionment rule and Uniformity Clause (since a given tax cannot be both direct and indirect[260]), could all plausibly synergize with each other:

Individual Right	Governmental Limit
Due Process Clause	Uniformity Clause
Equal Protection Clause	Apportionment Rule
Establishment Clause	General Welfare Clause
Free Press Clause	"Incomes" in the Sixteenth Amendment

As mentioned in section I.D, many of the items on the left lack tax-specific doctrines yet would prove useful in certain conditions. For example, while the Seventh Circuit recently rejected an Establishment Clause challenge to I.R.C. § 107(2)'s exclusion from gross income for "rental allowance[s]" of "minister[s] of the gospel,"[261] the hybrid-rights doctrine could enable taxpayer-litigants to pair this same claim with religious discrimination under the Equal Protection Clause.[262] However, in general, controversial tax laws would create room for plausible arguments spanning some blend of the Sixteenth Amendment, the apportionment rule, and the Due Process Clause because these provisions often already supply grounds for facially colorable claims of impropriety.

B. (Relative) Doctrinal Coherence

Despite the academic battles waged against hybrid rights as conceived in the context of the Free Exercise Clause,[263] tax-related constitutional provisions assuage a key concern shared across such criticism: unpredictability. Thirty-five years after *Smith*, academics and jurists have observed striking inconsistency in its implementation.[264] For example, Justice Alito's *Fulton* concurrence noted the doctrine "divided [courts] into at least three camps" of interpretation, including

260. *See* John K. Bush & A.J. Jeffries, *The Horseless Carriage of Constitutional Interpretation: Corpus Linguistics and the Meaning of "Direct Taxes" in* Hylton v. United States, 45 HARV. J.L. & PUB. POL'Y 523, 550 (2022) (noting, based on corpus linguistics, that the term "direct tax" was "frequent[ly] use[d] as encompassing all non-indirect taxes").

261. Gaylor v. Mnuchin, 919 F.3d 420, 423, 437 (7th Cir. 2019); *see also* I.R.C. § 107(2).

262. *See* United States v. Carolene Prods. Co., 304 U.S. 144, 153 n.4 (1938) (noting the Court would apply more rigorous scrutiny to, inter alia, "statutes directed at particular religious . . . minorities" (citations omitted)).

263. *See supra* note 173 and accompanying text.

264. *See, e.g.*, William L. Esser, IV, Note, *Religious Hybrids in the Lower Courts: Free Exercise Plus or Constitutional Smoke Screen?*, 74 NOTRE DAME L. REV. 211, 242 (1998) ("Analysis of hybrid claims in the lower courts leads to the unmistakable conclusion that the hybrid 'calculus' or logical interpretation (i.e., two loser constitutional claims = one winner constitutional claim) simply is not being applied."); Porat & Posner, *supra* note 183, at 49 n.126 (noting that many academics "argue that

circuits that "openly refus[e] to follow" it.[265] But such categorical rejections (and other circuits' narrow interpretations[266]) are not fueled by ideological defiance of *Smith*; rather, they reflect the difficulty that lower courts often encounter when asked to recognize new hybrid rights—a hardship that, in reality, stems from the distinct complexity of present-day First Amendment jurisprudence.

Put bluntly, the Court's case law on the First Amendment, especially the Religion Clauses, is a mess.[267] With various hazily understood degrees of scrutiny and still more hazily understood tests for determining when each degree of scrutiny should apply,[268] lower courts struggle to digest precedent in this area before even considering other constitutional domains.[269] Moreover, litigants generally invoke hybrid rights to combine Free Exercise Clause challenges with equally, if not more, elusive doctrines elsewhere in the Constitution. Indeed, two of Justice Scalia's paradigmatic hybrid rights cases in *Smith* concerned intersections of the Free Exercise Clause with freedom of speech[270] (a "notoriously turgid and confused" field according to Professor Robert Post[271]) and substantive due process[272] (a framework that "unquestionably involves policymaking rather than neutral legal analysis" according to Justice Scalia himself[273]). It should therefore come as no surprise that lower courts widely fluctuate in their treatment of hybrid rights. Like the expression "garbage in, garbage out" from computer science,[274] judges cannot coherently apply the hybrid-rights doctrine when the underlying analytical frameworks for these rights are themselves incoherent.

But doctrines on taxation are different. In general, once the Court draws a line demarcating a tax-related provision's threshold for constitutionality, the

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the [hybrid-rights] doctrine makes no sense on its own terms and has sown confusion among the lower courts").

265. Fulton v. City of Philadelphia, 593 U.S. 522, 604 (2021) (Alito, J., concurring in the judgment); *see also supra* note 182 and accompanying text.

266. *See* Archdiocese of Wash. v. Wash. Metro. Area Transit Auth., 897 F.3d 314, 331 (D.C. Cir. 2018) (stating that hybrid rights "require[] independently viable free speech and free exercise claims"); Gary S. v. Manchester Sch. Dist., 374 F.3d 15, 18–19 (1st Cir. 2004) (similar); Axson-Flynn v. Johnson, 356 F.3d 1277, 1296–97 (10th Cir. 2004) (similar).

267. Louis Michael Seidman, *The* Dale *Problem: Property and Speech Under the Regulatory State*, 75 U. CHI. L. REV. 1541, 1562 (2008) ("[I]t is hardly surprising that First Amendment law is a mess.").

268. *See* John Inazu, *First Amendment Scrutiny: Realigning First Amendment Doctrine Around Government Interests*, 89 BROOK. L. REV. 1, 4 (2023) (stating the Court's First Amendment doctrines have become "bloated, unwieldy, and difficult to hold together").

269. Alexander Tsesis, *Levels of Free Speech Scrutiny*, 98 IND. L.J. 1225, 1226 (2023) ("The Court relied on various heightened scrutiny tests that, in their current forms, provide insufficient guidance to lower courts . . . .").

270. *See* Emp. Div. v. Smith, 494 U.S. 872, 881 (1990).

271. Robert Post, Essay, *Recuperating First Amendment Doctrine*, 47 STAN. L. REV. 1249, 1275 (1995).

272. *See Smith*, 494 U.S. at 881 (citing two cases that relied on substantive due process, Justice Scalia specifically noted the intersection between the Free Exercise Clause and "the right of parents . . . to direct the education of their children" (citation omitted) (citing Pierce v. Soc'y of Sisters, 268 U.S. 510 (1925); Wisconsin v. Yoder, 406 U.S. 205 (1972)).

273. United States v. Carlton, 512 U.S. 26, 41 (1994) (Scalia, J., concurring in the judgment).

274. *See, e.g.*, Sandra G. Mayson, *Bias In, Bias Out*, 128 YALE L.J. 2218, 2224 n.23 (2019).

implications for virtually all other levies become apparent. Regarding the Sixteenth Amendment, for instance, few would dispute that I.R.C. § 1001(a) rests on surer footing of being a "tax[] on incomes" than I.R.C. § 1256, and few more would dispute that I.R.C. § 1256 rests on surer footing of being a "tax[] on incomes" than a wealth tax. Similarly, and in stark contrast to the amorphousness of substantive due process, courts can often formulaically identify when levies involve retroactivity or attribution: in many instances, a given tax either has backward-looking application and/or attribution to third parties, or it does not. Consequently, whereas the Court's recognition of, say, a fundamental right to childrearing[275] leaves few inferences for, say, a fundamental right to assisted suicide,[276] lower courts could readily resolve most Sixteenth Amendment challenges if the Court endorsed or abandoned the realization requirement. And although the Justices must undergo the ambiguous process of interpreting "taxes on incomes," they would need to do so regardless of the hybrid-rights doctrine being invoked.

In sum, much of the criticism toward this doctrine derives from the malleable constitutional provisions upon which hybrid rights are found. Instead of relegating this framework to solely Free Exercise Clause jurisprudence,[277] the Court should search for other constitutional domains wherein judges and litigants can endorse hybrid rights in a more principled manner. And the Constitution's tax-related provisions offer especially apt fora; even if given just a handful of cases applying the doctrine in this field, lower courts would be well-equipped to reliably decide future tax disputes.

C. Modern Applications

To concretize this theory and demonstrate its likely appeal among members of the federal judiciary, some real-world applications will prove helpful. At the outset, as shown by the taxpayers' substantive reliance on the hybrid-rights doctrine in *Moore*, the MRT could have landed outside a combination of the Due Process Clause (along both its attribution and retroactivity principles) and the Sixteenth Amendment. However, considering the petitioners' outward reliance on just the realization requirement, the Court unsurprisingly analyzed the attribution and realization doctrines in isolation of each other. Yet even in this post-*Moore* landscape, the hybrid-rights doctrine would lay principled grounds for invalidation of the most controversial taxes currently being considered:

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275. *See* Meyer v. Nebraska, 262 U.S. 390, 400 (1923) (deeming state prohibition on teaching in non-English languages to violate liberty interests guaranteed under the Fourteenth Amendment's Due Process Clause).

276. *See* Washington v. Glucksberg, 521 U.S. 702, 735 (1997) (upholding state prohibition of assisted suicide against a Fourteenth Amendment challenge).

277. *See* Burwell v. Hobby Lobby Stores, 573 U.S. 682, 737 (2014) (Kennedy, J., concurring) ("[I]n a complex society and an era of pervasive government regulation, defining the proper realm for free exercise can be difficult.").

1. The "Billionaire's Tax"

During his final State of the Union address, President Biden repeated his call for "a minimum tax of 25 percent for billionaires"[278] to resounding applause from Democratic congressmembers. Despite the vagueness of this sentence alone, he was presumably referring to his recent proposal for a twenty-five percent minimum tax on *all* gains—realized and unrealized—for households worth over $100 million.[279] "All" has been italicized for a reason: under President Biden's proposal, this tax would capture unrealized gains generated in the past.[280]

The current constitutional landscape already renders this proposal suspect, but invalidation under standalone clauses poses several hurdles. On the Sixteenth Amendment front, a finding of unconstitutionality necessitates reviving *Macomber*'s realization rule at the cost of overruling dicta across over one century of case law and eliminating several preexisting provisions in the Code. And on the due process front, while skeptical jurists could stress that this tax's extensive backward-looking application exceeds "a modest period,"[281] they would struggle to label the levy "harsh and oppressive"[282] given its exclusive application to high-net-worth individuals.[283] Leveraging the hybrid-rights doctrine, however, a reviewing court could easily strike down President Biden's tax without these side effects by simply finding it invalidly positioned at the borders of both the Sixteenth Amendment and the Due Process Clause. Moreover, the key defects of his proposal—its retroactivity and imposition on unrealized gains—form foundational features of the tax that cannot be sacrificed. Indeed, much of the alleged $500 billion in revenue that could be raised from this tax over the next decade[284] derives from its one-time, backward-looking application to unrealized gains.[285] Without retroactive mark-to-market imposition, President Biden's tax loses its teeth. But with these attributes, the hybrid-rights doctrine would make short work of its unconstitutionality.

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278. Biden, *supra* note 25, at S2275.

279. *See* Billionaire Minimum Income Tax Act, H.R. 6498, 118th Cong. (2023) (President Biden's proposal, as introduced by Representative Stephen Cohen).

280. *See id.* (taxing "net unrealized gain," defined as "the aggregate gains which would be recognized if such taxpayer sold each asset held at the close of such taxable year," regardless of the respective asset's date of acquisition or accrual of gains, "for such asset's estimated value . . . over . . . the aggregate losses which would be so recognized").

281. United States v. Carlton, 512 U.S. 26, 32 (1994).

282. Welch v. Henry, 305 U.S. 134, 147 (1938).

283. *See* H.R. 6498 (in addition to certain trusts and estates, applying tax only to individuals worth over $100,000,000).

284. *See* Biden, *supra* note 25, at S2275.

285. *Cf.* Garrett Watson & Erica York, *Analysis of Harris's Billionaire Minimum Tax on Unrealized Capital Gains*, TAX FOUNDATION (Sept. 4, 2024), https://taxfoundation.org/blog/harris-unrealized-capital-gains-tax/[https://perma.cc/TPF2-8YAW] (explaining, for then–presidential candidate Kamala Harris's comparable tax proposal, that "[m]uch of the estimated revenue it would raise in the first decade is from taxing previously accumulated capital gains").

2. A Wealth Tax

Switching lenses to Congress, even more ambitious and constitutionally dubious endeavors await. In particular, proposals for a "wealth tax" applying annually to taxpayers' assets—regardless of realized or unrealized income—have been championed by Senators Elizabeth Warren and Bernie Sanders. Whereas the former's "Ultra-Millionaire Tax Act" would impose taxes of 2% on net worth above $50 million and up to 6% on net worth above $1 billion,[286] the latter's "tax on extreme wealth" effectively leverages the same regime with finer brackets.[287]

As an initial matter, the Sixteenth Amendment does not validate these taxes under even its most government-favored construal. After all, "incomes[] from whatever source derived"[288] must have *some* meaning,[289] and stagnant property cannot plausibly land inside it. Instead, many experts have alleged that wealth taxes qualify as indirect, thereby triggering and satisfying the Uniformity Clause.[290] Just like the standalone constitutional claims ostensibly supporting President Biden's proposal, this argument is debatable but has merit. For instance, some originalist jurists would treat the 1796 Court's commentary on apportionment in *Hylton* as conclusive evidence regarding the provision's original meaning,[291] and stare decisis arguably justifies departing from *Pollock* given the Court's repeated disfavor of this case in the 129 years since its pronouncement.[292] Additionally, even though the retroactive imposition of wealth taxes raises facial due process issues (given their indiscriminate coverage over property acquired in the past), courts would again reject designating these levies as "harsh and oppressive"[293] since they apply to only the top fraction of the wealthy.[294] Leveraging the hybrid-rights doctrine, however, taxpayer-litigants could credibly argue that wealth taxes invalidly reside at the cusp of both the direct/indirect dichotomy and the Due Process Clause. As with its implications for the

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286. *See* Ultra-Millionaire Tax Act of 2021, S. 510, 117th Cong. (2021) (Senator Warren's proposal).

287. *See Tax on Extreme Wealth*, BERNIE (last visited Mar. 13, 2024), https://berniesanders.com/issues/tax-extreme-wealth/[https://perma.cc/3C54-B5NV] (proposing tax of 1% on net worth from $32 million to $50 million, 2% from $50 million to $250 million, 3% from $250 million to $500 million, 4% from $500 million to $1 billion, 5% from $1 billion to $2.5 billion, 6% from $2.5 billion to $5 billion, 7% from $5 billion to $10 billion, and 8% for net worth over $10 billion).

288. U.S. CONST. amend. XVI.

289. *Cf.* Marbury v. Madison, 5 U.S. (1 Cranch) 137, 174 (1803) ("It cannot be presumed that any clause in the constitution is intended to be without effect . . . .").

290. *E.g.*, Letter from Ari Glogower, David Gamage, Erin Scharff, Brian Galle, John R. Brooks, Calvin H. Johnson, Darien Shanske & Carolyn Jones to Elizabeth Warren, Sen. (Feb. 25, 2021), *available at* https://www.warren.senate.gov/imo/media/doc/Wealth%20Tax%20Constitutionality%20Letter%20-%20Glogower%20Et%20Al.pdf [https://perma.cc/J44E-JUPA] ("A tax on an individual's net wealth, however, is not a direct tax, and need not be apportioned among the states according to their population.").

291. *See supra* note 93 and accompanying text.

292. *See supra* notes 84–90 and accompanying text.

293. Welch v. Henry, 305 U.S. 134, 147 (1938).

294. *See* Ultra-Millionaire Tax Act of 2021, S. 510, 117th Cong. (2021) ($50 million threshold); *Tax on Extreme Wealth*, *supra* note 287 ($32 million threshold).

"billionaire's tax," the hybrid-rights doctrine supplies a principled means to warrant judicial nullification of wealth taxes without disturbing longstanding precedent.

While lacking the high degree of salience as the proposals above, several other bills employ equally expansive taxing mechanisms[295] and should accordingly be met with the same fate. But as the two case studies in this section elucidate, taxpayer-litigants opting for standalone constitutional arguments first enjoy superficially tenable positions yet soon encounter the insurmountable hurdle of reconciling the doctrinal disorder that their arguments create. The hybrid-rights doctrine offers a cleaner alternative: rather than casting doubt over countless statutes, regulations, guidance, and cases, this theory enables judges to repackage presently weak individual protections into a more potent sum. Taxpayer-litigants must still convince reviewing courts to adopt reasoning akin to that in *Smith*, *Griswold*, and *Obergefell*, but recent history has demonstrated that this is an easier pill for jurists to swallow than reviving *Pollock* or *Macomber*—even for legal conservatives.[296]

D. The Counterarguments

But there must be a catch. After all, the Court has never remotely considered establishing hybrid protections from taxation, and none of the Justices suggested doing so in *Moore* despite the petitioners invoking this doctrine in substance. And indeed, any claim relying on hybrid rights seems destined for defeat: legal conservatives have derided the practice of creating constitutional rights for decades,[297] so litigants should hesitate before invoking similar logic before the current supermajority of such members on the Court.[298] Nevertheless, when carefully delineated, the hybrid-rights doctrine has persuaded a sufficient number of conservative Justices in specific contexts.[299] This section accordingly addresses three counterarguments from legal conservatives, concluding that hybrid rights offer the most appealing means to cabin taxes despite their oft-disfavored status.

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295. *See, e.g.*, Babies over Billionaires Act of 2022, H.R. 7502, 117th Cong. (2022) (then-Representative Jamaal Bowman's proposal to tax unrealized capital gains of individuals with net worth exceeding $100 million).

296. *See* Glenn H. Reynolds, *Penumbral Reasoning on the Right*, 140 U. PA. L. REV. 1333, 1333 (1992) ("Upon even a cursory examination, it becomes apparent that judges and scholars on the right have been as willing as those on the left to rely on reasoning and authority that are not explicit in the language of the Constitution."); Bruce Ackerman & Anne Alstott, *Why (and How) to Tax the Super-Rich*, L.A. TIMES (Sept. 20, 2011, 12:00 AM PT), https://www.latimes.com/archives/la-xpm-2011-sep-20-la-oe-ackerman-wealth-tax-20110920-story.html [https://perma.cc/7RFP-6RE6] (speculating the Court will not revive *Pollock* because "[t]he Roberts court may be conservative, but it is not quite as reactionary as all that").

297. *E.g.*, Robert H. Bork, *Neutral Principles and Some First Amendment Problems*, 47 IND. L.J. 1, 8 (1971) ("Where constitutional materials do not clearly specify [a] value to be preferred, there is no principled way to prefer any claimed human value to any other.").

298. *See* Margaret Talbot, *Amy Coney Barrett's Long Game*, NEW YORKER (Feb. 7, 2022), https://www.newyorker.com/magazine/2022/02/14/amy-coney-barretts-long-game [https://perma.cc/A8Z9-LZK5] (noting that Justice Barrett's confirmation "gave the conservative wing of the Court a 6–3 supermajority").

299. *See* Reynolds, *supra* note 296, at 1333.

1. "Hybrid Rights Promote Judicial Policymaking"

Start with the inevitable: as noted in the prior analysis of *Smith*, *Griswold*, and *Obergefell*, legal conservatives criticize hybrid rights for facilitating judicial activism without any constitutional basis.[300] Namely, even assuming this doctrine supplies lower courts with sufficient guidance for principled adjudication, nothing would prevent the Supreme Court from commandeering hybrid rights to constitutionalize its subjective policy preferences.[301] Or in the words of Justice Scalia while discussing an alleged constitutional right to privacy, such a right "comes from penumbras and emanations, blah blah blah, garbage."[302]

Yet amid his lifelong war against penumbral reasoning, Justice Scalia also championed the substantively identical hybrid-rights doctrine. He was not alone; in a dose of legal realism,[303] many of *Griswold*'s biggest critics have relied on Justice Douglas–like logic to reach conservative results elsewhere, ranging from standing[304] to sovereign immunity.[305] Presumably, none of them consider their own arguments "blah blah blah, garbage."[306] And for an example more recent than Justice Scalia in *Smith*, simply look at his successor: Justice Gorsuch cosigned Justice Alito's disapproval of hybrid rights in *Fulton*[307] and has separately mocked penumbral reasoning,[308] but he elsewhere asserted—while writing for all of the sitting conservatives—that the Free Exercise and Free Speech Clauses "work in tandem[,] . . . provide[] overlapping protection[,] . . . [and] doubly protect[] religious speech."[309] Far from being the bygone product of the Supreme Court's progressive past, the hybrid-rights doctrine resonates with conservative jurists when applied to conservative causes.

The Justices seem categorically skeptical of hybrid rights, but this appearance realistically reflects legal conservatives' greater reluctance to enshrine individual

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300. *See, e.g.*, BORK, *supra* note 187, at 99 ("[T]he protection of marriage was not the point of *Griswold*. The creation of a new device for judicial power to remake the Constitution was the point.").

301. *See id.* (criticizing *Griswold* majority because "'privacy' will turn out to protect those activities that enough Justices to form a majority think ought to be protected and not activities with which they have little sympathy").

302. Adam Serwer, *Scalia on Privacy: 'Blah Blah Blah, Garbage,'* NBC NEWS (Sept. 27, 2013, 12:49 PM), https://www.nbcnews.com/id/wbna53124148 [https://perma.cc/N6HX-3UBE].

303. *See* LEE EPSTEIN ET AL., THE BEHAVIOR OF FEDERAL JUDGES 44 (2013) ("Judges are supposed to lay their preconceptions to one side when deciding a case . . . [b]ut when one must make a decision under uncertainty, it is impossible to banish preconceptions . . . .").

304. *See* Reynolds, *supra* note 296, at 1337 ("The doctrine of standing is one product of penumbral reasoning.").

305. *See id.* at 1341 (arguing Eleventh Amendment jurisprudence "involves a sort of penumbral reasoning . . . .").

306. Serwer, *supra* note 302.

307. Fulton v. City of Philadelphia, 593 U.S. 522, 544, 604 (2021) (Alito, J., concurring in the judgment).

308. *See* Roman Cath. Diocese v. Cuomo, 592 U.S. 14, 24 (2020) (Gorsuch, J., concurring) (sarcastically writing that "some [judges] have found [emergency restrictions on rights] hiding in the Constitution's penumbras").

309. Kennedy v. Bremerton Sch. Dist., 597 U.S. 507, 523 (2022).

rights in the Constitution[310] rather than their disfavor toward the hybrid-rights doctrine on its merits. Indeed, for the relatively uncommon scenarios wherein conservatives can co-opt this reasoning to their advantage, such as religious liberty[311] and standing,[312] they have not hesitated to do so. And given the capacity of the hybrid-rights doctrine to invalidate the most controversial tax proposals of late, future taxpayer-litigants should contemplate incorporating this framework into allegations of unconstitutionality.

2. "There Are Better, Less Subjective Options Available"

Even with its favorable prospects for circumscribing taxation, the hybrid-rights doctrine would ordinarily not be the optimal means of constitutional tax jurisprudence among legal conservatives; if nothing else, their reliance on this methodology could expose them to allegations of partisanship should they later refute other alleged hybrid guarantees in the Constitution.[313] But for those legal conservatives interested in narrowing congressional taxing power, alternative solutions introduce a worse headache: stare decisis.

While the Court might consider bolstering protections granted by standalone constitutional provisions, it could not feasibly reconcile this maneuver with centuries of conflicting cases and statutes. For example, had the Justices in *Moore* invalidated the MRT by resuscitating a realization requirement in the Sixteenth Amendment, they would have somehow needed to situate this holding within contradictory statements in cases such as *Helvering v. Horst*,[314] *Helvering v. Griffiths*,[315] and *Commissioner v. Glenshaw Glass Co.*[316] as well as contradictory taxing principles in the Code such as I.R.C. § 877A,[317] I.R.C. § 1256,[318] original issue discount rules,[319] Subpart F,[320]

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310. *See* Erwin Chemerinsky, *Ending the Parity Debate*, 71 B.U. L. REV. 593, 598–99 (1991) ("[T]he domination of federal courts by judges appointed by Republican presidents undermines any basis for confidence in the federal bench as a source of systematic protection of individual liberties."); Barry Friedman, *Under the Law of Federal Jurisdiction: Allocating Cases Between Federal and State Courts*, 104 COLUM. L. REV. 1211, 1222–23 (2004) ("Faced with an increasingly conservative federal bench and a spate of social issues being addressed in liberal ways by state governments, liberals may come again to disfavor federal courts." (footnote omitted)).

311. *See Kennedy*, 597 U.S. at 523.

312. *See Reynolds*, *supra* note 296, at 1337.

313. Griswold v. Connecticut, 381 U.S. 479, 484 (1965).

314. 311 U.S. 112 (1940); *see id.* at 116 ("The [realization] rule[] [was] founded on administrative convenience . . . .").

315. 318 U.S. 371 (1943); *see id.* at 394 ("[Various past cases] undermined the original theoretical bases of the decision in *Eisner v. Macomber*.").

316. 348 U.S. 426 (1955); *see id.* at 431 ("[*Macomber*] was not meant to provide a touchstone to all future gross income questions.") (citing Helvering v. Bruun, 309 U.S. 461 (1940); United States v. Kirby Lumber Co., 284 U.S. 1 (1931)).

317. *See* I.R.C. § 877A(a) (taxing property of certain expatriates on a mark-to-market basis).

318. *See* I.R.C. § 1256(a)(1) (taxing certain contracts on a mark-to-market basis).

319. *See* I.R.C. §§ 1272–1273 (imputing income daily for bonds issued at a discount).

320. *See* I.R.C. § 951(a)(1)(A) (attributing CFCs' income to their U.S. shareholders on a prorated basis).

GILTI,[321] Subchapter S,[322] and Subchapter K.[323] As much as commentators claim the Roberts Court does not respect precedent,[324] such vast bodies of legal authority being disturbed would cause even the most headstrong jurists to search for another approach—especially in taxation, a convoluted realm for most Article III judges.[325] Although courts could preserve some of this law on a tax-by-tax basis via fact-specific arguments,[326] this strategy would administratively burden the judiciary and still fail to save significant portions of the Code. The Court could technically alter its tax jurisprudence while citing stare decisis to justify retaining any past cases rendered erroneous, but this approach would require the Justices to recognize their upholding of unconstitutional case law despite having emphasized elsewhere that stare decisis is "at its weakest when [the Court] interpret[s] the Constitution."[327] Such a concession seems even less likely to occur than the Code being bulldozed.

The hybrid-rights doctrine delivers the best of both worlds: in addition to striking down progressive tax policies, it need not disturb existing law. Indeed, just as Justice Scalia espoused the doctrine to reconcile seemingly contradictory precedent on the Free Exercise Clause, legal conservatives could leverage this technique for the same end in the taxation context. For example, if the Court hypothetically invalidated President Biden's mark-to-market tax purely by reviving a constitutional realization requirement, it would then need to address, inter alia, I.R.C. § 877A, I.R.C. § 1256, and more than a century of case law casting doubt over *Macomber*. But if the Court instead invalidated this tax by attacking its position at the outer bounds of the Due Process Clause and Sixteenth Amendment, these other statutes and cases would no longer be inherently threatened since they do not trigger retroactive imposition to the same extent as a statute taxing unrealized gains from the distant past. Ultimately, whether viewed as an affirmatively good strategy or merely the least destructive option, the hybrid-rights doctrine gives legal conservatives what they want without the insurmountable obstacles blocking alternative paths.

3. "Hybrid Powers Exist Too"

For their last facially plausible retort, legal conservatives could flip this Note on its head; namely, rather than interpreting the right-hand column of the table in section III.A as a set of governmental *limits* fueling the hybrid-*rights* doctrine, a

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321. *See* I.R.C. § 951A(a) (attributing "global intangible low-taxed income" from certain foreign corporations to their U.S. shareholders).

322. *See* I.R.C. § 1366(a)(1) (attributing income from S corporations to their shareholders).

323. *See* I.R.C. § 702(a) (attributing partnership income to partners).

324. *See* sources cited *supra* note 43.

325. *See* Charles L.B. Lowndes, *Federal Taxation and the Supreme Court*, 1960 SUP. CT. REV. 222, 225 (1960) (stating the Supreme Court's tax opinions are marred by "triviality and futility").

326. *See, e.g.*, Note, Moore *than Meets the I.R.C.? The Apportionment Rule's Originalist Backstop for I.R.C. § 877A*, 137 HARV. L. REV. 1204, 1223–24 (2024) (arguing for the fact-specific constitutionality of a mark-to-market exit tax).

327. Agostini v. Felton, 521 U.S. 203, 235 (1997).

tax-friendly court could view it as a set of governmental *authorizations* fueling the hybrid-*powers* doctrine.[328] After all, the Court has demonstrated receptiveness to recognizing hybrid powers for over two centuries, and many of the alleged limits on federal taxation reside within constitutional provisions that were intended to expand governmental authority. Indeed, Chief Justice Marshall lists "lay[ing] and collect[ing] taxes" as the first of Congress's "great powers" in *McCulloch*[329]—one of the paradigmatic hybrid-powers cases.[330] So why should the Court depart from such precedent here?

The answer to this loaded question rests in correcting a mistaken premise. While the Court has previously recognized hybrid powers to justify alleged federal intrusions upon states, it has never done so amid countervailing constitutional rights for individuals. In *McCulloch*, for instance, Chief Justice Marshall never considered individual protections because the case concerned only issues of federalism;[331] if anything, the United States' victory in *McCulloch* benefited individual consumers by providing them with a competitive commercial bank rendered immune from state taxation.[332] Similarly, and as evinced by being a dispute between two private parties,[333] *Knox* lacked any direct aggrandizement of congressional authority at the expense of individual rights. This case perhaps created opportunities for the government to itself issue bonds payable with paper money and subsequently print money in such a volume so as to effectively deprive creditors of their property, but the Court in these decisions considered only a private party's alleged deprivation of property to the benefit of another private party—a key distinction in the *Legal Tender Cases*.[334]

Taxes, by contrast, inherently involve transfers from people to the government. Even when the Framers sought to expand congressional taxing authority in the Constitutional Convention,[335] they did so within expressly delineated bounds to

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328. *Cf.* Alex Kozinski & Eugene Volokh, Commentary, *A Penumbra Too Far*, 106 HARV. L. REV. 1639, 1657 (1993) ("[P]enumbral thinking cuts both ways: It can be used to expand individual rights (at the expense of our right to self-government), but it can also be used to expand the powers of government (sacrificing personal rights).").

329. McCulloch v. Maryland, 17 U.S. (4 Wheat.) 316, 407 (1819).

330. *See* Coenen, *supra* note 192, at 1086–88 (citing *McCulloch* among a handful of hybrid-powers cases before the Court dramatically expanded standalone constitutional powers, particularly the Commerce Clause).

331. *See* McHenry County v. Raoul, 44 F.4th 581, 592 (7th Cir. 2022) (naming it "canonical" to federalism).

332. Notably, the First and Second Banks of the United States combined commercial banking with some central banking functions. *See* Aaron Gordon, *Nondelegation*, 12 N.Y.U. J.L. & LIBERTY 718, 775 n.195 (2019) (noting these banks "act[ed] as market participants, accept[ed] deposits, ma[de] loans, and set[] interest rates on those loans").

333. Legal Tender Cases, 79 U.S. (12 Wall.) 457, 457–58 (1871) (summarizing the facts as a dispute over a court's instructions regarding the currency of a civil judgment).

334. *See id.* at 551 ("[The Fifth Amendment] has always been understood as referring only to a direct appropriation, and not to consequential injuries resulting from the exercise of lawful power.").

335. *See* KLARMAN, *supra* note 8, at 216.

mitigate oppression from the government.[336] Similarly, although the drafters and ratifiers of the Sixteenth Amendment intended to expand such taxing authority beyond these original bounds,[337] they expected that meaningful restraints would remain intact.[338] As a result, taxation is categorically ill-suited for the hybrid-powers doctrine; if courts could combine tax-authorizing clauses to validate levies that land beyond such clauses standing alone, they would risk negating the carefully crafted compromises between governmental power over, and individual protections from, taxation.[339] Yet simultaneously, given the Framers' solicitude for liberty and freedom,[340] courts could credibly combine tax-related limits to invalidate certain levies on fact-specific grounds without disturbing these same compromises. In other words, when hybrid rights and hybrid powers ostensibly contradict each other, the former should prevail.

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Despite their justifiable bases in these counterarguments, legal conservatives have deemed them insufficient for rejecting hybrid rights in other contexts when push comes to shove. Taxation should be no different; rather than upsetting the current Code by resuscitating some doctrine of old, tax-skeptical judges can reach their presumably desired outcome—invalidating the federal government's most controversial ongoing proposals—by simply reaffirming the rationales in *Smith*, *Griswold*, *Obergefell*, *McCulloch*, *Windsor*, and many other still-valid cases. At a surface level, this theory uses progressive legal reasoning to reach a politically conservative outcome. But in reality, jurists across both camps avail themselves of this doctrine when given the right set of conditions. And to the extent the judiciary wants to foreclose taxes currently being proposed, these conditions comfortably sit in their Goldilocks zone: not strong enough to nullify past taxes, not weak enough to rubber-stamp future taxes, but just right to reach a principled middle ground.[341]

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336. *See* THE FEDERALIST NO. 36, *supra* note 47, at 216 (Alexander Hamilton) (noting the apportionment rule "effectually shuts the door to partiality or oppression" and that "[t]he abuse of [direct] taxation seems to have been provided against with guarded circumspection").

337. *See supra* note 135 and accompanying text.

338. *See* Erik M. Jensen, *Interpreting the Sixteenth Amendment (By Way of the Direct-Tax Clauses)*, 21 CONST. COMMENT. 355, 392–403 (2004) (arguing "[a] conscious decision was made to limit the Sixteenth Amendment's scope to 'taxes on incomes,'" *id.* at 398, and citing historical evidence consistent with this conclusion, *see id.* at 398–403).

339. *See* Gillian E. Metzger, *The Supreme Court, 2011 Term—Comment: To Tax, to Spend, to Regulate*, 126 HARV. L. REV. 83, 90 (2012) (describing the apportionment rule as "part of the critical compromise over slavery").

340. *See* RANDY E. BARNETT, RESTORING THE LOST CONSTITUTION: THE PRESUMPTION OF LIBERTY 4 (2003) (arguing the Framers held the view that "first come rights, and then comes the Constitution").

341. *Cf.* ROBERT SOUTHEY, *The Story of the Three Little Bears*, *in* THE DOCTOR 327, 328 (John Wood Warter ed., London, Longman, Brown, Green, & Longmans 1856) ("[A] little old Woman . . . went to the porridge of the Little, Small, Wee Bear, and tasted that; and that was neither hot, nor too cold, but just right . . . .").

CONCLUSION

The Code wields the power to destroy,[342] but heedless revival of age-old tax restrictions wields the power to destroy the Code. Excluding its one-off and widely unpopular decisions in *Pollock* and *Macomber*, the Court has consistently interpreted standalone constitutional provisions that could have protected taxpayers—be it the apportionment rule, the General Welfare Clause, due process rights, or the Sixteenth Amendment—in favor of the federal government. Rather than reinterpreting these clauses and stampeding over stare decisis, jurists can turn to another doctrine comprehensively developed in other constitutional domains: hybrid rights. By melding elements from multiple provisions into a single argument, future taxpayer-litigants could credibly challenge today's most intrusive levies without needing to reconcile the parade of horribles cited against their predecessors. As much as legal conservatives purport to detest hybrid rights, they have not shied away from substantively identical reasoning when it preserves precedent and supports their desired outcome. And the Court now has a ripe opportunity to conduct this exact maneuver with taxation.

342. *See* McCulloch v. Maryland, 17 U.S. (4 Wheat.) 316, 431 (1819).